

NORMAN G. FINKELSTEIN



GAZA'S GRAVEDIGGERS

AN INQUIRY INTO CORRUPTION IN HIGH PLACES

Methodically debunking the claims of its apologists, Norman Finkelstein has for decades laid bare the cynical politics behind Israel's high-tech killing sprees in Gaza.

Since October 7, 2023, he has been a unique voice in not just condemning Israel's onslaught but also providing original and acute insight into it.

Now, in *Gaza's Gravediggers*, Finkelstein turns his critical lens to the global enablers of genocide—those who distort truth and traduce justice as they prostitute themselves to power and privilege.

With meticulous research and razor-sharp analysis, he exposes how a United Nations special representative lent credence to an Israeli smear campaign, how officials in the world's highest court perverted international law in Israel's defense, and how even Israel's severe critics colluded in misrepresenting genocide as a war.

This is more than a book; it is a searing indictment of those who abused their authority to whitewash an unfolding horror. *Gaza's Gravediggers* serves as a clarion call for accountability, reminding those in power: the world is watching, and History will not forgive.

PRAISE FOR *GAZA'S GRAVEDIGGERS*

“Norman Finkelstein is a peerless, fearless Titan of a scholar who has done more than any other to fact-check prevailing Zionist narratives and shift the international discourse. When Israel is finally held to account for the Palestinian genocide, Finkelstein’s scholarship will be the pre-eminent source.”

—Christopher Gunness, executive director, Myanmar Accountability Project, and former director of advocacy and communications, United Nations Relief and Works Agency for Palestine Refugees in the Near East

“Norman Finkelstein is a brave and brilliant truth-teller who has produced path-breaking scholarship on the Israeli-Palestinian conflict. His new book is a first-class analysis of the lies and distortions that permeate the Western discourse about October 7, 2023, and the subsequent Israeli genocide in Gaza. I hope it will attract a large readership.”

—John J. Mearsheimer, R. Wendell Harrison distinguished service professor of political science, University of Chicago

“This is a searing account of complicity in high places in Israel’s genocide in Gaza. Norman Finkelstein exposes the failures of officials at the UN, the International Court of Justice, the International Criminal Court, and leading human rights organizations to seek the Truth, and thereby to help stop a genocide committed in full view and with the clearest statements of intent by its Israeli perpetrators. A brilliant, stark, and devastating account of how officials entrusted with the world’s conscience betrayed their core mission—and a clarion call to Justice and Truth for the future. On one point I respectfully dissent: the UN is not a rotting corpse, but a vital organization in urgent need of renovation—a renovation to which Finkelstein’s brilliant testimony will itself contribute.”

—Jeffrey D. Sachs, university professor, Columbia University

“Norman Finkelstein meticulously investigates and deconstructs the deeply flawed and often overtly propagandized human rights reports purporting to examine Israeli and Palestinian crimes since October 7, 2023, most notably the manufactured allegations of mass rape and sexual violence by Hamas forces. His analysis provides the most comprehensive examination to date of the genocide, crimes against humanity, war crimes, and sexual crimes perpetrated by Israeli forces against Palestinians in Gaza, and the ways in which even human rights and judicial bodies twisted the law and the facts to soften the blows of their judgment. The author’s encyclopedic knowledge, wit, and razor-sharp analysis cut through complex legal doctrine and statutory interpretation to the heart of the truth: the fact of the ongoing, savage assault on the Palestinian people in Gaza.”

—Sarah Leah Whitson, former executive director, Human Rights Watch, Middle East and North Africa division, and former executive director, Democracy for the Arab World Now

“*Gaza’s Gravediggers* goes to the heart of our civilizational crisis: an open, public genocide with Western complicity. It is an abomination for which we all bear historical guilt. We are witnessing a revolt against international law and morals. Finkelstein’s new book is a fitting requiem for the Palestinians—and ourselves.”

—Alfred de Zayas, professor of law, Geneva School of Diplomacy, and former UN independent expert on the promotion of a democratic and equitable international order

Gaza's Gravediggers

Norman G. Finkelstein is also the author of

Gaza: An Inquest into Its Martyrdom

Gaza's Gravediggers

AN INQUIRY INTO CORRUPTION IN HIGH PLACES

Norman G. Finkelstein



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For the fifth labor, Eurystheus ordered Hercules to clean up King Augeas' stables

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PROLOGUE

Remember what Amalek did to you

—Deuteronomy

I

The seventh of October 2023 didn't change everything. It did, however, change a lot.

Gaza has now been reduced to rubble, obliterated. But since Gaza emerged as a distinct entity after Israel's ethnic cleansing in 1948, it's always been a forbidding place. The recurring image to outside observers has been that of a concentration camp. Whether or not the description is precisely accurate, whether or not Gaza is analogous to the Nazi concentration camps, can legitimately be queried. But that's the juxtaposition that reflexively leapt to mind—and on its own is telling. When Gaza was under Egyptian administration in the mid-1950s, a senior UN official stationed there observed that “[o]ne does not see people starving or dying of disease in the streets; nevertheless the Gaza Strip resembles a vast concentration camp.”¹ A US Senator

1. E.L.M. Burns, *Between Arab and Israeli* (London: 1962), pp. 69–70. This writer owes this reference to Jamie Stern-Weiner. Gaza under Egypt's administration was frequently described as a “concentration camp” by US as well as Israeli officials, and others. See, e.g., *Foreign Assistance and Related Agencies Appropriations for 1963: Hearings Before the Committee on Appropriations, United States Senate, Eighty-Seventh Congress, Second Session on H.R. 13175, an Act Making Appropriations for Foreign Assistance and Related Agencies for the Fiscal Year Ending June 30, 1963, and for Other Purposes* (US Government Printing Office, 1962), p. 382 (Senator Jarvis, “one great big concentration camp”); *Congressional Record*, 13 December

who visited Gaza soon after the June 1967 war informed Congress that Gaza was “a vast concentration camp on the sand, if you will.”² A respected sociologist at the Hebrew University of Jerusalem reckoned Gaza in a 2003 book as “the largest concentration camp ever.”³ The former head of Israel’s National Security Council and still an influential figure with the current Israeli government referred to Gaza in 2004 as “a huge concentration camp.”⁴ This description of Gaza, by friend and foe alike, preceded Israel’s imposition of a brutal blockade after Hamas won Palestinian parliamentary elections in January 2006. A UN Commission of Inquiry headed by a South African jurist and self-described Zionist found in 2009 that the blockade plausibly constituted a crime against humanity,⁵ while Human Rights Watch found in 2024 that the blockade “is part of the crimes against humanity of apartheid and persecution that Israeli authorities are committing against Palestinians.”⁶ Hermetically sealed off from the outside world, Gaza was “starkly transform[ed] from a potential trade route to a walled hub of humanitarian donations” (World Bank).⁷ By the eve of 7 October,

1967, vol. 113, Part 27—90th Congress, 1st Session (<https://www.congress.gov/bound-congressional-record/1967/12/13/house-section>), pp. 36473–74, UN General Assembly, 23rd session, Official Records, 3rd Committee, 1631st meeting, held on Thursday, 5 December 1968 (<https://digitallibrary.un.org/record/807093?v=pdf>), “Letter Dated 19 August 1971 from the Permanent Representative of Israel to the United Nations Addressed to the Secretary-General” (<https://digitallibrary.un.org/record/491117?ln=en&v=pdf>) (Israel’s UN representatives, respectively, 1967, 1968, 1971, “huge concentration camp,” “virtually a concentration camp”); Walter Laqueur, *The Road to War 1967: The origins of the Arab-Israel conflict* (London: 1968), p. 53 (Israeli historian, “concentration camp”). This writer owes these references to Jonas Vognsen.

2. *Congressional Record*, 12 July 1967, vol. 113, Part 14—90th Congress, 1st Session (<https://www.congress.gov/bound-congressional-record/1967/07/12/senate-section>), p. 18500. This writer owes this reference to Colter Louwerse.

3. Baruch Kimmerling, *Politicide: Ariel Sharon’s war against the Palestinians* (New York: 2003), p. 169.

4. “Israeli Officials Brief Djerejian on Improved Regional Security Situation; Unilateral Disengagement Plans,” *Wikileaks* (31 March 2004; https://wikileaks.org/plusd/cables/04TELAVIV1952_a.html), para. 12.

5. *Report of the United Nations Fact-Finding Mission on the Gaza Conflict* (2009), paras. 75, 1334–35, 1936.

6. Human Rights Watch, “*I Can’t Erase All the Blood from My Mind*: Palestinian armed groups’ October 7 assault on Israel (17 July 2024; <https://www.hrw.org/report/2024/07/17/i-cant-erase-all-blood-my-mind/palestinian-armed-groups-october-7-assault-israel>), p. 39.

7. World Bank, *Palestinian Economic Prospects: Aid, Access and Reform: Economic monitoring report to the ad hoc liaison committee* (2008), p. 39. Although it is often alleged that

Gaza was reduced to a “human rubbish heap” (*The Economist*), a “sinking ship” (International Committee of the Red Cross), a “toxic slum” in which more than two million people were “caged . . . from birth to death” (UN high commissioner for human rights).⁸

But that was still only half the story. Israel periodically “mowed the lawn” (its macabre locution) in Gaza. That is, it launched high-tech killing sprees targeting Gaza’s largely defenseless civilian population, 80 percent of whom were classified as refugees and half of whom were children: “Operation Rainbow” (2004), “Operation Days of Penitence” (2004), “Operation Summer Rains” (2006), “Operation Autumn Clouds” (2006), “Operation Hot Winter” (2008), “Operation Cast Lead” (2008–9), “Operation Pillar of Defense” (2012), “Operation Protective Edge” (2014), “Operation Guardian of the Walls” (2021). Each new Israeli “operation” typically picked up where the last one left off except at a qualitatively higher level of death and destruction. During “Operation Cast Lead,” Israel killed 350 children, destroyed or severely damaged 6,000 homes, and left behind 600,000 tons of rubble. A UN Commission of Inquiry found that Israel’s objective was “to punish, humiliate and terrorize a civilian population.”⁹ During “Operation Protective Edge,” Israel killed 550 children, destroyed or severely damaged 18,000 homes, and left behind 2.5 million tons of rubble. The president of the International Committee of the Red Cross observed after touring the ravaged strip, “I’ve never seen such massive destruction ever before.”¹⁰

Trapped in the vice of Israel’s criminal blockade, Hamas desperately endeavored to carve out a path to normalcy. It tried *diplomacy*. A 2009 study by a US government agency concluded that Hamas had “been carefully and consciously adjusting its political program for years” and had “sent repeated

Gaza’s economic collapse traced back to Hamas mismanagement and corruption, the consensus among respected UN organizations has been that the Israeli blockade was the primary factor. See “Introduction to the Third Edition” of Sara Roy’s definitive study, *The Gaza Strip: The political economy of de-development*, expanded third edition (Washington, DC: 2016).

8. Jamie Stern-Weiner (ed.), *Deluge: Gaza and Israel from crisis to cataclysm* (New York: 2024), p. 2.

9. *Report of the United Nations Fact-Finding Mission* (2009), para. 1893.

10. Sudarsan Raghavan, “Month-Long War in Gaza Has Left a Humanitarian and Environmental Crisis,” *Washington Post* (6 August 2014; https://www.washingtonpost.com/world/middle_east/month-long-war-in-gaza-has-left-a-humanitarian-and-environmental-crisis/2014/08/06/85772138-cad7-4812-90d9-6bdb21be1c63_story.html). Whereas it is often alleged that Hamas rocket fire provoked Israel’s “operations,” the documentary record does not bear this out. See Norman G. Finkelstein, *Gaza: An inquest into its martyrdom* (Oakland: 2018).

signals that it may be ready to begin a process of coexisting with Israel.”¹¹ Its extended olive branches were met with silence, however, as Israel wouldn’t brook anything short of total capitulation. Hamas then tried *international law*. After each of Israel’s “operations” in Gaza, major human rights organizations would send delegations and the UN would dispatch a commission of inquiry to investigate human rights violations committed by either side. Each time Israel refused to admit let alone cooperate with them, while each time Hamas elected to fully cooperate, even as the investigative teams were often biased against the Islamic movement, in the faint hope that, although it itself stood to be indicted on criminal charges, justice would finally be done for the people of Gaza. Each time the investigative bodies produced voluminous reports that charged Israel with multiple war crimes and possible crimes against humanity. And each time Israel, machinating with the US, prevented any meaningful international response to the damning findings.¹² Hamas then endorsed *nonviolent civil resistance*. In 2018, the people of Gaza organized, and Hamas then lent its moral and practical support to, the Great March of Return, a principal objective of which was to end the criminal blockade. An authoritative report by a UN Commission of Inquiry documented in agonizing detail what happened next.¹³ Israel deployed—in its own words—“specially-trained snipers, in order to ensure accurate and measured use” of live ammunition.¹⁴ The Israel Defense Forces (IDF) subsequently stated that “nothing was carried out uncontrolled; everything was accurate and measured, and we know where every bullet landed,” while then-defense minister Avigdor Lieberman stated that “Israeli soldiers did what was necessary. I think all our soldiers deserve a medal.”¹⁵ The Commission of Inquiry found that “demonstrators who were hundreds of meters away from the Israeli forces and visibly engaged in civilian activities were intentionally shot. Journalists and health workers who were clearly marked as such were shot,

11. Paul Scham and Osama Abu-Irshaid, *Hamas: Ideological rigidity and political flexibility*, United States Institute of Peace Special Report (Washington, DC: 2009), pp. 2–4. For further references, see Finkelstein, *Gaza*, pp. 31–34.

12. Finkelstein, *Gaza*.

13. *Report of the Detailed Findings of the Independent International Commission of Inquiry on the Protests in the Occupied Palestinian Territory* (2019).

14. *Ibid.*, para. 272 (see also para. 229).

15. *Ibid.*, paras. 743, 746.

as were children, women, and persons with disabilities.”¹⁶ Left abandoned by the international community, the demonstrators predictably reacted in rage and the hopeful, peaceful march descended into reactive violence and disintegrated.

Each and every avenue Hamas had ventured upon to free Gaza from thralldom proved to be a cul-de-sac.

By 2023, Gaza had vanished from the stage of international politics. No one any longer paid it heed. Even this writer, who had devoted a large part of his adult life to chronicling Gaza’s martyrdom, had given up in despair and moved on. It appeared as if Saudi Arabia was about to enter into a joint alliance with the US and Israel, prefigured in the Abraham Accords signed with other Gulf states, that would seal Gaza’s fate as a godforsaken, forgotten patch of land. On the eve of 7 October most young men in Gaza had been long unemployed as their natural gifts lay forever dormant and their human potential squandered. Arising at the crack of dawn, still, according to the calendar, in the sweetness of youth, they had naught to look forward to each day except pacing Gaza’s 25x6-mile perimeter. The militants who breached the gates of Gaza the next day had been born into, languished in, and would almost certainly have died in—to quote again the head of Israel’s National Security Council—“a huge concentration camp.”

I stand up here . . . to obtain the liberation of two millions of wretched, degraded beings, who are pining in hopeless bondage, over whose sufferings scarcely an eye weeps, or a heart melts, or a tongue pleads either to God or man.

—Abolitionist William Lloyd Garrison,
“Dangers to the Nation”

II

On the morning of 22 August 1831, an enslaved man named Nat Turner led the largest slave revolt in US history.¹⁷ He ordered his band of forty confederates

16. Ibid., paras. 692, 694 (see also paras. 519, 526, 536).

17. Unless otherwise indicated, this section draws from Eric Foner (ed.), *Nat Turner* (Englewood Cliffs, NJ: 1971), Stephen B. Oates, *The Fires of Jubilee: Nat Turner’s fierce rebellion*

(the number eventually grew to more than fifty) to “kill all the white people.”¹⁸ During the next day-and-a-half, a wanton rampage unfolded in Southampton County, Virginia, as the insurgents disemboweled men, hacked women to pieces, and beheaded children. (On the other hand, no woman was violated.) An outraged witness later recounted the foul deeds committed that fateful day by supposed monsters:

Masters noted for their lenity—mistresses famed for their kindness—virgins renowned for their beauty and little helpless lisping infants in the cradle, were shot, hewed down with axes, butchered with knives, and had their brains dashed out . . . by these fiends in human form, these remorseless dealers in blood and carnage. Not once did they willingly spare—they went for extermination.¹⁹

When the rebellion was finally subdued, fifty-five whites had been killed. Although Turner himself was not an active participant in the killing spree (he was personally responsible for only one death), he later admitted to “silent satisfaction” upon seeing the corpses “and immediately started in quest of other victims.”²⁰ The white community then embarked on its own wanton rampage as a crazed mob randomly mangled and murdered Blacks, decapitated them, and placed their heads on stakes “as a warning to all who should undertake a similar plot” as well as a reminder that “white Virginians were firmly and forever in charge.”²¹ The rebellion ended up costing the lives of several dozen Black people.²² Eventually tracked down, Turner was tried, hung, and his corpse carved up.

It was reckoned by everyone who met him, Black and white, that Turner was possessed of a singular mental aptitude. “For natural intelligence and quickness of apprehension,” observed the white attorney who personally

(New York: 1990), and Anthony E. Kaye with Gregory P. Downs, *Nat Turner, Black Prophet: A visionary history* (New York: 2024).

18. Once the rebellion was on a firm footing, Turner intended to spare women and children as well as non-resisting males, but he also anticipated that the insurgents would have to kill some eighty thousand whites.

19. Foner, *Turner*, p. 23.

20. Kaye, *Prophet*, p. 153. Turner also testified later that he wouldn’t kill “very poor people” because they “thought no better of themselves than they did of the negroes” (ibid.).

21. Oates, *Fires*, p. 100; Kaye, *Prophet*, p. 101.

22. Some were legally lynched.

recorded Turner's "confession," he was "surpassed by few men I have ever seen."²³ All the same, whites (including the attorney²⁴) traced the revolt back to Turner's inflamed religiosity. It was said of him that he was a "demented fanatic" who labored under a "fanatical delusion," while the revolt was "the work of fanaticism."²⁵ It is not in dispute that Turner was a religious zealot. He drew from the idiom and imagery of the Bible and was abstemious in his personal moral code. But, for those not blinded by interest, the obvious root cause of the sanguinary revolt he inspired was the realization that, his natural gifts notwithstanding, he was destined to forever be a slave. "Yes, rage burned in him—fed by the prodigious chasm between what he was and what he aspired to be in this, the only life he had."²⁶ If whites refused or were unable to see this, it was because they "had to believe that the insurrection sprang from fanaticism, which had bewildered and deranged Nat's mind"; they "could not blame the rebellion on their own slave system—they were too much a part of it to do that."²⁷

What did Turner hope to achieve by this savage outburst? It appeared that, beyond exacting "stern revenge, whose shuddering echoes should ring through the land so long,"²⁸ he sought to "call the attention of the civilized world to the condition of his race,"²⁹ and to trigger a national crisis so as to force a reckoning by whites with the horrors of slavery. "In one desperate blow, Nat Turner had smashed the prevailing stereotype of master-slave relations in the Old South, forcing whites to confront a grim and dreaded reality—that all was not sweetness and sunshine in their slave world."³⁰

Whereas the white population reacted in horror at Turner's deeds, his own people quietly embraced him, as "Old Nat" quickly became a folk hero and the revolt he led nostalgically recalled as "Old Nat's War." The ex-slave and leading abolitionist Frederick Douglass, although on principle committed to ending slavery not by violence but through "moral suasion," nonetheless compared Turner to the "Revolutionary fathers" and counted him as one

23. Kaye, *Prophet*, p. 231.

24. *Ibid.*, p. 240.

25. Oates, *Fires*, p. 119; Foner, *Turner*, pp. 26, 124.

26. Oates, *Fires*, p. 41.

27. *Ibid.*, p. 123.

28. Foner, *Turner*, p. 133.

29. *Ibid.*, p. 153.

30. Oates, *Fires*, p. 105.

of Black people's "glorious martyrs."³¹ (In later years, W.E.B. Du Bois would echo Douglass's paean.) Although revered white abolitionist William Lloyd Garrison admitted to being "horror-struck at the late tidings," he pointedly did *not* condemn Turner himself. Instead, he directed an accusatory finger at the white population for not heeding the abolitionists' premonition: "We have warned our countrymen of the danger of persisting in their unrighteous conduct." But wasn't it the abolitionists who instigated the rebellion? No, Garrison replied:

The slaves need no incentives at our hands. They will find them in their stripes—in their emaciated bodies—in their ceaseless toil—in their ignorant minds—in every field, in every valley, on every hill-top and mountain, wherever you and your fathers have fought for liberty—in your speeches, your conversations, your celebrations, your pamphlets, your newspapers—voices in the air, sounds from across the ocean, invitations to resistance above, below, around them! What more do they need. . . ?³²

The anti-slavery organ of the New York Workingmen's Party, although not mincing words on the "unjustifiable atrocity" that attended the revolt, nonetheless editorialized that it was born of the most noble of human sentiments and the stern conviction that, save by indiscriminate slaughter, this aspiration to freedom could not be realized:

Of what were the Southampton negroes guilty? Of putting to death men, women, and children. For what object? Plunder? No—there is no evidence that such was their object. On the contrary, almost all the accounts concur in stating that they expected to emancipate themselves, and they no doubt thought that their only hope of doing so was to put to death, indiscriminately, the whole race of those who held them in bondage. If such were their impressions, were they not justifiable in doing so? Undoubtedly they were, if freedom is the birthright of man, as the declaration of independence tells us.³³

31. Kaye, *Prophet*, pp. 254–55, 258.

32. William Lloyd Garrison, "The Insurrection," *The Liberator* (3 September 1831). See also Henry Mayer, *All on Fire: William Lloyd Garrison and the abolition of slavery* (New York: 1998), p. 121.

33. Foner, *Turner*, p. 76. Even after the Civil War, when the national government appeared ready, in order to appease the South, to abandon the newly emancipated slave, prominent abolitionist Benjamin Wade was moved to apostrophize that inhuman circumstances warranted

Even as it was brutally crushed and its immediate aftermath proved disastrous—new repressive legislation was enacted barring Black people from congregating together while pro-slavery sentiment solidified—Nat Turner’s rebellion is now honored as a link in the Freedom Struggle that climaxed in the Emancipation Proclamation. White anti-slaver John Brown, who, incidentally, was no less a religious fanatic, drew inspiration from Turner when he plotted the attack on Harper’s Ferry, while Brown himself, as Douglass famously memorialized him, “began the war that ended American slavery.”³⁴ For all the horrors that unfolded on that fateful day in 1831, Turner has entered the pantheon of not just African-American but non-hyphenated *American* history. It is testament to the fact that, however morally indefensible his methods, Turner was ultimately giving expression to his outraged dignity, his refusal to passively acquiesce in a living death, his readiness to make the last sacrifice so as to attain his inalienable right to be free. Distorted and disfigured they might have been, but his driving impulses traced back to an indomitable will and irrepressible humanity.

Before he stands condemned, mustn’t it be asked, except to live and die in thralldom, what alternative did Nat Turner have?

Every escape from Slavery necessarily and instinctively awakens the regard of all who love Freedom. The endeavor, though unsuccessful, reveals courage, manhood, character. . . . Rude and ignorant they may be; but in their very efforts for Freedom they claim kindred with all that is noble in the Past.

—Abolitionist Charles Sumner,
“Repeal of the Fugitive Slave Act”

inhuman measures: “The colored people of the South will be compelled to hew out their own way to liberty by the power of their own right arm . . . if by an insurrection they could contrive to slay one half of their oppressors, the other half would hold them in the highest respect and no doubt treat them with justice” (David Donald, *Charles Sumner and the Rights of Man* (New York: 1970), pp. 230–31). This writer is informed that Wade was given to bluster, but the general point still stands.

34. Frederick Douglass, “John Brown” (1881). Although famed abolitionist Charles Sumner was a stickler for the law, he delivered a nuanced verdict after John Brown’s abortive insurrection. Albeit convinced that Brown was “almost mad” and that “of course his act must be deplored,” he could not help admiring “the singular courage and character shewn by its author”; “For a practical statesman, believing slavery a wrong, the subject is not without its difficulties. Not, indeed, that I hesitate to judge the *act*; but how can I refuse my admiration to many things in the *man*” (David Donald, *Charles Sumner and the Coming of the Civil War* (New York: 1960), pp. 350–51; emphases in original).

III

What was Israel to do after 7 October—didn't it have a right to self-defense?³⁵ Consider this hypothetical. A woman is battered by her husband day in and day out for decades. She lets out shrieks of agony and despair, but the neighbors ignore her pleas. She contacts the police. After conducting a thorough investigation, they file a devastating report, but it's left in a desk drawer to collect dust. One day, as he approaches her, the battered woman decides to take matters into her own hands. She reaches for a knife and stabs him once, twice, thrice. He grabs his pistol and shoots her dead in "self-defense." The wife-batterer would more likely than not be acquitted of murder in a court of law. But did he have the *moral* right to kill her—or did he forfeit the right to self-defense after decades of criminally abusing her? Indeed, to assert that Israel did not have a right to self-defense is simply an affirmation of the tenet of international law, *ex injuria jus non oritur* (a right cannot arise from a wrong).

The unprecedented scale of Hamas atrocities on 7 October unsurprisingly evoked a ferocious official response. But the Israeli genocide was not strictly and narrowly a state policy. It was a *national* project, a drunken revelry of barbaric violence emanating from the bowels of Israeli society, spanning the political spectrum, and encompassing the gamut of military and civil institutions at every level from apex to base. The country was borne aloft in a collective high, tripping on the joys of genocide.³⁶ Even that venerable bastion of

35. For argument's sake, it is set aside that Israel has, overwhelmingly, not engaged in a war of self-defense but, on the contrary, has committed a genocide.

36. The most comprehensive dossiers to date of the Israeli genocide, inter alia documenting its public and popular character, are: Yaniv Cogan and Jamie Stern-Weiner, "Fighting Amalek in Gaza: What Israelis say and Western media ignore" (12 November 2023; <https://www.normanfinkelstein.com/fighting-amalek-in-gaza-what-israelis-say-and-western-media-ignore>), unpublished version regularly updated by Yaniv Cogan; *Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)* (29 December 2023; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20231228-app-01-00-en.pdf>); "Letter Dated 29 May 2024 from the Permanent Representative of South Africa to the United Nations Addressed to the President of the Security Council" (<https://documents.un.org/doc/undoc/gen/n24/151/97/pdf/n2415197.pdf>); "Letter Dated 27 February 2025 from the Permanent Representative of South Africa to the United Nations Addressed to the President of the Security Council" (https://www.un.org/unispal/wp-content/uploads/2025/03/n2505528_reduced.pdf); "Genocide as Colonial Erasure—Report of Francesca Albanese, the UN Special Rapporteur on the Situation of Human Rights in the Palestinian Territories occupied since 1967" (1 October 2024; <https://www.un.org/unispal/document/genocide-as-colonial-erasure-report-francesca-albanese-01oct24>); Lee Mordechai, *Bearing Witness to the Israeli-Gaza*

Israeli liberalism, *Haaretz* newspaper, “waited for five months until it called for a ceasefire, despite overwhelming evidence for the humanitarian costs of the war.”³⁷ It is as if 7 October had granted permission to, freed up, supplied a pretext for, Israel’s repressed, pent-up demons, lurking just beneath the veneer of civilization, to burst into the open unconstrained by moral trammels. The time would come, Shakespeare’s Richard II foretold, when “foul sin, gathering head,/ Shall break into corruption.” Israel’s unrepented, unresolved sins—its brutal founding and brutal occupation, compounded by the accreted hardening of the Israeli heart to the point of stone—bubbled up and poured forth in pus-like toxicity. Spurious as the alibi was, Germans could at least pretend that they “didn’t know” and didn’t sanction the Final Solution: it was in word and deed formally hidden from view; the totalitarian state suppressed information and dissent; far from relishing the Nazi bestiality, Germans had gone (or so it was said) into “inner exile.” But the sheer brazenness with which Israelis broadcast their support for the genocide in social media, on nightly news programs, and in popular culture, as well as in the depraved acts daily posted online with degenerate glee by members of Israel’s citizen-army, representing a cross section of Israeli society—in short, the visibility and vivacity of Israel’s genocide foreclosed the “ignorance” alibi. The Israeli hecatomb wasn’t, however, just vengeance born of bloodlust. The *Untermenschen* in Gaza had dared straighten their backbone and raise up their heads and, what’s worse, outwitted the Israeli *Übermenschen*. Even as every inch of that tiny parcel of land had been monitored by cutting-edge surveillance technology, and even as Israel could benefit from a surfeit of HUMINT as it had recruited a veritable army of collaborators in Gaza, still, Hamas was able to launch a devastating—and mortifying—surprise attack. The impudence of these vermin! It would prove

War (5 December 2024; <https://witnessing-the-gaza-war.com/wp-content/uploads/2024/12/bearing-witness-to-the-israel-gaza-war-v6.5.5-5.12.24.pdf>); Amnesty International, “*You Feel Like You Are Subhuman*”: Israel’s genocide against Palestinians in Gaza (December 2024; <https://www.amnesty.org/en/documents/mde15/8668/2024/en>); Omer Shatz, “Communication to the Prosecutor of the International Criminal Court: Incitement to genocide in Gaza” (6 December 2024; <https://www.statewatch.org/media/4664/icc-submission-israel-palestine-incitement-to-genocide-6-12-24.pdf>); B’Tselem, *Our Genocide* (July 2025; https://www.btselem.org/sites/default/files/publications/202507_our_genocide_eng.pdf). See also: Human Rights Watch, *Extermination and Acts of Genocide: Israel deliberately depriving Palestinians in Gaza of water* (19 December 2024; <https://www.hrw.org/report/2024/12/19/extermiation-and-acts-genocide/israel-deliberately-depriving-palestinians-gaza>); Médecins sans Frontières, “Gaza: Life in a death trap” (19 December 2024; <https://www.msf.org/life-death-trap-gaza-palestine>).

37. Mordechai, *Bearing Witness*, p. 74.

well-nigh impossible to sate this ravenous society, to quench its sadistic thirst. In late 2024, Gaza fell below the radar as American news cameras homed in on the presidential election. Ever attuned to the news cycle in the United States, Israeli prime minister Benjamin Netanyahu seized the opportunity to dish out more and more Gazan blood, committing a new large-scale massacre with each day's passing, so as to placate the unhinged Israeli psyche.

In addition, Hamas's unexpected competence and Israel's unexpected incompetence on that fateful day triggered a psycho-strategic crisis. Tel Aviv feared, not without reason, that Arabs would now mull over the prospect that maybe, just maybe, Israel wasn't invincible and there actually *was* a military option against it. Israel therefore had to restore its "deterrence capability"—i.e., the Arab world's fear of it—in a big way. "We can't allow Israel's response to be an empty response," the minister of national security proclaimed. In order to "create deterrence in the Middle East, the landlord must rule."³⁸ Once upon a time—1948, 1967—Israel's fighting prowess on the battlefield humiliated and filled with dread its neighbors. But as Israel became a First World country luxuriating in the grossest amenities of *la dolce vita*, a hedonistic narcissism set in. Who wants to decompose in a ditch when you can be dancing at a disco? The IDF ceased to be a combat force. In order to restore its "deterrence capability," Israel would henceforth wreak massive death and destruction as it targeted the defenseless civilian population by remote control.³⁹ The message transmitted to the Arab world since 7 October 2023 has been: *In case you harbor the silly notion of having a military option, look at Gaza. . . or what's left of it.*

Finally, as the cliché has it, every crisis is also an opportunity. After 11 September 2001, members of the George W. Bush administration shed a few salty tears but then, rubbing their palms in delightful anticipation, contemplated the strategic prizes that could be wrung from the terrorist attack. Ditto Netanyahu et al. after 7 October. The first order of business was straightforward enough: the "Gaza Question" would have to be solved once and for all. Another war with Gaza was "inevitable," senior Israeli officials already portended in 2016. "We cannot conduct a constant war of attrition. Therefore, the next conflict has to be the last conflict."⁴⁰ No more "mowing the lawn." It was past time for the final solution. "This is not 'another round,'" Netanyahu

38. "Letter Dated 29 May 2024," p. 32.

39. Finkelstein, *Gaza*, pp. 21–22.

40. *Ibid.*, p. 360.

declared in January 2024. “Neither is it an exchange of blows, nor is it an operation—it is total victory. Nothing less. . . . This means . . . ensuring that Gaza never again constitutes a threat to Israel.”⁴¹ Every blade of grass in Gaza had to be extirpated—notwithstanding that half of those 2.3 million blades happened to be children.

The ensuing Israeli genocide manifested in three conceptually discrete forms, even as, in practice, they spilled over into each other. *First*, outright extermination. Prime Minister Netanyahu invoked the Hebrew Bible: “Remember what Amalek did to you.” The Israeli human rights organization B’Tselem later observed that “[w]hen the fight against Hamas is compared to the war against Amalek, the conclusion is clear: the order is to wipe out Gaza.”⁴² “It is an entire nation out there that is responsible,” President Isaac Herzog affirmed. “This rhetoric about civilians not aware, not involved, it’s absolutely not true.” If doubt remained about what Israel had in store for that patch of land, Defense Minister Yoav Gallant declared that “[t]here will be no electricity, no food, no water, no fuel, everything is closed. We are fighting human animals and we are acting accordingly.” Although “enlightened” opinion in the West imposed certain constraints on Israel—genocide in broad daylight is a bad look—its overall achievements invited awe. By every major metric—absolute number and proportion of children killed, as well as absolute number of women killed; proportion of civilians versus combatants killed; rate and intensity of bombs dropped and destruction wrought; number of homes and hospitals destroyed; number of medics, UN workers, and journalists killed. . . —Israel placed itself in a class all its own by a wide margin in the twenty-first century and, by some metrics, stretching back as far as World War II.⁴³ *Second*, ethnic cleansing. “We must promote the solution to encourage emigration of the residents of Gaza,” the minister for national security counseled, while the minister of finance anticipated that “there will be migration . . . and we will live in the Gaza Strip. . . . [Israel] won’t allow a

41. “Letter Dated 29 May 2024,” pp. 20–22.

42. B’Tselem, *Manufacturing Famine: Israel is committing the war crime of starvation in the Gaza Strip* (April 2024; https://www.btselem.org/publications/202404_manufacturing_famine).

43. “By almost every metric, the harm to civilians from the first month of the Israeli campaign in Gaza is incomparable with any 21st century air campaign,” the research organization Airwars concluded. “It is by far the most intense, destructive, and fatal conflict for civilians that Airwars has ever documented.” *Patterns of Harm Analysis: Gaza, October 2023* (December 2024; <https://gaza-patterns-harm.airwars.org>).

situation of two million people living there.”⁴⁴ Israel initially hoped to drive Gaza’s population into the Sinai but Washington’s Arab allies nixed this masterplan. It then proceeded to empty out Gaza’s northern half.⁴⁵ Before 7 October, Gaza was among the most densely populated places on God’s earth. Its whole population, minus those already exterminated or driven out, was now squeezed and suffocated in half of Gaza. *Third*, making Gaza unlivable. “Israel should not allow any economic assistance,” an influential government advisor repeatedly recommended. “The people should be told that they have two choices; to stay and to starve, or to leave”; “The State of Israel has no choice but to make Gaza a place that is temporarily, or permanently, impossible to live in”; “Gaza will become a place where no human being can exist.”⁴⁶ Human rights groups as well as UN and European officials concurred that “Israel was using starvation as a weapon of war.” It is estimated that Israel left behind over fifty million tons of rubble intermixed with unexploded ordinance and toxic substances and that, if a hundred trucks worked full time, it would take over fifteen years to clear it out.⁴⁷ But even then Gaza couldn’t be rebuilt. Using the pretext that Hamas would confiscate construction materials to rebuild its tunnels, Israel will almost certainly block entry of any cement into Gaza, and none of the “Democracies” will contest this prerogative.⁴⁸ Israel has turned Gaza into a howling wilderness—“unimaginable” and “unprecedented,” according to the UN.⁴⁹ The UN Environment Program “warns that the stripping of trees,

44. “Letter Dated 29 May 2024,” pp. 29, 34.

45. B’Tselem, “The World Must Stop the Ethnic Cleansing of Northern Gaza” (22 October 2024; https://www.btselem.org/press_releases/20241022_the_world_must_stop_the_ethnic_cleansing_of_northern_gaza).

46. He also exhorted that Israel “must not shy away from . . . severe epidemics,” as they “will bring the end of the war closer.” Giora Eiland, “Opinion,” *Fathom* (October 2023; <https://fathomjournal.org/opinion-a-new-turning-point-in-the-history-of-the-state-of-israel-most-people-dont-understand-that>); “Letter Dated 29 May 2024,” pp. 91–92. Eiland played a key role in articulating Israel’s genocidal vision as well as its practical modalities. See Shatz, “Communication,” pp. 68–83.

47. Joseph Krauss, “Gaza Is in Ruins, and It’s Unclear How It Will Be Rebuilt,” *Associated Press* (17 January 2025; <https://apnews.com/article/israel-palestinians-hamas-war-ceasefire-damage-reconstruction-d120f8a0dc8b728cod8332046a524a92>).

48. Amnesty, “*You Feel Like*,” p. 165.

49. UN, “‘The Destruction Is Unimaginable’ in Gaza: Press Briefing by Ajith Sunghay, the Head of OHCHR Occupied Palestinian Territory, on the Situation in Gaza” (19 June 2024; <https://www.un.org/unispal/document/ohchr-opt-press-briefing-on-gaza-18jun24>). UNCTAD, *Preliminary Assessment of the Economic Impact of the Destruction in Gaza and*

shrubs, and crops has so badly damaged the soils of the once-fertile, biodiverse, and well-watered territory that it faces long-term desertification.”⁵⁰ In the meantime, Israel put on display its technical wizardry in Lebanon as it booby-trapped Hezbollah walkie-talkies and pagers. Even a former CIA director denoted this attack an act of pure “terrorism.”⁵¹ Mission accomplished: Israel’s deterrence capability, i.e., the Arab world’s dread of it, has been restored. On an irrelevant side note—really, who cares?—the remnant population in Gaza, that human dust already scattered to the four winds by Israel’s ethnic cleansing in 1948, will have to, by hook or by crook, contrive ways to resettle elsewhere yet again.

Gaza is—and Gazans will quite possibly soon be—no more.

But we have killed and routed them now—we can do it again and again—we are invincible! A dastardly triumph, well becoming a nation of oppressors. Detestable complacency, that can think, without emotion, of the extermination of the blacks! We have the power to kill all—let us, therefore, continue to apply the whip and forge new fetters!

In his fury against the revolters, who will remember their wrongs? What will it avail them, though the catalogue of their sufferings, dripping with warm blood fresh from their lacerated bodies, be held up to extenuate their conduct? It is enough that the victims were black—that circumstance makes them less precious than the dogs which have been slain in our streets! They were black—brutes, pretending to be men—legions of curses upon their memories! They were black—God made them to serve us!

—Abolitionist William Lloyd Garrison,
“The Insurrection”

Prospects for Economic Recovery (January 2024; https://unctad.org/system/files/official-document/osginf2024d1_en.pdf).

50. Fred Pearce, “As War Halts, the Environmental Devastation in Gaza Runs Deep,” *Yale Environment 360* (6 February 2025; <https://e360.yale.edu/features/gaza-war-environment>).

51. Edith Olmsted, “Even Leon Panetta Says Israel’s Pager Attack Is ‘Terrorism,’” *New Republic* (23 September 2024; <https://newrepublic.com/post/186244/leon-panetta-israel-lebanon-pagers-terrorism>).

IV

The genocidal Israeli juggernaut proved unstoppable. But it wasn't for a want of trying. It behooves the chronicler to memorialize the noble few who, albeit in futility, stood on principle and put themselves at considerable risk to stop the killing machine. When Hezbollah opened a second front mainly targeting military installations in the north of Israel, and the Houthis blocked international shipping lanes in solidarity with the forlorn people of Gaza, the "enlightened" West reacted in shock and indignation: How dare they intrude, What business is it of theirs? But wasn't it this enlightened opinion that not so long ago promulgated the doctrine of "R2P"—"Responsibility to Protect"? In essence, R2P denoted that, when established institutions fail to stop genocide and cognate crimes, then other entities must step in to fill the void.⁵² In the 1930s, when the enlightened West abandoned the Spanish Republic, international brigades of volunteers went there to fight the nascent forces of fascist barbarism. They covered themselves with glory. (Fully three thousand Americans joined the Abraham Lincoln Brigade, more than a third of them Jewish.) This time around, Fate appointed the Party of God and the Houthis. The Houthis possessed intimate knowledge of exalted Western values, on the one hand, and Gaza's martyrdom, on the other. The US had enabled Saudi Arabia's blockade of Yemen that left nearly one hundred thousand children dead and gone. Rousseau famously observed that the most—indeed, only—truly civilizing impulse in human beings is not reason but the natural, inborn capacity for *pity*, and that the more society "progresses," the more refined its rational faculty, the more its natural capacity for pity is stifled. Who, in a decent world, would not choose one dagger-in-hand Houthi risking life and limb in defense of defenseless Gaza over ten thousand Harvard-educated, elegantly coiffed Antony Blinkens adroitly lubricating the gears of Israel's murder machine?

The Biden administration stymied the international community at every turn from taking action. Still, the UN acquitted itself, at any rate, verbally with honor as senior officials—Secretary-General António Guterres, UN Relief and Works Agency (UNRWA) head Philippe Lazzarini, UN Under-Secretary-General for Humanitarian Affairs Martin Griffiths—on down didn't mince words when they sounded the alarm at Israel's unfolding geno-

52. Alexander Smith, "The Responsibility to Protect Gaza" (3 December 2024; https://papers.ssrn.com/sol3/papers.cfm?abstract_id=5064671).

cide. The most sublime chapter, however, was played out before the International Court of Justice. A South African delegation filed in December 2023 an eighty-four-page single-spaced *Application*, supported by countless references to unimpeachable sources, charging that Israel was in breach of the Genocide Convention. The delegation's composition itself augured human possibility in a brighter future. It was led by eighty-eight-year-old barrister John Dugard, a majestic crimson cape flowing from his shoulders. Once he served as counsel for the Mandela family and Bishop Tutu. Now he has invested the whole of his being in the Palestine struggle. It wasn't, after all, a big leap. Although he approached the lectern in an unsteady gait, frailty of age ceded to buoyancy of spirit, love of Truth and Justice triumphed over the ravages of time, as, his mental faculty nimble as ever, Dugard didn't falter for a millisecond in his authoritative recitation of the law. (It was palpable from their darting glances that no love was lost between the venerable Mr. Dugard and Israel's chief counsel, the execrable Malcolm Shaw.) He was followed by South Africans and non-South Africans, older and younger, men and women, of every hue and religion, each in his own distinct register eloquent, each in her own distinct register passionate. It was a rare moment in this never-ending—not tragedy but—*crime* that one could marvel with Shakespeare's Hamlet, "What a piece of work is a man!" South Africa's was not an idle, ephemeral spectacle. Even after the Court found that Israel was plausibly committing genocide, the delegation returned and returned and returned again, armed each time with another thick folder of new facts and figures, as it pled for measures by the Court to rein in Israel. But ultimately it proved fruitless. The Court could indicate ten or ten thousand "provisional measures" for all the good they would do, so long as the US administration kept up the flow of arms and guaranteed Israel a free—blood-soaked—hand with eternal impunity.

In the spring of 2024, a new glimmer of hope shone on the horizon. College students across the US and then internationally set up encampments on campus grounds in solidarity with Gaza. This generation has popularized the salacious (but also winsomely pragmatic) phrase "friends with benefits." Of these encampments, it might be said that they exemplified "solidarity without benefits." However much the 1960s antiwar movement sprang from youthful idealism, still, the protesters were, if only in part, animated as well by fear of the draft, i.e., dying in Vietnam. But Gen Z, having gone into huge debt in order to pay stratospheric college tuitions, stood nothing to gain and everything to lose from participating in the round-the-clock protests: private

harassment and public shaming, exclusion from campus grounds and commencement, suspension and expulsion, fines, jail, and deportation. The consequences would haunt many of them for life as boutique law firms went on a digital manhunt to track down and then place them on an employment blacklist. Still, the protesters wouldn't be deterred and the media kept reporting on them. Once it was the Spanish Republic, then Vietnam, then South Africa. Why did tiny, defenseless, impoverished Gaza seize the imagination of this generation? But that was the point. It incarnated absolute powerlessness in the face of absolute Power; pristine innocence devoured in the maw of a ruthless System. Facing a futureless future; without hope of finding steady work or nurturing a family or even moving out on their own; terminal cataclysm—climate change, nuclear war—lurking around the corner: Wasn't Gaza a metaphor, the *reductio ad helldom*, of this generation's own desperate precarity? Upset that campus demonstrators—more than a few of them fiercely Jewish—were giving Israel's genocide bad PR, and outraged that Israel's right—its *right!*—to commit genocide should be subject to debate, the American Jewish supremacist billionaire class swung into action. Holding higher education hostage, reaching for the blackmail weapon, Bill Ackman, Robert Kraft, Barry Sternlicht et al. withheld alumni contributions—fifty million dollars here, three hundred million dollars there—until and unless their respective alma maters crushed the protests. It was a chilling sight to behold. In the course of the most brazen, outrageous assault on academic freedom in our nation's history, tenured faculty were sacked, words banned from public discourse, course curricula vetted, and anti-genocide Jewish groups suspended, while not one, not two, but not less than three insufficiently repressive Ivy League presidents were ousted. The coups were executed not by a quasi-accountable State but, on the contrary, by out-of-control *private entities* determined to muzzle our revered national institutions in the service of Israel's genocidal agenda. The fact that all three presidents were women and two of the three were “women of color” didn't save them. The irony is that “woke” culture helped pave the road to this catastrophe. It posited that speech that made minority groups feel “unwelcome,” “uncomfortable,” and “unsafe” should be suppressed. It was predictable—and predicted⁵³—that if Palestinian students played this card to silence Israel's supporters, it was only a matter of time before the other side as well would play it. But, alas, it wasn't a level playing field. When pro-Israel

53. Norman G. Finkelstein, *I'll Burn That Bridge When I Get to It: Heretical thoughts on identity politics, cancel culture, and academic freedom*, second edition (New York: 2025), p. 37.

Jewish students feigned fear at the slogan, “From the river to the sea, Palestine will be free,” the billionaires calculatingly seized on the pretext of “protecting” them to carry out a veritable purge. Broke woke radicals didn’t stand a chance facing off against supremacist moneybags. Bastions of corporate wokeness such as *The New York Times* suddenly got tongue-tied as the Intersectionally Oppressed were thrown to the wolves. *Israel über alles!* One by one, university administrations caved in, the police were brought in, and the hopeful flickerings emanating from the encampments were extinguished. The reign of terror yielded to an eerie peace, for now.

It was the worst of times. But, if only for a flashing moment, it was also the best of times.

On a subject which for years has agitated the public mind; which yet palpitates in every heart, and burns on every tongue; which, in its immeasurable importance, dwarfs all other subjects; which, by its constant and gigantic presence, throws a shadow across these Halls. . . , they have imposed the rule of silence. According to them, sir, we may speak of everything except that alone, which is most present in all our minds. . . . To sustain Slavery, it is now proposed to trample on free speech. In any country this would be grievous; but here, where the Constitution expressly provides against abridging freedom of speech, it is a special outrage. . . . But, sir, this effort is impotent as tyrannical. The convictions of the heart cannot be repressed. The utterances of conscience must be heard. They break forth with irrepressible might. As well attempt to the check the tides of Ocean, the currents of the Mississippi, or the rushing waters of Niagara. The discussion of Slavery will proceed, wherever two or three are gathered together—by the fireside, on the highway, at the public meeting, in the church. The movement against Slavery is from the Everlasting Arm. Even now it is gathering its forces, soon to be confessed everywhere. It may not yet be felt in the high places of office and power; but all who can put their ears humbly to the ground, will hear and comprehend its incessant and advancing tread.

—Abolitionist Charles Sumner, on congressional suppression of debate on slavery, “Repeal of the Fugitive Slave Act”

The last scene of Russian filmmaker Sergei Eisenstein's *Strike* pans a field of dead workers slaughtered by the Czar's army. The subtitle exhorts: "Proletarians! Remember!" This book is an act of remembrance. Not of the horrors that have unfolded in Gaza. Those gruesome details have already been amply documented. The "Memorial" submitted by South Africa to the International Court of Justice as the genocide case proceeds there reportedly numbers 750 pages supplemented by 4,000 pages of documentation. Instead, this volume documents the complicity—born of cupidity and corruption, cowardice and careerism—of officials in high places. Its purpose is to send a firm warning to those occupying positions of public trust: *We are watching you*. After Gaza, the watchwords must be accountability, a reckoning, the settling of accounts. Truth cannot be mangled and Justice traduced with impunity. It cannot be quietly abided when a public calling is besmirched and mandate betrayed. It will not be forgotten, it will not be business as usual, should one choose to do the Devil's work. It is this writer's hope that the material assembled in the ensuing pages will contribute to that end.

*[W]e cannot escape history. We . . . will be remembered in spite of ourselves.
No personal significance, or insignificance, can spare one or another of us.
The fiery trial through which we pass, will light us down, in honor or dishonor,
to the latest generation.*

—Abraham Lincoln, during the Civil War,
"Annual Message to Congress"

This book scrutinizes a quartet of critical interventions by international institutions during the Gaza genocide: a report carrying the UN secretary-general's imprimatur that alleged without credible evidence that incidents of rape occurred on 7 October; a report commissioned by the UN Human Rights Council that watered down Israeli crimes; the dissenting opinions of the current vice-president of the International Court of Justice that disingenuously exonerated Israel of criminal conduct; the patently false claim by the former president of the International Court of Justice that the Court didn't find that Israel was plausibly committing genocide. An appendix parses the bad-faith interventions before the current genocide by the former chief prosecutor of the International Criminal Court.



FIGURE 1. *From top to bottom:* Pramila Patten and Sheryl Sandberg. © UK Foreign and Commonwealth Office; World Economic Forum and [swiss-image.ch](https://www.swiss-image.ch/) / Jolanda Flubacher.

Rape Fantasies

A new cry, as false as it is foul, has proclaimed to the world that virtue and innocence are violated by Afro-Americans who must be killed like wild beasts to protect womanhood

—Anti-lynching crusader Ida B. Wells

I

The Patten Report

The morning after that fateful day, Israel began to allege that Hamas committed mass rape as a “weapon of war” on 7 October 2023.¹ The charge was relentlessly repeated, spread like wildfire, and proved to be an unstoppable juggernaut. It rapidly metamorphosed into a political litmus test: to deny that Hamas committed mass rape was akin to Holocaust denial. But was it true? A report commissioned by the UN secretary-general and released in March 2024, *Mission Report: Official visit of the office of the SRSG-SVC to Israel and the Occupied West Bank*, answered in the affirmative.² Israel hailed the report as a vindication of its hasbara campaign: “For the first time, a UN official has specifically acknowledged the sexual crimes committed by Hamas and other

1. “Israel Submits Report to UN on Hamas’s Mass Weaponization of Rape,” *Times of Israel* (21 February 2024; <https://www.timesofisrael.com/israeli-report-submitted-to-un-on-hamass-mass-scale-weaponization-of-rape>).

2. Hereafter: *Mission Report* (4 March 2024; <https://www.un.org/sexualviolenceinconflict/wp-content/uploads/2024/03/report/mission-report-official-visit-of-the-office-of-the-srsg-svc-to-israel-and-the-occupied-west-bank-29-january-14-february-2024/20240304-Israel-oWB-CRSV-report.pdf>).

DOCUMENT KEY		
1.	4 March 2024	<i>Mission Report: Official visit of the office of the SRSG-SVC to Israel and the Occupied West Bank</i> , UN Special Representative of the Secretary-General on Sexual Violence in Conflict, Pramila Patten (Patten Mission)
2.	10 June 2024	<i>Detailed Findings on Attacks Carried Out on and After 7 October 2023 in Israel</i> , UN Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel, chaired by Navi Pillay (Pillay Commission)
3.	10 June 2024	<i>Detailed Findings on the Military Operations and Attacks Carried Out in the Occupied Palestinian Territory from 7 October to 31 December 2023</i> , UN Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel, chaired by Navi Pillay (Pillay Commission)
4.	11 September 2024	<i>Report of the Independent International Commission of Inquiry on the Occupied Palestinian Territory, Including East Jerusalem, and Israel</i> , UN Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel, chaired by Navi Pillay (Pillay Commission)
5.	13 March 2025	<i>“More Than a Human Can Bear”: Israel’s systematic use of sexual, reproductive and other forms of gender-based violence since 7 October 2023</i> , UN Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel, chaired by Navi Pillay (Pillay Commission)
6.	8 July 2025	<i>A Quest for Justice: October 7 and beyond</i> , The Dinah Project
7.	15 July 2025	<i>Conflict-Related Sexual Violence</i> , UN Secretary-General António Guterres
8.	11 December 2025	<i>Targeting Civilians: Murder, hostage-taking and other violations by Palestinian armed groups in Israel and Gaza</i> , Amnesty International

terrorist organizations on 7 October.”³ The primary author of the report was Pramila Patten, “UN Special Representative of the Secretary-General on Sexual Violence in Conflict.” Considering its potentially incendiary contents as well as the cosmic significance later attached to its findings, the report was a noticeably skimpy document running to a mere twenty-three pages. But that was just the beginning of the enigma it presented.

I A *The Mission*

In its initial press release, the mission stated that its purpose was to “gather, analyze and verify relevant information regarding allegations” of sexual violence. But it also emphatically stated that, although it included a small team of technical experts, the “mission is neither intended nor mandated to be investigative in nature.”⁴ If, on the one hand, the mission was mandated to “gather, analyze and verify” evidence of sexual violence, and referred in the report to its “findings” and to having “verified” sexual violence; yet, on the other hand, the mission emphatically declared that it wasn’t “investigative in nature”: then what exactly was it? The press release further stated that the mission “aims to give voice” to “survivors” of sexual violence. But if it wasn’t an investigative body, it’s cause for wonder how it would even know whose “voice” to give voice to—or, for that matter, whether it needed give “voice” to *anyone*. Wasn’t this putting the cart before the horse?

The report rendered discrete judgments that even a bona fide investigative body normally wouldn’t be competent to make. It teased out legal delineations—“reasonable grounds to believe” versus “clear and convincing

3. “MFA Response to Report of UN Special Representative on Sexual Violence in Conflict,” Ministry of Foreign Affairs, Government of Israel (4 March 2024; <https://www.gov.il/en/pages/mfa-response-to-report-of-un-special-representative-on-sexual-violence-in-conflict-4-march-2024>).

4. “UN Special Representative of the Secretary-General on Sexual Violence in Conflict, Ms. Pramila Patten, to Visit Israel and the Occupied West Bank,” Office of the Special Representative of the Secretary-General on Sexual Violence in Conflict, United Nations (24 January 2024; <https://www.un.org/sexualviolenceinconflict/press-release/un-special-representative-of-the-secretary-general-on-sexual-violence-in-conflict-ms-pramila-patten-to-visit-israel-and-the-occupied-west-bank>).

5. *Mission Report*, para. 13.

information” (also: “a finding of fact”)—rarely found in reports issued by the UN (or human rights groups). The standard practice is to identify possible (“reasonable grounds to believe”) breaches of international humanitarian and human rights law and then call for a formal investigation. But the Patten mission, although confessedly something less than an investigative body, made judgments that went well beyond those of a typical investigative body to the point of certainty (“a finding of fact”) befitting the verdict in a court of law. Even odder, the Patten mission rendered these fine determinations even as it acknowledged severe constraints imposed by time and the paucity of evidence.⁶

If it wasn’t a bona fide investigative body; if sufficient evidence was hard to come by; if it was pressed for time to complete its mission—if all this was true, then it’s unclear why the Patten mission reached *any* conclusions, be they tentative or certain. Why this rush to judgment? And if this non-investigative body also wasn’t in a position to “give voice” to the victims of sexual violence before said victimhood was at least tentatively established by an official investigative body, it’s hard to make out what exactly was the point of this mission. It’s not as if Israel lacked for a fair hearing in the court of public opinion: it had already made on its own, and via overwhelmingly sympathetic media abroad, its very best evidentiary case a thousand times over.

It couldn’t but be wondered why Israel extended the “invitation” to Patten in the first place and why her mission benefited from “the full cooperation of the Government of Israel.”⁷ This was unprecedented, a first. Israel has consistently and categorically refused to cooperate with formal UN investigations. In the instant case, a UN Commission of Inquiry headed by the former UN high commissioner for human rights repeatedly requested Israel’s cooperation but was met with a resounding silence. The Commission concluded that “Israel is obstructing its investigations into events on and since 7 October 2023.”⁸ If the evidence assembled by Israel was so robust, what did it have to fear from an official UN investigation carried out by competent and experienced personnel? The stock reply is: the UN is biased against Israel. But the Patten mission was *itself* mandated by the UN. If Israel invited Patten’s

6. Ibid., paras. 10, 13, 19, 31, 46, 53, 54, 56, 60, 61, 76.

7. Ibid., para. 2.

8. Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel, *Detailed Findings on Attacks Carried Out on and After 7 October 2023 in Israel*, UN Human Rights Council (10 June 2024, A/HRC/56/CRP.3; <https://www.ohchr.org/sites/default/files/documents/hrbodies/hrcouncil/sessions-regular/session56/a-hrc-56-crp-3.pdf>), para. 2. See Section II of this chapter.

mission, but firmly barred entry to the Commission of Inquiry, surely there must have been a reason. Alas, Patten never explored this tantalizing question.

I B *The Evidence*

The Patten mission visited Israel for a little over two weeks. It met with various national ministries, intelligence agencies, and senior government officials; visited the sites of the attacks on 7 October “with the support of the Israeli authorities”;⁹ viewed photographic and video evidence overwhelmingly curated by the Israeli government or available in open sources; and interviewed survivors of 7 October, released hostages, and first-responders. In other words, on one side it was an Israeli full-court press, and on the opposite side, it was the sort of tour “Friends of the Soviet Union” used to go on in Stalin’s day and “Friends of the People’s Republic of China” in Mao’s day. If any dissent, even a peep, from the official “narrative” was uttered by the mission’s Israeli interlocutors, if the mission stumbled on some irreconcilable finding that incensed its Israeli interlocutors, if an untoward incident or contretemps took place—if anything went off-script, the report made no mention of it. Put otherwise, if the mission didn’t question let alone undermine the current Israeli “narrative,” then it’s small wonder that they got on swimmingly.

The report stated that Israeli “national authorities faced numerous challenges in the collection of evidence and pursuit of their investigations.” Consequently, Israel is said to have possessed and could only make available “very limited forensic” evidence, while a “high number of bodies with destructive burn damage . . . made the identification of potential crimes of sexual violence impossible.” Further, the mission met with only “a small number of survivors and/or witnesses . . . who provided information on instances of sexual violence.”¹⁰ The “very limited” to “small” to “impossible” evidence did not, however, deter the non-investigative mission from drawing fine legal discriminations, not to mention a definitive “finding of fact.”

The report went on to state that “[w]hile the mission team was able to meet with some released hostages as well as with some survivors and witnesses of the attacks, *it did not meet with any survivor/victim of sexual violence from 7*

9. *Mission Report*, para. 32.

10. *Ibid.*, paras. 7, 45, 46, 49.

October despite concerted efforts encouraging them to come forward” (emphasis added).¹¹ Doesn’t it give pause that, more than three months after the attack, none of the alleged victims of allegedly rampant sexual violence on 7 October stepped forward to testify before the mission? Not one. What’s yet more puzzling, although Gaza is much more puritanical and protective of a woman’s “virtue,” many Gazan women did provide a UN Commission of Inquiry explicit personal testimony as to sexual violence inflicted on them after 7 October.¹² The Patten report endeavored to paper over this glaring lacuna by gesturing to “the lack of trust by survivors” in the United Nations.¹³ But it was the Israeli government itself that orchestrated this UN mission’s visit. It’s hard to fathom that in a country celebrated for its tribal closing of ranks in the face of external danger, and—not incidentally—in a culture known for its libertine sexual frankness, not a single victim of rape or indeed sexual violence of any type on 7 October was willing, even after being entreated, to testify before a government-blessed mission at such an existential moment in the nation’s history.

I C *The Findings*

The Patten mission that was *not* “investigative in nature” nonetheless concluded that “there are reasonable grounds to believe” that sexual violence, “including rape and gang rape,” occurred.¹⁴ It based its findings on these pieces of evidence:

- “[F]ully naked or partially naked bodies from the waist down were recovered—mostly women—with hands tied and shot multiple times, often in the head. Although circumstantial, such a pattern of undressing and restraining of victims may be indicative of some forms of sexual violence.”¹⁵ It may be indicative; it also may not be. The mission itself concedes—albeit buried at the *tail end of the report*—that “in the medicolegal assessment of available photos and videos, no tangible indications of rape could be

11. Ibid., para. 8.

12. See Section II of this chapter.

13. *Mission Report*, para. 9.

14. Ibid., para. 12.

15. Ibid.

identified,” *and* “no digital evidence specifically depicting acts of sexual violence was found in open sources,” *and* “no discernible pattern of genital mutilation could be established.”¹⁶ It takes time for the magnitude of this admission to sink in. Consider further this stunning detail:

The mission team . . . reviewed over 5,000 photos, around 50 hours and several audio files of footage of the attacks, provided partly by various state agencies and through an independent online review of various open sources, to identify potential instances and indications of conflict-related sexual violence. The content encompassed the actual attacks and their immediate aftermath, captured through militants’ bodycams and dashcams, individual cellphones, CCTV, and traffic surveillance cameras.¹⁷

Fully five thousand photos and fifty hours of footage, from every conceivable angle and by every conceivable electronic device. Yet, the mission was unable to isolate a single direct image of sexual violence, even as no less than gang rapes purportedly occurred in open spaces. The Nova music festival was alleged to have been a bacchanalia of barbaric intercourse.¹⁸ It was as if the Hell’s Angels at Altamont or drunken, depraved frat boys in *Friday the 13th*. Rapes to the left of Israeli “eyewitnesses,” rapes to the right of Israeli “eyewitnesses”! An Israeli official stated that “dozens of rapes” had been perpetrated.¹⁹ Rapes, rapes, everywhere, but. . . *not an image to view*. For each hour of the 7 October attack, two hours of video footage recording it have been recovered. CCTV cameras even managed to track the fate on that day of some Nepalese and Thais residing in the border communities, as well as the participation of a handful of armed militants from marginal Gazan factions in the attack.²⁰ But Israel couldn’t produce a single visual snippet of the “mass rape” that Hamas had “weaponized as a tactic of war.”

16. Ibid., paras. 74, 76, 77.

17. Ibid., para. 34.

18. Human Rights Watch, “*I Can’t Erase All the Blood from My Mind*”: Palestinian armed groups’ October 7 assault on Israel (17 July 2024; <https://www.hrw.org/report/2024/07/17/i-cant-erase-all-blood-my-mind/palestinian-armed-groups-october-7-assault-israel>), pp. 67–71.

19. Jeffrey Gettleman, “What We Know About Sexual Violence During the Oct. 7 Attacks on Israel,” *New York Times* (4 December 2023; <https://www.nytimes.com/2023/12/04/world/middleeast/oct-7-attacks-israel-hamas-sexual-violence.html>).

20. Human Rights Watch, “*I Can’t Erase*,” pp. 131, 204–5.

At least fifteen and perhaps as many as thirty-eight Israelis stepped forward as “eyewitnesses” to the rapes at the Nova festival. It was said that they lay hidden as the rape scenes unfolded.²¹ Yet, even as Israelis videotaped atrocities committed elsewhere on 7 October, and even as a wartime situation doesn’t deter—as the videos coming out of Gaza attest²²—Israelis from reaching for the iPhone, and even as it’s a mainstay of current youth culture reflexively to record every public transgression, however shocking, none of the as many as thirty-eight Nova festival “eyewitnesses” thought to digitally document the rapes. On the other side, even as Palestinian armed groups proudly posted videos of their cruel deeds,²³ not even one errant militant posted a rape image, while no digital evidence of rape was found on the body cams of any of the militants who were captured or killed. Not one video clip, not one snapshot, by anyone, anywhere. How strange. If the Patten report was properly packaged and publicized, the title would have read: “7 October: No Material Evidence of Rape.”

- “Based on the examination of available information, including credible statements by eyewitnesses, there are reasonable grounds to believe that multiple incidents of rape, including gang rape, occurred in and around the Nova [music] festival site. . . . Credible information was obtained regarding multiple incidents whereby victims were subjected to rape and then killed.”²⁴ (The report also made fleeting mention without passing judgment on alleged acts of necrophilia—mercifully, it fell silent on bestiality.) The report did not specify how many of these credible eyewitnesses it interviewed. And crucially, it did not quantify even roughly how many instances of sexual violence were alleged to have occurred: “multiple” can denote “more than once” or “manifold” (*Webster’s Collegiate Dictionary*, Fifth Edition). Surely it made a difference whether the Patten mission was attesting to two, twenty, two hundred, or two thousand instances

21. Liza Rozovsky, “15 Witnesses, Three Confessions, a Pattern of Naked Dead Bodies,” *Haaretz* (18 April 2024; <https://www.haaretz.com/israel-news/2024-04-18/ty-article-magazine/witnesses-confessions-naked-dead-bodies-all-the-evidence-of-hamas-rape-on-oct-7/0000018e-f114-d92e-abfe-f77f7e3f0000>).

22. Lee Mordechai, *Bearing Witness to the Israeli-Gaza War* (5 December 2024; <https://witnessing-the-gaza-war.com/wp-content/uploads/2024/12/Bearing-witness-to-the-Israel-Gaza-War-v6.5.5-12.24.pdf>), pp. 41–46.

23. Human Rights Watch, “*I Can’t Erase*,” pp. 145, 180, 231.

24. *Mission Report*, paras. 13, 58.

of “rape and/or gang rape.” Why then the sloppy, indeed, professionally irresponsible—or was it purposeful—vagueness?

- “There are reasonable grounds to believe that sexual violence occurred on and around Road 232. Credible information based on corroborating witness accounts describes an incident involving the rape of two women.”²⁵
- “There are reasonable grounds to believe that sexual violence occurred in kibbutz Re’im, including rape. This included the rape of a woman outside of a bomb shelter at the entrance of kibbutz Re’im, which was corroborated by witness testimonies and digital material.”²⁶

In sum, the non-investigative investigative Patten mission, basing itself on an unspecified number of “credible” witnesses, found “reasonable grounds” to conclude or “verified” that “multiple”—which, for all one knows, might mean *two*—instances of rape occurred at the music festival and another three instances of rape occurred on a road and in a kibbutz. Two plus three equals five. Appalling, no doubt, but also a far cry from allegations by Israel and its media stenographers—in particular and notoriously, *The New York Times*—that Hamas carried out “systematic” and “widespread” rape as a “weapon” of war.

The report went on to state that “[a]t least two of the allegations of sexual violence [at kibbutz Be’eri] previously reported were determined by the mission team to be unfounded, due to either new superseding information or inconsistency in the information gathered.”²⁷ It further noted alleged instances of sexual violence at other locales “which could not be verified.”²⁸ It is cause for wonder why the mission benignly characterized the false claims of sexual violence propagated by Israel as innocent mistakes and didn’t entertain the possibility of calculated disinformation that was subsequently exposed. Was the “beheaded babies” horror tale also an accounting error?

The report stated that, “[b]ased on the first-hand accounts of released hostages, the mission team received clear and convincing information that sexual violence, including rape, sexualized torture, and cruel, inhuman and degrading treatment occurred against some women and children during their time

25. Ibid., para. 60.

26. Ibid., para. 61.

27. Ibid., paras. 14, 65.

28. Ibid., para. 60.

in captivity and has reasonable grounds to believe that this violence may be ongoing.”²⁹ Of all the findings of this non-investigative investigative body, this was surely the most explosive. The stakes couldn’t have been higher: it provided a plausible pretext for Israel to urgently proceed on its offensive even as Gazan children were starving—*Israeli women and children held in captivity are still being raped and sexually tortured!* Yet, the report dispatched this charge, that was unequivocally validated by the mission, in all of *one sentence*. Whereas “clear and convincing information” crossed the highest threshold, the mission didn’t disclose the evidentiary basis for its conclusive finding. The report stated that it is “[b]ased on the first-hand accounts of released hostages,” but this wording obscured whether or not the mission actually met with them, and it is left to the imagination why these “first-hand accounts” standing on their own would, or could, be dispositive. If hostage rape victims held in captivity for months did in fact meet with the mission, then it baffled and bewildered why not a single one of the 7 October rape victims who weren’t held hostage stepped forward. The report ascertained that “some” of the hostages were raped; but what prevented the mission from specifying exactly how many? It purported “reasonable grounds to believe” that the rape and sexual torture were ongoing; but how could it possibly know this? If Israel possessed *any* evidence that the hostages still in captivity were being raped, surely it would have broadcast this far and wide. The non-investigative Patten mission was apparently not only investigative but, to boot, clairvoyant. It gets curiouser and curiouser. Hamas indignantly denied the rape charge, while this charge has played a salient role in demonizing Hamas. If while in captivity the released hostages had been personally raped on Hamas orders or could bear personal witness to such sexual savagery, then why didn’t Hamas simply kill them instead of setting them free: who would know?³⁰ The mission stated that it adhered to a “survivor/victim-centered” approach. It would appear that this approach required total suspension of the critical faculty.

The Patten mission stated that it was “unable to establish the prevalence” of sexual violence “during and after the 7 October attacks,” and that a “comprehensive assessment . . . would require a fully-fledged investigation by competent bodies with adequate time and capacity.”³¹ But truth be told: if it wasn’t a “competent” investigative body, then it was “unable to establish”

29. Ibid., para. 71.

30. For more on the hostage-rape allegations, see Section II.

31. *Mission Report*, paras. 19, 56, 86.

anything. Further, its vague quantification, as well as its repeated references to “circumstantial” evidence that “may be indicative” and to allegations that “couldn’t be verified,” certainly gave credence to the official Israeli “narrative” that the sexual violence was widespread.

Conclusion to Section I

The Patten report conceded that “the information gathered by the mission team was in a large part sourced from Israeli national institutions,” while the report’s findings carry bare minimum weight as the “mission is neither intended nor mandated to be investigative in nature.”³² The only discernible purposes of Patten’s tawdry mission reduced to, first, acting as yet another purveyor, vehicle, conduit, and conveyance of the “evidence” Israel had been propagating since 7 October, and, second, lending the UN’s authoritative imprimatur to this “evidence.” The analysis presented in this chapter began with the puzzle, What exactly was the Patten mission? That question can now be tentatively answered. It was neither an investigative nor a quasi-investigative body. On the contrary, after Israel’s shrill public campaign alleging that the UN had turned a blind eye to Hamas rapes, the UN bureaucracy directed this stage production to appease Tel Aviv and its powerful backer in Washington. How and why Ms. Patten came to play the starring role in this theatrical extravaganza are of secondary importance.

The Patten mission “benefitted from the full cooperation of the Government of Israel.” Yet, it couldn’t locate a *single* victim of sexual violence or a *single* piece of direct evidence, be it forensic or digital, of sexual violence on 7 October. It therefore beggars belief that rampant sexual violence occurred on that day. The allegation that Hamas systematically utilized rape as a weapon of war can be safely deposited in the same dumpster as the debunked allegation that Hamas built a mammoth command-and-control center beneath al-Shifa hospital.

The report described “three cumulative waves of attacks” from Gaza on 7 October: first, “Hamas commandos”; then, sundry “paramilitary organizations . . . that joined the ongoing operation”; and finally, unaffiliated, random “armed elements and unarmed individuals.”³³ The report further stated that “it did not gather information and/or draw conclusions on attribution of

32. Ibid., para. 55; not “investigative in nature” from press release, cited above.

33. Ibid., paras. 40, 41.

alleged violations to specific armed groups.” The available evidence is entirely consistent with the postulate that, if rapes did occur on 7 October—and that’s a very big *if*—these were isolated incidents perpetrated in the main by Gazan riff-raff and hooligans who entered Israel in the third wave. It is this writer’s considered opinion—admittedly speculative in nature but nonetheless grounded in the known details of the 7 October attack, its *modus operandi*, and the predispositions of its perpetrators—that this is the most plausible scenario.

II

The UN Commission of Inquiry

Several months after publication of the Patten report, an Independent International Commission of Inquiry chaired by former UN high commissioner for human rights Navi Pillay released a triptych of reports regarding attacks that occurred on 7 October 2023 and thereafter.³⁴ The Commission devoted extensive space to “sexual and gender-based violence” perpetrated by both sides. Its findings were simultaneously more professional and, in a desperate bid to pin the “sexual predator” label on Palestinian armed groups, more unprofessional than the Patten mission. To be sure, the Commission did adduce an abundance of credible evidence that rape and other forms of sexual violence were routinely perpetrated since 7 October—*by Israel*.

34. *Detailed Findings on Attacks Carried Out on and After 7 October 2023 in Israel* (10 June 2024, A/HRC/56/CRP.3; <https://www.ohchr.org/sites/default/files/documents/hrbodies/hrcouncil/sessions-regular/session56/a-hrc-56-crp-3.pdf>; hereafter *Detailed Findings I*). *Detailed Findings on the Military Operations and Attacks Carried Out in the Occupied Palestinian Territory from 7 October to 31 December 2023* (10 June 2024, A/HRC/56/CRP.4; <https://www.ohchr.org/sites/default/files/documents/hrbodies/hrcouncil/sessions-regular/session56/a-hrc-56-crp-4.pdf>; hereafter *Detailed Findings II*). *Report of the Independent International Commission of Inquiry on the Occupied Palestinian Territory, Including East Jerusalem, and Israel* (11 September 2024, A/79/232; <https://documents.un.org/doc/undoc/gen/n24/262/79/pdf/n2426279.pdf>; hereafter *Report of the Independent International Commission*). The *Report of the Independent International Commission* focused on treatment of detainees and hostages and attacks on medical facilities and personnel.

II A

Rape

The Commission stated that it “was not able to reach a definitive conclusion with regards to rape” allegedly committed by Palestinian armed groups on 7 October 2023.³⁵ In its fullest statement on the subject, the Commission discreetly circumvented Israel’s “evidence” and distanced itself from Pramila Patten’s “findings.” (See Box A.) That said, the Commission’s “not able to reach” finding was understated. The proof of rape before it did not reach its declared evidentiary threshold: “the Commission has found the standard of ‘reasonable grounds to conclude’ to have been met when information has been corroborated by one or several witnesses interviewed by the Commission, and supported by *digital evidence* that demonstrates similar patterns and descriptions to those identified by witnesses” (emphasis added).³⁶ The Patten mission already established that, even as it had at its disposal a massive trove of digital evidence from 7 October, it didn’t find *any* digital evidence of rape. If Israel couldn’t produce such digital evidence, and the mission itself couldn’t locate any, then the reasonable inference is that it didn’t exist, while, absent such evidence, the standard of “reasonable grounds to conclude” wasn’t met. The Commission should therefore have unequivocally found that *no reasonable grounds exist to conclude that rape occurred on 7 October*. In the most exhaustive analysis to date of the events of 7 October, Human Rights Watch stated that it “did not document any cases of rape.”³⁷

35. *Detailed Findings I*, para. 275; see also *ibid.*, para. 154.

36. *Ibid.*, para. 14.

37. Human Rights Watch (HRW), “*I Can’t Erase*,” p. 186; see also pp. 7, 187, 229. Alas, this bare seven-word acknowledgment got buried in an avalanche of text insinuating the opposite conclusion. *First*, the report repeatedly cited without caveat the findings of the Patten mission which, *inter alia*, alleged that there are “reasonable grounds to believe” that multiple rapes occurred on 7 October (*ibid.*, pp. 8, 70, 99–100, 160, 186, 229). If the Patten report reached a conclusion manifestly at odds with HRW on a critical point of contention, and if HRW conducted 144 interviews in preparing its report, it’s most odd that HRW was so lacking in curiosity to the point of apparently not even bothering to query Patten as to what these “reasonable grounds” consisted of. It couldn’t be public survivor testimony or digital evidence or forensic evidence. It’s been firmly established that none exists. If Israel possessed dispositive evidence and made Patten privy to it, and if it had nothing to lose and everything to gain, why then didn’t Israel just hand over this evidence to the UN Commission of Inquiry and HRW? So what was it—and if no such “reasonable grounds” existed, why then did HRW keep deferring to Patten in its report? *Second*, HRW referenced in detail one allegation after another that rape occurred on 7 October, only to keep repeating that it “was unable to independently corroborate this account” (*ibid.*,

Box A

*Did Palestinian Militants Commit Mass Rape on 7 October?
The Commission's Cautious Response*

"[T]he Commission has seen open-source reports stating that Israeli civilians were subjected to rape and other forms of sexual violence at various sites in southern Israel on 7 October. The Commission has reviewed testimonies obtained by journalists and the Israeli police concerning rape but has not been able to independently verify such allegations, due to a lack of access to victims, witnesses and crime sites and the obstruction of its investigations by the Israeli authorities. The Commission was unable to review the unedited version of such testimonies. For the same reasons, the Commission was also unable to verify reports of sexualized torture and genital mutilation. Additionally, the Commission found some specific allegations to be false, inaccurate or contradictory with other evidence or statements and discounted these from its assessment.

"The Commission has viewed reports asserting that documents found on militants who were killed or arrested contain alleged instructions to undress civilians and/or commit rape or other forms of sexual

pp. 68–70, 192–96). But then it could simply have stated: "There were numerous allegations of rape, none of which HRW could corroborate." Why did it keep recycling uncorroborated allegations? The *reductio ad absurdum* was the testimony, placed under HRW's heading "possible sexual and gender-based violence," of a woman who feared being raped but, according to her own attestation, never was (*ibid.*, p. 196). At some point, this piling on of uncorroborated allegations couldn't but be construed as the smarmiest of smear campaigns. *Third*, HRW went on at inordinate length purporting that the absence of evidence of rape didn't prove that rape didn't occur (*ibid.*, pp. 8, 196–200). This recalled US Secretary of Defense Donald Rumsfeld's infamous response at a news conference regarding Iraq's alleged weapons of mass destruction: "There are known knowns; there are things we know we know. We also know there are known unknowns; that is to say we know there are some things we do not know. But there are also unknown unknowns—the ones we don't know we don't know." It's a sorry day indeed when a human rights organization starts sounding like this. If there's no corroborative evidence, there's no corroborative evidence, full stop. Even as HRW couldn't document one single instance of rape, that didn't prevent it from recommending that Palestinian armed groups be investigated not just for the war crime but, audaciously, for the crime against humanity—that is, not discrete instances but the systematic perpetration—of rape (*ibid.*, pp. 10, 211, 235). It would appear that a dearth of evidence has transubstantiated into a superabundance of it: is less now more? For HRW's less-than-stellar record when it comes to the Israel-Palestine conflict, see Norman G. Finkelstein, *Knowing Too Much: Why the American Jewish romance with Israel is coming to an end* (New York: 2012), pp. 123–54, and Norman G. Finkelstein, *Gaza: An inquest into its martyrdom* (Oakland: 2018), pp. 114–15, 235, 238, 287.

violence during the attack on 7 October. The Commission was unable to obtain copies of these documents and was unable to verify their authenticity.

“The Special Representative of the Secretary-General (SRSG) on Sexual Violence in Conflict, Pramila Patten, found after a mission to Israel in January to February 2024 reasonable grounds to believe that conflict-related sexual violence occurred at several locations, including in the form of rape and gang rape. The SRSG also found credible circumstantial information indicative of some forms of sexual violence, including genital mutilation, sexualized torture, or cruel, inhuman and degrading treatment. The SRSG noted that the specific attribution of these violations would require a fully-fledged investigation and recommended that the Israeli authorities grant access to the Office of the High Commissioner for Human Rights and the Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel. The Israeli Government has refused to permit access by the Office or the Commission.”*

* *Detailed Findings I*, paras. 138–40.

The Commission separately reported on acts of rape allegedly perpetrated against Israeli hostages. One Israeli held in captivity testified after her release by Hamas in a prisoner exchange that she had been victim to a sexual assault. When no one else was around, she was allegedly coerced by her guard into committing a sexual act on him. The Commission tersely stated that “[o]ne released female hostage reported that she had been raped.”³⁸ It did not cite any corroborating evidence. In her detailed accounts to the media of the purported incident, the hostage did not allege that Hamas leaders authorized or approved or were even aware of the rape.³⁹ Indeed, pace the Commission, *she*

38. *Report of the Independent International Commission*, para. 82.

39. Patrick Kingsley and Ronen Bergman, “Israeli Hostage Says She Was Sexually Assaulted and Tortured in Gaza,” *New York Times* (26 March 2024; <https://www.nytimes.com/2024/03/26/world/middleeast/hamas-hostage-sexual-assault.html>). This article alleged that the hostage’s testimony was confirmed by two doctors and a social worker who had spoken to her right after her release.

did not even allege that she was raped! On the contrary, she avowed having *successfully resisted* her guard's rape attempts: "I prevented him from doing what he really wanted to do. He did sexually assault me, but not in the way he wanted to. . . . I was able to fight him off."⁴⁰ Whatever transpired, then, it would have been at most a solitary act of sexual violence—but not rape—by an abusive guard. Further, it would have been most odd if Hamas was privy to the incident yet still freed her to publicly recount the sexual assault when it could so easily have disposed of her instead—so many other hostages having died in captivity, who would know? Still, on the basis of this single alleged act of sexual violence against, but not rape of, a hostage committed by a single guard and almost certainly without the foreknowledge or subsequent approval of anyone else, the Commission proceeded to accuse "Hamas and other Palestinian armed groups" of the "war crime" of "rape."⁴¹ Readers can decide for themselves whether this finding traced back to an objective investigation or a rigged jury.

II B

Other Forms of Sexual Violence

The Commission reported that, even as it confronted "active attempts by Israeli authorities to obstruct the Commission's access to information related to sexual violence," and even as it "notes the absence of forensic evidence of sexual crimes committed on 7 October," and even as it had "not met any survivors of sexual violence committed on 7 October"⁴²—notwithstanding this formidable array of impediments, it nonetheless "concludes on reasonable grounds that perpetrators committed sexual violence on 7 October."⁴³

To establish the legal basis of its inquiry, the Commission referenced conventional and customary law granting women "special protection and respect in terms of treatment due to their sex."⁴⁴ This body of law includes:

40. Jane Prinsley, "Released Hostage Amit Soussana Says Trump's Words Offer 'Hope,'" *Jewish Chronicle* (3 December 2024; <https://www.thejc.com/news/israel/released-hostage-amit-soussana-says-trumps-words-offer-hope-jptcwijg>).

41. *Report of the Independent International Commission*, para. 112.

42. *Detailed Findings I*, paras. 17–19.

43. *Ibid.*, para. 291.

44. *Ibid.*, para. 302.

- “The specific protection, health and assistance needs of women affected by armed conflict must be respected.” (ICRC, *Customary International Humanitarian Law*)⁴⁵
- “Women shall be treated with all consideration due to their sex.” (Geneva Conventions I and II)⁴⁶
- “Women shall be especially protected against any attack on their honor, in particular against rape, enforced prostitution, or any form of indecent assault.” (Geneva Convention IV)⁴⁷
- “Women shall be the object of special respect and shall be protected in particular against rape, forced prostitution and any other form of indecent assault.” (Additional Protocol I to the Geneva Convention)⁴⁸
- “[T]he following acts . . . are and shall remain prohibited at any time and in any place whatsoever: . . . Outrages upon personal dignity, in particular humiliating and degrading treatment, rape, enforced prostitution and any form of indecent assault.” (Additional Protocol II to the Geneva Convention)⁴⁹
- “[S]erious violations of the laws and customs applicable in international armed conflict . . . [include] any of the following acts: . . . Committing outrages upon personal dignity, in particular humiliating and degrading treatment; Committing rape, sexual slavery, enforced prostitution. . . .” (ICC Rome Statute)⁵⁰

It merits notice that defining “special protections” such as of a woman’s “honor” and “dignity” eludes fixed definition not least because these notions can be culture-specific.⁵¹ *It further merits notice* that certain of these “special protections” clash with a modern sex-egalitarian sensibility. The ICRC

45. Rule 134.

46. Article 12.

47. Article 27.

48. Article 76.

49. Article 4(2)(e).

50. Article 8(2)(b)(xxi), (xxii).

51. See *Detailed Findings II*, para. 446 (“The Commission particularly notes that female victims were forced [by Israeli Security Forces] to strip down to their underwear and remove their veils in public and in front of the community that has strict religious and cultural dress codes, particularly for women and girls”). See also *ibid.*, para. 384.

commentary on these protections states that “women . . . have an absolute right to respect for their honor and their modesty, in short for their dignity as women.”⁵² It can be a tricky business where defense of a woman’s “honor” and “modesty” crosses into defense of a chivalrous-chauvinist double standard anchored in invidious sex stereotypes. It gets murkier still when retrograde “special protections,” otherwise ridiculed as throwbacks to a benighted sexist past, are weaponized such that not treating a woman like a “lady” constitutes criminal conduct. *It further merits notice* that a war crime can contain a sexual aspect without constituting a crime of sexual *violence*. The Commission stated that it “considers the term ‘sexual violence’ to cover a range of physical and non-physical acts of a sexual nature against a person or causing a person to engage in such an act, by force, or by threat of force or coercion.”⁵³ Still, if a perpetrator intentionally exposes or mangles the genitalia of a corpse, it would uncontroversially constitute an act of sexual desecration or an outrage upon personal dignity but, as it couldn’t in the nature of things cause pain or injury to body or mind, the act wouldn’t constitute sexual *violence*. The Commission itself acknowledged this distinction: it conceptually juxtaposed “desecration of women’s bodies” against “sexual violence”;⁵⁴ it determined that, not the war crime of sexual violence, but rather the “war crime of outrages upon personal dignity can be committed against the dead”⁵⁵ and “include[s] the desecration of undressed bodies”;⁵⁶ it separated out the “war crime of outrages upon personal dignity”⁵⁷ from the “[w]ar crime of rape and other forms of sexual violence.”⁵⁸

Alas, the Commission was *not* mindful of the above strictures as it proceeded to inventory the nature and magnitude of sexual violence committed by Palestinian armed groups on 7 October. *First*, the Commission classified the exposure or mangling of female body parts as sexual violence even as in instances it forthrightly acknowledged that it “could not determine” whether the violent act occurred “before or after the victim’s death,”⁵⁹ or even

52. ICRC, *Commentary, IV Geneva Convention* (1958 edition), p. 206.

53. *Detailed Findings I*, para. 134n52.

54. *Ibid.*, para. 275.

55. *Ibid.*, para. 286.

56. *Ibid.*, para. 290.

57. *Ibid.*, paras. 286–90.

58. *Ibid.*, paras. 291–92. But cf. *ibid.*, para. 15.

59. *Ibid.*, paras. 134, 135, 137 (“could not determine”), 152–53. The video evidence examined by Human Rights Watch is suggestive that sexual desecrations took place after the

as it acknowledged that the desecration did occur after the victim's death.⁶⁰ The Commission purported that "a pattern of sexual violence . . . has been corroborated by the digital evidence it collected and preserved."⁶¹ But the Patten mission had established the *absence* of "digital evidence specifically depicting acts of sexual violence," while Amnesty International reported *after* the Commission's findings were published that it "has neither obtained nor heard of images or video footage depicting acts of sexual violence."⁶² How to resolve this discrepancy? The Patten mission differentiated between "acts of sexual violence," of which it could adduce no digital evidence, versus "circumstantial elements such as naked or partially naked bodies," of which it did find "some digital material."⁶³ If the UN (Pillay) Commission laid claim to "digital evidence" of sexual violence, that was apparently because it disingenuously conflated these distinct categories of evidence, construing digital proof of the latter ("circumstantial") as digital proof of the former ("acts"). Relatedly, the Commission concluded that "acts of torture and mistreatment were widespread" on 7 October even as it "could not conclusively determine whether victims were subjected to mistreatment before or after death."⁶⁴ But if it wasn't able to make this determination, then the Commission couldn't conclude that torture was "widespread": a corpse can be desecrated; it can't be tortured.

victim's death:

The videos also indicate Joshua Molle's attackers stripped him of his clothing. In the first video, he is seen alive and clothed, in the second he is dead and clothed, and in the third he is dead and his shirt is pulled up near his head and his pants are mostly removed as the gunman steps on his corpse. A fourth video shared to Telegram shows Molle's body, bloody and without pants, in the back of a moving truck. (*I Can't Erase*, p. 146)

60. *Detailed Findings I*, paras. 142 ("a pair of scissors was inserted in the groin area after death"), 157 ("the body of a mutilated and undressed civilian woman . . . was paraded in the back of a truck . . . through a cheering crowd").

61. *Ibid.*, para. 134.

62. *Amnesty International's Research into Hamas-Led Attacks of 7 October 2023 and Treatment of Hostages* (2 December 2024; <https://www.amnesty.org/en/wp-content/uploads/2024/12/MDE1588032024ENGLISH.pdf>), p. 6.

63. *Mission Report*, para. 77.

64. *Detailed Findings I*, paras. 116–17.

Second, the Commission conflated alleged acts of physical violence per se with *sexual* or *gender-based* violence. Consider this paragraph in the section titled “Gender-based violence in kibbutzim and on road 232”:

Most of the 90 women and girls abducted to Gaza on 7 October were from the kibbutzim in southern Israel. The Commission found that several of them were subjected to physical and psychological violence in the process of their abduction. The Commission received many reports and verified digital evidence that hands and sometimes feet of women were bound, often behind the victims’ backs, during the abduction or prior to their killing. The perpetrators mainly used plastic zippers, but the use of rope and electric cables has also been documented.⁶⁵

It’s hard to fathom how this constitutes “gender-based violence.” Zip-tie handcuffs can be painful, even excruciating, for everyone—women *as well as men*. Is the Commission purporting that a woman’s wrist is inherently daintier and therefore warrants “special protection” under the law? In a paragraph devoted to “sexual and gender-based violence against female [Israeli] soldiers in the Nahal Oz outpost,” the Commission noted “the inherently unequal circumstances of these soldiers in age, sex and combat capacity,” as well as their visibly “distressed” state before being captured. It perplexes on what basis it is deduced that female combatants are “inherently unequal” to male combatants *in anything*; and under which laws of war do combatants get special dispensations based on their “age, sex and combat capacity” or on feeling “distressed”; and why would a UN body committed to ending discrimination against women invoke imagery harkening back to “damsels in distress.”⁶⁶ Bizarrely, the Commission observed that the Nahal Oz military outpost included “25 unarmed female ‘Tazpitanyot,’ a *non-combat* role observing a portion of the fence and reporting on any security concerns, *as well as operating a remote shooting system* called ‘See-Shoot’” (emphases added).⁶⁷ Is the remote-control operator of a highly sophisticated weapons system filling a “non-combat” role? (See also Box B.)

65. Ibid., para. 145.

66. Ibid., paras. 162, 163.

67. Ibid., para. 106. On the “See-Shoot” weapons system, see Philip Alston, “Lethal Robotic Technologies: The implications for human rights and international humanitarian law,” *Journal of Law, Information, and Science* (2012).

Box B
Is This “Gender-Based Violence”?

“The Commission viewed CCTV footage of a woman being abducted by eight men. . . . The footage shows the men carrying and dragging the woman against her will while she continuously struggles to get free. One attacker is carrying a white sheet that he is trying to place on the woman. At one point she falls on the ground and a man in military uniform slaps her in the face. The woman was later taken to Gaza where she was held captive for almost two months. She described after her release how she was beaten badly when she tried to escape her abductors and that her feet and hands were eventually tied when she was brought to Gaza. She also described feeling that she was being treated like an object during her abduction. The Commission considers that this violence by eight men, some armed, on a woman was inherently threatening and degrading and denied the woman the protection to which she was entitled under international law. The Commission considers she was subjected to gender-based violence.”*

It is unclear how being “beaten badly when she tried to escape her abductors and . . . her feet and hands were eventually tied” constitutes “gender-based violence.” Is it okay to beat and bind male but not female hostages trying to escape; is the infliction of “violence by eight men . . . on a woman . . . inherently threatening and degrading,” but the infliction of violence by eight men on a man not “inherently threatening and degrading”? Even were it to be presupposed per the Commission that the “gentler sex” is inherently less robust and resilient, if it’s not permissible to manhandle women, then it’s also not permissible to manhandle men; the violence either is or isn’t prohibited, the legal threshold is sex-blind. It would appear that the Commission, chaired by the redoubtable Navi Pillay, was trucking in the hoariest sexist stereotypes in order to prosecute an otherwise flimsy case. It might further be wondered what, pray tell, was the legal relevance of the victim “feeling that she was being treated like an object” any more than if she felt as if she was being treated like a potato.

* *Detailed Findings I*, para. 146; see also *ibid.*, para. 164.

Third, the Commission wrongly imputed acts of sexual violence in other situations that, *prima facie*, didn't warrant such an imputation. It stated that "[m]ilitants posed with bodies in videos and photos, violating the personal dignity of the dead persons by humiliating or degrading treatment. In several of these cases there was a clear gendered element to the crime, where the bodies were displayed undressed as a means of humiliation and disrespect."⁶⁸ It went on to document incidents of this female corporeal desecration. But it also reported incidents such as "the body of a partially undressed man wearing boxers [that] is seen disrespected once brought to Gaza, with a mob kicking and hitting the lifeless body," of another dead man who is "almost completely undressed; his jeans have been pulled down and there is partial tearing of his underwear," and of another "man, most likely deceased, [who] was dragged on the ground by two men in military uniform on a motorbike. . . , his trousers pulled down to his ankles and only wearing underwear."⁶⁹ If the corpses of not only female but also male bodies were desecrated, how is this a "clear gendered" crime and not a crime of sexual desecration, *tout court*?⁷⁰ It's almost certain that Palestinian armed groups committing these criminal acts didn't give a darn what "gender" they were. The martyred people of Gaza loathed Israeli men and women without distinction as they experienced them without distinction as their tormentors. The Commission reported an incident of "a woman being humiliated and degraded by many male perpetrators . . . who subjected her to degrading language, including referring to her as a Jewish female dog," and it recalled the woman's fraught testimony that "I was a trophy. They brought people from outside so they could look at me."⁷¹ But can it be doubted that male captives were also subjected to degrading epithets and treated like trophies? However it might disappoint, these were not gender-based but, something very different, *tormentor*-based crimes.⁷² (See also Box C.)

68. *Ibid.*, para. 148.

69. *Ibid.*, paras. 149–59; see also *ibid.*, para. 290.

70. The Commission also asserted that "women [were] the primary but not the only target" of this "gender-based crime" (*ibid.*, para. 156). It is a puzzle on what evidentiary basis the Commission deduced which sex was the "primary" victim.

71. *Ibid.*, para. 159.

72. Human Rights Watch trod the path carved out by the UN report as it collapsed the distinction between sexual violence and postmortem outrages against personal dignity, as well as by classifying any physical violence perpetrated on a woman as gender-based violence ("*I Can't Erase*," pp. 186–88, 192–96). To be sure, it also desperately conjured up novel forms of

Box C
Is This “Gender-Based Violence”?

“The Commission reviewed video footage of the abduction of several women to Gaza on motorbikes and other vehicles. The abductees were forced to sit very close to their abductors and filmed during their abduction; in some cases the women were placed between two men on a small motorbike, forcing them to coerced intimacy with their abductors. The Commission found that women were disproportionately affected by this type of gender-based crime and documented multiple cases with the same pattern, from both kibbutzim and the Nova festival. In a video viewed by the Commission, a woman is abducted by two men in civilian clothes. The woman is seen trying to move her head and one of the perpetrators forcibly turns her head in his direction. In another case a woman at the Nova festival was abducted by force on a small motorbike by two men in civilian clothes. She is seen struggling to get free from the perpetrators and pleading for her release. In another video, the man behind her is seen covering her face with a black piece of cloth while almost sitting on top of her, and she is heard crying out loud in fear and anguish.”*

Taking civilians hostage is wrong; it’s a war crime. But does international law mandate that, when taking women hostage, the abductors must book an Uber to avoid “coerced intimacy”? It is most lamentable that the Commission conjured disgusting racist stereotypes of the horrors of “coerced intimacy”—or is it bestiality?—as Israeli belles are forced—G-d forbid!—to sit between dark-hued Arabs. If white women are crammed into subway cars full of *Nee-groes* at rush hour, then are they also victims of the “gender-based crime” of “coerced intimacy”? And if women were “disproportionally affected,” mightn’t it be because those beasts, seating themselves on both sides of the women, sought to specially *protect* them?[†] Or maybe it was simply that, as motorcycles entered Israel seemingly “most with two people on each,”[‡] it was easier or safer to squeeze a female than a male body

(continued)

sexual violence. For example, male hostages whose *shirts* were possibly removed counted as potential victims of sexual violence (ibid., pp. 193–94).

between the militants as they returned to Gaza, neither man willing to stay behind and get shot dead just to avoid “coerced intimacy.” Not everything traces back to the sexual repression of Arab males. The other examples of “gender-based crimes” denoted by the Commission—“one of the perpetrators forcibly turns her head in his direction”. . . —don’t even rise to the risible. Incidentally, the Commission reported that “photos depict” a male abductee “sitting on a motorbike between two men in civilian clothes.”[§] Wasn’t this Israeli also the victim of “coerced intimacy” as he suffered revolting propinquity to an A-rab body? In another paragraph it is reported that “the perpetrators used white sheets and blankets to wrap or cover female victims.”[¶] Why is this gender-based violence? It’s not established whether or not men were also wrapped in white sheets. And perhaps this was another special *protection* that the abductors afforded female captives? It’s anyone’s guess. But *prima facie*, it makes no more sense to label this sexual violence than coercive conscription into the Ku Klux Klan.**

* *Detailed Findings I*, para. 160; see also *ibid.*, para. 289.

† For indications that female Israelis benefited from special dispensations during the 7 October attack, see Human Rights Watch, “*I Can’t Erase*,” pp. 65, 66, 93, 144, 171.

‡ *Ibid.*, p. 49.

§ *Detailed Findings I*, para. 59.

¶ *Ibid.*, para. 161.

** The Commission’s obsession with “gender-based crimes” resulted in “findings” that can only be described as misandrist. In a section purporting to document the “disproportionate impact on children and women in Gaza” of the Israeli assault, the Commission observed that “large numbers of children and women [were] killed and injured” because “Israeli bombardment has utterly destroyed apartment buildings housing members of one or more extended families, killing or injuring almost all of them” (*Detailed Findings II*, paras. 51, 54). Were the deaths of adult males during these bombardments less criminal? Or it observed that “consuming water from brackish agricultural wells poses a significant risk to communities, exposing them to harmful chemicals and elevated saline levels. This is a particular threat to the health of vulnerable groups such as newborns, children, and women” (*ibid.*, para. 308). How are harmful chemicals and elevated saline levels less of a threat to men? Or it observed under the subhead “Gender specific impact on women and girls” that “women spoke to the Commission about the suffering caused by being separated from their children” (*ibid.*, para. 318). Do men suffer less from being separated from their children?

The Commission separately reported that, besides the alleged rape of an Israeli hostage, it “received credible information about some hostages being subjected to sexual and gender-based violence while in captivity, including sexualized torture and abuse against men and women when they were held in tunnels.”⁷³ In notable contrast to its detailed findings of rape and sexual violence committed against Palestinian detainees (more on which presently), the Commission did not describe even one specific incident, let alone provide corroborative evidence, for this serious allegation against Palestinian armed groups. Instead, it limited itself to the bare, single, unreferenced sentence just quoted. This being the case, and in light of the Commission’s manifest bias, the allegation must be adjudged speculative at best. But undeterred, the Commission proceeded to accuse “ Hamas and other Palestinian armed groups” of having committed the “war crime” of “sexual violence” against the hostages.⁷⁴

The Commission convincingly demonstrated that acts of sexual desecration or outrages to the personal dignity of the dead occurred on 7 October. But its evidence of sexual *violence* perpetrated by Palestinian armed groups on 7 October and thereafter didn’t persuade; and if it didn’t persuade, that’s because it wasn’t persuasive; indeed, it was nonexistent, grasping at straws.

II C

Israel’s Record

The Commission did adduce an abundance of verifiable, irrefutable evidence of a “clear pattern” that Israeli Security Forces (ISF) perpetrated acts of sexual violence, “including forced public nudity, forced stripping and sexual humiliation, abuse and harassment.”⁷⁵ The copious proof comprised “testimonies obtained by the Commission from victims and witnesses, as well as forensic analysis of verified digital content,” which was further “corroborated by UN agencies and international and Palestinian civil society reports.”⁷⁶ In no small part, the incriminating evidence consisted of videos posted by the ISF perpetrators themselves on social media. (See Table 1.) The motive behind this ISF sexual violence was said to be “humiliating and degrading civilians, with

73. *Report of the Independent International Commission*, para. 82.

74. *Ibid.*, para. 112.

75. *Detailed Findings II*, paras. 365, 442, 481.

76. *Ibid.*, paras. 7, 361, 365.

the underlying imposed humiliation intended to perpetuate Palestinian subordination in relation to the Israeli occupation.”⁷⁷ The Commission charged that Israel had not only committed war crimes of a sexual nature, but also that, in its treatment of “Palestinian men and boys [who] have been disproportionately” the victims of sexual violence, Israel had committed the “crime against humanity of persecution”: “The Commission finds that the treatment of men and boys was intentionally sexualized . . . to punish, humiliate and degrade Palestinian men and boys.”⁷⁸

The Commission separately documented Israel’s “intentional policy”⁷⁹ of rape and other forms of sexual violence against Palestinians held in Israeli detention facilities. (See Table 1.1.) In its legal findings, the Commission determined that “such persecutory acts” constituted a “war crime and a crime against humanity.”⁸⁰

TABLE 1 Sexual Violence Committed by Israeli Security Forces in Gaza: The Commission’s Findings
One victim described . . . his humiliation during the evacuation of a residential area. . . . He was in his home when soldiers entered the area and ordered people to evacuate. During the course of the evacuation, men and boys were forced to undress in front of family members and ordered to kneel. The victim’s wife and children witnessed his undressing before they evacuated. . . . He and about 50 other men were ordered to walk in their undergarments barefoot to the end of the street, where they were forced to kneel with about 250 other men and boys wearing only underwear. This information was corroborated by digital evidence. . . . A female Israeli soldier ordered two teenage boys who had been stripped to their underwear to dance and recorded a video of them while she was laughing.^a
The victim described a military presence along the street . . . At a makeshift checkpoint, women, men, girls and boys were all asked to undress at gun-point. . . . They were told to hold their identity documents high in the air and continue walking while undressed. ISF said that anyone who did not follow orders would be shot. The men were completely naked while walking and the women were in their underwear. The

77. Ibid., paras. 361, 442, 470.
78. Ibid., paras. 365, 441, 444, 470, 471. But cf. para. 483 (“Women were also the primary target of sexual harassment, including gendered and sexualized harassment”).
79. *Report of the Independent International Commission*, para. 102.
80. Ibid., paras. 108–9.

TABLE 1 (continued)

victim was asked by a soldier to step aside and was forced to remain naked during an interrogation by three soldiers that lasted about 30 minutes. During the interrogation he was slapped in his face and received threats to his life.^b

The witness saw several of his female relatives being forced to undress leaving them in their underwear with no veil to cover their hair. He also saw several women being subjected to sexual harassment by the soldiers while stripped, including a girl about the age of 17 or 18. The soldiers mocked and harassed the men for not being able to intervene in the forced stripping of women. The witness also saw the mistreatment and arrest of a pregnant woman before she was taken away by soldiers. . . . To corroborate this information, the Commission also spoke to a woman human rights defender who had documented multiple accounts of being subjected to sexual violence and abuse.^c

[A] woman who had fled her home . . . reported that ISF soldiers . . . beat her and threatened to kill her children if she refused to undress. The soldiers ordered her to go to the right side and her children were made to continue walking alone. The woman was strip-searched outside. The soldiers told her to remove her veil and her clothes and when she refused to remove her clothes and cried, they insulted her and beat her. . . . Another woman . . . recounted how she and others were stopped by soldiers. The men were forced to strip to their underwear, blindfolded and their hands and feet tied. The soldiers asked the women to remove their clothes. When she refused, they threatened her, insulted her and beat her. She undressed and took off her veil while she was crying.^d

[A] video posted on X and Telegram filmed by [Israeli] soldiers . . . document[ed] severe mistreatment and abuse of male detainees. In the footage, six men are seen undressed, two of whom are completely naked with their genitals exposed. All men are blindfolded and lying on the ground. . . . One of the completely stripped men seems unconscious or lifeless; the other is yelling in pain before being pushed to the ground. A soldier steps on the face of one man who is wearing only trousers with his hands and feet tied. The man is then pulled by his legs, while yelling in pain. . . . In [a] second case, an Israeli reservist soldier posted footage on . . . his Instagram account, depicting the Israeli soldier standing in front of a Palestinian man sitting on a chair with his hands tied behind his back with what appears to be black plastic straps. The Palestinian man was undressed, wearing only black boxer shorts, and had a five-centimeter cut on his right thigh that is bleeding, and traces of blood are seen on his forehead and right arm.^e

^a *Detailed Findings II*, para. 366.

^b *Ibid.*, para. 367.

^c *Ibid.*, paras. 371–72.

^d *Ibid.*, para. 373.

^e *Ibid.*, paras. 388–89.

TABLE 1.1 Rape and Other Forms of Sexual Violence
Committed by Israeli Security Forces in Detention Centers:
The Commission's Findings

The Commission documented more than 20 cases of sexual and gender-based violence against male and female detainees in more than 10 military and Israel Prison Service facilities. . . . Sexual violence was used as a means of punishment and intimidation from the moment of arrest and throughout detention, including during interrogations and searches. Acts of sexual violence documented by the Commission were motivated by extreme hatred towards and a desire to dehumanize the Palestinian people.^a

The Commission found that forced nudity, with the aim of degrading and humiliating victims in front of both soldiers and other detainees, was frequently used against male victims, including repeated strip searches; interrogation of detainees while they were naked; forcing detainees to perform certain movements while naked or stripped and, in some cases, also filmed; subjecting detainees to sexual slurs as they were transported naked; forcing naked detainees into a crowded cell together; and forcing stripped and blindfolded detainees to crouch on the ground with their hands tied behind their back.^b

Several male detainees reported that Israeli security forces personnel had beaten, kicked, pulled or squeezed their genitals, often while the detainees were naked. In some cases, Israeli security forces personnel used such objects as metal detectors and batons. One detainee . . . stated that . . . members of the . . . Israel Prison Service had forced him to strip and then ordered him to kiss the Israeli flag. When he refused, he was beaten and his genitals were kicked so severely that he vomited and lost consciousness.^c

The Commission also received credible information concerning rape and sexual assault, including the use of an electrical probe to cause burns to the anus and the insertion of objects, such as sticks, broomsticks and vegetables, into the anus. Some of those acts were reportedly filmed by soldiers.^d

The Commission has determined that detainees were routinely subjected to sexual abuse and harassment, and that threats of sexual assault and rape were directed at detainees or their female family members. One detainee . . . reported that female soldiers had forced him and others to make sounds like a sheep, curse the Hamas leadership and the prophet Muhammad, and say, "I am a whore." Detainees were beaten if they did not comply. In another case, a soldier took off his trousers and pressed his crotch to a detainee's face, saying: "You are my bitch. Suck my dick."^e

Female detainees were . . . subjected to sexual assault and harassment in military and Israel Prison Service facilities, as well as threats to their lives and threats of rape. The sexual harassment included attempts to kiss and touch their breasts. They reported repeated, prolonged and invasive strip-searches, both before and after interrogations. Women were forced to remove all clothes, including the veil, in front of male and

TABLE 1.1 (continued)

female soldiers. They were beaten and harassed while being called “ugly” and had sexual insults, such as “bitch” and “whore,” directed at them. In one case, a female detainee in an Israel Prison Service prison was denied access to her lawyer after she had informed him of rape threats.^f

Female detainees were photographed without their consent and in degrading circumstances, including in their underwear in front of male soldiers. In one case, a detainee was subjected to repeated and invasive strip-searches following her arrest at a police station in northern Israel. She was beaten, verbally abused, dragged by her hair and photographed in front of an Israeli flag. The photos were posted online.^g

^a *Report of the Independent International Commission*, para. 62.

^b *Ibid.*, para. 63.

^c *Ibid.*, para. 64.

^d *Ibid.*, para. 65.

^e *Ibid.*, para. 66.

^f *Ibid.*, para. 67.

^g *Ibid.*, para. 69. The UN expanded on these findings in a subsequent report, Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, “*More Than a Human Can Bear*”: *Israel’s systematic use of sexual, reproductive and other forms of gender-based violence since 7 October 2023* (13 March 2025, A/HRC/58/CRP.6; <https://www.ohchr.org/sites/default/files/documents/hrbodies/hrcouncil/sessions-regular/session58/a-hrc-58-crp-6.pdf>).

Conclusion to Section II

The UN Commission stated that it “was not able to reach a definitive conclusion with regards to rape” on 7 October. But, based on its own evidentiary threshold, it should have unequivocally found that *no reasonable grounds exist to conclude that rape occurred on 7 October*. The Commission avowed that other forms of sexual violence were widespread on 7 October. In order to prove this contention, however, it cast a very wide, indiscriminate net that collapsed critical distinctions. Had the Commission attended to these distinctions, its case would have proven unsustainable. The Commission deplored the “inflammatory language” and “misinformation . . . surrounding the issue of sexual violence in the context of the attack of 7 October” as well as the “exploitation of sexual violence . . . for political expediency.”⁸¹ But it must also have come

81. *Detailed Findings I*, para. 19.

under irresistible pressure to validate the keystone of Israel's hasbara campaign after 7 October. It is to be rued that, although the Commission did express reservations about the rape allegation on 7 October, it itself apparently succumbed to "political expediency" as it affirmed without credible evidence the pernicious allegation of rampant sexual violence that day.⁸² To be sure, the Commission did deliver a scorching verdict that condemned Israeli Security Forces not only for the war crime of sexual violence but also for the crime against humanity of "persecution" as Palestinian men and boys endured systematic personal degradation during the genocidal assault on Gaza.

Final Reflections

It might be wondered why Israel feverishly propagated the myth of mass rape on 7 October. On the one hand, even without this specious allegation, the UN Commission's report left little room for doubt that Palestinian armed groups committed numerous war crimes on 7 October.⁸³ (See Table 2.) On the other hand, it wasn't as if Israeli Jews required the artificial stimulus of Amalek's sexual rapacity to incite their genocidal rampage in Gaza. However, the target audience of Israeli hasbara has ever been US public opinion. There, the rape allegation fell on fertile ground. It resonated with both "family-values" conservatives and #MeToo liberals, while the phantasmagoria of Jewish maidens being violated by "sand niggers" sent shivers of revulsion up and down the spines of Jews and WASPs alike. Enter billionaire Jewish supremacist Sheryl Sandberg. Channeling her muse, Leni Riefenstahl, the former Meta chief executive rolled out *Screams Before Silence* in April 2024, a "documentary" luridly memorializing Hamas mass rape on 7 October and starring Sandberg herself as she alternately preened and emoted on cue, breaking down in tears, letting out anguished sighs, and exclaiming "Oh my god." (Memo to Sandberg: when doing a documentary on rape, Gucci heels is a bad look; try Uggs.) Pramila Patten popped up for the gala New York premiere.⁸⁴

82. For the long, sorry record of UN commissions succumbing to pressures exerted by Israel (alongside the US), see Finkelstein, *Gaza*, Chapters 5, 6, 9, 13.

83. *Detailed Findings I*, paras. 278–303.

84. *Screams Before Silence*, YouTube (26 April 2024; <https://www.youtube.com/watch?v=zAr9oGSXgak>); Etan Nechin, "'It Doesn't Fit Some People's Narrative,'" *Haaretz* (28 April 2024; <https://www.haaretz.com/israel-news/2024-04-28/ty-article/-premium/sheryl->

The UN Commission of Inquiry “was not able to reach a definitive conclusion with regards to rape” on 7 October, while Human Rights Watch stated that it “did not document any cases of rape.” But Sandberg knows better. She’s certain that Hamas perpetrated mass rape.⁸⁵ Indeed, she’s so convinced that she produced an hour-long documentary allegedly chronicling it. Sandberg studied economics at Harvard and was ranked the top student in her department. She must surely be sensitized to evidentiary standards, and so must be aware that the case assembled by her possessed the probative value of gefilte fish. Neither the UN Commission nor HRW was persuaded by tearful and tremulous “eyewitness” accounts uncorroborated by *any* survivor testimony or *any* digital evidence or *any* forensic evidence. In a report published well after Sandberg released her documentary, Amnesty was still reporting that it “has neither obtained nor heard of images or video footage depicting acts of sexual violence,” and that, fully fourteen months after 7 October, it “has so far been able to speak to only one person who gave an account of surviving sexual violence and no direct witnesses.”⁸⁶ It doesn’t surprise that Israelis, these “eyewitnesses,” are convinced that they “saw” mass rape. (An Israeli investigative team would later reveal that one of Sandberg’s star witnesses was a serial liar.)⁸⁷ They are also convinced, and would, if need be, swear to and by it, that the Israel Defense Forces (IDF), in which each and all of them served, is “the most moral army in the world.” A September 2024 poll found that 83 percent of Israeli Jews awarded the IDF “high marks” for its “moral conduct” in war-time⁸⁸ even as a distinguished member of the UN Commission of Inquiry, after scrutinizing the evidence, concluded that the IDF was “one of the most

sandbergs-film-gives-voice-to-israeli-victims-of-hamas-sexual-violence/0000018f-2481-d502-a5bf-e4e7d8800000).

85. Sheryl Sandberg, “Something We Can All Agree On,” CNN (20 November 2023; <https://www.cnn.com/2023/11/20/opinions/sheryl-sandberg-something-we-can-all-agree-on/index.html>).

86. Amnesty, *op. cit.* Amnesty falls silent on the credibility of this alleged victim’s testimony.

87. Prem Thakker, “Did an Israeli Oct. 7 Witness Tell ‘Many Lies’ About Rape and Sexual Violence?,” *Zeteo* (10 April 2025; <https://zeteo.com/p/israeli-oct-7-witness-tell-lies>).

88. Yaron Kaplan, Lior Yochanani, and Tamar Herman, “September 2024 Poll: One year after the events of October 7 and the ‘Iron Swords’ War,” Israel Democracy Institute (7 October 2024; <https://idi.org.il/articles/56112>).

criminal armies in the world.”⁸⁹ If *raison d'état* recommended it, for the sake of *their* state, *their* army, the army in which each and all of them served and, individually and collectively, committed criminal acts attendant on maintaining the criminal occupation; for the sake of *their* people, the Chosen People, and the compounding familial bond forged by having all served and committed crimes together in the IDF—thus, they would be simultaneously defending their own integrity (if one dares employ this word in this context) as they defended the others’ immaculateness—for the sake of all this, they can be made, or will pretend, to believe any self-serving lie, the “self” being constituted by each in their individual and collective capacities. If not a nation of murderers, then a nation of war criminals: that is the root cause from which springs the relentless, delusional lies and self-deceptions of Israeli society—it is a defense mechanism not just in the psychological and moral but also the legal sense. The social solidarity made palpable in Israeli society is, at bottom, the *esprit de corps* of a death cult. As Prime Minister Benjamin Netanyahu wages in broad daylight an outright war of extermination, as the genocide descends from one diabolical nadir to the next, the corpses keep piling up and his popularity soars as Israelis relish every moment of it. He dishes out what they covet; and whenever the occasion warrants it, they intercede to deceive the world and themselves. So, yes, these Israeli “eyewitnesses” “saw” mass rape on 7 October. But why was the American-born and -bred Sandberg so persuaded—or, out of fidelity to The (Zionist) Cause, did she reckon rational proof beside the point?

TABLE 2 The UN Commission Found That Palestinian
Armed Groups Committed Multiple War Crimes
and Crimes Against Humanity

The war crime of intentionally directing attacks against civilians ^a
The war crime of murder ^b
The war crime of violence to life and person (cruel treatment and torture) ^c
The war crime of outrages upon personal dignity ^d
The war crime of rape and other forms of sexual violence ^e
The war crime of destroying or seizing the property of an adversary ^f

89. “Q&A on Gaza Report: UN investigators Navi Pillay and Chris Sidoti take questions,” UN Human Rights Council (19 June 2024; <https://www.youtube.com/watch?v=BHk916NRbMw&t=2120s>).

TABLE 2 (continued)

The war crime of taking hostages and inhumane treatment ^g
The war crime of using a civilian as a human shield ^b
The war crimes of torture, inhuman or cruel treatment, rape, and sexual violence ⁱ
Crimes against humanity, including torture, enforced disappearance, and other inhumane acts ^j

^a *Detailed Findings I*, para. 279.

^b Ibid., paras. 280–82.

^c Ibid., paras. 283–85. The Commission cited one instance of “cruel treatment” and one instance of “torture.”

^d Ibid., paras. 286–90.

^e Ibid., paras. 291–92. The Commission went on to accuse Palestinian armed groups specifically of the war crime not of rape but of “sexual violence.” To be sure, the language is (deliberately?) murky.

^f Ibid., paras. 293–94.

^g Ibid., paras. 295–98.

^h Ibid., para. 296. The Commission cited one instance of this war crime.

ⁱ *Report of the Independent International Commission*, paras. 111–12.

^j Ibid., para. 112.

Sandberg’s US audience was already primed as she “leaned in” on the primordial trope of the feral, dark-hued rapist. She reacts tearfully aghast as an Israeli first-responder shows her an iPhone photograph of nails driven into a female victim’s groin. But it turns out that the photographic evidence “is definitely of poor quality” so didn’t prove this.⁹⁰ One alleged victim recalled on camera that her Hamas assailant “was huffing and breathing heavily and he had a face like a monster, a beast.”⁹¹ Pity that King Kong wasn’t around to do a cameo. If there were an Oscar for Best Dramatic Performance by a Race-Supremacist Nation, Israel would win hands down every year. Just as D. W.

90. Rozovsky, “15 Witnesses.” See also Human Rights Watch, “*I Can’t Erase*,” p. 84. The HRW text appears to refer to the same photograph. It reported that “no blood [was] visible around the object” and that “two independent forensic pathologists reviewed the photograph but said it was impossible to make out what the object is from the image alone.”

91. This testimony was by ex-hostage Amit Soussana who was falsely touted as having been raped (see Section II A). In her new starring role as “the voice of the voiceless,” Soussana dutifully recycled stale hasbara talking points and praised Israel’s denial of food to Gaza (“we were happy”) as well as President-Elect Donald Trump’s demonic threat that there would be “all hell to pay” if the Israeli hostages weren’t released. Prinsley, *Jewish Chronicle*, op. cit. Soussana’s harrowing account of captivity notably differed from one venue to the next. For example, whereas she told the *Jewish Chronicle* of her successful, defiant resistance to the sexual assault, this was wholly absent from her original story.

Griffiths' *Birth of a Nation* incited lynchings in the former Confederacy as it glorified the Ku Klux Klan protecting virginal white womanhood from primal Black predators, so this triumph of Sandberg's will—"the most important work of my life"⁹²—galvanized American support for Israel's genocide in Gaza by manipulating our psychic demons. *Birth of a Nation* was the first motion picture screened in the White House at the behest of notoriously racist President Woodrow Wilson while, the stars being perfectly aligned, Sandberg's film was screened in President Joe Biden's White House. If this film marked her crowning achievement, then it must be said that Sandberg's was a squandered life. For better or worse, *Birth of a Nation* and *Triumph of the Will* were cinematic milestones, whereas Sandberg's magnum opus, *Screams Before Silence*, amounted or reduced to *Shlock Before Scheiss*. It is impossible to prove a negative, so it cannot be said with certainty that no rapes occurred on 7 October. In the innermost recesses of a remote subterranean cave, a Gazan ruffian might have perpetrated a rape. But it can be said with certainty that Hamas did not commit mass rape as a weapon of war on 7 October. Sandberg's either a colossal dupe—which, in light of her impressive academic credentials and professional pedigree, seems most unlikely—or she's a shameless and shameful liar. In either case, she was de facto an enabler of genocide. How could Sandberg rationalize this? She's a true-believer. There's the transcendent Cause, and there are the mundane facts: the fleeting truth of the latter must cede place to the ultimate Truth of the former. The fact that Hamas didn't commit mass rape be damned, *Am Yisrael Chai!*

92. Shayndi Raice and Anat Peled, "Sheryl Sandberg Is on a Mission to Make Sure Oct. 7 Horrors Aren't Forgotten," *Wall Street Journal* (7 February 2024; <https://www.wsj.com/world/middle-east/sheryl-sandberg-is-on-a-mission-to-make-sure-oct-7-horrors-arent-forgotten-ea56df47>).

Postscript

A) *Israeli Report*

In June 2025, the Dinah Project released the most authoritative Israeli report to date documenting sexual violence allegedly committed by Gazan “terrorists” on “October 7 and beyond.”⁹³ (Hereafter: the Dinah Report) Its central contention is that “ Hamas used sexual violence as a tactical weapon, as part of a genocidal scheme and with the goal of terrorizing and dehumanizing Israeli society.”⁹⁴ For the most part, it goes over ground already covered in prior Israeli publications and faithfully repeated abroad. It does, however, update the factual data and also posits an “innovative legal framework.”⁹⁵

The Dinah Report states that “seventeen witnesses” attested to “at least fifteen separate cases of sexual assaults of various types.” Of these, at least four (and possibly six) gruesome gang rapes allegedly occurred on 7 October.⁹⁶ Still, the recalcitrant fact remains that, fully twenty-one months after 7 October, seemingly *not one of the alleged rape victims on that fateful day had stepped forward publicly to testify*. (The Dinah Report states without further detail that one alleged victim of an “attempted” rape at the Nova music festival materialized in May 2025,⁹⁷ and that one returned hostage had already publicly testified that she fell victim to the “most extreme form of sexual assault.”⁹⁸) The Dinah Report further states that the motive behind such rapes was to demoralize the Israeli collectivity writ large. Hence, they were carried

93. Ruth Halperin-Kaddari et al., *A Quest for Justice: October 7 and beyond*, The Dinah Project (Jerusalem: 2025).

94. Ibid., p. 17; see also *ibid.*, pp. 14, 19, 59.

95. Ibid., p. 13.

96. Ibid., p. 36.

97. Ibid., pp. 15, 31n39.

98. Ibid., pp. 15, 31n40, 34. The Dinah Report is apparently referring to returned hostage Amit Soussana; she did not allege that she was raped but, rather, had fallen victim to another unnamed form of sexual assault. At one point, the Dinah Report vaguely hints that it possesses undisclosed “information about survivors of direct sexual assaults on October 7” (*ibid.*, p. 33). The Dinah Report classifies multiple alleged marriage proposals by Gazan guards to their respective captive hostages as “Threats of Rape”: “The intention to marry off female hostages, which was reported by six of the returned hostages, reveals a plan to engage in an act of raping and possibly impregnating them” (*ibid.*, pp. 31–32, 34). Perhaps, but—assuming it happened—couldn’t at least some of these guards have simply fallen in love? Even beastly King Kong pined for Ann Darrow.

out “in the open,”⁹⁹ and this in turn “increase[d] the likelihood that there . . . [were] direct witnesses to these crimes.”¹⁰⁰ The overwhelming majority of alleged sexual assaults on 7 October are said to have occurred in the environs of the open-air Nova festival. Nonetheless, according to the Dinah Report, even as the sexual violence was perpetrated in broad daylight, *the massive trove of digital evidence collected from 7 October (CCTV, dashcams, perpetrators’ body cams, traffic surveillance cameras) does not include a single image of rape.*¹⁰¹ The Dinah Report notes that witnesses “saw the attacks while in hiding.”¹⁰² So strange: addicted though millennials are to preserving on an iPhone every passing sight and sound—in particular, if it be incriminating—the ensconced witness-millennials at the music festival didn’t document even a millisecond of the unfolding sexual bestialities.

In light of the paucity of “traditional” evidence to sustain its rape allegation, it doesn’t surprise that the Dinah Report rolls out a new “non-traditional” evidentiary paradigm that relies less on “direct evidence” of rape (of which none exists) and instead leans on alleged eyewitnesses and “earwitnesses,” as well as on “circumstantial” evidence.¹⁰³ Of the latter, it highlights a photo said to “corroborate” that a metal object was inserted in a victim’s vagina.¹⁰⁴ But independent forensic pathologists have cast doubt on that “evidence.” The Dinah Report also homes in on this devastating piece of “evidence”:

[T]he IDF has also released a number of audio files of phone conversations intercepted by IDF intelligence. Among them was an astounding call between

99. “It is important to note that one of the hallmarks of CRSV [Conflict-Related Sexual Violence] is the public nature of the sexual attack, which is purposefully done out in the open in front of spectators in order to instill yet more fear and terror” (ibid., p. 36; see also ibid., p. 63).

100. Ibid., p. 64.

101. “[A] large body of digital materials . . . recorded the atrocities of the October 7 attack as they occurred in real time. . . . These include the following: forced partial or full nudity, sometimes accompanied by public display; sexual humiliation by various acts of violence (e.g. kicking, jumping over, stomping) directed at the genitalia or the buttocks; possible mutilation of the genitalia” (ibid., p. 41).

102. Ibid., p. 35; see also ibid., p. 65.

103. Ibid., pp. 16, 30, 56–73. To justify such a revision of the evidentiary threshold, the Dinah Report asserts that if sexual violence targets the moral resilience of an entire collectivity, this should be “reflected in evidentiary approaches” (ibid., pp. 16, 58, 62). But even as the assassination of a head of state reverberates broadly and deeply, would that be grounds to relax the evidentiary standard for convicting the alleged assassin?

104. Ibid., pp. 38n73, 39, 68.

a Hamas terrorist (an UNRWA worker) and his officer. Returning to Gaza after having participated in the attack, the terrorist reports about the “sabaya” that the terrorists brought with them back to Gaza, referring to her as a “pedigree mare.” The term “sabaya” means a female captive, and can also denote sexual slavery, as was used in the context of the sexual enslavement of Yazidi women and girls by the Islamic State terrorist organization in Iraq.¹⁰⁵

But even if, for argument’s sake, it is granted that every last word in this “astounding” account were true, how, pray tell, does it prove that Hamas committed sexual violence?

The Dinah Report states that prior UN investigations confirmed its own findings.¹⁰⁶ It observes that the evidence collected by the Patten mission was sufficient to conclude that Hamas used sexual violence as a tactic of war—even as the Patten mission itself explicitly “could *not* ascertain” this allegation.¹⁰⁷ It further states that the UN Commission of Inquiry headed by Navi Pillay found that Hamas had committed widespread sexual violence on 7 October. It omits, however, that the UN Commission explicitly stated that it “was *not* able to reach a definitive conclusion with regards to rape” committed on 7 October.¹⁰⁸ The Dinah Report affirms that the UN Commission of Inquiry upheld “stringent criteria for verified data” and ranked among “the highest authoritative bodies” in the human rights field.¹⁰⁹ It perplexes, then, why Israel has persistently blocked an investigation by the UN Commission and would only cooperate with Patten. The Dinah Report recommends that Patten undertake a “follow-up” mission to Israel.¹¹⁰ But if the Patten mission is, by its own admission, not equipped to carry out a full-fledged investigation; and if, by the Dinah Report’s own reckoning, the UN Commission is amply qualified to carry out an objective, authoritative inquiry, then the tantalizing questions remain: why doesn’t this quasi-official Israeli report urge the UN Commission to carry out the new investigation and why is it so singularly wedded to Ms. Patten?

105. Ibid., p. 41.

106. Ibid., p. 25.

107. Ibid., p. 27; emphasis added.

108. Emphasis added. The Dinah Report also takes notice of the Human Rights Watch report on 7 October (ibid., p. 20). But HRW also “did not document any cases of rape.”

109. Ibid., p. 26.

110. Ibid., p. 75.

Beyond proposing a new evidentiary paradigm, the Dinah Report announces a novel paradigm of culpability. It posits that, if a structured fighting force is inculcated with a dehumanizing ideology and is engaged in genocide, then every single member should be held culpable for every crime committed by any member of the group. Thus, each and every member is complicit in and therefore individually guilty of committing genocide while if, say, just one single member committed rape, then, each and every member, having participated in the fighting force that enabled the rape, should be personally held accountable as a rapist.¹¹¹

Memo to Israel's Dinah Project: *Be careful what you wish for.*

B) UN Report

In July 2025, UN Secretary-General António Guterres released his office's annual report, *Conflict-Related Sexual Violence*.¹¹² (Hereafter: the UN Report) It was "focused on countries for which information verified by the United Nations exists"¹¹³ and divided into two parts: a synoptical description of sexual violence perpetrated by various State and non-State actors, and the all-important *Annex* that comprised a "List of Parties Credibly Suspected of Committing or Being Responsible for Patterns of Rape or Other Forms of Sexual Violence in Situations of Armed Conflict." The section devoted to "Israel and the State of Palestine" more or less accurately summarized the allegations contained in UN reports on sexual violence perpetrated by Hamas and Israel.¹¹⁴ But then, something strange happened on the way to the *Annex*: Hamas was but Israel was *not* listed as a perpetrator of sexual

111. "When individuals join a coordinated, ideologically-driven assault aimed at destruction and dehumanization, they bear responsibility for the full range of atrocities committed as part of that assault—even if they did not personally commit each specific act or were not aware of its commission by a co-perpetrator"; "It is legally justified to hold each individual participant accountable not only for their own actions but also for the offenses committed by others within the collective group to which they belonged"; "When crimes are committed as part of a coordinated mass assault with the explicit goal of genocide, it must be recognized that knowingly joining the attack is in and of itself sufficient to impose criminal liability on all participants for all crimes committed within its framework that align with the objectives of the attack" (ibid., pp. 16, 48, 54; see also ibid., pp. 44, 52–53).

112. Report of the Secretary-General, *Conflict-Related Sexual Violence* (15 July 2025; S/2025/389). Fifteen previous reports had been issued.

113. Ibid., paras. 4, 8.

114. Ibid., paras. 35–37.

violence. How could this be? The evidence adduced in prior UN reports documenting sexual violence committed by Israel far exceeded—both in quantity and quality—the evidence against Hamas. The UN Report acknowledged that, although the Patten mission “found reasonable grounds to believe that sexual violence occurred” at the hands of Hamas-led forces “including rape and gang rape,” still, the mission could at best point to “circumstantial” evidence that “may be indicative of some forms of sexual violence.”¹¹⁵ Indeed, the Patten mission conceded that, even with Israel’s full cooperation, it came up with “no digital evidence specifically depicting acts of sexual violence.” The new UN Report correctly observed that the Independent International Commission of Inquiry headed by Navi Pillay “found reasonable grounds to conclude that sexual violence was committed on 7 October,”¹¹⁶ but it left out that this Commission of Inquiry “was not able” to confirm the Patten mission’s rape allegation. On the ledger’s other side, the UN Report stated that “the United Nations verified 12 incidents of conflict-related sexual violence perpetrated by Israeli armed and security forces. . . , including one rape, one attempted rape; three incidents of squeezing or pulling detainees’ genitals; and seven incidents of kicking, or beatings to genitals,” and that “In addition, the Commission of Inquiry documented at least two cases of rape and four incidents of genital beating and kicking. . . . The Commission of Inquiry also received credible information of detainees subjected to burns to the anus.”¹¹⁷ Further, whereas the Patten mission unearthed “no digital evidence specifically depicting acts of sexual violence” perpetrated by Hamas, the UN Report pointed to the “digital evidence” of Gazan victims of sexual violence that was “filmed or photographed by Israeli armed and security forces.”¹¹⁸ The plot thickens. The UN Report was based on “information verified by the United Nations.” But why then was Hamas included in and Israel excluded from the *Annex* if the evidence adduced by Secretary-General Guterres on *both* sides was based on “information verified by the United Nations” and, to boot, digital evidence of sexual violence

115. Ibid., para. 35.

116. Ibid. The substance (or lack thereof) of the Commission of Inquiry’s evidence against Hamas was already parsed in the body of this chapter. This Postscript accepts, for argument’s sake, the Commission’s findings.

117. Ibid., para. 36.

118. Ibid.

perpetrated against Gazans came from Israeli armed and security forces themselves?

A seeming answer to this conundrum appeared in an *Appendix* slipped into the very last page of the UN Report. It stated that, because of Israel's "consistent denial of access for United Nations monitors. . . , it has been challenging to make definitive determinations regarding patterns, trends and systematicity of sexual violence." The secretary-general accordingly limited himself to putting Israel "on notice for potential listing in the next reporting period." This response perplexed on multiple counts.¹¹⁹ *First*, only a court of law can make "definitive determinations." The relevant standard of a UN commission of inquiry is "reasonable grounds to conclude." The UN Commission headed by Pillay did in fact find "reasonable grounds to conclude" that Palestinian armed groups *and* Israel committed sexual violence. *Second*, the UN Report as a whole was based on "information verified by the United Nations." The *Appendix* explicitly stated that the "patterns of sexual violence" of which Israel stood accused "have been consistently documented by the United Nations." Didn't the findings against Israel then meet the UN Report's evidentiary threshold? *Third*, if the Commission of Inquiry's findings against Israel were discounted because Israel denied it access, then the allegations it leveled against Hamas must also be discounted: if the Commission couldn't confirm in situ sexual violence perpetrated by Israel in Gaza, then it also couldn't confirm in situ sexual violence perpetrated by Hamas in Israel; the Commission's remote mode of inquiry predicated *all* its conclusions; either Israel and Hamas were both credibly suspected by the Commission of committing sexual violence or neither was—the respective findings stood or fell together. It might be contended that the secretary-general could still have leaned on the Patten mission. But the mission itself stated that it was "neither intended nor mandated to be investigative in nature." In other words, it was not just incapable of making "definitive determinations," it was constitutionally incapable of making *any* determinations. The bottom line is: Guterres's clarification clarified nothing. The answer to the mystery of Israel's omission from the *Annex* must be sought elsewhere.

On 24 October 2023, Secretary-General Guterres delivered an address to the Security Council in which he "condemned unequivocally the horrifying and unprecedented 7 October acts of terror by Hamas in Israel." However, he went on to say that "It is important to also recognize the attacks by Hamas

119. Ibid., p. 34.

did not happen in a vacuum. The Palestinian people have been subjected to 56 years of suffocating occupation.”¹²⁰ Israel recoiled in a fit of rage. Guterres made it known privately that he was a marked man. Meanwhile, Israel not only, as per usual, refused entry to the UN Commission of Inquiry headed by Navi Pillay, but was also actively “obstructing its investigation.” Still, the centerpiece of Israel’s global hasbara campaign was Hamas’s alleged use of rape as a “weapon of war” and it coveted the UN’s imprimatur in this disinformation gambit. It handpicked self-important nonentity Pramila Patten to do its bidding and Guterres, fearful of being unceremoniously driven from office, gave the green light to her mission. Once Patten dutifully performed her appointed role by finding “reasonable grounds to conclude” that Hamas committed “rape and gang rape,” Israel next fixed its sights on getting Hamas listed in the *Annex* to the secretary-general’s annual report on sexual violence. The Dinah Project exhorted “the UN Secretary-General to include Hamas on the black-list of entities responsible for the strategic use of sexual violence as a weapon of war.”¹²¹ But if Israel was listed alongside Hamas, it would have canceled the victory. No doubt Guterres came under terrific pressure. And yet again, he capitulated. Was it cowardice, careerism—or maybe blackmail? It’s anyone’s guess. What’s certain is that by omitting Israel from the *Annex*, Guterres disgraced himself and his office. He inflicted yet another blow on the UN by rewarding Israel’s obstructionism: wasn’t the take-away in Tel Aviv that it could get its way even as it sabotaged the UN’s system of accountability? The members of the Commission of Inquiry headed by Pillay couldn’t have been pleased. In a slap in the face and to save his own hide, Guterres sleazily discredited their findings on Israel while appropriating their findings on Hamas. His shameful report was officially released on 15 July 2025. The day before, on 14 July 2025, it was announced that all three members of the Commission of Inquiry had “suddenly” submitted their resignations.¹²²

But beyond all else, Guterres betrayed, in its fateful hour and death agony, Gaza. He might not be the first and most certainly won’t be the last but, all the

120. “Secretary-General’s Remarks to the Security Council—On the Middle East” (24 October 2023; <https://www.un.org/sg/en/content/sg/speeches/2023-10-24/secretary-generals-remarks-the-security-council-the-middle-east%C2%A0>).

121. Ruth Halperin-Kaddari et al., *A Quest for Justice: October 7 and beyond*, The Dinah Project (Jerusalem: 2025), p. 78.

122. “All Three Heads of UN Anti-Israel Inquiry Suddenly Resign” (14 July 2025; <https://hrvoices.org/article/all-3-heads-of-un-anti-israel-inquiry-suddenly-resign>).

same, among those—albeit diminishing few—who still believe in Truth and Justice, he now carries and will henceforth carry forever the stench of a Judas.

C) *Amnesty Report*

In December 2025, Amnesty International published a comprehensive report detailing crimes allegedly committed by “Palestinian armed groups in Israel and Gaza.”¹²³ (Hereafter: the Amnesty Report) It was saturated—to the point of prurient obsession—with accounts of sexual violence perpetrated by Palestinian militants on 7 October 2023 and while holding Israelis hostage. This subject was pursued with such ebullition of purpose that it might have been mistook for the consummate transgression, the crime of crimes—genocide—itself.¹²⁴ A reader of the Amnesty Report would be excused for concluding, *prima facie*, that Amnesty had amassed a superfluity of evidence documenting sexual violence by Palestinian militants. In fact, Amnesty adduced *zero* material evidence to sustain its colorful presentation. But what about purported survivor and eyewitness testimony? A large proportion of Israel’s Jewish population supported the Gaza genocide, while persuading the world that Palestinian militants perpetrated mass sexual violence—in particular, rape—on 7 October was quickly elevated into a national project. The allegations by “survivors” and others thus carried little probative value absent corroborating material evidence. The Amnesty Report embraced a “survivor-centered approach to documenting sexual violence.”¹²⁵ But wasn’t this putting the cart before the horse? The mandate of Amnesty was investigative

123. Amnesty International, *Targeting Civilians: Murder, hostage-taking and other violations by Palestinian armed groups in Israel and Gaza* (December 2025; <https://www.amnesty.org/en/documents/mde15/0282/2025/en>).

124. The Amnesty Report included a chapter devoted to “Physical, Sexual and Psychological Abuse” (with subsections on “Sexual Violence” and “Physical and Sexual Violence against Hostages in Captivity”), as well as a separate, discrete section devoted to “Investigating Sexual Violence” and yet another section delineating “Additional Challenges to Investigating Sexual Violence.” It reported that it “dedicated significant time, resources and expertise” to investigating sexual violence (Amnesty Report, p. 27). It sensationally accused Palestinian militants of having “committed” the crime of “Rape, Sexual Slavery, Enforced Prostitution, Forced Pregnancy, Enforced Sterilization, or Any Other Form of Sexual Violence of Comparable Gravity” (*ibid.*, pp. 16–18, 151–52). A search of the document entering “sexual violence,” “sexual assault,” “rape,” or “gender-based violence” yields a whopping 372 results.

125. *Ibid.*, pp. 27, 169.

not stenographic: to ascertain whether this or that self-proclaimed survivor actually *was* a survivor.

On *the* crucial point in contention, the Amnesty Report “found no evidence that Hamas or other Palestinian armed groups gave orders to their fighters to commit acts of sexual violence during the attacks” on 7 October.¹²⁶ Still, the Amnesty Report also found that:

- (1) Whereas it couldn’t be “definitively” established that Palestinian militants perpetrated rape on 7 October, it was “likely” that they did.¹²⁷
- (2) Whereas its “scope and scale” couldn’t be established, Palestinian militants did perpetrate sexual violence on 7 October and against hostages in captivity.¹²⁸

What evidence did Amnesty adduce in support of these two findings?

(A) 7 October—Rape

Human rights investigations by the UN Commission of Inquiry and Human Rights Watch did not find definitive evidence that Palestinian militants committed rape on 7 October. Amnesty concurred on this point. But the Amnesty Report went on to enter the caveat that Palestinian militants “likely” did commit rape. What was the basis for this aberrant finding? The Amnesty Report adduced two pieces of new “evidence” on which it grounded its conclusion:¹²⁹

- An Israeli male stepped forward in mid-2024 declaring that he had been gang-raped on 7 October and then “miraculously” escaped.¹³⁰ Until then,

126. Ibid., pp. 14, 16, 118, 124.

127. Ibid., pp. 18–19, 152.

128. Ibid., pp. 8, 14, 16, 18, 118, 124, 152, 159.

129. Ibid., pp. 18–19, 152. The Amnesty Report stated that “UN entities also reported finding evidence of rape during the attack.” In fact, only one UN entity, the Patten Commission, made this “finding,” but the Patten Commission was explicitly *not* an investigative body (see *ibid.*, pp. 164–65).

130. Ibid., pp. 14, 124, 126. “First Survivor of ‘Nova’ Massacre Opens Up About Rape by Hamas Terrorists,” *Jerusalem Post* (23 July 2024, “miraculously”). The Israeli newspaper *Haaretz*, which has otherwise stood in the vanguard of efforts to document Hamas’s alleged mass rape on 7 October, published a surprisingly perfunctory story on this allegation. Liza

no survivor of 7 October had publicly alleged being raped. Amnesty spoke to him as well as his lawyer and reviewed his medical records. He apparently met with a doctor twice, first expressing anxiety about his attendance at the Nova music festival and later alleging that he had been “subjected to sexual assault” (but not explicitly rape). Accompanied by a lawyer, he next met with the police.¹³¹ It might be queried why this person would level such an allegation were it not true. Alas, Amnesty omitted a crucial detail that had been widely reported in Israel: the alleged survivor was suing (along with others) the State to the tune of \$150 million for negligence. The case was a lawyer’s wet dream: if he was the only one publicly alleging to have been raped on 7 October, then the State couldn’t undercut his rape allegation without simultaneously undercutting its own propaganda campaign demonizing Hamas as having weaponized rape. The Amnesty Report provided precious few details that were not already in the public record. Even though it was at pains to precisely “geo-locate” and “chrono-locate” every incident chronicled in its pages,¹³² the Amnesty Report fell deafeningly silent on exactly where and when this alleged gang-rape unfolded. What is certain, however, is that *Israeli officialdom wasn’t buying it*. The comprehensive Dinah Project report, which was the last Israeli word on the subject of sexual violence on 7 October, and which was published nearly a year after the alleged survivor stepped forward, made no mention whatsoever of this alleged rape.¹³³ Indeed, even as multiple national and international inquiries had attempted to investigate or substantiate claims of rape on 7 October, this allegation fell under the radar until the Amnesty Report resurrected it.

- An Israeli “therapist” informed Amnesty that she was counseling three women who were allegedly raped.¹³⁴ Not just raped, however, but raped

Rozovsky, “Nova Festival Survivor Recounts How Hamas Terrorists Raped Him on October 7,” *Haaretz* (24 July 2024).

131. Amnesty Report, pp. 126–27. Amnesty explicitly differentiated between the generic “sexual assault” versus the subcategory of “rape” (see also *ibid.*, p. 152).

132. The Amnesty Report also stated that Amnesty had “scrutinized all of the videos and photographs it collected for signs of sexual violence. . . . It considered the location and time at which images of the body were recorded” (*ibid.*, p. 28).

133. The Dinah Project reported the testimony of only one “female survivor” of an “attempted rape” on 7 October. Halperin-Kaddari et al., *A Quest for Justice*, pp. 15, 31.

134. Amnesty Report, pp. 14–15, 124, 126–27.

“by multiple perpetrators.” Imagine that: each and all of the three victims treated by her were gang-raped! Coincidence—or did the shingle in front of her practice read “Therapist, Specializing in Gang-Rape”? If Amnesty found the testimony of this “therapist” a wee bit bizarre, it didn’t let on. The “therapist” then went on to allege that she was “providing treatment advice to therapists treating five other individuals who reported surviving sexual assault. . . , at least three of whom said they were raped.” The Amnesty Report didn’t adduce a jot of corroborative evidence; just the word of this gang-rape “therapist.” The Amnesty Report then piled on random allegations of rape and gang-rape by other “therapists” or reported in the media.¹³⁵ It conjured a veritable cornucopia of rape and gang-rape on 7 October that put Sodom and Gomorrah in the shade. But all without evidence beyond what amounted to politically motivated gossip. “Nothing can come of nothing.” Until this report. If Amnesty credited the alleged male rape victim and the gang-rape maven, that’s apparently only because they agreed to cooperate with it.¹³⁶

The Amnesty Report stated that Israel had accumulated a “vast collection of video footage and other digital evidence”—CCTV, dashcams, bodycams, iPhones, etc.—from 7 October.¹³⁷ But this “vast collection” did not contain one single image of rape.¹³⁸ The preponderance of alleged rapes are said to have occurred at the Nova festival and its environs.¹³⁹ The Amnesty Report stated that it “verified 40 videos” that captured “killings and their aftermath” from that location.¹⁴⁰ But the Nova archive didn’t contain one single image of rape. The Amnesty Report stated that a portion of the digital evidence at the Nova festival came from attendees; for example, “[v]ideos recorded by the attendees . . . show armed men chasing and shooting directly at people

135. Ibid., pp. 15, 124.

136. The Amnesty Report noted that “[m]ost people who described surviving or witnessing sexual violence to media outlets, medical professionals, therapists, lawyers or others . . . declined to speak to” Amnesty. All told, only 17 survivors of the 7 October attack agreed to be interviewed by Amnesty in a report that ran to 173 pages. Ibid., pp. 9, 29, 124.

137. Ibid., p. 156.

138. Ibid., pp. 29, 129.

139. Ibid., pp. 15, 127–29.

140. Ibid., pp. 11, 13, 73.

attempting to escape the site.”¹⁴¹ Israel has asserted that Hamas purposely perpetrated the rapes out in the open to crush the Israeli national spirit, and that eyewitnesses viewed the rapes while secreted away. But not one of the twenty-somethings at Nova—who, per that generation, would have reflexively reached for an iPhone to immortalize their every movement and to record any potential crime scene—filmed the gang-rapes unfolding in abundance and abandon all around them out in the open space while they watched in hiding. The Amnesty Report endeavored to explain away these inconvenient facts by observing that the extant digital evidence “only captures a small fraction of the violence” on 7 October.¹⁴² But even granting this, anomalies still arise. The Amnesty Report leaned heavily on digital evidence as the basis of its findings on 7 October.¹⁴³ It first reconstructed each and every one of the atrocities at the various locales by geo-locating and chrono-locating the digital evidence.¹⁴⁴ But when it came to the alleged rapes, digital evidence suddenly became dispensable. The Amnesty Report further extenuated that the rapists may have been “less inclined to film such acts.”¹⁴⁵ But if the point of the rapes was to shatter the Israeli esprit de corps, then why wouldn’t these rapists record and publish their foul deeds?¹⁴⁶ The Amnesty Report also made the idiotic argument that “not all of the images were made publicly available.”¹⁴⁷ As if Israel would withhold images vindicating the allegation it was most invested in proving! Surely the absence of one single corroboratory frame among this “vast collection” of digital material was compelling evidence that incidents of rape on 7 October—if any occurred—couldn’t have been widespread. Nonetheless, the Amnesty Report pleaded agnosticism on the “scope or scale of the sexual violence” committed on 7 October.¹⁴⁸ But the absence of a jot of evidence is also evidence: if Israel was unable to produce a single frame of rape from the “vast collection” of video it gathered, *shouldn’t*

141. Ibid., pp. 73–74, 108; for examples of survivors elsewhere who videotaped the 7 October attacks in real time, see *ibid.*, pp. 69, 81.

142. Ibid., p. 29.

143. Ibid., pp. 24–25.

144. Ibid., pp. 46–96 *passim*.

145. Ibid., p. 29.

146. The Amnesty Report stated that “some fighters filmed their attacks, apparently as a means of propaganda, intimidation and glorification of violence” (*ibid.*, p. 48).

147. Ibid., p. 29 (see also p. 157).

148. Ibid., p. 14.

Amnesty have found “reasonable grounds to conclude” that rape of more than exiguous “scope and scale” did not occur on 7 October? The Amnesty Report additionally noted the dearth of forensic evidence of rape. It traced back this lacuna to the lack of available experts to process atrocities of the magnitude of 7 October, protracted fighting at the crime scene, the immolation of victim bodies, and the haste to dispose of the bodies for timely burial.¹⁴⁹ All the same, the Amnesty Report noted that forensic experts *did* do “some crime scene investigation” at Nova¹⁵⁰—and found no forensic evidence of rape. The Amnesty Report then stated in mitigation that “even where forensic evidence is collected in accordance with the highest standards, in peacetime contexts, sexual assaults cannot always be detected.”¹⁵¹ Perhaps, but so what? If forensic evidence is not “always” dispositive, it doesn’t follow that it should be discounted; if the nonexistence of such evidence didn’t disprove claims of rape, it surely did undermine them. Or did Amnesty believe that the absence of any digital or forensic evidence whatsoever wasn’t a bar to finding that rape “likely” happened—that a double negative is a positive? The more Amnesty ran defense for Israeli hasbara, the more it made mockery of its investigative mandate.

If Amnesty was only able to adduce two new pieces of highly dubious “survivor” evidence; and if it was unable to produce any material evidence of rape; and if the absence of any material evidence would certainly constitute “reasonable grounds to conclude” that rape did not occur on 7 October—then, how did it come to pass that Amnesty found that rape “likely” occurred? Of course, there might have been one or two incidents of rape on 7 October—it’s impossible to prove that no rape took place. But, however deplorable that would be, still, on the evidence adduced in the Amnesty Report and in earlier inquiries, there’s no rational basis to conclude that rape “likely” occurred. If Amnesty asserted otherwise, this was almost certainly an attempt to appease and preempt by affecting “balance”: once it had determined that Hamas didn’t weaponize rape on 7 October, it threw a predictably incensed Israel a bone. So as not to incur the offended party’s wrath, but at the steep price of betraying its *raison d’être*, Amnesty asserted that it “did not consider that it had collected enough evidence to definitively conclude that rape” was perpetrated on 7

149. Ibid., pp. 157–60.

150. Ibid., p. 159.

151. Ibid., p. 29.

October, but then tergiversated by slipping in the seemingly anodyne adverb that rape had “likely” occurred.

*(B) 7 October—Other Sexual Violence*¹⁵²

The Amnesty Report stated that, in addition to rape, it had “documented evidence that Palestinian assailants committed . . . sexual assault and other forms of sexual violence” on 7 October.¹⁵³ It conceded that “in most cases” the purported photographic evidence “did not have evidential value” or was “inconclusive,”¹⁵⁴ that forensic evidence was “not available,”¹⁵⁵ and that none of the alleged survivors of sexual violence (except the one alleged male rape victim) had agreed to meet with Amnesty.¹⁵⁶ Of what, then, did this “documented evidence” consist? Eyewitness and hearsay testimony.¹⁵⁷ The Amnesty Report did not enter the screamingly obvious caveat that if Israeli Jewish society overwhelmingly supported the genocide unfolding in Gaza, and if proving that Hamas weaponized rape on 7 October was effectively a national project, then hearsay and eyewitness testimony should be treated with a lot more than ordinary circumspection and, in and of itself, couldn’t be dispositive. But there’s more. The Amnesty Report (1) stretched the category of sexual violence beyond the breaking point, (2) repeated the scant problematic evidence it adduced to the point of ad nauseam, such that it fostered the illusion of a mountain of evidence when there wasn’t even a molehill, and (3) cited testimony that tested the limits of credulity:

(1) Sexual violence? The Amnesty Report cited an alleged incident of groping that, if it happened, would clearly fit under the rubric of sexual violence.¹⁵⁸ But then it also squeezed into this category these alleged incidents:

152. The Amnesty Report included in this category sexual violence perpetrated against Israelis “en route to captivity” (ibid., pp. 130–31).

153. Ibid., pp. 8, 14, 16, 18, 118, 151.

154. Ibid., pp. 28–29, 128–29.

155. Ibid., pp. 29–30.

156. Ibid., pp. 15, 29, 124.

157. Ibid., pp. 27–28.

158. Ibid., pp. 14, 124, 126.

- “Mia Schem . . . recounted in a recorded account that an assailant touched her upper body, prompting her to scream, after she escaped a burning car while fleeing the attack on the Nova festival.”¹⁵⁹ Pity the poor bloke who taps a woman’s shoulder for directions.
- “The apparent partial undressing of the body of Joshua Mollel . . . may also constitute sexual violence.” Amnesty earlier reported that this undressing had likely occurred “after his death.”¹⁶⁰ Desecration, yes, but is undressing a corpse sexual *violence*?
- “The dead body of a woman hostage was subjected to abuse that may amount to sexual or other gender-based violence.”¹⁶¹ How can sexual violence be perpetrated on a nonsentient object?

(2) **Repetition ad nauseam.** The Amnesty Report recycled on seven disconnected pages the story of Shani Louk’s half-naked corpse being paraded and abused in Gaza “that may amount to sexual or other gender-based violence.”¹⁶² It recycled the allegations by Ilana Gritzewsky of “sexual violence” on four different pages.¹⁶³

(3) **Testing credulity.** “A volunteer doctor . . . described one case where she felt, through the body bag, something that she thought warranted further exploration and opened the body bag to find what she described as injuries to the victim’s pelvic area. Believing this to be an indication of sexual violence, she said she was able to call ‘a regular photographer who was walking around, taking pictures for identification,’ who ‘photographed the body.’”¹⁶⁴ It is not reported whether this doctor with preternatural tactile intuition also levitated the body bag.

The Amnesty Report stated that “it could not reach conclusions on the scope or scale of the sexual violence” on 7 October and lamented that material

159. Ibid., p. 126.

160. Ibid., pp. 124, 128.

161. Ibid., p. 130 (see also p. 131).

162. Ibid., pp. 15, 24, 77, 114, 130, 131, 139–40.

163. Ibid., pp. 14, 126, 131, 135.

164. Ibid., p. 160. The Amnesty Report is replete with miraculous occurrences. One survivor credited by the Report enumerated fully five “miracles” that he experienced on 7 October (ibid., pp. 54–55).

“evidence that could have informed an investigation into sexual violence during the attacks is not available.”¹⁶⁵ The Amnesty Report did not hazard the possibility that, if material evidence of sexual violence was unavailable, this perhaps indicated that the “scope or scale” of sexual violence on 7 October barely registered.

(C) Hostages

The Amnesty Report “concluded that members of Hamas or its military wing, the Al-Qassam Brigades, committed sexual violence against hostages in captivity, based on credible indications of their responsibility in several cases.”¹⁶⁶ It is unclear exactly what these “credible indications” consisted of. None of the returned hostages agreed to be interviewed by Amnesty.¹⁶⁷ Instead, the Amnesty Report dedicated many pages to cutting and pasting Israeli media accounts that quoted harrowing testimonies of returning hostages or secondhand testimonies of hostages who heard testimony from other hostages.¹⁶⁸ The media in Israel notoriously functioned as a State mouthpiece during the genocide, while returning hostages, understandably furious at their prolonged captivity, were hyper-charged to enlist in the national project of demonizing Hamas for perpetrating sexual violence. The incidents may have happened; they may not have. But why any of this interested testimony published in what amounted to State propaganda organs could, in and of itself, be persuasive, is the mystery’s mystery. Here’s a representative sample of Amnesty’s “credible indications” of “sexual violence” perpetrated by Hamas:

Keith Siegel, who was abducted from Kfar Azza with his wife, Aviva Siegel, said in a media report that he was forced to watch one woman hostage being tortured and saw other women hostages being sexually assaulted. He described being forcibly shaved on his head and pubic area, which he found humiliating and believed was done solely for his captors’ entertainment or to degrade him. This treatment constitutes a form of sexual violence. Aviva, who was initially held with Keith, also described someone they were held with in Gaza telling her she was subjected to sexual assault, and has referred publicly

165. Ibid., pp. 8, 29–30, 163.

166. Ibid., pp. 15, 18, 118, 137, 152.

167. Ibid., p. 134.

168. Ibid., pp. 132–37.

to Keith being subjected to the forcible shaving of his whole body. Keith and Aviva Siegel were held by Hamas.¹⁶⁹

A man alleges that he witnessed women hostages being sexually assaulted. His wife echoes his testimony that he was forcibly shaven and repeats a story of sexual violence that she heard from another hostage. Distilling the essence of these “credible indications,” it reduced to: he said, his wife said that he said and heard someone else say. Case closed. As in an infamous precedent, Amnesty “authorizes judgment on *ex parte* evidence, by affidavit, without the sanction of cross-examination.”¹⁷⁰ This evidentiary swindle served as a transparent cover for a transcendent affront to Truth and Justice.

If Amnesty International grossly misrepresented the “scale or scope” of sexual violence perpetrated by Palestinian militants on and after 7 October, this dereliction most likely traced back to a triad of factors: the “wokeness” agenda prioritizing a “survivor-centered” approach that presumed precisely what needed to be proven—whether the self-proclaimed survivor of sexual violence actually was a survivor; the liberal-secular loathing of militant Islamic religiosity that has frequently tainted investigations by major human rights organizations such as Amnesty and Human Rights Watch;¹⁷¹ a species of political opportunism in which the indictment of Israel is tit-for-tat “balanced” by the indictment of Hamas, even as Israel is incomparably the more culpable party. All these factors were probably at play in Amnesty’s report.¹⁷² After publishing in December 2024 an exceptional report documenting

169. Ibid., p. 135.

170. American abolitionist Charles Sumner denouncing the protocols in the 1850 Fugitive Slave Act for repairing runaway slaves.

171. Norman G. Finkelstein, *Knowing Too Much: Why the American Jewish romance with Israel is coming to an end* (New York: 2012), Chapter 6 (Human Rights Watch); Norman G. Finkelstein, *Gaza: An inquest into its martyrdom* (Oakland: 2018), Chapter 12 (Amnesty International).

172. A comprehensive analysis of this deeply flawed report is beyond the scope of this postscript.

Israel's genocide in Gaza,¹⁷³ a year later Amnesty facilitated the ongoing genocide by allowing itself to be conscripted in Israel's sexual violence hoax.

173. Amnesty International, *"You Feel Like You Are Subhuman": Israel's genocide against Palestinians in Gaza* (December 2024; <https://www.amnesty.org/en/documents/mde15/8668/2024/en>).



FIGURE 2. UN Independent International Commission of Inquiry (from left: Chris Sidoti, Navi Pillay, Miloon Kothari). © UN Photo/Jean Marc Ferré.

Laws of War or Logic of Genocide?

If names be not correct, language is not in accordance with the truth of things
—Confucius

Introduction

An Independent International Commission of Inquiry chaired by former UN high commissioner for human rights Navi Pillay released a triptych of reports analyzing attacks that occurred on 7 October 2023 and thereafter.¹ The reports contained a wealth of factual information but were also marred by defects and distortions that uniformly redounded to Israel's benefit. The upshot was that the Commission's indictment of Palestinian armed groups went beyond what the evidence demonstrated² while its indictment of Israel fell short of what the evidence demonstrated.

1. *Detailed Findings on Attacks Carried Out on and After 7 October 2023 in Israel* (10 June 2024, A/HRC/56/CRP.3: <https://www.ohchr.org/sites/default/files/documents/hrbodies/hrcouncil/sessions-regular/session56/a-hrc-56-crp-3.pdf>; hereafter *Detailed Findings I*). *Detailed Findings on the Military Operations and Attacks Carried Out in the Occupied Palestinian Territory from 7 October to 31 December 2023* (10 June 2024, A/HRC/56/CRP.4: <https://www.ohchr.org/sites/default/files/documents/hrbodies/hrcouncil/sessions-regular/session56/a-hrc-56-crp-4.pdf>; hereafter *Detailed Findings II*). *Report of the Independent International Commission of Inquiry on the Occupied Palestinian Territory, Including East Jerusalem, and Israel* (11 September 2024, A/79/232: <https://documents.un.org/doc/undoc/gen/n24/262/79/pdf/n2426279.pdf>; hereafter *Report of the Independent International Commission*). The *Report of the Independent International Commission* focused on treatment of detainees and hostages and attacks on medical facilities and personnel.

2. See Chapter 1. The demonization of Palestinian armed groups at times bordered on the comical. After reporting that released Israeli hostages had suffered from “uniformly poor nutritional status,” and then acknowledging that the “siege imposed by Israel on the Gaza Strip has

The Commission devoted a large chunk of space to the initial stage of the “Israeli counter-offensive.”³ If it had strictly recorded breaches of international humanitarian and human rights law committed by Israel in the course of its “counter-offensive,” that would surely have been a valid exercise. But that wasn’t the Commission’s *modus operandi*. On the contrary, it assessed the *military efficacy* of the Israeli counteroffensive. The Israel Defense Forces (IDF) is chastised for its “insufficient,” “slow,” “inadequate,” “disorganized” performance.⁴ Was it in the Commission’s terms of reference or, for that matter, competence to pass such judgments? Further, it is reported that “Israeli Security Forces [ISF] based in outposts . . . were forced to defend their positions and engage in battles in the military bases which were also attacked and were not able to deploy to the civilian villages to provide assistance,” and that the ISF “failed to understand the full tactical situation on the ground, due to the militants rendering surveillance equipment ineffective.”⁵ What is the point of such aperçus—do the dastardly Palestinian armed groups now stand condemned for having inconvenienced the IDF by attacking military bases and disabling surveillance technology? Still, in itself this might be brushed aside as a bizarre curiosity in a human rights report. It gets worse, however. In breach of its mandate of strict political neutrality, the Commission ventriloquized Israel’s narrative of the “counter-offensive.” It identified with the manhunt of Palestinian militants and recycled tales of the bold initiatives, moral dilemmas, and derring-do of ISF on 7 October.⁶ It is breathlessly recounted that a “helicopter was shot down by militants . . . while deploying troops,” but “[a]ccording to reports and footage viewed by the Commission, all troops in the helicopter managed to escape”; that “Israeli police helicopters . . . faced challenges in coordinating their operations with the Israeli Air Force”; that Israeli “counter-terrorism” units were “[o]verwhelmed” and “out-numbered” by “militants” and “forced to retreat”; that “Israeli Security Forces announced that it was in control . . . while the full elimination of all militants

reduced the availability of food,” the Commission nonetheless “reiterates that the responsibility of Palestinian armed groups is to ensure adequate access to food . . . for the hostages they hold.” Did it expect Hamas to order Chinese take-out? *Report of the Independent International Commission*, paras. 80–81.

3. *Detailed Findings I*, paras. 200–33.

4. *Ibid.*, paras. 200, 203, 204.

5. *Ibid.*, paras. 201, 202.

6. *Ibid.*, paras. 203, 208, 209, 211, 218.

was reported”; that a “tank driver reported that his crew had killed 15 militants before being shot at with an anti-tank missile.”⁷ Is this a human rights report or a hasbara film script?

But even this dereliction of duty pales beside a much larger defect in the Commission’s work. In its local analyses of specific Israeli attacks in Gaza, the Commission egregiously understated the magnitude and nature of the crimes committed. To be sure, in its global assessment of Israel’s assault in the round, the Commission inexplicably reversed itself and indicted Israel for crimes that it effectively shielded Israel from in its parsing of particular incidents. The flaw in the Commission’s report falls under two interrelated but discrete heads: *first*, the category error in its analytical framework, and, *second*, its minimization of Israeli crimes. The essence of this critique can be thusly stated: the Commission overwhelmingly framed Gaza as a “war” in which Israel occasionally committed crimes, whereas in reality a “genocide” was unfolding in Gaza in which Israel occasionally engaged in combat.

I

Analytical Framework

The Commission reported that the Israeli “operation’s primary military goals, as publicly stated, were to destroy Hamas completely, and to secure the release of Israeli hostages,” while it described the ensuing Israeli assault as “a wide-scale and unprecedented military operation in Gaza to ensure the complete elimination of Hamas once and for all.”⁸ The Commission repeatedly referred to Israel’s “military operation” in Gaza, and recycled Israeli press handouts on its strictly military target bank. The Commission demurred from the expansiveness of Israel’s targets but not from the premise that it *was* a military operation targeting Hamas, albeit one that was “potentially exceeding what is militarily necessary.”⁹ However, the Commission noted in the same breath that

Israeli military operations targeted locations in densely populated civilian areas. Throughout the campaign, ISF targeted civilian infrastructure such as high-rise buildings and residential apartments. . . . These bore the brunt

7. Ibid., paras. 210, 211, 213, 215, 219.

8. *Detailed Findings II*, paras. 17, 27; see also paras. 86, 88.

9. Ibid., paras. 161–67.

of the hostilities, leading to extensive destruction, including the levelling of entire city blocks and residential neighborhoods under sustained heavy bombardment.¹⁰

The Commission further noted that

[w]hile many of these locations were damaged or destroyed by direct or indirect airstrikes as well as tank and artillery shells, some were destroyed by bulldozers or controlled demolitions. . . . Such demolitions require ISF to physically place mines or other explosives in or around a structure and trigger a detonation from a distance. . . . Many of the videos viewed by the Commission of such controlled demolitions, sometimes of entire neighborhoods, depict ISF soldiers whooping, cheering and sending dedications and personal messages as the structures explode.¹¹

The Commission also took note that

senior Israeli public officials, including the President, the Prime Minister, Ministers in Government, Members of the State Security Cabinet, Members of the War Management Cabinet, Members of the Knesset, other politicians, ISF officials and commanders, and others in their official public capacity have used inflammatory language in their comments on and since 7 October.¹²

The Commission didn't pause to notice that Israel's alleged "primary" goal of eliminating Hamas didn't exactly sit well with its methods—the systematic decimation of densely populated civilian neighborhoods—and that its alleged "primary" goal was belied by the flagrantly genocidal statements of senior Israeli public officials and military commanders.¹³ To be sure, the Commission did here and there acknowledge that Israel wasn't quite waging a "military operation in Gaza to ensure the complete elimination of Hamas." (See Table 1.)

10. Ibid., para. 20; see also para. 75.

11. Ibid., para. 60.

12. Ibid., para. 24.

13. Ibid., paras. 33–48. The Commission did reject the official Israeli pretense that it faced an existential threat after 7 October as well as Prime Minister Benjamin Netanyahu's annexationist political "vision for the 'day after Hamas'" (ibid., paras. 28, 30, 31, 32).

TABLE 1 The UN Commission Sporadically Registered That Israel Was Intentionally Targeting Gaza's Civilian Population and Infrastructure

ISF actions regarding [home] demolitions . . . appear to be intended to cause wanton and deliberate destruction of civilian property, without necessity or military advantage.^a

Images obtained by the Commission reveal complete destruction to wide civilian areas. . . , rendering these areas uninhabitable.^b

[T]he Commission found that the burning of these homes renders them uninhabitable, leaving the displaced residents unable to return to live in and use their own property. . . . It may . . . indicate an intention on the part of the Israeli authorities to displace the population of the Gaza Strip permanently.^c

The Commission observes that the ISF repeatedly subjected urban areas in the Gaza Strip to heavy bombardment with explosive weapons with wide-area effect, rather than precision guided (or "smart") weapons, leading to the complete destruction of neighborhoods.^d

The Commission documented instances where civilians came under attack while evacuating along ISF-designated evacuation routes. . . . As emergency teams arrived and began assisting the wounded, another attack ensued. . . . [I]t is evident that civilians face grave dangers even when following ISF-designated safe routes.^e

The Commission documented several individual cases where civilians were subjected to attacks in areas designated by ISF as safe for civilian shelter. . . . [A]t least 208 . . . bombs, weighing 2,000 pounds each and deemed unsuitable for use in densely populated areas due to their wide lethal radius, were fired into . . . the southern part of the Gaza Strip. This bombardment occurred despite repeated ISF calls for civilians to seek refuge in this part of the strip for their safety.^f

[T]he Commission notes . . . that ISF's unprecedented bombing campaign left the northern part of the Gaza Strip and Khan Younis virtually uninhabitable. . . . Entire neighborhoods have been destroyed, with homes, shops, hospitals, schools, universities and agricultural lands sustaining catastrophic damage. The Commission observes that, even when allowed by Israel to return, a significant segment of the civilian population will struggle to return to their place of residence.^g

The Commission considers that these acts, coupled with the statements by government officials, . . . indicate a clear desire and possibly even intent to deport the civilian population from Gaza.^h

(continued)

TABLE 1 (continued)

[T]he Commission has reasonable grounds to conclude that the ISF had clear knowledge of the presence of civilians within areas or buildings that were designated as safe areas but nevertheless proceeded to launch its attacks.ⁱ

The massive casualties and destruction by ISF in areas that were evacuated have created conditions that are uninhabitable, whereby whole residential areas have been razed and families have no homes to return to.^j

In the majority of incidents investigated, the Commission could not identify a legitimate military target for the attack.^k

The Commission examined several incidents involving bombardment of facilities and objects belonging to aid organizations serving as places of refuge. . . . These incidents raise grave concerns about Israel's policy of deliberately targeting protected people and objects, resulting in killings and property destruction.^l

The Commission reviewed . . . a significant number of cases of intentional killings of civilians who pose no threat to ISF.^m

The Commission has found . . . incidents of shooting and killing persons holding a white flag. In most cases where ISF has shot and killed Palestinians holding white flags, there is little or no investigation of any kind and never an independent public investigation.ⁿ

The Commission is gravely concerned by the staggering number of casualties among aid workers. . . . Despite established coordination mechanisms with ISF, aimed at preventing such incidents, humanitarian operations have been consistently impeded, and medical facilities, food distribution centers, UN compounds, IDP shelters and aid trucks have all come under fire.^o

^a *Detailed Findings II*, para. 63.

^b *Ibid.*, para. 65.

^c *Ibid.*, para. 71.

^d *Ibid.*, para. 77.

^e *Ibid.*, paras. 110, 112.

^f *Ibid.*, para. 120; cf. *ibid.*, paras. 121, 123.

^g *Ibid.*, paras. 132, 133.

^h *Ibid.*, para. 137; for statements by Israeli public figures advocating expulsion, see *ibid.*, paras. 138–44.

ⁱ *Ibid.*, para. 147.

^j *Ibid.*, para. 151.

^k *Ibid.*, para. 168.

^l *Ibid.*, para. 199.

^m *Ibid.*, para. 208.

ⁿ *Ibid.*, para. 217.

^o *Ibid.*, para. 230.

Nonetheless, the Commission proceeded to depict Israeli crimes in Gaza as deviations from the laws of war. It was as if Israel were engaged in a military operation in order to achieve the legitimate military objective of defeating Hamas, albeit it was in need of a course correction in order to lawfully prosecute this war. If Israel deserved condemnation, that's because of its failure to comply with the strictures of international humanitarian law. (See Table 2.) However egregious Israel's breaches of the laws of war—even if it might have gone too far by riding roughshod over the principles of distinction, proportionality, precaution, discrimination, military necessity. . . —still, the Commission took for granted that it *was* a war that Israel was waging and that its transgressions could be captured in the idiom of the laws of war:

The Commission acknowledges that the principle of military necessity under international humanitarian law permits legitimate attacks on or damage to buildings and other structures that are used for military purposes, for example in order to enable movement of one's own forces, to create a lane free from improvised explosive devices and to clear structures blocking the line of fire or endangering the forces and their positions. Such destruction, however, must be proportionate and undertaken in a manner that mitigates the impact on civilians, which appears not to have been the case here, where ISF destroyed and cleared entire zones and burned houses for no clear military necessity.¹⁴

But these Israeli crimes didn't constitute corrigible departures from the laws of war. On the contrary, they sprang from the inexorable logic of genocide. *Israel couldn't legally prosecute the war because it wasn't waging a war. It wasn't violating the laws of war; it was executing the immanent laws of genocide.* If Israel's attacks weren't "proportionate," "discriminate," "militarily necessary," etc., that's because its ultimate objective inherently precluded compliance with international humanitarian law.

14. *Detailed Findings II*, para. 72.

TABLE 2 The UN Commission Presupposed That Israel Was Waging a War and That Its Violations Could Be Captured in the Idiom of the Laws of War

The Commission notes that the destruction of entire neighborhoods in the Gaza Strip appears to extend far beyond the *necessity* of protecting ISF operations.^a

[T]he extensive damage to private homes, public buildings, stores, schools, universities and mosques, rais[es] significant concerns about the *proportionality* of the unprecedented destruction . . . [T]he level of destruction inflicted on Gaza neighborhoods far exceeds what is required by *military necessity* in targeting militants in these structures, prompting critical questions about its humanitarian impact and legality.^b

Tens of thousands of residents have been forcibly displaced, with entire communities being destroyed. The loss of farmland and agricultural infrastructure will have a devastating effect on food production and the livelihoods of Gaza's residents. The Commission is therefore concerned by the *disproportionate* nature of these actions, which appear to go well beyond what is *militarily necessary*.^c

The Commission notes that the deliberate burning of civilian homes, with no legitimate military aim, violates the principles of *military necessity* and *proportionality*.^d

These [Israeli] munitions are extremely powerful, with a large destructive capacity when used in populated areas. . . . [U]se of these bombs in urban settings, especially in densely populated areas . . . is incompatible with international humanitarian law as they cannot adequately or accurately *discriminate between the intended military targets and civilian objects*.^e

The Commission reiterates that such heavy payload weapons are unsuitable for use in Gaza, even if they are *fired at military targets*.^f

The Commission underscores that the evacuation of civilians and announcements on designated safety zones do not detract from *Israel's continuing obligation to take constant care to protect and spare civilian lives* and ensure that their basic needs are met, regardless of their location. . . . [T]he Commission found that the evacuation process and safety zones designation *failed to ensure safety for evacuees*.^g

The Commission notes that the Israeli Government has consistently stated publicly that its policies are in line with international law. . . . Yet at the same time, many Israeli officials including Prime Minister Netanyahu have argued for "voluntary immigration" of the population to a location outside the Gaza Strip. The Commission notes that such "voluntary immigration" would in fact constitute a forcible transfer of the population in *violation of international humanitarian law*.^h

The Commission also assesses that ISF's attacks on underground tunnels . . . resulting in wholesale destruction and severe damage to buildings . . . prompt concerns regarding the *proportionality* of these strikes and the adequacy of *precautions* taken to

TABLE 2 (continued)

mitigate harm to civilians.ⁱ^a *Detailed Findings II*, para. 65; emphasis added.^b *Ibid.*; emphases added.^c *Ibid.*, para. 68; emphases added.^d *Ibid.*, para. 69; emphases added.^e *Ibid.*, para. 79; emphasis added.^f *Ibid.*, para. 83; emphasis added.^g *Ibid.*, para. 127; emphases added.^h *Ibid.*, para. 144; emphasis added.ⁱ *Ibid.*, para. 159; emphases added.

The irrefragable truth was that Israel had embarked not on a war but a qualitatively different enterprise: “the deliberate and systematic killing or persecution of people from a particular group identified as having a shared ethnicity, nationality, etc., with the intention of partially or wholly destroying that group” (*Oxford English Dictionary*, “genocide”).¹⁵ The essence of Israel’s genocidal undertaking not only couldn’t be reconciled with the laws of war but, what’s more, intrinsically contradicted them. War presupposes that the main protagonists are the reciprocal belligerent armies, each endeavoring to inflict a military defeat on the other, while, ideally, the death and destruction that befall the civilian population constitute collateral or incidental damage inessential to the ultimate goal of military victory. If the infliction of a military defeat in a war could just as well be achieved without targeting the enemy’s civilian population, then that would be the rational *modus operandi* while targeting civilians would be wholly gratuitous. Victory could in theory be achieved without breach of the laws of war. Whereas, in a genocide the ultimate objective is not to inflict a military defeat on the opposing army but to annihilate the civilian population. Inflicting military defeat is merely one of the means to realizing the genocidal end. The goal of annihilation cannot be achieved except by systematically negating the laws of war. It is feasible to wage, and emerge triumphant from, a war without breaching the laws of war. It is not feasible to carry out, let alone finalize, a genocide except by negating the laws of war.

A genocidal regime manifestly stands to benefit from the depiction of its undertaking as a war: it’s the perfect cover, concealing the barbaric goal. Indeed,

15. The postscript to this Chapter as well as Chapters 3–4 will explore the technical-legal aspects of the term *genocide*.

in the modern world, it's not possible to carry out a genocide in broad daylight except by masquerading it as a war. By parsing Israel's crimes as if violations of the laws of war, wittingly or not the Commission sustained the ultimate mystification that Israel was waging, even if criminally but all the same, a war, and that, if Israel tweaked its rules of engagement to accord with the laws of war, then it could *legitimately* achieve its objective. But in fact Israel was carrying out a genocide. It was not breaking this or that rule in an otherwise legitimate enterprise: the enterprise itself was inherently illegitimate. The Commission's analytical framework masked the fundamentally criminal nature of Israel's enterprise in Gaza; no tweaking could legitimize it, no tinkering could redeem it.

The Commission's legal lexicon consisted of the "rules" governing international humanitarian law.¹⁶ These rules of proportionality (not causing excessive civilian harm to achieve a legitimate military objective), military necessity (not deploying excessive force to achieve a legitimate military objective), discrimination (not using wanton force to achieve a legitimate military objective), precaution (taking steps to minimize civilian harm when pursuing a legitimate military objective), distinction (only targeting legitimate military objects)—they all assume that, in the first instance, the belligerents will be targeting military objects in order to achieve a military victory, while targeting civilian objects would be an aberration. *But military objects in a genocide are ultimately beside the point while the destruction of civilian objects is the whole point.* A legal inquiry into a genocide that is based on the rules of war would thus be at best a distraction and at worst a smokescreen. If a postwar German commission of inquiry pondered whether the gas chambers at Auschwitz were "proportionate" or "discriminate," wouldn't it have been—rightly—the object of obloquy? The gravamen was not that Israel was derelict in its compliance with the laws of war but, on a vastly different order of criminality, Israel was prosecuting a genocide. Israel was no more waging a war in Gaza than the Nazis waged a war against the Jews. The founder and dean of Holocaust Studies, Raul Hilberg, pointedly titled his magnum opus *The Destruction of the European Jews*, not *The War Against the European Jews*. *Destruction* denotes and connotes a qualitatively different reality than *War*: the object is not to prevail against but, on the contrary, to *annihilate*. The forbidding prospect that confronted Jews was not military defeat but physical destruction. Once Israel had persuaded the world that it was waging a "war against Hamas," it had won (at any rate, initially) 99 percent

16. International Committee of the Red Cross, *Customary International Humanitarian Law, Volume I: Rules* (2005).

of the propaganda war. The worst it could be accused of was repeatedly violating the laws of war. But the reality was ten thousand times more egregious: it was engaged in the extinguishment of life in Gaza.

It can't but be noticed how fundamentally the Commission's report differed from South Africa's application at the International Court of Justice (ICJ) that charged Israel with committing genocide. During the oral hearings at the ICJ, it was, ironically, Israel that captured the crux of the matter, the stakes at play. It accused South Africa of "essentially asking the Court to substitute the lens of armed conflict between a State and a lawless terrorist organization, with the lens of a so-called genocide of a State against a civilian population."¹⁷ The Commission, alas, analyzed Gaza through the lens preferred by Israel of armed conflict. It recoiled in its concrete findings at accusing Israel of intentionally targeting civilians and civilian objects. Instead, it repeatedly accused Israel of launching "disproportionate" and "indiscriminate" attacks. Whereas, South Africa's pleadings alleging genocide didn't indict Israel for carrying out "disproportionate" and "indiscriminate" attacks in pursuit of its military objectives, as the whole point of Israel's assault was to *be* disproportionate and indiscriminate in pursuit of its genocidal goal of "*destroying*" Gaza. Israel was ultimately resolved not on achieving military victory but, rather, an unreclaimable annihilation. Militarily defeating Hamas was undoubtedly a goal, but it was, although necessary—resistance needed be neutralized in order to complete the job—still, a secondary and subordinate objective in pursuit of the absolute goal of solving the "Gaza Question" once and for all.¹⁸ If the Commission shied away from accusing Israel of systematically targeting civilians in its relentless aerial and artillery assault, then it obfuscated what was actually unfolding in Gaza—a genocide; while if it acknowledged that Israel was systematically targeting civilians and civilian infrastructure to the end-point of Gaza's total destruction, then it would have perforce concluded that Israel wasn't waging a war but calibrating an annihilation.

17. International Court of Justice, *Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)*, Public Sitting (12 January 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240112-ora-01-00-bi.pdf>), p. 20, para. 44—Becker.

18. For a hybrid situation, in which the objective of a belligerent power is simultaneously to commit genocide and achieve military victory, see Amnesty International, "*You Feel Like You Are Subhuman*": *Israel's genocide against Palestinians in Gaza* (December 2024; <https://www.amnesty.org/en/documents/mde15/8668/2024/en>), pp. 18, 36, 97, 103–5, 205, 278.

The tacit premise of the Commission's analysis was that, in pursuit of its legitimate military objectives, Israel had the option, which it should have exercised, of carrying out lawful attacks. In other words, it could have but—for whatever reason—chose not to achieve its military objectives lawfully:

*ISF must . . . select means and methods of warfare that minimize harm to civilians and civilian objects.*¹⁹

*The Commission observes that the swift pace of target identification and verification, coupled with potential challenges in inter-unit coordination, may lead to errors and to decisions that endanger civilians. Ensuring diligent assessment, validation and higher-level approval procedures for each target is crucial to prevent harm to civilians during attacks.*²⁰

*Given the large scale of civilian casualties. . . , the Commission has concerns about ISF's military targeting procedures which would have guided the selection of the most appropriate and efficient use of weapons and the choice of the means and methods of warfare in populated areas. If properly applied, military targeting procedures should reduce the risk of collateral damage during military operations.*²¹

*Intentionally killing individuals who pose no threat, are clearly civilians or at least not clearly combatants and signal their peaceful intent to surrender through white flags violates the most important and basic protections in international humanitarian law and human rights law. . . . It demonstrates the need for a thorough public review of the ISF rules of engagement, for training soldiers in international humanitarian law and for effective independent accountability mechanisms for the soldiers and their commanding officers, with a view to preventing the further commission of war crimes.*²²

The Commission finds that . . . ISF has directly targeted humanitarian aid convoys and aid workers, in direct violation of international humanitarian law. The Commission reiterates that Israel is the occupying power in Gaza and thus has a duty to ensure the adequate provision of food and water and medical supplies and

19. *Detailed Findings II*, para. 91.

20. *Ibid.*, para. 162.

21. *Ibid.*, para. 165.

22. *Ibid.*, para. 218.

*other supplies essential to the survival of the civilian population. Israel has failed in this regard.*²³

But if Israel was hell-bent on carrying out a genocide, it didn't have the option to "select means and methods of warfare that minimize harm to civilians and civilian objects." It wasn't technical "errors" by Israel that "endanger[ed] civilians"; on the contrary, these "errors" that "endanger[ed] civilians" traced back to and sprang inexorably from Israel's genocidal goal. If Israel "properly applied" its "military targeting procedures" so as to "reduce the risk of collateral damage during military operations" in "populated areas," wouldn't that have defeated the purpose? The targeting of civilians and civilian infrastructure by ISF didn't "demonstrate the need for" better "training" and greater "accountability"; it demonstrated that, if ISF were systematically murdering civilians and pulverizing the infrastructure, that's because they were dispatched on a mission of death and destruction of the civilian population, and if they escaped any punitive accountability by the higher-ups, that's because unbounded death and destruction were intrinsic to the mission they had been sent on. If Israel "directly targeted humanitarian aid convoys and aid workers," that didn't manifest that it had "failed" to comply with international law but, on the contrary, that it had *succeeded* in its objective of denying Gaza the "supplies essential to the survival of the civilian population."

Conclusion to Section I

It might be contended that juxtaposing South Africa's application against the Commission's report is mixing apples and oranges: South Africa's brief was to document Israeli violations of the Genocide Convention whereas the Commission's brief was to document Israeli violations of international humanitarian (and human rights) law. Here, however, is the rub: by undertaking to document Israel's violations of the laws of war, the Commission ended up occluding the most salient fact—that Israel's ultimate objective was not defeating Hamas but extinguishing Gaza. If you consider the genocidal statements that relentlessly emanated from every level of the Israeli state and society;²⁴ if you consider that on average not even *one* Israeli combatant had been killed each day

23. Ibid., para. 255.

24. Ibid., paras. 24–48, 267–73.

in the unfolding hecatomb while no major battles had been fought in Gaza;²⁵ if you consider that Israel overwhelmingly targeted civilians²⁶ (not least journalists, medics, UN employees, and humanitarian aid workers²⁷ as well as children, who were systematically shot in the skull and chest²⁸) and civilian objects (not least hospitals, universities, apartment buildings, places of refuge,²⁹ and the infrastructure supplying basic necessities such as water, food, fuel, and electricity³⁰)—if you consider all this, then what else can one deduce except that this was a genocide³¹ not a war and that applying the laws of war

25. How could it be otherwise when—as the former deputy commander of the Gaza Division told a reporter—the IDF was “not taking any chances . . . [w]hen our soldiers are maneuvering we are doing this with massive artillery, with 50 aeroplanes overhead destroying anything that moves”? James Shorter et al., “The Tactics Behind Israel’s Ground Offensive,” *Financial Times* (29 October 2023; <https://www.ft.com/content/92a31b6e-a5b7-4533-96ed-89d14e6c2b14>).

26. The research organization Airwars found that, of the 606 incidents it analyzed during the first 25 days of the Israeli assault, in which a minimum of 5,139 civilians were killed, an identifiable Gazan militant was present in less than 5 percent of the incidents (in which at minimum 522 civilians were killed). *Patterns of Harm Analysis: Gaza, October 2023* (December 2024; <https://gaza-patterns-harm.airwars.org>).

27. *Detailed Findings II*, paras. 230–39.

28. “Open Letter from American Medical Professionals Who Served in Gaza” (2 October 2024; <https://www.gazahealthcareletters.org/usa-letter-oct-2-2024>).

29. Human Rights Watch, “*Hopeless, Starving, and Besieged*”: Israel’s forced displacement of Palestinians in Gaza (14 November 2024; <https://www.hrw.org/report/2024/11/14/hopeless-starving-and-besieged/israels-forced-displacement-palestinians-gaza>).

30. *Detailed Findings II*, paras. 219–29, 274–315; for hospitals, see *Report of the Independent International Commission*, paras. 6–40, 88–100.

31. See also Amnesty, “*You Feel Like*”:

Amnesty International found that the following pattern of conduct indicated genocidal intent: repeated direct attacks on civilians and civilian objects and deliberately indiscriminate strikes over the nine-month period, wiping out entire Palestinian families, repeatedly launched at times when these strikes would result in high numbers of civilian casualties; the repeated use of weapons with wide area effects in densely populated residential neighborhoods; the speedy, massive and comprehensive destruction of civilian objects and infrastructure, be they homes, shelters, health facilities, water and sanitation infrastructure, agricultural land or other objects essential to the survival of the civilian population; the repeated destruction of civilian objects and infrastructure and of cultural and religious sites, including through bulldozing and controlled demolitions, after Israel had gained military control over them; the sweeping, often incomprehensible, misleading and arbitrary “evacuation” orders, repeated over the nine-month period under review, and directed at an extremely large number of people, which caused their repeated mass forced displacement under unsafe and inhumane conditions with no way out of Gaza; the torture and incommunicado detention of Palestinians from Gaza; and the continuous refusal to allow adequate humanitarian aid and other essentials to reach people in Gaza (p. 31).

was as irrelevant as applying the laws of genetics to solving a physics problem? It defies rationality to apprehend the situation in Gaza using the framework of the laws of war. It is as if looking at Gaza in the reflection of a circus crazy mirror. If Gaza bestirred Humanity's soul, it wasn't because Israel was disobeying the laws of war but, on the contrary, because it was obeying the logic of genocide. Thomas Kuhn famously posited that a new scientific paradigm comes into existence when anomalies crop up that the old paradigm can no longer accommodate. *Mutatis mutandis*, the "laws of war" paradigm cannot accommodate the anomalies of the Israeli "military operation" in Gaza. The surfeit of incidents in which the civilian population and infrastructure were intentionally targeted, and in which an alleged military target was a transparent pretext, versus the paucity of actual military engagements that all told have amounted, relatively speaking, to an afterthought in the totality of the onslaught, burst the mold of the "laws of war" paradigm. On the other hand, the "logic of genocide" paradigm can and does make perfect sense of these data. The "old" paradigm not only can't rationally order what's happened in Gaza but also egregiously understates the magnitude of Israel's criminality.

II

Minimizing Israel's Crimes

The Commission focused on what it denoted "emblematic incidents" or "illustrative incidents which are seen to represent a broader trend."³² Its factual assessments of these "emblematic incidents" are marred by grave methodological errors. *First*, the Commission's default setting was that Israel was complying with the laws of war: i.e., Israel was innocent until proven guilty. If Israel breached the laws of war in a particular incident, and if it could potentially be guilty of a lesser violation such as a "disproportionate" attack or greater violation such as an "intentional" attack,³³ then, as the lesser charge stood closer to the default setting, the Commission reflexively downgraded the violation to the lesser charge even if the evidence overwhelmingly pointed to the greater charge. If, however, the Commission's default setting had been that Israel was

32. *Detailed Findings II*, paras. 8–9.

33. Although international law technically doesn't distinguish between the gravity of disproportionate versus intentional attacks, a much greater moral onus attaches—at any rate in the court of public opinion—to intentional attacks. See Norman G. Finkelstein, *Gaza: An inquest into its martyrdom* (Oakland: 2018), pp. 255–56, 302–4.

committing genocide, then, where the Commission could potentially find Israel guilty of a lesser or greater violation in a particular incident, the Commission would perforce have inferred that Israel was guilty of the greater charge of an intentional attack on civilians, not only because the evidence sustained this finding, but also because the genocidal context made it more plausible. If Israel was carrying out a genocidal assault, then, in the event of many civilians being killed in an “emblematic incident,” the Commission’s finding should have been, not that the deaths were incidental to a disproportionate or indiscriminate attack on a legitimate military target, but, on the contrary, that the civilian deaths resulted from an intentional attack. That is, it being a genocide, Israel was guilty of targeting civilians unless proven innocent. In the context of the unfolding genocide, the proportion of Gazans killed who were not intentionally murdered fell within the normal range of statistical error. *Second*, the Commission noted that Israel refused to cooperate with it or allow its physical access to Gaza, and consequently it accused Israel of “obstructing its investigation.”³⁴ The inexorable inference would be that “if Israel has nothing to hide, why is it refusing to allow us in?” (Human Rights Watch).³⁵ Instead, the Commission filled in the gap left by Israel’s noncooperation by speculating without evidence on Israel’s possible military targets in emblematic incidents it investigated. In effect, the Commission rewarded Israel’s obstruction of justice by supplying it with extenuating alibis fabricated out of whole cloth. The Commission thus ultimately incentivized Israel’s noncooperation as it stood to make out better by staying mute. *Third*, even as Israeli pronouncements have proven over and over again to be false, the Commission lent credence to Israeli alibis justifying its attacks on civilians and civilian objects. Ironically, the Commission itself devoted not a little space to demonstrating that Israel’s media statements couldn’t be trusted. For example, while Israel proclaimed that “[w]e never, ever intentionally fire on a humanitarian organization,” the Commission copiously documented that this statement was flat-out false.³⁶ But why then did the Commission credit *any* self-exculpatory Israeli public statements in the absence of corroborative evidence? *Fourth*, whereas the Commission displayed a palpable bias against Palestinian armed groups by exaggerating the evidence against them,³⁷ the Commission displayed a palpable

34. *Detailed Findings II*, para. 2.

35. Finkelstein, *Gaza*, p. 78.

36. *Detailed Findings II*, paras. 230–37. For Israel’s steady stream of lies regarding the February 2024 “Flour Massacre,” see *ibid.*, paras. 240–49.

37. See Chapter 1.

bias in favor of Israel by understating the evidence against it. These various points are illustrated in Table 3.

TABLE 3 The UN Commission’s Analysis of “Emblematic Incidents” Did Not Find That Israel Was Intentionally Targeting Gaza’s Civilian Population and Infrastructure (with Finkelstein’s commentary in italics)

Commission’s Factual Finding	Commission’s Assessment
On 15 November 2023 and again on 1 and 2 December 2023, ISF distributed evacuation leaflets to residents of Khan Yunis and Al-Qarara, ordering them to head south to Rafah. On 3 December 2023, at around noon, two cars evacuating from Khan Yunis were attacked with tank shells . . . on Salah Al-Din Street. . . . The targeted vehicles had no visible signs of military use and, reportedly, were carrying civilians moving southward through this road. Indeed, on 23 November ISF had designated the relevant section of Salah Al-Din Street as a safe evacuation route. . . . The Commission reviewed and verified photos and videos depicting the aftermath of the explosion, with cars engulfed in flames, an unconscious woman lying on the road and two lifeless bodies nearby. . . . The vehicles do not exhibit any visible military characteristics, such as camouflage paint or dark colors. Similarly, the injured individuals shown in the videos do not appear to be armed and they are not wearing uniforms or carrying military equipment.	The Commission considers that the positioning of the vehicles and their movement in a southern direction away from the tank suggest that they posed no threat. It remains unclear why they were perceived as hostile and targeted while moving south in accordance with the ISF instructions. The Commission expresses serious concerns that civilians and civilian objects were attacked without posing any threat to the ISF. In these circumstances, firing of tank shells at unarmed civilians in a civilian vehicle was unnecessary and disproportionate.⁴ <i>The Commission already established that ISF was intentionally targeting civilians and civilian objects (see Table 1). Why then did it assume that the targets were “perceived as hostile”? If Israel targeted manifestly civilian vehicles on an Israeli-designated safe passage road heading away from the combat zone, why didn’t the Commission classify this as an intentional attack on civilians? How could this be a disproportionate attack if the civilian vehicles and occupants weren’t military objects? On the other hand, if Israel was committing genocide, it was not an unnecessary but, on the contrary, a necessary attack.</i>
On 18 November 2023 the Hamad residential neighborhood in Khan Younis was attacked, reportedly resulting in the deaths of approximately 28 persons. A video reviewed by the Commission shows a six-story residential building in which the second floor is completely destroyed in what seems to have been a targeted strike.	The ISF did not publicly identify the military target of the attack and the Commission was not able to ascertain the intended target.⁶ <i>The Commission already established that Israel was systematically targeting residential neighborhoods (see Table 1). If Israel didn’t even bother to identify a military target (and even if it did, why should it be believed without evidence?), then it perplexes why the Commission assumed that ISF directed fire at a military target; and if (notwithstanding the absence of evidence) it was a military target, then it would</i>

(continued)

TABLE 3 (continued)

Commission's Factual Finding	Commission's Assessment
	<i>hardly be an “emblematic” incident as the essence of Israel’s undertaking was to be discriminately indiscriminate—military target or not—in its comprehensive assault on the entire civilian population and infrastructure.</i>
On 5 December 2023, an attack in Deir al Balah led to at least 11 deaths. . . . The day before the attack, the ISF permitted civilians to travel to Deir al-Balah for humanitarian purposes.	The Commission was unable to obtain information on the intended target or on the presence of military targets in the vicinity.^c <i>The Commission already established that Israel was targeting evacuees and safe zones (see Table 1). Why then did the Commission assume that these civilians weren’t the intended target?</i>
The chaos along evacuation routes, including the lack of transportation and inadequate attention to older people, children and other vulnerable persons, could be the result of a number of factors. It could be that the planning was rushed and disorganized and not competently implemented. It could also be that the chaos was intentional, designed to maximize the suffering of the civilian population.	The Commission has been unable at this stage to determine the basis of the chaos.^d <i>If the Commission already established that Israel forced civilians onto the evacuation routes, then targeted them causing chaos and terror (see Table 1), and if there’s zero evidence that Israeli “planning was rushed and disorganized,” then why didn’t the Commission find that Israel sought to “maximize the suffering of the civilian population”?</i>
On 10 October, ISF announced [that] “. . . the main attack was on the Rimal neighborhood. . . . It is a symbol of luxury in the Gaza strip. It is a symbol in the center of the strip. It constitutes great meaning to the leadership of Hamas and its members.” . . . Hundreds of residential buildings were affected by the intense bombing, along with public buildings.	The Commission was not able to confirm the presence of military targets in the neighborhood during the time of attack and recalls that on the day of the attack ISF emphasized the symbolic effect of targeting the neighborhood. . . . [E]ven if there were legitimate military targets in the neighborhood, there is no evidence to suggest that all the targeted and affected structures, within a one-kilometer radius, belonged to, or were being used by, Hamas and other non-State armed groups at the time of these strikes. Even if legitimate military targets were present, grouping a number of clearly separate and distinct targets—militants and military assets present in different locations—into a single “area target” that included a large proportion of civilians and civilian objects and subjecting it to carpet bombing raises serious concerns of indiscriminate and disproportionate attack, in violation of international humanitarian law obligations.^e

TABLE 3 (continued)

Commission's Factual Finding	Commission's Assessment
On 9 October 2023, at around 10:30, the Al-Trans market in Jabalia refugee camp . . . was hit by an Israeli airstrike, reportedly killing at least 69 people and injuring dozens of others, mostly women and children. . . . The Commission could not ascertain the reason for attacking the market or confirm whether there were legitimate military targets nearby. An ISF statement issued on the same day revealed that a mosque from which Hamas militants allegedly operated was attacked. However, this statement came a few hours before the market attack and therefore it likely referred to another incident. The Commission also notes that the closest mosque is 200 meters away from the market. As part of its daily update, ISF later stated that it attacked a Hamas-operated "war room" in west Jabalia, but it did not provide the exact location of this target and timing of the attack. Images from the site indicate that nearby buildings were destroyed. Amnesty International reported that at least three multi-storey buildings were destroyed and several structures in the vicinity were heavily damaged.	<i>If the Commission already established that Israel was intentionally targeting civilian neighborhoods (see Table 1), and if Israel itself pointed up the symbolic value of destroying the Rimal neighborhood, why then did the Commission wildly speculate on the possibility of military targets and then trail off into an infinite regression of irrelevant and, in the last analysis, apologetic "even ifs"? The attack was neither indiscriminate nor disproportionate: it discriminately attacked a civilian neighborhood, and it couldn't have been disproportionate as there was no evidence of a military target. It was an intentional attack on a civilian neighborhood, full stop.</i> Even if the buildings close to the market or the mosque were the alleged "war room" that was the intended target, the attack still raises serious concerns over its proportionality and the use of imprecise weaponry, as well as whether appropriate precautions had been taken, given the timing of the attack and proximity to a crowded market. The Commission finds that, even if the "war room" was the target, that the attack struck the crowded market in a densely populated area within the Jabalia camp at a time of day when it was certain to be crowded. In undertaking the attack, the ISF violated the principles of precaution and proportionality under international humanitarian law.^f <i>The Commission already established that Israel was targeting civilians and civilian objects (see Table 1). If it wasn't able to ascertain a legitimate military target, why did it go on to speculate that Israel was targeting Hamas militants in a mosque if it itself conceded that was implausible, and conjure the possibility of a phantom Hamas "war room" somewhere in the vicinity of the attack? Why did it then blather on about "proportionality . . . imprecise weaponry . . . appropriate precautions" when all the evidence pointed to the conclusion that Israel intentionally targeted a marketplace in a refugee camp "at a time of day when it was certain to be crowded"—which is exactly what it was doing everywhere else in Gaza?</i>

(continued)

TABLE 3 (continued)

Commission's Factual Finding	Commission's Assessment
In the afternoon of 25 October 2023, an Israeli airstrike hit a 12-storey tower and surrounding buildings in [the] . . . Al-Yarmouk neighborhood, leading to the reported deaths of at least 101 individuals, including 44 children and 37 women, with hundreds more sustaining injuries. . . . Video footage released by ISF shows rapid successive strikes and several explosives [explosions?] on locations surrounding the tower building, triggering several secondary explosions seconds later. The footage is accompanied by text labelling it as a "strike on a Hamas terror tunnel." The Commission cannot determine with certainty whether a precautionary warning was given to the residents of the tower or surrounding buildings and whether there was a tunnel in the vicinity or not. . . . The Commission is not aware of any evacuation orders issued in this area . . . and any assessment whether the impending strike was likely to result in civilian casualties and damage to civilian objects that would be excessive in relation to the anticipated military advantage.	The incident raises concerns about the ISF's military targeting procedures that would have guided the selection of the most appropriate use of weapons. The Commission notes that, even if there was a tunnel under the buildings which was the primary target of the attack, the 12-storey residential building was directly hit, not more accessible portions of the tunnel, which would not have affected the building. Given also that ISF has not provided evidence that the building was used by Hamas militants, there was no reason to target it at all and especially with such overwhelming force as to cause its collapse. . . . The Commission concludes that targeting the residential tower building and surrounding structures was a violation of the principles of precaution, distinction and proportionality under international humanitarian law.^g <i>The Commission already established that Israel was targeting high-rise residential buildings (see Table 1). If there was no evidence of a tunnel underneath the tower, why did the Commission speculate otherwise? Israel did not breach the principles of "precaution" or "proportionality," but only of "distinction"—it intentionally targeted a building without military value occupied by scores of civilians.</i>
The Commission also documented cases of attacks in civilian locations causing wide damage and casualties, in which it was able to identify a clear military target that was the focus of the attack. . . . In the early afternoon of 31 October, ISF carried out a series of massive airstrikes, combined with a ground operation in Jabalia refugee camp. This attack, in a densely populated area, reportedly resulted in 126 persons killed, including 69 children, and many injured, as well as the complete destruction of residential buildings. . . . On the following day, 1 November 2023, al-Qassam Brigades stated that the attack killed seven civilian hostages taken from Israel by Hamas militants, including three persons with foreign	Even if a military target was present at the site of attack, the high number of civilian casualties and massive destruction of civilian infrastructure present serious concerns over the proportionality of the attacks and raise questions about the choice of weapons, collateral damage estimates and the adequacy of the precautionary measures taken, if any, to minimize civilian casualties in a densely populated neighborhood.^h <i>The Commission stated that it "was able to identify a clear military target." But it did no such thing. It merely regurgitated official ISF pronouncements. ISF also alleged that Hamas's command-and-control center was located beneath al-Shifa hospital and that Israel never targeted humanitarian aid convoys.</i>

TABLE 3 (continued)

Commission's Factual Finding	Commission's Assessment
passports. . . . On the day of the attack, 31 October 2023, ISF announced that it had conducted an operation against a Hamas stronghold in Jabalia. According to the ISF, during ground operations in Jabalia, approximately 50 militants were killed, along with the destruction of tunnel entrances and weapons caches. Later that day ISF revealed that Israeli fighter aircrafts targeted Ibrahim Biari, commander of Hamas' Central Jabalia Battalion and, to their knowledge, one of the leaders responsible for the 7 October attack in Israel. According to the ISF statement, the airstrike resulted in significant damage to Hamas command structure, the elimination of numerous Hamas operatives and the collapse of "an underground terrorist infrastructure." . . . Given the ISF statement that it targeted Hamas leaders in tunnels, it is likely that the munition had bunker busting warheads designed to pierce through reinforced underground concrete structures such as tunnels.	<i>Uncritically repeating ISF statements doesn't make them true. Was Israel targeting a Hamas commander and was he involved in the 7 October attack? Did it kill fifty militants and destroy a tunnel, command-and-control center, and weapons cache? Did it know the hostages were in the camp before the attack? It's anybody's guess. The Commission stated that "ISF revealed" this purported information. Maybe. But maybe it just made the whole thing up. The upshot is that the Commission, in the absence of corroborative evidence, handed Israel an extenuating alibi for a particularly heinous crime.</i>
On 24 December 2023, at around 21:00, ISF attacked a residential block comprising several houses in the Al-Maghazi refugee camp, reportedly killing 70 people, including children . . . and, according to the Gaza Ministry of Health, the number of fatalities later rose to 106. Drone footage . . . and photos . . . show many buildings destroyed and others severely damaged. . . . [A]n Israeli government spokesperson stated that "the IDF made a mistake, this should not have happened, the choice of ammunition was incorrect." . . . The Commission . . . concludes on reasonable grounds that a heavy payload 2,000lb bomb without guidance kits was used in this attack.	The Commission has considered the possibility that this bomb may have missed its intended target, resulting in the death and destruction recorded. The Commission observes that, by December 2023, lessons should have been learned already given the use of heavy bombs with wide-area effect and destructive power in urban areas. . . . Choosing to use this type of munitions reinforces the conclusion that ISF is aiming at wide damage and not accuracy.ⁱ <i>The Commission already established that Israel systematically targeted residential neighborhoods (see Table 1). In the absence of corroborative evidence and in light of the established pattern of Israeli attacks on residential neighborhoods, it's unclear why the Commission would "consider the possibility" solely on the basis of a self-serving official Israeli statement that it was an error. Isn't it much more probable that this was an intentional attack like all the others? And if, against all odds, it was an error, why then did the</i>

(continued)

TABLE 3 (continued)

Commission's Factual Finding	Commission's Assessment
The Commission documented a direct attack on a religious site in Gaza City where two women seeking refuge in a church were seemingly targeted and killed by ISF. According to reports, on 16 December 2023 around noon, Nahida and Samar Anton, a mother and her adult daughter, were reportedly shot by an ISF sniper at the Holy Family Parish, a Catholic church in Gaza City. A witness interviewed by the Commission, stated that the two women were shot while on their way to the bathroom, situated in another building that is part of the Parish compound. According to the same witness, Israeli soldiers were deployed in the street behind the church complex and screamed in Arabic that it was forbidden to move outside. The two women left the building to go to the bathroom inside the church complex. According to the Latin Patriarchate of Jerusalem, seven others were shot and wounded when they ran to the courtyard to help. A nun reported to the media that the bodies of the two women remained outside for hours, as people in the church feared they would be shot if they left the building. On the same day, the adjacent Convent of the Sisters of Mother Theresa, where persons with disabilities were sheltered, was struck by two tank shells, making the building uninhabitable and displacing 54 disabled persons who need respirators to survive. The Commission interviewed a witness who confirmed this account. According to media reports, Christian families	<i>Commission report an incident that manifestly was not “emblematic” of Israel’s genocidal assault? The Commission stated that Israel must have been aware of the indiscriminate destructive effects of the weapon but that it was “aiming at wide damage and not accuracy.” But it couldn’t have accurately targeted a military object if there wasn’t any present; while, conversely, the weapon was most accurate if the objective was causing death and destruction to the civilian population.</i> The Commission did not find any information indicating that the women posed a threat to ISF soldiers. The Commission notes that places of worship, such as churches, are afforded special protection under international humanitarian law and parties to the conflict are prohibited from attacking them. Deliberately attacking a church is a war crime. Deliberately sniping at civilians seeking refuge in a church is also a war crime.¹ <i>The Commission stated that the two women were “seemingly” targeted and killed and were “reportedly” shot by ISF. In light of the copious evidence that the Commission itself assembled, and in light of the public notoriety of this incident, it’s cause for tormenting perplexity why the Commission qualified its finding with these weasel words. And why did it suddenly revert to reciting the strictures of international law instead of forthrightly stating: “The Commission finds that ISF snipers intentionally targeted and killed two unarmed women in a church en route to the bathroom and also fired tank shells at a building in the church compound that was home to scores of disabled persons who couldn’t be evacuated, and even as Israeli officials had been notified in advance of the situation”?</i>

TABLE 3 (continued)

Commission's Factual Finding	Commission's Assessment
had been taking refuge in the church since 7 October. Condemning the attack, Pope Francis declared that "The Convent is home to over 54 disabled persons and is part of the church compound, which was signaled as a place of worship since the beginning of the war. . ." and "No warning was given; no notification was provided," said the Patriarchate. "They were shot in cold blood inside the premises of the Parish, where there are no belligerents." According to the Latin Patriarchate of Jerusalem, there were no militants inside the Parish and no warning was given prior to the attack. A witness interviewed by the Commission said that people residing in the area had been instructed to evacuate but the priest of the church was in contact with higher ecclesiastical authorities to guarantee the protection of the people taking refuge in the church complex, explaining that they were unable to evacuate because there were older persons and disabled children among them. This was also noted by media outlets, reporting that Catholic Relief Services, a United States Catholic aid organization, had sent the coordinates of a number of buildings, including the church and the convent, to US Senate staff, trying to obtain a commitment from Israel to avoid targeting buildings where the organization's staff and civilians were sheltering. The list of coordinates had been forwarded to the Israeli military who responded that they could not guarantee the safety of civilians inside the buildings. The ISF denied intentionally targeting the two women, alleging that they were responding to a threat identified in the area of the church. However, a spokesperson from the Israeli Prime Minister's office asserted that "there was no fighting in the Rimal neighborhood on Saturday where this Catholic church was located."	

(continued)

TABLE 3 (continued)

Commission's Factual Finding	Commission's Assessment
On 30 October 2023 a vehicle was fired on by a tank shell on Salah Al-Din Street. . . . [T]he vehicle was initially heading north towards an ISF roadblock where the tank was stationed. . . . Shortly before the roadblock, the vehicle reversed its direction and began moving south, away from the roadblock. During this retreat, the tank fired at the car and an explosion is seen close to the vehicle. . . . According to one witness, the vehicle was a taxi and the driver had placed a white flag on the hood. The Commission could not confirm these details. A video . . . clearly shows the tank firing at the vehicle after the vehicle had reversed its direction, moved away from the roadblock and was already about 50 meters away, posing no immediate threat to ISF soldiers. Additionally, there was no indication that militants were driving or sitting in the car.	The Commission is concerned that a tank targeted and shelled a civilian vehicle at such close range and considers it unnecessary and disproportionate. Tank munitions are designed for armored or hardened military objects. ISF chose a means and method of warfare that was not appropriate for the type of target and so contrary to international humanitarian law.^k <i>The Commission considered that it was “unnecessary and disproportionate” for the ISF to fire on a civilian vehicle, possibly a taxi hoisting a white flag, as it was moving in the opposite direction of the roadblock. But how could the tank shell have been disproportionate if to begin with there was no military target? And pray tell, what would have been an appropriate “means and method of warfare” for targeting a civilian vehicle that posed not only no “immediate threat” but, for Chrissake, no threat at all? It flabbergasts that the Commission could not find even in this incident that Israel had intentionally targeted a civilian and civilian object. The Commission was no less mistaken in stating that the attack was “unnecessary.” It most certainly was necessary, as were ISF attacks on everyone and everything else in Gaza, if Israel was intent on carrying out a genocide.</i>
On 12 November 2023, Hala Abd Al-Ati, an older woman, was seemingly targeted, shot and killed in the Al-Rimal neighborhood of Gaza City as she attempted to evacuate with her family. In a video viewed and verified by the Commission, Al-Ati is seen holding the hand of her young grandson, who is waving a white flag. The group is walking on the road through a built-up area and reaches an intersection. Her family members follow a few meters behind when a gunshot is heard, and she falls to the ground.	Ms Al-Ati seems to have been shot by a sniper despite not posing any threat. CNN's investigation confirmed the presence of ISF to the west and south of the street intersection where the incident occurred.^l <i>The Commission already established that Israel was intentionally targeting civilian evacuees (see Table 1). So why the weasel words: “seemingly” . . . “seems to have been”?</i>

^a *Detailed Findings II*, paras. 113, 115.

^b *Ibid.*, para. 124.

^c *Ibid.*, para. 126.

^d *Ibid.*, para. 149.

^e *Ibid.*, paras. 173, 176–78.

^f *Ibid.*, paras. 179, 181–82.

^g *Ibid.*, paras. 183–86, 188.

TABLE 3 (continued)

^b Ibid., paras. 189–90, 192, 194–95.ⁱ Ibid., paras. 196–98.^j Ibid., paras. 203–7.^k Ibid., paras. 209, 211.^l Ibid., para. 214.

If the Commission's sporadic acknowledgements that Israel targeted the civilian population (Table 1) were factored in, then the Commission's laws of war analysis that Israel almost never intentionally targeted civilians in Gaza would have proven unsustainable (see the italicized comments in the right-hand column of Table 3). Put otherwise, if the Commission could reach relatively benign findings in its laws of war analysis of "emblematic incidents," that's because it overwhelmingly presumed that Israel was not committing genocide. It is instructive to juxtapose the Commission's findings on specific Israeli attacks, which it analyzed through the optic that Israel was waging a "war," against Amnesty International's findings, which were analyzed through the optic that Israel was waging a "genocide" (see Table 4). Amnesty posited that, whereas each local incident in Gaza could be analyzed *discretely* according to the laws of war, the assault in its totality could only be properly apprehended as a genocide:

Viewed individually, the acts analyzed in this report constitute serious violations of international humanitarian law and/or gross violations of human rights. Viewed holistically, a more disturbing picture emerges: the commission of prohibited acts under the Genocide Convention, including killing and causing serious bodily or mental harm to members of a protected group and deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part.³⁸

Hence, Amnesty's methodology was to "assess allegations of violations and crimes under international law by Israel in Gaza within the framework of genocide under international law."³⁹ It is notable that, viewing the assault

38. Amnesty, "You Feel Like," p. 279.

39. Ibid., p. 13.

“within the framework of genocide,” Amnesty found that, in each and every incident it scrutinized, Israel was intentionally targeting civilians and civilian objects, and that it “did not find any evidence in any of the cases that there was any legitimate military objective in or near the location struck, or that any of the strikes were directed at a particular military objective.”⁴⁰ Contrariwise, the UN Commission’s analysis of discrete Israeli attacks found that Israel was intentionally targeting a civilian object in only one “emblematic” incident. These widely discrepant findings arguably traced back to the antithetical optics/default settings of, respectively, the Commission and Amnesty: to win a war, the targets in the first instance being combatants (Commission), versus to destroy the population, the targets in the first instance being civilians (Amnesty). In sum, if the Commission found that Israel almost never targeted civilians while Amnesty found that Israel was always targeting civilians, that in no small part sprang from how each apprehended the totality of the situation—war versus genocide; and if the Commission got the factual picture wrong and Amnesty got it right, that’s because it wasn’t a war but a genocide.

TABLE 4 Amnesty International’s Analysis of Specific Incidents
Uniformly Found That Israel Was Intentionally Targeting
Gaza’s Civilian Population and Infrastructure

Attack on the Al-Dos family home, Zeitoun neighborhood, Gaza City, on 7 October 2023. The strike killed 15 civilians, including seven children. Amnesty International did not find any evidence of a military objective. ^a
Attack on the Al-Naqla family home, Nuseirat refugee camp, Deir al-Balah governorate, on 8 October 2023. The strike killed four civilians, including two children. Amnesty International did not find any evidence of a military objective. ^b
Attack on Jabalia refugee camp market, Jabalia refugee camp, North Gaza governorate, on 9 October 2023. The strike killed at least 70 civilians, including at least 15 children. Amnesty International did not find any evidence of a military objective. The Israeli military made contradictory remarks and failed to substantiate them. ^c
Attack on the Hijazi family home, Sahaba Street, Gaza City, on 10 October 2023. The strike killed 16 civilians, including three children. Amnesty International did not find any evidence of a military objective. ^d

40. Ibid., pp. 19, 110–11.

TABLE 4 (continued)

Attack on the Al-Najjar family home, Deir al-Balah, on 10 October 2023. The strike, using a US-made JDAM bomb, killed 24 civilians, including nine children. Amnesty International did not find any evidence of a military objective.^e

Attack on Saint Porphyrius church, Gaza City, on 19 October 2023. The strike killed 18 civilians, including eight children. Amnesty International did not find any evidence of a military objective.^f

Attack on the Al-Aydi family home, Nuseirat refugee camp, Deir al-Balah governorate on 20 October 2023. The strike killed 28 civilians, including 12 children. Amnesty International did not find any evidence of a military objective.^g

Attack on the Abu Mu'eileq family home, Deir al-Balah, on 22 October 2023. The strike, using a JDAM bomb, killed 19 civilians, including 11 children. Amnesty International did not find any evidence of a military objective.^h

Attack on the Harb family homes, Al-Zuhour neighborhood, Rafah, on 12 December 2023. The strike killed 25 civilians, including 10 children. Amnesty International did not find any evidence of a military objective.ⁱ

Attack on the Shehada family home, Brazil neighborhood, Rafah, on 14 December 2023. The strike killed 31 civilians, including 11 children. Amnesty International did not find any evidence of a military objective.^j

Attack on the Zu'rub family homes, Tal Zu'rub neighborhood, Rafah, on 19 December 2023. The strike killed 22 civilians, including 11 children. Amnesty International did not find any evidence of a military objective.^k

Attack on the Nofal family home, Tal al-Sultan neighborhood, Rafah, on 9 January 2024. The strike, using a US-made GBU-39, killed 18 civilians, including 10 children. Amnesty International did not find any evidence of a military objective.^l

Attack on Market Street, Al-Maghazi refugee camp, Deir al-Balah governorate, on 16 April 2024. The strike killed 15 civilians, including 10 children. Amnesty International did not find any evidence of a military objective. The Israeli military claimed it was investigating the strike.^m

Attack on the Abu Radwan family home, Tal al-Sultan neighborhood, Rafah, on 19 April 2024. The strike, using an MPR 500 bomb, killed nine civilians, including six children. Amnesty International did not find any evidence of a military objective.ⁿ

(continued)

TABLE 4 (continued)

Attack on the Abdelal family home, Al-Jneinah neighborhood, Rafah, on 20 April 2024. The strike killed 20 civilians, including 16 children. Amnesty International did not find any evidence of a military objective.^g

^a Amnesty, "You Feel Like," p. 107.

^b Ibid.

^c Ibid.

^d Ibid.

^e Ibid.

^f Ibid., p. 109.

^g Ibid.

^h Ibid.

ⁱ Ibid.

^j Ibid.

^k Ibid.

^l Ibid.

^m Ibid.

ⁿ Ibid., p. 110.

^o Ibid.

After it examined discrete Israeli attacks through the distorting prism of the laws of war, the Commission next provided a "Legal analysis" of Israel's overarching policy. In this comprehensive analysis, the Commission executed an abrupt reversal as it repeatedly indicted Israel for having intentionally targeted civilians and civilian objects. (See Table 5.) Indeed, it even charged Israel with the crime against humanity of "extermination"—i.e., "the killing of one or more persons, including by inflicting conditions of life calculated to bring about the destruction of part of a population, where the killing constituted or was part of a mass killing of members of a civilian population."⁴¹ The Commission made no attempt to reconcile its discrete local findings that Israel did not systematically target civilians and civilian objects, with its global findings that Israel repeatedly targeted civilians and civilian objects. In a subsequent report, the Commission found Israel culpable for multiple war crimes and crimes against humanity in its systematic assault on Gazan hospitals and systematic abuse of Palestinian detainees. (See Table 5.1.) In particular, it found that "[a]ttacks on health-care facilities are an intrinsic element

41. *Detailed Findings II*, paras. 460–68.

of the Israeli security forces’ broader assault on Palestinians in Gaza and the physical and demographic infrastructure of Gaza,” and that the attacks and related acts, such as impeding medical treatment abroad and delivery of fuel, food, water, and medicine to hospitals, “are part of the ongoing Israeli attack against the Palestinian people that began on 7 October.”⁴² The bottom line was that, although the Commission initially depicted Israel as waging a war in Gaza, it was inching toward the conclusion that Israel was committing genocide in Gaza: the situation on the ground was no longer “a wide-scale and unprecedented military operation . . . to ensure the complete elimination of Hamas once and for all” but, on the contrary, “an ongoing Israeli attack against the Palestinian people.”⁴³

TABLE 5 The UN Commission Found Israel Legally Culpable for Systematically Targeting Civilians and Civilian Objects in Gaza

The Commission . . . finds that, in relation to attacks against civilians, the conduct of the ISF constitutes the war crime of intentionally directing attacks against the civilian population or against individual civilians not taking direct part in hostilities. Where the conduct led to the death of a civilian, it constitutes the war crime of murder or willful killing.^a

In relation to incidents reviewed by the Commission . . . where large scale air strikes and the demolition of buildings by the ISF caused the destruction of civilian objects (including residential buildings, markets, hospitals, schools and universities, aid organizations and UN facilities), the Commission finds that such conduct constitutes the war crime of intentionally directing attacks against civilian objects that are not military objectives or justified by military necessity or not imperatively demanded by the necessities of the conflict.^b

In most cases reviewed, the Commission did not receive any credible evidence of the civilian object in question being a legitimate military target.^c

(continued)

42. *Report of the Independent International Commission*, paras. 88–89. The Commission also found that “[a]ttacks by Palestinian armed groups on medical staff, medical facilities and ambulances in Israel on and after 7 October constitute a war crime.” It did not allege that these attacks by Palestinian armed groups were systematic in nature (*ibid.*, paras. 16, 100).

43. It might be contended that the Commission was just registering an evolving situation on the ground. It was already clear, however, during the early weeks of the Israeli assault and certainly by the time that South Africa submitted its application to the ICJ at the end of 2023 that Israel had embarked on a genocide in Gaza.

TABLE 5 (continued)

[T]he Commission finds that the attacks against civilians, including children, women, persons with disabilities and older persons, during their evacuation and within the designated safe zones amount to the war crime of intentionally directing attacks against the civilian population.^d

In all cases analyzed by the Commission in relation to the attacks along the evacuation routes and within designated safe areas, the Commission finds that the ISF had clear knowledge of the presence of civilians along the evacuation routes and within the safe areas but nevertheless it shot at and killed the civilians, some of whom were holding makeshift white flags. The Commission finds this constituted the war crime of murder or willful killing.^e

The Commission highlights the testimonies it received from two physicians who treated many children who suffered from direct gunshot wounds without any other injuries (for example, from shrapnel). The Commission notes that this could be indicative of a pattern in which children were directly targeted in Gaza.^f

The Commission finds on reasonable grounds that, where it was foreseeable that children would be present in the area targeted by the ISF (for example, in residential buildings, UNRWA schools, medical facilities and within designated safe zones), ISF intentionally directed attacks against the civilian population including the children. . . . The Commission concludes that the conduct of the ISF amounts to the war crime of intentionally directing attacks against the civilian population, including children. Where such conduct led to the deaths of children, it amounts to the war crime of murder or willful killing.^g

The Commission finds that Israeli authorities, through the manner in which they have conducted their military campaign in the Gaza Strip, have committed the war crime of intentionally using starvation of civilians as a method of warfare by depriving the civilian population of the Gaza Strip of objects indispensable to their survival.^h

The Commission concludes that the Israeli authorities have committed the crime against humanity of extermination of part of the civilian population in the Gaza Strip through direct and indirect means.ⁱ

^a *Detailed Findings II*, para. 420.

^b *Ibid.*, para. 421.

^c *Ibid.*, para. 422.

^d *Ibid.*, para. 427.

^e *Ibid.*, para. 428.

^f *Ibid.*, para. 433.

^g *Ibid.*, para. 434.

^h *Ibid.*, para. 451.

ⁱ *Ibid.*, para. 468.

TABLE 5.1 The UN Commission Found Israel Legally Culpable for Systematically Targeting Gazan Hospitals and Abusing Palestinian Detainees

The Commission finds that Israel has implemented a concerted policy to destroy the health-care system of Gaza. Israeli security forces have deliberately killed, wounded, arrested, detained, mistreated and tortured medical personnel and targeted medical vehicles, constituting the war crimes of willful killing and mistreatment and the crime against humanity of extermination.^d

In relation to the attacks on Nasr, Shifa, Awdah and Turkish hospitals, the Commission finds that, in view of the excessive number of civilian deaths and injuries, as well as the damage caused to and the destruction of the hospitals' facilities, Israeli security forces . . . [committed] the war crimes of willful killing and attacks against protected objects. The Commission finds that, in the attacks on Shifa' and Nasr hospitals, Israeli security forces . . . violated the principle of distinction.^b

Attacks against health-care facilities directly resulted in the killing of civilians, including children and pregnant women, who were receiving treatment or seeking shelter and indirectly led to deaths of civilians owing to the resulting lack of medical care, supplies and equipment, which constitutes a violation of Palestinians' right to life. The Commission also concludes that such acts constitute the crime against humanity of extermination.^c

In relation to the 29 January attack on a family, including five children, that was in a vehicle and on a Palestine Red Crescent Society ambulance. . . , the Commission, based on its investigation, concludes on reasonable grounds that the 162 Division of the Israeli security forces was operating in the area and is responsible for killing the family of seven, as well as for shelling the ambulance, killing the two paramedics who were inside. Those actions constitute the war crimes of willful killing and an attack against civilian objects.^d

Intentionally targeting facilities that are crucial for the health and protection of women, newborns and children violated the norm of customary international humanitarian law that affords special protection to women and children in armed conflicts. Such harmful acts were both foreseeable and unremedied. The prolonged physical and mental suffering of injured children and the reproductive harm caused to pregnant, post-partum and lactating women amount to the crime against humanity of other inhumane acts.^e

Mistreatment of Palestinian detainees by Israeli authorities is the result of an intentional policy. Acts of physical, psychological, sexual and reproductive violence were perpetrated to humiliate and degrade Palestinians. This was observed across several facilities

(continued)

TABLE 5.1 (continued)

and temporary holding locations, as well as during interrogation and while in transit to and from facilities. Detainees, including older persons and children, were subjected to consistent mistreatment, including lack of sufficient food and appropriate hygiene facilities, beatings, abusive language and being forced to perform humiliating acts. Israeli security forces committed those acts with the intent to inflict pain and suffering, amounting to torture as a war crime and a crime against humanity. . . . The deaths of detainees as a result of abuse or neglect amount to the war crimes of willful killing or murder and violations of the right to life. . . . This systematic abuse is directly and causally linked to statements made by Israeli officials, including the Minister of National Security, who is responsible for the Israel Prison Service, and other members of the Israeli coalition Government legitimizing revenge and violence against Palestinians.^f

Israeli security forces have prohibited released detainees from returning to their places of residence in the north of Gaza. That prohibition constitutes forced displacement. Attacks against civilians attempting to return to their families amount to forcible transfer. These are war crimes and crimes against humanity.^g

^a *Report of the Independent International Commission*, para. 89.

^b *Ibid.*, para. 91.

^c *Ibid.*, para. 94.

^d *Ibid.*, para. 95.

^e *Ibid.*, para. 98.

^f *Ibid.*, paras. 102–3.

^g *Ibid.*, para. 110.

Conclusion to Section II

In its case-by-case analysis of “emblematic incidents,” the UN Commission of Inquiry consistently understated the criminality of Israel’s assaults on Gaza’s civilian population and infrastructure. In each of these incidents save one, the Commission downgraded Israel’s violation to at most the lesser charges of indiscriminate and disproportionate attacks, both of which presumed that Israel was in the first instance targeting a military object. The Commission recoiled at finding in its local analyses, even to the point of fabricating exculpatory alibis, that Israel was intentionally targeting Gazan society in all its manifestations for annihilation as a matter of policy. If the Commission had instead started from the working hypothesis that Israel was carrying out not a war but a genocide in Gaza, then, on the basis of the empirical evidence adduced as well as the genocidal context, the Commission would perforce have found in virtually all the emblematic incidents that the death and destruction visited on the civil

population resulted not from an excessive or wanton use of force against a military target but, on the contrary, from Israel's genocidal objective. That's what Amnesty, which analyzed the Gaza situation "within the framework of genocide under international law," found. In an abrupt volte-face, the Commission then concluded in its analysis of Israel's overall policy that Israel was intentionally targeting Gaza's civil population and infrastructure, to the point that the Commission accused Israel multiple times of committing the crime against humanity of "extermination." The Commission did not acknowledge, let alone attempt to reconcile, the flagrant contradiction between its local versus its global findings. In a subsequent report, the Commission edged closer to the conclusion that Israel was committing genocide.

Final Reflections

It is impossible to determine with certainty what accounted for the schizophrenic quality of the UN Commission's analysis of the Israeli assault on Gaza: that it was and wasn't intentionally targeting Gaza's civilian population. One can reasonably speculate, however, that at least two factors came into play: its overarching framework and the politics of UN reports.

First, the Commission's mandate was to investigate Israel's violations of the laws of war. An analytical framework starting from the presumption that Israel was waging a war distorted the nature of the Israeli assault by grossly understating its criminality. It left open the possibility that aspects of Israel's conduct passed legal muster: the default setting was that Israel was obeying the laws of war; each Israeli attack then needed to be individually investigated to ascertain whether the laws of war had been violated. Whereas if it was ascertained that Israel was carrying out a genocide, then its conduct ipso facto blasted the laws of war. The burden of legal proof vis-à-vis specific incidents shifts in a genocide: in a war, Israel was innocent unless proven guilty; in a genocide, it was guilty unless proven innocent. But there's another wrinkle. The purpose of the laws of war is "alleviating as much as possible the calamities of war" (*St. Petersburg Declaration*). To this end, these laws bifurcate the potential victims of war into *civilians* and *combatants*: according to the *principle of distinction*, it is impermissible to target civilians, permissible to target combatants. On the other hand, the Genocide Convention does not make out such a delineation: it is impermissible to target with genocidal intent any and

every member of a protected group.⁴⁴ (Was it calculated how many Jews in the Nazi holocaust, Tutsis in the Rwandan genocide, or Bosnian Muslims in the Srebrenica genocide were combatants?) If Israel was perpetrating a genocide in Gaza, then every death it inflicted on Gaza's population—including *combatant deaths*—was a crime. It being a genocide, Israel also couldn't legally target a civilian object such as a home or school if Hamas militants were present in it, as those militants belonged to a protected group and therefore weren't a legitimate target. The upshot is, applying the laws of war framework in the midst of a genocide obscures the cardinal fact that any and all deaths inflicted with genocidal intent must be reckoned illegal. If Israel was waging a war, then the Commission's mandate would tenably be to investigate whether or not Israel was, in this or that instance, violating the laws of war. If, however, Israel was carrying out a genocide, then such an assault was in all its aspects performe criminal.⁴⁵

The oddity of the Commission's report was that the departure point of its local findings was that Israel was waging a war but the only possible conclusion from its ultimate, global findings was that Israel was carrying out a genocide. It found in its legal conclusions, for example, that Israel's methodical assault on Gaza's health-care system was "part of the ongoing Israeli attack against the Palestinian people that began on 7 October." In other words, Israel's objective from the inception of its assault, made manifest in its systematic attack on Gaza's hospitals, was not to inflict a military defeat on Hamas but, something altogether different, to annihilate "the Palestinian people." If the Commission was persuaded of this, then the default setting it adopted in its investigation

44. The civilian/combatant distinction "works" in a war situation but not in a genocide. It's possible to wage a war without targeting civilians while warfare presumes combatants; but it's impossible to perpetrate a genocide without targeting civilians while the presence or not of combatants among the targeted population is immaterial in a genocide—members of the protected group are being targeted regardless of any posited distinctions between them. Put otherwise, it's tenable via the principle of distinction to alleviate the destructiveness of war while still waging war but it's not tenable to alleviate a genocide via the principle of distinction without it ceasing to be a genocide. There cannot be "laws of genocide" mirroring the "laws of war" that mitigate the calamities of genocide.

45. A genocidal State in a hybrid situation can also stake a "legitimate" claim to kill combatants—that is, when it is simultaneously engaged in a genocide and also waging a war against a belligerent with the ordinary rights that redound on a belligerent to target combatants. But the point still stands. Insofar as combatants are targeted in a genocide, their killings must be reckoned illegal and no different from murdering civilians. If Nazi combatants were instructed to only target Jews in the opposing army, the order would surely be illegal: even as combatants were being targeted, the nature of the order was genocidal.

of specific “emblematic incidents”—that Israel didn’t intentionally and systematically violate the laws of war—was untenable. Rather, it followed that, on the contrary, Israel *was* intentionally and systematically breaching the laws of war in pursuit of its genocidal goal. This was the default setting in the Commission’s comprehensive analysis of Israel’s overarching policy: that in the “ongoing Israeli attack against the Palestinian people,” the civilian population and civilian objects were being methodically targeted. The contradiction between the Commission’s local and global findings traced back in part to the contradiction in the respective working hypotheses—war versus genocide—informing these two sections.

Second, it is impossible to ignore that politics always interpose in UN investigations. The closer a faction stands to Power, the further it stands from Truth, while the further a faction stands from Power, the more independent it is and the closer it can stand to Truth. The structure of this particular report suggests that different hands wrote the “local” versus the “global” findings: the former sedulously searched every nook and cranny for a legitimate military target to extenuate Israeli war crimes while the latter fell just shy of concluding that Israel was committing genocide in its relentless “attack against the Palestinian people.” The finished product seemingly amounted to a compromise between factions more or less in thrall to Israel and its powerful backer in Washington.

Postscript

In September 2025, the UN Commission of Inquiry released a new report in which it found that Israel was committing genocide in Gaza.⁴⁶ It reached this conclusion after extensively documenting (from UN sources and respected human rights organizations) that Israel had willfully committed acts defined by Article II of the 1948 Genocide Convention—Killing members of the group; Causing serious bodily or mental harm to members of the group; Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part; Imposing measures intended to prevent births within the group—“with the intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such.”⁴⁷ The report explicitly addressed Israel’s contention that it was engaged in a “war of self-defense” against Hamas.⁴⁸ It found that, on the contrary, if not this or that “discrete” or “individual” incident but, instead, the “totality” or “overall factual situation” of the Israeli assault was scrutinized⁴⁹—the absolute number of Gazans, and proportion of civilians versus combatants, killed and injured;⁵⁰ the systematic targeting of civilians along evacuation routes and in safe zones;⁵¹ the systematic targeting of homes, vital infrastructure, and healthcare facilities (as well as medical personnel);⁵² the systematic denial of basic necessities (food, water, fuel, electricity, medicine) to the civilian population and use of “starvation as a method of warfare”;⁵³

46. *Legal Analysis of the Conduct of Israel in Gaza Pursuant to the Convention on the Prevention and Punishment of the Crime of Genocide*, Conference Room Paper of the Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel (16 September 2025, A/HRC/60/CRP.3; <https://www.ohchr.org/sites/default/files/documents/hrbodies/hrcouncil/sessions-regular/session60/advance-version/a-hrc-60-crp-3.pdf>). Hereafter: *Legal Analysis*.

47. The Commission did not find evidence of a fifth act defined by Article II of “forcibly transferring children of the group to another group” (*Legal Analysis*, para. 16).

48. *Ibid.*, para. 177.

49. *Ibid.*, paras. 144, 158, 160, 254.

50. *Ibid.*, paras. 180–86; see also *ibid.*, paras. 48, 50. A classified Israeli intelligence report found that 83 percent of Gazans killed were civilians (*ibid.*, paras. 21, 180).

51. *Ibid.*, para. 182; see also *ibid.*, paras. 49, 58–59.

52. *Ibid.*, paras. 187, 204–8; see also *ibid.*, paras. 87–90, 93–106. A military expert said of the bombing that “Israel is dropping in less than a week what the United States was dropping in Afghanistan in a year, in a much smaller, much more densely populated area” (*ibid.*, para. 22).

53. *Ibid.*, paras. 190–203; see also *ibid.*, paras. 48, 85–86, 96, 100, 104, 110–26. The report noted that “The denial of entry for special infant milk, resulting in the starvation of new-born

the systematic targeting of children, including “toddlers,” in the head and chest;⁵⁴ as well as the targeting of Gaza’s only IVF (in vitro fertilization) clinic;⁵⁵ the systematic targeting of cultural, educational, and religious sites;⁵⁶ the systematic resort to sexual and gender-based violence, including “many cases of rape”;⁵⁷ etc.—then it was impossible to reconcile the “overall factual situation” with a defensive “war” against Hamas. The report thus eschewed the terminology of the laws of war. There was, for example, no mention of “disproportionate” attacks anywhere in it. A disproportionate attack presupposes that a legitimate military object was targeted but an excessive number of civilians were killed. The report found, however, that, overwhelmingly, it was Gaza’s civilian population and infrastructure that was targeted. Indeed, the massive death and destruction was *proportionate* to Israel’s genocidal goal. Further to this point, the report only occasionally paused to examine an Israeli claim that it was targeting Hamas in this or that attack:⁵⁸ in the grand scheme of things, beside the magnitude of death and destruction visited on Gaza, the lethal incidents in which a Hamas militant might have been present amounted to a trifle and an irrelevance.⁵⁹ The report’s upshot was

and young infants, is especially powerful evidence of an intention to destroy the population” (ibid., para. 190).

54. Ibid., paras. 214–19; see also ibid., paras. 28, 30, 32, 46, 56 (“toddlers” at paras. 28, 215). The report observed that “The targeting of children is relevant to infer the genocidal intent of the Israeli authorities because . . . the extensive and deliberate targeting of Palestinian children shows that the military operations were not conducted solely to defeat Hamas and other Palestinian armed groups, nor can they legitimately contribute to the other stated goals of defending the state of Israel and securing the release of Israeli hostages” (ibid., para. 218). On a related note, the commissioner-general of UNRWA stated that “10 children lost one or both legs in the war every day,” and another UN organization reported that “Gaza is home to the largest cohort of child amputees in modern history” (ibid., paras. 53, 214).

55. Ibid., para. 207; see also ibid., paras. 57, 79, 151–54.

56. Ibid., paras. 188–89; see also ibid., paras. 91–92, 146.

57. Ibid., paras. 209–13; see also ibid., paras. 65–71 (“many cases” at para. 66), 73, 80. The report states that “the nature and scale of these acts [of sexual and gender-based violence] do not support and cannot justify Israel’s claims that its military operations were conducted in self-defense, to defeat Hamas and other Palestinian armed groups, or to secure the release of Israeli hostages” (ibid., para. 212).

58. Ibid., paras. 35–44, 95, 103, 118, 185. Incidentally, in just one single instance did the Israeli alibi hold up, if only in part.

59. Israel’s critics fixated on its use of AI to liquidate alleged Hamas militants as they returned home, killing many family members. See Yuval Abraham, “‘Lavender’: The AI machine directing Israel’s bombing spree in Gaza,” *+972 Magazine* (3 April 2024). But this too

that the quantity (gross numbers) and quality (selection of targets) of the Israeli attack couldn't be squared with the paradigm of a war: "[T]here was no military necessity to justify the pattern of conduct."⁶⁰ It was palpably not Hamas but the entirety of Gaza's population that was being targeted; indeed, the "war" aspect of the hostilities was, all told, a fiction.⁶¹ The body of this chapter expounded that the laws of war and genocide frameworks are mutually antithetical. The UN Commission's latest report confirmed this: once it concluded that Israel was committing a genocide in Gaza, it dispensed with the language and investigative modus operandi of a "war" situation.

To clinch its case that Israel was committing genocide in Gaza, the UN Commission had to demonstrate not only that Israel willfully committed acts listed in Article II of the Genocide Convention, but also that the "intent" behind Israel's commission of these acts was to physically destroy the Gazan population. The report found that from right after 7 October forward, senior Israeli officials repeatedly uttered genocidal statements;⁶² that the Israeli security forces dispatched to Gaza understood these to be genocidal orders, weren't subject to "any genuine investigations or prosecutions" for committing acts prohibited by the Convention, and that, on

was largely an irrelevance and a distraction: long before AI came along, Israel routinely killed many civilians as it targeted alleged Hamas militants in densely populated civilian neighborhoods; of the more than two hundred thousand Gazan homes damaged or destroyed since 7 October, it's implausible that AI was implicated in more than a tiny fraction of the attacks; harping on the use of AI to track down alleged Hamas militants obscured the crux that, overwhelmingly, Israel wasn't even targeting Hamas but instead the entire civilian population. The criminality wasn't that Israel committed disproportionate attacks, in which an excessive number of civilians were killed when targeting Hamas, but that it was committing genocide as it targeted not Hamas but the Gazan people.

60. *Legal Analysis*, para. 179.

61. One indicative juxtaposition is that, during the period March–August 2025, fifty Israelis versus twelve thousand Gazans, eleven thousand of them civilians, were killed. A global fatality ratio of 1:240 or combatant ratio of 1:20 betokens at minimum a slaughter or extermination not a war. The figure of Hamas militants killed can itself be misleading: most of them almost certainly died not on the battlefield but alongside Gazan civilians in the course of Israel's genocidal assault. For the numerical data, see International Crisis Group, *The World's Shame in Gaza* (2 September 2025; <https://www.crisisgroup.org/middle-east-north-africa/east-mediterranean-mena/israel-palestine/worlds-shame-gaza>), and ACLED (Armed Conflict Location & Event Data), "Gaza After Two Years: As Israel expands control and sows chaos, Hamas adapts to survive" (17 September 2025; <https://acleddata.com/report/gaza-after-two-years-israel-expands-control-and-sows-chaos-hamas-adapts-survive>).

62. *Legal Analysis*, paras. 221–33; see also paras. 162–76.

the contrary, Israeli officials were “encouraging, permitting and authorizing such criminal behavior to continue”;⁶³ that Israel’s genocidal intent could reasonably be inferred from the quantity and quality of the criminal acts committed by Israeli forces.⁶⁴ The report thus concludes that “Israeli political and military leaders possess the specific intent to commit genocide against Palestinians in Gaza, based on their statements and the pattern of conduct of those under their command since 7 October 2023.”⁶⁵ A slightly more nuanced analysis would perhaps read like this:

Israel intentionally committed acts that perforce resulted in the destruction of the Gazan population. The inevitable massive death and destruction that Israel visited on Gaza traced back to primal vengeance,⁶⁶ Israel’s perceived need to restore the Arab world’s fear of it,⁶⁷ and its determination to “solve” the Gaza Question once and for all—an historical opportunity, long coveted and then miraculously gifted on 7 October, that Israel was dead-set on exploiting, come what may, to the hilt. The genocide commenced immediately after Hamas’s attack—the initial public statements by senior Israeli officials perfectly, indeed eerily, foreshadowed what would unfold in the next two years—but it was necessarily calibrated to take account of the response abroad. If Israel didn’t outright nuke Gaza, that’s because, functioning as Israel must within the constraints, albeit feeble, imposed by the vicissitudes of international public opinion, it couldn’t. However, even as

63. Ibid., paras. 163, 184, 232, 237, 242.

64. “Considering the evidence in totality, the Commission has found that Israeli authorities were aware of the high probability that their military operations, the imposition of a total siege, including the blocking of humanitarian aid into Gaza, and the destruction of housing and of health systems and facilities would lead to the physical destruction of Palestinians, in whole or in part, in Gaza. Importantly, in relation to the blocking of humanitarian aid, Israeli authorities were put on notice by the International Court of Justice, the Security Council and various human rights experts and groups. . . . The Commission therefore finds that Israeli authorities knowingly and deliberately inflicted such conditions of life calculated to bring about the destruction of Palestinians in Gaza”; “[T]he Commission finds that genocidal intent was the only reasonable inference that could be drawn based on the pattern of conduct of the Israeli authorities” (ibid., paras. 144, 220).

65. Ibid., para. 238.

66. “[V]engeance is a great value. There is vengeance for what they did to us. . . . [I]n 100 years they will know that you don’t mess with the Jews”—senior Israeli security forces officer (ibid., para. 173).

67. “The fact that 50,000 have already been killed in Gaza is necessary and required for future generations. . . . [T]hey need a Nakba from time to time to feel the price”—former head of Israel’s Military Intelligence (ibid., para. 175).

Israel's overarching, strategic objective was not to annihilate but rather to ethnically cleanse Gazans,⁶⁸ it was also prepared to kill off as many civilians and pulverize as much infrastructure as was politically feasible in order to "persuade" the population to leave or "persuade" the international community to take it in. The genocidal intent behind Israel's assault on Gaza was thus compounded or overdetermined by multiple motives: to exact revenge ("Remember what Amalek did to you"), to restore its "deterrence capability" (the Arab world's fear of it), and to coerce Gaza's population into flight. The realization of each of these goals separately and a fortiori in combination presupposed as a matter of course Israel's deliberate, massive destruction of Gaza's population. Even if not as an end in itself but, rather, as a means to an end (ends), it was all the same Israel's "intent to destroy" Gaza's population "as such."⁶⁹ This is not idle speculation, it's a fait accompli: Israel has already committed genocide in Gaza. Absent external political constraints, and if Gazans prove unwilling or unable to leave, then Israel, its leadership as well as Israeli Jewish society en masse—this was a national project—won't recoil at totally annihilating Gaza's population. Far from it. If need be, Israel won't just act with "intent to destroy, in whole or in part," Gaza's population, it will be positively gleeful and relish the prospect. Whereas Heinrich Himmler, cognizant at some level of his criminality, feigned anguish in his infamous Posen speech at the onerous burden placed by History on the shoulders of Germany to rid the world of Jews, Israeli security forces danced the hora and then flaunted their foul deeds on social media. It was the giddiness of a child, magnifying glass in hand, burning ants.

68. The report mistakenly infers that Israel's intention was to "trap Palestinians in Gaza, creating such conditions that would prohibit them from escaping and ultimately lead to their destruction" (ibid., para. 201).

69. If a State is "intent to destroy, in whole or in part, a national, ethnical, racial, or religious group, as such," isn't it committing genocide regardless of the animating motive(s)? To contend otherwise would yield the manifestly absurd conclusion that, if Hitler's objective with the Final Solution had been to expropriate Jewish property or free Germany from perceived Jewish domination, then it would not have constituted a genocide as his goal would not have been to destroy the Jews "as such" or as an end in itself. On genocide as a means toward a discrete end, see also *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Croatia v. Serbia)*, "Separate Opinion of Judge Bhandari" (3 February 2015), para. 50; *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Croatia v. Serbia)*, "Dissenting Opinion of Judge Cançado Trindade" (3 February 2015), para. 144.



FIGURE 3. Julia Sebutinde. © Imago / Xinhua

Free Agent or Foreign Agent?

Article 18. No member of the Court can be dismissed unless, in the unanimous opinion of the other members, he has ceased to fulfill the required conditions

Article 20. Every member of the Court shall, before taking up his duties, make a solemn declaration in open court that he will exercise his powers impartially and conscientiously

—Statute of the International Court of Justice

Introduction

On 29 December 2023, the Government of the Republic of South Africa filed an application at the International Court of Justice (ICJ). It stated that, by virtue of “acts threatened, adopted, condoned, taken and being taken by the Government and military of the State of Israel against the Palestinian people . . . in the wake of the attacks in Israel on 7 October 2023,” Israel was in violation of the 1948 Convention on the Prevention and Punishment of the Crime of Genocide.¹ South Africa requested that the Court, pending the merits phase of the case, indicate provisional measures to protect the rights of Palestinians in Gaza as they were at imminent risk of irreparable harm. On 26 January 2024, the Court issued its “Order.”² The

1. *Application Instituting Proceedings* (29 December 2023; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20231228-app-01-00-en.pdf>), para. 1. Hereafter: *Application*.

2. “Order” (26 January 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240126-ord-01-00-en.pdf>).

Court found that Israel was plausibly committing genocide³ and indicated provisional measures.

Of the seventeen voting judges, only one appended a “Dissenting Opinion” and only one voted against all the provisional measures. That lone judge was Julia Sebutinde from Uganda. Even Judge ad hoc Aharon Barak from Israel appended not a “Dissenting Opinion” but instead a more conciliatory “Separate Opinion” and voted in favor of two of the provisional measures. Were the grounds for her dissent, if not dispositive, then at any rate cogent, it would be gratuitous to speculate on Judge Sebutinde’s aberrant jurisprudence. But there’s good cause to wonder what’s going on: *first*, she repeats—often *verbatim*—Israel’s pleadings; *second*, she doesn’t just dismiss but altogether *ignores* all contrary evidence, however compelling; *third*, as the provisional measures phase unfolded in February, March, and May 2024, her jurisprudence became ever more erratic to the point of being utterly incoherent. It is as if Judge Sebutinde was being buffeted by political, not legal, imperatives; as if she was marching to the beat of someone else’s drum.

Meanwhile, in the midst of the “Genocide” proceedings, a second, altogether discrete case was playing itself out before the Court. On 30 December 2022, the United Nations General Assembly had requested an Advisory Opinion on the legality of the “policies and practices” of Israel in the Occupied Palestinian Territory, and the implications of Israel’s conduct for the “legal status of the occupation” as a whole. On 19 July 2024, the Court delivered its Advisory Opinion. It found that Israel’s policies and practices were in egregious violation of international law and that the occupation itself was illegal.⁴ Once again, Judge Sebutinde appended the only dissenting opinion. It was so outrageous, not least because huge swathes of it were demonstrably plagiarized from publications by Israel’s stalwarts, that it posed in stark form the question whether she was being bribed or blackmailed by Israel.

In the text that follows, Sections I–III will analyze the Court Orders in the “Genocide” proceedings, and Section IV will analyze the “Legal Consequences” Advisory Opinion.

3. Ibid., para. 54.

4. *Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem* (19 July 2024; <https://www.icj-cij.org/case/186>). Hereafter: *Legal Consequences* (2024).

DOCUMENT KEY		
1.	29 December 2023	Republic of South Africa submits <i>Application Instituting Proceedings</i>
2.	11–12 January 2024	Republic of South Africa and State of Israel present at <i>Public Sitting</i>
3.	26 January 2024	Court issues <i>Order</i> , three judges append <i>Declarations</i> , one judge appends <i>Separate Opinion</i> , one judge (Sebutinde) appends <i>Dissenting Opinion</i>
4.	12 February 2024	Republic of South Africa submits <i>Urgent Request for Additional Measures Under Article 75(1) of the Rules of Court of the International Court of Justice</i>
5.	15 February 2024	State of Israel submits <i>Observations of the State of Israel on the Republic of South Africa's "Urgent Request for Additional Measures Under Article 75(1) of the Rules of Court" Dated 12 February 2024</i>
6.	16 February 2024	<i>Decision of the Court on South Africa's Request for Additional Provisional Measures</i>
7.	6 March 2024	Republic of South Africa submits <i>Urgent Request and Application for the Indication of Additional Provisional Measures and the Modification of the Court's Prior Provisional Measures Decisions Pursuant to Article 41 of the Statute of the International Court of Justice and Articles 75 and 76 of the Rules of Court of the International Court of Justice</i>
8.	15 March 2024	State of Israel submits <i>Observations of the State of Israel on the Request Filed by the Republic of South Africa on 6 March 2024 for the Indication of Additional Provisional Measures and/or the Modification of Measures Previously Indicated</i>
9.	28 March 2024	Court issues <i>Order</i> , three judges append individual <i>Declarations</i> , four judges append a <i>Joint Declaration</i> , two judges append <i>Separate Opinions</i>
10.	10 May 2024	Republic of South Africa submits <i>Urgent Request for the Modification and Indication of Provisional Measures Pursuant to Article 41 of the Statute of the International Court of Justice and Articles 75 and 76 of the Rules of Court of the International Court of Justice</i>

(continued)

DOCUMENT KEY (<i>continued</i>)		
11.	16–17 May 2024	Republic of South Africa and State of Israel present at the <i>Public Sitting</i>
12.	18 May 2024	State of Israel submits <i>Response of the State of Israel to the Question Posed by Judge Nolte at the Oral Hearing of 17 May 2024 on South Africa’s Fourth Request for Provisional Measures</i>
13.	20 May 2024	Republic of South Africa submits <i>South Africa’s Comments on the Reply by Israel to the Question Posed by Judge Nolte at the End of the Oral Hearings Held on 17 and 18 May 2024</i>
14.	24 May 2024	Court issues <i>Order</i> , three judges append <i>Declarations</i> , two judges (including Sebutinde) append <i>Dissenting Opinions</i>
15.	19 July 2024	Court issues <i>Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem, Advisory Opinion</i> , three judges append a <i>Joint Opinion</i> , two Judges append a <i>Joint Declaration</i> , five judges append individual <i>Separate Opinions</i> , six judges append individual <i>Declarations</i> , one judge (Sebutinde) appends <i>Dissenting Opinion</i>

I

Judge Sebutinde Dissents

On 26 January 2024, the Court issued its first “Order.” It found that Israel was plausibly committing genocide and indicated provisional measures to protect the rights of Palestinians in Gaza as they were at imminent risk of irreparable harm. Alone among the seventeen judges sitting on the bench, Judge Sebutinde appended a “Dissenting Opinion.” It comprised three claims: (1) the Israel-Palestine conflict is a strictly political, not legal, dispute; (2) South Africa hasn’t adduced any evidence that Israel is plausibly committing genocide; (3) if Israel isn’t plausibly committing genocide, then the Court cannot indicate provisional measures and, regardless, measures indicated by the Court are redundant or otherwise unwarranted.

IA

Is the Israel-Palestine Conflict a Strictly Political Dispute?

Judge Sebutinde denied that the Israel-Palestine conflict has any legal dimension and purported that invoking the law is a pretext to sidestep the political process:

I am also strongly of the view that the controversy or dispute between the State of Israel and the people of Palestine is essentially and historically a *political or territorial* (and, I dare say, ideological) one. It calls not only for a diplomatic or negotiated settlement, but also for the implementation in good faith of all relevant Security Council resolutions by all parties concerned, with a view to finding a permanent solution whereby the Israeli and Palestinian peoples can peacefully coexist. It is my considered opinion that the dispute or controversy is not a legal one calling for judicial settlement by the International Court of Justice. Unfortunately, the failure, reluctance or inability of States to resolve political controversies such as this one through effective diplomacy or negotiations may sometimes lead them to resort to a pretextual invocation of treaties like the Genocide Convention, in a desperate bid to force a case into the context of such a treaty, in order to foster its judicial settlement: rather like the proverbial “Cinderella’s glass slipper.” In my view, the present case falls in this category. (“Dissenting Opinion,” para. 4; emphasis in original)

Judge Sebutinde cobbled together a seven-paragraph “political context of the Israeli-Palestinian conflict” (paras. 5–11) reaching back to the 1947 Partition Resolution and going forward to the present. The ostensible purpose of this potted history, mostly consisting of references to a potpourri of UN resolutions, was to demonstrate that

a permanent solution to the Israeli-Palestinian conflict can only result from good faith negotiations between Israeli and Palestinian representatives working towards the achievement of a just and sustainable two-State solution. A solution cannot be imposed from outside, much less through judicial settlement. (Ibid., para. 11)

These observations by Judge Sebutinde perplex on multiple counts. Was Judge Sebutinde saying that even if she had been persuaded that Israel was plausibly committing genocide in Gaza, the Court should still not have

heard the case? Judge Sebutinde stated in her dissent that Israel “could” be violating international humanitarian law (IHL) in Gaza (ibid., paras. 3, 21, 27, 32–33). Was she saying that, even were that the case, Israel should not be held legally culpable? Was Judge Sebutinde of the opinion that the International Criminal Court (ICC) was wrong to investigate Israeli crimes and to contemplate issuing arrest warrants? Was Judge Sebutinde saying that the ICJ should not have heard the 2004 case on the legality of the wall Israel was constructing in the West Bank?⁵ In a prefiguration of Judge Sebutinde’s dissent, Israel had argued in the “Wall” case that the Court “has no jurisdiction because of the ‘political’ character of the question posed.” The Court responded at the time that it

cannot accept the view, which has also been advanced in the present proceedings, that it has no jurisdiction because of the “political” character of the question posed. As is clear from its long-standing jurisprudence on this point, the Court considers that the fact that a legal question also has political aspects, “as, in the nature of things, is the case with so many questions which arise in international life, does not suffice to deprive it of its character as a ‘legal question’ and to ‘deprive the Court of a competence expressly conferred on it by its Statute.’”⁶

The vote in that Advisory Opinion declaring the wall illegal was 14–1. Was Judge Sebutinde purporting that not just her fourteen colleagues currently sitting on the bench, but also the fourteen judges on the Court in 2004, got things wrong by hearing the case?

The only basis for resolving the Israel-Palestine conflict, Judge Sebutinde opined, was “good faith negotiations” without “judicial” interference. She omitted mention, however, that the very UN resolutions cited by her in support of such “good faith negotiations” simultaneously delineated specific legal principles governing such negotiations—such as “the established principle of international law on the inadmissibility of the acquisition of territory by war”⁷ and the Geneva Convention IV prohibition that “[t]he Occupying Power shall not . . . transfer parts of its own civilian population into the territory

5. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory* (9 July 2004). Hereafter: *Legal Consequences* (2004).

6. Ibid., para. 41; internal quote from *Application for Review of Judgment No. 158 of the United Nations Administrative Tribunal* (1973).

7. *Legal Consequences* (2004), paras. 74–75, 87, 117.

it occupies”⁸—and underscored the importance of enforcing the established law. Table 1 juxtaposes what Judge Sebutinde included and excluded from sources she cited.

TABLE 1 A Juxtaposition of What Judge Sebutinde Cites and What She Omits		
Source	What Judge Sebutinde Cites	What Judge Sebutinde Omits
UNSC res 2334 (2016) ^a 14 of the 15 members of the United Nations Security Council voted in favor of the resolution, while the US abstained.	“In 2016, the Security Council again recalled both parties’ obligations and ‘[c]alled upon all parties to continue, in the interest of the promotion of peace and security, to exert collective efforts to launch credible negotiations on all final status issues in the Middle East peace process.’ . . . In this regard, the Security Council ‘urg[ed] . . . the intensification and acceleration of international and regional diplomatic efforts and support aimed at achieving without delay a comprehensive, just and lasting peace in the Middle East.’” (“Dissenting Opinion,” para. 8)	The resolution first sets forth the legal principles that “[g]uided” a resolution of the conflict, among them, “the inadmissibility of the acquisition of territory by force,” and “the obligation of Israel, the occupying Power, to abide scrupulously by its legal obligations and responsibilities under the Fourth Geneva Convention Relative to the Protection of Civilian Persons in Time of War, of 12 August 1949.” It then “[c]ondemn[s] . . . the construction and expansion of settlements, transfer of Israeli settlers . . . in violation of international humanitarian law.” It concludes by “[s]tressing” the legal principles for resolving the conflict: “1. <i>Reaffirms</i> that the establishment by Israel of settlements in the Palestinian territory occupied since 1967, including East Jerusalem, has no legal validity and constitutes a flagrant violation under international law. . . . ; 2. <i>Reiterates</i> its demand that Israel immediately and completely cease all settlement activities in the occupied Palestinian territory, including East Jerusalem, and that it fully respect all of its legal obligations in this regard; 3. <i>Underlines</i> that it will not recognize any changes to the 4 June 1967 lines, including with regard to Jerusalem, other than those agreed by the parties through negotiations; . . . 7. <i>Calls upon</i> both parties to act on the basis of international law, including international humanitarian law.” (UNSC Resolution 2334 (2016); all emphases in original)

(continued)

8. *Geneva Convention (IV) Relative to the Protection of Civilian Persons in Time of War* (12 August 1949; <https://ihl-databases.icrc.org/en/ihl-treaties/gciv-1949?activeTab=1949GCs-APs-and-commentaries>), Article 49, para. 6.

TABLE 1 (continued)

Source	What Judge Sebutinde Cites	What Judge Sebutinde Omits
UNGA res 75/22 (2020) UNGA res 76/10 (2021) UNGA res 77/25 (2022)^b This annual UNGA resolution, going back decades, is titled “Peaceful Settlement of the Question of Palestine.” Each year it passes with overwhelming majorities and is opposed by Israel, the United States, sundry South Pacific atolls, and this or that random country.	“[T]he General Assembly has: ‘[r]eiterate[d] its call for the achievement, without delay, of a comprehensive, just and lasting peace in the Middle East on the basis of the relevant United Nations resolutions, including Security Council resolution 2334 (2016), the Madrid terms of reference, including the principle of land for peace, the Arab Peace Initiative and the Quarter road map, and an end to the Israeli occupation that began in 1967, including of East Jerusalem, and reaffirms in this regard its unwavering support, in accordance with international law, for the two-State solution of Israel and Palestine, living side by side in peace and security within recognized borders, based on the pre-1967 borders.’ (See General Assembly resolution 77/25 of 6 December 2022; General Assembly resolution 76/10 of 1 December 2021; General Assembly resolution 75/22 of 2 December 2020.)” (“Dissenting Opinion,” para. 9)	The text of these resolutions* begins by <i>repeatedly</i> emphasizing the importance of international law and legal accountability: “[r]eaffirming the principle of the inadmissibility of the acquisition of territory by force,” and “the illegality of Israeli settlement activities”; “[c]alling for full respect for international law,” and “[s]tressing also the need to ensure accountability for all violations of international humanitarian law and international human rights law in order to end impunity, ensure justice, deter further violations, protect civilians and promote peace,” and “in particular, [the need] for an immediate halt to all actions contrary to international law”; “[s]tresses . . . compliance with and respect for the Charter of the United Nations and international law, including international humanitarian law and international human rights law”; “[c]alls upon both parties to act responsibly and in compliance with international law,” and “Israel, the occupying Power, to comply strictly with its obligations under international law and to cease all of its measures that are contrary to international law . . . and recalls in this regard the principle of the inadmissibility of the acquisition of land by force and therefore the illegality of the annexation of any part of the Occupied Palestinian Territory, including East Jerusalem, which constitutes a breach of international law”; “[s]tresses the need, in particular, for an immediate halt to all settlement activities.” It then delineates the legal parameters of a negotiated settlement—inter alia, “[t]he withdrawal of Israel from the Palestinian territory occupied since 1967, including East Jerusalem”; “[a] just resolution of the problem of Palestine refugees in conformity with . . . resolution 194 (III) of 11 December 1948.” Finally, it “[c]alls upon all States . . . [t]o respect and ensure respect for international law, in all circumstances, including through measures of accountability,

TABLE 1 (continued)

Source	What Judge Sebutinde Cites	What Judge Sebutinde Omits
		consistent with international law.” (“Peaceful Settlement of the Question of Palestine”; all emphases in original)
International Court of Justice, <i>Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory</i> (2004) The ICJ is the principal judicial organ of the United Nations. The vote on this Advisory Opinion was 14–1. The lone negative vote was cast by the American judge. However, he did not pen a “Dissenting Opinion,” but instead a “Declaration,” in which he was at pains to stress that there was “much” in the Advisory Opinion “with which I agree” and, in particular, “the Israeli settlements in the West Bank violate Article 49, paragraph 6” of Geneva Convention IV.	“[T]he Court has itself previously pronounced on the importance of continued negotiations. In its Advisory Opinion on the <i>Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory</i>, the Court explained: ‘Since 1947, the year when General Assembly resolution 181 (II) was adopted and the Mandate for Palestine was terminated, there has been a succession of armed conflicts, acts of indiscriminate violence and repressive measures on the former mandated territory. The Court would emphasize that both Israel and Palestine are under an obligation scrupulously to observe the rules of international humanitarian law, one of the paramount purposes of which is to protect civilian life. Illegal actions and unilateral decisions have been taken on all sides, whereas, in the Court’s view, this tragic situation can be brought to an end only through implementation in good faith of all relevant Security Council resolutions. . . . The Court considers that it has a duty to draw the attention of the General Assembly, to which the present Opinion is addressed, to the need for these efforts to be encouraged with a view to achieving as soon as possible,	In its stipulation of the “rules and principles of international law which are relevant in assessing the legality of the measures taken by Israel” (<i>Legal Consequences</i> (2004), para. 86), the Court inventoried these: “[n]o territorial acquisition resulting from the threat or use of force shall be recognized as legal” (<i>Legal Consequences</i> (2004), para. 87); “the policy and practices of Israel in establishing settlements in the Palestinian and other Arab territories occupied since 1967” have “no legal validity.” (<i>Legal Consequences</i> (2004), para. 99) In its complementary deliberations on “whether the construction of the wall has violated those rules and principles” (<i>Legal Consequences</i> (2004), para. 114), the Court found that: “[B]oth the General Assembly and the Security Council have referred, with regard to Palestine, to the customary rule of ‘the inadmissibility of the acquisition of territory by war.’ . . . It is on this same basis that the Council has several times condemned the measures taken by Israel to change the status of Jerusalem.” (<i>Legal Consequences</i> (2004), para. 117) “As regards the principle of the right of peoples to self-determination, . . . the existence of a ‘Palestinian people’ is no longer in issue. . . . [Its] rights include the right to self-determination.” (<i>Legal Consequences</i> (2004), para. 118) “The Court concludes that the Israeli settlements in the Occupied Palestinian Territory (including East Jerusalem) have been established in breach of international law.” (<i>Legal Consequences</i> (2004), para. 120)

(continued)

TABLE I (continued)

Source	What Judge Sebutinde Cites	What Judge Sebutinde Omits
	on the basis of international law, a negotiated solution to the outstanding problems and the establishment of a Palestinian State, existing side by side with Israel and its other neighbors, with peace and security for all in the region.” (“Dissenting Opinion,” para. 10)	
^a	<i>Resolution 2334 (2016)</i> , United Nations Security Council (23 December 2016; https://www.un.org/webcast/pdfs/SRES2334-2016.pdf).	
^b	<i>Resolution 75/22: Peaceful Settlement of the Question of Palestine</i> , United Nations General Assembly (2 December 2020; https://documents.un.org/doc/undoc/gen/n20/342/57/pdf/n2034257.pdf); <i>Resolution 76/10: Peaceful Settlement of the Question of Palestine</i> , United Nations General Assembly (1 December 2021; https://www.un.org/unispal/wp-content/uploads/2021/12/A.RES_76.10_031221.pdf); <i>Resolution 77/25: Peaceful Settlement of the Question of Palestine</i> , United Nations General Assembly (30 November 2022; https://www.un.org/unispal/document/peaceful-settlement-of-the-question-of-palestine-ga-resolution-a-res-77-25).	
*	The quoted passages are culled from the 2022 version of the resolution.	

Conclusion to Section I A

Even a cursory glance at the sources Judge Sebutinde herself cites reveals that international law didn’t just figure as obiter dicta; it was not an abstract, incidental, stray, marginal concern. On the contrary, international law was a—nay, *the*—cornerstone of official deliberations on the Israel-Palestine conflict; it *saturated* these proceedings, which, to the point of tedium, exhorted all parties to “respect and ensure respect for international law.” It defined the parameters for resolving the conflict while the enforcement of international law, in order to ensure “accountability” and “end impunity,” was held up as a sine qua non for achieving a just and lasting peace.

If Israel has persistently opposed any reference to international law, that’s because on *all* the final status questions—borders, settlements, refugees, Jerusalem—the law stands foursquare against it. Further, Israel has been dependent on overwhelming criminal force to preserve its illegal occupation. Small wonder, then, that Palestinian interlocutors, cognizant and confident that they stood on the right side of it, harped on international law as “the most

basic” principle and “the key” to resolving the conflict, whereas Israeli negotiators recoiled at any whiff of international law. “I am a lawyer,” Israeli foreign minister Tzipi Livni told her Palestinian counterparts at the Annapolis negotiations (2007–8). “But I am against law—international law in particular.”⁹

Notwithstanding that she sat on the principal judicial body of the United Nations, and notwithstanding that she brazenly traduced the manifest will of the international community expressed in all of its diverse organs—UNSC and UNGA, ICJ and ICC—notwithstanding all this, Judge Sebutinde, faithful scribe that she was, adopted as her own Israel’s demand for “negotiations” unencumbered by “judicial” constraints, even though—or was it *because*?—her cabining of international law enabled Israel’s impunity as it plausibly committed the “crime of crimes.”

I B

Did South Africa Adduce Any Evidence That Israel Was Plausibly Committing Genocide?

Judge Sebutinde declared in her “Dissenting Opinion” that South Africa’s *Application* was devoid of any evidence that Israel was plausibly committing genocide:

South Africa has not demonstrated, even on a prima facie basis, that the acts allegedly committed by Israel, and of which the Applicant complains, were committed with the necessary genocidal intent and that, as a result, they are capable of falling within the scope of the Genocide Convention. (para. 17)

What’s more, she was at pains to impress (but upon whom?) that there was no daylight between her own position and that of the State of Israel. Table 2 juxtaposes her rendering of Israel’s and her own opinion. It was as if Judge Sebutinde used the copy-and-paste function on her computer.

9. *Palestine Papers*: “Talking Points for Annapolis Team” (15 November 2007) (“basic”); “Minutes from 8th Negotiation Team Meeting” (13 November 2007) (Livni); “NSU Email Re: Office of the President Morning Meeting Summary” (17 February 2008) (“key”). For vehement US-Israeli opposition to international law at the 2000 Camp David negotiations, see Norman G. Finkelstein, *Knowing Too Much: Why the American Jewish romance with Israel is coming to an end* (New York: 2012), pp. 237–48.

TABLE 2 A Juxtaposition of Judge Sebutinde's Statement of Israel's Position Beside Her Statement of Her Own Position

Judge Sebutinde's Statement of Israel's Position	Judge Sebutinde's Statement of Her Own Position
"Israel states that the sole objectives of its military operation in Gaza are the rescue of Israeli hostages abducted on 7 October 2023 and the protection of the Israeli people from displacement and from any future attacks by Hamas, including by neutralizing Hamas' command structures and machinery. The Respondent further argues that any genocidal intent alleged by the Applicant is negated by (1) Israel's restricted and targeted attacks of legitimate military targets in Gaza; (2) its mitigation of civilian harm by warning them through leaflets, radio messages and telephone calls of impending attacks; and (3) its facilitation of humanitarian assistance. Israel also argues that the statements relied upon by South Africa as containing genocidal rhetoric were all taken out of context and in fact were made in reference to Hamas, not the Palestinian people as such. Moreover, Israel argued that any other persons who might have made statements containing genocidal rhetoric were completely outside the policy and decision-making processes of the State of Israel." ("Dissenting Opinion," para. 20)	"The war was not started by Israel but rather by Hamas who attacked Israel on 7 October 2023 thereby sparking off the military operation in Israel's defense and in a bid to rescue its hostages. I also must agree that any 'genocidal intent' alleged by the Applicant is negated by (1) Israel's restricted and targeted attacks of legitimate military targets in Gaza; (2) its mitigation of civilian harm by warning them through leaflets, radio messages and telephone calls of impending attacks; and (3) its facilitation of humanitarian assistance. . . . Regarding the statements of Israeli top officials and politicians that South Africa cited as containing genocidal rhetoric, a careful examination of those statements . . . shows that South Africa has either placed the quotations out of context or simply misunderstood the statements of those officials. The vast majority of the statements referred to the destruction of Hamas and not the Palestinian people as such. Certain renegade statements [were made by] officials who are not charged with prosecuting Israel's military operations." ("Dissenting Opinion," paras. 21–22)

The *Application* submitted by South Africa on 29 December 2023, as well as its presentation at the "Public Sitting" on 11 January 2024, documented Israel's violations of the Genocide Convention. South Africa adduced hundreds of references to the findings of UN-affiliated organizations and other respected international NGOs. Although Israel did not publicly disclose the sources supporting its public rebuttal on 12 January 2024, it apparently relied overwhelmingly (but not exclusively) on official Israeli documents as well

as Israeli photographic and digital evidence.¹⁰ Tables 3A and 3B present the findings and sources of, respectively, Judge Sebutinde, Israel, South Africa, and the Court “Order.” It is the enigma of enigmas on what basis Judge Sebutinde affirmed Israel’s contentions and rejected the findings and sources of South Africa and the Court majority. The official Israeli position was that it “is no longer possible to believe any report or data provided by the UN. In Gaza, Hamas is the UN, and the UN is Hamas!”¹¹ Was this Judge Sebutinde’s view as well?

TABLE 3A Is Israel Plausibly Committing Genocide in Gaza? A Juxtaposition of Findings and Sources		
Judge Sebutinde	Israel	South Africa ^a
“Israel’s restricted and targeted attacks of legitimate military targets in Gaza” (“Dissenting Opinion,” paras. 20–21)	Israel states that it “restrict[ed] its targeting practices to attack military personnel or objectives.” (“Public Sitting,” 12 January 2024, p. 31, para. 37—Shaw)	South Africa states that Israel has inflicted unprecedented, indiscriminate as well as targeted, massive death and destruction on the civilian population (including journalists, health workers, and UN staff) and civilian infrastructure (including universities, libraries, and hospitals). (<i>Application</i> and “Public Sitting,” 11 January 2024)
<u>Sources cited:</u> none	<u>Sources cited:</u> the official Israeli “Volume” submitted to the Court	<u>Sources cited:</u> UN Secretary-General ^b UN Office for the Coordination of Humanitarian Affairs-OCHA ^c UN Office for the High Commissioner of Human Rights-OHCHR ^d UN, <i>The Question of Palestine</i> ^e UN Development Program-UNDP ^f UN News ^g UNESCO ^h

(continued)

10. The only explicit evidentiary references by Israel at the “Public Sitting” to UN sources consisted of an UNRWA tweet that was “later deleted . . . , perhaps under pressure from the authorities” (p. 47, para. 62), and a quote from the World Food Program (pp. 50–51, para. 9).

11. Israel’s permanent representative to the United Nations, Gilad Erdan, @giladerdan1, Tweet (21 February 2024; <https://twitter.com/giladerdan1/status/1760071998502248913>). See also Prime Minister of Israel, @IsraeliPM, Tweet (31 January 2024; <https://twitter.com/IsraeliPM/status/1752779770432040699>).

TABLE 3A (continued)

Judge Sebutinde	Israel	South Africa
		UNICEF ⁱ World Health Organization-WHO ^j Médecins sans Frontières-MSF ^k Save the Children ^l International Federation of Journalists ^m Amnesty International ⁿ Human Rights Watch-HRW ^o Al-Haq/Al Mezan/PCHR ^p Committee to Protect Journalists-CPJ ^q
“[Israel’s] mitigation of civilian harm by warning them through leaflets, radio messages and telephone calls of impending attacks” (“Dissenting Opinion,” para. 20)	Israel points to its “practice of mitigating civilian harm—such as by forewarning civilians of impending action by the unprecedented and extensive use of telephone calls, leafletting” (“Public Sitting,” 12 January 2024, p. 31, para. 37—Shaw; see also <i>ibid.</i>, pp. 44–46, paras. 37–47—Raguan)	South Africa states that nowhere is safe in Gaza, as the population is forced to flee and flee again on short notice, doesn’t know where to flee, is targeted as it flees, is death-trapped as it is unable to flee, and is bombed even in areas where Israel directed it to flee.
<u>Sources cited:</u> none	<u>Sources cited:</u> one footnote referencing “tabs” 4, 5 in the official Israeli “Volume” submitted to the Court	<u>Sources cited:</u> UN Secretary-General^r UN Office of the High Commissioner for Human Rights-OHCHR^s UN Office for the Coordination of Humanitarian Affairs-OCHA^t UN Relief and Works Agency-UNRWA^u International Committee of the Red Cross-ICRC^v World Health Organization-WHO^w
“[Israel’s] facilitation of humanitarian assistance” (“Dissenting Opinion,” paras. 20–21)	Israel points to its “facilitation of humanitarian assistance.” (“Public Sitting,” 12 January 2024, p. 31, para. 37—Shaw; see also <i>ibid.</i>, pp. 46–48, paras. 48–71—Raguan, pp. 50–52, paras. 8–14—Sender)	South Africa states that there is a humanitarian catastrophe in Gaza, while humanitarian assistance is not reaching the population due to Israel’s restrictions of movement, its use of starvation as a weapon of war, and its opposition to a ceasefire.

TABLE 3A (continued)

Judge Sebutinde	Israel	South Africa
<u>Sources cited:</u> none	<u>Sources cited:</u> nineteen footnotes reference “tabs” 4, 5 in the official Israeli “Volume” submitted to the Court, tab 4 in the “Judges’ folder,” and one official Israeli website	<u>Sources cited:</u> UN Secretary-General^x UN Office for the Coordination of Humanitarian Affairs-OCHA^y UN Under-Secretary-General for Humanitarian Affairs and Emergency Relief Coordinator^z UN Office for the High Commissioner for Human Rights-OHCHR^{aa} UN Population Fund^{ab} UN Relief and Works Agency-UNRWA^{ac} UN News^{ad} UN (Question of) Palestine^{ae} UN Web TV^{af} UNICEF^{ag} World Health Organization-WHO^{ah} International Committee of the Red Cross-ICRC^{ai} Save the Children^{aj} Médecins sans Frontières-MSF^{ak} Oxfam^{al} World Food Program-WFP^{am} Integrated Food Security Phase Classification^{an} Human Rights Watch-HRW^{ao} Action Against Hunger^{ap} CARE^{aq} Global Nutrition Cluster^{ar}
“[R]egarding the statements of Israeli top officials and politicians that South Africa cited as containing genocidal rhetoric, a careful examination of those statements, read in their proper and full context, shows that South	Israel states that “the nature and provenance of certain comments made by some Israeli politicians” have been misunderstood; that “to produce random quotes that are not in conformity with government policy is . . . misleading at	South Africa states that genocidal statements have been uttered by many “individuals in the positions of the highest responsibility,” “Israeli army officials, advisers and spokespersons, and others engaging with Israeli troops being deployed in Gaza,” “non-cabinet members of the Israeli Knesset,” as well as “in Israeli civil society, with genocidal messages being routinely

(continued)

TABLE 3A (continued)

Judge Sebutinde	Israel	South Africa
Africa has either placed the quotations out of context or simply misunderstood the statements of those officials. The vast majority of the statements referred to the destruction of Hamas and not the Palestinian people as such. Certain renegade statements by officials who are not charged with prosecuting Israel's military operations were subsequently highly criticized by the Israeli Government itself." ("Dissenting Opinion," para. 22) <u>Sources cited:</u> none	best. Such as the statement by the Minister of Heritage, for example, who is completely outside the policy- and decision-making processes in the war. In any event, his statement was immediately repudiated by members of the War Cabinet and other ministers, including the Prime Minister"; that "[a] careful review of the official and binding policy decisions made by the relevant authorities in Israel since the outbreak of the war clearly evidence that such decisions lack any genocidal intent." ("Public Sitting," 12 January 2024, p. 31, para. 38, p. 32, para. 40, p. 34, para. 48—Shaw) <u>Sources cited:</u> four footnotes reference "tabs" 1, 2 in the official Israeli "Volume" submitted to the Court, one footnote references "tab" 2 of the "Judges' folder"	broadcast . . . in Israeli media." The lengthy list of individuals quoted includes: "President Isaac Herzog made clear that Israel was not distinguishing between militants and civilians in Gaza, stating in a press conference to foreign media—in relation to Palestinians in Gaza, over one million of whom are children: 'It's an entire nation out there that is responsible. It's not true this rhetoric about civilians not aware not involved. It's absolutely not true . . . and we will fight until we break their backbone.'" "Defense Minister Yoav Gallant in an Israeli Army 'situation update' advised that Israel was 'imposing a complete siege on Gaza. No electricity, no food, no water, no fuel. Everything is closed. We are fighting human animals and we are acting accordingly.' He also informed troops on the Gaza border that he had 'released all the restraints,' stating in terms that: 'Gaza won't return to what it was before. We will eliminate everything. If it doesn't take one day, it will take a week. It will take weeks or even months, we will reach all places.' He further announced that Israel was moving to 'a full-scale response' and that he had 'removed every restriction' on Israeli forces." "Israeli Minister of Energy and Infrastructure Israel Katz stated: 'All the civilian population in Gaza is ordered to leave immediately. We will win. They will not receive a drop of water or a single battery until they leave the world.' . . . 'Humanitarian aid to Gaza? No electrical switch will be turned on, no water hydrant will be opened and no fuel truck will enter until the Israeli abductees are returned home. Humanitarianism for humanitarianism. And no one will preach us morality.'" (<i>Application</i>, paras. 101–7; "Public Sitting," 11 January 2024, pp. 31–42, paras. 1–38—Ngcukaitobi)

TABLE 3A (continued)

- ^a South Africa's presentation at the "Public Sitting," which followed by nearly two weeks its submission of the *Application*, contained not only references culled from the *Application* but also many new ones to authoritative publications and public statements. The footnote references after "Public Sitting" in this column only tally the new (i.e., post-29 December 2023) references.
- ^b *Application*, para. 18nn53, 54, para. 46n188.
- ^c *Ibid.*, para. 19n62, para. 46n192, para. 47nn199, 200, para. 48n204, para. 49nn208, 211, 212, para. 53n227, para. 65n282, para. 78n333, para. 79nn342, 344, para. 80nn351, 352, para. 81nn355, 357, 358, para. 88nn394, 395, 397, para. 91n412, para. 92n416, para. 93nn422, 423. "Public Sitting," p. 32, para. 6n74, p. 59, para. 8nn212, 213, 214, pp. 60–61, para. 8nn221, 224, 226, 227, 228, p. 65, para. 16n255, p. 69, para. 26n286.
- ^d *Application*, para. 49n210, para. 60n259, para. 76n331, para. 88nn391, 392.
- ^e *Ibid.*, para. 46n191.
- ^f *Ibid.*, para. 47n201.
- ^g *Ibid.*, para. 66n291, para. 78nn335, 337.
- ^h *Ibid.*, para. 91n409.
- ⁱ *Ibid.*, para. 48nn203, 206, 207, para. 80n354, para. 90n405, para. 91n411. "Public Sitting," p. 59, para. 8n211.
- ^j *Application*, para. 54n231, para. 78nn336, 338, para. 79nn339, 340, 345, para. 80n350.
- ^k *Ibid.*, para. 77n332, para. 79n343.
- ^l *Ibid.*, para. 47n202, para. 48n205.
- ^m *Ibid.*, para. 43n175, para. 49nn208, 209.
- ⁿ *Ibid.*, para. 47nn196, 199, para. 51n218.
- ^o *Ibid.*, para. 65n282. "Public Sitting," p. 58, para. 7n202.
- ^p *Application*, para. 81n359, para. 88n398. "Public Sitting," p. 32, para. 6nn74, 75, p. 64, para. 15n249.
- ^q "Public Sitting," p. 59, para. 8n215.
- ^r *Application*, para. 18nn53, 54, para. 58n252, para. 59n254.
- ^s *Ibid.*, para. 56n237, para. 58n248, para. 59nn257, 258, para. 60n259.
- ^t *Ibid.*, para. 19n61, para. 56n242, para. 57nn243, 244, 246, para. 58nn247, 250, 251, para. 59n256, para. 81n356. "Public Sitting," p. 26, para. 21n40, p. 32, para. 5n72, pp. 59–60, para. 8n217, p. 72, para. 31n297.
- ^u *Application*, para. 57n245, para. 59nn253, 255, para. 71nn311, 312, para. 74n323. "Public Sitting," pp. 62–63, para. 14nn238, 239.
- ^v *Application*, para. 46n189, para. 56n238.
- ^w *Ibid.*, para. 56n239.
- ^x *Ibid.*, para. 18n53, para. 44n177, para. 61n265, para. 62n268, para. 64n274. "Public Sitting," p. 57, para. 6n193, p. 69, para. 26n285.
- ^y *Application*, para. 19nn65, 66, para. 64n275, para. 65n286, para. 66nn288, 289, 290, para. 73n316, para. 74n322, para. 75n327, para. 83nn365, 367, para. 84n372, para. 99n435. "Public Sitting," p. 28, para. 26n52, p. 28, para. 27nn53, 54, p. 68, para. 25nn278, 279.
- ^z *Application*, para. 44n179, para. 87nn388, 389. "Public Sitting," p. 41, para. 35n131, p. 57, para. 6nn194, 199, p. 71, para. 31n296, p. 78, para. 19n319.
- ^{aa} *Application*, para. 44n180, para. 64n280, para. 85n383, para. 100n438.
- ^{ab} *Ibid.*, para. 73n317. "Public Sitting," p. 29, para. 35n65.
- ^{ac} *Application*, para. 44n183, para. 63n269, para. 64n276, para. 72n313, para. 73n315, para. 74nn320, 321.
- ^{ad} *Ibid.*, para. 19nn63, 64, para. 50n214, para. 51n219, para. 64n279, para. 73n314, para. 75nn327, 329, 330, para. 83nn364, 366, para. 84nn373, 374, 375, 377, para. 96n430. "Public Sitting," p. 63, para. 14n241.
- ^{ae} *Application*, para. 61n263. "Public Sitting," p. 59, para. 8n216.
- ^{af} *Application*, para. 67n298, para. 84n369.
- ^{ag} *Ibid.*, para. 19n67, para. 44n182, para. 52n223, para. 66n293, para. 85n382, para. 86n386. "Public Sitting," p. 28, para. 30nn58, 59, p. 63, para. 14n242.

(continued)

TABLE 3A (continued)

- ^{ab} *Application*, para. 19nn65, 67, para. 52n220, para. 61n262, para. 64nn273, 277, 278, para. 66n294, para. 73n318, para. 75n328, para. 84n378, para. 85nn380, 381, para. 86nn385, 387, para. 96n429, para. 100n437. “Public Sitting,” p. 57, para. 6n195, p. 68, para. 25n278.
- ^{ac} *Application*, para. 44nn176, 178, para. 75n325.
- ^{aj} *Ibid.*, para. 52n222, para. 70nn308, 309, para. 74n324. “Public Sitting,” p. 60, para. 8n219.
- ^{ak} *Application*, para. 61n264.
- ^{al} *Ibid.*, para. 63n270, para. 64n281, para. 73n319, para. 98n433, para. 99n434.
- ^{am} *Ibid.*, para. 64nn271, 272, para. 65nn283, 284, 287, para. 66n292, para. 75n326. “Public Sitting,” p. 50, para. 10n166, p. 59, para. 7n205.
- ^{an} *Application*, para. 64nn271, 272.
- ^{ao} *Ibid.*, para. 64n281, para. 85n383.
- ^{ap} *Ibid.*, para. 65n285.
- ^{aq} *Ibid.*, para. 67n296.
- ^{ar} *Ibid.*, para. 67n297.

Table 3B Court “Order”: Findings and Sources

Massive death and destruction

“The Court notes that the military operation being conducted by Israel following the attack of 7 October 2023 has resulted in a large number of deaths and injuries, as well as the massive destruction of homes, the forcible displacement of the vast majority of the population, and extensive damage to civilian infrastructure. . . (see United Nations Office for the Coordination of Humanitarian Affairs).” (“Order,” para. 46)

Death and despair, medical facilities targeted, areas where civilians told to relocate come under bombardment, Gaza uninhabitable

“The Court takes note . . . of the statement made by the United Nations Under-Secretary-General for Humanitarian Affairs and Emergency Relief Coordinator, Mr Martin Griffiths. . . : ‘Gaza has become a place of death and despair. . . Families are sleeping in the open as temperatures plummet. Areas where civilians were told to relocate for their safety have come under bombardment. Medical facilities are under relentless attack. . . Infectious diseases are spreading in overcrowded shelters as sewers spill over. . . Gaza has simply become uninhabitable.’” (“Order,” para. 47)

Widespread hunger

“‘An unprecedented 93% of the population in Gaza is facing crisis levels of hunger, with insufficient food and high levels of malnutrition. . . Starvation, destitution and death are evident’ (WHO-World Health Organization).” (“Order,” para. 48)

TABLE 3B (continued)

Mass population displacement, directed to places that are just as unsafe, children traumatized

“The Court further notes the statement issued by the Commissioner-General of the United Nations Relief and Works Agency for Palestine Refugees in the Near East (UNRWA), Mr Philippe Lazzarini. . . : ‘In the past 100 days, sustained bombardment across the Gaza Strip caused the mass displacement of a population that is in a state of flux—constantly uprooted and forced to leave overnight, only to move to places which are just as unsafe. . . . This war affected more than 2 million people—the entire population of Gaza. Many will carry lifelong scars, both physical and psychological. The vast majority, including children, are deeply traumatized. Overcrowded and unsanitary UNRWA shelters have now become “home” to more than 1.4 million people.’” (“Order,” para. 49)

Genocidal statements by senior Israeli officials

“[T]he Court has taken note of a number of statements made by senior Israeli officials. It calls attention, in particular, to the following examples. . . . **Mr Yoav Gallant, Defense Minister of Israel**, announced that he had ordered a ‘complete siege’ of Gaza City and that there would be ‘no electricity, no food, no fuel’ and that ‘everything [was] closed.’ On the following day, Minister Gallant stated, speaking to Israeli troops on the Gaza border: ‘I have released all restraints. . . . You saw what we are fighting against. We are fighting human animals. This is the ISIS of Gaza. This is what we are fighting against. . . . Gaza won’t return to what it was before. There will be no Hamas. We will eliminate everything. If it doesn’t take one day, it will take a week, it will take weeks or even months, we will reach all places.’ . . . **Mr Isaac Herzog, President of Israel**, stated, referring to Gaza: ‘We are working, operating militarily according to rules of international law. Unequivocally. It is an entire nation out there that is responsible. It is not true this rhetoric about civilians not aware, not involved. It is absolutely not true. They could have risen up. They could have fought against that evil regime which took over Gaza in a coup d’état. But we are at war. We are at war. We are at war. We are defending our homes. We are protecting our homes. That’s the truth. And when a nation protects its home, it fights. And we will fight until we’ll break their backbone.’ . . . **Mr Israel Katz, then Minister of Energy and Infrastructure of Israel**, stated . . . : ‘We will fight the terrorist organization Hamas and destroy it. All the civilian population in [G]aza is ordered to leave immediately. We will win. They will not receive a drop of water or a single battery until they leave the world.’” (“Order,” paras. 51–52)

Conclusion to Section I B

Israel and South Africa drew polar opposite pictures of the situation in Gaza. Israel averred that it scrupulously targeted combatants and military sites; that

it took ample precautions to protect civilians, while if civilians did suffer injury, it was unavoidable collateral damage exacerbated by Hamas's perfidious tactics; that it was facilitating the distribution of humanitarian aid and the humanitarian situation, although still precarious largely because of Hamas, was steadily improving and no longer of urgency; and that, discounting randomness, decontextualized utterances, Israel's official articulation of its objectives lacked any genocidal intent. Whereas, South Africa stated that Israel indiscriminately and intentionally targeted civilians and civilian infrastructure; that Israel's alleged precautions were a sham as civilians were targeted while they attempted to flee and were bombarded in Israel's designated "safe" zones; that Israel obstructed entry of humanitarian aid and the humanitarian situation was becoming ever-more catastrophic; and that numerous senior Israeli public officials had uttered shockingly genocidal statements. How does one judge the evidentiary value of these submissions?

The jurisprudence of the Court has, over time, established these criteria for assessing the probative value of evidence presented before it: "(1) the source of the item of evidence (for instance partisan, or neutral), (2) the process by which it has been generated (for instance an anonymous press report or the product of a careful court or court-like process), and (3) the quality or character of the item (such as statements against interest, and agreed or uncontested facts)." When considering the evidentiary value of submissions, the Court "has given weight to the care taken in preparing a report, the comprehensiveness of its sources and the independence of those responsible for preparing it."¹² If these be the Court's criteria for evaluating evidence, then it would appear incontestable that the evidence submitted by South Africa was by a wide margin more credible.

Nonetheless, Judge Sebutinde adopted whole-hog Israel's "narrative" to the point of repeating almost verbatim the public defense contrived by senior Israel counsel Malcolm Shaw. Her posture puzzles on multiple counts. Judge Sebutinde provided no indication whatsoever *why* she was persuaded by Israel's rendering of the facts and unpersuaded by South Africa's rendering. This is all the more perplexing as, on the one hand, South Africa cited highly professional UN agencies (as well as respected international NGOs) and, on the other hand, Judge Sebutinde sits on the UN's principal judicial body. If she was of the opinion that this redoubtable phalanx of UN-affiliated institutions, en masse and down to the last, grossly misrepresented the situation in Gaza—was it a conspiracy?—then mustn't Judge Sebutinde explain how she

12. *Legal Consequences* (2024), para. 76.

came by this conviction? Surely she could have expended a few words in her expansive eleven-page single-spaced dissent to clarifying why she peremptorily dismissed the exacting findings of scores of reputable organizations, and instead unreservedly embraced the pronouncements and “evidence” of a State that has been repeatedly caught in egregious lies since 7 October. Or is it that Judge Sebutinde fell silent because she couldn’t rationally justify her audacious, high-handed opinion as it was born of extrajudicial calculation?

Further, Judge Sebutinde did not just de facto malign the UN system writ large, but also the very judicial body on which she sits: the Court “Order” from which she alone dissented had leaned heavily in its findings on the self-same UN organizations that she consigned to oblivion (see Table 3B). Were the other judges on the Court duped? Or maybe co-conspirators in a vast concatenating plot? Whereas Judge Sebutinde couldn’t detect any evidence of genocidal incitement by Israeli officials—“South Africa has either placed the quotations out of context or simply misunderstood the statements of those officials”—not only did the Court, after its own independent fact-checking,¹³ confirm some of the most incriminating statements quoted by South Africa (see Table 3B), but even the two judges on the Court most sympathetic (after Sebutinde) to Israel found that “certain statements by Israeli State officials, including members of its military, give rise to a real and imminent risk of irreparable prejudice to the rights of Palestinians under the Genocide Convention” (Judge Nolte, from Germany, “Declaration”¹⁴) and that “damaging rhetoric” and “concerning statements by some authorities” could be construed as “public incitement” to commit genocide (Judge ad hoc Barak, from Israel, “Separate Opinion”). Judge Sebutinde plainly would not brook any contenders in her fealty—or was it thralldom?—to Israel.

13. President of the Court Joan Donoghue interviewed on *BBC HARDtalk* (26 April 2024; <https://www.bbc.co.uk/programmes/m001yplc>, 7:04–7:14).

14. Judge Nolte was averse to joining the Court majority, except he couldn’t dismiss the genocidal statements by Israeli leaders—that Judge Sebutinde was blissfully oblivious to.

IC

Did South Africa Wrongly Request and the Court Wrongly Indicate Provisional Measures?

South Africa requested that the Court indicate provisional measures because Palestinians in Gaza faced imminent irreparable injury in violation of the Genocide Convention. Israel in its statement at the “Public Sitting” and subsequently Judge Sebutinde in her dissent spelled out in detail their respective objections to the provisional measures requested by South Africa. Table 4 juxtaposes the responses by Israel and Judge Sebutinde to the requested measures.¹⁵

TABLE 4 A Juxtaposition of the Responses by Israel and Judge Sebutinde to South Africa’s Request for Provisional Measures

South Africa’s Request	Israel’s Response	Judge Sebutinde’s Response
Provisional Measure 1: “Israel shall immediately suspend its military operations.” (<i>Application</i> , para. 144) Provisional Measure 2: “Israel shall ensure that [military organizations under its authority] take no steps in furtherance of the military operations.” (<i>Application</i> , para. 144)	“I start with the first and second requested measures. These would require immediate suspension of Israel’s military operations in Gaza. This request is frankly astonishing. A request is made by a State not party to an ongoing conflict, for provisional measures requiring unilateral suspension of military operations by one party to the conflict only, leaving the other party free to continue attacks.” (“Public Sitting,” 12 January 2024, p. 55, paras. 4–6—Staker)	“The first and second requested measures concern Israel’s ongoing military operations in Gaza. They . . . would require the suspension of all military operations in Gaza, regardless of whether Hamas, an organization not party to these proceedings, continues to attack Israel or continues to hold Israeli hostages. In this respect, Israel would be required to unilaterally cease hostilities, a prospect I consider unrealistic.” (“Dissenting Opinion,” para. 25)
Provisional Measure 4: “The State of Israel shall . . . desist from the commission of any and all acts within the scope of Article II of the [Genocide]	“[T]his measure refers to ‘acts within the scope of Article II of the Convention.’ Although an act is not within the scope of Article II unless it is committed	“The fourth requested measure requires Israel to refrain from specific actions that South Africa considers to be linked with its obligation to desist

15. For reasons of space and reader accessibility, the table doesn’t include their responses to all the provisional measures requested by South Africa and only excerpts each response that it does include.

TABLE 4 (continued)

South Africa's Request	Israel's Response	Judge Sebutinde's Response
Convention, in particular: (a) killing members of the group; (b) causing serious bodily or mental harm to the members of the group; (c) deliberately inflicting on the group conditions of life calculated to bring about its physical destruction. . . ; (d) imposing measures intended to prevent births." (<i>Application</i> , para. 144)	with genocidal intent, the proposed wording leaves scope for South Africa subsequently to argue that the words mean only the acts themselves, whether committed with genocidal intent or not. . . [T]he effect would be to shut down Israel's military operation. . . The request for this measure should be rejected for the same reasons as the first and second measures." ("Public Sitting," pp. 65–66, paras. 54–55—Staker)	from committing any of the acts referred to in Article II . . . of the Convention. In my view, this measure, like the first and second, in effect requires Israel to unilaterally stop hostilities with Hamas, which is the only way of guaranteeing that none of the acts stipulated take place." ("Dissenting Opinion," para. 27)
Provisional Measure 7: "The State of Israel shall take effective measures to prevent the destruction and ensure the preservation of evidence related to allegations of acts within the scope of . . . the [Genocide] Convention. . . [T]he State of Israel shall not act to deny or otherwise restrict access by fact-finding missions." (<i>Application</i> , para. 144)	"The granting of this measure would imply that there is some reason to suspect concealment of evidence, when in fact none has been identified. . . [T]his measure would require Israel not to impede access to Gaza by fact-finding missions. . . Israel has no obligation under international law to allow access from its territory into Gaza." ("Public Sitting," p. 68, paras. 76–79—Staker)	"[I]n the present case there is no evidentiary basis for concluding that Israel is engaged in the deliberate destruction of evidence relating to genocide. . . [T]he requirement that Israel allow fact-finding missions . . . <i>access to Gaza</i> . . . would appear to go beyond Israel's obligations under the Genocide Convention." ("Dissenting Opinion," para. 30; emphasis in original)
Provisional Measure 9: "The State of Israel shall refrain from any action . . . which might aggravate or extend the dispute before the Court." (<i>Application</i> , para. 144)	"An obligation of non-aggravation cannot fairly be imposed on only one party . . . to a conflict. If the proposed measure was granted . . . , Hamas would not be impeded from escalating the conflict with Israel." ("Public Sitting," p. 70, para. 90—Staker)	"[I]n the context of an ongoing war with Hamas, which is not a party to these proceedings, it would be unrealistic to put limitations upon one of the belligerent parties but not the other." ("Dissenting Opinion," para. 31)

It doesn't require an AI plagiarism checker to detect something seriously awry in the analysis "by" Judge Sebutinde.

Having found that Israel was plausibly committing genocide, the Court "Order" indicated six provisional measures to protect the rights of Palestinians in Gaza pending the merits phase of the case. Fully fifteen of the seventeen members of the Court voted for all six provisional measures indicated by the Court. Judge ad hoc Barak from Israel voted in favor of two of the provisional measures. Judge Sebutinde voted against all the measures. Table 5 juxtaposes Judge Barak's commentary on the first five provisional measures indicated by the Court with Judge Sebutinde's commentary.¹⁶ It will be noticed that Judge Sebutinde mostly replicates Judge Barak's reasoning. If Judge Barak voted in favor of two provisional measures, it's because he possessed enough political savvy not to go overboard defending the indefensible; in other words, it's not a good look for a judge to carry on like a hack. In executing the task that she was assigned, Judge Sebutinde displayed all the subtlety and grace of a sledgehammer.

TABLE 5 A Juxtaposition of the Votes Cast by Judge Barak and Judge Sebutinde per the Provisional Measures Indicated by the Court

Measure Indicated by the Court	Judge Barak's Response	Judge Sebutinde's Response
Provisional Measure 1: "The State of Israel shall . . . take all measures within its power to prevent the commission of all acts within the scope of Article II of [the Genocide] convention." ("Order," 26 January 2024, para. 86)	"I voted against the first and second provisional measures indicated by the Court. Nevertheless, it is of the utmost importance to highlight that the first and second measures indicated by the Court merely restate obligations that Israel already has under Articles I and II of the Genocide Convention." ("Separate Opinion," para. 43) (Barak misleadingly asserts that the Court "merely restate[s] obligations" when ordering Israel not to commit acts under Article II. He omits that, to issue this Order, the	"[T]he First measure obligating Israel to 'take all measures within its power to prevent the commission of all acts within the scope of Article II of [the Genocide] Convention' effectively mirrors the obligation already incumbent upon Israel under Articles I and II of the Genocide Convention and is therefore redundant." ("Dissenting Opinion," para. 33)
Provisional Measure 2: "The State of Israel shall ensure with immediate effect that its military does not commit any acts described in point 1 above." ("Order," para. 86)	"The Second measure obligating Israel to ensure 'with immediate effect that its military does not commit any acts described in point 1 above' also seems	

16. Judge ad hoc Barak did not comment on the sixth provisional measure.

TABLE 5 (continued)

Measure Indicated by the Court	Judge Barak's Response	Judge Sebutinde's Response
	Court must have first determined that Israel was plausibly committing genocide.)	redundant as it is either already covered under the first measure or is a mirror of the obligation already incumbent upon Israel under Articles I and II of the Genocide Convention." ("Dissenting Opinion," para. 33)
Provisional Measure 3: "The State of Israel shall take all measures within its power to prevent and punish the direct and public incitement to commit genocide." ("Order," para. 86)	"With regard to the third measure, which concerns acts of public incitement, I have voted in favor in the hope that the measure will help to decrease tensions and discourage damaging rhetoric. I have noted the concerning statements by some authorities, which I am confident will be dealt with by the Israeli institutions." ("Separate Opinion," para. 44)	"The Third measure obligating Israel to 'take all measures within its power to prevent and punish the direct and public incitement to commit genocide' also mirrors the obligation already incumbent upon Israel under Articles I and III of the Genocide Convention and is therefore redundant." ("Dissenting Opinion," para. 33)
Provisional Measure 4: "The State of Israel shall take immediate and effective measures to enable the provision of urgently needed basic services and humanitarian assistance." ("Order," para. 86)	"With regard to the fourth measure, I voted in favor, guided by my deep humanitarian convictions and the hope that this will alleviate the consequences of the armed conflict for the most vulnerable. Through this measure, the Court reminds Israel of essential international obligations, which are already present in the DNA of the Israeli military. This measure will ensure that Israel continues to enable the delivery of humanitarian aid to Gaza, which I see as an obligation arising under IHL." ("Separate Opinion," para. 44)	"The Fourth measure . . . has no link with any of the rights purportedly claimed under the Genocide Convention. In other words, under that Convention, a State party has no duty to provide or to enable the provision of, humanitarian assistance, as such. Besides, there is evidence before the Court that the provision of humanitarian assistance is already taking place with the involvement of Israel and other international organizations, notwithstanding the continuing military operation. The evidence also points to an improvement in the provision of basic needs in the affected areas. This measure too seems unnecessary in the circumstances." ("Dissenting Opinion," para. 33)

(continued)

TABLE 5 (continued)

Measure Indicated by the Court	Judge Barak's Response	Judge Sebutinde's Response
Provisional Measure 5: "The State of Israel shall take effective measures to prevent the destruction and ensure the preservation of evidence." ("Order," para. 86)	"I voted against the fifth provisional measure, which concerns the preservation of evidence. . . . South Africa has not shown that Israel has destroyed or concealed evidence. This claim is baseless and therefore should not have been entertained by the Court." ("Separate Opinion," para. 46)	"Regarding the Fifth measure. . . , there does not seem to be any evidentiary basis for assuming that Israel is engaged in the deliberate destruction of evidence as such." ("Dissenting Opinion," para. 33)

Conclusion to Section I C

Excepting provisional measures 3 and 4, it would require a high-powered microscope to distinguish Judge Sebutinde's reasoning—on the albeit dubious assumption that it was *her* reasoning—from Judge Barak's. But why did they part ways on those two measures? Barak was formerly president of the Supreme Court of Israel. When ruling on domestic issues, he was a bona fide liberal. When ruling on the Occupied Palestinian Territories (and Lebanon), he was a hanging judge: inter alia, he notoriously legalized or affirmed the legality of torture, hostage-taking, house demolitions, administrative detention, and the forcible transfer of civilians. Still, even here Barak deftly cultivated the image of a liberal. After Israel came under intense international scrutiny for its torture practices, Barak reversed himself. He received high praise for this decision, although he himself was among the judges who had legalized torture in the first place. Then, he disingenuously pretended that his landmark rulings effectively legalizing the wall that Israel was constructing in the West Bank could be squared with the 2004 ICJ Advisory Opinion even as it, on the contrary, unambiguously declared the wall illegal.¹⁷ Barak was thus the perfect choice by Israel to sit on the ICJ in the genocide case. (The ICJ allows a country that is party to a case before it, but is not already represented

17. David Kretzmer, *The Occupation of Justice: The Supreme Court of Israel and the Occupied Territories* (Albany, NY: 2002); Norman G. Finkelstein, *Beyond Chutzpah: On the misuse of anti-semitism and the abuse of history*, updated edition (Berkeley: 2008), pp. 156–58, 210–11, 213–16, 227–70.

by one of its own among the fifteen judges, to select an ad hoc judge to sit on the bench.) He could be relied on to unflinchingly do his State's bidding but also manage to project an independent, evenhanded, humane cast of mind.

In a virtuoso stroke, Judge Barak voted in favor of two of the six provisional measures while still singing paeans to Israel's wondrous "DNA" in his separate opinion and adamantly denying that it was committing genocide. Judge Sebutinde was clearly not skilled at walking this judicial tightrope. Whereas Judge Barak voted from "deep humanitarian convictions" (sure. . .) in favor of the measure urging Israel to facilitate entry of basic goods into Gaza, Judge Sebutinde—in a willful expression of moral depravity—eschewed even this token gesture. Faithful to her master, crude in her political instincts, Judge Sebutinde obediently repeated, despite overwhelming proof to the contrary, Israel's spurious claim that, as the humanitarian situation was allegedly improving, the measure commanding the entry of basic provisions into Gaza was "unnecessary." She even courted outrage, opining—while Gaza's 2.3 million godforsaken souls, half of them children, suffered from hunger, starvation, even famine—that Israel "has no duty to provide or to enable the provision of humanitarian assistance." The marvel is that this soulless ghoul, this morbid Pollyanna, didn't say, *Let them eat cake!* Whereas Judge Barak voted in favor of the measure commanding the suppression of public incitement to genocide—how could the profuse evidence of such incitement presented to the Court be denied?—Judge Sebutinde cavalierly waved off the measure as "redundant." Truth be told, the only "redundant" measure in the case was seating Judge Barak: in the person of Judge Sebutinde, an Israeli judge was *already* represented on the Court.

II

Judge Sebutinde Does a Volte-Face

In February and March 2024, the Republic of South Africa requested additional provisional measures. The Court affirmed its previous measures in February and indicated new measures in March. Judge Sebutinde did not dissent from the Court decision in February and voted for all but one of the new provisional measures in March, even as her legal posture in February and March completely contradicted her dissent in January.

II A

February 2024 Court “Decision”

On 12 February 2024, South Africa filed an “Urgent Request for Additional Measures.”¹⁸ As the State of Israel stood poised to invade Rafah, the population of which had quintupled (half of them children) after Israel ordered Gazan civilians to flee there, South Africa urged the Court to “prevent further imminent breach of the rights of Palestinians in Gaza.”¹⁹ To document the impending catastrophe in Gaza, South Africa leaned on the same UN sources that undergirded its original *Application* (see Table 6). In its reply, “Observations of the State of Israel on the Republic of South Africa’s ‘Urgent Request for Additional Measures’” (15 February 2024),²⁰ Israel reiterated its “principled position that South Africa’s Application to the Court of 29 December 2023 is wholly unfounded in fact and law, morally repugnant, and represents an abuse both of the Genocide Convention and of the Court itself.”²¹ It further contended that the situation in Gaza had not significantly altered since the Court indicated provisional measures in January and therefore the current situation didn’t warrant the indication of new measures. The Israeli reply substantively disputed only one factual point in the South African request; otherwise, it did not attempt to refute the allegations leveled by South Africa and seconded by UN organs. Instead, it rhetorically proclaimed without proof “Israel’s enduring commitment under international humanitarian law to minimize harm to civilians.”²² The 16 February “Decision of the Court on South Africa’s Request for Additional Provisional Measures” (issued publicly in the form of a “Press Release”)²³ noted that the anticipated Israeli assault “would exponentially increase what is already a humanitarian nightmare” (quoting the UN

18. “Urgent Request for Additional Measures Under Article 75(1) of the Rules of Court of the International Court of Justice” (12 February 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240212-wri-01-00-en.pdf>).

19. *Ibid.*, para. 10.

20. “Observations of the State of Israel on the Republic of South Africa’s ‘Urgent Request for Additional Measures Under Article 75(1) of the Rules of Court’” (15 February 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240215-wri-01-00-en-1.pdf>).

21. *Ibid.*, para. 2.

22. *Ibid.*, para. 12.

23. “Decision of the Court on South Africa’s Request for Additional Provisional Measures” (16 February 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240216-pre-01-00-en.pdf>).

secretary-general); that “[t]his perilous situation demands immediate and effective implementation of the provisional measures indicated by the Court in its Order of 26 January 2024”; and “emphasizes that the State of Israel remains bound to fully comply with its obligations under the Genocide Convention and with the said Order.” Judge Sebutinde neither dissented nor otherwise dissociated herself from the Court “Decision.”

TABLE 6 South Africa’s “Urgent Request for Additional Measures”:
Major Sources Cited

UN Secretary-General ^a
UN Office for the Coordination of Humanitarian Affairs-OCHA ^b
UNICEF ^c
UN Relief and Works Agency-UNRWA ^d
UN Special Rapporteur on Palestine ^e
UN News ^f
International Committee of the Red Cross-ICRC ^g
Save the Children ^h
CARE ⁱ
Norwegian Refugee Council ^j

^a “Urgent Request,” para. 5n9.

^b Ibid., para. 4n7, para. 5n14.

^c Ibid., para. 5n11.

^d Ibid., para. 5nn12, 13.

^e Ibid., para. 5n10.

^f Ibid., para. 4n6.

^g Ibid., para. 4n8.

^h Ibid., para. 6n18.

ⁱ Ibid., para. 6n17.

^j Ibid., para. 6nn15, 16, 17.

Conclusion to Section II A

The 16 February “Decision” was jointly issued by the Court without an audible peep of opposition from Judge Sebutinde. That’s odd. Judge Sebutinde vehemently dissented from the selfsame January 2024 Court “Order” that this new “Decision” “emphasizes that the State of Israel remains bound to fully comply with.” Whereas Judge Sebutinde voted against all the provisional measures indicated by the Court in its January “Order”—breezily discounting

them as *ultra vires*, “unwarranted,” and “redundant”—the new “Decision” that she ostensibly joined “demands immediate and effective implementation of the provisional measures indicated by the Court in its Order of 26 January 2024.” Was Judge Sebutinde perhaps persuaded by South Africa’s “Urgent Request,” according to which a new, direr situation had taken hold in Gaza between the January “Order” and the February “Decision”? But South Africa based its February request on the identical UN sources that Judge Sebutinde disregarded when she appended her dissent in January, while Israel put forth the same feeble defense in January and February. On the evidentiary level, nothing had changed. If Judge Sebutinde was unpersuaded by South Africa’s pleadings in January, then why would she have been persuaded by them in February? To go by her January dissent, Judge Sebutinde should have stood foursquare behind Israel’s contention in its February reply that the case mounted by South Africa was “wholly unfounded in fact and law.” Why then did Judge Sebutinde do a volte-face by going along with the February Court “Decision” that mandated Israel’s compliance with and “immediate and effective implementation of” the January Court “Order”? This question will be explored presently.

II B

March 2024 Court “Order”

On 6 March 2024, South Africa returned to the Court in order to file an “Urgent Request and Application for the Indication of Additional Provisional Measures and the Modification of the Court’s Prior Provisional Measures Decisions.”²⁴ The request homed in on the “situation of widespread starvation” that was “brought about by Israel’s deliberate acts and omissions in violation of the Genocide Convention and of the Court’s Order [of 26 January 2024].”²⁵ In support of its contention that the “new” situation in Gaza was “so terrifying as to be unspeakable,”²⁶ South Africa adduced the findings of a slew of UN

24. “Urgent Request and Application for the Indication of Additional Provisional Measures and the Modification of the Court’s Prior Provisional Measures Decisions Pursuant to Article 41 of the Statute of the International Court of Justice and Articles 75 and 76 of the Rules of Court of the International Court of Justice” (6 March 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240306-wri-01-00-en.pdf>).

25. *Ibid.*, paras. 1, 12.

26. *Ibid.*, paras. 1–2, 5.

agencies and respected international NGOs (see Table 7). It then requested “the urgent indication of further provisional measures and the modification of the Court’s previous decisions on provisional measures.”²⁷ In particular, it called for an “immediate halt” to the fighting and for “all hostages and detainees” to be “released immediately,” as well as for Israel to “take immediate and effective measures to enable the provision of urgently needed basic services and humanitarian assistance to address famine and starvation . . . faced by Palestinians in Gaza.”²⁸

In its reply, “Observations of the State of Israel on the Request Filed by the Republic of South Africa,”²⁹ Israel deplored South Africa’s “outrageous” accusations and “categorically denied” them, and asserted (again) that they are “wholly unfounded in fact and law.”³⁰ It went on to purport that a “new” situation had not taken hold in Gaza and therefore the Court should not (and legally could not) indicate new provisional measures;³¹ that if there was “humanitarian suffering” in Gaza, it traced back to the intense “ongoing hostilities” exacerbated by Hamas’s perfidious tactics;³² and that Israel’s “various humanitarian initiatives”³³ belied South Africa’s overarching accusation that Israel was in breach of the Genocide Convention. As to the matter of starvation in Gaza, it pointed up the objective obstacles to providing humanitarian assistance as well as the continuous, multifaceted, practical initiatives by Israel to overcome them. In order to rebut South Africa’s various allegations, Israel cited mostly (but not entirely) its own official sources (see Table 7). In addition, it touted its cooperation and coordination with foreign governments as well as with UN agencies (but no attestation by the UN agencies of such liaisons was quoted). Juxtaposing the evidence it adduced, which more often than not leaned on official State assertions, against the UN-based evidence adduced by South Africa, the Israeli reply observed without a trace of irony: “An additional flaw in South Africa’s request is its heavy reliance on documents produced under the auspices of the

27. Ibid., para. 14.

28. Ibid., para. 17 (1), 17 (4).

29. “Observations of the State of Israel on the Request Filed by the Republic of South Africa on 6 March 2024 for the Indication of Additional Provisional Measures and/or the Modification of Measures Previously Indicated” (15 March 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240315-wri-01-00-en.pdf>).

30. Ibid., para. 1.

31. Israel also alleged that, even if a new humanitarian situation had emerged in Gaza, no nexus existed between the provisional measures requested by South Africa and that situation.

32. “Observations,” paras. 17–18.

33. Ibid., para. 10.

United Nations or prepared by third parties, when these cannot be said to constitute sufficient evidence of a reliable quality.”³⁴ It concluded that “Israel remains unwavering in its commitment to its humanitarian obligations,” “the charge that it seeks to deliberately harm the Palestinian civilian population must be rejected outright,”³⁵ while the provisional measures requested by South Africa lacked practical or legal warrant.

On 28 March 2024, the Court issued a new “Order.” It found that “the catastrophic living conditions of the Palestinians in the Gaza Strip have deteriorated further, in particular in view of the prolonged and widespread deprivation of food and other basic necessities,”³⁶ and that these “developments, which are exceptionally grave, constitute a change in the situation”³⁷ warranting new provisional measures. In support of its factual findings, the Court cited UN-affiliated agencies and other respected international NGOs (see Table 7). For example, it quoted the UN High Commissioner for Human Rights: “The situation of hunger, starvation and famine is a result of Israel’s extensive restrictions on the entry and distribution of humanitarian aid and commercial goods, displacement of most of the population, as well as the destruction of crucial civilian infrastructure.” The Court “conclude[d], on the basis of” the new, direr situation, “that the circumstances of the case require it to modify its decision concerning provisional measures indicated in the Order of 26 January 2024,”³⁸ and that, in its indication of these modified measures, the Court was acting “[i]n conformity with its obligations under the Genocide Convention.”³⁹ In other words, the Court was building on the provisional measures it indicated in the January “Order,” and on the legal basis that Israel was plausibly in breach of the Genocide Convention. In particular, it ordered Israel to “take all necessary and effective measures to ensure, without delay . . . the unhindered provision . . . of urgently needed basic services and humanitarian assistance . . . to Palestinians throughout Gaza,” and to “ensure with immediate effect that its military does not commit acts which constitute a violation of any of the rights of the Palestinians in Gaza as a protected group

34. *Ibid.*, para. 42. In one instance, Israel stated that South Africa improperly sourced a UN report (*ibid.*, para. 52n67).

35. *Ibid.*, para. 37.

36. “Order” (28 March 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240328-ord-01-00-en.pdf>), para. 18.

37. *Ibid.*, para. 22.

38. *Ibid.*, para. 41.

39. *Ibid.*, para. 45.

under the Genocide Convention.”⁴⁰ Finally, the Court “confirm[ed] the need for immediate and effective implementation of the measures indicated in its Order of 26 January. . . . [T]he Court finds it necessary to reaffirm the measures indicated in that Order.”⁴¹ Fully fourteen of the sixteen judges voted in favor of all the operative paragraphs in the “Order.” Judge ad hoc Barak (from Israel) opposed all but one of the operative paragraphs. *Whereas Judge Sebutinde dissented from the January 2024 Court “Order” and voted against all the January provisional measures on the grounds that Israel was not plausibly committing genocide, she voted this time around in favor of all but one of the March 2024 provisional measures, notwithstanding that the March “Order” and March provisional measures were explicitly predicated on the finding of the January “Order” that Israel was plausibly committing genocide.* (See Tables 8 and 9.) Seven judges appended a “Declaration” and two judges appended a “Separate Opinion” to supplement their respective votes in the March “Order.” Judge Sebutinde did not issue any statement explicating her abrupt repudiation of her January “Dissenting Opinion” and jurisprudential realignment with the Court majority.



Goya, “The Disasters of War”

40. Ibid.

41. Ibid., para. 46.

TABLE 7 South Africa's "Urgent Request," Israel's "Observations," and the Court's "Order": A Juxtaposition of Major Sources

South Africa	Israel	Court
UN Secretary-General ^a	"preliminary inquiry conducted by the Commander of the IDF Southern Command"; ^o	UN Secretary-General ^u
UN Under-Secretary-General for Humanitarian Affairs and Emergency Relief Coordinator ^b		UN Under-Secretary-General for Humanitarian Affairs and Emergency Relief Coordinator ^v
UN Office of the High Commissioner for Human Rights-OHCHR ^c	<i>Times of Israel</i> (and <i>Reuters</i>); ^p	UN Office of the High Commissioner for Human Rights-OHCHR ^w
UN Office for the Coordination of Humanitarian Affairs-OCHA ^d	"COGAT, the unit in the [Israeli] Ministry of Defense in charge of monitoring the humanitarian situation"; ^q	UN Office for the Coordination of Humanitarian Affairs-OCHA ^x
UN Relief and Works Agency-UNRWA ^e	"Israel Defense Forces" and "UK Government, Press Release"; ^r	UNICEF ^y
UNICEF ^f	Israeli "intelligence dossier" (referenced by the <i>Wall Street Journal</i>) and "IDF Media Center"; ⁱ	UN Food and Agriculture Organization-FAO ^z
UN Conference on Trade and Development-UNCTAD ^g		UN Senior Humanitarian and Reconstruction Coordinator for Gaza ^{aa}
World Health Organization-WHO ^b		UN Under-Secretary-General and Executive Director of the United Nations Office for Project Services-UNOPS ^{ab}
UN News ^d	senior UN official who "welcomed" the establishment of a maritime humanitarian corridor (but Israel goes unmentioned in the official's quoted remarks) ^t	World Health Organization-WHO ^{ac}
UN Satellite Centre-UNOSAT ^j		World Food Program-WFP ^{ad}
UN Food and Agriculture Organization-FAO ^k		International Committee of the Red Cross-ICRC ^{ae}
Amnesty International ^l		
Médecins sans Frontières-MSF ^m		
Save the Children ⁿ		

^a "Urgent Request," para. 31n58.

^b *Ibid.*, para. 13n36.

^c *Ibid.*, para. 5n6, para. 9n17, para. 11nn29, 30, 32, 33, para. 27n52.

^d *Ibid.*, para. 7n12, para. 9nn18, 23, 24, para. 11nn29, 31, para. 27nn48, 49, 50, 52, para. 33n60.

^e *Ibid.*, para. 5n6, para. 7n13, para. 9n20, para. 12n34, para. 13n37.

^f *Ibid.*, para. 7n12, para. 9nn18, 23, para. 12n35.

^g *Ibid.*, para. 7n14, para. 27n52.

^h *Ibid.*, para. 8n16, para. 27n51.

ⁱ *Ibid.*, para. 7n12, para. 9nn24, 25.

^j *Ibid.*, para. 9n21.

^k *Ibid.*, para. 9n22.

^l *Ibid.*, para. 9n19.

^m *Ibid.*, para. 9n20.

ⁿ *Ibid.*, para. 27n52.

^o "Observations," para. 16n15.

^p *Ibid.*, para. 17n16, para. 20n17, para. 26n30.

^q *Ibid.*, paras. 25, 30, 31, 32n33, 34, 36.

TABLE 7 (continued)

- ^r Ibid., para. 30n31.
- ^s Ibid., para. 39nn35, 36, 37. This citation refers to South Africa's condemnation of Israeli attempts to defund UNRWA versus Israel's contention that UNRWA was riddled with Hamas members. The Israeli reply cited multiple States that suspended financial support for UNRWA pending an official investigation.
- ^t Ibid., para. 22; see also *ibid.*, para. 36.
- ^u "Order," para. 38.
- ^v Ibid., para. 36.
- ^w Ibid., para. 34.
- ^x Ibid., paras. 21, 31, 39.
- ^y Ibid., paras. 20, 36.
- ^z Ibid., paras. 19, 31.
- ^{aa} Ibid., para. 35.
- ^{ab} Ibid.
- ^{ac} Ibid., paras. 19, 32.
- ^{ad} Ibid., paras. 19, 31, 36.
- ^{ae} Ibid., para. 36.

TABLE 8 A Juxtaposition of Judge Sebutinde's Votes on the Provisional Measures in the January Court Order with Her Votes on the Provisional Measures in the March Court Order

January 2024 Provisional Measures	March 2024 Provisional Measures
"(1) The State of Israel shall, in accordance with its obligations under the Convention on the Prevention and Punishment of the Crime of Genocide, in relation to Palestinians in Gaza, take all measures within its power to prevent the commission of all acts within the scope of Article II of this Convention, in particular: (a) killing members of the group; (b) causing serious bodily or mental harm to members of the group; (c) deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part; and (d) imposing measures intended to prevent births within the group;" Judge Sebutinde: Against "(2) The State of Israel shall ensure with immediate effect that its military does not commit any	"(1) Reaffirms the provisional measures indicated in its Order of 26 January 2024." Judge Sebutinde: Against "(2) The State of Israel shall, in conformity with its obligations under the Convention on the Prevention and Punishment of the Crime of Genocide, and in view of the worsening conditions of life faced by Palestinians in Gaza, in particular the spread of famine and starvation: (a) Take all necessary and effective measures to ensure, without delay, in full co-operation with the United Nations, the unhindered provision at scale by all concerned of urgently needed basic services and humanitarian assistance, including food, water, electricity, fuel, shelter, clothing, hygiene and sanitation requirements, as well as medical supplies and medical care to Palestinians

(continued)

TABLE 8 (continued)

January 2024 Provisional Measures	March 2024 Provisional Measures
acts described in point 1 above;”	throughout Gaza, including by increasing the capacity and number of land crossing points and maintaining them open for as long as necessary;
Judge Sebutinde: Against	Judge Sebutinde: In Favor
“(3) The State of Israel shall take all measures within its power to prevent and punish the direct and public incitement to commit genocide in relation to members of the Palestinian group in the Gaza Strip;”	(b) Ensure with immediate effect that its military does not commit acts which constitute a violation of any of the rights of the Palestinians in Gaza as a protected group under the Convention on the Prevention and Punishment of the Crime of Genocide, including by preventing, through any action, the delivery of urgently needed humanitarian assistance;”
Judge Sebutinde: Against	Judge Sebutinde: In Favor
“(4) The State of Israel shall take immediate and effective measures to enable the provision of urgently needed basic services and humanitarian assistance to address the adverse conditions of life faced by Palestinians in the Gaza Strip;”	“(3) Decides that the State of Israel shall submit a report to the Court on all measures taken to give effect to this Order, within one month as from the date of this Order.”
Judge Sebutinde: Against	Judge Sebutinde: In Favor
“(5) The State of Israel shall take effective measures to prevent the destruction and ensure the preservation of evidence related to allegations of acts within the scope of Article II and Article III of the Convention on the Prevention and Punishment of the Crime of Genocide against members of the Palestinian group in the Gaza Strip;”	
Judge Sebutinde: Against	
“(6) The State of Israel shall submit a report to the Court on all measures taken to give effect to this Order within one month as from the date of this Order.”	
Judge Sebutinde: Against	

TABLE 9 The March 2024 Court Order Reaffirmed the January 2024 Court Finding That Israel Was Plausibly Committing Genocide

“In that [January] Order, the Court also found that at least some of the rights claimed by South Africa under the Genocide Convention and for which it is seeking protection were plausible, namely the right of the Palestinians in Gaza to be protected from acts of genocide and related prohibited acts mentioned in Article III, and the right of South Africa to seek Israel’s compliance with the latter’s obligations under the Convention.

TABLE 9 (continued)

The Court considered also that, by their very nature, at least some of the provisional measures sought by South Africa are aimed at preserving these rights (*Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)*, *Provisional Measures, Order of 26 January 2024*, *I.C.J. Reports 2024 (I)*, p. 23, para. 54 and p. 24, para. 59). The Court also sees no reason to revisit this conclusion for the purposes of deciding on the [South African] Request of 6 March 2024.” (28 March 2024 Court “Order,” para. 25)

“In conformity with its obligations under the Genocide Convention, and in view of the worsening conditions of life faced by Palestinians in Gaza, in particular the spread of famine and starvation, Israel shall: (a) take all necessary and effective measures to ensure, without delay, in full co-operation with the United Nations, the unhindered provision at scale by all concerned of urgently needed basic services and humanitarian assistance, including food, water, electricity, fuel, shelter, clothing, hygiene and sanitation requirements, as well as medical supplies and medical care to Palestinians throughout Gaza, including by increasing the capacity and number of land crossing points and maintaining them open for as long as necessary; and (b) ensure with immediate effect that its military does not commit acts which constitute a violation of any of the rights of the Palestinians in Gaza as a protected group under the Genocide Convention, including by preventing, through any action, the delivery of urgently needed humanitarian assistance.” (“Order,” para. 45)

Conclusion to Section II B

The March 2024 proceedings at the Court reenacted, but also built upon, the January 2024 proceedings. In January, South Africa alleged that the Israeli assault on Palestinians in Gaza breached the Genocide Convention. It adduced a mountain of evidence culled from UN agencies and other respected international NGOs. Israel vehemently denied the charge but, it appears, relied mostly on its own official, State sources to make its case. Basing itself on UN sources, the Court “Order” found that Israel was plausibly committing genocide. Persuaded that Palestinians in Gaza faced imminent and irreparable harm in violation of their rights as set forth in the Genocide Convention, the Court mandated provisional measures to protect Palestinians pending the merits phase of the case. In particular, Israel was ordered to “prevent” the commission of genocidal acts and incitement of genocide, as well as to “enable” humanitarian assistance for Gaza’s at-risk population. Albeit at a heightened degree of intensity, the same scenario played out in March. Basing itself again on UN agencies and other respected international NGOs, South

Africa alleged that Israel's genocidal assault was intentionally inflicting mass starvation in Gaza, and called upon the Court to indicate new provisional measures in response to this yet direr situation. Basing itself again on mostly official State sources, Israel angrily denied the allegation as it insisted that it was facilitating not blocking humanitarian assistance, such that the situation didn't warrant new provisional measures. Quoting senior UN officials and respected international relief organizations, the Court rebuffed Israel for a second time: it confirmed that a new, direr situation had taken hold in Gaza; that Israel was culpable for this catastrophe; and that, "[i]n conformity with its obligations under the Genocide Convention, and in view of the worsening conditions of life faced by Palestinians in Gaza,"⁴² the Court would indicate provisional measures that both reaffirmed and expanded on the January "Order."

One element in the plot line did, however, dramatically change: *Judge Sebutinde switched sides*. Whereas she defiantly appended the one and only dissent in the January proceeding, this time around Judge Sebutinde joined the Court majority. True, she voted against the first provisional measure that "[r]eaffirms" the provisional measures indicated by the Court in its January "Order." Her obvious motive was to feign consistency, as she had voted against those January provisional measures that the Court now reaffirmed. But that doesn't yet answer the question, why didn't she dissent from the February "Order" that mandated Israel's compliance with and "immediate and effective implementation of" the January provisional measures? Still, this amounts to a trivial lapse of logic next to Judge Sebutinde's vote in favor of all the other provisional measures in the March "Order." Those new provisional measures were embedded in the selfsame Court jurisprudence categorically repudiated by Judge Sebutinde in her January "Dissenting Opinion." Back then, Judge Sebutinde purported that the Israel-Palestine conflict was a strictly political dispute unsuitable and unsusceptible to judicial intervention; that South Africa didn't adduce any evidence that Israel was plausibly committing genocide; and that, if Israel wasn't plausibly in violation of the Genocide Convention, then the Court lacked jurisdiction and couldn't indicate provisional measures. Hence, she rejected the whole of the Court's jurisprudence and voted against all the January provisional measures. But the Court's March "Order" was predicated on the propriety of judicial intervention as well as on its finding in January that Israel was

42. 28 March 2024 "Order," para. 45.

plausibly committing genocide, while it indicated provisional measures in light of the imminent irreparable harm to Palestinians in Gaza in violation of the Genocide Convention. Indeed, the jurisprudence and provisional measures of the March “Order,” which Judge Sebutinde lent her name to, manifestly traced back to the January “Order” that she had opposed. The obvious retort to this blatant inconsistency is, *What’s the big deal? Judge Sebutinde just changed her mind*. Prima facie, that surely is reasonable, but it still does perplex exactly what accounted for her volte-face. In both January and March, South Africa and then the Court relied preponderantly on data secured from UN institutions. But whereas Judge Sebutinde aligned with Israel against South Africa and the overwhelming Court majority in January, she aligned with South Africa and the overwhelming Court majority against Israel in March—even as the evidentiary basis of the South African case and the Court findings remained constant throughout. Why did Judge Sebutinde reject the mountain of UN-based evidence that Israel was plausibly committing genocide in January yet credit the mountain of UN-based evidence in March? Further, in her January “Dissenting Opinion,” Judge Sebutinde opposed the Court’s indication of provisional measures on the grounds that, as a point of law, if Israel wasn’t plausibly committing genocide, “the Court should not order the provisional measures requested.”⁴³ If Judge Sebutinde voted for provisional measures in March, then she must have been persuaded that Israel was plausibly committing genocide. But if she experienced this epiphany, why did she vote against the first provisional measure in the March “Order” that “[r]eaffirms” the January provisional measures? The Court indicated the measures in January to protect Palestinians in Gaza at risk of imminent irreparable harm in violation of the Genocide Convention. The March provisional measures tightened the January measures. For example, the January “Order” called on Israel to “enable” the transfer of humanitarian goods into Gaza, whereas the March “Order” held Israel to the more stringent requirement that it “ensure” such transfer. If Judge Sebutinde was now persuaded that Israel was plausibly committing genocide and therefore voted for the March measures to protect the rights of Palestinians in Gaza per the Genocide Convention, why then didn’t she go along with the Court majority and vote to reaffirm the January measures even as they were conceptually inseparable from and practically less onerous than the March measures? If she

43. “Dissenting Opinion of Judge Sebutinde” (26 January 2024; <https://www.un.org/unispal/wp-content/uploads/2024/01/192-20240126-ord-01-02-en.pdf>), para. 23.

voted for the more stringent measures, it's senseless that she opposed the less stringent ones. Try as Judge Sebutinde did to reconcile her dissent from the Court "Order" in January with her support for the Court "Order" in March, by voting for the March measures minus the first March measure that merely reaffirmed the January measures, she ended up tying herself in a tangle of jurisprudential knots.

The upshot is that just two months after she emphatically denied the findings of the January "Order" that Israel was plausibly committing genocide and voted against all the January provisional measures because the Court allegedly had no legal warrant under the Genocide Convention, Judge Sebutinde signed onto the March "Order" even as it was explicitly anchored in the January "Order" finding that Israel was plausibly committing genocide,⁴⁴ and even as the March "Order" indicated new provisional measures "in conformity with its obligations under the Genocide Convention." Turning on a dime and on no discernible basis, Judge Sebutinde switched from a genocide-denier in January 2024 to a plausible-genocide-affirmer in March 2024. If Judge Sebutinde didn't avail herself of a Declaration or Separate Opinion to clarify her jurisprudence after the March Court "Order," it's not hard to find the reason why: the zigzags weren't amenable to a logical-legal explanation. To solve the riddle of Judge Sebutinde's bizarre jurisprudence, one must look, albeit speculatively, elsewhere.

Judge Sebutinde's January 2024 "Dissenting Opinion" provoked a mixture of disappointment and outrage.⁴⁵ In an extraordinary gesture, Judge Sebutinde's own home government publicly distanced itself from her: "The position taken by Judge Sebutinde is her own individual and independent opinion, and does not in any way reflect the position of the government of the Republic of Uganda."⁴⁶ Indeed, it couldn't but be wondered (if only sotto voce) just whom Judge Sebutinde was serving as it most assuredly wasn't the Goddess of Justice. Lacking Judge ad hoc Barak's tactical suppleness, Judge

44. 28 March 2024 "Order," para. 25.

45. Juliana Santos de Carvalho, "On Being Disappointed at Judge Sebutinde's Dissent," *OpinioJuris* (16 February 2024; <https://opiniojuris.org/2024/02/16/on-being-disappointed-at-judge-julia-sebutindes-dissent>).

46. "Uganda Says Judge's Dissent from World Court Ruling on Israel Does Not Reflect Its Position," *Reuters* (28 January 2024; <https://www.reuters.com/world/middle-east/uganda-says-judges-dissent-world-court-ruling-israel-does-not-reflect-its-2024-01-28>). For the record, a judge on the ICJ does not serve as the representative of its home government and isn't under obligation to echo its policy positions.

Sebutinde had too conspicuously stuck her neck out in January and her head was nearly cut off. If she were to be of any use in the future, the prudent strategy would be to lay low for a while. So Judge Sebutinde quietly joined the majority on the Court in February and March in order to rehabilitate her image. But if her fidelity were again to be tested at a critical political juncture, Judge Sebutinde wouldn't disappoint. That moment came in May 2024.

III

Judge Sebutinde Does Another Volte-Face

On 6 May 2024, Israel launched an assault on Rafah. If Israel was to achieve its ultimate goal since the start of its offensive in October 2023 of making the whole of Gaza uninhabitable, then Rafah had to be razed to the ground. It was Act IV, Scene 4, of Gaza's martyrdom. Israel could not afford any missteps. Over at the International Court of Justice, Israel's loyal foot soldier and judicial executioner, Judge Sebutinde, brazenly marched in lockstep.

III A

Another Urgent Request

On 10 May 2024, South Africa filed yet another "Urgent Request for the Modification and Indication of Provisional Measures."⁴⁷ It pleaded that "the provisional measures previously indicated by the Court are not capable of 'fully address[ing]' the changed circumstances and new facts on which this Request is founded."⁴⁸ In particular, it pointed to the "situation brought about by the Israeli assault on Rafah, and the extreme risk it poses to humanitarian supplies and basic services into Gaza."⁴⁹ If Rafah was ground to dust, then, South Africa warned, Gaza would cease to exist: "Rafah is now effectively the last refuge in Gaza for 1.5 million Palestinians from Rafah and those

47. "Urgent Request for the Modification and Indication of Provisional Measures Pursuant to Article 41 of the Statute of the International Court of Justice and Articles 75 and 76 of the Rules of Court of the International Court of Justice" (10 May 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240510-wri-01-00-en.pdf>).

48. Ibid., para. 3 (the internal quote is from the 28 March 2024 Court "Order").

49. Ibid., para. 4.

displaced by Israeli action, and the last viable center in Gaza for habitation, public administration, and the provision of basic public services, including medical care”; “if Rafah is . . . destroyed there will be little left of Gaza or of the prospects for the survival of Palestinian life in the territory.”⁵⁰ This new situation “present[ed] the gravest and most urgent risk of irreparable prejudice to the rights in issue in the case,”⁵¹ and therefore warranted new provisional measures by the Court. To document the situation’s unprecedented gravity and the necessity for new provisional measures, South Africa leaned heavily on voluminous data provided by UN agencies and other respected international relief organizations, as well as on Israeli sources. (See Table 10.) It also presented evidence documenting what was alleged to be Israel’s persisting “genocidal rhetoric,” including statements by Prime Minister Benjamin Netanyahu, Defense Minister Yoav Gallant, and Finance Minister Bezalel Smotrich.⁵² On 16 May 2024, the South African legal team restated and updated its plea at the “Public Sitting.” It repeatedly stressed that “Israel’s actions in Rafah are part of the endgame in which Gaza is utterly destroyed as an area capable of human habitation. This is the last step in the destruction of Gaza and its Palestinian people.”⁵³

On 17 May 2024, the Israeli legal team delivered its rebuttal at the “Public Sitting.” It accused South Africa of an “inversion of reality,” of presenting “a picture that is completely divorced from the facts and circumstances,” as it ignored the “difficult and tragic armed conflict” in Gaza, a “war [Israel] did not want and did not start,” and the “facts cannot but show that Israel is seeking consistently to abide by the law in the excruciating circumstances of warfare that Hamas has deliberately created.”⁵⁴ It alleged that Hamas had extensively infiltrated and held hostages in Rafah, and that Hamas used Palestinian civilians as “human shields.”⁵⁵ It further alleged that, if the IDF

50. *Ibid.*, paras. 5, 7.

51. *Ibid.*, para. 5.

52. *Ibid.*, paras. 31–32; see also “Public Sitting” (16 May 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240516-ora-01-00-bi.pdf>), pp. 41–50, paras. 1–33—Ngcukaitobi.

53. “Public Sitting,” p. 13, para. 6; see also p. 15, para. 13—Lowe.

54. “Public Sitting” (17 May 2024), pp. 8–9, paras. 2–3, 10—Noam; p. 22, para. 6—Kaplan Tourgeman.

55. *Ibid.*, pp. 10–11, paras. 13–19—Noam. The paragraphs cited an “IDF Spokesperson,” and they also referenced “tab 1” and “tab 2” of the “judges’ folder”; p. 12, para. 24, regarding the status of Israeli hostages, referenced “tab 3” of the “judges’ folder.”

was guilty of misconduct, these were “exceptional incidents” while the Israeli judicial system was effectively prosecuting these aberrations as well as egregiously inflammatory public statements.⁵⁶ It also noted that “on 28 April 2024 Israel provided the Court with a lengthy report detailing, *inter alia*, the numerous steps that Israel has actively and effectively taken to address the humanitarian situation.”⁵⁷ The report wasn’t made available for public scrutiny. In any event, its pertinence was at best indirect, as the point at issue in the May proceedings was the allegedly unprecedented humanitarian crisis that took hold in the wake of Israel’s decision to attack Rafah in early May 2024. (After the Court indicated provisional measures in March 2024, the humanitarian situation in northern Gaza marginally improved through April.⁵⁸) Israel pointed to representations by South Africa per the humanitarian situation that were “patently untrue,” but it didn’t adduce proof beyond mere assertion or official denial that refuted only in La-La Land the superabundance of UN data.⁵⁹ Still, that didn’t deter the kettle from calling the coffee pot black. Thus, South Africa stood accused by Israel of making “baseless claims with evidence that simply does not exist”; citing “hateful social media accounts and unsubstantiated news reports in support of its claims”; a “heavy reliance on documents prepared by third parties or under the auspices of the United Nations, when these cannot be said to constitute sufficient evidence of a reliable quality” and “frequently rely on Hamas sources or on those subject to Hamas intimidation.”⁶⁰ Israel professed that it had

56. “Public Sitting,” pp. 15–16, paras. 43–54—Noam. He also accused South Africa of having “consistently cherry-picked statements or taken others out of context, in an attempt to attribute to Israel the intent to commit genocide” (see also p. 25, para. 24, pp. 27–28, para. 30—Kaplan Tourgeman).

57. “Public Sitting,” p. 14, para. 38—Noam; see also *ibid.*, p. 24, para. 20.

58. Jeremy Konyndyk et al., “Untangling the Reality of Famine in Gaza,” *Refugees International* (12 September 2024; <https://www.refugeesinternational.org/reports-briefs/untangling-the-reality-of-famine-in-gaza>), and Riley Sparks et al., “Targeted Aid Killings: How Israel starved a population and sowed chaos in northern Gaza,” *The New Humanitarian* (3 December 2024; <https://www.thenewhumanitarian.org/investigations/2024/12/03/targeted-aid-killings-how-israel-starved-population-and-sowed-chaos-northern-gaza-palestine>). The one and only favorable statement by a UN official of any rank quoted by Israel dated from this period, which preceded in time the new humanitarian crisis in early May. “Public Sitting,” p. 26, para. 25—Kaplan Tourgeman.

59. “Public Sitting,” p. 22, paras. 7–20—Kaplan Tourgeman. There’s also the spotty reference to this or that confidential “tab” in the judges’ folder (see *ibid.*, p. 27, para. 28, p. 28, para. 32).

60. “Public Sitting,” p. 14, para. 37, pp. 18–19, paras. 63–67—Noam. It did slightly back-track as it then proclaimed: “It is important to clarify” that “Israel does not underestimate the

repeatedly “avoided the catastrophes which South Africa threatened were imminent” and that it “continues to work to improve the humanitarian situation and to prevent harm to civilians and to aid workers.” In support of these contentions, it cited public statements by Prime Minister Netanyahu that Israel was “flooding Gaza with humanitarian aid” and Defense Minister Gallant that “we are taking significant measures in order to increase the volume of humanitarian aid into Gaza.”⁶¹ (See Table 10.) No “new situation” had taken hold in Gaza warranting new provisional measures, Israel’s legal team concluded, while “the measures currently in place are entirely sufficient.”⁶² Were it true that the predicted humanitarian catastrophes in Gaza had been “avoided,” and that, far from Gaza having descended to a yet new nadir of disaster in May, Israel was on the contrary “flooding Gaza with humanitarian aid,” then it wasn’t just South Africa but also the full gamut of the UN system, in all of its manifestations and at all levels from the top down, alongside a panoply of international relief NGOs, that must have conspired to fabricate a monumental hoax.



Picasso, “Guernica”

reports of the United Nations and other sources. We study them, draw conclusions and lessons in the appropriate cases.” But it also sought to vindicate its skepticism of UN sources by tentatively reporting on a controversy surrounding the Gazan casualty figures that UN agencies relied on.

61. Ibid., p. 25, paras. 21–23—Kaplan Tourgeman.

62. Ibid., p. 29, para. 36—Kaplan Tourgeman.

TABLE 10 The Humanitarian Situation in Gaza Circa Early May 2024:
A Juxtaposition of Major Sources

South Africa ^a	Israel ^b
<i>South Africa alleged that the already catastrophic humanitarian situation in Gaza had qualitatively deteriorated as Israel proceeded with its genocidal assault in Rafah.</i>	<i>Israel alleged that the humanitarian situation in Gaza had never been catastrophic and that it had taken sufficient humanitarian precautions before launching its latest offensive in Rafah.</i>
UN Secretary-General ^c	
UN Office of the High Commissioner for Human Rights-OHCHR ^d	Israel cited a “lengthy report” it delivered privately to the Court in late April 2024
UN Office for the Coordination of Humanitarian Affairs-OCHA ^e	but, whatever its contextual value and how- ever verifiable its sources, this would still
United Nations Development Program- UNDP ^f	only refer to events before Israel’s decision to attack Rafah in early May, which was the
UN Relief and Works Agency-UNRWA ^g	point at issue in these proceedings. (The one and only favorable statement by a UN
UN News ^h	official quoted by Israel predates the new crisis that emerged in early May. ⁴) In addi- tion, Israel cited statements by Israeli public
UN Women ⁱ	officials such as Prime Minister Netanyahu and Defense Minister Gallant, ⁵ included
United Nations Web TV ^j	a couple of images, ⁶ and made occasional reference to this or that confidential “tab” in the “judges’ folder.” ⁷
United Nations, Palestine ^k	
UNICEF ^l	
CARE ^m	
International Rescue Committee ⁿ	
Médecins sans Frontières-MSF ^o	
Mercy Corps ^p	
Norwegian Refugee Council ^q	
Oxfam ^r	
Save the Children ^s	
World Health Organization-WHO ^t	
World Food Program-WFP ^u	

^a This column tabulates references to the multiple May 2024 submissions in which South Africa developed its case: “Urgent Request,” “Public Sitting,” and “South Africa’s Comments on the Reply by Israel to the Question Posed by Judge Nolta.” If the same reference was repeated by South Africa in more than one place, it is only reported once in this table, and references already tallied in other tables of this chapter are not repeated in this table.

^b This column tabulates references to Israel’s presentation at the “Public Sitting” and its “Response of the State of Israel to the Question Posed by Judge Nolta.” If the same reference was repeated by Israel in more than one place, it is only reported once in this table, and references already tallied in other tables of this chapter are not repeated in this table.

^c “Public Sitting” (16 May 2024), p. 20, para. 13n28, p. 35, para. 15n118, p. 36, para. 21n132, p. 63, para. 2n280.

(continued)

TABLE 10 (continued)

- ^d “Urgent Request,” para. 11n17, para. 14n27, 28, para. 17n39. “Public Sitting” (16 May 2024), p. 19, para. 11n25, p. 20, para. 14n31, p. 55, para. 10n244, p. 60, para. 22n271.
- ^e “Urgent Request,” para. 9n5, para. 10n11, para. 13n23, para. 14nn26, 29, para. 15nn31, 33. “Public Sitting” (16 May 2024), p. 27, para. 17n74, pp. 27–28, para. 19n77, p. 29, para. 22n93, p. 29, para. 23nn94, 95, 96, p. 35, para. 15n117, p. 35, para. 17n124, p. 36, para. 20n130, p. 38, para. 28n143, p. 39, para. 32n153, p. 39, para. 33nn154, 155, p. 40, para. 34n157. “South Africa’s Comments,” para. 28n75, para. 37n115, para. 48n165.
- ^f “Public Sitting” (16 May 2024), p. 63, para. 2n281.
- ^g “Urgent Request,” para. 7n2, para. 14n30, para. 15n32. “Public Sitting” (16 May 2024), p. 19, para. 11n26, p. 22, para. 5n37, p. 24, para. 9n44, p. 29, para. 22n92, p. 30, para. 25n99, p. 35, para. 17n123, p. 35, para. 17n125, p. 52, para. 5n221, p. 53, para. 7nn230, 231, p. 62, para. 28n278. “South Africa’s Comments,” para. 8n15, para. 14n25, para. 38nn123, 124, para. 43n140, para. 44n144, para. 46n154.
- ^h “Urgent Request,” para. 9n7, para. 11n17, para. 12n22. “Public Sitting” (16 May 2024), p. 20, para. 14n32, p. 28, para. 19n79, p. 29, para. 21n88, p. 37, para. 26n139, p. 53, para. 6nn227, 228. “South Africa’s Comments,” para. 46n160, para. 48n166, para. 49n170.
- ⁱ “Public Sitting” (16 May 2024), p. 25, para. 11nn53, 54.
- ^j “Urgent Request,” para. 12n21, para. 17n40. “Public Sitting” (16 May 2024), p. 28, para. 20nn80, 82, p. 30, para. 24n98, p. 31, para. 27n103.
- ^k “Public Sitting” (16 May 2024), p. 19, para. 10n21, p. 59, para. 17n264.
- ^l “Urgent Request,” para. 9n9, para. 12n20, para. 13n24, para. 15n36. “Public Sitting” (16 May 2024), p. 52, para. 5n224, p. 53, para. 7n229. “South Africa’s Comments,” para. 34n97, para. 39n127.
- ^m “Public Sitting” (16 May 2024), p. 24, para. 11n50, p. 29, para. 21n90.
- ⁿ *Ibid.*, p. 38, para. 27n141.
- ^o *Ibid.*, p. 35, para. 15n118, p. 37, para. 23n133, p. 37, para. 24n135. “South Africa’s Comments,” para. 23n55, para. 42n138.
- ^p “Urgent Request,” para. 15nn32, 34.
- ^q *Ibid.*, para. 16n38.
- ^r “Public Sitting” (16 May 2024), p. 33, para. 7n110.
- ^s “Urgent Request,” para. 16n38. “Public Sitting” (16 May 2024), p. 25, para. 14n59, p. 27, para. 18n76, p. 52, para. 5n224. “South Africa’s Comments,” para. 29n78.
- ^t “Urgent Request,” para. 11nn14, 18, para. 12n22, para. 15n31, para. 18nn41, 42. “Public Sitting” (16 May 2024), p. 37, para. 23n134. “South Africa’s Comments,” para. 41n135.
- ^u “Urgent Request,” para. 12n20. “Public Sitting” (16 May 2024), p. 20, para. 13n29, p. 28, para. 21n86, p. 29, para. 23n96. “South Africa’s Comments,” para. 30n82, para. 35n109.
- ^v “Public Sitting” (17 May 2024), p. 26, para. 25. “Response of the State of Israel,” para. 34n4.
- ^w “Public Sitting” (17 May 2024), p. 25, paras. 20–22, p. 26, para. 23.
- ^x “Response of the State of Israel,” pp. 3–4.
- ^y “Public Sitting” (17 May 2024), p. 10, para. 15, p. 11, para. 16, p. 12, para. 24, p. 23, para. 8, p. 27, para. 28, p. 28, para. 32.

At the end of the Israeli pleading, Judge Nolte (from Germany) posed this question:

Can Israel provide information about the existing humanitarian conditions in the designated evacuation zones, in particular Al-Mawasi, and how it would

ensure safe passage to these zones, as well as the provision of shelter, food, water and other humanitarian aid and assistance to all evacuees that are, and can be expected to arrive, in these zones?

The Court invited Israel to respond and South Africa to comment on Israel's response. The "Response of the State of Israel to the Question Posed by Judge Nolte"⁶³ clocked in at a skimpy thirty-four paragraphs of loosely argued text. It avowed Israel's good faith efforts and purported that it had taken precautionary measures "with the intent that the humanitarian needs of the civilian population are met," and "to mitigate the risk to . . . civilians, as far as possible in the circumstances, from the dangers of active hostilities."⁶⁴ Further, the IDF had secured the escape routes "in order to help protect the civilians as they evacuate to the humanitarian area,"⁶⁵ and the safe havens themselves were well-equipped to accommodate the influx of refugees, while Israeli officials were successfully coordinating with international agencies and foreign States to meet the humanitarian challenge. The "Response" concluded that "Israel has been facilitating a scale-up of humanitarian assistance, improved deconfliction measures to ensure the safety of humanitarian personnel, facilitated the repair and operation of critical infrastructure, and encourages the evacuation of civilians for their safety."⁶⁶ However, the "Response" provided precious little verifiable evidence or concrete detail (it contained all of three unsourced footnotes)⁶⁷ on the prophylactic measures that Israel had allegedly taken. The only specifics it provided, albeit minimal and without documentation, bore on the availability of pita, water, tents, and healthcare. What's more, *it didn't directly engage or contest, let alone refute, the mountain of damning evidence from UN sources that South Africa had assembled in its pleadings*. The rejoinder, "South Africa's Comments on the Reply by Israel to the Question Posed by Judge Nolte," ran to fifty-four paragraphs of densely argued text replete with 194 multi-referenced footnotes (mostly to UN agencies and other respected

63. "Response of the State of Israel to the Question Posed by Judge Nolte at the Oral Hearing of 17 May 2024 on South Africa's Fourth Request for Provisional Measures" (18 May 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240518-oth-01-00-en.pdf>).

64. Ibid., paras. 5, 11.

65. Ibid., para. 8.

66. Ibid., para. 33.

67. A fourth footnote referred to a speech by Prime Minister Netanyahu.

international relief organizations) as well as a thirty-eight-page appendix.⁶⁸ It frontally disputed Israel in a point-by-point rebuttal juxtaposing Israel's raw assertions against its own multitude of redoubtable sources, as it argued that "Palestinians seeking safety [in the evacuation zones] continue to be killed, wounded, starved and denied access to medical services and humanitarian aid," "there is no 'safe passage' to the designated 'evacuation zones,'" "Israel has failed to plan effectively or at all for the evacuation of Palestinians subject to 'evacuation orders,'" while its "bald, unevidenced assertions concern the future purported establishment of 'shelter complexes' in Gaza, that will necessarily have been too late to accommodate 800,000 evacuees who have already fled Rafah in terror due to Israel's military operations there," etc.⁶⁹ (See Table 11, left-hand column.)

Conclusion to Section III A

The point of contention between South Africa and Israel was not a matter of degree or shades of grey. Whereas South Africa pleaded that Israel had engineered a yet graver humanitarian catastrophe in early May that was "the last step in the destruction of Gaza and its Palestinian people," Israel pleaded that it had all along preemptively "avoided" a humanitarian catastrophe while it was currently "flooding Gaza with humanitarian aid." These were diametrically opposed, utterly irreconcilable representations of reality. It must have been that one party to the proceedings was outrageously lying.

III B

May 2024 Court "Order"

On 24 May 2024, the Court issued a new "Order" that yet again rebuffed Israel. It found that a "change in the situation" had indeed taken hold as the humanitarian situation in Gaza "has deteriorated" and "is now to be characterized as disastrous." It further found that, as the rights of Palestinians

68. "South Africa's Comments on the Reply by Israel to the Question Posed by Judge Nolte at the End of the Oral Hearings Held on 17 and 18 May 2024" (20 May 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240520-oth-01-00-en.pdf>).

69. *Ibid.*, paras. 4, 11–12.

in Gaza per the Genocide Convention⁷⁰ were at risk of imminent, irreparable harm, new provisional measures were indeed warranted.⁷¹ To support its findings, the Court leaned on testimony and data provided by UN agencies. (See Table 11, right-hand column.) Fourteen judges voted in favor of the new provisional measures, two judges voted against them. The negative votes were cast by Judge ad hoc Barak and Judge Sebutinde. Each of them appended a “Dissenting Opinion.”

TABLE 11 The Humanitarian Situation After Israel Launched Its Offensive in Rafah: A Juxtaposition of “South Africa’s Comments on the Reply by Israel” with the Court “Order”	
From “South Africa’s Comments” (Excerpts)	From the Court “Order”
“Once again, nearly half of the population of Rafah or 800,000 people are on the road. . . . The areas that people are fleeing to now do not have safe water supplies or sanitation facilities. Al-Mawasi—as one example—is a sandy 14 square kilometer agricultural land, where people are left out in the open with little to no buildings or roads. It lacks the minimal conditions to provide emergency humanitarian assistance in a safe and dignified manner.” Commissioner-General for the United Nations Relief and Works Agency (UNRWA), 18 May 2024^a “The so-called ‘expanded humanitarian area’ of Al Mawasi . . . is already without sufficient food, water, medicine, hygiene products, electricity, shelter and access to education for children; it cannot cope with a population influx.” UN Office of the High Commissioner for Human Rights^b “Al Mawasi . . . is ‘a narrow strip of beach on the	“The Court notes that senior United Nations officials have consistently underscored the immense risks associated with a military offensive in Rafah. For instance, on 3 May 2024, the Spokesperson of the Office for the Coordination of Humanitarian Affairs (OCHA) warned that an assault on Rafah would put ‘hundreds of thousands of people . . . at imminent risk of death’ and would severely impact the humanitarian operation in the entire Gaza Strip, which is run primarily out of Rafah. . . . On 6 May 2024, the United Nations Children’s Fund (UNICEF) indicated that about half of the approximately 1.2 million Palestinians sheltering in Rafah were children, and warned that military operations therein would result in ‘the few remaining basic services and infrastructure they need to survive being totally destroyed.’” “United Nations sources indicate that the above-mentioned risks have started to materialize and will intensify even further if the operation continues. For instance, on 8 May 2024, the Director-General of the World Health Organization stated that the Al Najjar Hospital, one of the last

(continued)

70. “Order” (24 May 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240524-ord-01-00-en.pdf>), para. 32.

71. *Ibid.*, paras. 30, 47.

TABLE 11 (continued)

From “South Africa’s Comments” (Excerpts)	From the Court “Order”
coast that lacks basic infrastructure—like toilets and running water—needed to sustain a population.’ It is ‘overcrowded,’ ‘overstretched,’ ‘devoid of vital services,’ lacking ‘safety’ and ‘vital services,’ with living conditions described as ‘unimaginable.’ It lacks the capacity to ‘house the number of people currently seeking refuge in Rafah.’” Internal quotes from UNICEF and Norwegian Refugee Council, 6–14 May 2024^c “The Director-General of the World Health Organization explained . . . on 19 May 2024 that ‘[e]vacuation orders, intensified bombardment, and no passage for aid across Gaza continue to put civilian lives and health at grave risk.’ That is in significant part because the ‘[e]ntry of emergency medical teams and medical supplies through the Rafah border crossing into Gaza has been blocked since 6 May,’ and ‘[i]nside the Strip, supplies of essential medicines and fuel are very low, and movement is limited due to security constraints.’”^d “United Nations and international humanitarian organizations have repeatedly made clear, Al Mawasi, Israel’s designated ‘humanitarian zone’ itself has no proper medical infrastructure.” (14–18 May 2024)^e “[T]he UN has confirmed that ‘[p]eople were moving north and northwest, where they had been told to go, but there were no safe routes out of Rafah, or safe destinations in Gaza.’” UN Geneva, Press Briefing, 17 May 2024^f	remaining medical facilities in the Rafah Governorate, was no longer functional due to the ongoing hostilities in its vicinity. On 17 May 2024, the World Food Program (WFP) warned that it had been unable to access its warehouse in Rafah for over a week and observed that “[t]he incursion into Rafah is a significant setback to recent modest progress on access.” “On the basis of the information before it, the Court is not convinced that the evacuation efforts and related measures that Israel affirms to have undertaken to enhance the security of civilians in the Gaza Strip, and in particular those recently displaced from the Rafah Governorate, are sufficient to alleviate the immense risk to which the Palestinian population is exposed as a result of the military offensive in Rafah. The Court observes, for instance, that according to a statement by the Commissioner-General of the United Nations Relief and Works Agency for Palestine Refugees in the Near East (UNRWA), Mr Philippe Lazzarini, on 18 May 2024, <i>[t]he areas that people are fleeing to now do not have safe water supplies or sanitation facilities. Al-Mawasi—as one example—is a sandy 14 square kilometer agricultural land, where people are left out in the open with little to no buildings or roads. It lacks the minimal conditions to provide emergency humanitarian assistance in a safe and dignified manner.</i> The Court observes that Israel has not provided sufficient information concerning the safety of the population during the evacuation process, or the availability in the Al-Mawasi area of the necessary amount of water, sanitation, food, medicine and shelter for the 800,000 Palestinians that have evacuated thus far. Consequently, the Court is of the view that Israel has not sufficiently addressed and dispelled the concerns raised by its military offensive in Rafah.”^g

^a “South Africa’s Comments,” para. 8n15.

^b Ibid., para. 37n120. Internal quote not identified.

^c Ibid., para. 39nn127, 128, 129, 130, 131.

TABLE 11 (continued)

^d Ibid., para. 41n135.

^e Ibid., para. 42nn136, 137, 138.

^f Ibid., para. 49n170.

^g “Order,” paras. 44–46.

Judge Sebutinde’s “Dissenting Opinion” ran to twenty-eight paragraphs.⁷² She objected to the Court “Order,” *inter alia*, on these grounds:

*The Court did not “fully or accurately reflect” the “existential threats” facing Israel on “multiple fronts.”*⁷³ Judge Sebutinde noted Hamas’s continued rocket attacks on Israel. She repeatedly quoted the unsubstantiated data presented by Israel at the “Public Sitting,”⁷⁴ and justified this stenographic *modus operandi* by observing that South Africa “has not disputed these facts.”⁷⁵ But that’s perhaps because, rightly or wrongly, South Africa never mentioned Hamas’s rocket attacks, so the occasion to deny Israel’s assertions never arose. When Judge Sebutinde goes off Israel’s script, things don’t improve. She recalled that, out of the blue, “[o]n 13 April 2024, Iran launched a large-scale attack on Israel involving more than 200 drones, cruise missiles, and ballistic missiles aimed at Israeli territory.” Israel’s assassination of two Iranian generals in its consulate in Syria that preceded Iran’s retaliatory strike didn’t rate a mention. Judge Sebutinde repeatedly admonished the Court for attempting to “micromanage” Israel’s just war of self-defense against Hamas:

To maintain its judicial integrity, the Court must avoid reacting to every shift in the conflict and refrain from micromanaging the hostilities in the Gaza Strip. . . . Once again, South Africa has invited the Court to micromanage the conduct of hostilities between Israel and Hamas. . . . Regrettably, the wording of the Court’s directive . . . ordering Israel to “halt its military offensive . . . in the Rafah Governorate” . . . could be erroneously misunderstood as mandating

72. “Dissenting Opinion of Vice-President Sebutinde” (24 May 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240524-ord-01-01-en.pdf>).

73. Ibid., paras. 3, 8.

74. Ibid., para. 5nn2, 3, 4.

75. Ibid., para. 5.

a unilateral ceasefire in part of Gaza, [which] amounts to micromanaging the hostilities in Gaza by restricting Israel's ability to pursue its legitimate military objectives, while leaving its enemies, including Hamas, free to attack without Israel being able to respond.⁷⁶

The allegation that the Court was improperly “micromanaging” Israel's legitimate war in Gaza was leveled first by Judge ad hoc Barak in his “Separate Opinion” when the Court issued its March “Order,”⁷⁷ and then by Israel's legal team in the May “Public Sitting.”⁷⁸ Judge Sebutinde appropriated Israel's admonition as her own, without attribution. She stated that she voted against the provisional measure calling on Israel to halt its military offensive in Rafah because it might be “erroneously misunderstood [*sic*]” as denying Israel the right of self-defense against the Hamas “terrorist organization.”⁷⁹ But other judges on the Court voted in favor of this provisional measure while also stipulating in separate “Declarations” that Israel preserved its right to self-defense.⁸⁰ Judge Sebutinde elected not to exercise this option of opposing Israel's offensive but upholding its right to self-defense, and instead greenlighted Israel's military offensive even as it threatened to cause death on a horrific scale in Gaza.

New provisional measures were unnecessary. Judge Sebutinde stated that the provisional measures previously indicated by the Court “adequately address the current situation in the Gaza Strip,” as “the evidence actually shows a gradual improvement in the humanitarian situation in Gaza”; hence, “the situation in Rafah does not constitute a ‘new fact’” warranting new provisional

76. Ibid., paras. 1–2, 21.

77. “[T]he Court has accepted South Africa's invitation to become the micromanager of an armed conflict and use the Genocide Convention as an excuse to rule on the basis of international humanitarian law. Managing an armed conflict under the Genocide Convention is a dangerous endeavor, especially when one of the belligerents is not a party to the Convention” (“Separate Opinion of Judge ad hoc Barak,” 28 March 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240328-ord-01-06-en.pdf>, para. 6).

78. “[T]here is a danger that the Court will find itself engaged in the micromanagement of operational aspects of an armed conflict” (“Public Sitting,” 17 May 2024, p. 13, paras. 31–32—Noam).

79. “Dissenting Opinion,” para. 2.

80. “Declaration of Judge Aurescu” (24 May 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240524-ord-01-03-en.pdf>), para. 6; “Declaration of Judge Nolte” (24 May 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240524-ord-01-02-en.pdf>), para. 25.

measures.⁸¹ To sustain this extraordinary claim, Judge Sebutinde reported Israel’s multiple humanitarian initiatives in Gaza. Table 12 reproduces in full her footnoted sources documenting these initiatives.

TABLE 12 “[T]he Evidence Actually Shows a Gradual Improvement in the Humanitarian Situation in Gaza”: Judge Sebutinde’s Footnoted Sources
[Note: CR 2024/28 refers to the pleadings by Israel’s legal team (Kaplan Tourgeman) at the 17 March 2024 “Public Sitting”] 11. Report by the State of Israel to the International Court of Justice, 28 April 2024 (Israel’s April Report), paras. 10, 19. 12. CR 2024/28, p. 24, para. 15 (Kaplan Tourgeman). 13. Israel’s April Report, para. 24; Reuters, Israeli military says opening new aid routes into Gaza, 22 March 2024. 14. Reuters, Israel allows trucks from newly reopened Erez crossing into Gaza after US pressure, 1 May 2024. 15. CR 2024/28, p. 24, para. 13 (Kaplan Tourgeman). 16. CR 2024/28, p. 23, para. 9 (Kaplan Tourgeman); BBC, Battles in east Rafah amid dispute over reopening of Kerem Shalom crossing, 8 May 2024. 17. CR 2024/28, p. 23, para. 11 (Kaplan Tourgeman). 18. Israel’s April Report, paras. 27, 29. 19. Israel’s April Report, para. 28. 20. Israel’s April Report, para. 29. 21. Israel’s April Report, para. 34; CR 2024/28, p. 24, para. 18 (Kaplan Tourgeman). 22. CR 2024/28, p. 24, para. 17 (Kaplan Tourgeman); BBC, US confirms first aid trucks arrive via Gaza pier, 17 May 2024. 23. Israel’s April Report, para. 33.

(continued)

81. She did acknowledge that “the efforts taken by Israel thus far have not entirely alleviated the ongoing humanitarian crisis” (“Dissenting Opinion,” paras. 1, 9, 16). It has already been observed that, after the Court issued its March “Order,” the humanitarian situation in northern Gaza registered a “modest” improvement through April but that, according to UN agencies and international relief organizations, the humanitarian situation drastically deteriorated once Israel launched its offensive against Rafah in early May.

TABLE 12 (continued)

24. Israel's April Report, para. 38.
25. New York Times, What we know about where aid can enter Gaza, 10 May 2024.
26. OCHA, Hostilities in the Gaza Strip and Israel—reported impact: Day 124, 17 May 2024.
27. CR 2024/28, p. 26, para. 26 (Kaplan Tourgeman).
28. Israel's April Report, paras. 41–55.
29. OCHA, Remarks to the Security Council by Sigrid Kaag, Senior Humanitarian and Reconstruction Coordinator for Gaza, 24 April 2024; YouTube, UN Senior Official on Gaza—Media Stakeout, 24 April 2024, <https://www.youtube.com/watch?v=1Q-ds2CdjTQ&t=1s>.
30. US Department of State, Press Briefing—Department Press Briefing—April 15, 2024, 15 April 2024; US Department of State, Press Briefing—Department Press Briefing—April 23, 2024, 23 April 2024; German Foreign Office, Auswärtiges Amt, @Auswaertigesamt, Instagram, 18 April 2024.
31. Israel's April Report, paras. 56–57.
32. CR 2024/28, p. 27, para. 28 (Kaplan Tourgeman).
33. Israel's April Report, paras. 59–60, 111; CR 2024/28, p. 27, para. 29 (Kaplan Tourgeman).
34. Israel's April Report, para. 109; CR 2024/28, p. 28, para. 31 (Kaplan Tourgeman).
35. Israel's April Report, paras. 52–53.
36. Israel's April Report, para. 89.
37. Israel's April Report, paras. 90–96.
38. CR 2024/28, pp. 23–24, paras. 9, 17 (Kaplan Tourgeman).
39. Israel's April Report, para. 94.
40. CR 2024/28, p. 23, para. 11 (Kaplan Tourgeman).
41. New York Times, Actions by Israel and Egypt squeeze Gaza aid routes, 10 May 2024.
42. Israel's April Report, para. 96.
43. US Department of State, Press Briefing, Department Press Briefing, April 23, 2024, 23 April 2024.

It will be noticed that Judge Sebutinde overwhelmingly just copied and pasted the official Israeli pleadings (more on which presently).⁸²

After setting forth her objections to the body of the May “Order,” Judge Sebutinde enumerated her objections to the Court’s new provisional measures. Table 13 juxtaposes the principal new provisional measures indicated by the Court with the objections by Judge Sebutinde and Judge ad hoc Barak (from Israel). This juxtaposition illustrates either that great minds think alike—or that one of them is a cribber. (Guess who. . .)

Finally, Judge Sebutinde registered regret that “Israel was required to respond to a question posed by a Member of the Court over the Jewish Sabbath.”⁸³ Oddly, the Israeli delegation itself didn’t object. Odder still, this conspicuously pious judge didn’t express regret that Palestinian civilians in Gaza were being slaughtered in droves on the Sabbath.



Malak Mattar, “No Words, Only Scenes of Ruin”

82. Even the non-Israeli sources cited by Judge Sebutinde were culled from the Israeli submissions. For example, the OCHA reference in Table 12, footnote 29, comes from Israel’s presentation at the “Public Sitting” (17 May 2024), p. 26, para. 25n28, and is repeated by Judge ad hoc Barak (from Israel) in his “Dissenting Opinion” to the May “Order,” p. 6, para. 23n27.

83. “Dissenting Opinion,” para. 28.

TABLE 13 A Juxtaposition of the Principal New Provisional Measures Indicated by the Court with the Dissenting Opinions of Judge Ad Hoc Barak and Judge Sebutinde

Principal New Provisional Measures	Judge Ad Hoc Barak's Dissent	Judge Sebutinde's Dissent
(2) "The State of Israel shall, in conformity with its obligations under the Convention on the Prevention and Punishment of the Crime of Genocide, and in view of the worsening conditions of life faced by civilians in the Rafah Governorate: (a) Immediately halt its military offensive, and any other action in the Rafah Governorate, which may inflict on the Palestinian group in Gaza conditions of life that could bring about its physical destruction in whole or in part; (24 May 2024 Court "Order," para. 57)	"I have voted against this measure [(2) (a)]. . . . However, I note that this measure does not require Israel to refrain from its military operation in Rafah altogether. . . . It specifies that Israel must, in accordance with its obligations under the 1948 Genocide Convention, conduct its military offensive in a way that does not deprive the Palestinian civilian population of its essential means of existence. . . . [T]here is no evidence . . . that any rights under the Genocide Convention are implicated [by Israel's offensive]". . . This qualified measure shows that the Court is cognizant of Israel's need to undertake those military operations that are necessary to prevent and repel threats and attacks by Hamas, and to take action to defend itself and its citizens and free the hostages held in Gaza." ("Dissenting Opinion of Judge ad hoc Barak," para. 28)	"I have voted against the Order in operative paragraph 57 (2) (a) because I believe it is an overreach by the Court that has no link with South Africa's plausible rights under the Genocide Convention. . . . However, . . . this measure does not entirely prohibit the Israeli military from operating in Rafah. Instead, it only operates to partially restrict Israel's offensive in Rafah to the extent it implicates rights under the Genocide Convention. . . . I reiterate that Israel has the right to defend itself against its enemies, including Hamas, and to continue efforts to rescue its missing hostages. These rights are not incompatible with its obligations under the Genocide Convention." ("Dissenting Opinion of Judge Sebutinde," para. 21)
(b) Maintain open the Rafah crossing for unhindered provision at scale of urgently needed basic services and humanitarian assistance." ("Order," para. 57)	"This measure [(2) (b)] reaffirms the Court's two previous Orders. In particular, it specifies the measure indicated in . . . paragraph 51, subparagraph 2 (a), of the Order of 28 March 2024. I voted in favor of [it]. However, I cannot support this new specification because it is targeted at the Rafah crossing. . . . The Rafah crossing can only operate if both Egypt and Israel agree. I do not understand how Israel can be expected to 'maintain open' a crossing with respect to which it does not have exclusive control." ("Dissenting Opinion of Judge Barak," para. 29)	"I have voted against the Order in operative paragraph 57 (2) (b) . . . because I believe the existing provisional measures . . . already adequately cover the current situation . . . [i]n particular, the measure in operative clause 51 (2) in the Order of 28 March 2024. . . . Furthermore . . . , Egypt . . . plays a key role in facilitating aid delivery through the Rafah crossing. . . . Without Egypt's co-operation, Israel alone cannot 'maintain open the Rafah crossing.'" ("Dissenting Opinion of Judge Sebutinde," para. 23)

Conclusion to Section III B

The question before the Court in May 2024 was whether Israel's military offensive against Rafah had engendered a yet direr humanitarian catastrophe in Gaza. Adducing a mass of data and professional, on-the-ground testimony from UN agencies as well as other respected international relief agencies, South Africa pleaded that the new Israeli offensive marked "the last step in the destruction of Gaza and its Palestinian people." Israel, adducing for the most part official State data and assertions, pleaded contrariwise that it had all along "avoided" any catastrophe in Gaza and had the current situation well in hand, as it was "flooding Gaza with humanitarian aid." The respective depictions by the two parties to the proceedings stood in such stark contrast that it could not but be that one side was lying.

It will be recalled that the jurisprudence of the Court established these criteria for assessing the probative value of evidence presented before it: "(1) the source of the item of evidence (for instance partisan, or neutral), (2) the process by which it has been generated (for instance an anonymous press report or the product of a careful court or court-like process), and (3) the quality or character of the item (such as statements against interest, and agreed or uncontested facts)." When considering the evidentiary value of submissions, the Court "has given weight to the care taken in preparing a report, the comprehensiveness of its sources and the independence of those responsible for preparing it."⁸⁴ On these criteria, it would, *prima facie*, appear that the evidence submitted by South Africa is by a wide margin more credible. Nonetheless, Judge Sebutinde believed Israel. Her stance thus puzzles. But the puzzle doesn't end there.

The balance of evidence when the Court issued its March 2024 "Order" mirrored the balance in May 2024: a superabundance of data from a phalanx of respected humanitarian organizations versus overwhelmingly undocumented assertions by Israeli State officials whose credibility had already been stretched beyond the breaking point. It's cause for wonder on what jurisprudential grounds Judge Sebutinde was persuaded by the UN sources in March, when she voted for all the new provisional measures, yet was unpersuaded by the same UN sources in May, when she voted against all the new provisional measures. Judge Sebutinde never bothered to engage the UN sources in her dissent. She could have, for example, weighed the evidence submitted

84. *Legal Consequences (2024)*, para. 76.

by Israel and South Africa in order to render an on-balance judgment as to which party was more credible.⁸⁵ But Judge Sebutinde pretended as if the only material evidence before the Court was submitted by Israel. Further, in uncritically crediting the Israeli sources, she was effectively accusing UN officials, from top to bottom and across the board, of having contrived a monumental hoax—indeed, not just the UN’s senior officials and humanitarian agencies, but also its principal judicial organ on which Judge Sebutinde sat. The Court, adducing evidence from the selfsame UN sources as South Africa relied on, found that the humanitarian situation in Gaza had become “disastrous” and warranted new provisional measures. If Judge Sebutinde was correct that “the evidence actually shows a gradual improvement in the humanitarian situation in Gaza,” and therefore “the situation in Rafah does not constitute a ‘new fact’” warranting new provisional measures, then all the other judges on the Court (excepting Judge ad hoc Barak) must have been either egregiously incompetent or themselves co-conspirators in the hoax. If, however, the evidence overwhelmingly and incontestably belied Judge Sebutinde’s dissent, then it must be concluded that, on the contrary, *she* was hopelessly incompetent—or herself party to a conspiracy.

IV

The “Legal Consequences” (2024) Advisory Opinion

With most legal issues there are arguments and counterarguments that pull in different directions, even if there is an objectively correct legal position. The situation in the OPT, however, is one of the few cases in international law in which it is challenging to find legal and political arguments that pull in a direction in opposition to the Palestinian right of self-determination and in favor of the prolonged Israeli occupation of Palestinian territory and the subjugation of the Palestinian people

—“Declaration of Judge Tladi,” para. 4

While South Africa’s *Application* that Israel was committing genocide in Gaza played itself out at the International Court of Justice, a simultaneous case bearing on the Israel-Palestine conflict was additionally being litigated there. On 30 December 2022, the UN General Assembly requested from the

85. See, for example, “Declaration of Judge Nolte,” para. 20.

Court an Advisory Opinion.⁸⁶ In essence, the request posed two discrete but interrelated questions to the Court: (1) Did Israel's policies and practices in the Occupied Palestinian Territory (OPT) violate international law, and (2) if Israel's policies and practices did breach international law, did that render the occupation itself illegal?⁸⁷

IV A

What the ICJ Advisory Opinion Found

The Court delivered its Advisory Opinion on 19 July 2024. Eleven judges voted in favor of all nine operative paragraphs; one judge voted in favor of seven of the operative paragraphs; two judges voted in favor of four operative paragraphs; while Judge Sebutinde voted in favor of only one operative paragraph and appended the only dissenting opinion. The Advisory Opinion first delineated in minute detail the multiple, persistent, and egregious breaches of international law perpetrated by Israel as an occupying Power. These included its construction of Jewish settlements in the OPT on large swathes of confiscated Palestinian land, and its transfer of Jews to these settlements while coercively displacing Palestinians from these areas; its exploitation of Palestinian natural resources for the benefit of Jews and at the expense of Palestinians; its extension of Israeli law into the OPT, creating a dual, unequal legal regime that subordinated the Palestinian population; and its violent repression of Palestinian resistance to this system of dispossession and discrimination.⁸⁸ The Court next identified two “rules and principles”—“the prohibition of the acquisition of territory by threat or use of force and the right of peoples to self-determination”—that are “enshrined in the Charter of the United Nations and also form part of customary international law.”⁸⁹ It found that Israel had not only annexed significant portions of the OPT in violation of the prohibition against acquiring territory by force, but in so doing also impeded Palestinian statehood in violation of the right of a people to

86. UNGA Resolution 77/247 (30 December 2022; https://www.un.org/unispal/wp-content/uploads/2023/01/A.RES_77.247_301222.pdf).

87. The questions are posed in the form that the Court investigated them. The form of the first question put by the General Assembly presupposed the illegality of Israel's policies and practices.

88. *Legal Consequences* (2024), paras. 103–73.

89. *Ibid.*, para. 95.

self-determination.⁹⁰ The Court concluded that “the continued presence of Israel in the Occupied Palestinian Territory is illegal.”⁹¹

Conclusion to Section IV A

The Court Advisory Opinion found that, not only were Israeli “policies and practices” in the Occupied Palestinian Territory serially and discretely in breach of international law, but that the compounded effect of these policies over a half century had crossed a threshold such that the occupation, entrenched to the point of “permanent and irreversible” annexation,⁹² itself violated two cardinal rules of international law—the inadmissibility of the acquisition of territory by war and the right of a people under foreign occupation to self-determination—and was consequently illegal.

IV B

Declarations and Separate Opinions

The Court Advisory Opinion stimulated seven Declarations (Judge Salam, Judge Tomka, Judge Xue, Judge Tladi, Judge Brant, Judge Charlesworth, as well as a “Joint Declaration” by Judges Nolte and Cleveland), and six Separate Opinions (Judge Gómez Robledo, Judge Nolte, Judge Cleveland, Judge Yusuf, Judge Iwasawa, as well as a “Joint Opinion” by Judges Tomka, Abraham, and Aurescu). These various statements addressed technical points of law as well as aspects of the majority opinion not directly germane to the legality of Israel’s occupation. For reasons of space, the ensuing remarks will only analyze the occupation’s legality.

The Advisory Opinion stated that the legality of the occupation was determined by the “rules and principles” governing the resort to force (*jus ad bellum*).⁹³ For example, an occupation would be legal if (1) it came about as a result of a legitimate exercise of self-defense under Article 51 of the UN Charter, and (2) the force resorted to was both a military necessity and proportional to

90. Ibid., paras. 162–79, 237–43, 252–56.

91. Ibid., paras. 261, 266.

92. Ibid., para. 252.

93. *Legal Consequences* (2024), para. 251.

the threat posed. In the matter at hand, the Court refrained from determining the legality of Israel's first strike in 1967 that resulted in its occupation.⁹⁴

94. Ibid., para. 57. Nonetheless, the tacit presupposition of the Court's Advisory Opinion was that the occupation was not illegal *ab initio* but, rather, it had *become* illegal over time due to "the *sustained* abuse by Israel . . . as an occupying Power . . . [that] *renders* Israel's presence in the Occupied Palestinian Territory unlawful" (para. 261; emphases added). The premise that the occupation was legal at its inception and only *became* illegal informed the individual statements as well, even as their authors declined to directly pronounce on this issue. Judges Nolte and Cleveland, who signed onto all the operative clauses, still "recognize[d]" in their "Joint Declaration" "that once a State has exercised its right of self-defense and, as a result, has occupied territory. . ." (para. 6), while the reasoning of Judge Charlesworth, who also voted in favor of all the operative clauses, started from the "assumption that Israel is the victim of an armed attack triggering the right to self-defense" (paras. 20, 24). If the Court had, on the contrary, concluded that the occupation was illegal *ab initio*, then Israel's subsequent breach of fundamental legal principles would have fortified this conclusion. (See "Declaration of President Salam," paras. 35–36.) As a factual matter, the documentary record does not bear out the premise that the occupation had only *become* illegal. Multiple US intelligence agencies uniformly concluded on the eve of the 1967 war that an attack by Egypt was *not* imminent: "There were no indications that the Egyptians would attack" (chairman, Joint Chiefs of Staff). The chief of Israel's national intelligence agency (Mossad) concurred with the American assessment: "There were no differences between the U.S. and the Israelis on the military intelligence picture or its interpretation." Menachem Begin, who was a member of the Israeli cabinet at the time, acknowledged when he later became prime minister that: "The Egyptian army concentrations in the Sinai approaches do not prove that Nasser was really about to attack us. We must be honest with ourselves. We decided to attack him." Further, Israeli officials professed shortly after the war that "their occupation of the West Bank was unanticipated and is unwanted." But then, even if Israel's first strike had been justified under Article 51 (which it emphatically wasn't), the ensuing occupation still overreached military necessity and hence was illegal. "Memorandum from the President's Special Assistant (Rostow) to President Johnson" (25 May 1967; document #61), "Memorandum for the Record" (26 May 1967; document #72), "Memorandum from the Central Intelligence Agency's Board of National Estimates to Director of Central Intelligence Helms" (26 May 1967; document #79), "Memorandum for the Record" (1 June 1967; document #124—Mossad chief), "Memorandum from Acting Secretary of State Katzenbach to President Johnson" (27 June 1967; document #329—"unanticipated"), in *Foreign Relations of the United States, 1964–1968, v. XIX, Arab-Israeli Crisis and War, 1967* (Washington, DC: 2004); Finkelstein, *Knowing Too Much*, p. 170 (Begin). After armed hostilities ceased, the UN General Assembly convened in an emergency session. During the ensuing debate, member States were divided between those holding Israel guilty, those holding both sides culpable, those deeming it futile or pointless to apportion blame, and those refraining from comment. Although it opposed a Soviet resolution condemning Israel's "aggression," the US did so not because it held Israel to be an innocent party in the buildup to the war, but rather on the grounds that "in light of all the events . . . that led up to the fighting, it would be neither equitable nor constructive for this Organization to issue a one-sided condemnation" of Israel. The only country in the world that subscribed to the conviction that Israel had been the wholly innocent victim of, and acted purely in self-defense against, Egyptian aggression was Israel. *Official Records of the General Assembly Fifth Emergency Special Session, Plenary Meetings, Verbatim Records of Meetings, 17*

Instead, it posited that “an occupation involves, by its very nature, a continued use of force in foreign territory”; and therefore that the continuation of the occupation was itself regulated by *jus ad bellum*. Put otherwise, the legality of Israel’s continued occupation was a distinct question, although still governed by *jus ad bellum*, from the legality of its initial resort to force in 1967.⁹⁵ The Court concluded that, regardless of how its occupation came about, Israel had since then utilized the force at its disposal as the occupying Power, not in self-defense and not constrained by necessity and proportionality, but, on the contrary, so as to annex large swathes of the Occupied Palestinian Territory in breach of the “inadmissibility” principle, while its annexation-cum-fragmentation of the Occupied Palestinian Territory had preempted the right of Palestinians to self-determination.⁹⁶ In sum, Israel’s use of force while the occupying Power, having breached two tenets of international law, rendered its occupation illegal.⁹⁷

The “Joint Opinion by Judges Tomka, Abraham, and Aurescu” concurred with the Court majority that Israel’s “policies and practices” breached international law. But they contested the Court’s complementary finding that the occupation “as such” was illegal. *First*, it was said that “[t]he rules governing the conduct of an occupation and the obligations of the occupying Power”⁹⁸ comprise international humanitarian law (*jus in bello*) and in particular the law of occupation.⁹⁹ An occupying Power in breach of this body of law by, say, building settlements or annexing territory, would be guilty of violating this or that provision of IHL, but no more. That is, however egregious and numerous, such violations would not affect the legal status of the occupation itself.¹⁰⁰ To be sure, Judges Tomka et al. formally granted that “it is not impossible that, even if an occupation is initially lawful, it ceases to be so at a

June–18 September 1967 (United Nations, New York: 1973), 1527th meeting, para. 33; see also Finkelstein, *Knowing Too Much*, pp. 205–8. Neither the prewar nor the postwar record sustains the inference that Israel’s occupation was *ever* legal prior to the Advisory Opinion.

95. *Legal Consequences* (2024), para. 253.

96. *Ibid.*, paras. 254–56.

97. *Ibid.*, para. 261.

98. “Joint Opinion of Judges Tomka, Abraham and Aurescu” (19 July 2024; <https://www.un.org/unispal/wp-content/uploads/2024/07/186-20240719-adv-01-04-en.pdf>), para. 23. Hereafter: “Joint Opinion.”

99. *Ibid.*, paras. 23–24.

100. *Ibid.*, paras. 25, 27, 60.

certain point in time.”¹⁰¹ But they never specified exactly *how* such an occupation can become illegal. Indeed, if Israel’s occupation breached, by this trio of judges’ own reckoning, two fundamental principles of international law but that still didn’t render the occupation illegal, then, it can’t but be wondered what threshold would have to be crossed. The upshot is that, for all intents and purposes, the position of Judges Tomka et al. was that, *whatever* Israel did or didn’t do—even if it immured Gaza’s population in a “huge concentration camp” (in the words of Giora Eiland, head of Israel’s National Security Council); even if it were to expel en masse the Palestinian population in the West Bank; even if it were to seamlessly incorporate the whole of “Judea and Samaria”; even if. . . —the occupation would, notwithstanding and nonetheless, be legal.¹⁰² *Second*, Judges Tomka et al. stated that UN resolutions, building on UNSC Resolution 242 (1967), carefully balanced the right of Palestinians to self-determination with the right of Israel to security (what the “Joint Opinion” dubbed “the package ‘right to self-determination—right to security’”).¹⁰³ But the Advisory Opinion, they protested, unilaterally declared Israel’s occupation illegal and ordered it to “bring to an end its unlawful presence in the Occupied Palestinian Territory as rapidly as possible,” without due consideration of Israel’s “legitimate concerns . . . regarding its security.”¹⁰⁴ And further: “we believe it is simply fair to also acknowledge that this State faces serious security threats, and that the persistence of these threats could justify maintaining a certain degree of control on the occupied territory, until sufficient security guarantees, which are currently lacking, are provided.”¹⁰⁵ *Third*, UN resolutions mandated that an end to the occupation should result, not by UN fiat, but on the contrary from “a comprehensive understanding reached through negotiations,” “direct negotiation on the basis of the ‘land for peace’

101. Ibid., para. 34.

102. The moral tenor of this “Joint Opinion” can be gleaned from its juxtaposition of “the murderous attacks committed by Hamas . . . on Israeli territory on 7 October 2023,” with “Israel’s large-scale military operation that followed” (para. 14). Truly the people of Gaza were born under a lucky star not to have suffered “murderous attacks.” See also para. 16, which recalled “the military actions conducted by Hamas directed at Israeli territory, even before 7 October 2023,” but makes no mention of Israel’s periodic high-tech murder sprees (Operation Cast Lead in 2008–9, Operation Pillar of Defense in 2012, Operation Protective Edge in 2014. . .).

103. “Joint Opinion,” paras. 49–51.

104. Ibid., para. 11; see also *ibid.*, paras. 26, 36.

105. Ibid., para. 37.

principle is the path to comprehensive, just and lasting peace and security.”¹⁰⁶ Do these three propositions withstand scrutiny? Each will be considered in turn.

Occupation “as such”

It would be a queer judicial system indeed, more befitting Alice’s Wonderland than The Hague, that would attach the title “legal” to an occupation even as the occupying Power relentlessly and ruthlessly pulverizes peremptory norms of Humanity. It is as if to speak of a murderer’s right to self-defense. But wasn’t the gist of the “Joint Opinion” that even an occupying Power that commits genocide doesn’t forfeit its *right* of occupation? Further, it might be possible to theoretically disentangle an occupation “as such” from the “policies and practices” of the occupying Power, but as a practical matter this would appear to be a sophistical exercise. Aren’t an occupation “as such” and the occupying Power’s “policies and practices”—once they’ve crossed a certain threshold¹⁰⁷—inextricably intertwined? If Israel is hell-bent on annexing the OPT and denying Palestinians the right to self-determination, then it won’t cease and desist until and unless it’s forced to withdraw. The illegal “policies and practices” won’t cease if the occupation as such doesn’t cease. To believe otherwise is to suppose that Israel can be remade into a law-abiding occupier. That’s as plausible as a leopard changing its spots.

Package deal

The “Joint Opinion” correctly stated that UN resolutions have posited the fulfilment of reciprocal legal obligations by Israel and Palestine—“land for peace.” But the documentary record unequivocally demonstrates that, already as far back as the mid-1970s, Palestinians had consented to the terms for ending the conflict delineated by international law and inscribed in UN resolutions. The only point in contention during negotiations in 2000–1 (Camp David, Taba) and 2007–8 (Annapolis) was how much Palestine would have to concede of its legal entitlements in order to finally realize its inalienable right to self-determination: how many illegal Israeli settlers and settlements would be allowed to remain in situ; what percentage of the illegally occupied West Bank and illegally occupied East Jerusalem would be annexed by Israel;

106. Ibid., paras. 10, 54; see also *ibid.*, paras. 52–53.

107. “Declaration of Judge Tladi” (19 July 2024; <https://www.icj-cij.org/sites/default/files/case-related/186/186-20240719-adv-01-14-en.pdf>), para. 2.

how many (if any) Palestinian refugees would Israel agree to repatriate under the Right of Return; how many early-warning stations would Israel position in the West Bank? Further, it wasn't even a disputed point—it was an uncontested given—that the prospective Palestinian state would be demilitarized (or, to use the locution agreed upon: “non-militarized”). If measured against the parameters set by international law, *all* the concessions have always come from the Palestinian side, *none* from the Israeli side.¹⁰⁸ Palestine accepted much less while Israel demanded much more than the law stipulated. Whereas Palestine agreed to “peace plus” further concessions, Israel insisted on “land minus” a portion that it illegally coveted.¹⁰⁹ The “Joint Opinion” fairly underscored that UN resolutions envisaged “the package ‘right to self-determination—right to security.’”¹¹⁰ It omitted, however, that Palestine had fulfilled its side of the bargain and then some, whereas Israel still offered only a truncated self-determination. The “Joint Opinion” asserted that “the occupying Power is under an obligation to end the occupation as soon as it is no longer necessary to ensure its security.”¹¹¹ It omitted, however: to ensure its security *as delimited by international law*. Thus, the Advisory Opinion succinctly observed that Israel was not permitted “to annex parts of the Occupied Palestinian Territory in order to meet its security needs. Nor do they authorize Israel to maintain a permanent presence in the Occupied Palestinian Territory for such security needs.”¹¹²

Negotiated peace

But still, wasn't the “Joint Opinion” correct to stress that UN resolutions mandated that peace be achieved via “negotiations”? Here's the rub. The “Joint Opinion” itself elucidated that the “negotiated settlement” must be “on the basis of international law.”¹¹³ But what if one party to the negotiations wasn't willing to settle the conflict on such a basis? This precise dilemma arose in the context of South Africa's occupation of Namibia. Judges Tomka et

108. Finkelstein, *Knowing Too Much*, pp. 221–48.

109. See Conclusion to Section I A and references cited.

110. “Joint Opinion,” paras. 49–51.

111. *Ibid.*, para. 44.

112. *Legal Consequences* (2024), para. 263. See also “Declaration of Judge Tladi,” paras. 44, 45.

113. “Joint Opinion,” para. 63.

al. are at pains to insist that the Namibia precedent was “entirely different” and “radically differs.”¹¹⁴ It would appear that they doth protest too much. *Au contraire*, the Court’s Namibia jurisprudence is most instructive.¹¹⁵ South Africa was awarded the mandate for Namibia (then South-West Africa) by the League of Nations. In the course of a litigation that stretched back to the end of World War II, South Africa was instructed by UN organs, including (if inconsistently) the International Court of Justice, to negotiate an end to its occupation of Namibia. Negotiations, however, would prove abortive as South Africa was determined to retain its hold on Namibia. The various UN organs finally determined, beginning in the mid-1960s, that, as South Africa wasn’t negotiating in good faith to end its occupation of Namibia, the occupation itself had become illegal. In its landmark 1971 Advisory Opinion, “Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa) Notwithstanding Security Council Resolution 276 (1970),” which affirmed the illegality of South Africa’s occupation and its “obligation to put an end to it,” the Court observed: “In practice the actual length of negotiations is no test of whether the possibilities of agreement have been exhausted; it may be sufficient to show that an early deadlock was reached and that one side adamantly refused compromise.”¹¹⁶ In his Separate Opinion, the American judge pointedly observed that negotiations become a mockery if the core assumptions of the contending parties cannot be reconciled: “It is apparent that no negotiating process can be successful if the parties are at odds as to the fundamental basis on which the process rests. . . . Quite obviously negotiations based on . . . conflicting premises qualify, at best, as an empty time-consuming pageant and at worst as a mere dialogue of the deaf.”¹¹⁷ Whereas the “Joint Opinion” purported that the Namibia precedent was “entirely different” and “radically differs,” it would be hard to conceive a precedent more on point. To impose on Palestine the requirement that it obtain its inalienable right to self-determination via “a comprehensive understanding reached through negotiations” with Israel (“Joint Opinion”)—to prescribe negotiations as a *sine qua non* even if “the parties are at odds as to the fundamental

114. *Ibid.*, paras. 9, 38.

115. Norman G. Finkelstein, *Gaza: An inquest into its martyrdom* (Oakland: 2018), pp. 367–408.

116. *Legal Consequences for States* (21 June 1971; <https://www.icj-cij.org/sites/default/files/case-related/53/053-19710621-ADV-01-00-EN.pdf>), pp. 43–45, paras. 84–86, p. 54, para. 118.

117. Judge Dillard, “Separate Opinion,” *Legal Consequences for States* (21 June 1971; <https://www.icj-cij.org/sites/default/files/case-related/53/053-19710621-ADV-01-06-EN.pdf>), p. 160.

basis on which the process rests,” the Palestinian side embracing, the Israeli side rejecting, international law, amounts to the imposition of “at best, . . . an empty time-consuming pageant and at worst . . . a mere dialogue of the deaf.”¹¹⁸

Conclusion to Section IV B

An occupation is constitutive, an extension and prolongation, of the force that brought it about. The occupying Power is therefore constrained in its use of force by the limits set by *jus ad bellum*: force can only be deployed in self-defense, and is restricted in scope by necessity and proportionality.¹¹⁹ Once Israel deployed its force in breach of fundamental principles of international law, in order to annex Palestinian territory and deny Palestinians the right to self-determination, its occupation ceased to be legal, indeed, *it didn't substantively differ from an illegal war of aggression* as the force deployed was neither exercised in self-defense nor was it born of military necessity. Where does that leave the prospect of “negotiations” based on the “land for peace” formula? (“Joint Opinion” of Judges Tomka et al.) For fully a half century, the Palestinians have demonstrated a readiness to meet all the requirements of international law—nay, more, they have expressed a willingness to acquiesce in less than their legal entitlements—in order to achieve a peaceful resolution of the conflict. But Israel always demanded significantly more than its legal entitlements. As of now, it demands everything in return for nothing: no land for full peace. To shackle Palestinians to a negotiated settlement before Israel withdraws is to enable Israel's use of “occupation as a front to cover up its breaches of some of the most fundamental principles of international law” (“Declaration of Judge Tladi”)¹²⁰ and to be an accomplice in Palestine's permanent subjugation.

118. See also “Declaration of President Salam” (19 July 2024; <https://www.icj-cij.org/sites/default/files/case-related/186/186-20240719-adv-01-01-en.pdf>), para. 13.

119. “Joint Declaration of Judges Nolte and Cleveland” (19 July 2024; <https://www.icj-cij.org/sites/default/files/case-related/186/186-20240719-adv-01-09-encc.pdf>), paras. 3–4; “Declaration of Judge Charlesworth” (19 July 2024; <https://www.icj-cij.org/sites/default/files/case-related/186/186-20240719-adv-01-10-en.pdf>), paras. 15, 20; “Separate Opinion of Judge Yusuf” (19 July 2024; <https://www.icj-cij.org/sites/default/files/case-related/186/186-20240719-adv-01-05-en.pdf>), para. 13.

120. “Declaration of Judge Tladi,” para. 3.

IV C

Judge Sebutinde's Extraordinary Dissent

Judge Sebutinde appended the only dissenting opinion. She voted against all but one of the nine operative paragraphs.¹²¹ The thrust of her thirty-six-page single-spaced dissent was that the Court's opinion was biased against Israel.¹²² Before parsing Judge Sebutinde's text, a critical caveat must be entered: in part, and perhaps in whole, it is not hers. A significant portion of her opinion is demonstrably plagiarized (including her footnotes).¹²³ The internal evidence points to the likelihood that more than one mind composed it, no one read it through from start to finish, and, to boot, no one even bothered to proof-read it. Hence the serial internal contradictions; hence the compound academic malpractice that the identical plagiarized passage shows up in two different paragraphs of the dissent; hence the "oversight" of not removing the hyperlinks embedded in a plagiarized passage from *Wikipedia*.¹²⁴ Technically, the authorship of the "Dissenting Opinion" should be placed between inverted commas ("*Judge Sebutinde*" states. . .) but, so as to avoid clutter, the analysis below will dispense with this formality and credit the dissent to Judge Sebutinde.

Expressing heartfelt concern about "maintaining the integrity of [the Court's] judicial role,"¹²⁵ Judge Sebutinde levels three major criticisms against the Court's Advisory Opinion: it lacks historical context, its evidence is one-

121. The one operative clause she voted in favor of merely affirmed that the Court "has jurisdiction to give the advisory opinion requested." See *Legal Consequences* (2024), para. 26.

122. "Dissenting Opinion of Vice-President Sebutinde" (19 July 2024; <https://icj-cij.org/sites/default/files/case-related/186/186-20240719-adv-01-02-enc.pdf>), paras. 1, 2. Hereafter: "Dissenting Opinion."

123. See the Appendix to this chapter. For Judge Sebutinde's plagiarized footnotes, cf. "Dissenting Opinion," footnote 12, with this chapter's Appendix, row 3; "Dissenting Opinion," footnote 62, with this chapter's Appendix, row 18; "Dissenting Opinion," footnote 76, with this chapter's Appendix, row 37; "Dissenting Opinion," footnote 80 with this chapter's Appendix, row 39; "Dissenting Opinion," footnotes 81, 83, 84, 85, 86, 88, with this chapter's Appendix, row 40; "Dissenting Opinion," footnote 89, with this chapter's Appendix, row 41; "Dissenting Opinion," footnote 91, with this chapter's Appendix, row 42; "Dissenting Opinion," footnote 101, with this chapter's Appendix, row 47.

124. See Appendix to this chapter, rows 35 and 44 (double plagiarism), and row 8 (*Wikipedia* links in actual "Dissenting Opinion"). It is left to one side the botched elementary facts and mind-twisting verbal slovenliness of this dissenting opinion. In a shocking monument to ecumenical ineptitude, it states that "[t]he Hamas attack on Israel of 7 October 2023 in which several [*sic*!!!!] Israeli citizens were murdered and others taken hostage. . ." ("Dissenting Opinion," para. 21).

125. "Dissenting Opinion," para. 1.

sided, and it gets the law wrong. Each of these allegations will be addressed in turn:

Missing historical context

Judge Sebutinde purports that the Advisory Opinion “omits the historical backdrop that is crucial to understanding this multifaceted dispute,” and that it is “imperative to grasp the historical nuances” and “intricate realities” of the conflict.¹²⁶ Whereas the Court opinion eschewed wading into historical claims from the hoary past,¹²⁷ Judge Sebutinde sets out to restore balance and nuance by going back three millennia to “ancient Israel” when the Jews established a “bond to the land [that] has persisted.”¹²⁸ In an ostensibly revelatory passage, she observes that “[c]ontrary to popular opinion, available evidence shows that as early as 1200 BCE, the Jewish people existed in the territory known as present-day Israel.”¹²⁹ But who, pray tell, denies this? Still, it’s hard not to be impressed by Judge Sebutinde’s *tour d’horizon* as she sifts through the “substantial evidence” from “many scholars” of archeology and the “Hebrew Bible” attesting to the deep roots of Jews in their ancestral homeland. Here’s a glimpse of her dazzling erudition:

An inscription found at Tel Dan mentions the “House of David,” providing extrabiblical evidence for the Davidic dynasty. Mesha Stele (also known as the Moabite Stone) is an artifact from the ninth century BCE that references the Kingdom of Israel and its interactions with neighboring Moab. Ostraca (pottery shards with inscriptions) found at Lachish dating to the late seventh century BCE provide insights into the administration and military affairs of the Kingdom of Judah. . . . The Hebrew Bible (Old Testament) offers detailed accounts of the history, culture, and governance of the Israelites during this period. While these texts are religious in nature, many scholars consider them valuable historical documents. Assyrian inscriptions and annals mention the Kingdoms of Israel and Judah, including interactions, conflicts, and tributes. For example, the Black Obelisk of Shalmaneser III depicts Jehu, king of Israel, paying tribute to the Assyrian king.¹³⁰

126. *Ibid.*, paras. 2, 4, 6.

127. *Legal Consequences* (2024), para. 178.

128. “Dissenting Opinion,” para. 5.

129. *Ibid.*, para. 8.

130. *Ibid.*, para. 8n7.

But alas, the one and only source cited by Judge Sebutinde in her far-flung narrative is “Encyclopaedia Britannica and Jacob Liver, ed., *The Military History of the Land of Israel in Biblical Times* (1968).” This obscure book is not available in any serious research library and was never translated from the Hebrew original. But that’s not all. A huge chunk of Judge Sebutinde’s historical narrative was lifted word-for-word from an op-ed, “Clarifying Unfounded Criticism Against Justice Sebutinde’s Dissenting Opinion,” by a fellow Ugandan lawyer who cited the selfsame Mr. Liver.¹³¹ So Judge Sebutinde’s solitary reference is plagiarized from a column by a Ugandan colleague who supposedly perused an obscure tome available only in Hebrew. (Hmmm. . .) Undeterred as she barrels forth to the modern era, Judge Sebutinde offers intriguing insights into the British Mandate for Palestine: it was “awarded to Britain” by the League of Nations in 1922 in order to provide a safe haven for Jews “escaping persecution *and the Holocaust*”; while one of the “founding documents of the Mandate” awarded Britain in 1922 was “General Assembly resolution 181” that was passed in 1947 after Britain announced its termination of the mandate.¹³² Further, Judge Sebutinde asserts that 181 was “silent on the issue of the self-determination of Palestinian Arabs living within the Mandatory territory.”¹³³ But in fact, the resolution stipulates that “[i]ndependent Arab and Jewish States . . . shall come into existence in Palestine,” and proceeds to delineate in fine balance and across many pages the reciprocal rights and obligations of the two prospective States. “Israel assumed control over the disputed territories (i.e. the West Bank, the Gaza Strip and Jerusalem) in June 1967,” Judge Sebutinde observes, “in response to a clear and present threat, initiated by a group of Arab States, intent on annihilating the Jewish State. The legitimacy of Israel’s control of these territories at that time was generally uncontested as it was understood that it had done so within the framework of the legitimate exercise of its right of self-defense.”¹³⁴ None of these assertions withstands a moment’s scrutiny; they’re just boilerplate Israeli hasbara.¹³⁵ Scornful of the abiding Palestinian aspiration to statehood, Israeli prime

131. Nayebare Karuhanga, “Clarifying Unfounded Criticism Against Justice Sebutinde’s Dissenting Opinion (Part 2),” *The Independent* (14 February 2024; <https://www.independent.co.ug/clarifying-unfounded-criticism-against-justice-sebutindes-dissenting-opinion-part-2>). See Appendix to this chapter, row 1.

132. “Dissenting Opinion,” paras. 10, 79 (emphases added).

133. Ibid., para. 79.

134. Ibid., para. 87.

135. See Section IV B of this chapter.

minister Golda Meir infamously declared after the 1967 war that “there is no such thing as a Palestinian people.”¹³⁶ Echoing her, Judge Sebutinde sneers that it was only after the 1967 war that “the region’s Arabs . . . had begun referring to themselves as the Palestinians, in the hope that they would ultimately build their own State.”¹³⁷ Pity she didn’t name the graveyard in which the Elders of Palestine gathered to hatch this conspiracy. “The creation of a two-State solution,” according to Judge Sebutinde, “. . . has repeatedly been rejected by the Arab population living in the territory, as well as by Israel’s Arab neighbors.”¹³⁸ But a glance at the documentary record demonstrates that the 1988 Palestinian Declaration of Statehood anchored their “right to sovereignty and national independence” in “General Assembly resolution 181 (II) of 1947, which partitioned Palestine into an Arab and a Jewish State”;¹³⁹ that the Palestinians formally “recognize[d] the right of Israel to live in peace and security” in 1993 at Oslo; that the Arab League in 2002 committed itself not just to recognize Israel but also to “establish normal relations” with it; and that all fifty-seven members of the Organization of the Islamic Conference (including the Islamic Republic of Iran) subsequently adopted this Arab League “peace initiative.”¹⁴⁰ Judge Sebutinde additionally purports that “Palestinian Arabs and neighboring Arab States have consistently rejected the idea of a Jewish State coexisting with an Arab State on at least seven occasions.” Inter alia, she lists the “Third rejection in 1967,” the “Fourth rejection in 1969–70,” and the “Fifth rejection in 1973.”¹⁴¹ But these “rejections” of the “two-State solution” never happened; they’re figments of an overheated (overpaid?) imagination.¹⁴² In fact, whereas the Palestinians have over the past half century consistently

136. Quoted in “Opinion Individuelle de M. Le Juge Gómez Robledo” (19 July 2024; <https://www.icj-cij.org/sites/default/files/case-related/186/186-20240719-adv-01-12-frc.pdf>), para. 4n4.

137. “Dissenting Opinion,” para. 16.

138. Ibid., para. 12.

139. “In [its 1988] declaration of Palestinian independence the Palestinian National Council (PNC) accepted the existence of the State of Israel” (Shlomo Ben-Ami, *Scars of War, Wounds of Peace: The Israeli-Arab tragedy* (New York: 2006), p. 192; Ben-Ami was Israel’s foreign minister between 2000 and 2001).

140. Judge Sebutinde alludes to the 2002 Arab League peace initiative (para. 33) but apparently doesn’t (want to) know what’s in it.

141. Ibid., paras. 13, 16–18.

142. See, e.g., Avi Raz, *The Bride and the Dowry: Israel, Jordan, and the Palestinians in the aftermath of the June 1967 war* (New Haven: 2012), pp. 43–47.

supported a two-State solution *on the basis of international law*, the “two-State solution” that Israel did occasionally proffer (2000, 2008) shortchanged Palestinian rights under the law.¹⁴³ “Time and time again,” Judge Sebutinde laments, “Israel’s adversaries have launched surprise attacks on Israel within her borders and not just in retaliation for her occupation of Palestinian territory. Indeed, many of the wars between Israel and her Arab neighbors have been fought by Israel pre-emptively to remove an immediate and existential military threat originating from either the OPTs [*sic*] or from enemies further afield.”¹⁴⁴ But here’s how Professor Zeev Maoz, who has authored a major treatise on the subject, encapsulates this violent history: “Israel’s war experience is a story of folly, recklessness, and self-made traps. None of the wars—with a possible exception of the 1948 War of Independence—was what Israel refers to as *Milhemet Ein Brerah* (“war of necessity”). They were all wars of choice or wars of folly.”¹⁴⁵

Truly, the fourteen other judges are indebted to Judge Sebutinde’s historical investigations for “maintaining the Court’s integrity” by restoring the “historical nuances” and “intricate realities” to the Court record.

Partial evidence

It was not just the Advisory Opinion’s lack of historical context that appalled Judge Sebutinde. This fastidious judge also repeatedly accused the Court of not having “accurate, balanced, and reliable information to enable it to judiciously arrive at a fair conclusion,” and instead relying on the “one-sided narrative contained in the statements of the pro-Palestinian group of States.”¹⁴⁶ The facts, however, are these: (1) the Court found that “it has before it sufficient information to decide legal questions in a manner consistent with its judicial function”;¹⁴⁷ (2) the Court adopted stringent evidentiary criteria to evaluate the “probative value” of this information;¹⁴⁸ (3) the Court did not rely

143. Finkelstein, *Knowing Too Much*, pp. 203–48.

144. “Dissenting Opinion,” para. 56.

145. Zeev Maoz, *Defending the Holy Land: A critical analysis of Israel’s security and foreign policy* (Ann Arbor: 2006), p. 35.

146. “Dissenting Opinion,” paras. 1–2, 42, 51, 67, 78, 82. Judge Sebutinde also objected to the “prejudicial assumptions or presumptions” (para. 78) allegedly informing the questions posed by the General Assembly to the Court when it requested the Advisory Opinion. But the Court reserved the right to, and then in fact did, reformulate the questions in neutral language (*Legal Consequences* (2024), paras. 48–49, 74, 82).

147. *Legal Consequences* (2024), para. 47.

148. *Ibid.*, para. 76.

in *any* of its legal determinations regarding “Israel’s Policies and Practices in the Occupied Palestinian Territories” on the “statements of the pro-Palestinian group of States”; (4) the Court relied *entirely* on authoritative UN investigations to reach its “legal characterization[s].”¹⁴⁹ Table 14 *exhaustively* tabulates the evidence adduced by the Court in the core paragraphs (Part V) of its opinion.¹⁵⁰ It must be said that, however many times Judge Sebutinde protested that her dissent was “respectful,”¹⁵¹ these allegations of hers were a pure, unadulterated smear and slander. Further, Table 15 tabulates the major sources used by Judge Sebutinde in her non-partisan dissenting opinion. Not only were *all* her major sources plagiarized but, on top of this professional breach, these sources were *all* authored by Israel’s advocates. Judge Sebutinde’s “Dissenting Opinion” runs to ninety-two paragraphs. More than half its paragraphs contained material that was demonstrably plagiarized from just the select sources, all of them Israeli advocates, listed in the table. (This chapter’s Appendix documents that, of the 20,646 words in Judge Sebutinde’s dissent, at minimum 6,984 words or 33.8 percent were plagiarized from overwhelmingly discreditable sources.)

TABLE 14 The Core Findings of the Advisory Opinion: Evidentiary Sources
“Report of the Secretary-General of 24 November 2003,” UN doc. A/ES-10/248. ^a
“Report of the independent international fact-finding mission to investigate the implications of the Israeli settlements on the civil, political, economic, social and cultural rights of the Palestinian people throughout the Occupied Palestinian Territory, including East Jerusalem,” UN doc. A/HRC/22/63 (7 February 2013). ^b
“Israeli settlements in the Occupied Palestinian Territory, including East Jerusalem, and in the occupied Syrian Golan,” Report of the United Nations High Commissioner for Human Rights, UN doc. A/HRC/55/72 (1 February 2024). ^c
“Report of the Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel,” UN doc. A/77/328 (14 September 2022). ^d

(continued)

149. Ibid., para. 77.
150. Ibid., Part V, “Israel’s Policies and Practices in the Occupied Palestinian Territory” (paras. 103–243).
151. “Dissenting Opinion,” paras. 42, 47, 63.

TABLE 14 (continued)

“Report of the detailed findings of the independent commission of inquiry established pursuant to Human Rights Council resolution S-21/1,” UN doc. A/HRC/29/CRP.4 (24 June 2015).^e

“Israeli settlements in the Occupied Palestinian Territory, including East Jerusalem, and the occupied Syrian Golan: Report of the Secretary-General,” UN doc. A/78/554 (25 October 2023).^f

“Israeli settlements in the Occupied Palestinian Territory, including East Jerusalem, and in the occupied Syrian Golan: Report of the United Nations High Commissioner for Human Rights,” UN doc. A/HRC/52/76 (15 March 2023).^g

“Economic and social repercussions of the Israeli occupation on the living conditions of the Palestinian people in the occupied Palestinian territory, including Jerusalem, and of the Arab population in the occupied Syrian Golan,” UN doc. A/53/163-E/1998/79 (14 July 1998).^h

“Database of all business enterprises involved in the activities detailed in paragraph 96 of the report of the independent international fact-finding mission to investigate the implications of the Israeli settlements on the civil, political, economic, social and cultural rights of the Palestinian people throughout the Occupied Palestinian Territory, including East Jerusalem: Report of the United Nations High Commissioner for Human Rights,” UN doc. A/HRC/37/39 (1 February 2018).ⁱ

“Report on UNCTAD assistance to the Palestinian people: Developments in the economy of the Occupied Palestinian Territory,” UN doc. TD/B/EX(71)/2 (20 September 2021).^j

“Economic and social repercussions of the Israeli occupation on the living conditions of the Palestinian people in the Occupied Palestinian Territory, including East Jerusalem, and of the Arab population in the occupied Syrian Golan,” UN doc. A/78/127-E/2023/95 (30 June 2023).^k

World Bank, *Area C and the Future of the Palestinian Economy* (2013).^l

“Allocation of water resources in the Occupied Palestinian Territory, including East Jerusalem: Report of the United Nations High Commissioner for Human Rights,” UN doc. A/HRC/48/43 (15 October 2021).^m

“Concluding observations on the fourth periodic report of Israel,” UN doc. E/C.12/ISR/CO/4 (12 November 2019).ⁿ

“Report on UNCTAD assistance to the Palestinian people: Developments in the economy of the Occupied Palestinian Territory,” UN doc. TD/B/67/5 (5 August 2020).^o

TABLE 14 (continued)

“Economic and social repercussions of the Israeli occupation on the living conditions of the Palestinian people in the Occupied Palestinian Territory, including East Jerusalem, and of the Arab population in the occupied Syrian Golan,” UN doc. A/74/88-E/2019/72 (13 May 2019).^p

“Economic and social repercussions of the Israeli occupation on the living conditions of the Palestinian people in the Occupied Palestinian Territory, including East Jerusalem, and of the Arab population in the occupied Syrian Golan,” UN doc. A/77/90-E/2022/66 (8 June 2022).^q

“Israeli settlements in the Occupied Palestinian Territory, including East Jerusalem, and the occupied Syrian Golan: Report of the Secretary-General,” UN doc. A/76/336 (23 September 2021).^r

“Israeli settlements in the Occupied Palestinian Territory, including East Jerusalem, and in the occupied Syrian Golan: Report of the United Nations High Commissioner for Human Rights,” UN doc. A/HRC/49/85 (28 April 2022).^s

“Israeli settlements in the Occupied Palestinian Territory, including East Jerusalem, and the Occupied Syrian Golan: Report of the Secretary-General,” UN doc. A/77/493 (3 October 2022).^t

Human Rights Committee, “Concluding observations on the fifth periodic report of Israel,” UN doc. CCPR/C/ISR/CO/5 (5 May 2022).^u

“Report of the Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel,” UN doc. A/78/198 (5 September 2023).^v

“Israeli practices affecting the human rights of the Palestinian people in the Occupied Palestinian Territory, including East Jerusalem: Report of the Secretary-General,” UN doc. A/78/502 (2 October 2023).^w

“Report submitted to the Security Council by the Secretary-General in accordance with resolution 672 (1990),” UN doc. S/21919 (31 October 1990).^x

“Israeli settlements in the Occupied Palestinian Territory, including East Jerusalem, and the occupied Syrian Golan: Report of the Secretary-General,” UN doc. A/74/357 (20 September 2019).^y

“Report of the Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel,” UN doc. A/HRC/50/21 (9 May 2022).^z

(continued)

TABLE 14 (continued)

“Israeli settlements in the Occupied Palestinian Territory, including East Jerusalem, and the occupied Syrian Golan: Report of the United Nations High Commissioner for Human Rights,” UN doc. A/HRC/37/43 (6 March 2018).^{aa}

CERD Committee, “Concluding observations on the combined seventeenth to nineteenth reports of Israel,” UN doc. CERD/C/ISR/CO/17-19 (27 January 2020).^{ab}

Committee on the Elimination of Discrimination against Women, “Concluding observations on the sixth periodic report of Israel,” UN doc. CEDAW/C/ISR/CO/6 (17 November 2017).^{ac}

“Implementation of Human Rights Council resolutions S-9/1 and S-12/1: Report of the United Nations High Commissioner for Human Rights,” UN doc. A/HRC/46/63 (11 February 2021).^{ad}

OCHA, “Fact sheet: Movement and access in the West Bank” (August 2023).^{ae}

“Human rights situation in the Occupied Palestinian Territory, including East Jerusalem: Report of the Secretary-General,” UN doc. A/HRC/31/44 (20 January 2016).^{af}

“Israeli practices affecting the human rights of the Palestinian people in the Occupied Palestinian Territory, including East Jerusalem: Report of the Secretary-General,” UN doc. A/68/502 (4 October 2013).^{ag}

“Human rights situation in the Occupied Palestinian Territory, including East Jerusalem, and the obligation to ensure accountability and justice: Report of the United Nations High Commissioner for Human Rights,” UN doc. A/HRC/55/28 (4 March 2024).^{ah}

^a *Legal Consequences* (2024), para. 67.

^b Ibid., paras. 68, 120, 128, 131, 164, 200, 203, 215.

^c Ibid., paras. 68, 150, 156, 215.

^d Ibid., paras. 89, 117, 120, 130–31, 135, 151–53, 163, 166, 168, 215.

^e Ibid., para. 89.

^f Ibid., paras. 112, 116, 143, 150, 164–65, 171, 218–19.

^g Ibid., paras. 112, 117, 120, 143, 164, 217.

^h Ibid., para. 115.

ⁱ Ibid.

^j Ibid., paras. 115, 117, 214.

^k Ibid., paras. 126, 128, 200, 202, 241–42.

^l Ibid., para. 126.

^m Ibid., paras. 127–29.

ⁿ Ibid., paras. 129, 203, 219.

^o Ibid., para. 130.

^p Ibid., para. 131.

^q Ibid., paras. 143, 193.

^r Ibid., para. 151.

TABLE 14 (continued)

- ^c Ibid.
- ^t Ibid., paras. 151, 215.
- ^u Ibid., paras. 151, 194–95, 204, 219.
- ^v Ibid., para. 152.
- ^w Ibid., paras. 152, 193, 210.
- ^x Ibid., para. 163.
- ^y Ibid., para. 165.
- ^z Ibid., para. 166.
- ^{aa} Ibid., para. 193.
- ^{ab} Ibid., paras. 194, 219.
- ^{ac} Ibid., para. 195.
- ^{ad} Ibid.
- ^{ae} Ibid., para. 200.
- ^{af} Ibid.
- ^{ag} Ibid., para. 201.
- ^{ah} Ibid., para. 204.

TABLE 15 Judge Sebutinde's Major Evidentiary Sources^a
(with Finkelstein's italicized annotations)

Abraham Bell and Eugene Kontorovich, "Palestine, *Uti Possidetis Juris*, and the Borders of Israel," *Arizona Law Review*, vol. 58 (2016).

Bell teaches at Bar-Ilan Law School in Israel and is a senior fellow at Kobelet Policy Forum, a right-wing Israeli think tank. Kontorovich heads the international law department at Kobelet Policy Forum, and professes that Israel has full legal title to the West Bank and Gaza Strip while its settlements are legal. This source was plagiarized by Judge Sebutinde in nine different paragraphs of her "Dissenting Opinion."^b

David Brog, "Why Isn't There a Palestinian State?," *PragerU* (27 March 2017).

Brog was executive director of Christians United for Israel (CUFI). This source was plagiarized by Judge Sebutinde in four different paragraphs of her "Dissenting Opinion."^c

Yuval Shany and Amichai Cohen, "No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories," *Just Security* (12 March 2024).

Shany, a law professor at Hebrew University, is cut from the same mold as Aharon Barak:^d liberal in form, a State apologist in essence.^e Cohen, a law professor at Ono Academic College in Israel, stated more than a month into Israel's plausible genocide in Gaza that "Israel has not committed war crimes at all . . . Israel has

(continued)

TABLE 15 (continued)

stood by its obligation to international law.”^f This source was plagiarized by Judge Sebutinde in thirteen different paragraphs of her “Dissenting Opinion.”^g

“The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (thinc), *Discussion Paper* (2017).

The statement repudiated the Court’s jurisprudence and Security Council resolutions on the Israel-Palestine conflict. It asserted that “it is far from certain that the ‘West Bank,’ including East Jerusalem, and the Gaza Strip qualify as ‘occupied’ territories,” and “[l]abeling all settlements in East Jerusalem and the ‘West Bank’ as ‘illegal’ both misinterprets and grossly oversimplifies . . . the Fourth Geneva Convention.” Among the signatories of the statement were the in-house counsel for the American Israel Public Affairs Committee (AIPAC), the director of UK Lawyers for Israel, and the chairman of UK Lawyers for Israel. This source was plagiarized by Judge Sebutinde in eleven different paragraphs of her “Dissenting Opinion.”^h

International Court of Justice, “Public Sitting Held on Monday 26 February 2024, at 3 p.m., at the Peace Palace, President Salam Presiding, on the Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem (Request for Advisory Opinion Submitted by the General Assembly of the United Nations)” (2024). The speaker was representing the island state of Fiji.

Fiji’s written statement and oral presentation faithfully repeated Israel’s talking points. It’s probable that the same person(s) authored both Fiji’s written submission/oral presentation and Judge Sebutinde’s dissent. This source was plagiarized by Judge Sebutinde in seven different paragraphs of her “Dissenting Opinion.”ⁱ

“Written Statement Submitted by the International Association of Jewish Lawyers and Jurists Under ICJ Practice Direction XII in the Advisory Proceedings on the ‘Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem’ as Initiated by UNGA A/RES/77/247,” *International Jewish Lawyers* (16 February 2024).

“Corrigendum to ‘IJL Observations on the “Prosecution Request Pursuant to Article 19(3) for a Ruling on the Court’s Territorial Jurisdiction in Palestine” (ICC-01/18-12)’” (17 March 2020).

Both items were authored by International Jewish Lawyers (IJL). The masthead of the IJL website reads: “Stands With Israel. The Legal Arm of the Jewish People.” This source was plagiarized by Judge Sebutinde in three different paragraphs of her “Dissenting Opinion.”^j

TABLE 15 (continued)

Professors Yuval Shany and Amichai Cohen, The Hague Initiative for International Cooperation, and the International Association of Jewish Lawyers and Jurists submitted Amicus Curiae to the International Criminal Court opposing its prosecution of crimes committed by Israelis in the Occupied Palestinian Territory (<https://www.icc-cpi.int/sites/default/files/CourtRecords/0902ebd180949087.pdf>).

^a “Major” denotes a source cited more than twice.

^b See Appendix to this chapter, rows 3, 36, 37, 39, 40, 41, 42, 43, 45.

^c See Appendix to this chapter, rows 5, 6, 9, 10.

^d See Conclusion to Section I C of this chapter.

^e See Norman G. Finkelstein, *I Accuse! Herewith a proof beyond reasonable doubt that ICC Chief Prosecutor Fatou Bensouda whitewashed Israel* (New York: 2020), p. 194n157.

^f “Prof. Amichai Cohen on FoxLive Now / Israel Is Abiding by International Law” (15 November 2023; <https://www.youtube.com/watch?v=4yBaISv9NX8>).

^g See Appendix to this chapter, rows 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32.

^h See Appendix to this chapter, rows 33, 34, 36, 38, 40, 42, 45, 46, 48, 49, 50.

ⁱ See Appendix to this chapter, rows 15, 16, 17, 18, 19, 35, 44.

^j See Appendix to this chapter, rows 12, 13, 14.

Flawed legal analysis

The gravamen of Judge Sebutinde’s dissent, repeated ad nauseam, is that the Court’s jurisprudence is “one-sided and imbalanced and ignore[s] or downplay[s] Israel’s existing territorial and sovereignty rights,” as it “fails to consider important legal principles and propositions in international law, governing the Israeli-Palestinian question.”¹⁵² It might first be noticed that, whereas Judge Sebutinde professed in her dissent from the January 2024 Court “Order” that the Israel-Palestine conflict was strictly political and devoid of a legal dimension, she now concedes that the conflict is steeped in “important legal principles and propositions in international law.” Her new insight is that the Court got the law all wrong. Table 16 juxtaposes the international legal consensus on the Israel-Palestine conflict with Judge Sebutinde’s appreciation of the relevant law.

152. “Dissenting Opinion,” paras. 2, 42, 63–64, 67, 78, 82.

TABLE 16 A Juxtaposition of the International Legal Consensus
with Judge Sebutinde

Principles/Rules	International Law	Judge Sebutinde
<i>Is the acquisition of territory by war legal?</i>	Israel captured the West Bank, including East Jerusalem, and the Gaza Strip during the 1967 war. A principle of customary international law prohibits the acquisition of territory by war. It is explicitly stated in the preambular paragraph to UN Security Council resolution 242 “[e]mphasizing the inadmissibility of the acquisition of territory by war.” Resolution 242, which constitutes the legal foundation for resolving the conflict,^a was passed unanimously; not one member of the Security Council registered dissent from the “inadmissibility” principle. The UK’s Lord Caradon, who crafted 242, stated afterward that, were it not for the “inadmissibility” clause, “there could have been no unanimous vote” for 242 in the Security Council. The “inadmissibility” principle has been reiterated in multiple UN Security Council resolutions as well as General Assembly resolutions (passed by overwhelming majorities).^b <i>Legal Consequences</i> (2004) affirmed this principle as it recalled the “illegality of territorial acquisition resulting from the threat or use of force.”^c None of the fifteen judges dissented. <i>Legal Consequences</i> (2024), citing multiple UN Security Council resolutions, reiterated that “[t]he annexation of occupied territory by an occupying Power is unlawful,” and “to seek to acquire sovereignty over an occupied territory . . . is contrary to the principle of the non-acquisition of territory by force.”^d	UN Security Council resolution 242 is not “binding law,” but, on the contrary, “an example of a non-binding recommendation.”^e Further, the principle of the “inadmissibility of the acquisition of territory by war” didn’t apply to the situation in 1967. The territories occupied by Israel belonged to it by not just historical but also legal right. Israel’s “entitlement to sovereignty” “coincided with” the whole of the British mandate inclusive of the West Bank and Gaza: “the administrative boundaries of the Mandate for Palestine on 14 May 1948 became the borders of the independent State of Israel” (“Dissenting Opinion,” para. 72); “Israel has territorial sovereignty over all the disputed areas of Jerusalem, the West Bank, and Gaza.”^f (“Dissenting Opinion,” para. 73) The West Bank and Gaza were “recaptured”^g by Israel after it defeated the Arabs who illegally occupied these Israeli territories. UN resolution 242 “leave[s] open the possibility—indeed probability—of Israeli sovereignty in parts of the West Bank,” as the “Security Council’s deliberations suggest that . . . many of the drafters intended that withdrawal ‘is required from some but not all of the territories.’”^h

TABLE 16 (continued)

Principles/Rules	International Law	Judge Sebutinde
<i>Are the West Bank, including East Jerusalem, and the Gaza Strip occupied territories?</i>	<i>Legal Consequences (2004)</i> stated that the West Bank, including East Jerusalem, and the Gaza Strip “were occupied by Israel in 1967 during the armed conflict between Israel and Jordan. Under customary international law, these were therefore occupied territories in which Israel had the status of occupying Power. . . . All these territories (including East Jerusalem) remain occupied territories and Israel has continued to have the status of occupying Power.” ⁱ <i>Legal Consequences (2024)</i> , citing UN Security Council as well as General Assembly resolutions (passed by overwhelming majorities), stated that “the Palestinian territory occupied since 1967’ . . . encompasses the West Bank, East Jerusalem and the Gaza Strip”; “the various United Nations organs and bodies frequently make specific reference to the different parts of the Occupied Palestinian Territory”; “from a legal standpoint, the Occupied Palestinian Territory constitutes a single territorial unit, the unity, contiguity and integrity of which are to be preserved and respected.” ^j	The title “Occupied Palestinian Territory” is a misnomer. It is in fact an “alleged occupation” as the West Bank and Gaza are “disputed territory” with “competing sovereignty claims” by Israel and Palestine. ^k
<i>Are Israeli settlements legal?</i>	Article 49 (6) of the Fourth Geneva Convention states that “[t]he Occupying Power shall not deport or transfer part of its own civilian population into the territory of the occupier.” Multiple UN Security Council resolutions as well as General Assembly resolutions (passed by overwhelming majorities) have declared Israeli settlements illegal under international law. The International Committee of	The “labelling [of] all settlements in East Jerusalem and the West Bank as ‘illegal’ both misrepresents the spirit and letter of Article 49 (6) of the Fourth Geneva Convention” and “is wholly inapplicable based on Israel’s claim to sovereignty” in the West Bank. ^l

(continued)

TABLE 16 (continued)

Principles/Rules	International Law	Judge Sebutinde
	the Red Cross, which is the official guardian of the Geneva Conventions, has consistently held that “the establishment and expansion of civilian settlements by Israel in the occupied West Bank is incompatible with Israel’s obligation under article 49 (6) of the Fourth Geneva Convention of 1949.”^l <i>Legal Consequences</i> (2004) found that “the Israeli settlements in the Occupied Palestinian Territory (including East Jerusalem) have been established in breach of international law.”^m Even Judge Buergenthal, the American judge (and Holocaust survivor), explicitly stated in his “Declaration” that “the Israeli settlements in the West Bank violate Article 49, paragraph 6.”ⁿ <i>Legal Consequences</i> (2024) reiterated that “the transfer by Israel of settlers to the West Bank and East Jerusalem, as well as Israel’s maintenance of their presence, is contrary to the sixth paragraph of Article 49 of the Fourth Geneva Convention,” and that “the Israeli settlements in the West Bank and East Jerusalem, and the régime associated with them, have been established and are being maintained in violation of international law.”^o Except Judge Sebutinde, every judge voted for the operative paragraph in <i>Legal Consequences</i> (2024) that stated: “Israel is under an obligation to cease immediately all new settlement activities, and to evacuate all settlers from the Occupied Palestinian Territory.” (<i>Legal Consequences</i> (2024), para. 285)	

TABLE 16 (continued)

Principles/Rules	International Law	Judge Sebutinde
<i>Do Palestinians have a right to self-determination in an independent state comprising the entirety of the West Bank, including East Jerusalem, and the Gaza Strip?</i>	<i>Legal Consequences (2004)</i> stated that “the existence of a ‘Palestinian people’ is no longer in issue,” and that the legitimate rights of the Palestinian people “include the right to self-determination.”^q <i>Legal Consequences (2024)</i>, recalling UN resolutions and the Court’s own jurisprudence, stated that the right of all peoples to self-determination is “one of the essential principles of contemporary international law.”^r Indeed, it stated that “self-determination constitutes a peremptory norm of international law.”^s Basing itself on Security Council and General Assembly resolutions, the Court further stated that the Occupied Palestinian Territory, “which encompasses the West Bank, East Jerusalem and the Gaza Strip, . . . constitutes a single territorial unit, the unity, contiguity and integrity of which are to be preserved and respected,”^t and that “the entirety of the Occupied Palestinian Territory is also the territory in relation to which the Palestinian people should be able to exercise its right to self-determination, the integrity of which must be respected.”^u	If Israel retains a—or <i>the only</i>—legitimate claim to sovereignty rights over the entirety of the West Bank, including East Jerusalem, and the Gaza Strip, then its control of them amounts in fact to an “<i>alleged</i> infringement of the Palestinian people’s right to self-determination,”^v while Palestinians do not have a <i>right</i> to self-determination in an independent state in any, let alone the entirety, of these territories: “any Palestinian right or title to exercise authority over disputed territory (and its inhabitants) is not necessarily exclusive”; “the issue[s] of . . . when and how an independent Palestinian State could be created in the disputed territories,” and “whether, when and how Israel should withdraw its military forces and settlements from the disputed territories, . . . remain unresolved”; “Israel has its own sovereignty claims regarding parts of the territory which the international community views as the OPT. . . . Although there appears to be a broad international consensus around the proposal that the two-State solution should be implemented based on Israel’s 1967 borders, such political consensus cannot, in and of itself, bestow title to territory where none exists under international law, or remove title over territory where such title legally exists”; “[i]n law and in fact. . . , sovereign legal title over the West Bank (and indeed the Gaza Strip) has been, and continues to be, indeterminate, or in abeyance. . . . No agreement, instrument, judgment, opinion, or event with legal effect has changed this.”^w Although “there is no doubt that the right to self-determination is a right . . . to which the Palestinian people are entitled,”^x unless and until Israel is

(continued)

TABLE 16 (continued)

Principles/Rules	International Law	Judge Sebutinde
		amenable to a two-State solution—which is not “mandatory”^a under international law—“the choice of means” by which Palestinians “fulfill that right”^c of self-determination will be some form of “internal” “independent or autonomous Palestinian entity”^{ad} without automatic rights of citizenship in, and with all sovereign rights belonging to, the Jewish state: “the founding documents of the Mandate (including General Assembly resolution 181 (1947)) are silent on the issue of the self-determination of Palestinian Arabs living within the Mandatory territory, implying that the question of their self-determination was perceived as one of ‘internal self-determination’ that would require negotiation and mutual agreement”; “[i]nternational law arguably supports the right of Arab-Palestinians to self-determination but . . . international law does not allow the right to self-determination to conflict with the sovereign rights of an existing sovereign State. . . . If . . . all the territory covered by the Mandate of Palestine in May 1948 became the sovereign territory of Israel, then Palestinian self-determination will necessarily take a form of autonomy that does not conflict with Israel’s sovereignty and territorial integrity.”^{ab}
	^a <i>Legal Consequences</i> (2004), para. 162.	
	^b Norman G. Finkelstein, <i>Image and Reality of the Israel-Palestine Conflict</i> , second edition (New York: 2003), pp. 144–49; Finkelstein, <i>Knowing Too Much</i> , pp. 210–16.	
	^c <i>Legal Consequences</i> (2004), para. 87.	
	^d <i>Legal Consequences</i> (2024), paras. 174–79.	
	^e “Dissenting Opinion,” para. 65.	
	^f <i>Ibid.</i> , paras. 76–77.	
	^g <i>Ibid.</i> , para. 16 (emphasis added).	
	^h “Dissenting Opinion,” para. 25 (no source is cited for the internal quote). Judge Sebutinde did invoke the “inadmissibility” principle in the context of the Arab states’ alleged violation of “the territorial integrity of the sovereign State of Israel” by occupying the West Bank and Gaza! <i>Ibid.</i> , para. 76. This paragraph is both plagiarized and mistranscribed by Judge Sebutinde (see Appendix to this chapter, row 42).	
	ⁱ <i>Legal Consequences</i> (2004), para. 78.	

TABLE 16 (continued)

- ^j *Legal Consequences* (2024), para. 78; see also *ibid.*, paras. 86–87, 94.
- ^k “Dissenting Opinion,” paras. 1–2, 16, 21–22, 26, 52, 56, 58, 60, 62, 67, 72–73, 76, 79, 81–82, 87–89, 91.
- ^l International Committee of the Red Cross, “Israel and the Occupied Palestinian Territory: The law of occupation must be respected” (19 July 2024; <https://www.icrc.org/en/statement/israel-and-occupied-palestinian-territory-law-occupation-must-be-respected>).
- ^m *Legal Consequences* (2004), para. 120.
- ⁿ “Declaration of Judge Buergenthal,” para. 9.
- ^o *Legal Consequences* (2024), paras. 119, 155.
- ^p “Dissenting Opinion,” para. 89.
- ^q *Legal Consequences* (2004), para. 118.
- ^r *Legal Consequences* (2024), para. 232; see also *ibid.*, paras. 231–32.
- ^s *Ibid.*, para. 233.
- ^t *Legal Consequences* (2004), para. 78.
- ^u *Ibid.*, para. 262.
- ^v “Dissenting Opinion,” para. 67 (emphasis added).
- ^w *Ibid.*, paras. 22, 26, 59, 69.
- ^x *Ibid.*, para. 80.
- ^y *Ibid.*, para. 65.
- ^z *Ibid.*, para. 81.
- ^{aa} *Ibid.*, para. 91.
- ^{ab} *Ibid.*, paras. 79, 81.

The tenets undergirding the legal consensus on the Israel-Palestine conflict have, after decades of intense scrutiny, been parsed to death. Even as Judge Sebutinde has declared war on this robust and enduring consensus—to wit, it *is* permissible for Israel to acquire territory by war; the West Bank, including East Jerusalem, and the Gaza Strip are *not* occupied territories; the Israeli settlements *are* legal; the Palestinians do *not* have a right to self-determination in an independent state—her contribution to the extant jurisprudence is nil. Indeed, *every prong of Judge Sebutinde’s critique is plagiarized whole cloth from the briefs of Israel’s advocates*.¹⁵³ The case mounted by these zealots for Zion has been roundly rejected; neither as a whole nor in its constituent parts does it carry any weight. If Judge Sebutinde’s appreciation of the law is correct, then every eminent jurist sitting on the bench that issued the 2004 Advisory Opinion and every eminent jurist (except herself) sitting on the bench that issued the 2024 Advisory Opinion, not to mention the eminent statesmen who crafted, and the virtual totality of states that supported, the numberless Security Council and General Assembly resolutions, must have

153. See Table 15.

egregiously misinterpreted the law. It was as if, after the Civil War, and after the Reconstruction amendments to the Constitution, and after the Civil Rights Movement and Civil Rights legislation, a judge on the US Supreme Court, citing fringe publications by diehard supporters of the antebellum South, endeavored to prove that slavery was still legal in the United States.

Conclusion to Section IV C

Since its inception in 1967, Israel's occupation has been the subject of countless UN resolutions as well as interventions by the UN's judicial arm. A settled body of jurisprudence has evolved, accumulated, and consolidated. In its new Advisory Opinion, the Court did not reopen the questions already resolved by the Court's jurisprudence but, on the contrary, simply applied the settled law to the situation before it. Judge Sebutinde, in her "Dissenting Opinion," comprehensively repudiated the Court's approach. She posited that the Court's jurisprudence lacked historical context. She journeyed back three thousand years in order to demonstrate that Palestine belonged, then and ever thereafter, to the Jews and to them alone. Judge Sebutinde documented this claim by plagiarizing an op-ed by a Ugandan colleague of hers. She then barreled forth to the modern era in order to demonstrate that the 1922 British Mandate for Palestine reserved this parcel of land for the Jews. Inter alia, she conjured these wacky tidbits: the purpose of the Mandate was to provide refuge for Jews fleeing the Holocaust; the 1947 UN Partition Resolution was one of the founding documents of the 1922 Mandate; Israel offered the Palestinians a state in 1967 and 1970. Judge Sebutinde then proceeded to posit that the evidence the Court adduced was biased against Israel. But a parsing of the Court's scholarly evidence proves beyond any doubt that it relied exclusively on investigations carried out by the United Nations. On the other hand, Judge Sebutinde's own evidence was plagiarized from publications by Israel's hack apologists. Finally, Judge Sebutinde professed that the jurisprudence on which the Court drew in its Advisory Opinion got the law all wrong. This is of course in theory possible (a minority of one can be right) but, in order to overturn more than a half century of jurisprudence painstakingly crafted by the world's leading authorities in international law, it would require a lot better evidence than quoting the catechistic, redundant trash tracts churned out by a deranged cult of Israel groupies who still assert that it's permissible to acquire territory by war, that the West Bank and Gaza aren't occupied territory as they belong to Israel, that the Jewish settlements are legal, and that the Palestinian people do not have a right to statehood. Absent robust

evidence sustaining her contentions, Judge Sebutinde stands foursquare in the same camp as and should be accorded the same deference as Holocaust deniers and Flat-Earthers.

Final Reflections

If Judge Sebutinde's jurisprudence defies legal classification, that's because it isn't jurisprudence. *First*, Judge Sebutinde's opinions are incoherent. She appended the only "Dissenting Opinion" from the first Court "Order" in January 2024 as she denied that Israel was plausibly committing genocide and proceeded to vote against all the operative clauses in the order. But Judge Sebutinde didn't dissent from the Court's "Decision" in February 2024 and voted in favor of all but one of the operative clauses in the March Court "Order," even as the February "Decision" and March "Order" were both predicated on the Court's finding in January that Israel was plausibly committing genocide. Judge Sebutinde then appended another "Dissenting Opinion" (along with Judge ad hoc Aharon Barak) from the May 2024 Court "Order," even as this "Order" was based on the identical evidentiary sources (UN agencies, international relief organizations) that underpinned the preceding March "Order," which Judge Sebutinde had supported. *Second*, Judge Sebutinde's opinions are unsupported. Judge Sebutinde did not dismiss, let alone refute, the authoritative evidence presented to the Court by South Africa *as well as the evidence adduced by the Court itself* in its January 2024 and May 2024 "Orders." On the contrary, she simply ignored the unwelcome evidence, pretending as if it didn't exist, and instead replicated Israel's pleadings or Judge ad hoc Barak's jurisprudence. Further, Judge Sebutinde flouted the standard refined by the Court for assessing the probative value of evidence submitted to the Court, as she attached more probative value to a statement by an Israeli government official than to the findings of a UN investigation. Then, as just observed, Judge Sebutinde effectively credited the evidence adduced by South Africa and by the Court majority in the Court's February 2024 "Decision" and March 2024 "Order," as she went along with both of them. But the Court's jurisprudence in February and March was anchored in the selfsame evidentiary sources as the January and May "Orders" that Judge Sebutinde vehemently dissented from. Whereas she wrote expansive dissenting opinions, Judge Sebutinde never troubled

herself to spell out why the evidence adduced by South Africa and the Court majority was credited by her in certain cases but not others. *Third*, Judge Sebutinde's opinions are plagiarized. Almost one third of Judge Sebutinde's solitary dissent from the Court's "Legal Consequences" Advisory Opinion was demonstrably lifted whole cloth without attribution from either absurd historical sources or fringe legal tracts. Whereas the Court's Advisory Opinion was anchored in more than a half century of international engagement with the Israel-Palestine conflict that has yielded a settled body of law, Judge Sebutinde set out on a backward journey to three millennia ago so as to carve out a Jewish supremacist legal path for the Court into the future. She proceeded to enlighten the Court on the "nuances" of the conflict by copying, inter alia, an op-ed on "Ancient Israel" by her Ugandan legal colleague that was explicitly written in Judge Sebutinde's defense after her first "Dissenting Opinion" in January 2024. Her "Dissenting Opinion" is riddled with factual whoppers and legal contortions peddled by Israeli hasbara and believed by no one except Zion's true-believers (if even them). The bottom line is that the only substantive question posed by "Judge Sebutinde's" "jurisprudence" is whether she is being bribed or blackmailed by Israel.

Still, it might be wondered, why did Judge Sebutinde and her handlers imagine they could get away with it? The simple answer is, they always have. Whereas Zionist propaganda has more often than not been slapdash and slipshod, it still manages to gain traction because the powers-that-be are either aligned with Israel or afraid to defy it. Even now, in the midst of a plausible genocide, Israel still gets a respectful hearing as it churns out one lie after another one day after another. It's still a matter of "dispute" in the immaculate pages of *The New York Times* whether al-Shifa hospital housed Hamas's command-and-control center in its basement. Every other Judge sitting on the bench must be agonizingly cognizant that Judge Sebutinde's "Dissenting Opinions" are rubbish and that she herself is de facto—and quite possibly de jure—an Israeli operative. Nonetheless, they stay mum. Indeed, after she appended her first "Dissenting Opinion" in January 2024, Judge Sebutinde was elevated to the Court's vice-presidency! If Judge Sebutinde gets to run amok, it's also because she's touted as the "first African woman" to sit on the bench. In the current "woke" moment, if she's a woman of color suffering from "intersectional" oppression, it's taboo to say out loud that the Emperor is naked—i.e., that Judge Sebutinde is an imposter. It was either a stroke of genius or just plain good fortune when Israel recruited Judge Sebutinde as her "identity" immunized her from criticism. The Court has in the main

acquitted itself with honor since the “Genocide” and “Legal Consequences” cases came before it. The question now is, will the Court preserve its “integrity”—which is, oh, so important to Judge Sebutinde—by ejecting this depraved and preposterous Israel shill from its midst?

Postscript

A) Judge Sebutinde's Revelation

In August 2025, Judge Sebutinde came under renewed public scrutiny after she declared, in a speech at her evangelical church in Uganda, that “the Lord is counting on me to stand on the side of Israel.”¹⁵⁴ The International Commission of Jurists then called on the International Court of Justice to remove her “from participating further in proceedings in the *South Africa v. Israel* case,” as her statement was “reflective of a lack of impartiality, or the appearance of impartiality.”¹⁵⁵ Judge Sebutinde could perhaps rejoin that her words were an expression of her religious convictions that did not necessarily taint her jurisprudence. In other words, it was no different from a devout Catholic judge who is “pro-life” sitting on the US Supreme Court in an abortion case. This alibi unravels, however, on close inspection of her dissenting opinions in the “South Africa” case. It is manifest that her jurisprudence—if it can be so described—is a hodgepodge of incoherent, and more often than not bizarre, arguments that rely almost entirely on evidence provided by Israel or that are lifted whole cloth from Israel’s hack apologists. Being of a piece with her egregiously biased dissenting opinions, the sentiment that Judge Sebutinde expressed in her church was yet one more data point proving that she has betrayed her oath of office and must be removed from the Court.

B) ICJ Advisory Opinion on Gaza

On 19 December 2024, the UN General Assembly (UNGA) requested a new Advisory Opinion from the International Court of Justice regarding the situation in Gaza.¹⁵⁶ The impetus behind this request traced back to a pair of co-extensive developments: the worsening humanitarian crisis in Gaza, on the

154. Anthony Wesaka, “My Country Disowned Me After Israel-Gaza Ruling - Sebutinde,” *Daily Monitor* (13 August 2025; <https://www.monitor.co.ug/uganda/news/national/my-country-disowned-me-after-israel-gaza-ruling-sebutinde-5153060>).

155. “ICJ Communication to the International Court of Justice Urging the Investigation of the Court’s Vice-President” (25 August 2025; <https://www.icj.org/icj-communication-to-the-international-court-of-justice-urging-the-investigation-of-the-courts-vice-president>).

156. International Court of Justice, “The General Assembly of the United Nations Requests an Advisory Opinion from the Court on ‘the Obligations of Israel in Relation to the Presence and Activities of the United Nations, Other International Organizations and Third States’ in and in Relation to the Occupied Palestinian Territory” (23 December 2024; <https://www.icj-cij.org/sites/default/files/case-related/196/196-20241223-pre-01-00-en.pdf>).

one hand, and Israel's decision in October 2024 both to terminate its cooperation with the United Nations Relief and Works Agency (UNRWA) and close UNRWA's headquarters in East Jerusalem, on the other hand.¹⁵⁷ Stripped to its bare bones, the question posed by the UNGA was whether or not Israel was legally obligated to allow UNRWA to continue its humanitarian activities in Gaza. The Court delivered its Advisory Opinion on 22 October 2025.¹⁵⁸ It answered in the affirmative to this question by a vote of ten to one. Judge Sebutinde cast the sole negative vote on all the substantive sub-clauses in the operative paragraph.¹⁵⁹

The Court parsed the UNGA question from two discrete angles: (1) Israel's obligations as an occupying Power, and (2) Israel's obligations as a Member State of the United Nations. It inventoried a panoply of UN agencies operating on the ground in Gaza and stated that its Advisory Opinion was based on a "voluminous dossier."¹⁶⁰ Herewith the Court's key findings:

- (1) *Israel's obligations as an Occupying Power.* The Court found that: Israel "exercise[d] certain key elements of authority" over Gaza, and was consequently an "occupying Power in relation to the Gaza Strip";¹⁶¹ the applicable body of law in this situation was international humanitarian law—in particular, the law of occupation as expounded in the Fourth Geneva Convention—and international human rights law;¹⁶² Israel had "substantially restricted—and for significant periods of

157. "Approved in Final Readings: Prohibition on UNRWA's activity within the sovereign territory of the State of Israel," *Knesset News* (29 October 2024; <https://main.knesset.gov.il/en/news/pressreleases/pages/press291024q.aspx>).

158. *Obligations of Israel in Relation to the Presence and Activities of the United Nations, Other International Organizations and Third States in and in Relation to the Occupied Palestinian Territory* (22 October 2025; <https://www.icj-cij.org/case/196/advisory-opinions>). Hereafter: *Advisory Opinion 2025*.

159. Judge Gómez Robledo consistently voted with the majority in the operative paragraph but appended a "Partially Dissenting Opinion" because he did not believe that the majority opinion went far enough in delineating Israel's obligations.

160. *Advisory Opinion 2025*, paras. 37, 55–56.

161. *Ibid.*, paras. 43, 85. The Court also found that after 7 October 2023 when Israel launched military operations in Gaza, its "effective control . . . increased significantly" (*ibid.*, para. 86). See also: "The Court recalls that the Occupied Palestinian Territory 'constitutes a single territorial unit,' encompassing 'the West Bank, East Jerusalem and the Gaza Strip'" (citing its 2024 "Legal Consequences" opinion; *ibid.*, para. 79).

162. *Ibid.*, paras. 82–83.

time, . . . completely prevented . . . the entry of aid,” and “the humanitarian situation in the Gaza Strip had become catastrophic”;¹⁶³ the Fourth Geneva Convention stipulated that “[i]f the whole or part of the population of an occupied territory is inadequately supplied, the occupying Power shall agree to relief schemes on behalf of the said population, and shall facilitate them by all the means at its disposal,”¹⁶⁴ while “the local population in the Gaza Strip has been inadequately supplied within the meaning . . . of the Fourth Geneva Convention”;¹⁶⁵ UNRWA was *uniquely* placed, and could be trusted to act impartially, to meliorate the catastrophic situation in Gaza.¹⁶⁶ The Court concluded that “the United Nations, acting through UNRWA, has been an indispensable provider of humanitarian relief in the Gaza Strip,” and that “Israel is under an obligation to agree to and facilitate relief schemes provided by the United Nations and its entities, including UNRWA.”¹⁶⁷

- (2) *Israel’s obligations as a Member State of the United Nations.* The Court found that: the UN bore a “permanent responsibility” for the situation in the Occupied Palestinian Territory reaching back to the Mandate years and the 1947 Partition Resolution;¹⁶⁸ “Israel, as an occupying Power, is not entitled to sovereignty over or to exercise sovereign powers in any part of the Occupied Palestinian Territory, including East Jerusalem”;¹⁶⁹ the UN had long undertaken humanitarian operations in Gaza via UNRWA;¹⁷⁰ in accordance with the UN Charter,¹⁷¹ Israel as a Member State was legally

163. Ibid., paras. 59, 71–72, 74, 86, 102–8, 122.

164. Ibid., para. 93. The Court continued: “As the occupying Power, Israel’s obligation . . . to agree to and facilitate relief schemes if the local population is inadequately supplied is unconditional”; “An occupying Power’s obligation to agree to and facilitate the entry of humanitarian relief into an occupied territory . . . does not displace its [own] basic obligations to ensure the availability of food and medical supplies essential to the survival of the local population”; “[T]he occupying Power may never invoke reasons of security to justify the general suspension of all humanitarian activities in an occupied territory” (ibid., paras. 94, 98, 100).

165. Ibid., para. 109.

166. Ibid., paras. 53, 60, 111–21, 161, 215, 221.

167. Ibid., para. 124.

168. Ibid., para. 166 (the quoted phrase comes from a UNGA resolution).

169. Ibid., paras. 176, 219.

170. Ibid., para. 167.

171. Ibid., paras. 170–79. For example, Article 2, paragraph 5 of the Charter stipulates: “[a] Member shall give the United Nations every assistance in any action it takes in accordance with the present Charter.”

obligated to facilitate these UNRWA operations, and “is not entitled to withhold its co-operation with the United Nations by unilaterally deciding on the presence and activities of United Nations entities in and in relation to the Occupied Palestinian Territory.”¹⁷²

The ten-person Court majority thus found that under both international law and as a Member State of the United Nations, Israel was obligated to facilitate UNRWA’s operations in Gaza.

Judge Sebutinde disputed the ten-person majority on *every* substantive point of law and fact. Still, stealing a page from adroit Judge Barak in the “Genocide” case, she cast her egregious statement as a “Separate Opinion,” not as a “Dissenting Opinion.”¹⁷³ Table 17 juxtaposes Judge Sebutinde’s understanding of the relevant law against the understanding of the other ten judges sitting on the Court.¹⁷⁴ Table 18 juxtaposes Judge Sebutinde’s understanding of the factual situation on the ground in Gaza against the understanding of the other ten judges sitting on the Court.

TABLE 17 What Is the Law?

	Court Majority	Judge Sebutinde
<i>Did Israel have legitimate territorial claims over Gaza and East Jerusalem or do they constitute Occupied Palestinian Territory?</i>	The Court stated that: “On 19 July 2024, the Court delivered its Advisory Opinion on the <i>Legal Consequences arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, including East Jerusalem</i> , finding within the scope of that Opinion that Israel’s policies and practices ‘amount to annexation of large parts of the Occupied Palestinian Territory,’ that Israel’s	She stated that the UN Security Council “did not settle the issue of the status of Jerusalem,” and “Israel’s designation as an ‘occupying Power’ remains contested.” ^c Further, she repeatedly, explicitly, and emphatically posited that UNRWA operations in Gaza and East Jerusalem implicated Israel’s <i>sovereign</i> rights: “UNRWA’s presence and operations within the territory of Israel are

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172. *Advisory Opinion 2025*, paras. 164, 177, 179, 184. The Court further observed that “Israel is obliged not to exercise jurisdiction over or interfere with the property and assets of the United Nations and its entities”; “Israel has an obligation to refrain from undertaking any executive, administrative, judicial or legislative actions against the property and assets of the United Nations and its entities in the Occupied Palestinian Territory” (ibid., paras. 191, 195, 216).

173. “Separate Opinion of Vice-President Sebutinde” (22 October 2025; <https://www.un.org/unispal/wp-content/uploads/2025/10/196-20251022-adv-01-01-en-1.pdf>). Hereafter: “Separate Opinion.”

174. This table omits narrow technical points of law only of interest to the specialist.

TABLE 17 (continued)

Court Majority	Judge Sebutinde
‘continued presence in the Occupied Palestinian Territory is unlawful’ and that Israel is ‘under an obligation to bring to an end its unlawful presence in the Occupied Palestinian Territory as rapidly as possible’;⁴ “[T]he Occupied Palestinian Territory ‘constitutes a single territorial unit,’ encompassing ‘the West Bank, East Jerusalem and the Gaza Strip’” [internal quotes from <i>Legal Consequences</i> (2024)]; “The Court recalls that Israel, as an occupying Power, is not entitled to sovereignty over or to exercise sovereign powers in any part of the Occupied Palestinian Territory, including East Jerusalem. . . . In the view of the Court, Israel is not entitled to withhold its co-operation with the United Nations by unilaterally deciding on the presence and activities of United Nations entities in and in relation to the Occupied Palestinian Territory”; “[W]ithin the territory of Israel, the presence and activities of the United Nations and its entities are subject to the consent of Israel. However, in the occupied territory, over which Israel, as an occupying Power, enjoys no sovereignty, it is not entitled to decide unilaterally, with respect to the presence and activities of the United Nations in and in relation to the Occupied Palestinian Territory, in the same way as in its own territory”; “The Court recalls that Israel’s territorial claim over East Jerusalem has long been declared ‘null and void’ by Security Council resolution 478 (1980) of 20 August 1980. . . . As an occupying Power, Israel must refrain from extending its domestic laws to the occupied territory in any manner inconsistent with its obligation not to impede the	grounded in State consent”; “[Israel’s] decision to prohibit UNRWA’s operations and presence within its territory falls squarely within its sovereign rights”; “[Israel has the right] to prohibit UNRWA’s continued operations within its territory, consistent with its sovereign duty to prevent and suppress terrorism”; “Israel retains the sovereign right to deny international organizations—including the United Nations and its agencies and bodies—representation, service provision or operational activity within its territory. . . . Israel is under a binding obligation not to permit its territory to be used for terrorist activities”; “[Israeli legislation] aimed at terminating the operations of UNRWA within Israeli territory. These laws prohibit UNRWA from operating in areas under Israel’s sovereignty, including East Jerusalem.”^d <u>Sources:</u> She adduced no positive evidence that Israel legitimately exercised sovereign rights over Gaza and East Jerusalem, albeit she purported—falsely—that UNSC Resolution 2334 (2016) left East Jerusalem’s status “moot.” In fact, this resolution explicitly refers to “the Palestinian territory occupied since 1967, including East Jerusalem,” and “the occupied Palestinian territory, including East Jerusalem.”

TABLE 17 (continued)

Court Majority	Judge Sebutinde
Palestinian people from exercising its right to self-determination, including its inalienable right to territorial integrity over the entirety of the Occupied Palestinian Territory.” ^b	
^a <i>Advisory Opinion 2025</i> , para. 46.	
^b <i>Ibid.</i> , paras. 46, 79, 176–77, 184, 219.	
^c “Separate Opinion,” paras. 10n20, 66; see also <i>ibid.</i> , para. 99 (“so-called OPT”).	
^d <i>Ibid.</i> , paras. 55, 61, 65, 71, 85.	

TABLE 18 What Are the Facts on the Ground?

Court Majority	Judge Sebutinde
<i>Was there a humanitarian catastrophe in Gaza?</i> The Court stated that: “The Integrated Food Security Phase Classification (IPC)—a global initiative aimed at enhancing food security and nutrition analysis composed of 21 organizations and intergovernmental institutions such as the FAO, the UNDP, UNICEF, the World Bank, the WFP and the WHO—reported that, as of the beginning of May 2025, the entire population of the Gaza Strip faced high levels of acute food insecurity, with half a million people facing starvation”; “On 22 August 2025, the IPC concluded that famine was occurring in certain parts of the Gaza Strip”; “in March 2024, the WFP [World Food Program] warned that ‘1.1 million people in Gaza—half of the population—had completely exhausted their food supplies and coping capacities and are struggling with catastrophic hunger . . . and starvation’”; “a report by OCHA [Office for the Coordination of Humanitarian	She stated that: “<i>thousands</i> of Palestinian civilians not engaged in hostilities remain in urgent need of essential humanitarian assistance” (emphasis added); “certain widely circulated images purporting to depict starving children in Gaza have been exposed as misleading or lacking critical context”; the findings of the Integrated Food Security Phase Classification (IPC) “notoriously” exemplified “disinformation and propaganda in the current hostilities”; there is “extensive documentation of Hamas aid diversion. . . , systematic theft and control of aid by Hamas.”^b <u>Sources:</u> She didn’t cite a tittle of evidence to support her claim that only “thousands” of Gazans were in need of humanitarian assistance; her principal source for “rigorous” evidence (as against “disinformation and propaganda”) that child starvation in Gaza had been exaggerated was a fringe online right-wing publication, <i>Free Press</i>,

(continued)

TABLE 18 (continued)

	Court Majority	Judge Sebutinde
	Affairs] dated 21 August 2025 recorded 204 malnutrition-related deaths since 1 July 2025, 51 of which were children”; “In . . . June 2025, OCHA warned about ‘a growing likelihood of famine,’ ‘critical shortages of essential medicines and supplies,’ and that ‘without the immediate entry of fuel into Gaza or access to fuel reserves within Gaza, access to lifesaving and life-sustaining services are at risk of shutting down imminently.’ . . . According to further reports from OCHA, the situation became increasingly precarious in the following months. . . . An IPC report of 22 August 2025 indicates that there was famine . . . occurring in the Gaza Governorate, which was projected to expand.”^a	that was edited by a fanatical Jewish supremacist;’ she adduced zero evidence to support her vilification of the IPC; she omitted that the allegation of widespread “ Hamas aid diversion” was authoritatively debunked by USAID and even senior Israeli military officials.^d
<i>Was Israel barring vital humanitarian aid from entering Gaza?</i>	The Court stated that: “In the course of its military campaign, Israel has substantially restricted—and for significant periods of time, including between 2 March and 18 May 2025, completely prevented . . . —the entry of aid (including food and water) into the Gaza Strip and its distribution to the Palestinian population, with catastrophic consequences for this population”; “Following the 7 October 2023 attacks, Israel also adopted measures impeding the activities of other international organizations operating in the Occupied Palestinian Territory and Israel”; “Since 19 May 2025, the Israeli authorities have allowed the United Nations to resume the delivery of limited aid into the Gaza Strip,” but have “continued to impose substantial restrictions on the entry and distribution of aid and commercial goods into the Gaza Strip”; “Israel’s complete	She stated that: “there are credible media reports indicating that, contrary to reports of shortages, a significant amount of humanitarian aid bound for Gaza has remained unutilized or undistributed at the Israeli border”; the “root cause of the bottlenecks” is not the Israeli blockade but the “absence of functioning distribution mechanisms” and the “poor state of the infrastructure”; “Israel has stated that its measures do not impede the operations of other [than UNRWA] United Nations agencies . . . that continue to provide essential humanitarian aid, basic services and development assistance to the Palestinian civilian population”; “Israel continues to ensure the provision of essential humanitarian aid and basic services to the Palestinian population through alternative [to UNRWA] channels—as it has consistently done throughout the ongoing military operation in the Gaza Strip. . . .”^f

TABLE 18 (continued)

Court Majority	Judge Sebutinde
	blocking of aid into the Gaza Strip from 2 March 2025 led to a further dramatic deterioration of the humanitarian conditions there, as detailed by the periodic reports from OCHA. . . . According to the United Nations, by July 2025, water delivery was severely restricted, and ‘96 per cent of households report[ed] moderate to high water insecurity’; ‘between 7 October 2023 and 7 May 2025, the WHO [World Health Organization] reported that ‘[a]ttacks on health facilities have intensified since the resumption of hostilities, severely disrupting the delivery of supplies and access to essential health services’; ‘From 2 March 2025, . . . Israel’s imposition of a block on aid completely prevented . . . delivery of aid for a period of 78 days. Since Israel’s partial lifting of the aid blockage, according to OCHA, only a ‘select number of UN agencies and international non-governmental organizations’ have been allowed to resume the delivery of aid and ‘the entry of aid into Gaza . . . has remained . . . challenging’; ‘Since 2 March 2025, Israel has also increased restrictions on the operations of other United Nations entities, international organizations and third States in the Gaza Strip. These policies and practices have resulted in the deprivation of the essentials of daily life for the local population in the Gaza Strip.’”
<i>Did UNRWA perform an indispensable function in Gaza?</i>	<u>Sources:</u> She cited a <i>Middle East Monitor</i> (MEMO) report of humanitarian aid unable to access Gaza, but omitted MEMO’s explanation of why—“the continued Israeli blockade”; she didn’t adduce a shred of evidence either that the “root cause” of Gaza’s humanitarian situation was the distribution network and infrastructure, or that UN aid agencies other than UNRWA enjoyed unimpeded access to Gaza, or that Israel “consistently” ensured that Gaza’s humanitarian needs were met. * Amid the torrent of denial and disinformation, she did manage to eke out one single paragraph of her 105-paragraph opinion acknowledging that Israel imposed “restrictions on access of aid to the Gaza Strip at various points,” and that “between 2 March 2025 and 19 May 2025,” it placed “restrictions.” But she then effectively extenuated these “restrictions”—in fact, it was a full-blown blockade—on the grounds that, “according to Israel,” it sought to achieve legitimate political objectives.⁸ She stated that: “Israel continues to facilitate the delivery of humanitarian aid and essential services to the civilian population through alternative channels”; “There is no requirement under international law that such assistance

(continued)

TABLE 18 (continued)

	Court Majority	Judge Sebutinde
	aid to the population in the Gaza Strip became even more important”; “in the current circumstances, it is not possible to replicate the capacity of . . . UNRWA, to ensure that the population of the Gaza Strip is adequately provided for”; “UNRWA has been an indispensable provider of humanitarian relief in the Gaza Strip. As the United Nations Secretary-General has observed, ‘there is currently no realistic alternative to UNRWA that could adequately provide the services and assistance required by Palestine refugees’”; “UNRWA has played a vital role over many decades in supporting the civilian population throughout the Occupied Palestinian Territory”; “UNRWA has remained the principal means and the backbone of all humanitarian response in the Gaza Strip, serving Palestinian refugees and civilians in urgent need of life-saving humanitarian assistance.”^b	be provided through UNRWA . . . alternative mechanisms . . . are capable of delivering aid effectively and in accordance with humanitarian principles”; “[T]here are other United Nations entities and international humanitarian organizations . . . [that] could play a more prominent role in the delivery and distribution of humanitarian aid.”ⁱ <u>Sources:</u> She adduced not a jot of evidence either that “alternative mechanisms” could replace UNRWA or that Israel “continues to facilitate” the delivery of sufficient aid and services by entities other than UNRWA.
<i>Could UNRWA be trusted to perform its designated tasks impartially?</i>	The Court stated that: “In January 2024, Israeli authorities alleged that a number of UNRWA employees had been involved in the 7 October 2023 attacks, that UNRWA premises had been appropriated by Hamas for military purposes and that UNRWA had long lost its neutrality. . . . The United Nations immediately took steps to investigate these allegations. In particular, the Office of Internal Oversight Services (OIOS) of the United Nations conducted investigations in relation to	She stated that: UNRWA posed a “national security” threat to Israel prior to 7 October 2023 “over the last two decades”; “in 2023 [Israel] found evidence of direct participation by UNRWA staff in the armed attack and atrocities perpetrated on 7 October. . . , including in abductions, murders and illegal detention of Israeli citizens, as well as further evidence of systematic infiltration of UNRWA by Hamas members. . . . Israel provided specific information on the participation of 12 UNRWA staff

TABLE 18 (continued)

Court Majority	Judge Sebutinde
19 UNRWA staff members, with the co-operation of Israel, leading to the dismissal of nine of them, who, according to the findings of OIOS, might have been involved in the 7 October 2023 Hamas-led attacks against Israel. OIOS found either no or insufficient evidence to support the involvement of the other ten investigated persons. In light of the serious allegations made by Israel, the Secretary-General of the United Nations also commissioned an investigation by an independent panel to assess whether UNRWA was taking all reasonable steps to ensure its neutrality. The panel's final report dated 20 April 2024 . . . noted that the number of allegations of breaches of UNRWA's neutrality had 'escalated significantly' since October 2023 . . . and found that, despite UNRWA's 'robust framework' to ensure neutrality, some neutrality-related issues persisted. . . . The report nonetheless concluded that 'UNRWA has established a significant number of mechanisms and procedures to ensure compliance with the humanitarian principles, with emphasis on the principle of neutrality, and that it possesses a more developed approach to neutrality than other similar UN or NGO entities.' The report also identified 50 measures which, if taken, could help UNRWA ensure its neutrality. . . . According to the United Nations, following the issuance of the report, the United Nations and UNRWA are taking action to implement the recommendations"; "[it] considers that the information before it is not sufficient to establish UNRWA's lack of neutrality. . . . The United Nations took Israel's allegations	members in the attack and atrocities . . . and indicated . . . that another 30 UNRWA staff assisted or facilitated those crimes. According to Israel, a comparison of the list of 12,521 UNRWA employees in Gaza during 2023–2024 . . . , [reveals that] at least 1,462 of those employees (i.e. 12 per cent) are members of . . . terrorist organizations. . . . Israel also identified more than 10 per cent of top staff of UNRWA schools and training centers [that] were members of Hamas or Islamic Jihad. . . . Israel further asserts that during the armed hostilities following the 7 October 2023 attack, there was widespread and systematic misuse of UNRWA assets and facilities, which went largely unchecked. . . . According to Israeli sources, Hamas command-and-control centers, weapons caches and hideouts were discovered within, or adjacent to, at least 32 UNRWA facilities. . . . Multiple attacks against Israel are said to have been launched from within UNRWA premises"; "senior UNRWA officials . . . [failed] to uphold political neutrality and impartiality," and "numerous UNRWA staff members [were involved] in acts of terrorism"; "[neither UN investigation of UNRWA has] satisfactorily or conclusively addressed Israel's legitimate security concerns regarding the infiltration of UNRWA by Hamas and Palestinian Islamic Jihad."⁶ <u>Sources:</u> Her allegation that UNRWA posed a national security threat "over the last two decades" was based on Israel's "Written Statement" to the Court, "claims by Israeli officials . . . supported . . . by the United

(continued)

TABLE 18 (continued)

Court Majority	Judge Sebutinde
seriously and responded immediately. . . . The [UN] investigation in 2024 led to the dismissal of nine members of UNRWA personnel due to their possible involvement in the 7 October 2023 Hamas-led attacks against Israel. . . . This circumstance, however, is insufficient to support a conclusion that UNRWA, as a whole—with more than 17,000 employees in the Occupied Palestinian Territory and over 30,000 employees altogether—is not a neutral organization. . . . In addition, the Court finds that Israel has not substantiated its allegations that a significant part of UNRWA employees ‘are members of Hamas . . . or other terrorist factions.’”^j	States,” sundry letters and complaints submitted by Israel to the UN, and reports by an Israel advocacy organization (UN Watch). She didn’t adduce a scratch of evidence corroborating promiscuous Israeli allegations against UNRWA beyond what the UN investigators found—to wit, nine employees “might have been involved” in the 7 October attack. Indeed, she effectively conceded the flimsiness of Israel’s case against UNRWA: “there exists at least <i>some</i> independent corroboration of <i>certain</i> elements of Israel’s stated concerns” (emphases added).^l She based her doubts about the UN investigations on an Israel advocacy organization (UN Watch).

^a *Advisory Opinion 2025*, paras. 71–72, 74, 103, 107–8, 153, 158.

^b “Separate Opinion,” paras. 18, 21–22, 24, 97.

^c In her slight manifesto, *Free Press* editor Bari Weiss exhorted: “We are a people descended from slaves who brought the world ideas that changed the course of history. One God. Human Dignity. The sanctity of life. Freedom itself. That is our inheritance. That is our legacy. We are the people commanded to bring light into this world” (*How to Fight Anti-Semitism* (New York: 2019), p. 206).

^d Jonathan Landay, “USAID Analysis Found No Evidence of Massive Hamas Theft of Gaza Aid,” *Reuters* (25 July 2025; <https://www.reuters.com/world/middle-east/usaaid-analysis-found-no-evidence-massive-hamas-theft-gaza-aid-2025-07-25>); Natan Odenheimer and Patrick Kingsley, “No Proof Hamas Routinely Stole U.N. Aid, Israeli Military Officials Say,” *New York Times* (26 July 2025; <https://www.nytimes.com/2025/07/26/world/middle-east/hamas-un-aid-theft.html>). Compare Judge Cleveland (from the US) in her “Declaration”: “The Court also acknowledges Israel’s contentions that during the current hostilities Hamas has . . . intentionally disrupted and diverted humanitarian aid from the civilian population of the Gaza Strip” (“Declaration of Judge Cleveland” (22 October 2025; <https://www.icj-cij.org/sites/default/files/case-related/196/196-20251022-adv-01-07-en.pdf>), para. 3). If she elected to mention this, shouldn’t Judge Cleveland also have noted that these “Israeli contentions” have been resoundingly refuted?

^e *Advisory Opinion 2025*, paras. 59, 63, 68, 70, 72–73, 104, 106, 122, 126, 153, 168.

^f “Separate Opinion,” paras. 23, 29, 54, 61, 97.

^g *Ibid.*, para. 42.

^h *Advisory Opinion 2025*, paras. 53, 63, 121, 124, 153, 161, 221.

ⁱ “Separate Opinion,” paras. 70, 72, 96.

^j *Advisory Opinion 2025*, paras. 60, 118, 215.

^k “Separate Opinion,” paras. 73–76, 81–84, 94.

^l *Ibid.*, paras. 73–77 (see *ibid.*, paras. 78–80, for these tidbits of “evidence,” such as “rescued Israeli hostages have testified. . .”).

Conclusion

This Advisory Opinion appeared to turn on a narrow, esoteric question: Was Israel legally obligated to cooperate with UNRWA's humanitarian mission in Gaza? The practical stakes, however, loomed large. On the one hand, Israel was determined to exploit 7 October in order to permanently delegitimize and dismantle UNRWA. Established in 1949 to provide succor for Palestinian expellees from Israel, UNRWA has been the principal institutional embodiment of the Palestinian refugee question. If UNRWA were to vanish, so, too, would, for all practical purposes, international responsibility for Palestinian refugees. Hence Israel's determination to liquidate UNRWA. Since 7 October, it has spared no resources to demonize it so as to be rid once and for all of the refugee albatross. On the other hand, Gaza has borne witness to a genocide that has pulverized its physical landscape into dust and rubble and left the population, or that portion that hasn't been exterminated, teetering on the precipice. By all accounts, UNRWA is the only entity capable of providing humanitarian assistance at scale and with technical competence. A notable feature of this Advisory Opinion was not only its unanimity minus one, but also the non-combative tenor of the Declarations and Separate Opinions, which mostly homed in on abstruse legal points.¹⁷⁵ Notwithstanding Israel's propaganda blitz and Washington's exertion of raw power on Israel's behalf, the judges never even came close, either collectively or individually, to questioning Israel's legal obligation to cooperate with UNRWA. If it might be wondered why, the answer is not hard to find. In the Court's earlier post-7 October jurisprudence (ongoing "Genocide" case, "Legal Consequences" opinion), member judges could still feign agnosticism as to whether Israel was committing genocide. But by October 2025, that train had left the station: a broad international consensus had crystallized in the affirmative. Denying at that point desperately needed humanitarian assistance to survivors would have effectively made one complicit in the genocide. However inclined, be it from fear or favor, to defend Israel—or, at any rate, to make the best case for it—none of the judges was ready to go there after the inferno induced by Israel in Gaza proved an implacable fact. Except one.

175. It couldn't but be noticed that Judge Nolte (from Germany), Israel's staunchest supporter among the Court majority, did not issue a separate statement but rather elected to stay mute.

In her Separate Opinion, Judge Sebutinde harped on the Court's responsibility to sift out the truth from "the prevalence of disinformation and systematic propaganda," "to distinguish between credible evidence and politically motivated narratives," "to exercise rigorous evidentiary scrutiny."¹⁷⁶ It was an admirable aspiration. But, alas, measured against it, Judge Sebutinde didn't exactly pass with flying colors. As a legal matter, the case reduced to, *first*, whether East Jerusalem and Gaza constituted occupied territory to which Israel owed humanitarian obligations and, *second*, whether Israel, as a Member State of the UN and without sovereign rights in East Jerusalem and Gaza, was obligated to cooperate with UNRWA's mission there. A massive accumulation of Security Council and General Assembly resolutions going back decades, as well as the Court's own extensive jurisprudence going back decades, found that the West Bank, including East Jerusalem, and the Gaza Strip constituted Occupied Palestinian Territory over which Israel couldn't claim any sovereign rights. But Judge Sebutinde found that it had not yet been determined that this territory was "occupied" and, to boot, that—she repeatedly alleged this—Israel *did* exercise sovereign rights over it. Her evidence for these audacious assertions? None. On the ground, the case turned on the humanitarian situation in Gaza. A plethora of UN agencies long carried out operations in Gaza and closely monitored the situation unfolding there after 7 October. The Court had at its disposal a "voluminous dossier" to guide its deliberations. Based on this firsthand data collected by a vast array of respected UN entities, all of which concurred on the essential points, the Court found that Gaza was confronting a humanitarian catastrophe, Israel was systematically blocking vital aid from entering Gaza, and UNRWA was both indispensable to mitigating the catastrophe and could be trusted to perform its designated tasks. But Judge Sebutinde found that the humanitarian situation had been exaggerated, Israel was not blocking essential aid from entering Gaza, and UNRWA was neither indispensable nor could it be trusted. Her evidence for these audacious assertions? Except for the predictable denials issued by Israeli officialdom and its propaganda organs abroad—none.

The farce is in its last act. Enough already! Judge Sebutinde is either an Israeli mole or a crazed fanatic (or both). In fact or in effect, she is not a free agent but, on the contrary, a foreign agent. The longer she sits on the Court, the longer she disgraces it. The Court's honor and integrity hang in the balance. The final scene will be played out by the other judges sitting on the bench.

176. "Separate Opinion," paras. 21–22.

Will they continue to turn a blind eye to Judge Sebutinde's flagitious transgressions, or will they finally summon the inner wherewithal to expel this preposterous imposter from their ranks? Indeed, were it consistent with judicial protocol, "her" opinions ought to be torn out from the volumes of the Court's jurisprudence, so that there should be no record of such an abuse and such a shame.¹⁷⁷

177. Paraphrased from Charles Sumner, "Wrong and Unconstitutionality of Fugitive Slave Acts."

Appendix to Chapter 3

The Plagiarism Files

Researched and compiled by a scholar from Gaza

Note: Typographical errors in the original are not corrected; irrelevant footnotes are omitted.

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
1	8. Contrary to popular opinion, available evidence shows that as early as 1200 BCE, the Jewish people existed in the territory known as present-day Israel (also known during the British Mandate of 1922-1947 as “British Mandatory Palestine”) as a cohesive national group with a well-established and formed culture, religion, and national identity as well as a physical presence which has been maintained through the centuries despite the devastating impacts of conquests and their dispersion into exile. Ancient Israel existed between 1000-586 BCE with current archaeological evidence. Ancient Israel was divided into two provinces or kingdoms: the northern kingdom called Israel with its capital being Samaria; and the southern province of Judea or Judah (<i>Y’hudah</i> in Hebrew) with its capital as Jerusalem. Over time, the ancient land of Israel was subjected to various conquests and occupations by stronger kingdoms, including the Babylonian empire (586-539 BCE), the Persian Empire (539-332 BCE), the Hellenistic era (332-167 BCE), the Hasmonean Dynasty (167-63 BCE), the Roman empire (63 BCE-324 CE), the Byzantine Era (324-638 CE), the Arab Caliphate (638-1099 CE), the Crusaders (1099-1291 CE), the Mamluk era (1291-1517 CE), the Ottoman Empire (1517-1917 CE), and British Mandate (1917-1948). Although these conquests led to many Jews being exiled or	In answering the first question, incontrovertible evidence exists about Israel’s long history in the land that has been referred to by the distorters of History as “Occupied Palestinian Territories”. Available evidence shows that by the 1st millennium, Israel as a nation state had well established and formed culture, religion, and national identity as well physical presence which has been maintained through the centuries despite the devastating impacts of conquests and dispersion into exile with passage of time. Ancient Israel existed between 1000 – 586 BC with current archaeological evidence showing evidence of the remains of King Solomon’s first temple in Jerusalem. From that time on, the ancient land of Israel was subjected to various conquests and occupations by stronger kingdoms. Some of these being; the Babylonian empire (586 – 539 BCE), the Persian Empire (539 – 332 BCE), the Hellenistic era (332 – 167 BCE), the Hasmonaeen Dynasty (167- 63 BCE), the Roman empire (63 BCE – 324 CE), the Byzantine Era (324 – 638 CE), the Arab Caliphate (638 CE – 1099 CE), the Crusaders (1099 – 1291 CE), the Mamluk era (1291 – 1517), the Ottoman Empire (1517 – 1917), British Mandate (1917 – 1948), and finally the independence of the State of Israel (1948 to date). In 135 CE, The Romans changed the name of Judea to Syria Palestina in order to destroy the tie

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	dispersed to different parts of the world for more than 1,500 years, there was a remnant that continued to live in the land of current Israel until a sizeable number of Jews started to return in 1882 and subsequent years. At that time, no more than 250,000 Arabs lived in the land. In 1948, following the Holocaust, the State of Israel attained its independence or self-determination. The above history is reinforced by recent archaeological evidence obtained through systematic investigation of all the remains of the country's past — from prehistory to the end of Ottoman rule which clearly reveals the historical link between the Jewish people and the Land of Israel, uncovering the remains of their cultural heritage in their homeland. These visible remains, buried in the soil, constitute the physical link between the past, the present and the future of the Jewish people in this part of the world. It can be argued that this history is what informed the civilized community of nations through the United Nations to re-establish the “national homeland of the Jewish people” in 1948⁸. ⁸ Encyclopaedia Britannica and Jacob Liver, ed., <i>The Military History of the Land of Israel in Biblical Times</i> (1968). Source: All quotes in this column of the appendix are from <i>Legal Consequences</i> (2024), “Dissenting Opinion of Vice-President Sebutinde” (19 July 2024; https://www.un.org/unispal/wp-content/uploads/2024/07/n2.429532.pdf).	between the Jews and Judea (their land). Although these conquests led to many Jews into exile and were dispersed to different parts of the world for more than 1,500 years, there was a remnant that continued to live in the land of current Israel for over 4,500 years till a sizeable number of Jews started to return in 1882 and subsequent years that later culminated into Israel's independence in 1948 following the holocaust. At that time, no more than 250,000 Arabs lived in the land. This history is reinforced by recent Archaeological evidence obtained through systematic investigation of all the remains of the country's past – from prehistory to the end of Ottoman rule which clearly reveals the historical link between the Jewish people and the Land of Israel, uncovering the remains of the cultural heritage of the Jewish people in its homeland. These visible remains, buried in the soil, constitute the physical link between the past, the present and the future of the Jewish people in their country. It can be argued that this history is what informed the civilized community of nations through the UN to re-establish the ‘national homeland’ of the Jewish people in 1948. (see Encyclopedia Britanica and Jacob Liver, ed., <i>The Military History of the Land of Israel in Biblical Times</i> (1968)). Source: Nayebare Karuhanga, “Clarifying Unfounded Criticism Against Justice Sebutinde's Dissenting Opinion (Part 2),” <i>The Independent</i>, 14/2/2024, accessed on 29/7/2024, at: https://tinyurl.com/4tdjt6t9.

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
2	9. Territorially, the name “Palestine” applied vaguely to a region that for the 400 years before World War I was part of the Ottoman Empire. In 135 CE, after stamping out the second Jewish insurrection of the province of Judea or Judah, the Romans renamed that province “<i>Syria Palaestina</i>” (or “Palestinian Syria”). The Romans did this as a punishment, to spite the “<i>Y’hudim</i>” (Jewish population) and to obliterate the link between them and their province (known in Hebrew as <i>Y’hudah</i>). The name “<i>Palaestina</i>” was used in relation to the people known as the Philistines and found along the Mediterranean coast. The term “Palestine” was used for centuries without a precise geographic or territorial definition. Prior to the establishment of “British Mandatory Palestine”, Palestinian Arabs viewed themselves as having a unified identity with the Arabs in the subregion until the twentieth century. <u>When the distinguished Arab American historian, Professor Philip Hitti, testified against the Partition of Mandatory Palestine before the Anglo-American Committee in 1946, he remarked: “There is no such thing as ‘Palestine’ in history; absolutely not.”</u> The first Palestine-Arab Congress which convened in Jerusalem from 27 January to 10 February 1919 to choose Palestinian representatives for the Paris Peace Conference, adopted a resolution in which it, <i>inter alia</i>, considered Palestine as an integral part of Arab Syria. <u>In 1937, Auni Bey Abdul-Hadi, a local Arab leader, told the Peel Commission which ultimately suggested the Partition of Palestine: “There is no such country [as Palestine]! ‘Palestine’ is a term the Zionists invented! . . . Our</u>	The ancient Romans pinned the name on the Land of Israel. In 135 CE, after stamping out the province of Judea’s second insurrection, the Romans renamed the province Syria Palaestina—that is, “Palestinian Syria.” They did so resentfully, as a punishment, to obliterate the link between the Jews (in Hebrew, <i>Y’hudim</i> and in Latin <i>Judaei</i>) and the province (the Hebrew name of which was <i>Y’hudah</i>). “Palaestina” referred to the Philistines, whose home base had been on the Mediterranean coast. “Palestine” applied vaguely to a region that for the 400 years before World War I was part of the Ottoman empire. Source: Douglas J. Feith, “The Forgotten History of the Term ‘Palestine,’” <i>Mosaic</i>, 13/12/2021, accessed on 29/7/2024, at: https://tinyurl.com/2txwskfn. Paragraphs highlighted not in continuous sequence in the original. When Jews began to immigrate to Palestine in large numbers in 1882, fewer than 250,000 Arabs lived there, and the majority of them had arrived in recent decades. Palestine was never an exclusively Arab country, although Arabic gradually became the language of most of the population after the Muslim invasions of the seventh century. No independent Arab or Palestinian state ever existed in Palestine. <u>When the distinguished Arab-American historian, Princeton University Prof. Philip Hitti, testified against partition before the Anglo-American Committee in 1946, he said: “There is no such thing as ‘Palestine’ in history, absolutely not.”</u> In fact, Palestine is never explicitly mentioned in the Koran, rather it is called “the holy land” (<i>al-Arad al-Muqaddash</i>).

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	<u>country was for centuries part of Syria.”</u>	<u>In 1937, a local Arab leader, Auni Bey Abdul-Hadi, told the Peel Commission, which ultimately suggested the partition of Palestine: “There is no such country [as Palestine]! ‘Palestine’ is a term the Zionists invented! There is no Palestine in the Bible. Our country was for centuries part of Syria.”</u> Source: Mitchell Bard, “Pre-State Israel: Jewish claim to the Land of Israel,” <i>Jewish Virtual Library</i>, accessed on 29/7/2024, at: https://tinyurl.com/ycx8pc57. Paragraphs highlighted not in continuous sequence in the original.
3	10. Following the defeat of the Ottoman Empire in World War I and subsequent division of Ottoman territories by the League of Nations, British Mandatory Palestine was formed in 1922. The Palestine Mandate was a “Class A” Mandate awarded to Britain, primarily with the charge of reconstituting a national home for the Jewish people, especially those escaping persecution and the Holocaust¹². ¹² See <i>British Mandate for Palestine, 17 Am. J. Int’l L. 164, 164, 170 (Supp. 1923) (hereinafter “Palestine Mandate”)</i>.	Having looked at other Mandates we now turn to the Palestine Mandate. The Palestine Mandate was one of the three “Class A” Mandates created out of the colonial and imperial possessions of the Ottoman Empire. Palestine was awarded to Britain with the charge of reconstituting a national home for the Jewish people.²²⁴ ²²⁴ See <i>British Mandate for Palestine, 17 AM. J. INT’L L. 164, 164, 170 (Supp. 1923) [hereinafter Palestine Mandate]</i>. Source: Abraham Bell and Eugene Kontorovich, “Palestine, <i>Uti Possidetis Juris</i>, and the Borders of Israel,” <i>Arizona Law Review</i>, vol. 58 (2016), pp. 667–68.
4	11. The formal establishment of British Mandatory Palestine occurred on 24 July 1922 when the League of Nations granted Britain the mandate, which officially came into effect on 29 September 1923. The territorial scope of British Mandatory Palestine originally comprised two regions referred to as Transjordan (in the east) and Palestine (in the west). The borders of the original Mandatory Palestine were determined by negotiation and agreement as follows.	How did British Mandate Palestine get its borders? The line in the north emerged from Anglo-French negotiations in 1923. The one in the south was fixed by treaties in the mid-1920s between Britain and the new nation of Saudi Arabia. The border between Mandate Palestine and Mandate Mesopotamia was of little immediate importance, given that it was in the middle of an uninhabited desert and Britain controlled both sides. That line was

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Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	The line in the north emerged from Anglo-French negotiations in 1923. The one in the south was fixed by treaties in the mid-1920s between Britain and the new nation of Saudi Arabia. The border between the Mandate of Palestine and the Mandate of Mesopotamia (Iraq) was of little immediate importance, given that the line was in the middle of an uninhabited desert and Britain controlled both sides. That line was finally fixed through an exchange of letters in 1932. The eastern part of Mandatory Palestine (which constitutes 80 per cent of the territory and was known as “Transjordan”) remained under the British administration until 25 May 1946, when it became the independent kingdom of Transjordan and was later renamed Jordan. The western part of Mandatory Palestine (which constitutes 20 per cent of the territory and was referred to as “Palestine”) remained under the British Mandate until May 1948	finally fixed through an exchange of letters in 1932. What particularly interests us here is how Britain handled Eastern Palestine. The short answer is that it remained under the British Mandate for Palestine until 1946, when it became the independent kingdom of Transjordan, later renamed Jordan. Western Palestine remained under the Mandate until May 1948. Source: Douglas J. Feith, “The Forgotten History of the Term ‘Palestine,’” <i>Mosaic</i>, 13/12/2021, accessed on 29/7/2024, at: https://tinyurl.com/2txwskfn.
5	12. The proposal for the creation of a two-State solution in the territory of British Mandatory Palestine (one for the Jewish population and the other for the Arab population) has been a recurrent item on the United Nation’s agenda but has repeatedly been rejected by the Arab population living in the territory, as well as by Israel’s Arab neighbours. Following the breakup of the Ottoman Empire after World War I, the League of Nations created several mandates over the territories formerly governed by the Ottoman Empire, including the one described immediately above. Seventeen years later, in 1936, the Arabs rebelled against Britain as mandate holder for Palestine and Mesopotamia (present-day Iraq). The Peel Commission,	After the breakup of the Ottoman Empire following World War I, Britain took control of most of the Middle East, including the area that constitutes modern Israel. Seventeen years later, in 1936, the Arabs rebelled against the British, and against their Jewish neighbors. The British formed a task force – the Peel Commission – to study the cause of the rebellion. The commission concluded that the reason for the violence was that two peoples – Jews and Arabs – wanted to govern the same land. Source: David Brog, “Why Isn’t There a Palestinian State?,” <i>PragerU</i>, 27/3/2017, accessed on 29/7/2024, at: https://tinyurl.com/3dtu67jr.

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	a task force established by Britain to ascertain the cause of the Arab rebellion, found that the primary reason for the hostilities was the conflicting national aspirations of Jews and Arabs living in the territory:	
6	14. First rejection in 1937: Pursuant to the recommendations of the Peel Commission in 1937, the British Government offered the Palestinian Arabs 80 per cent of Mandatory Palestine (Transjordan), and the Jews the remaining 20 per cent (Palestine) in a suggested split that was heavily in favour of the former. Despite the tiny size of their proposed State, the Jews voted to accept this offer, but the Arabs rejected it and resumed their violent rebellion	The answer, the Peel Commission concluded, would be to create two independent states – one for the Jews, and one for the Arabs. A two-state solution. The suggested split was heavily in favor of the Arabs. The British offered them 80 percent of the disputed territory; the Jews, the remaining 20 percent. Yet, despite the tiny size of their proposed state, the Jews voted to accept this offer. But the Arabs rejected it and resumed their violent rebellion. Source: David Brog, “Why Isn’t There a Palestinian State?,” <i>PragerU</i>, 27/3/2017, accessed on 29/7/2024, at: https://tinyurl.com/3dtu67jr.
7	16. Third rejection in 1967: Twenty years later , in what is known as the “Six-Day War”, Israel launched a series of pre-emptive air strikes against Egypt on 5 June 1967 in response to the escalating tension and military threats from its Arab neighbours (namely, Egypt, Syria and Jordan) who once again, sought to eliminate the Jewish State from the region. Israel achieved a swift and decisive victory in this war, recapturing East Jerusalem and the West Bank from Jordan; the Golan Heights from Syria; Gaza and the Sinai Peninsula from Egypt. This recaptured territory has since been referred to as the “Occupied Palestinian Territories” or “OPTs” (although it should perhaps be better referred to as “Disputed Palestinian Territories”). <u>From this point onwards,</u>	20 years later, in 1967, the Arabs led this time by Egypt and joined by Syria and Jordan, once again sought to destroy the Jewish state. The 1967 conflict, known as the Six-Day War, ended in a stunning victory for Israel. Jerusalem and the West Bank, as well as the area known as the Gaza Strip, fell into Israel’s hands. The government split over what to do with this new territory. Half wanted to return the West Bank to Jordan and Gaza to Egypt in exchange for peace. The other half wanted to give it to the region’s Arabs, who had begun referring to themselves as the Palestinians, in the hope that they would ultimately build their own state there. Neither initiative got very far. A few months later, the Arab League

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	<u>these Arab States had a direct territorial dispute with Israel quite apart from their commitment to the Palestinian cause.</u> The Israeli Government was split over what to do with this new territory. Half of the Government wanted to return the West Bank to Jordan and Gaza to Egypt in exchange for peace. The other half wanted to give that territory to the region's Arabs, who had begun referring to themselves as the Palestinians, in the hope that they would ultimately build their own State there. Neither initiative got very far. A few months later, the Arab League met in Sudan and issued its "Three-Nos": no peace with Israel, no recognition of Israel, no negotiations with Israel. Again, the two-State solution was flatly rejected by these Arab States.	met in Sudan and issued its infamous three-NOs, no peace with Israel, no recognition of Israel, no negotiations with Israel. Again, a two-state solution was dismissed by the Arabs. Source: "Mainz Have Announced Decision to Suspend Anwar El Ghazi for Supporting Palestine—Sports (3)—Nairaland," <i>Nairaland Forum</i>, 18/10/2023, accessed on 29/7/2024, at: https://tinyurl.com/bdfma8ua. The neighboring Arab states became involved in this conflict on the side of the Palestinian Arabs in the 1930s. After the creation of the State of Israel in 1948, the main weight of the conflict shifted from the local or inter-communal level to the inter-state level. In 1967 the conflict was further complicated by Israel's capture of the West Bank from Jordan, the Golan Heights from Syria and the Sinai Peninsula from Egypt. <u>From this point on, these states had a direct territorial dispute with Israel quite apart from their commitment to the Palestinian cause.</u> Source: Khairun Mohamed, "Discuss the Israel-Palestinian Conflict Touching on Its Origin, Development and Consequences," <i>Academia</i>, p. 2, accessed on 29/7/2024, at: https://tinyurl.com/muzy4mcn.
8	18. Fifth rejection in 1973: From 6 to 25 October 1973, a coalition of Arab States led by Egypt and Syria launched a surprise military attack on the State of Israel, in what is known as the "Yom Kippur War"²³. The surprise attack which began on Yom Kippur (the Jewish day of repentance) and which coincided with the Islamic month of Ramadan, was intended to challenge Israel's victory in the Six-Day War of 1967 whereby Israel had acquired territory four times its previous size. The war which involved	The Yom Kippur War, also known as the Ramadan War, the October War, the 1973 Arab–Israeli War, or the Fourth Arab–Israeli War, was an armed conflict fought from 6 to 25 October 1973, between Israel and a coalition of Arab states led by Egypt and Syria. The Yom Kippur War had far-reaching implications; the Arab world had experienced humiliation in the lopsided rout of the Egyptian–Syrian–Jordanian alliance in 1967 but felt psychologically vindicated by early and late successes in the 1973 war.

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	the USA and Soviet Union on opposite sides, had far-reaching implications and ultimately led to negotiations on terms more favourable to the Arab States. The Israelis recognized that, despite impressive operational and tactical achievements on the battlefield, there was no guarantee that they would always dominate the Arab States militarily, as they had done consistently throughout the First, Second and Third Arab-Israeli Wars; these changes paved the way for the Israeli-Palestinian peace process. At the 1978 Camp David Accords that followed the war, Israel returned the entire Sinai Peninsula to Egypt, which led to the subsequent 1979 Egyptian-Israeli peace treaty, marking the first instance that an Arab country recognized Israel as a legitimate State. ²³ This war is also known as the Ramadan War, the October War, or the Fourth Arab Israeli War.	The Israelis recognized that, despite impressive operational and tactical achievements on the battlefield, there was no guarantee that they would always dominate the Arab states militarily, as they had done consistently throughout the First, Second and Third Arab-Israeli Wars; these changes paved the way for the Israeli-Palestinian peace process. At the 1978 Camp David Accords that followed the war, Israel returned the entire Sinai Peninsula to Egypt, which led to the subsequent 1979 Egyptian-Israeli peace treaty, marking the first instance that an Arab country recognized Israel as a legitimate state. Source: “Yom Kippur War,” <i>Wikipedia</i>, accessed on 29/7/2024, at: https://tinyurl.com/4zx76yz9. Paragraphs highlighted not in continuous sequence in the original.
9	19. Sixth rejection in 2000: Israeli Prime Minister Ehud Barak met at Camp David, with Palestinian Liberation Organization (PLO) Chairman Yasser Arafat in 2000, to conclude a new two-State plan. Barak offered Arafat a Palestinian State in all of Gaza, and 94 per cent of the West Bank, with East Jerusalem as its capital. The Palestinian leader flatly rejected the offer. In the words of President Bill Clinton of the United States, “Arafat was here 14 days and said no to everything.” Instead, the Palestinians launched a bloody wave of suicide bombings that killed over 1,000 Israelis and maimed thousands more, on buses, in wedding halls, and in pizza parlours.	In 2000, Israeli Prime Minister Ehud Barak met at Camp David with Palestinian Liberation Organization Chairman Yasser Arafat to conclude a new two-state plan. Barak offered Arafat a Palestinian state in all of Gaza and 94% of the West Bank with East Jerusalem as its capital. But the Palestinian leader rejected the offer. In the words of US President Bill Clinton, Arafat was “Here 14 days and said ‘no’ to everything.” Instead, the Palestinians launched a bloody wave of suicide bombings that killed over 1,000 Israelis and maimed thousands more — on buses, in wedding halls, and in pizza parlors. Source: David Brog, “Why Isn’t There a Palestinian State?,” <i>PragerU</i>, 27/3/2017,

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Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
		accessed on 29/7/2024, at: https://tinyurl.com/3dtu67jr .
10	20. Seventh rejection: In 2008, Israel tried yet again to table the idea of a two-State solution before the new leadership of the PLO. Prime Minister Ehud Olmert went even further than Ehud Barak had, expanding the peace offer to include additional land to sweeten the deal. Like his predecessor, the new Palestinian leader, Mahmoud Abbas, turned the deal down.	In 2008, Israel tried yet again. Prime Minister Ehud Olmert went even further than Ehud Barak had, expanding the peace offer to include additional land to sweeten the deal. Like his predecessor, the new Palestinian leader, Mahmoud Abbas, turned the deal down. Source: David Brog, "Why Isn't There a Palestinian State?," <i>PragerU</i> , 27/3/2017, accessed on 29/7/2024, at: https://tinyurl.com/3dtu67jr .
11	21. To date, Israel still occupies the West Bank and the whole of Jerusalem, whilst Arab Palestinians now claim East Jerusalem as the capital of their potential or future Palestinian State. Most Palestinian refugees and their descendants live in Gaza and the West Bank, as well as in neighbouring Jordan, Syria, and Lebanon. Israel is reluctant to allow them to return to their homes claiming that this would overwhelm the country and threaten Israel's existence as a Jewish State. Meanwhile, in the past 50 years the number of Jews returning to Israel has increased and Israel has built settlements in the disputed territories where more than 700,000 Jews now live. These settlements have been declared "legally invalid" by the Security Council, although Israel disagrees. In 2005 Israel withdrew its troops and settlers from the Gaza Strip, while retaining control over the airspace, shared border, and shoreline, because of "security concerns". However, the UN still considers the Gaza Strip territory occupied by Israel precisely because Israel retains significant	Most Palestinian refugees and their descendants live in Gaza and the West Bank, as well as in neighbouring Jordan, Syria and Lebanon. Neither they nor their descendants have been allowed by Israel to return to their homes - Israel says this would overwhelm the country and threaten its existence as a Jewish state. Israel still occupies the West Bank and claims the whole of Jerusalem as its capital, while the Palestinians claim East Jerusalem as the capital of a hoped-for future Palestinian state. The US is one of only a handful of countries to recognise the city as Israel's capital. In the past 50 years Israel has built settlements in the West Bank and East Jerusalem, where more than 700,000 Jews now live. Settlements are held to be illegal under international law - that is the position of the UN Security Council and the UK government, among others - although Israel rejects this. Israel withdrew its troops and settlers in 2005, though it retained control over its

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	control over Gaza's borders, airspace, and maritime access, as well as the movement of goods and people into and out of the territory. Politically, Gaza has since 2006 been administered by Hamas²⁶, an Islamist extremist group committed to the destruction of the State of Israel and designated by several States as a terrorist organization. Since then, Hamas militants and their allies have fought several wars with Israel, which along with Egypt has maintained a partial blockade on the Gaza Strip to isolate Hamas and to try to stop their attacks and indiscriminate firing of rockets towards Israeli cities. The Hamas attack on Israel of 7 October 2023 in which several Israeli citizens were murdered and others taken hostage, ushered in the latest war between Israel and Hamas and its allies (including Hezbollah in Lebanon). The USA, European Union and other Western countries have all condemned the Hamas attack on Israel ²⁶ In 2006 Hamas won the Palestinian elections and seized control of Gaza the following year after ousting the rival Fatah movement of the West Bank-based President Mahmoud Abbas.	airspace, shared border and shoreline. The UN still considers the territory to be occupied by Israel. Gaza is ruled by Hamas, an Islamist group which is committed to the destruction of Israel and is designated as a terrorist group by the UK and many other countries. Hamas won the Palestinians' last elections in 2006, and seized control of Gaza the following year by ousting the rival Fatah movement of West Bank-based President Mahmoud Abbas. Since then, militants in Gaza have fought several wars with Israel, which along with Egypt has maintained a partial blockade on the strip to isolate Hamas and try to stop attacks, particularly the indiscriminate firing of rockets towards Israeli cities. The US, the European Union and other Western countries have all condemned the Hamas attack on Israel. Source: "Israel Gaza War: History of the conflict explained," <i>BBC</i>, 5/4/2024, accessed on 29/7/2024, at: https://tinyurl.com/457b2ndp.
12	24. Over the last 45 years, an international legal framework involving UN and bilateral negotiations for the resolution of the Israeli-Palestinian conflict has developed, which is based on the concept of "land for peace", and which does not view the resolution of the conflict as being imposed upon the concerned parties from outside. Peace treaties between Egypt and Israel and Jordan and Israel were signed and	92. We have further explained that there is an international legal framework (UN and bilateral) in force for the resolution of the conflict, which is based on the principle of land for peace, and which does not view the presence of Israeli forces in the West Bank until peace is achieved as unlawful. Over the last 45 years, significant strides have been made in resolving the wider dispute. Peace treaties between Egypt and

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	implemented in 1979 and 1994 respectively. In 2020, in the context of the Abraham Accords, normalization agreements (equivalent to peace treaties) have been reached between Israel and a diverse list of Arab countries including the UAE, Bahrain, Morocco, and Sudan. The Israeli presence in the West Bank pending the conclusion of a peace agreement between Israel and the Palestinians is consistent with the international and bilateral frameworks for the resolution of the conflict.	Israel and Jordan and Israel were signed and implemented in 1979 and 1994 respectively. In 2020, in the context of the Abraham Accords, normalization agreements (equivalent to peace treaties) have been reached between Israel and a diverse list of Arab countries including the UAE, Bahrain, Morocco, and Sudan. The Israeli presence in the West Bank pending the conclusion of a peace agreement between Israel and the Palestinians is consistent with the international and bilateral frameworks for the resolution of the conflict. Source: “Written Statement Submitted by the International Association of Jewish Lawyers and Jurists Under ICJ Practice Direction XII in the Advisory Proceedings on the ‘Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem’ as Initiated by UNGA A/RES/77/247,” <i>International Jewish Lawyers</i>, 16/2/2024, p. 26, accessed on 10/8/2024, at: https://tinyurl.com/362xcct9.
13	25. International law recognizes negotiation and agreement as the primary mechanisms for resolving international disputes. UN Security Council resolutions 242 (1967) and 338 (1973) establish a framework for peace which has been mutually endorsed and agreed by both parties, and they remain the international framework for resolution of the Israeli-Palestinian conflict. Resolutions 242 and 338 leave open the possibility—indeed probability—of Israeli sovereignty in parts of the West Bank in a final peace agreement. Resolution 242 provides that peace “should” (not “must”) include withdrawal of Israeli forces “from territories occupied in the recent	57. Meanwhile, the OTP disregards the effect of UN Security Council Resolutions 242 (1967) and 338 (1973) which, although they were not adopted under Chapter VII, establish a framework for peace which has been mutually endorsed and agreed by both parties. Resolutions 242 and 338 leave open the possibility – indeed probability – of Israeli sovereignty in parts of the West Bank in a final peace agreement. Resolution 242 provides that peace “should” (not “must”) include withdrawal of Israeli forces “from territories occupied in the recent conflict”, not from “all the territories occupied” in that conflict. The Security Council’s deliberations suggest that this wording

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	(1967) conflict”, not from “all the territories occupied” in that conflict. The Security Council’s deliberations suggest that this wording was no accident, and the drafting history suggests that many of the drafters intended that withdrawal “is required from some but not all of the territories”. Resolution 338 calls upon the parties to implement resolution 242.	was no accident and many of the drafters intended that withdrawal “is required from some but not all of the territories.” Resolution 338 “calls upon” the parties to implement Resolution 242. Source: International Criminal Court, “Corrigendum to ‘IJL Observations on the “Prosecution Request Pursuant to Article 19(3) for a Ruling on the Court’s Territorial Jurisdiction in Palestine” (ICC-01/18-12),” 17/3/2020, p. 24, accessed on 30/7/2024, at: https://tinyurl.com/ykrc98ke.
14	26. Resolution 242’s “land-for-peace” concept remains the cornerstone of all proposed peace plans to resolve the conflict. It served as a basis for the regional peace initiative in Camp David in 1978; the Israel-Egypt Treaty of Peace of 1979; and the Israel-Jordan Treaty of Peace of 1994. Furthermore, all Israeli-Palestinian agreements, including the Interim Agreement, invoke both resolution 242 and resolution 338. These resolutions have also been invoked in numerous decisions of international organizations relating to the ultimate resolution of the regional conflict. The Security Council and General Assembly have reiterated on numerous occasions their support for the existing bilateral agreements as the applicable legal framework for settling the Israeli-Palestinian conflict and determining the sovereign status of the territory in dispute. This is evidence which underscores the position both that the relevant framework for a territorial settlement begins with resolution 242, and that any Palestinian right or title to exercise authority over disputed territory (and its inhabitants) is not necessarily exclusive.	Resolution 338 “calls upon” the parties to implement Resolution 242. Resolution 242’s “land-for-peace” scheme remains the cornerstone of peace plans for the Middle East. All the Israeli-PLO agreements, including the Interim Agreement, invoke both Resolution 242 and Resolution 338. This is evidence which underscores the position both that the relevant framework for a territorial settlement begins with Resolution 242, and that any Palestinian right or title to exercise authority over disputed territory (and its inhabitants) is not necessarily exclusive. Source: International Criminal Court, “Corrigendum to ‘IJL Observations on the “Prosecution Request Pursuant to Article 19(3) for a Ruling on the Court’s Territorial Jurisdiction in Palestine” (ICC-01/18-12),” 17/3/2020, p. 25, accessed on 30/7/2024, at: https://tinyurl.com/ykrc98ke.

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15	42. In my view, the Court does not have before it accurate, balanced, and reliable information to enable it to judiciously arrive at a fair conclusion upon disputed questions of fact, in a manner compatible with its judicial character. Due to the one-sided formulation of the questions posed in Resolution 77/247, coupled with the one-sided narrative in the statements of many participants in these proceedings, some of whom do not even recognize the existence or legitimacy of the State of Israel, the Court does not have before it the accurate and reliable information that it needs to render a balanced opinion on those questions. Most of the participants in these advisory proceedings have, regrettably, presented the Court with a one-sided narrative that fails to take account of the complexity of the conflict and that misrepresents its legal, cultural, historical, and political context. By asking the Court to look only at the “policies and practices of Israel”, the General Assembly shields from the purview of the Court, the policies and practices of the Palestinian Arabs and their representatives (including non-state actors), as well as those of other Arab States in the Middle East whose interests are intertwined with those of the Palestinian Arabs.	9. In Fiji’s view, this Court has unfortunately been presented in these proceedings with a distinctly one-sided narrative. This fails to take account of the complexity of this dispute and misrepresents the legal, historical and political context. 10. (iii) third, due to the one-sided formulation of the questions posed in resolution 77/247, the Court does not have before it the accurate and reliable information that it would need to render an opinion on the questions posed. 54. By asking the Court to look only at the policies and practices of Israel, resolution 77/247 shields from the Court’s purview the policies and practices of Palestine. Source: International Court of Justice, “Public Sitting Held on Monday 26 February 2024, at 3 p.m., at the Peace Palace, President Salam Presiding, on the Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem (Request for Advisory Opinion Submitted by the General Assembly of the United Nations)” (2024), pp. 17, 24, accessed on 30/7/2024, at: https://tinyurl.com/3vvahcu [the speaker represented the island State of Fiji; paragraphs highlighted not in continuous sequence in the original].
16	43. The Advisory Opinion clearly circumvents and is likely to jeopardize the existing internationally sanctioned and legally binding negotiation framework for the resolution of the Israeli-Palestine conflict referred to in Part III of this dissenting opinion. The Court, by addressing in the Advisory Opinion	10. (i) first, the request is a legal manoeuvre to circumvent the existing internationally sanctioned and legally binding framework for resolution of the Israel-Palestine dispute; 22. The Oslo Accords are legally binding. Remarkably, the Palestinians do not refer to these agreements in their Written

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	the legal obligations of only one party to the dispute and ignoring the rights and obligations of both parties as envisaged in the Oslo Accords and Road Map, both of which exclude recourse to the Court, clearly circumvents the existing negotiation framework. It is no wonder, the Security Council, the organ of the United Nations charged with the primary responsibility for international peace and security, is not the one that requested the Court for an advisory opinion on the Israeli-Palestine conflict. That body understands that the complex issues encompassed are best resolved through the existing negotiation framework rather than through the imposition of a solution outside that framework. As recently as 19 March 2023, both Israel and Palestine met with other interested parties in Sharm-el-Sheikh, Egypt, and reaffirmed their “unwavering commitment to all previous agreements between them” and to “address all outstanding issues through direct dialogue”. Again, there was no mention of judicial involvement in any shape or form, notwithstanding that resolution 77/247 had already been adopted.	Statement, while less than 12 months ago both Israel and Palestine reaffirmed their “unwavering commitment to all previous agreements between them” and “to address all outstanding issues through direct dialogue”. 23. Mr President, it is our submission that the request to this Court to opine on questions that address the legal obligations of only one party to this dispute conflicts with the clear rights and obligations of both parties in the Oslo Accords and the Roadmap, and which exclude recourse to this Court. Source: International Court of Justice, “Public Sitting Held on Monday 26 February 2024, at 3 p.m., at the Peace Palace, President Salam Presiding, on the Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem (Request for Advisory Opinion Submitted by the General Assembly of the United Nations)” (2024), pp. 17, 19, accessed on 30/7/2024, at: https://tinyurl.com/3vvahhcu [the speaker represented the island State of Fiji; paragraphs highlighted not in continuous sequence in the original].
17	44. As narrated in Part III of this dissenting opinion, Israel and Palestine painstakingly concluded a series of agreements known collectively as the Oslo Accords in 1993 and 1995, signifying their intention to “put an end to decades of confrontation and to live in peaceful coexistence, mutual dignity and security, while recognizing their mutual legitimate and political rights”. The thrust of the Oslo Accords and Roadmap is mutual performance and good faith negotiations, leading to a	15. Mr President, the fact is that, from 1993, Israel and Palestine entered into the series of agreements known collectively as the “Oslo Accords”. The parties expressed the intention to “put an end to decades of confrontation and to live in peaceful coexistence, mutual dignity and security, while recognizing their mutual legitimate and political rights”. To that end, they agreed on a wide range of interim measures, pending the achievement of a final agreement through permanent status negotiations.

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	consensual outcome. To that end the parties thereto agreed upon a wide range of interim measures, pending the achievement of a final agreement through good faith negotiations. Some of the interim measures agreed included: (i) Israel's recognition of the PLO as the legitimate Palestinian authority; (ii) powers and responsibilities were transferred from the Israeli military Government and its Civil Administration to the Palestinian Authority, while Israel continued to exercise powers and responsibilities not so transferred; (iii) Palestinian citizens were to hold free and direct general elections of their political leaders; (iv) the West Bank was divided into three areas — A, B and C. The Palestinians would obtain exclusive control over Area A; Israel would retain exclusive control over Area C, and Area B would be under joint Israeli-Palestinian control; (v) lastly, the parties agreed to enter into negotiations to resolve remaining issues including "Israeli settlements in the OPTs"; "borders of the two States"; "the Status and administration of Jerusalem"; and "security, stability and peace". The Oslo Accords also contained a specific dispute resolution mechanism and do not permit either party to unilaterally resort to external, third-party, or judicial settlements. Since 1993 an elaborate set of arrangements have been put into place to operationalize the Oslo Accords.	16. Some of those interim measures include: (a) The Palestinian Authority was established. (b) Powers and responsibilities were transferred from the Israeli military government and its civil administration to the Palestinian Authority, while Israel continued to exercise powers and responsibilities not so transferred. (c) Direct, free and general political elections were to be held by the Palestinians. (d) The West Bank was divided into three areas: A, B and C. The Palestinians would obtain exclusive control over Area A; Area B would be under joint Israeli/Palestinian control; and Area C would be under exclusive Israeli control. (e) Lastly, the parties would enter negotiations on the permanent status to resolve the remaining issues, which included "settlements", "borders", "Jerusalem" and "security". 17. In addition, the Oslo Accords contain a specific dispute resolution mechanism, and do not permit either party unilaterally to commence or ask others to commence external legal proceedings. 18. Since 1993, an extensive set of arrangements has been put in place to operationalize the agreements. Source: International Court of Justice, "Public Sitting Held on Monday 26 February 2024, at 3 p.m., at the Peace Palace, President Salam Presiding, on the Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem (Request for Advisory Opinion Submitted by the General Assembly of the United Nations)" (2024), p. 18, accessed on 30/7/2024, at: https://tinyurl.com/3vvahhcu [the speaker represented the island State of Fiji].

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18	45. According to the 2003 Road Map for peace, “a two-State solution to the Israeli-Palestinian conflict will only be achieved through an end to violence and terrorism, when Palestinian people have a leadership acting decisively against terror and willing and able to build a practicing democracy based on tolerance and liberty, and through Israel’s readiness to do what is necessary for a democratic Palestinian State to be established, and a clear, unambiguous acceptance by both parties of the goal of a negotiated settlement”⁶¹. ⁶¹ A Performance-based Road Map to a permanent two-State solution to the Israeli-Palestinian Conflict (https://peacemaker.un.org/israel-palestine-roadmap2003).	20. According to the Roadmap, “a two state solution to the Israeli-Palestinian conflict will only be achieved through an end to violence and terrorism, when Palestinian people have a leadership acting decisively against terror and willing and able to build a practicing democracy based on tolerance and liberty, and through Israel’s readiness to do what is necessary for a democratic Palestinian State to be established, and a clear, unambiguous acceptance by both parties of the goal of a negotiated settlement”¹⁰. ¹⁰ “A performance-based road map to a permanent two-State solution to the Israeli-Palestinian conflict” (https://peacemaker.un.org/israel-palestine-roadmap2003). Source: International Court of Justice, “Public Sitting Held on Monday 26 February 2024, at 3 p.m., at the Peace Palace, President Salam Presiding, on the Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem (Request for Advisory Opinion Submitted by the General Assembly of the United Nations)” (2024), p. 19, accessed on 30/7/2024, at: https://tinyurl.com/3vvahcu [the speaker represented the island State of Fiji].
19	46. Another reason for declining to give the Advisory Opinion is to avoid adjudicating what is essentially a bilateral dispute between Israel and the Palestinian people in the absence of comprehensive arguments from one of the parties. In <i>Western Sahara</i>, the Court ruled that	10. In its Written Statement, Fiji has provided several reasons why the Court should exercise its judicial discretion not to render an advisory opinion on the questions that have been posed by the General Assembly: (i) first, the request is a legal manoeuvre

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	where an advisory opinion “would have the effect of circumventing the principle that a State is not obliged to allow its disputes to be submitted to judicial settlement without its consent”, the Court would decline to give that opinion⁶³. ⁶³ <i>Western Sahara, Advisory Opinion, I.C.J. Reports 1975</i>, p. 25, para. 33.	to circumvent the existing internationally sanctioned and legally binding framework for resolution of the Israel-Palestine dispute; (ii) second, to give an opinion in this case “would have the effect of circumventing the principle that a State is not obliged to allow its disputes to be submitted to judicial settlement without its consent”² ² <i>Western Sahara Advisory Opinion</i>, p. 25, para. 33; <i>Chagos Advisory Opinion</i>, p. 117, para. 85. Source: International Court of Justice, “Public Sitting Held on Monday 26 February 2024, at 3 p.m., at the Peace Palace, President Salam Presiding, on the Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem (Request for Advisory Opinion Submitted by the General Assembly of the United Nations)” (2024), p. 17, accessed on 30/7/2024, at: https://tinyurl.com/3yvahhcu [the speaker represented the island State of Fiji].
20	49. The Court, taking a cue from the questions of the General Assembly, and various statements and observations filed before the Court, identifies Israel’s policies and practices relating to the occupation which they deemed to be illegal, and which should consequently entail legal consequences for Israel, other States, and the United Nations.	During six days in February 2024, the International Court of Justice (ICJ) heard 52 States and international organizations stating their position on a legal matter put before the Court – the legal consequences arising from the policies and practices of Israel in the Occupied Palestinian Territory, including East Jerusalem. Almost all participants in the hearings identified Israeli policies and practices relating to the occupation which they deemed to be illegal, and which should entail legal consequences for Israel, other States and the UN. Source: Yuval Shany and Amichai Cohen, “No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories,” <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpff.

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21	50. Given the broad international support for these legal propositions, the majority of the Court has quite predictably accepted the legal premises or presumptions of the first Question referred to it by the General Assembly, namely: (a) that Israel's occupation including settlements and annexation of Palestinian territories occupied since 1967 is illegal per se; (b) that Israel is responsible for an "ongoing violation . . . of the right of the Palestinian people to self-determination"; (c) that Israel's policies and practices are deliberately and necessarily "aimed at altering the demographic composition, character and status of. . . Jerusalem"; and (d) that Israel's practices and policies are inherently discriminatory and violate important rules of international humanitarian law (IHL) and international human rights law (IHRL).	Almost all participants in the hearings identified Israeli policies and practices relating to the occupation which they deemed to be illegal, and which should entail legal consequences for Israel, other States and the UN. Given the broad international support for these legal propositions, it is highly likely that – unless the ICJ would deem the request for an advisory opinion to be inadmissible (an outcome that would surprise most observers of the Court) – it will accept the legal premises of the first question referred to it by the General Assembly: i.e., that there is an ongoing violation of the Palestinian right to self-determination for the reasons specified in the question – "prolonged occupation, settlement and annexation of the Palestinian territory occupied since 1967, including measures aimed at altering the demographic composition, character and status of the Holy City of Jerusalem, and . . . adoption of related discriminatory legislation and measures." Put differently, it is likely that the Court will regard certain features of the Israeli occupation as incompatible with international law. These may include the exceptionally long duration of the occupation, which appears to be incompatible with the Palestinian right to self-determination (See e.g., Ireland oral submissions at p. 40), the settlement policy and associated measures that appear to be a form of prohibited demographic change and de facto annexation (see the 2004 ICJ advisory opinion on the <i>Wall in the OPT</i> at para 121), which is incompatible with the prohibition against acquisition of territory by force (see e.g., Japan oral submissions at p. 50), and practices of discrimination and restrictions, <i>inter alia</i>,

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		in access to land and movement that violate important rules of international humanitarian law (IHL) and international human rights law (IHRL) (See e.g., Pakistan oral submissions at p. 45). Source: Yuval Shany and Amichai Cohen, “No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories,” <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
22	51. Thus unsurprisingly, the Advisory Opinion finds Israel’s occupation of the OPTs illegal per se, and certain features thereof as incompatible with international law, including, the long duration thereof, which the advisory opinion deems incompatible with the right of the Arab Palestinians to self-determination. The Advisory Opinion further finds that Israel’s settlement policy and associated measures have contributed to a prohibited demographic change in the OPTs and therefore unlawful under international law. The Opinion also adjudges Israel’s conduct as <i>de facto</i> or <i>de jure</i> annexation that is incompatible with the prohibition against acquisition of territory by force. The answers to question one, even if based on a one-sided narrative, may not pose any surprises for the General Assembly, especially since much of the applicable law was already pronounced by the Court in previous advisory opinions, including the <i>Wall</i> Opinion, <i>Namibia</i> Opinion and <i>Chagos</i> Opinion. That is a straightforward mathematical exercise. The real challenge for the Court arises when trying to answer the second question with the limited information that the one-sided narrative affords — “How do the policies and practices of Israel	Put differently, it is likely that the Court will regard certain features of the Israeli occupation as incompatible with international law. These may include the exceptionally long duration of the occupation, which appears to be incompatible with the Palestinian right to self-determination (See e.g., Ireland oral submissions at p. 40), the settlement policy and associated measures that appear to be a form of prohibited demographic change and <i>de facto</i> annexation (see the 2004 ICJ advisory opinion on the <i>Wall in the OPT</i> at para 121), which is incompatible with the prohibition against acquisition of territory by force (see e.g., Japan oral submissions at p. 50), and practices of discrimination and restrictions, <i>inter alia</i>, in access to land and movement that violate important rules of international humanitarian law (IHL) and international human rights law (IHRL) (See e.g., Pakistan oral submissions at p. 45). The more challenging aspect of the advisory proceedings, involves, however, the second question referred to the Court by the General Assembly: “How do the policies and practices of Israel referred to [above] affect the legal status of the occupation, and what are the legal consequences that arise for

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	referred to . . . above affect the legal status of the occupation, and what are the legal consequences that arise for all States and the United Nations from this status?"	all States and the United Nations from this status?" Source: Yuval Shany and Amichai Cohen, "No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories," <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
23	52. Predictably, the Court after qualifying Israel's presence in the disputed territories as an illegal occupation, in keeping with the views of most participants, has concluded that under international law Israel is obligated to bring to an end its illegal policies and practices, with a view to realizing Palestine's right to self-determination.	It remains to be seen whether the ICJ will follow, in this regard, the approach taken by a majority of participating States who qualified the occupation itself as "illegal" (see e.g., Palestine oral submissions at p. 54, Bolivia oral submissions at p. 25, UAE oral submissions at p. 46), or follow the more timid approach proposed by the United States (see US oral submissions at p. 55), according to which belligerent occupation is premised on factual circumstances that cannot be characterized as legal or illegal. In any event, the Court is likely to opine that international law requires Israel to bring to an end its illegal policies and practices, with a view to realizing the Palestinian right to self-determination Source: Yuval Shany and Amichai Cohen, "No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories," <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
24	54. The timeline proposed by most participants and what the Court has called "bring[ing] to an end <i>as rapidly as possible</i> the unlawful presence of Israel in the Occupied Palestinian Territory" is uncertain and impracticable. While Palestine, as well as most of the participants, have called for "an immediate, total and unconditional" end of Israel's illegal occupation, the wording in the	Unlike previous cases in which the use of such decisive language might have been appropriate (see e.g., the 1971 <i>Namibia</i> advisory opinion which alluded to <i>immediate</i> withdrawal of South African administration and Security Council Res. 660 (1990) demanding that Iraq withdraw from Kuwait <i>immediately</i> and <i>unconditionally</i>), the complexities of the Israeli-Palestinian conflict do not

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	Advisory Opinion, coupled with a total absence of any comments addressing Israel's security concerns, has the same effect as what most States asked for. Moreover, this is clearly contrary to what Israel and Palestine previously agreed including under the Oslo Accords, or indeed what the Security Council sanctioned under resolutions 242 and 338. An immediate, total, and unconditional withdrawal of Israeli armed forces and civilian settlements is simply impracticable in the present circumstances. Unlike in the <i>Namibia</i> Opinion where such decisive language might have been appropriate, the complexities of the Israeli-Palestine conflict do not easily lend themselves to such a sweeping formulation. This is because Israel's continued presence in the West Bank and Jerusalem (and recently in Gaza) is premised in part, on real security concerns; the disagreement between the parties over the borders of the two States, and the <i>de facto</i> reality on the ground. Those matters will render the immediate and unilateral withdrawal of Israel practically impossible.	easily lend themselves to such a sweeping formulation. This is because, the Israeli presence in the West Bank and Jerusalem is premised, in part, on real security concerns, the existence of a legal dispute over the borders between the two States and the <i>de facto</i> reality on the ground, which will render an immediate and unilateral withdrawal practically impossible. Source: Yuval Shany and Amichai Cohen, "No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories," <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
25	55. More importantly, the Court should have envisaged and recommended to the General Assembly, Security Council and third States, a process that incorporates the aforementioned international negotiation framework into "Israel's withdrawal". This could have been done, for example, by recommending that the timeline and the <i>modus operandi</i> of Israel's withdrawal should be determined by bilateral or multilateral negotiations under the supervision of the United Nations. This was the approach the Court adopted in the <i>Gabčíkovo-Nagymaros</i> case where the	These complicating factors – which were hardly acknowledged by most participants in the advisory proceedings – should lead the Court to consider adopting a more flexible formulation for the timeframe for ending situations of illegality (<i>cf.</i> the approach of the Court in the <i>Chagos</i> advisory opinion – "as rapidly as possible") and, more significantly, for the process by which the terms of specific changes on the ground should be determined (e.g., bilateral or multilateral negotiations) (<i>cf.</i> the approach of the Court in the <i>Gabčíkovo-Nagymaros</i> case – that the immediate parties "must

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	Court stated that the immediate parties “must negotiate in good faith in the light of the prevailing situation”; or as in the <i>Wall</i> Opinion where the Court stated that “the United Nations, and especially the General Assembly and the Security Council, should consider what further action is required to bring to an end the illegal situation”.	<i>negotiate in good faith</i> in the light of the prevailing situation,” and in the <i>Wall in the OPT</i> advisory opinion – “The United Nations, and especially the General Assembly and the Security Council, should <i>consider what further action is required</i> to bring to an end the illegal situation”). Source: Yuval Shany and Amichai Cohen, “No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories” <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
26	56. Another significant factor which the Court has overlooked, and which distinguishes the Israel-Palestine conflict from other international situations involving calls for an “immediate, total and unconditional end” of colonization or occupation or expired legal mandate, is the existential and security threats posed to the Jewish people and State of Israel, from the disputed territories and from its adversaries in the neighbourhood and beyond. It is undeniable that there are States and non-State actors who have openly expressed a desire to see the State of Israel, not just withdraw from the OPTs but also wiped off the face of the earth, including from its own territory. Time and time again Israel’s adversaries have launched surprise attacks on Israel within her borders and not just in retaliation for her occupation of Palestinian territory. Indeed, many of the wars between Israel and her Arab neighbours have been fought by Israel pre-emptively to remove an immediate and existential military threat originating from either the OPTs or from enemies further afield. Examples include the 1967 war, the Six-Day War, and	One significant complicating factor, which distinguishes the Israel-Palestine conflict from other international situations involving calls to immediately end an occupation, colonization or an expired legal mandate is the security threat posed to Israel from the territories it occupies. Israel occupied these territories in 1967 during a war it saw as designed to remove an immediate and existential military threat originating, <i>inter alia</i>, from these territories. This security threat served as the basis for Security Council Resolution 242 (1967), adopted several months after the Six-Day War, which introduced the “land for peace” formula, according to which a just and lasting peace in the Middle East will be based on withdrawal from occupied territories <i>and</i> “acknowledgement of the sovereignty, territorial integrity and political independence of every State in the area and their right to live in peace within secure and recognized boundaries free from threats or acts of force.” The same formula was reiterated by the Council after the 1973 war in Resolution 338 (1973).

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	more recently, the ongoing Gaza war. As pointed out earlier in this opinion, the Security Council has hitherto taken cognizance of Israel's legitimate security concerns and called for a withdrawal that occurs concurrently with effective security guarantees, as reflected in its resolutions 242 (1967) and 338 (1973).	Source: Yuval Shany and Amichai Cohen, "No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories," <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
27	57. The practical requirement that withdrawal from Palestinian territory should be accompanied by effective security guarantees was also central to the Oslo Accords and the interim agreements between Israel and the PLO, which led to the establishment of the Palestinian Authority to which Israel transferred powers of governance over parts of the OPTs. Indeed, the collapse of the Oslo process was brought about by Israel's unwillingness to continue its withdrawal from the occupied territories in the absence of effective security guarantees from the Palestinian side. At that time, instead of security guarantees, Israel was experiencing suicide bombings emanating from the OPTs during the periods 1994-1997 and 2000-2006, which led to a slowing down and eventual halt of the withdrawal exercise. Conversely, the only time Israel has unilaterally withdrawn from the Gaza Strip in 2005 and not insisted on concurrent security guarantees for itself, the results have been disastrous for Israel.	The principle that withdrawal from territories should be accompanied by effective security guarantees was also central to the interim agreements between Israel and the PLO, which established in the 1990s the Palestinian Authority and transferred to it powers of governance over parts of the occupied territories, including in the field of public order and internal security, while Israel retained overall security responsibility over the area (1995 Interim Agreement, article X). It was also agreed between the parties that final status negotiations will address security arrangements (1993 Declaration of Principles, art. V). The collapse of the Oslo Process stems, to a large extent, from the inability of the parties to continue Israeli withdrawals, while affording to it reasonable security guarantees from the Palestinian side – two waves of suicide bombing attacks from the occupied territories in the periods 1994-1997 and 2000-2006 have coincided with the slowing of the withdrawal process to a halt, the resumption of extensive Israeli settlement activity in the West Bank and East Jerusalem, the occasional reentry of Israeli forces to PA-run areas (designated as Areas A under the 1995 Interim Agreement) and the construction of the separation barrier/wall. What's more, it may be well argued that the one major attempt to undertake unilateral withdrawal from territories

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		occupied in 1967 without making security arrangements – the 2005 withdrawal from the Gaza Strip – has led to disastrous consequences Source: Yuval Shany and Amichai Cohen, “No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories,” <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
28	58. In particular, the Advisory Opinion does not consider the tense security situation in the West Bank, which renders it practically impossible for Israeli forces to unilaterally withdraw from occupied territories without putting in place security guarantees for the hundreds of Israeli citizens or settlers (including those that hold valid titles to private land predating 1948) who would remain under Palestinian control. The situation could become dangerously volatile for any Israeli citizen left behind, if a unilateral withdrawal by Israel from the disputed territories would lead to a power vacuum that would be filled, as in the case of the Gaza Strip, by Hamas or other extremist groups	One relevant “reality” which the ICJ might need to consider in this regard is the tense security situation in the region, which renders practically impossible a unilateral withdrawal of Israeli forces from the occupied territories without putting in place security guarantees for the many tens of thousands of Israeli citizens who would remain under Palestinian control or, alternatively, swiftly evicting those citizens (including those who hold valid titles to private land, sometimes predating 1948). The situation could become particularly dangerous for any citizens left behind (as well as for citizens in Israel proper), if a unilateral withdrawal from the West Bank would lead to a power vacuum that would be filled, like in the case of the Gaza Strip, by Hamas or another extremist group. Source: Yuval Shany and Amichai Cohen, “No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories,” <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
29	C. 3. Need to balance competing sovereignty claims 59. Another complex issue which is relevant to analysing the legal consequences of the illegality of Israel’s policies and practices is the fact that	Competing Sovereignty Claims Another complication factor, which is relevant to analyzing the legal consequences of the illegality of Israel’s policies and practices, is the fact that Israel has its own sovereignty claims

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	Israel has its own sovereignty claims regarding parts of the territory which the international community views as the OPT, an issue not given any attention by most participants. Although there appears to be a broad international consensus around the proposal that the two-State solution should be implemented based on Israel's 1967 borders, such political consensus cannot, in and of itself, bestow title to territory where none exists under international law, or remove title over territory where such title legally exists. Determination of sovereignty may entail, for example, taking cognizance of and treating differently, areas where there was a predominantly Jewish presence pre-1948 (e.g. the Jewish Quarter of Old Jerusalem or Gush Etzion) vis-à-vis other areas from which Israel unilaterally withdrew (e.g. the Gaza Strip). Requiring Israel's "immediate, total and unconditional" withdrawal would be tantamount to denying Israel's legal claims pertaining to parts of those territories.	regarding parts of the territory which the international community views as the OPT (see e.g., GA Res. 77/126). Although there is a broad international consensus around the proposition that the two-state solution should be implemented on the basis of Israel's 1967 borders (see e.g., Oman oral submissions at p. 33, UK oral submissions at p. 22), such political consensus cannot, in of itself, bestow title to territory where none exists under international law, or remove title over territory where such title legally exists. The question of legal title over the territories occupied by Israel in 1967 from Jordan and Egypt, is complex and exceeds the scope of this article (for different views on the competing Israeli and Palestinians claims, see e.g., here and here). It may involve, for example, a difference in treatment of areas where there was significant Jewish presence pre-1948 (e.g., the Jewish Quarter of Old Jerusalem or Gush Etzion) and areas which Israel has unilaterally withdrawn from (e.g., the Gaza Strip). Yet, acceding to the demand for immediate, <i>total</i> and unconditional withdrawal might effectively result in the rejection of Israel's legal claims pertaining to parts of the territories. Source: Yuval Shany and Amichai Cohen, "No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories," <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
30	60. To determine the competing sovereignty claims, the Court would need to shift its focus from a review of "Israel's policies and practices in the OPTs" to a review of Israel and Palestine's competing sovereignty claims over	In order to do so, the Court would have to shift some of the focus of the proceedings from a review of Israel's policies and practices in the occupied territories to a review of competing sovereignty claims over different parts of

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	different parts of the OPTs, notwithstanding that such matters were not sufficiently argued during these proceedings. Clearly these are complex issues that rightly call for a negotiated, rather than judicial settlement. This is yet another reason why resolution 242 calls for an agreement leading to “termination of all claims” and the acknowledgment of “secure and recognized boundaries”. This is also why the Oslo Accords envisioned final status negotiations over borders. In this respect, Israel’s occupation is different from cases of decolonization (covered by resolution 1514) or termination of League of Nations Mandates (as described in the 1971 <i>Namibia</i> Opinion) where in both cases the occupying Power had no plausible sovereignty claim to any part of the territory in question. It is also different from the <i>Chagos</i> Opinion where the legal dispute underlying the competing sovereignty claims was relatively straightforward and was properly argued before the Court.	the occupied territories, notwithstanding the fact that such matters were not properly argued during the advisory proceedings (and arise only incidentally from the request for an advisory opinion). This would arguably require the Court to engage in a detailed analysis of the historical events in <i>Eretz Yisrael</i>/Palestine in a manner that would exceed the short historical survey found in the 2004 <i>Wall</i> advisory opinion (note that those earlier proceedings dealt with the legality of specific measures undertaken in parts of the occupied territories and not with the more far-reaching question of the legality of presence in all of the occupied territories; incidentally, the limited treatment of the sovereignty issues in the <i>Wall</i> opinion was also not based on proper legal argumentation, given Israel’s limited participation in those earlier proceedings as well). By contrast, a negotiated settlement could conclusively resolve the territorial (and other) dimensions of the Israeli-Palestinian conflict. This is why Resolution 242 (in which the position on the extent of withdrawal required is infamously ambiguous; but see here and here) calls for an agreement leading to “termination of all claims” and the acknowledgement of “secure and recognized boundaries.” This is also why the Oslo Accords envisioned final status negotiations over borders. In this respect, the case of the Israeli occupation is different from cases of decolonization (covered by Resolution 1514) or termination of League of Nations mandate (addressed in the 1971 <i>Namibia</i> advisory opinion), where the foreign power had no plausible sovereignty claim to any part of the territory in question. It is also different from the <i>Chagos</i> case, where the legal

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		dispute underlying the competing sovereignty claims was relatively simple and properly argued before the Court. Source: Yuval Shany and Amichai Cohen, “No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories,” <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
31	61. Finally, I have serious doubts as to whether it is appropriate to apply the 1928 <i>Chorzów Factory</i> principle of “reparations” (as a remedy that “must, as far as possible, wipe out all the consequences of the [alleged] illegal act and reestablish the situation which would, in all probability, have existed if that act had not been committed”) to all of Israel’s violations of international law	Finally, the fact that Israel’s policies and practices in the occupied territories have dramatically changed the reality on the ground raises questions relating to the application of the 1928 <i>Chorzów Factory</i> formulation of “reparation” — as a remedy that “must, as far as possible, wipe out all the consequences of the illegal act and reestablish the situation which would, in all probability, have existed if that act had not been committed” — to all of Israel’s international law violations. Source: Yuval Shany and Amichai Cohen, “No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories,” <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
32	62. Besides, in most if not all cases of decolonization or termination of League of Nations or UN Mandates where the occupying or colonial power has benefitted from decades of plundering the natural and mineral resources in the occupied territory or colony, the people of those territories have upon attainment of self-determination, not received any reparations for their loss, much less that restoring them to the <i>status quo ante</i>! The situation in this part of the Middle East is different because as has been shown in the historical context, Israel is not a colonizer. It was Britain that originally held the mandate for Palestine, and the State of Israel was the only State to emerge	It is interesting to note that, in somewhat comparable circumstances, the European Court of Human Rights opined in the 2010 <i>Demopoulos</i> case (involving Northern Cyprus), that “the Court finds itself faced with cases burdened with a political, historical and factual complexity flowing from a problem that should have been resolved by all parties assuming full responsibility for finding a solution on a political level. This reality, as well as the passage of time and the continuing evolution of the broader political dispute must inform the Court’s interpretation and application of the Convention which cannot, if it is to be coherent and

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	as an independent State, inheriting the whole of the disputed territory under <i>uti possidetis juris</i>. Without first ascertaining and balancing the competing sovereignty and territorial claims of the concerned parties, it is, in my view, unrealistic and simplistic to recommend the kind of reparations referred to in the Advisory Opinion. The European Court of Human Rights, in comparable circumstances, opined in the 2010 <i>Demopoulos</i> case involving Northern Cyprus, with which opinion I would agree in the present case, that: “The Court finds itself faced with cases burdened with a political, historical and factual complexity flowing from a problem that should have been resolved by all parties assuming full responsibility for finding a solution on a political level. This reality, as well as the passage of time and continuing evolution of the broader political dispute must inform the Court’s interpretation and application of the Convention which cannot, if it is to be coherent and meaningful, be either static or blind to the concrete factual circumstances.”⁷² ⁷² <i>Demopolous</i> et al. versus <i>Turkey</i>, Decision 1,3,2010 G.C.	meaningful, be either static or blind to concrete factual circumstances.” Source: Yuval Shany and Amichai Cohen, “No Simple End: The ICJ and remedies for illegal practices in the Occupied Territories,” <i>Just Security</i>, 12/3/2024, accessed on 30/7/2024, at: https://tinyurl.com/yh23dpft.
33	63. In my respectful view, the approach taken by the majority in rendering the Advisory Opinion is fundamentally flawed as it fails to consider important legal principles and propositions in international law, governing the Israeli-Palestinian question. The Court’s analysis of the status of the territories recaptured by Israel in 1967 and any legal pronouncements on the status of those territories, should have been guided by the following principles of international law.	The analysis of the status of Jerusalem and the territories captured by Israel in 1967, and any legal pronouncements on the status of those territories, should be guided by the following principles of international law: Source: “The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (thinc), <i>Discussion Paper</i> (2017), p. 3, accessed on 30/7/2024, at: https://tinyurl.com/3a5fuu49.

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34	65. Not all international expressions of norms take on the character of binding law. And yet the Advisory Opinion treats all UN resolutions quoted therein, as creating binding legal obligations which is not necessarily true. For instance, the UN General Assembly's or Security Council's legal views do not automatically become international law. They only serve as proof of customary international law if they represent widespread State practices and the collective belief that such practices are legally required (<i>opinion juris</i>). Meanwhile, the international legal framework also acknowledges policy statements that carry no legal weight and do not impose any legal obligations. Many of the UN General Assembly and Security Council resolutions referring to the Israeli-Palestinian conflict are examples of non-binding statements of policy. Resolution 242 is an example of a non-binding recommendation by the Security Council issued in response to the Israeli-Arab Six-Day War in June 1967. This resolution emphasized the necessity of negotiations and suggested guidelines for the parties during their negotiations. Another example is General Assembly resolution 194 (1948) which is relied upon for the assertion that Palestinian refugees have "a right of return". Rather than creating a binding obligation on Israel, this resolution was no more than an expression of policy in relation to refugees resulting from the 1947-1949 Israeli-Palestinian conflict. Similarly, the statement or inference that the two-State solution is mandatory or necessary to achieve a just, lasting and comprehensive peace, is another non-binding policy statement.	It is a foundational principle of international law that not all international expressions of norms take on the character of binding law. For instance, legal opinions articulated by the UN General Assembly or the Security Council do not in and of themselves constitute international law, and only constitute evidence of customary international law to the extent to which they reflect the common practice of states, as well as the universal opinion of states that such practice is dictated by the norms of international law (the technical term for this is "opinio juris"). The international legal system recognizes the possibility of policy statements which are not legally binding, and this is an important tool for diplomats, who can make pronouncements of commitment without being thought to have created legal obligations. Statements of policy, some of which may be called "soft law", include "normative provisions contained in non-binding texts" and may be found in a wide range of instruments. Although such statements may have some political consequences, they are by their very nature not legally binding or enforceable. Although statements of policy may express noble aspirations, and may, over time, become recognized as reflecting customary international law, or even stimulate sovereign states to promulgate or negotiate legislation or conventions, by definition 'soft law' lacks authority to bind states. Many UN General Assembly and Security Council Resolutions referring to the Israel-Palestine conflict are examples of soft law. UN Security Council Resolution 242 is a good example. This Resolution was a non-binding recommendation by the Security Council issued in response to the Israel-Arab Six Day War in June

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		1967. This Resolution emphasized the necessity of negotiations and suggested guidelines for the parties to consider during their negotiations. Another example is UN General Assembly Resolution 194 (1948), which is relied on for the assertion that Palestinian refugees have a “right of return.” Rather than being a binding instrument, this resolution was no more than an expression of policy in relation to refugees resulting from the 1947-1949 Israel-Palestine conflict. The statement or inference that the “two-State solution” is mandatory or necessary in order to achieve a just, lasting and comprehensive peace, is a statement of policy, not law. Source: “The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (thinc), <i>Discussion Paper</i> (2017), pp. 5–6, accessed on 30/7/2024, at: https://tinyurl.com/3asfuu49.
35	68. The General Assembly’s questions contained in resolution 77/247 rest on certain assumptions, namely that: (1) all the territories held during the Jordanian and Egyptian occupation within the 1949 Armistice Lines are automatically the sovereign territories of Palestine, and thus not of Israel; (2) that Israel’s presence in the West Bank, the Gaza Strip and Jerusalem is without any legal justification; (3) Israel’s presence in these areas violates Palestinian rights; (4) this territory is “Palestinian”; and (5) that Israel’s policies and practices are annexational and necessarily “aimed at altering the demographic composition, character and status of . . . Jerusalem”. While the language of resolution 77/247 portrays these assumptions as having been established already, I am	38. Mr President and Members of this honourable Court, the events of 7 October 2023 have shown us what could happen if there were a complete and unconditional withdrawal without the necessary arrangements in place to guarantee the security of Israel and its population. At the very least, the Court would need to examine and evaluate evidence concerning the question whether the 1949 Armistice Lines are “secure boundaries” within the meaning of resolutions 242 and 338. This in turn would require examination of the threats facing Israel emanating from the occupied territories and the broader region. 39. Second, territorial sovereignty. Mr President and Members of the Court, the

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	not sure that these issues are as straightforward as they appear. Consequently, it falls to the Court to carry out its obligation to unpack, test and verify these assumptions, both for the purpose of determining whether it should exercise its jurisdiction and ultimately, in delivering the requested opinion. At the very least, the Court would need to examine and evaluate evidence concerning whether the 1949 Armistice Lines are “secure boundaries” within the meaning of Security Council resolutions 242 and 338. This, in turn, would require examination of the threats facing Israel emanating from the OPTs and the broader region. In the context of the questions put to the Court, determination of territorial sovereignty is critical because without clarifying the respective claims of both parties to the conflict, it would be impossible to answer the question of territorial scope of the Palestinian self-determination claim or of Israel’s withdrawal from territory considered occupied. Furthermore, the Court would need to determine the territory over which Palestinians claim sovereignty and whether Palestine has historically made different assertions before different fora.	General Assembly’s request speaks of Israel’s “prolonged occupation, settlement and annexation of the Palestinian territory occupied since 1967”. This asks the Court to presuppose that all the territories held during the Jordanian and Egyptian occupation within the 1949 Armistice Lines are “Palestinian” — that is, that they are sovereign territories of Palestine and thus not of Israel. 41. In the context of the questions put to this Court, territorial sovereignty is critical because without clarifying the respective claims of Israel and the Palestinians concerning the sovereign status of the territory, it would be impossible to answer the questions of territorial scope of the Palestinian self-determination claim or the occupation. 44. Furthermore, the Court would need to assess whether the Palestinians have sovereignty and, if so, over which territory. This would include an examination, among other things, of the history of Palestinian assertions of claims and of whether Palestinians make different assertions of sovereignty in different fora. Source: International Court of Justice, “Public Sitting Held on Monday 26 February 2024, at 3 p.m., at the Peace Palace, President Salam Presiding, on the Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem (Request for Advisory Opinion Submitted by the General Assembly of the United Nations)” (2024), pp. 21–23, accessed on 30/7/2024, at: https://tinyurl.com/3vvahcu [the speaker represented the island State of Fiji; paragraphs highlighted not in continuous sequence in the original].

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36	E. <i>Uti possidetis juris</i> and the borders of Israel on the eve of independence 70. Under international law there are several principles upon which legally enforceable borders are established, including effective control, historical title, and treaties. <i>Uti possidetis juris</i> is one of the main principles of customary international law intended to ensure stability, certainty and continuity in the demarcation of territorial boundaries of States emerging from decolonization or mandates such as the British Mandatory Palestine. In effect, the principle of <i>uti possidetis juris</i> transforms the colonial and administrative lines existing at the moment of birth of the new State into national borders. The principle applies to the State, as it is “at the moment of independence”, i.e. to the “photograph” of the territorial situation existing then. As the Court explained in the <i>Burkina Faso/Republic of Mali</i> case, the doctrine ensures that: “By becoming independent, [the] new State acquires sovereignty with the territorial base and boundaries left to it by the [administrative boundaries of the] colonial power . . . [The principle of <i>uti possidetis juris</i>] applies to the State as it is [at that moment of independence], i.e., to the ‘photograph’ of the territorial situation then existing. The principle of <i>uti possidetis [juris]</i> freezes the territorial title; it stops the clock”⁷⁵. ⁷⁵ <i>Frontier Dispute (Burkina Faso/Republic of Mali)</i>, Judgment, I.C.J. Reports 1986, p. 568, para. 30.	International law contains <u>several principles upon which legally enforceable borders can come into existence. These include: effective control; historical title; and treaties.</u> In recent years, many legal judgments, including the rulings of the International Court of Justice regarding border disputes in Asia and Africa, and examinations by lawyers regarding issues such as the borders of the new states emerging from Yugoslavia and the former Soviet Union, have emphasized that the most persuasive principle for determining the borders of new states is the doctrine known as <i>uti possidetis juris</i>. The borders of the state of Israel, no less than those of other states, are subject to this doctrine. <u><i>Uti possidetis juris</i> is one of the main principles of customary international law intended to ensure stability, certainty and continuity in the demarcation of boundaries. The principle acts to clarify and determine the territorial boundaries of newly emerging states by providing that states emerging from decolonization or mandates shall presumptively inherit the colonial administrative borders that existed at the time of independence. In effect, the principle of <i>uti possidetis juris</i> transforms the colonial and administrative lines existing at the moment of the birth of the new State into national borders. The principle applies to the State as it is [at the moment of independence], i.e. to the ‘photograph’ of the territorial situation then existing.</u> Source: “The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (rhinc), <i>Discussion Paper</i> (2017), p. 9, accessed on 30/7/2024, at: https://tinyurl.com/3a5fuu49.

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Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
		Using the doctrine of <i>uti possidetis juris</i> to resolve borders is relatively straightforward. As the International Court of Justice explained in the Burkina Faso case, the doctrine ensures that: By becoming independent, [the] new State acquires sovereignty with the territorial base and boundaries left to it by the [administrative boundaries of the] colonial power. . . . [The principle of <i>uti possidetis juris</i>] applies to the State as it is [at that moment of independence], i.e., to the “photograph” of the territorial situation then existing. The principle of <i>uti possidetis [juris]</i> freezes the territorial title; it stops the clock. . . .⁵⁶ ⁵⁶ <i>In re Frontier Dispute (Burk. Faso/ Mali)</i>, Judgment, 1986 I.C.J. 554, 568, ¶ 30 (Dec. 22). Source: Abraham Bell and Eugene Kontorovich, “Palestine, <i>Uti Possidetis Juris</i>, and the Borders of Israel,” <i>Arizona Law Review</i>, vol. 58 (2016), p. 644.
37	71. The Court further observed in the case of <i>Land, Island and Maritime Frontier Dispute (El Salvador/ Honduras: Nicaragua intervening)</i> that <i>uti possidetis juris</i> is a “retrospective principle, investing as international boundaries administrative limits intended originally for quite other purposes”⁷⁶. In applying the doctrine, one does not ask whether the law at the time of the “photograph” viewed the administrative lines as international boundaries. Indeed, it is quite plain that the borderlines are not expected to have been international boundaries at the time of the “photograph”. Thus, for instance, in	As the International Court of Justice observed in the case of <i>Land, Island and Maritime Frontier Dispute (El Salvador/Honduras: Nicaragua intervening)</i>, <i>uti possidetis juris</i> is a “retrospective principle, investing as international boundaries administrative limits intended originally for quite other purposes.”⁷⁷ In applying the doctrine, one does not ask whether the law at the time of the “photograph” viewed the administrative lines as international boundaries. Indeed, it is quite plain that the borderlines are not expected to have been international boundaries at the time of the “photograph.” Thus, for instance, in the Burkina Faso case, the

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	the <i>Burkina Faso</i> case, the Court did not have to inquire whether <i>uti possidetis juris</i> was a binding rule of international law at the time of decolonization. It was enough for the Court that <i>uti possidetis juris</i> was a binding rule of international law at the time the Court resolved the border dispute. ⁷⁶ <i>Land, Island and Maritime Frontier Dispute (El Salvador/ Honduras: Nicaragua intervening)</i>, Judgment, I.C.J. Reports 1992, p. 388, para. 43.	court did not have to inquire whether <i>uti possidetis juris</i> was a binding rule of international law at the time of decolonization. It was enough for the court that <i>uti possidetis juris</i> was a binding rule of international law at the time the court resolved the border dispute. ⁵⁷ <i>In re Land, Island and Maritime Frontier Dispute (El Sal./Hond., Nicar. intervening)</i>, Judgment, 1992 I.C.J. 351, 388 (Sept. 11). Source: Abraham Bell and Eugene Kontorovich, "Palestine, <i>Uti Possidetis Juris</i>, and the Borders of Israel," <i>Arizona Law Review</i>, vol. 58 (2016), p. 644.
38	72. As stated above, when Britain terminated its stewardship over what was left of the Mandate for Palestine in 1947⁷⁷, according to the principle of <i>uti possidetis juris</i>, the administrative boundaries of the Mandate for Palestine on 14 May 1948 became the borders of the independent State of Israel (the only State to emerge from Mandatory Palestine at the time of Britain's withdrawal). Those borders were as follows: (1) To the west the Mediterranean Sea was the border. (2) The eastern boundary of the Mandate was the Jordan River, and a line extending south from the Dead Sea (into which the Jordan River empties), to the Red Sea near Aqaba, separating Palestine it from Transjordan. (3) To the north, the boundary with the French Mandate for Syria and Lebanon, which was agreed upon in the Franco-British boundary agreements of 1920 and 1923. (4) To the south, the border with Egypt, running along the Negev Desert. These borders remained until the termination of the British Mandate on	In 1947 Britain decided to terminate her stewardship of the Mandate for Palestine and notified the United Nations accordingly. It should be noted that <i>the Mandate itself was not terminated</i> but only Britain's stewardship of it. Applying the principle of <i>uti possidetis juris</i> to the borders of the State of Israel (the only state to emerge in Palestine upon the withdrawal of Great Britain), the administrative boundaries of the Mandate for Palestine on 14th May 1948 became the borders of the State of Israel that came into existence upon the proclamation of its independence on that date. On 15th May 1948, Great Britain, the Mandatory for Palestine, officially departed. The eastern boundary of the Mandate on 14th May 1948 was the Jordan River, and a line extending south from the Dead Sea (into which the Jordan River empties) to the Red Sea near Aqaba. (The Mandate had originally included the territory of Transjordan, but Transjordan was administratively separated from Palestine in 1922, with the approval of

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	15 May 1948, and the subsequent Declaration of Independence by the State of Israel (see map in Figure 2). ⁷⁷ The Mandate for Palestine originally included the territory of Transjordan, but that territory was with the approval of the League of Nations, administratively separated from the Mandate in 1922 and granted its independence by Britain in 1946.	the League of Nations, and granted its independence by Britain in 1946.) Source: “The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (thinc), <i>Discussion Paper</i> (2017), p. 9, accessed on 30/7/2024, at: https://tinyurl.com/3a5fuu49.
39	73. Israel’s independence would thus appear to fall squarely within the bounds of circumstances that trigger the principle of <i>uti possidetis juris</i>. Applying the rule would appear to dictate that Israel’s borders are those of the Palestine Mandate that preceded it, except where otherwise agreed upon by Israel and its relevant neighbours. Indeed, Israel’s peace treaties with neighbouring States to date — with Egypt and Jordan — appear to reinforce it. These treaties ratify borders between Israel and its neighbours explicitly based on the boundaries of the British Mandate of Palestine. Likewise, in demarcating the so-called “Blue Line” between Israel and Lebanon in 2000, the United Nations Secretary General relied upon the boundaries of the British Mandate of Palestine⁷⁹. Given the location of the borders of the Mandate of Palestine, applying the doctrine of <i>uti possidetis juris</i> to Israel would mean that Israel has territorial sovereignty over all the disputed areas of Jerusalem, the West Bank, and Gaza, except to the degree that Israel has voluntarily yielded sovereignty since its independence. This conclusion stands in opposition to the widely espoused position that	Israel’s independence would thus appear to fall squarely within the bounds of circumstances that trigger the rule of <i>uti possidetis juris</i>. Applying the rule would appear to dictate that Israel’s borders are those of the Palestine Mandate that preceded it, except where otherwise agreed upon by Israel and its relevant neighbor. And, indeed, rather than undermine the application of <i>uti possidetis juris</i>, Israel’s peace treaties with neighboring states to date—with Egypt and Jordan—appear to reinforce it. These treaties ratify borders between Israel and its neighbors explicitly based on the boundaries of the British Mandate of Palestine. Likewise, in demarcating the so-called “Blue Line” between Israel and Lebanon in 2000, the United Nations Secretary General relied upon the boundaries of the British Mandate of Palestine.²³ Given the location of the borders of the Mandate of Palestine, applying the doctrine of <i>uti possidetis juris</i> to Israel would mean that Israel has territorial sovereignty over all the disputed areas of Jerusalem, the West Bank, and Gaza, except to the degree that Israel has voluntarily yielded sovereignty since its independence. This conclusion stands in opposition to the widely espoused position that international

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	international law gives Israel little or no sovereign claim to these areas⁸⁰. ⁷⁹ See UN Secretary-General, <i>Report of the Secretary-General on the Implementation of Security Council Resolutions 425 (1978) and 426 (1978)</i>, ¶ 6 n.1, UN doc. S/2000/590 (16 June 2000) (“As noted in my report of 22 May, the international boundary between Israel and Lebanon was established pursuant to the 1923 Agreement between France and Great Britain entitled ‘Boundary Line between Syria and Palestine from the Mediterranean to El Hamme’, which was reaffirmed in the ‘Israeli-Lebanese General Armistice Agreement’ signed on 23 March 1949.”). ⁸⁰ See e.g. Barack Obama, President, US, Remarks by the President on the Middle East and North Africa (11 May 2011), https://www.whitehouse.gov/the-pressoffice/2011/05/19/remarks-president-middle-east-and-north-africa; David Cameron, Prime Minister, UK, Mahmoud Abbas, President, Palestine, David Cameron and Mahmoud Abbas Press Conference (13 March 2014), https://www.gov.uk/government/speeches/pressconference-in-jerusalem.	law gives Israel little or no sovereign claim to these areas.²⁵ ²³ See U.N. Secretary-General, <i>Report of the Secretary-General on the Implementation of Security Council Resolutions 425 (1978) and 426 (1978)</i>, ¶ 6 n.1, U.N. Doc. S/2000/590 (June 16, 2000) (“As noted in my report of 22 May, the international boundary between Israel and Lebanon was established pursuant to the 1923 Agreement between France and Great Britain entitled ‘Boundary Line between Syria and Palestine from the Mediterranean to El Hamme’, which was reaffirmed in the ‘Israeli-Lebanese General Armistice Agreement’ signed on 23 March 1949.”). ²⁵ See, e.g., Barack Obama, President, U.S., Remarks by the President on the Middle East and North Africa (May 11, 2011), https://www.whitehouse.gov/the-pressoffice/2011/05/19/remarks-president-middle-east-and-north-africa; David Cameron, Prime Minister, U.K., Mahmoud Abbas, President, Palestine, David Cameron and Mahmoud Abbas Press Conference (Mar. 13, 2014), https://www.gov.uk/government/speeches/press-conference-in-jerusalem. Source: Abraham Bell and Eugene Kontorovich, “Palestine, <i>Uti Possidetis Juris</i>, and the Borders of Israel,” <i>Arizona Law Review</i>, vol. 58 (2016), pp. 637–38.
40	74. On the eve of the British withdrawal, on 14 May, Jewish authorities declared the independence of the Jewish State in Palestine, called Israel⁸¹. Local Arab authorities, on the other hand, while rejecting the Jewish State, did not declare or otherwise move	As the British exited on May 15, all the neighboring Arab states, including Transjordan (which had received independence from Britain in 1946), as well as some Arab states not neighboring Palestine, invaded in order to prevent the emergence of a Jewish state. On the

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Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	to create an Arab State in Palestine. Israel's Declaration of Independence was immediately followed by the outbreak of the 1948 Arab-Israeli War as five Arab States (including Jordan, which had received independence from Britain in 1946, Egypt, Iraq, Lebanon and Syria) that were opposed to the establishment of a Jewish State in the region, invaded the newly independent State. The war ended by late 1948, with Israel controlling roughly three quarters of the territory of the Palestine Mandate. The remaining territory was conquered by Syria, Egypt, and Jordan. Egypt ruled the conquered parts of Palestine (the Gaza Strip) by military administration. Jordan occupied part of that territory which became known as the West Bank, while Egypt occupied Gaza. Jerusalem was divided between Israeli forces in the West and Jordanian forces in the East, while Transjordan and Syria treated the conquered areas as part of their municipal territories. No other Arab State claimed sovereignty within the area. Syria⁸³, Egypt⁸⁴, and Jordan⁸⁵ all signed armistice agreements with Israel, marking the lines between the territory controlled by Israel and the lands conquered by the Arab States. However, the armistice agreements were clear in stating that the armistice lines were not boundaries and that the parties retained their claims to territorial sovereignty⁸⁶. Shortly thereafter, the Arab States that had conquered parts of Palestine imposed a military administration on the areas they had seized. In September, fearing a Transjordanian annexation of parts of Mandatory Palestine, Egypt initiated the creation of an Arab Government of "all Palestine", which, on 1 October,	eve of the British withdrawal, on May 14, Jewish authorities declared the independence of the Jewish state in Palestine, called Israel.²⁹⁶ Local Arab authorities, on the other hand, while rejecting the Jewish state, did not declare or otherwise move to create an Arab state in Palestine. Shortly thereafter, the Arab states that had conquered parts of Palestine imposed a military administration on the areas they had seized. In September, fearing Transjordanian annexation of parts of Mandatory Palestine, Egypt initiated the creation of an Arab government of "all Palestine," which, on October 1, declared an independent Arab state in all of Palestine. While six Arab states recognized the new "government" of Palestine, it never exercised any authority anywhere, and it quietly retired to anonymous offices in Cairo and then dissolution.²⁹⁹ The war ended by late 1948, with Israel controlling roughly three-quarters of the territory of the Palestine Mandate. The remaining territory was conquered by Syria, Egypt, and Jordan (the new name of Transjordan). Egypt ruled the conquered parts of Palestine (the Gaza Strip) by military administration, while Transjordan and Syria treated the conquered areas as part of their municipal territories. No other Arab state claimed sovereignty within the area. Syria,³⁰¹ Egypt,³⁰² and Jordan³⁰³ all signed armistice agreements with Israel, marking the lines between the territory controlled by Israel and the lands conquered by the Arab states. However, the armistice agreements were clear in stating that the armistice lines were not boundaries and that the parties retained their claims to territorial sovereignty.

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	declared an independent Arab State in all of Palestine. While six Arab States recognized the new “Government” of Palestine, it never exercised any authority anywhere, and it quietly retired to anonymous offices in Cairo and then dissolution ⁸⁸ .	²⁹⁶ DECLARATION OF ESTABLISHMENT OF STATE OF ISRAEL (May 14, 1948)
	⁸¹ Declaration Of Establishment Of State Of Israel (14 May 1948).	²⁹⁹ Avi Shlaim, <i>The Rise and Fall of the All-Palestine Government in Gaza</i> , 20 J. PALESTINE STUD. 37, 37–53 (1990).
	⁸³ See Armistice Agreement between Israel and Syria, Isr.-Syria, July 20, 1949, UN doc. S/1353.	³⁰¹ See Armistice Agreement between Israel and Syria, Isr.-Syria, July 20, 1949, UN Doc S/1353.
	⁸⁴ General Armistice Agreement between Egypt and Israel, Egypt-Isr., 13 December 1949, UN doc. S/1264/Rev. 1.	³⁰² General Armistice Agreement between Egypt and Israel, Egypt-Isr., Dec. 13, 1949, U.N. doc. S/1264/Rev. 1.
	⁸⁵ See Armistice Agreement between the Hashemite Kingdom of Jordan and Israel, Isr.-Jordan, 3 April 1949, UN doc. S/1302.	³⁰³ See Armistice Agreement between the Hashemite Kingdom of Jordan and Israel, Isr.-Jordan, Apr. 3, 1949, UN Doc S/1302.
	⁸⁶ Specifically, Article II.2 of the Armistice Agreement between Israel and Transjordan states that “[n]o provision in this Agreement shall in any way prejudice the rights, claims and positions of either party hereto in the ultimate peaceful settlement of the Palestine question”. Article VI.9 provides that “the Armistice Demarcation lines defined in Articles V and VI of this Agreement are agreed upon by the Parties without prejudice to future territorial settlement or boundary lines or to claims of either Party relating thereto”.	Source: Abraham Bell and Eugene Kontorovich, “Palestine, <i>Uti Possidetis Juris</i> , and the Borders of Israel,” <i>Arizona Law Review</i> , vol. 58 (2016), pp. 678–79.
	⁸⁸ Avi Shlaim, “The Rise and Fall of the All-Palestine Government in Gaza”, 20 J. Palestine Stud. 37, 37–53 (1990).	The 1949 Armistice Lines were the lines separating territory governed by Israel from the territory controlled by its neighbors (Egypt, Jordan, Lebanon and Syria) following the 1948-1949 Arab-Israeli war (also known as Israel’s War of Independence). The armistice lines were established in four agreements (the separate armistice agreements signed between Israel and each of its four neighbors) and reflected, with minor variations, the position of forces at the end of fighting. The Arab states, insisted that these lines would not establish legally binding borders. Specifically, Article II.2 of the Armistice Agreement between Israel and Transjordan states that “no provision in this agreement shall in any way prejudice the rights, claims and positions of either party hereto in the ultimate peaceful settlement of the Palestine question” and Article VI.9 provides that “[t]he Armistice Demarcation Lines defined in

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		<u>articles V and VI of this Agreement are agreed upon by the Parties without prejudice to future territorial settlements or boundary lines or to claims of either Party relating thereto.”</u> Source: “The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (thin), <i>Discussion Paper</i> (2017), p. 7, accessed on 30/7/2024, at: https://tinyurl.com/3a5fuu49.
41	75. A fourth armistice agreement was signed with Israel’s last neighbouring State — Lebanon⁸⁹. Because Lebanon had not succeeded in conquering and holding any of the territory of the Palestine Mandate, the armistice line with Lebanon coincided with the prior boundary of the Mandate. Nonetheless, the armistice line had an interesting feature. Like the armistice lines with Israel’s other neighbours, the armistice line with Lebanon was established as a military line, without prejudice to the parties’ claims to territorial sovereignty. ⁸⁹ See Lebanese-Israeli General Armistice Agreement, <i>Isr.-Leb.</i>, 23 March 1949, UN doc. S/1296/Rev. 1.	A fourth armistice agreement was signed with Israel’s last neighboring state—Lebanon.³⁰⁴ Because Lebanon had not succeeded in conquering and holding any of the territory of the Palestine Mandate, the armistice line with Lebanon coincided with the prior boundary of the Mandate. Nonetheless, the armistice line had an interesting feature. Like the armistice lines with Israel’s other neighbors, the armistice line with Lebanon was established as a military line, without prejudice to the parties’ claims to territorial sovereignty. ³⁰⁴ See Lebanese-Israeli General Armistice Agreement, <i>Isr.-Leb.</i>, March 23, 1949, U.N. Doc. S/1296/Rev. 1. Source: Abraham Bell and Eugene Kontorovich, “Palestine, <i>Uti Possidetis Juris</i>, and the Borders of Israel,” <i>Arizona Law Review</i>, vol. 58 (2016), p. 680.
42	76. The armistice lines, as established in 1949 and modified by minor adjustments in military lines between 1949 and 1967, are often referred to as the “1967 boundaries”⁹¹. Indeed, the Advisory Opinion has recommended that Israel withdraws from the disputed territory based on the “1967 boundaries”. However, the implication that the 1949 armistice lines became Israel’s legal	The armistice lines, as established in 1949 and modified by minor adjustments in military lines between 1949 and 1967, are often referred to as the “1967 boundaries.”³¹² As we have seen and will now discuss, the implication that the 1949 armistice lines became Israel’s legal borders is difficult to square with the doctrine of <i>uti possidetis juris</i>.

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	international borders is difficult to square with the doctrine of <i>uti possidetis juris</i>. <u>To give these lines the status of international borders would amount to approving the use of aggressive force by foreign States in 1967 against the Jewish people and the territorial integrity of the sovereign State of Israel, in violation of the prohibition under international law, of the use of force to acquire territory. As earlier stated, in the course of the first Arab-Israeli war, Egypt took control of the Gaza Strip, while Jordan and Iraqi forces occupied Judea, Samaria and East Jerusalem (redesignated as the West Bank). Jordan subsequently annexed Judea and Samaria illegally. This purported annexation was only officially recognized by three other States, but was rejected by the Arab League. Jordan's occupation and subsequent annexation of the "West Bank" was clearly in breach of international law, its control of the area having been obtained by force following an act of aggression and therefore having no effect on Israel's entitlement to sovereignty over the disputed territories upon independence.</u> That is why the said Armistice lines are not synonymous with legitimate territorial borders. ³¹² See e.g. Ethan Bronner, "Netanyahu Responds Icily to Obama Remarks," <i>New York Times</i>, 19 May 2011, at A9; Tim Lister, "Maps, Land and History: Why 1967 Still Matters," <i>CNN</i>, 24 May 2011, at IV.	³¹² See, e.g., Ethan Bronner, <i>Netanyahu Responds Icily to Obama Remarks</i>, N.Y. TIMES, May 19, 2011, at A9; Tim Lister, <i>Maps, Land and History: Why 1967 Still Matters</i>, CNN, May 24, 2011, at IV. Source: Abraham Bell and Eugene Kontorovich, "Palestine, <i>Uti Possidetis Juris</i>, and the Borders of Israel," <i>Arizona Law Review</i>, vol. 58 (2016), p. 681. Further, <u>to give these lines the status of borders would be to approve the use of aggressive force by foreign states against the Jewish people and (after 14th May 1948) the territorial integrity of the State of Israel by Israel's Arab neighbors in the first Arab-Israeli war (1948-1949), and therefore conflicts with the prohibition under international law of the use of force to acquire territory. In the course of the first Arab-Israeli war, Egypt took control of the Gaza Strip, while Jordanian and Iraqi forces occupied Judea, Samaria and East Jerusalem (including the Old City). Jordan subsequently annexed Judea and Samaria illegally. This purported annexation was only officially recognized by three other states (the UK, Iraq and Pakistan – and the latter did not recognize Jordan's annexation of East Jerusalem), and was rejected by the Arab League. Jordan's occupation and subsequent annexation of the "West Bank" was clearly in breach of international law, its control of the area having been obtained by force following an act of aggression, and therefore having no effect on the entitlement to sovereignty of the State of Israel over these territories upon its independence in 1948 (the issue of Israeli sovereignty over the "West Bank", including Jerusalem, and the Gaza Strip is</u>

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		discussed more fully in Legal Proposition 3 below).
		Source: “The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (thinc), <i>Discussion Paper</i> (2017), p. 7, accessed on 30/7/2024, at: https://tinyurl.com/3a5fuu49 .
43	77. Thus, while considerable efforts had been invested in creating and advancing proposals for altering the borders of the Jewish State of Israel and a contemplated companion Arab State (two-State solution), no such efforts have so far, succeeded in being implemented. Thus, it would appear that <i>uti possidetis juris</i> dictates recognition of the borders of Israel as coinciding with the borders of the Mandate as of 1948	At the same time, while considerable efforts had been invested in creating and advancing proposals for altering the borders of the ultimate Jewish state and a contemplated companion Arab state, no such efforts were crowned with the success of implementation. Thus, it would appear that <i>uti possidetis juris</i> dictates recognition of the borders of Israel as coinciding with the borders of the Mandate as of 1948
		Source: Abraham Bell and Eugene Kontorovich, “Palestine, <i>Uti Possidetis Juris</i> , and the Borders of Israel,” <i>Arizona Law Review</i> , vol. 58 (2016), pp. 681–82.
44	78. The borders, territorial sovereignty of both Israel and Palestine is another sensitive area the Court cannot simply presume to appreciate based on the one-sided narrative contained in the statements of the pro-Palestinian group of States. The General Assembly’s questions ask the Court to make a number of prejudicial assumptions or presumptions, including, (a) the illegality of Israel’s occupation including settlements and annexation of Palestinian territories occupied since 1967; (b) “ongoing violation by Israel of the right of the Palestinian people to self-determination”; (c) the fact that Israel’s policies and practices are necessarily “aimed at altering the demographic composition, character and status of . . . Jerusalem”; and (d) the “discriminatory character of Israel’s	38. Mr President and Members of this honourable Court, the events of 7 October 2023 have shown us what could happen if there were a complete and unconditional withdrawal without the necessary arrangements in place to guarantee the security of Israel and its population. At the very least, the Court would need to examine and evaluate evidence concerning the question whether the 1949 Armistice Lines are “secure boundaries” within the meaning of resolutions 242 and 338. This in turn would require examination of the threats facing Israel emanating from the occupied territories and the broader region.
		39. Second, territorial sovereignty. Mr President and Members of the Court, the General Assembly’s request speaks of Israel’s “prolonged occupation,

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	legislation and policies” in the OPT. The questions ask the Court to presuppose that all the territories held during the Jordanian and Egyptian occupation within the 1949 Armistice Lines are automatically the sovereign territories of Palestine, and thus not of Israel. I am not sure that this issue is as simple as it appears. At the very least, the Court would need to examine and evaluate evidence concerning whether the 1949 Armistice Lines are “secure boundaries” within the meaning of Security Council resolutions 242 and 338. This, in turn, would require examination of the threats facing Israel emanating from the OPTs and the broader region. In the context of the questions put to the Court, determination of territorial sovereignty is critical because without clarifying the respective claims of both parties to the conflict, it would be impossible to answer the question of the territorial scope of the Palestinian self-determination claim or of Israel’s withdrawal from territory considered occupied. Furthermore, the Court would need to determine the territory over which Palestinians claim sovereignty and whether Palestine has historically made different assertions before different fora. [This passage was plagiarized twice in Sebutinde’s dissent. See Row 35 above.]	settlement and annexation of the Palestinian territory occupied since 1967”. This asks the Court to presuppose that all the territories held during the Jordanian and Egyptian occupation within the 1949 Armistice Lines are “Palestinian” — that is, that they are sovereign territories of Palestine and thus not of Israel. 41. In the context of the questions put to this Court, territorial sovereignty is critical because without clarifying the respective claims of Israel and the Palestinians concerning the sovereign status of the territory, it would be impossible to answer the questions of territorial scope of the Palestinian self-determination claim or the occupation. 44. Furthermore, the Court would need to assess whether the Palestinians have sovereignty and, if so, over which territory. This would include an examination, among other things, of the history of Palestinian assertions of claims and of whether Palestinians make different assertions of sovereignty in different fora. Source: International Court of Justice, “Public Sitting Held on Monday 26 February 2024, at 3 p.m., at the Peace Palace, President Salam Presiding, on the Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, including East Jerusalem (Request for Advisory Opinion Submitted by the General Assembly of the United Nations)” (2024), pp. 21–23, accessed on 30/7/2024, at: https://tinyurl.com/3vvahhcu [The Speaker Represented the Island State of Fiji; paragraphs highlighted not in continuous sequence in the original].

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
45	79. As referred to earlier in this dissenting opinion, the Mandate for Palestine which was created by the Principal Allied Powers in 1920 following World War I and approved by the League of Nations in 1922, was primarily set up to reconstitute “a Jewish homeland in Palestine”. Accordingly, the Jewish people obtained certain rights to settle in Palestine — which not only included the now disputed territories of the Gaza Strip, the “West Bank”, and West Jerusalem, but also Transjordan. Whilst the exact nature of the rights conferred under the Mandate has been the subject of much discussion, the language of the Mandate shows that with respect to the territory then known as “Palestine”, the Jewish people were the main beneficiaries of those rights. By incorporating the Balfour Declaration in the Preamble to the Mandate (in which “His Majesty’s Government view with favour the establishment in Palestine of a national home for the Jewish people, and will use their best endeavours to facilitate the achievement of this object, it being clearly understood that nothing shall be done which may prejudice the civil and religious rights of existing non-Jewish communities in Palestine, or the rights and political status enjoyed by Jews in any other country”), the Mandate clearly confirmed the right of the Jewish people to settle, self-determine and live peacefully in the Mandate territory (or at least in the part that remained after Britain transferred 70 per cent of the Mandate Territory to Jordan). The Mandate of Palestine did not provide for any other partition, other than the separation of Transjordan. It has been argued that	2. Pursuant to the Mandate for Palestine, which was created further to the decision of the Principal Allied Powers in April 1920 and approved by the League of Nations in 1922, in order to reconstitute “a Jewish homeland in Palestine”, the Jewish people obtained certain legal rights to settle in Palestine - which included the Gaza Strip and what has later become known as the “West Bank”, including Jerusalem. Clearly, certain territorial rights and obligations were created and recognized by the Mandate instruments. While the exact nature of the rights conferred under the Mandate for Palestine has been the subject of much discussion, the language of the Mandate shows that, with respect to the territory then known as “Palestine”, the Jewish people were the main beneficiaries of those rights. By incorporating the Balfour Declaration in the Preamble to the Mandate (in which “His Majesty’s Government view with favor the establishment in Palestine of a national home for the Jewish people, and will use their best endeavors to facilitate the achievement of this object, it being clearly understood that nothing shall be done which may prejudice the civil and religious rights of existing non-Jewish communities in Palestine, or the rights and political status enjoyed by Jews in any other country”), the Mandate clearly confirmed the right of the Jewish people to self-determination in the territory then known as Palestine. Source: “The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (thinc), <i>Discussion Paper</i> (2017), pp. 3, 8, accessed on 30/7/2024, at: https://tinyurl.com/3asfuu49. Paragraphs highlighted not in continuous sequence in the original.

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	the Palestinian Arab population living within the Mandate also had and continue to have a right to self-determination. However, the founding documents of the Mandate (including General Assembly resolution 181 (1947)) are silent on the issue of the self-determination of Palestinian Arabs living within the Mandatory territory, implying that the question of their self-determination was perceived as one of “internal self-determination” that would require negotiation and mutual agreement. Be that as it may, <u>the rights of multiple nations to self-determination on a given territory should not disturb the application of the principle of <i>uti possidetis juris</i>.</u>	<u>The rights of multiple nations to self-determination on a given territory should not, prima facie, disturb application of the doctrine of <i>uti possidetis juris</i>.</u> Source: Abraham Bell and Eugene Kontorovich, “Palestine, <i>Uti Possidetis Juris</i>, and the Borders of Israel,” <i>Arizona Law Review</i>, vol. 58 (2016), p. 684.
46	81. International law arguably supports the right of Arab-Palestinians to self-determination but leaves it to the concerned parties (including the State of Israel which currently claims sovereignty over the disputed territory by virtue of <i>uti possidetis juris</i>) to agree upon the choice of means to fulfill that right. As is reflected in Security Council resolutions 242 and 338, international law does not allow the right to self-determination to conflict with the sovereign rights of an existing sovereign State, including its rights to territorial security and integrity, political independence and existing borders. If, pursuant to <i>uti possidetis juris</i>, all the territory covered by the Mandate of Palestine in May 1948 became the sovereign territory of Israel, then Palestinian self-determination will necessarily take a form of autonomy that does not conflict with Israel’s sovereignty and territorial integrity.	7. International law arguably supports a Palestinian right of self-determination but it leaves to the affected parties the choice of agreed-upon means to fulfill that right. The means of fulfilling the Palestinian right of self-determination are, therefore, ultimately a matter of policy rather than law. As is reflected in UNSC Resolutions 242 and 338, for example, international law does not allow the self-determination of a people to conflict with the sovereign rights of an existing state, including its rights to territorial integrity, political independence and secure and defensible borders. In this context, assuming the “Palestinians” are a people for the purposes of international law, the scope of their right to self-determination depends on the scope of Israel’s legitimate claims to territorial sovereignty. If, pursuant to <i>uti possidetis juris</i>, all of the territory covered by the Mandate for Palestine in May 1948 became the sovereign territory of the State of Israel, then Palestinian

(continued)

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
		self-determination will necessarily be limited to a form of autonomy that does not conflict with that sovereignty. Source: “The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (thinc), <i>Discussion Paper</i> (2017), pp. 4, 14, accessed on 30/7/2024, at: https://tinyurl.com/3a5fuu49. Paragraphs highlighted not in continuous sequence in the original.
47	88. State practice and <i>opinio juris</i> do not support the existence of a rule of customary international law providing that a lawfully created occupation may subsequently become illegal on account of passage of time. In its Advisory Opinion of 2004 on the <i>Wall</i>, the Court found Israel responsible for several breaches of the law of belligerent occupation, but it refrained from characterizing the Israeli occupation as “illegal”, or otherwise to opine on the legality of Israel’s presence in the West Bank. <u>The issue of whether and how to limit the duration of occupation, with emphasis on the Arab-Israeli situation, was a focus during the drafting process of the Additional Protocols. While Additional Protocol I did not contain a provision proscribing the length of an occupation, it did not adopt the approach of Article 6 (3). Instead, the drafters included Article 3 (b) which mandated application of the Conventions and the Protocol until the “general close of military operations and, in the case of occupied territories, on the termination of the occupation”. According to the Commentaries, it was argued that this provision would then supplant Article 6 (3).</u> Neither the Hague Regulations nor the Fourth Geneva Convention limits the duration of the occupation, nor requires	This article argues that the purview of the notion of illegal occupation in international law does not extend to occupation resulting from the lawful use of force by a state in self-defense (“lawfully created occupation”). The article reviews the various theories presented in support of such an extension, but shows that state practice does not support the existence of a rule of customary international law providing that a lawfully created occupation may subsequently become illegal. ¹¹⁸ [body text not included] Sabel, <i>supra</i> note 73, at 631 (“It is . . . telling that the International Court of Justice in its advisory opinion on the Legal Consequences of the Wall, an opinion which dealt at length with the status of the West Bank, refrained from characterizing the Israeli occupation as ‘illegal.’”). Rosalyn Higgins, a former judge at the ICJ, similarly noted that “there is nothing in either the [U.N.] Charter or general international law which leads one to suppose that military occupation, pending a peace treaty, is illegal.”⁶⁷ Former Israeli Chief Justice, Meir Shamgar, also rejected the notion of “illegal occupation,” stating that “pending an alternative political or military solution [occupation] . . . could, from a legal point of view, continue indefinitely.”

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	the occupant to restore the territories to the sovereign before a peace treaty is signed. Judge Rosalyn Higgins has similarly noted that “there is nothing in either the [UN] Charter or general international law which leads one to suppose that military occupation, pending a peace treaty, is illegal”¹⁰¹. ¹⁰¹ R. Higgins, “The Place of International Law in the Settlement of Disputes by the Security Council”, 64 <i>Am. J. Int’l L.</i> 1, 8 (1970).	Other commentators share this view. A review of conventional international law reveals no treaty provision that refutes these statements of law. Proponents of the “illegal occupation” notion have acknowledged that “neither the Hague Regulations nor the Fourth Geneva Convention limits the duration of the occupation or requires the occupant to restore the territories to the sovereign before a peace treaty is signed.” ⁶⁷ Rosalyn Higgins, <i>The Place of International Law in the Settlement of Disputes by the Security Council</i>, 64 <i>AM. J. INT’L L.</i> 1, 8 (1970). Source: Ariel Zemach, “Can Occupation Resulting from a War of Self-Defense Become Illegal?,” <i>Minnesota Journal of International Law</i>, vol. 24 (2015), pp. 313, 334, 326. Paragraphs highlighted not in continuous sequence in the original. <u>The issue of whether and how to limit the duration of occupation was therefore a focus during the drafting process of the Additional Protocols. While Additional Protocol I did not contain a provision proscribing the length of an occupation, it did not adopt the approach of Article 6(3). Instead, the drafters included Article 3(b), which mandated application of the Conventions and the Protocol until the “general close of military operations and, in the case of occupied territories, on the termination of the occupation.” According to the Commentaries, it was argued that this provision would then supplant Article 6(3).</u> Source: Joshua Kern and Anne Herzberg, “False Knowledge as Power: Deconstructing definitions of apartheid that delegitimise the Jewish state,” <i>NGO Monitor</i> (December 2021), p. 45.

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
48	89. The view that Israel's establishment of settlements in the disputed territories is illegal and amounts to unlawful "annexation" rests entirely on Article 49 (6) of the Fourth Geneva Convention, which provides that "the Occupying Power shall not deport or transfer parts of its own civilian population into territory it occupies". The Court has no probative evidence before it that (except possibly members of the Israeli Defence Forces), any of the Israeli citizens that have moved into the disputed area since 1967 were forced or coerced to do so by the Israeli Government. It is quite possible that some of the residents in these areas have legitimate title deeds predating 1967. Labelling all settlements in East Jerusalem and the West Bank as "illegal" both misrepresents the spirit and letter of Article 49 (6) of the Fourth Geneva Convention. Moreover, such a view contradicts Article 6 of the Mandate for Palestine which encouraged Jewish settlements throughout the Mandate and is wholly inapplicable based on Israel's claim to sovereignty pursuant to <i>uti possidetis juris</i>.	The claim that Israel's "establishment of settlements" is illegal rests entirely on Article 49(6) of the Fourth Geneva Convention, which provides that "[t]he Occupying Power shall not deport or transfer parts of its own civilian population into the territory it occupies." With the possible exception of military outposts, all Israelis who have moved into these areas since 1967 have done so voluntarily - they have not been coerced or forced to do so by the Israeli Government. Labelling all settlements in East Jerusalem and the "West Bank" as "illegal" both misinterprets and grossly oversimplifies the spirit and letter of Article 49(6) of the Fourth Geneva Convention. Moreover, it contradicts Article 6 of the Mandate for Palestine which encouraged Jewish settlement throughout Palestine, and it is wholly inapplicable based on Israel's claim to sovereignty pursuant to <i>uti possidetis juris</i>. Source: "The Hague Statement of Jurists on the Israel-Palestine Conflict," The Hague Initiative for International Cooperation (thinc), <i>Discussion Paper</i> (2017), p. 13, accessed on 30/7/2024, at: https://tinyurl.com/3a5fuu49.
49	90. As stated earlier, Israel and the representatives of the Arab-Palestinians chose to negotiate the terms of Palestinian autonomy or self-determination under the terms and conditions set out in the Oslo Accords which instruments remain valid and binding, notwithstanding that their practical implementation and impact have been significantly hindered by ongoing wars, change in Palestinian leadership and other political developments. Israel alone	Israel and the PLO have chosen to negotiate the terms of Palestinian self-determination under the terms and conditions set out in the Oslo agreements. Those agreements remain in force, and therefore provide the agreed framework within which the self-determination of the Palestinian people is to be determined. "Jerusalem" and "settlements" are amongst the issues which Israel and the PLO have agreed will be resolved in permanent status

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
	is not to blame for the decades-long impasse, as has been illustrated by the numerous wars and attacks that have been directed against that State by its adversaries. Final status issues, including permanent borders of a prospective Palestinian State, the administration of Jerusalem, and the return of refugees, are amongst the issues that the parties to the conflict agreed would be determined through negotiation. Seeking or obtaining unilateral recognition of Palestinian statehood or independence within the territory of a sovereign State breaches the Oslo Accords	negotiations. Seeking “unilateral” recognition of Palestinian statehood arguably breaches the terms of the Oslo Agreements. Source: “The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (thinc), <i>Discussion Paper</i> (2017), p. 15, accessed on 30/7/2024, at: https://tinyurl.com/3a5fuu49.
50	91. The complex arrangements made under the Oslo Accords dividing the disputed territories into Areas A, B and C, have arguably resulted in a special legal régime (<i>lex specialis</i>) in relation to the post-1967 territories. As instruments of international law, they impose a complex matrix of mutual rights and obligations, limiting the application of the general principle of law. The Oslo Accord II prohibits both parties from initiating “any step that will change the status of the West Bank [, including East Jerusalem,] and the Gaza Strip pending the outcome of permanent status negotiations”. The future status of these territories and the nature of an independent or autonomous Palestinian entity can only be settled through good-faith negotiations reflecting a balance of competing interests.	The complex arrangements made under the Oslo Agreements, dividing the territories into Areas A, B and C, have arguably resulted in a special legal regime (<i>lex specialis</i>) in relation to the “post-1967” territories. As instruments of international law, they impose a complex matrix of mutual rights and obligations, limiting the application of general principles of law. Given that Israel retains all “residual” powers not transferred to the Palestinian Council, it is arguable that - pending final agreement - the Oslo Agreements do not affect Israel’s underlying claims to territorial sovereignty with respect to the “West Bank”, including East Jerusalem, and the Gaza Strip. The Interim Agreement (1995) prohibits both parties from initiating “any step that will change the status of the “West Bank” and the Gaza Strip pending the outcome of the permanent status negotiations.” The future status of these territories and the nature of an independent Palestinian entity can only

(continued)

Row	What Judge Sebutinde Wrote	What Judge Sebutinde Plagiarized
		be settled through negotiations reflecting a balance of competing interests. Source: “The Hague Statement of Jurists on the Israel-Palestine Conflict,” The Hague Initiative for International Cooperation (thin), <i>Discussion Paper</i> (2017), p. 15, accessed on 30/7/2024, at: https://tinyurl.com/3a5fuu49.



FIGURE 4. Joan Donoghue. © Gemeente Den Haag.

Rewriting the Present

I love peasants and farmers; they are not scholarly enough nor educated enough to tell sophisticated lies

—Montesquieu

ABSTRACT—GLOSSARY

On 29 December 2023, South Africa filed an **Application** in the International Court of Justice. It alleged that Israel was in violation of the **1948 UN Convention on the Prevention and Punishment of the Crime of Genocide**. The purpose of the Court proceedings that commenced in January 2024—comprising both written submissions as well as oral **Public Sitzings**—was not, however, to make a determination whether or not Israel was committing genocide. That would be decided at a later date in the **merits** phase of the case. Instead, the aim of these proceedings was to determine whether or not Israel was **plausibly** committing genocide. If in fact it was, then the rights of Palestinians protected by the Genocide Convention were plausibly being violated—or, in the idiom of the Court’s jurisprudence, if Israel was plausibly committing genocide, then it would be violating the **plausible rights** of Palestinians. If it was further established that Palestinians plausibly faced **imminent, irreparable prejudice** to their rights under the Genocide Convention, the Court could, as a stopgap measure, **indicate provisional measures**, their purpose being to avert the plausible Israeli genocide and thereby protect the plausible rights of Palestinians until the Court made a final determination in the merits phase.

Introduction

On 26 April 2024, former president of the International Court of Justice Joan Donoghue dropped a bombshell during a BBC interview. Until then, controversy focused on how high was the Court's evidentiary bar when it concluded that Israel was "plausibly" committing genocide in Gaza. But during the interview, Donoghue denied that the Court had even found that Israel was plausibly committing genocide:

[T]he Court's test for deciding whether to impose measures uses the idea of plausibility. But the test is the plausibility of the *rights* that are asserted by the applicant, in this case South Africa. So the Court decided that the Palestinians had a plausible right to be protected from genocide, and that South Africa had the right to present that claim in the Court. It then looked at the facts as well, but it did not decide—and this is something where I am correcting what's often said in the media—it didn't decide that the claim of genocide was plausible. It did emphasize in the Order that there was a risk of irreparable harm to the Palestinian right to be protected from genocide, but the shorthand that often appears, which is that there is a plausible case of genocide, isn't what the Court decided.¹ (emphasis in original)

What is one to make of this statement? The first thing to note is its sheer incoherence: if "there was a risk of irreparable harm to the Palestinian right to be protected from genocide," then how could the Court not have decided that Israel was plausibly committing genocide in Gaza? If intended to clarify the import of the Court's finding, then it must be said that Donoghue's statement only muddled the waters. One point, however, can be stated with absolute certainty: the takeaway from the interview, which Donoghue was at pains to stress and which Israel's advocates as well as the legacy media fastened onto, was—"that there is a plausible case of genocide isn't what the Court

1. "Joan Donoghue: Has the ICJ ruling changed anything in Gaza?" *BBC HARDtalk* (26 April 2024; <https://www.bbc.co.uk/sounds/play/w3ct5stw>, 00:05:05–00:05:55). Donoghue's interpretation echoed an open letter signed by prominent UK lawyers and former judges that was posted on the UK Lawyers for Israel website. "Top UK Lawyers Tell Rishi No Legal Obligation to Sanction Israel" (5 April 2024; <https://www.uklfi.com/top-uk-lawyers-tell-rishi-no-obligation-to-sanction-israel>).

decided.”² Second, if the Court did not decide that Israel was plausibly committing genocide, it can’t but perplex why Israel’s prime minister Benjamin Netanyahu indignantly denounced the Court proceedings as “a mark of disgrace that will not be erased for generations,” Israel’s president Isaac Herzog deplored the Court’s “blood libel,” and Israel’s Ministry of Foreign Affairs reacted to the January Court decision by stating that “[t]he charge of genocide levelled against Israel at the International Court of Justice is false and outrageous.”³ Third, it’s odd in the extreme that Donoghue used the occasion of a BBC interview to issue this clarification. If, as she alleged, misapprehension of the Court position was pervasive—not only laypersons but also many in the legal profession as well as the judges sitting on the Court have seemingly suffered from this misapprehension—then why didn’t she submit a clarification to a law journal that adheres to stringent scholarly protocols in order to dispel this pervasive confusion? Instead, Donoghue disposed of the matter in off-the-cuff remarks during a television broadcast. Whereas Donoghue expressed gratitude to her BBC interlocutor for being given “a chance” to address this

2. “ICJ Did Not Rule There Was a ‘Plausible’ Claim of Israeli Genocide in Gaza,” *Jewish Chronicle* (28 April 2024; <https://www.thejc.com/news/icj-ruling-plausible-claim-israeli-genocide-in-gaza-incorrect-media-bbc-president-joan-donoghue-vud7ow49>); Dominic Casciani, “What Did ICJ Ruling Mean in South Africa’s Genocide Case Against Israel?” *BBC* (17 May 2024; <https://www.bbc.com/news/articles/c3g9g63jl170>); Raffi Berg, “What Is South Africa’s Genocide Case Against Israel at the ICJ?” *BBC* (24 May 2024; <https://www.bbc.com/news/world-middle-east-67922346>); Neville Teller, “Israel Advocates Must Publicize Judge Donoghue’s Clarification of ICJ Ruling,” *Jerusalem Post* (21 May 2024; <https://www.jpost.com/opinion/article-801937>); Jeremy Sharon, “‘Plausibility’ in the South African Genocide Case Against Israel Is Not What It Seemed,” *Times of Israel* (6 May 2024; <https://www.timesofisrael.com/plausibility-in-the-south-african-genocide-case-against-israel-is-not-what-it-seemed>).

3. Sam Sokol, “Failure to Throw Out Genocide Claims a ‘Mark of Disgrace’ on ICJ, Netanyahu Declares,” *Times of Israel* (26 January 2024; <https://www.timesofisrael.com/failure-to-throw-out-genocide-claims-a-mark-of-disgrace-on-icj-netanyahu-declares>); “Genocide Case Against Israel at the World Court Is ‘Blood Libel,’” *Times of Israel* (28 January 2024; https://www.timesofisrael.com/liveblog_entry/herzog-genocide-case-against-israel-at-the-world-court-is-blood-libel); “MFA Statement Following the ICJ Decision on Provisional Measures” (26 January 2024; <https://www.gov.il/en/pages/mfa-statement-following-the-icj-decision-on-provisional-measures-26-jan-2024>). For other outraged official Israeli reactions to the Court proceedings, see “Letter Dated 29 May 2024 from the Permanent Representative of South Africa to the United Nations Addressed to the President of the Security Council” (<https://digitallibrary.un.org/record/4052440?ln=en&v=pdf>), pp. 110–15.

critical point, surely the former president of the Court who presided over a historic Court proceeding could have availed herself of a more professional venue to issue forth this clarification. What's even stranger still, Donoghue is explicitly on record stating that "I don't think it would be appropriate" for the Court to "go out and correct understandings . . . correct inaccuracies" by the media of a Court's judicial decision.⁴ But didn't she do just that in the interview? Fourth, Donoghue underscored in the interview that "the Court . . . work[s] in an incredibly collaborative manner. This Court, a group of fifteen people, reviews each paragraph of every order, every judgment, jointly several times." Yet, notwithstanding this intimate collegiality, Donoghue proceeded to do an end-run around her peers as she took it upon herself to unilaterally interpret, seemingly without any collaborative consultation, the import of the Court's ruling in the decidedly unorthodox venue of a television studio and, to boot, in an opaque formulation that has confounded even experts. Donoghue's modus operandi painfully recalls a previous episode when Judge Richard Goldstone recanted, in April 2011, his eponymous report on war crimes in Gaza that was based on a UN fact-finding mission he headed. This point will be returned to presently. For the moment, Donoghue's BBC statements will be parsed, before proceeding to assess whether there is any—dare one say it?—*plausible* basis for her remarks:

- (a) "But the test is the plausibility of the *rights* that are asserted by the applicant, in this case South Africa. So the Court decided that the Palestinians had a plausible right to be protected from genocide, and that South Africa had the right to present that claim in the Court."

According to Donoghue, South Africa was asserting before the Court that Palestinians have a "plausible right to be protected from genocide." Were this all that South Africa was asserting, and this was all that it sought to "claim in the Court," and all that the Court found was that South Africa had "the right to present that claim in the Court," then it's hard to comprehend the intense international scrutiny of the proceedings. Indeed, were this the legal stake, then the historic Court proceedings were actually much ado about nothing—

4. "Behind the Bench with ICJ's Former President Joan Donoghue," *Borderlines*, Berkeley Law, University of California (5 June 2024; <https://www.law.berkeley.edu/podcast-episode/behind-the-bench-with-icjs-former-president-donoghue>, 00:39:00–00:39:48).

the litigation would have been over in the bat of an eye. The Genocide Convention protects a “national, ethnical, racial or religious group” (Article II). Neither party to the Court proceedings contested that the Palestinian people fall under the Convention’s protection. The South African *Application* denoted the Palestinians a “distinct national, racial and ethnical group” (para. 1) without subsequent objection in the Court proceedings. If this attestation was not disputed, then the conventional right of Palestinians to be protected from genocide must go well beyond “plausible.” The peoplehood of the Palestinians was formally acknowledged by Israel already as far back as 1993 in the Oslo Accords (“The Government of the State of Israel and the Palestinian team representing the Palestinian people. . .”) while, in its 2004 advisory opinion, *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, the Court affirmed that “the existence of a ‘Palestinian people’ is no longer in issue.”⁵ If the peoplehood of the Palestinians was “no longer in issue” already two decades ago, then its “right to be protected from genocide” in 2024 is a *nonissue*. The South African government must have an awful lot of time and resources at its disposal if it composed an eighty-four-page single-spaced *Application* replete with hundreds of multi-referenced footnotes to be presented by a stellar team of barristers before the supreme judicial body in the world—all on a point that no one contests. If the only object of this litigation was to validate that the Palestinian people are protected by the Genocide Convention, then it will behoove every other “national, ethnical, racial or religious group” to queue at The Hague to confirm that it too is protected. One pities those staffing the Court’s inbox.

- (b) “It then looked at the facts as well, but it did not decide—and this is something where I am correcting what’s often said in the media—it didn’t decide that the claim of genocide was plausible.”

But if the Court did not find that Israel was plausibly violating the Genocide Convention, then it is cause to wonder how it could have indicated “provisional measures.” The Court could only have indicated these measures if it

5. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory* (2004), para. 118.

found not only that Palestinians had an abstract “right to be protected from genocide,” but also that Israel was plausibly in breach of the Convention’s provisions. If Israel was not plausibly in breach of the Convention, then the Court would have been in egregious breach of its jurisprudence by indicating provisional measures.

If it stretches credulity that the Court merely decided that Palestinians have a plausible right to be protected from genocide, then what *did* it conclude? In this chapter, it will be conclusively demonstrated via a close reading of the case record that the Court did in fact find that Israel was plausibly committing genocide.

*Convention on the Prevention and Punishment
of the Crime of Genocide, 9 December 1948*

THE CONTRACTING PARTIES,

HAVING CONSIDERED the declaration made by the General Assembly of the United Nations in its resolution 96 (I) dated 11 December 1946 that genocide is a crime under international law, contrary to the spirit and aims of the United Nations and condemned by the civilized world,

RECOGNIZING that at all periods of history genocide has inflicted great losses on humanity, and

BEING CONVINCED that, in order to liberate mankind from such an odious scourge, international co-operation is required,

HEREBY AGREE AS HEREINAFTER PROVIDED:

Article I

The Contracting Parties confirm that genocide, whether committed in time of peace or in time of war, is a crime under international law which they undertake to prevent and to punish.

Article II

In the present Convention, genocide means any of the following acts committed

with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such:

- (a) Killing members of the group;
- (b) Causing serious bodily or mental harm to members of the group;
- (c) Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part;
- (d) Imposing measures intended to prevent births within the group;
- (e) Forcibly transferring children of the group to another group.

Article III

The following acts shall be punishable:

- (a) Genocide;
- (b) Conspiracy to commit genocide;
- (c) Direct and public incitement to commit genocide;
- (d) Attempt to commit genocide;
- (e) Complicity in genocide.

Article IV

Persons committing genocide or any of the other acts enumerated in article III shall be punished, whether they are constitutionally responsible rulers, public officials or private individuals.

Article V

The Contracting Parties undertake to enact, in accordance with their respective Constitutions, the necessary legislation to give effect to the provisions of the present Convention, and, in particular, to provide effective penalties for persons guilty of genocide or any of the other acts enumerated in article III.

Article VI

Persons charged with genocide or any of the other acts enumerated in article III shall be tried by a competent tribunal of the State in the territory of which the act was committed, or by such international penal tribunal as may have jurisdiction with respect to those Contracting Parties which shall have accepted its jurisdiction.

Article VII

Genocide and the other acts enumerated in article III shall not be considered as political crimes for the purpose of extradition.

The Contracting Parties pledge themselves in such cases to grant extradition in accordance with their laws and treaties in force.

(continued)

Article VIII

Any Contracting Party may call upon the competent organs of the United Nations to take such action under the Charter of the United Nations as they consider appropriate for the prevention and suppression of acts of genocide or any of the other acts enumerated in article III.

Article IX

Disputes between the Contracting Parties relating to the interpretation, application or fulfilment of the present Convention, including those relating to the responsibility of a State for genocide or for any of the other acts enumerated in article III, shall be submitted to the International Court of Justice at the request of any of the parties to the dispute.

Article X

The present Convention, of which the Chinese, English, French, Russian and Spanish texts are equally authentic, shall bear the date of 9 December 1948.

Article XI

The present Convention shall be open until 31 December 1949 for signature on behalf of any Member of the United Nations and of any non-member State to which an invitation to sign has been addressed by the General Assembly.

The present Convention shall be ratified, and the instruments of ratification shall be deposited with the Secretary-General of the United Nations.

After 1 January 1950, the present Convention may be acceded to on behalf of any Member of the United Nations and of any non-member State which has received an invitation as aforesaid. Instruments of accession shall be deposited with the Secretary-General of the United Nations.

Article XII

Any Contracting Party may at any time, by notification addressed to the Secretary-General of the United Nations, extend the application of the present Convention to all or any of the territories for the conduct of whose foreign relations that Contracting Party is responsible.

Article XIII

On the day when the first twenty instruments of ratification or accession have been deposited, the Secretary-General shall draw up a *procès-verbal* and transmit a copy thereof to each Member of the United Nations and to each of the non-member States contemplated in article XI.

The present Convention shall come into force on the ninetieth day following the date of deposit of the twentieth instrument of ratification or accession.

Any ratification or accession effected subsequent to the latter date shall become effective on the ninetieth day following the deposit of the instrument of ratification or accession.

Article XIV

The present Convention shall remain in effect for a period of ten years as from the date of its coming into force.

It shall thereafter remain in force for successive periods of five years for such Contracting Parties as have not denounced it at least six months before the expiration of the current period.

Denunciation shall be effected by a written notification addressed to the Secretary-General of the United Nations.

Article XV

If, as a result of denunciations, the number of Parties to the present Convention should become less than sixteen, the Convention shall cease to be in force as from the date on which the last of these denunciations shall become effective.

Article XVI

A request for the revision of the present Convention may be made at any time by any Contracting Party by means of a notification in writing addressed to the Secretary-General.

The General Assembly shall decide upon the steps, if any, to be taken in respect of such request.

Article XVII

The Secretary-General of the United Nations shall notify all Members of the United Nations and the non-member States contemplated in article XI of the following:

- (a) Signatures, ratifications and accessions received in accordance with article XI;
- (b) Notifications received in accordance with article XII;
- (c) The date upon which the present Convention comes into force in accordance with article XIII;
- (d) Denunciations received in accordance with article XIV;
- (e) The abrogation of the Convention in accordance with article XV;
- (f) Notifications received in accordance with article XVI.

Article XVIII

The original of the present Convention shall be deposited in the archives of the United Nations.

A certified copy of the Convention shall be transmitted to each Member of the United Nations and to each of the non-member States contemplated in article XI.

Article XIX

The present Convention shall be registered by the Secretary-General of the United Nations on the date of its coming into force.

I

What Did South Africa Claim in Its *Application* of 29 December 2023 and the “Public Sitting” of 11 January 2024?

The *Application* comprised a sequence of legal propositions each of which flows logically from and builds on the one preceding it:

- (A) Israel has intentionally committed acts of genocide in order to “destroy, in whole or in part,” the Palestinian people.⁶
- (B) These genocidal acts are punishable per (but not limited to) Articles II and III of the Genocide Convention.⁷
- (C) The Court should “adjudge and declare” that Israel is in breach of its obligations under the Convention and that it “must cease forthwith any acts and measures” violating these obligations.⁸
- (D) In the interim before the Court reaches a “determination of the merits of the issues raised by the Application”; and given “the nature of the rights in issue, as well as the ongoing, extreme and irreparable harm being suffered by Palestinians in Gaza”; and given that “Israel has engaged in and failed to prevent or to punish acts and measures which are genocidal, constituting flagrant violations” of the Convention—in light of these ongoing and unpunished genocidal acts and their imminent irreparable prejudice to Palestinians in Gaza, “[p]rovisional measures are necessary in this case to protect against further, severe and irreparable harm to the rights of the Palestinian people under the Genocide Convention.”⁹ In other words, if South Africa has plausibly established that Israel has committed “some of the acts”¹⁰ of genocide alleged by it, then the Court should indicate provisional measures to protect the rights of Palestinians under the Convention pending the merits phase.

6. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)* (29 December 2023; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20231228-app-01-00-en.pdf>), paras. 43–109. Hereafter: *Application*. “Public Sitting” (11 January 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240111-ora-01-00-bi.pdf>), pp. 21–31, paras. 1–41—Hassim; pp. 31–42, paras. 1–39—Ngcukaitobi.

7. *Application*, para. 110.

8. *Ibid.*, paras. 111, 127.

9. *Ibid.*, paras. 112–15.

10. *Ibid.*, para. 125.

South Africa explicitly and repeatedly spelt out that its request for provisional measures was based on the Court's jurisdiction under the Genocide Convention to protect the Palestinian "right to exist as a group" from Israel's genocidal acts. The point at issue was not whether Palestinians plausibly constituted a protected group under the Convention, but the altogether separate and discrete question of *whether Palestinians were plausibly victims of an Israeli genocide in breach of the Convention such as to warrant the Court's intercession in the form of provisional measures to protect the rights of Palestinians under the Convention from being imminently and irreparably prejudiced*. For Palestinian rights under the Convention to come into play before the merits phase, and for the Court to indicate provisional measures to protect these "plausible rights," South Africa had first to demonstrate that Israel was plausibly committing genocide. The locution "plausible rights" denotes the reasonable possibility that, in the merits phase, the Court will find that Israel violated Palestinian rights protected by the Genocide Convention and asserted in the instant case by South Africa. The taut syllogistic nexus goes like this: If Israel is plausibly committing genocide under the Convention, and if the "plausible rights" of Palestinians under the Convention are thus being violated, then the Court should indicate provisional measures to avert irreparable prejudice to these Palestinian rights. Whether Israel was indeed plausibly committing genocide and therefore plausibly putting at risk the "rights" of Palestinians under the Convention clearly forms the nub of the Court proceedings. That is how South Africa posed the question before the Court: *first*, that the Genocide Convention set the parameters of the Court's jurisdiction; *second*, that Israel was plausibly committing genocide in Gaza; *third*, that the plausible rights of Palestinians under the Convention were accordingly at risk of imminent irreparable harm; *fourth*, that the Court should indicate provisional measures to protect these plausible rights in the interim before the merits phase is reached; *fifth*, that each provisional measure requested is linked with a plausible right of Palestinians at risk. Table 1 samples relevant sections of the South African presentation before the Court.

TABLE 1 How South Africa Formulated Its *Application* and “Public Sitting”

Source	Statement	Import
<i>Application</i>	“In order for this Court to determine whether it has <i>prima facie</i> jurisdiction in order to indicate provisional measures, the matters complained of must themselves be <i>prima facie</i> ‘capable of falling within the provisions of [the Convention].’” (para. 123, bracketed words in original; internal quote from <i>The Gambia v. Myanmar</i>, Provisional Measures, “Order” of 23 January 2020)	The Court’s jurisdictional writ is limited to the Genocide Convention.
<i>Application</i>	“For the purposes of the indication of provisional measures, the Court is <i>not</i> required to ascertain whether any violation of Israel’s obligations under the Genocide Convention has occurred. . . . Instead, ‘[w]hat the Court is required to do at the stage of making an order on provisional measures is to establish whether the acts complained of . . . are capable of falling within the provisions of the Genocide Convention.’” (para. 124, emphasis in original; internal quote from <i>The Gambia v. Myanmar</i>) “For the purposes of indicating provisional measures, the Court does not need to establish definitively that Palestinians are at risk of genocide, that they are being subjected to genocidal acts, or that Israel is otherwise breaching its obligations under the Genocide Convention. Rather, it is sufficient that the obligation of South Africa to act to prevent genocide, or the right of South Africa to seek compliance by Israel with its obligations under the Convention not to commit genocide, and to prevent and punish genocide and related prohibited acts under the Convention, be ‘plausible.’” (para. 134) “For the purposes of its decision on a request for the indication of provisional measures in a case involving allegations of violations of the Genocide Convention, ‘[t]he Court is not called upon . . . to establish the existence of breaches of the Genocide Convention, but to determine whether the circumstances require the indication of provisional measures for the protection of rights under this instrument’ as ‘found to be plausible.’” (para. 137; internal quotes from, respectively, <i>The Gambia v. Myanmar</i>, and <i>Ukraine v. Russian Federation</i>, Provisional Measures, “Order” of 16 March 2022)	The question the Court must decide at the provisional measures stage in the case is, not whether Israel has in fact committed genocide, but whether it has <i>plausibly</i> done so.

TABLE 1 (*continued*)

Source	Statement	Import
<i>Application</i>	“The power of the Court to indicate provisional measures ‘has as its object the preservation of the respective rights claimed by the parties in a case, pending [the Court’s] decision on the merits thereof.’ . . . At this stage of the proceedings, however, the Court is not called upon to determine definitively whether the rights which South Africa seeks to protect <i>exist</i>; it need only decide whether it is satisfied that the rights asserted by South Africa on the merits, and for which it is seeking protection, are ‘at least plausible’ <i>i.e.</i> ‘grounded in a <i>possible</i> interpretation’ of the Convention. Those rights are clearly plausible, having regard <i>inter alia</i> to the statements of United Nations experts and bodies asserting that there is at the very least a real risk of genocide—which risk gives rise to the obligation to prevent genocide, pursuant to Article I of the Convention.” (para. 129; internal quotes from, respectively, <i>Ukraine v. Russian Federation</i>, and <i>Questions Relating to the Obligation to Prosecute or Extradite (Belgium v. Senegal)</i>, Provisional Measures, “Order” of 28 May 2009; bracketed words and italics in original)	The Court should indicate provisional measures protecting Palestinian rights under the Genocide Convention if South Africa has demonstrated that these rights are plausibly put at risk by Israel’s genocidal acts.
“Public Sitting”	“South Africa turns to this Court seeking to protect the core rights of Palestinians in Gaza to be protected from acts of genocide, attempted genocide, direct and public incitement to genocide, and complicity in and conspiracy to commit genocide.” (p. 49, para. 7—Du Plessis) “The material [presented by South Africa] confirms the rights in issue and their violation: that Israel has committed and is committing acts capable of being characterized as ‘genocidal.’ . . . So, the rights are immediately and urgently in need of protection because of the ongoing denial by Israel of the conditions necessary for life.” (p. 50, para. 10—Du Plessis; bracketed words added)	South Africa asserted the right of Palestinians to be protected from Israel’s plausibly genocidal acts.
“Public Sitting”	“For the Court to indicate one or more provisional measures, there must . . . be a link between the rights the protection of which is sought and the provisional measure being requested.” (p. 55, para. 25—Du Plessis)	Each provisional measure indicated by the Court must correlate with a right in the Genocide Convention plausibly at risk.

(*continued*)

TABLE 1 (*continued*)

Source	Statement	Import
"Public Sitting"	"[T]here is an urgent need for provisional measures to protect Palestinians in Gaza from the irreparable prejudice caused by Israel's violations of the Genocide Convention." (p. 57, para. 5—Ní Ghrálaigh) "[T]here is an urgent need for provisional measures to prevent imminent, irreparable prejudice to the rights in issue in this case." (p. 61, para. 9—Ní Ghrálaigh)	The Court must indicate provisional measures because Palestinian rights under the Genocide Convention are imminently at risk of irreparable prejudice by Israel's acts.

None of these statements by South Africa can be squared with Donoghue's contention that the point at issue before the Court was whether the Palestinian people as a general principle had a "plausible right to be protected from genocide." On the contrary, the critical question posed by South Africa was highly specific: If Israel was plausibly committing genocide against the Palestinian people, then shouldn't the Court indicate provisional measures to protect the rights of Palestinians from imminent irreparable prejudice? The crux of the case before the Court, that weighed in the balance and riveted the world's attention, and that the Court would perforce have to decide, reduced to this: *Was Israel plausibly committing genocide in Gaza?* Indeed, that's how Donoghue herself construed the South African *Application* in her introductory remarks at the "Public Sitting":

South Africa states that its Application concerns acts threatened, adopted, condoned, taken and being taken by the Government and military of Israel against the Palestinian people, a distinct national, racial and ethnical group, in the wake of the attacks in Israel on 7 October 2023. South Africa contends that the acts and omissions by Israel of which it complains are genocidal in character because "they are intended to bring about the destruction of a substantial part of the Palestinian national, racial and ethnical group, that being the part of the Palestinian group in the Gaza Strip." South Africa asserts that the relevant acts are attributable to Israel, which has failed to prevent genocide and is committing genocide, and which has also violated and continues to violate other fundamental obligations under the Genocide Convention.

The Application contains a Request for the indication of provisional measures. . . . According to South Africa, “[p]rovisional measures are necessary in this case to protect against further, severe and irreparable harm to the rights of the Palestinian people under the Genocide Convention, which continue to be violated with impunity. South Africa requests that the Court indicate provisional measures to protect and preserve those rights . . . and to prevent any aggravation or extension of the dispute, pending the determination of the merits of the issues raised by the Application.” (“Public Sitting,” 11 January 2024; emphasis added)

South Africa was requesting provisional measures, by Donoghue’s own account, to protect “the rights of the Palestinian people under the Genocide Convention” that would be irreparably prejudiced by Israel’s ongoing genocide. But then, an abyss manifestly separates their respective interpretations of the relevant body of law. South Africa construed the law to stipulate that, for the Court to indicate provisional measures, it would have to demonstrate at this stage in the proceedings that Israel was plausibly committing genocide in violation of Palestinian rights under the Genocide Convention. Accordingly, the bulk of South Africa’s presentation before the Court documented this genocide. Whereas, seeing as the Court did ultimately indicate provisional measures, Donoghue now contended that such measures could have been indicated even if Israel was not plausibly committing genocide. But Donoghue was deafeningly silent when she dropped her bombshell on the obvious questions: *How could provisional measures designed to protect Palestinian rights per the Genocide Convention from a plausible genocide be indicated even in the absence of proof of a plausible genocide; If not because Israel was plausibly committing genocide, then on what legal basis did the Court indicate provisional measures?* That’s not all. South Africa was requesting that the Court indicate provisional measures so as to protect fundamental Palestinian rights enshrined in the Genocide Convention. Its legal team included among the leading authorities on international law. The vast preponderance of its extraordinary *Application* and oral presentations was invested in demonstrating that Israel was plausibly carrying out a genocide in Gaza. But it now appeared that the team—including the likes of Vaughan Lowe and John Dugard—got the law all wrong. The Court, according to Donoghue, could have indicated provisional measures even without any evidence that Israel was plausibly carrying out a genocide in Gaza. The wonder is that the Court didn’t peremptorily rule the South African delegation out of order for wasting its time on irrelevancies.

Indeed, the Court itself apparently got the law wrong. The Court “Order” included material culled from the South African *Application* documenting Israel’s breaches of the Genocide Convention, which Donoghue herself dramatically read out in Court. In the BBC interview, she stated: “We tried to call attention to the pieces [of evidence] that we thought would provide the basis for our decision . . . that we thought was most authoritative.” It must perplex why the Court would “call attention” to evidence that Donoghue now declared was *not* “the basis” of the Court’s decision. Why would the Court reiterate the South African evidence of Israel’s plausible genocide in its “Order” if, according to Donoghue, it could have indicated provisional measures without finding that Israel was plausibly guilty of genocide? If this sounds confusing, that’s because it *is* confusing; *How could the evidence of Israel’s genocidal intent both be and not be the “basis” of the Court’s decision?*

Conclusion to Section I

If Judge Donoghue’s BBC “clarification” is to be credited, then South Africa’s team of eminent international lawyers must have wholly misapprehended the relevant law.

II

How Did Israel Reply to the South African *Application* in the “Public Sitting” of 12 January 2024?

In its reply to the South African *Application*, Israel asserted that it wasn’t violating the Genocide Convention; therefore, it wasn’t violating the plausible rights of Palestinians; and therefore, the Court couldn’t indicate provisional measures. Herewith a breakdown of the Israeli reply:

- (A) The only category of rights under consideration in this case was comprised of the provisions of the Genocide Convention:

South Africa does not have to prove that genocidal acts have been or are being committed, but it does have to show that the Genocide Convention is in play. (“Public Sitting,” p. 30, para. 33—Shaw)

The Court has stated that what is required at this [provisional measures] stage is “to establish whether the acts complained of . . . are capable of

falling within the provisions of the Genocide Convention.” (p. 30, para. 34—Shaw; internal quote from *The Gambia v. Myanmar*)

- (B) The Court could only indicate provisional measures if Israel had plausibly violated the rights of Palestinians under the Genocide Convention by committing a genocide against them. Put otherwise, in order to prove that the rights of Palestinians under the Convention were plausibly at risk and that therefore the Court could indicate provisional measures, South Africa would have had to demonstrate that Israel was plausibly committing genocide:

The Court can grant orders for provisional measures only where the provisions [of the Genocide Convention] relied upon by the Applicant “appear, prima facie, to afford a basis on which its jurisdiction could be founded.” (“Public Sitting,” p. 28, para. 27—Shaw; internal quote from *The Gambia v. Myanmar*)

The Court is asked to grant in this case a number of measures that, in effect, assume that the Party in question is committing genocide. (p. 29, para. 29—Shaw)

As the Court has noted, its power to grant provisional measures “has as its object the preservation of the respective rights claimed by the parties in a case, pending its decision on the merits.” At the provisional measures stage, the Court does not need to determine that such rights do actually exist in a definitive manner, but it must establish that such rights are plausible. (p. 35, para. 53—Shaw; internal quote from *The Gambia v. Myanmar*)

A link has to be established between the rights asserted [under the Genocide Convention] and the provisional measures requested. (p. 39, para. 70—Shaw)

- (C) South Africa had failed to demonstrate, even prima facie, the “key component” of the Genocide Convention—i.e., “the intention to destroy a people in whole or in part”—and had therefore failed to demonstrate that Israeli acts in Gaza were genocidal in nature (p. 20, para. 48—Becker; pp. 30–35, paras. 32–52—Shaw).
- (D) If South Africa didn’t demonstrate that Israel had prima facie been committing genocide in Gaza, then the Court could not indicate pro-

visional measures to protect the “plausible rights” of Palestinians per the Genocide Convention. In other words, if Israel wasn’t plausibly committing genocide, then there wasn’t a reasonable possibility that, in the merits phase, the Court would find that Israel violated Palestinian rights protected by the Genocide Convention and asserted in the instant case by South Africa—and, therefore, provisional measures could not be indicated.

[W]e know from your case law that the power of the Court to indicate provisional measures will be exercised only in exceptional circumstances. There needs to be . . . “a real and imminent risk that irreparable prejudice will be caused to [the] rights claimed before the Court gives its final decision.” (“Public Sitting,” p. 50, para. 6—Sender; internal quote from *Application of the Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (Canada and The Netherlands v. Syrian Arab Republic)*, Provisional Measures, “Order” of 16 November 2023)

The Applicant has failed to meet the condition of plausible rights to be protected in the present circumstances. (p. 71, para. 1.2—Noam)

Judge Donoghue asserted in the interview that whereas the Court found that “Palestinians had a plausible right to be protected from genocide, . . . it didn’t decide that the claim of genocide was plausible.” But if the Court did in fact indicate provisional measures, then, according to the Israeli legal team, it must have found that Israel was plausibly committing a genocide that violated Palestinian rights under the Genocide Convention: “The Court is asked to grant in this case a number of measures that, in effect, assume that the Party in question is committing genocide.” Clearly Donoghue and the Israeli team were at legal loggerheads: she in effect asserted while Israel emphatically denied that provisional measures could have been indicated without evidence of genocide.

Conclusion to Section II

If Judge Donoghue’s “clarification” is to be credited, then the Israeli legal team must have wholly misapprehended the relevant law.

III

What Did the Court “Order” State?

The Court Order, “Request for the Indication of Provisional Measures, Order (26 January 2024),” is divided, for the purposes at hand, into three parts: the relevant law, the *prima facie* evidence of genocide presented to the Court, and the Court’s decision based on this evidence.

(A) *What is the relevant law?*

Inter alia, the Court lists these legal principles:

The scope of the present case submitted to the Court . . . is limited, as South Africa has instituted these proceedings under the Genocide Convention. (“Order,” para. 14)

The Court may indicate provisional measures only if the provisions [of the Convention] relied on by the applicant appear, *prima facie*, to afford a basis on which its jurisdiction could be founded, but it need not satisfy itself in a definitive manner that it has jurisdiction as regards the merits of the case. (para. 15; bracketed words added)

[T]he Court must . . . ascertain, at the present stage of the proceedings, whether it appears that the acts and omissions complained of by the Applicant are capable of falling within the scope of that convention *ratione materiae*. (para. 20)

At the present stage of the proceedings, the Court is not required to ascertain whether any violations of Israel’s obligations under the Genocide Convention have occurred. Such a finding could be made by the Court only at the stage of the examination of the merits of the present case. . . . [A]t the stage of making an order on a request for the indication of provisional measures, the Court’s task is to establish whether the acts and omissions complained of by the applicant appear to be capable of falling within the provisions of the Genocide Convention. (para. 30)

[T]he Court may exercise this power [to indicate provisional measures] only if it is satisfied that the rights asserted by the party requesting such measures are at least plausible. (para. 35; bracketed words added)

At this stage of the proceedings, however, the Court is not called upon to determine definitively whether the rights which South Africa wishes to see protected exist. It need only decide whether the rights claimed

by South Africa, and for which it is seeking protection, are plausible. Moreover, a link must exist between the rights whose protection is sought and the provisional measures being requested. (para. 36)

In sum, the Court could indicate provisional measures “only if” (1) Israel “prima facie” but not necessarily in a “definitive manner” (2) violated provisions of the Genocide Convention by its “acts and omissions,” which (3) it was “at least plausible” put at risk the rights of Palestinians in Gaza protected by the Convention, and (4) a “link” existed between the “plausible rights” at risk under the Convention and the “provisional measures being requested.”

(B) *What evidence did the Court adduce in its “Order”?*

The Court “Order” homed in on the “acts” of genocide defined by Article II of the Genocide Convention, such as “Killing members of the group” and “Causing serious bodily or mental harm to members of the group,” as well as related acts prohibited by Article III of the Convention, such as “Direct and public incitement to commit genocide” and “Complicity in genocide” (“Order,” paras. 41–44). It then delineated the evidence presented to it of Israel’s violations of the Convention, including statements describing catastrophic conditions in Gaza by international relief organizations, UN agencies, and UN officials (paras. 46–49, 67–70), as well as statements indicating intent to inflict catastrophic conditions on Gaza by senior Israeli officials (paras. 51–53).

(C) *What did the Court conclude from the evidence?*

The Court found that Israel was plausibly acting in breach of the Genocide Convention by committing “acts” of genocide defined in Article II and committing related prohibited acts in Article III and that therefore the rights of Palestinians in Gaza asserted by South Africa were at risk:

In the Court’s view, at least some of the acts and omissions alleged by South Africa to have been committed by Israel in Gaza appear to be capable of falling within the provisions of the Convention. (para. 30)

In the Court’s view, the facts and circumstances mentioned above are sufficient to conclude that at least some of the rights claimed by South Africa and for which it is seeking protection are plausible. This is the case with respect to the right of the Palestinians in Gaza to be protected from acts of genocide and related prohibited acts identified in Article III. (para. 54)

Conclusion to Section III

The Court found that, on the basis of evidence adduced by South Africa of catastrophic conditions in Gaza as well as the declared intention of Israeli officials to inflict catastrophic conditions, it was “plausible” that Israel was violating “at least some of the rights” of Palestinians defined by Articles II and III of the Genocide Convention. If, on the basis of the evidence it cited, the Court concluded that it was “plausible” that Israel was violating the rights of Palestinians protected by the Convention, then Israel must have been plausibly in breach of the Convention, in particular, by committing “acts of genocide” defined in Article II. Otherwise, how could the rights of Palestinians under the Convention have been plausibly violated, and why did the Court take “note” of South Africa’s evidence, in a case the “scope” of which was “limited” to the Genocide Convention, save as evidence of “acts of genocide” plausibly committed by Israel?

IV

Why Did the Court Indicate Provisional Measures?

The “Order” stated that the Court could only indicate provisional measures if (1) “irreparable prejudice could be caused to rights which are the subject of judicial proceedings or when the alleged disregard of such rights may entail irreparable consequences,” and (2) “there is urgency, in the sense that there is a real and imminent risk that irreparable prejudice will be caused to the rights claimed before the Court gives its final decision,” but (3) “The Court is not called upon, for the purposes of its decision on the request for the indication of provisional measures, to establish the existence of breaches of obligations under the Genocide Convention” (“Order” of 26 January 2024, paras. 60–62). In this case, the Court could only indicate provisional measures if cumulatively: Israel was plausibly violating provisions of the Genocide Convention protecting Palestinians in Gaza from genocide; and the rights of Palestinians in Gaza per the Convention were urgently in need of protection from irreversible injury. The Court explicitly stated that, if it indicated provisional measures, that’s because it was in the nature of genocide that it inherently put Palestinians in Gaza at lethal risk:

In view of the fundamental values sought to be protected by the Genocide Convention, the Court considers that the plausible rights in question in these proceedings, namely the right of Palestinians in the Gaza Strip to be protected from acts of genocide and related prohibited acts identified in Article III of the Genocide Convention . . . are of such a nature that prejudice to them is capable of causing irreparable harm. (para. 66)

The “plausible rights in question in these proceedings,” which the Court sought to protect by the indication of provisional measures, comprised Articles II and III of the Convention that Israel’s plausible acts of genocide and other related acts put at risk. The Court went on to find that “the catastrophic humanitarian situation in the Gaza Strip is at serious risk of deteriorating further before the Court renders its final judgment” (para. 72). Having established that, *first*, the “fundamental values” at stake in these proceedings comprised the rights of Palestinians to be protected from “acts of genocide” and other related acts plausibly committed by Israel and, *second*, “there is urgency, in the sense that there is a real and imminent risk that irreparable prejudice will be caused to the rights found by the Court to be plausible” (para. 74), the Court concluded that “the conditions required by its Statute for it to indicate provisional measures are met” (para. 75).

Conclusion to Section IV

The Court could indicate provisional measures if and only if it was persuaded that (1) the “plausible rights” of Palestinians in Gaza per the Genocide Convention came into play as Israel was plausibly committing genocide, and (2) there was an urgent necessity to protect the plausible rights of Palestinians in Gaza per the Convention from irreparable prejudice. But if the Court did resolve on the urgent necessity to indicate provisional measures in order to protect “the plausible rights in question in these proceedings, namely the right of Palestinians in the Gaza Strip to be protected from acts of genocide and related prohibited acts,” then it is cause to wonder how Donoghue could aver in her interview: “that there is a plausible case of genocide isn’t what the Court decided.” If the rights at play in these judicial proceedings were limited to the Genocide Convention, and if there wasn’t a “plausible case of genocide,” then how could the Court have indicated provisional measures to protect the plausible rights of Palestinians in Gaza? The Court could only indicate

provisional measures if the rights protecting Palestinians from genocide were urgently at risk by Israel’s plausible genocide.

V

What Did the Court Conclude and What Provisional Measures Did It Indicate?

Table 2 lists the Court’s conclusions and the provisional measures it indicated.

TABLE 2 The Court’s Conclusions and Provisional Measures ¹¹	
Conclusion	Provisional Measures Indicated
A. “The Court considers that . . . Israel must, in accordance with its obligations under the Genocide Convention, in relation to Palestinians in Gaza, take all measures within its power to prevent the commission of all acts within the scope of Article II of this Convention, in particular: (a) killing members of the group; (b) causing serious bodily or mental harm to members of the group; (c) deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part; and (d) imposing measures intended to prevent births within the group. The Court recalls that these acts fall within the scope of Article II of the Convention when they are committed with the intent to destroy in whole or in part a group as such. . . . The Court further considers that Israel must ensure with immediate effect that its military forces do not commit any of the above-described acts.” (para. 78)	(1) “The State of Israel shall, in accordance with its obligations under the Convention on the Prevention and Punishment of the Crime of Genocide, in relation to Palestinians in Gaza, take all measures within its power to prevent the commission of all acts within the scope of Article II of this Convention, in particular: (a) killing members of the group; (b) causing serious bodily or mental harm to members of the group; (c) deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part; and (d) imposing measures intended to prevent births within the group.” (2) “The State of Israel shall ensure with immediate effect that its military does not commit any acts described in point (1) above.”

(continued)

11. In this table, each “Conclusion” cites from Section VI of the “Order” titled “Conclusion and Measures to Be Adopted.” Each “Provisional Measure Indicated” is quoted and numbered as it appears in the operative paragraphs. This table does not quote every provisional measure indicated in the “Order.”

TABLE 2 (*continued*)

Conclusion	Provisional Measures Indicated
B. “The Court is also of the view that Israel must take all measures within its power to prevent and punish the direct and public incitement to commit genocide in relation to members of the Palestinian group in the Gaza Strip.” (para. 79)	(3) “The State of Israel shall take all measures within its power to prevent and punish the direct and public incitement to commit genocide in relation to members of the Palestinian group in the Gaza Strip.”
C. “The Court further considers that Israel must take immediate and effective measures to enable the provision of urgently needed basic services and humanitarian assistance to address the adverse conditions of life faced by Palestinians in the Gaza Strip.” (para. 80)	(4) “The State of Israel shall take immediate and effective measures to enable the provision of urgently needed basic services and humanitarian assistance to address the adverse conditions of life faced by Palestinians in the Gaza Strip.”

The Court could only indicate provisional measures (1) – (4) if the rights of Palestinians per the Genocide Convention were plausibly at risk. For these rights to be at risk, Israel must be plausibly committing “acts” of genocide defined in Article II and violating related prohibited acts per Article III of the Convention. A robust nexus must exist between each provisional measure indicated by the Court and a relevant article of the Convention that protects Palestinian rights. The first and second provisional measures indicated per Article II directly correlate with the Court finding that “the facts and circumstances” presented to it render “plausible” that “the right of the Palestinians in Gaza to be protected from acts of genocide” was at risk (para. 54; the Court in its “Conclusion” (para. 75) explicitly linked the provisional measures it indicated to paragraph 54). The fourth provisional measure indicated arguably also correlates with Article II, while the third provisional measure indicated correlates with Article III of the Convention.

Conclusion to Section V

If the Court explicitly linked the first and second provisional “measures to be adopted” by Israel to Article II of the Genocide Convention, so as to protect the “plausible rights” of Palestinians in Gaza under the Convention, then

Israel must have been plausibly committing acts of genocide against Palestinians in Gaza defined by Article II.

VI

What Do the “Declarations,” “Dissenting Opinion,” and “Separate Opinion” Reveal?

Recall that the text of the first and second provisional measures in the operative paragraphs read:

- (1) “The State of Israel shall, in accordance with its obligations under the Convention on the Prevention and Punishment of the Crime of Genocide, in relation to Palestinians in Gaza, take all measures within its power to prevent the commission of all acts within the scope of Article II of this Convention, in particular: *(a)* killing members of the group; *(b)* causing serious bodily or mental harm to members of the group; *(c)* deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part; and *(d)* imposing measures intended to prevent births within the group.”
- (2) “The State of Israel shall ensure with immediate effect that its military does not commit any acts described in point (1) above.”

The Court vote was 15–2 on both of these provisional measures. If the purpose of these provisional measures was to mitigate the imminent danger of irreparable harm to the “plausible rights” of Palestinians as regards “acts” defined by Article II of the Genocide Convention, and if these measures were directed explicitly at Israel, then, in the opinion of the vast majority of the Court, Israel must have been plausibly committing acts of genocide. The individual commentaries submitted by several of the Court judges largely confirm this interpretation of the law:

- (A) A “Declaration” by Judge Xue stated that “[t]he gravity of the humanitarian disaster in Gaza threatens the very existence of the people in Gaza,” and “I agree that the provisional measures indicated in this Order are warranted under the circumstances” (“Declaration of Judge Xue,” paras. 3, 5). That is, the magnitude of death and destruction visited upon Gaza

was plausibly genocidal—“threatens the very existence of the people in Gaza”—and therefore the Court was justified in indicating provisional measures to protect Palestinian rights per the Convention.

- (B) A “Declaration” by Judge Bhandari stated that “the widespread nature of the military campaign in Gaza, as well as the loss of life, injury, destruction and humanitarian needs following from it . . . are by themselves capable of supporting a plausibility finding with respect to rights under Article II,” and “[t]aken together and, bearing in mind the lower standards that apply in respect of provisional measures as opposed to the merits, the evidence on the record at this stage in the proceedings is such that, in the circumstances of this case, the Court was justified in granting provisional measures in the terms it did” (“Declaration of Judge Bhandari,” paras. 9, 10). In other words, Israel was plausibly committing acts of genocide defined by Article II of the Genocide Convention, therefore the Court was justified in granting provisional measures explicitly linked to Article II in order to protect Palestinian rights enshrined in that article.
- (C) A “Declaration” by Judge Nolte, who was the marplot in the court proceedings, cobbled together multiple seemingly confusing, contradictory, misleading, and disingenuous assertions. After acknowledging the “apocalyptic situation” in Gaza (para. 1), but also setting a stringent “plausibility” threshold (para. 12), Nolte went on to say:

I am not persuaded that South Africa has plausibly shown that the military operation undertaken by Israel, as such, is being pursued with genocidal intent. (para. 13)

[I]t is not sufficient for South Africa to point to the terrible death and destruction that Israel’s military operation has brought about and is continuing to bring about. The Applicant must be expected to engage not only with the stated purpose of the operation, namely to “destroy Hamas” and to liberate the hostages, but also with other manifest circumstances, such as the calls to the civilian population to evacuate, an official policy and orders to soldiers not to target civilians, the way in which the opposing forces are confronting each other on the ground, as well as the enabling of the delivery of a certain amount of humanitarian aid, all of which may give rise to other plausible inferences from an alleged “pattern of conduct” than genocidal intent. Rather, these measures by Israel, while not

conclusive, make it at least plausible that its military operation is not being conducted with genocidal intent. (para. 14)

Even though I do not find it plausible that the military operation is being conducted with genocidal intent, I voted in favor of the measures indicated by the Court. To indicate those measures, it is not necessary for the Court to find that the military operation as such implicates plausible rights of Palestinians in the Gaza Strip. My decision to vote in favor of the measures indicated rests on the plausible claim by South Africa that certain statements by Israeli State officials, including members of its military, give rise to a real and imminent risk of irreparable prejudice to the rights of Palestinians under the Genocide Convention. . . . At the present stage of the proceedings, it is not necessary to determine whether such statements should be characterized as acts of “[d]irect and public incitement to commit genocide” within the meaning of Article III (c) of the Genocide Convention. . . . Since they were made by high-ranking officials, who thereby also addressed soldiers involved in hostilities in the Gaza Strip, I cannot plausibly exclude that such statements contribute to a potential failure by Israel to prevent and punish acts of public and direct incitement to genocide. Indeed, South Africa has provided evidence, not contradicted by Israel, that inflammatory parts of relevant statements have been echoed in a threatening way by members of the Israeli armed forces. This confirms that such statements may contribute to a “serious risk” that acts of genocide other than direct and public incitement may be committed, giving rise to Israel’s obligation to prevent genocide. (“Declaration of Judge Nolte,” para. 15; internal quote from *Application of the Convention of the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v. Serbia and Montenegro)*, Judgment, I.C.J. Reports 2007)

The Genocide Convention prohibits what Article II defines as “acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group.” Although he acknowledged that Israel was visiting “terrible death and destruction” on Gaza, Nolte registered doubts that South Africa plausibly demonstrated an Israeli intent to commit genocide. Whether one agrees or disagrees, this is plainly a coherent position. Nolte next asserted, “To indicate those measures [i.e., the provisional measures indicated in the Court “Order”], it is not necessary for the Court to find that the military operation as such implicates plausible rights of Palestinians in the Gaza Strip.” If he supported provisional

measures, it was, according to Nolte, because certain statements by Israeli officials plausibly violated Article III (c) of the Convention prohibiting “direct and public incitement to genocide.” That would account for his vote in support of the third provisional measure ordering Israel to “take all measures within its power to prevent and punish the direct and public incitement to commit genocide in relation to members of the Palestinian group in the Gaza Strip.” (The Court protocol allows each judge to cast a separate vote for each provisional measure.) But then things go awry. If, according to Nolte, Israel didn’t plausibly commit acts “with intent to destroy, in whole or in part, a national, ethnical, racial or religious group” (Genocide Convention, Article II), then why did Nolte cast his vote in support of the first and second provisional measures? They explicitly “implicate plausible rights of Palestinians in the Gaza Strip” in regard to “acts” of genocide delineated in Article II. Whereas Nolte expressed skepticism that the “military operation undertaken by Israel, as such, is being pursued with genocidal intent,” the second provisional measure specifically stated that “The State of Israel shall ensure with immediate effect that its military does not commit any acts [of genocide defined in Article II].” The Court could only have indicated this measure if—and Nolte could only have voted for it if he had been persuaded that—Israel’s military was plausibly committing genocide, and therefore the rights of Palestinians in Gaza under the Genocide Convention defined by Article II were plausibly at risk. Further, the first and second provisional measures are manifestly, inextricably, and *explicitly* linked to the Court’s finding that “the facts and circumstances” presented to it render “plausible” that “the right of the Palestinians in Gaza to be protected from acts of genocide” was at risk (“Order,” para. 54). But Nolte gainsaid that Israel was plausibly committing acts of genocide. So the mystery persists why he voted for the first and second provisional measures. A possible clue is that, according to him, the incendiary Israeli statements “give rise to a real and imminent risk of irreparable prejudice to the rights of Palestinians under the Genocide Convention,” and “may contribute to a ‘serious risk’ that acts of genocide other than direct and public incitement may be committed, giving rise to Israel’s obligation to prevent genocide.” In other words, although Israel hasn’t plausibly *committed* genocide, its incendiary statements might *trigger* genocidal “acts” defined in Article II. But the first and second provisional measures *eo ipso* presupposed that Israel was *already* plausibly committing “acts” of genocide. Nolte’s resort

to the locution “serious risk” doesn’t save him. He culled it from a Court decision stipulating that the obligation of a State to prevent genocide will “arise at the instant that the State learns of, or should normally have learned of, the existence of a serious risk that genocide will be committed.” The “serious risk” arising from incendiary Israeli statements would put Israel in violation of Article I of the Genocide Convention obligating Contracting Parties to “prevent” genocide. But it cannot account for Nolte’s discrete votes in support of the first and second provisional measures. He could only have voted for these two provisional measures if he was persuaded that Israel was plausibly committing prohibited acts of genocide defined by Article II of the Genocide Convention and was consequently in violation of Palestinian rights enshrined in the Convention protecting them from genocidal acts.

- (D) A “Dissenting Opinion” by Judge Sebutinde stated that there were “no indicators of a genocidal intent” and “no indicators of incitement to commit genocide” by Israel (para. 22). If she reached these aberrant factual conclusions, it was by wholly crediting official claims by Israel (e.g., pointing to “Israel’s restricted and targeted attacks of legitimate military targets” and “its facilitation of humanitarian assistance”) and wholly dismissing numerous authoritative UN and humanitarian sources cited by South Africa (“Dissenting Opinion of Judge Sebutinde,” paras. 20–21). Sebutinde stood alone in opposing all the provisional measures. Of particular interest for the purposes at hand, however, is not the (in)credibility of her factual conclusions but, rather, her legal reasoning:

South Africa has not demonstrated, even on a *prima facie* basis, that the acts allegedly committed by Israel, and of which the Applicant complains, were committed with the necessary genocidal intent and that, as a result, they are capable of falling within the scope of the Genocide Convention. Similarly, when it comes to the rights that the Applicant asserts and for which South Africa seeks protection through the indication of provisional measures, there is no indication that the acts allegedly committed by Israel were accompanied by a genocidal intent and that, as a result, the rights asserted by the Applicant are plausible under the Genocide Convention. . . . Accordingly, the acts complained of by South Africa, as well as the rights correlated to those acts, can only be capable of “falling within the scope of the said Convention” if a genocidal intent is present, otherwise such acts simply constitute grave violations of international

humanitarian law and not genocide as such. (“Dissenting Opinion,” para. 17; source of internal quote unknown)

I am not convinced that the acts complained of by the Applicant are capable of falling within the scope of the Genocide Convention, in particular because it has not been shown, even on a *prima facie* basis, that Israel’s conduct in Gaza is accompanied by the necessary genocidal intent. Furthermore, the rights asserted by South Africa are not plausible and the Court should not order the provisional measures requested. But in light of the Court’s Order, I will proceed to consider the other criteria required for the indication of provisional measures. This brings me to another criterion which I also find has not been met, namely that there is no link between the rights asserted by South Africa and the provisional measures sought. (para. 23)

I am not convinced that the rights asserted by South Africa are plausible under the Genocide Convention, in so far as the acts complained of by the Applicant do not appear to fall within the scope of that Convention. While those acts may amount to grave violations of IHL, they are *prima facie*, [*sic*] not accompanied by the necessary genocidal intent. I also am of the view that the provisional measures requested by South Africa and [*sic*—are?] not linked to the asserted rights. (para. 32)

It was thus contended by Sebutinde that, *first*, South Africa could only assert that the “plausible rights” of Palestinians in Gaza were violated if “the acts allegedly committed by Israel were accompanied by a genocidal intent and that, as a result, the rights asserted by the Applicant are plausible under the Genocide Convention”; *second*, that the Court “should not order the provisional measures requested” unless the rights of Palestinians under the Convention were plausibly put at risk by Israel’s genocidal intent; and, *third*, that each provisional measure had to be “linked to the asserted rights.” Inversely, if (1) the Court did indicate a provisional measure explicitly linked to Article II of the Genocide Convention, then (2) the rights of Palestinians inscribed in Article II must have been plausibly imperiled by (3) Israel’s “acts” born of “genocidal intent.” Even as Sebutinde reached altogether different factual conclusions from the overwhelming Court majority, still, she fully concurred with the Court majority’s understanding of the relevant law.

- (E) A “Separate Opinion” by Judge ad hoc Barak stated that “[t]he Court rejected South Africa’s main contention and, instead, adopted measures that recall Israel’s existing obligations under the Genocide Convention” (“Separate Opinion of Judge ad hoc Barak,” para. 1). If by this Barak was stipulating that the Court did not find that Israel was plausibly committing genocide in Gaza and that the Court’s indication of provisional measures was not at all linked to Israel’s breach of its obligations per the Convention, then Donoghue’s “clarification” closely tracked with Barak’s interpretation of the Court “Order.” But her “clarification” is impossible to square with Barak’s own votes in the proceedings. Barak did in fact vote in favor of two provisional measures indicated by the Court inter alia out of “deep humanitarian convictions” (para. 44). Whereas, if Barak did *not* vote for the first and second provisional measures, it was because an “in favor” vote necessarily denoted that the rights of Palestinians to be protected from acts of genocide defined in Article II of the Convention were plausibly put at risk by Israel’s genocidal acts—which this Israeli judge emphatically (if unsurprisingly) denied:

I strongly disagree with the Court’s approach regarding plausibility and, in particular, I disagree on the question of intent. The Court may indicate provisional measures “only if it is satisfied that the rights asserted by the party requesting such measures are at least plausible.” In the present case, the Court concluded, with scant evidence, that “the right of the Palestinians in Gaza to be protected from acts of genocide” is plausible. (“Separate Opinion,” paras. 32–33; internal quotes from, respectively, *The Gambia v. Myanmar* and Court “Order” of 26 January 2024)

Regarding the conditions for the Court to indicate provisional measures, for the reasons stated above, I am not persuaded by South Africa’s arguments on the plausibility of rights, since there is no indication of an intent to commit genocide. This is why I voted against the first and second provisional measures indicated by the Court. (para. 43)

Barak thus stated in no uncertain terms that he did not cast his vote in favor of the first and second provisional measures because it would necessarily follow from voting for them that “the right of the Palestinians in Gaza to be protected from acts of genocide” is plausible.” Put otherwise, if he had voted for the first and second provisional measures, then it would perforce follow that he was persuaded that Israel was

plausibly committing genocide. Neither Judge Donoghue’s “clarification” nor, for that matter, Judge Nolte’s vote for the first and second provisional measures can be reconciled with Judge Barak’s succinct exposition of the law.

Conclusion to Section VI

Of the seventeen judges sitting on the Court, five elected to further elucidate the Court’s “Order.” These five judges, apart from the perplexing (perverse?) exception of Nolte, all concurred on the essential point that Israel was either plausibly committing genocide, or that a judge casting a vote in support of the first and second provisional measures—fifteen of the seventeen judges did so—necessarily believed that the Palestinian right to be protected from acts of genocide defined by Article II of the Genocide Convention was plausibly put at risk by Israel’s acts of genocide.

VII

What Do the Subsequent Court “Orders,” “Declarations,” “Separate Opinions,” and “Dissenting Opinions” Reveal?

After the Court “Order” of 26 January 2024, South Africa requested new provisional measures in February, March, and May 2024. The Court reiterated its original provisional measures in February. The Court indicated new provisional measures in March and again in May. These proceedings illuminate how the parties and judges understood the relevant law.

(A) March 2024 proceedings

- (1) *Republic of South Africa, “Urgent Request and Application for the Indication of Additional Provisional Measures and the Modification of the Court’s Prior Provisional Measures. . .” (6 March 2024)*

South Africa stated that the provisional measures indicated by the Court on 26 January 2024 “were to protect *inter alia* ‘the right of the Palestinians in Gaza to be protected from acts of genocide and related prohibited acts identified in Article III’ of the Genocide Convention” (“Urgent Request,” para. 3; internal quote from January Court “Order”). It thus understood that the January “Order” pro-

tected the right of Palestinians in Gaza from Israel's violation of Articles II and III of the Convention. It further understood that it must establish a robust nexus between the provisional measures it requested and Palestinian rights to be protected from Israel's violation of Articles II and III: "[t]here is plainly . . . a link between such rights and the additional and modified provisional measures now sought" (para. 18).

- (2) *State of Israel, "Observations of the State of Israel on the Request Filed by the Republic of South Africa on 6 March 2024. . ." (15 March 2024)*

Israel emphatically denied South Africa's contentions that it was culpable of the "commission of acts within the scope of Article II of the Convention" and that there had been a "change in the situation" in Gaza warranting new provisional measures ("Observations," paras. 10, 61). However, Israel notably did not dispute South Africa's contention that the provisional measures indicated by the Court in its January "Order" sought to protect the plausible rights of Palestinians within the scope of Articles II and III of the Convention. In sum, whereas "Israel disputes the legal and factual contentions made by South Africa" (para. 50), it never questioned the consensus opinion of the Court (pre-Donoghue's "clarification") that the January "Order" found that Israel was plausibly committing genocide. Rather the contrary. Israel acknowledged that the provisional measures indicated in the January "Order" "require[d] Israel to take all measures within its power to prevent the commission of all acts within the scope of Article II of the Genocide Convention, to ensure that its military does not commit any such acts, and to prevent and punish the direct and public incitement to commit genocide" (para. 69). If, per the Court's jurisprudence, a provisional measure must be directly linked with a protected right at risk, and if, by Israel's own acknowledgment, provisional measures in the January "Order" sought to protect Palestinians in Gaza from Israel's plausible violation of Article II, then it perforce follows that the Court, in indicating these provisional measures, found that Palestinian rights were at risk by Israel's plausible acts of genocide.

(3) *Court “Order” of 28 March 2024*

The Court recalled that in the January “Order” it “found that at least some of the rights claimed by South Africa under the Genocide Convention and for which it is seeking protection were plausible, namely the right of the Palestinians in Gaza to be protected from acts of genocide and related prohibited acts mentioned in Article III” (“Order” of 28 March 2024, para. 25). If the Court found that the rights of Palestinians in Gaza protected by Article II of the Convention were plausibly at risk, then the Court must have found that Israel was plausibly committing genocide.

(4) *Declarations, Separate Opinions*

- (a) A “Declaration” by the new president of the Court, Nawaf Salam (he succeeded Donoghue, who retired), stated that “[a]s to the purpose of the [new] provisional measures, it is to preserve the rights which the Court recognized as plausible in its Order of 26 January 2024, in particular the right of the Palestinians of Gaza to be protected against acts of genocide and related prohibited acts referred to in Article III of the Genocide Convention” (“Declaration of President Salam,” para. 7). If, according to Salam, there was a “plausible” risk to the rights of Palestinians in Gaza protected by Article II, and if the purpose of the new provisional measures was to “preserve the[se] rights,” then Israel must plausibly have been committing genocide in Gaza. Otherwise, how could Palestinian rights protected by Article II of the Convention have been implicated and how could the Court—limited in its jurisdiction by the scope of the Convention—indicate new provisional measures?
- (b) A “Joint Declaration” by Judges Xue, Brant, Gómez Robledo, and Tladi stated that the January “Order” “determined” that the Palestinians constituted “a protected group within the meaning of Article II of the Genocide Convention. . . . The Court further found that some of the rights claimed by South Africa and for which it is seeking protection are plausible. Such plausible rights, in essence, bear on the fundamental right of the Palestinian people to existence” (“Joint Declaration of Judges Xue, Brant, Gómez Robledo, and Tladi,” para. 6). If, according to this

“Joint Declaration,” the Court found in its January “Order” that some of the rights of Palestinians were “plausible”—i.e., there’s a reasonable possibility that, in the merits phase, the Court will find that Israel violated Palestinian rights protected by the Genocide Convention—and that “in essence” the Court found that the “right of the Palestinian people to existence” was at risk, then Israel must plausibly have been committing genocidal acts defined by Article II of the Convention that jeopardized their existence.

- (c) A “Declaration” by Judge Yusuf stated that “The Court had already recognized, in its Order on provisional measures of 26 January 2024, the right of the Palestinian population of Gaza to be protected from genocide”; “There is no need for the Court at the stage of indication of provisional measures to determine the existence of genocidal intent. . . . The Court has to base itself on the existence of objective indicia relating to the possible commission of genocide. If such indicia exist, which is the case in Gaza, the Court cannot take the position of a powerless bystander”; “When the evidence indicates, as it does in the present case, that the extent of the atrocities committed against civilians, and the death and suffering caused to them, is of an order which exceeds by far the necessities of war and the limits imposed by the laws of war, it is the duty of the Court to call for an end to the killing, the causing of bodily injury or mental harm, and the imposition of conditions of life calculated to bring about the physical destruction of the whole or part of the protected group to prevent the commission of genocide. The Court did so by the first two measures it indicated in its Order of 26 January 2024”; “The Court’s indication of further provisional measures in the present Order shows that it is not satisfied that all that should have been done has been done by Israel to prevent the commission of genocidal acts”; “The alarm has now been sounded by the Court. All the indicators of genocidal activities are flashing red in Gaza” (“Declaration of Judge Yusuf,” paras. 1–3, 5–6, 8, 12). It was thus Yusuf’s understanding that, if the Court indicated the first two provisional measures in its January “Order,” and if it has indicated new provisional measures, that’s because it was

persuaded that—in light of “the existence of objective indicia relating to the possible commission of genocide”—Israel was plausibly committing “genocidal acts.”

- (d) A “Declaration” by Judge Charlesworth stated that the Court “found” in its January “Order” that “the Palestinians in the Gaza Strip have a plausible right to be protected from acts of genocide and related prohibited acts”; these “plausible rights” to be protected from genocide “were at risk of irreparable prejudice”; “to address that urgent need for protection, the Court indicated a series of provisional measures”; “[T]he Court’s mandate is confined to protecting the right of the Palestinian group to be protected from acts of genocide and other prohibited acts under the Genocide Convention only if, and in so far as, that right is prejudiced by Israel’s acts” (“Declaration of Judge Charlesworth,” paras. 3, 6). Thus, according to Charlesworth, the Court had found that the Palestinians of Gaza had a “plausible right” to be protected from “acts of genocide and related prohibited acts”; that this plausible right was “at risk of irreparable prejudice”; and that the Court ordered provisional measures because—indeed, could only indicate provisional measures if—the right to be protected from genocidal acts was “prejudiced by Israel’s acts.”
- (e) A “Separate Opinion” by Judge Nolte stated that he “take[s] very seriously recently voiced concerns that Israel is using hunger as a ‘weapon of war’ and the provision of humanitarian aid as a ‘bargaining chip,’” as well as that the deteriorating conditions in Gaza “reflect a plausible risk of a violation of relevant rights under the Genocide Convention” (“Separate Opinion of Judge Nolte,” paras. 4, 6; internal quotes from, respectively, European Commission, “Statement by High Representative Josep Borrell and Commissioner for Crisis Management Janez Lenarčič on Famine in Gaza”; The White House, “Remarks of President Joe Biden—State of the Union Address as Prepared for Delivery”). It might be inferred, although it’s not certain, that Nolte believed Israel was plausibly in breach of Article II (c) of the Convention (“Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part”).

- (f) A “Separate Opinion” by Judge ad hoc Barak (from Israel) stated that “[a]ny measures indicated by the Court must be based on a plausible intent to commit genocide. If intent is not plausible, no measures can be ordered under the Genocide Convention”; “[to indicate provisional measures, the Court must] draw a strong link between the measures it has indicated and any plausible rights under the Genocide Convention”; “intent . . . is the key requirement in cases of genocide. . . . To modify provisional measures, the Court needs to be satisfied that plausible intent is present in the ‘new’ situation in Gaza”; “[i]n its Order of 26 January 2024, the Court considered that it was necessary to enable the access of basic services and humanitarian assistance to safeguard the plausible right of the Palestinian people to be protected from genocide” (“Separate Opinion of Judge ad hoc Barak,” paras. 6, 9, 18–19, 20; bracketed words added). Although Barak vigorously dissented from the Court’s *application* of the law in the new provisional measures it indicated, he concurred with the majority on the *content* of the law: to indicate provisional measures, it was incumbent upon the Court to draw a “strong link” between each measure indicated and a corresponding right of Palestinians in Gaza protected under the Genocide Convention that was put at risk by Israel’s “plausible intent” to commit genocide.

Conclusion to Section VII A

An analysis of the Court proceedings culminating in the 28 March 2024 “Order” overwhelmingly confirms that, if the Court indicated provisional measures to protect the “plausible rights” of Palestinians in Gaza, then it must have been persuaded of Israel’s “plausible intent” to commit genocide.

(B) May 2024 proceedings

- (1) *Republic of South Africa, “Urgent Request for the Modification and Indication of Provisional Measures. . .”* (10 May 2024)

South Africa stated in its request for new provisional measures that “the onslaught on the Palestinians in Gaza is of a nature that can only be intended to result in the genocidal destruction of that group,”

and that the Court has “repeatedly found ‘that the current situation before it’ entailed a continued and further risk of ‘irreparable prejudice to the plausible rights claimed by South Africa’—‘the right of the Palestinians in Gaza to be protected from acts of genocide and related prohibited acts mentioned in Article III’” (“Urgent Request,” paras. 23, 29; internal quotes from prior Court “Orders”). It was thus South Africa’s understanding that the Court had “repeatedly” acknowledged the “plausible rights” of Palestinians in Gaza per the Genocide Convention to be protected from the “risk” posed by Israel’s “genocidal” “onslaught.”

(2) *“Public Sitting,” Republic of South Africa (16 May 2024)*

South Africa’s legal team established, per the Court’s jurisprudence, these points: “The Court held in January [2024] that the Palestinians have a legal right to protection against genocide, and that South Africa had shown that there was a real and imminent risk to the irreparable violation of that right. The Court issued an Order because it considered it necessary to protect the Palestinian people against genocide. . . . The Court has already found a real and imminent risk of the violation of the rights of the Palestinian people to protection against genocide” (“Public Sitting,” p. 13, para. 3, p. 14, para. 9—Lowe); “The Court . . . found that Palestinians in the Gaza Strip have a plausible right to be protected from acts of genocide. . . . [T]he Court has found that South Africa has advanced a plausible genocide claim. . . . South Africa approaches the Court for new provisional measures to ensure that the rights in issue in the proceedings, including the right of Palestinians to be protected from acts of genocide, will be protected” (p. 17, paras. 3, 6—Dugard); “[T]he Court found [in its January “Order”] that Israel’s conduct in Gaza gave rise to a ‘real and imminent risk that irreparable prejudice would be caused to th[e] rights’ of the Palestinians in Gaza to be protected from violations of the Genocide Convention. . . . [T]he Court has . . . determined a real and imminent risk to the right of a national, racial or ethnic group not to be subjected to acts of genocide” (p. 56, para. 11, p. 60, para. 21—Ní Ghrálaigh). It was thus South Africa’s understanding that—in Professor Dugard’s words—if the Court “found that Palestinians in the Gaza Strip have a plausible right to be protected from acts of genocide,” that’s because it “found that South Africa has advanced

a plausible genocide claim.” The Court’s validation of Palestinian “plausible rights” presupposed that Israel was committing a “plausible genocide.”

(3) *“Public Sitting,” State of Israel (17 May 2024)*

The new provisional measures requested by South Africa included a cessation of Israel’s military operations and its full withdrawal from Gaza. The remarks of Israel’s representatives focused, in turn, on the necessity of pursuing the war against Hamas and Israel’s commitment to providing humanitarian relief. They do not pertain to the questions at issue in this chapter. It is revealing, however, that, even as the delegation went into damage-control mode by denying the grave charges leveled against Israel, and even as Judge Donoghue uttered her “clarification” just a few weeks earlier, no one on the Israeli side dared deny that the Court had found that Israel was plausibly committing genocide.

(4) *Court “Order” of 24 May 2024*

The “Order” stated that “[i]n the Order of 26 January 2024, the Court . . . found that at least some of the rights claimed by South Africa under the Genocide Convention and for which it was seeking protection were plausible, namely the right of the Palestinians in Gaza to be protected from acts of genocide and related prohibited acts mentioned in Article III” (“Order” of 24 May 2024, para. 32); “at least some of the provisional measures sought pursuant to the present Request . . . are aimed at preserving the rights claimed by the Applicant that the Court has found to be plausible” (para. 32); “the current situation arising from Israel’s military offensive in Rafah entails a further risk of irreparable prejudice to the plausible rights claimed by South Africa and that there is urgency, in the sense that there exists a real and imminent risk that such prejudice will be caused before the Court gives its final decision” (para. 47). The only coherent interpretation of these statements is that the rights of Palestinians stipulated in Articles II and III of the Convention had been at imminent risk of irreparable harm by Israel’s plausible genocide and the Court indicated provisional measures to avert Israel’s further plausible violation of those Palestinian rights protected by the Convention pending the merits phase. The “Order”

“*[r]eaffirm[ed]*” the provisional measures indicated in prior Orders, “which should be immediately and effectively implemented,” and indicated, inter alia, the new measure that “[t]he State of Israel shall, in conformity with its obligations under the Convention on the Prevention and Punishment of the Crime of Genocide, . . . [i]mmediately halt its military offensive, and any other action in the Rafah Governorate, which may inflict on the Palestinian group in Gaza conditions of life that could bring about its physical destruction in whole or in part” (para. 57; emphasis in original).

(5) *Declarations, Dissenting Opinions*

- (a) A “Declaration” by Judge Nolte stated that “[i]n the present case, the Court’s jurisdiction is limited to the Genocide Convention” (“Declaration of Judge Nolte,” para. 11); “[t]he reason for today’s measure is, in my view, that Israel has not sufficiently demonstrated that it can ‘enable the provision of urgently needed basic services and humanitarian assistance to address the adverse conditions of life faced by Palestinians’ without limiting its current military offensive in Rafah” (“Declaration,” para. 18; internal quote from the “Order” itself); “[to indicate a provisional measure,] it is not necessary to find that it is plausible that the current military offensive in Rafah, or the military operation in the Gaza Strip more generally, as such is being pursued with genocidal intent. Indeed, I remain unconvinced that the evidence presented to the Court provides plausible indications that the military operation undertaken by Israel as such is being pursued with genocidal intent” (para. 17; bracketed words added); “[t]o find that Israel’s ‘obligation to prevent, and the corresponding duty to act,’ plausibly exist, it is not necessary to find that Israel has violated its obligations under the Genocide Convention. For the obligation of prevention under the Genocide Convention to arise, a serious risk of conduct falling within the scope of Article III of the Genocide Convention and the knowledge of a State of such a risk is [*sic*] sufficient. At the present stage of provisional measures, it is sufficient that a risk of conduct falling within the scope of Article III of the Genocide Convention and the knowledge of Israel of such a risk is plausible” (“Declaration,” para. 19; internal

quote from *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v. Serbia and Montenegro)*, Judgment, I.C.J. Reports 2007); “the measure obliging Israel to halt the current military offensive in Rafah is conditioned by the need to prevent ‘conditions of life that could bring about [the] physical destruction in whole or in part’ of the Palestinian group in Gaza” (“Declaration,” para. 25; internal quote from the “Order” itself). Although Nolte did vote for the provisional measures, his “Declaration” is in neither spirit nor letter faithful to the “Order”; nor is it on its own terms coherent. He purported that, whereas Israel was not plausibly committing genocide, it was plausibly engaged in “direct and public incitement to commit genocide” (prohibited by Article III (c) of the Convention) notwithstanding the genocidal “risk” attending such incitement (paras. 22–24). Consider, however, the “Order’s” text. *First*, it reiterated that the original “Order” of 26 January safeguarded “the right of the Palestinians in Gaza to be protected from *acts of genocide* and related prohibited acts mentioned in Article III” (emphasis added). Israel, according to the Court’s jurisprudence, was not just plausibly inciting genocide (prohibited by Article III), but also plausibly *committing* genocide (defined by Article II). *Second*, if, according to Nolte, the new provisional measure called for a halt to Israel’s military offensive in Rafah so as to enable the delivery of humanitarian assistance, then the offensive must have plausibly violated Article II (c) of the Genocide Convention that prohibits the “act” of “[d]eliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part.” No other protected right in the Genocide Convention links to this provisional measure. Nolte himself explicitly stated that this measure was “conditioned by the need to prevent ‘conditions of life that could bring about [the] physical destruction in whole or in part’ of the Palestinian group in Gaza.” The internal quote is manifestly a paraphrase of Article II (c) of the Convention delineating this genocidal act. He could have coherently supported this provisional measure only if he had been persuaded that Israel was plausibly committing an “act” of genocide defined by Article II.

- (b) A “Declaration” by Judge Tladi and a “Declaration” by Judge Aurescu are not germane to the points of contention in this chapter.
- (c) A “Dissenting Opinion” by Judge ad hoc Barak denied that Israel was committing genocide in Gaza—on the contrary, Israel was said to be waging an existential war against Hamas—or that a humanitarian catastrophe was looming in Gaza warranting new provisional measures. Per the relevant law, Barak stated that the new provisional measure “requires Israel to halt its military offensive in the Rafah Governorate only in so far as is necessary to comply with Israel’s obligations under the Genocide Convention” (“Dissenting Opinion of Judge ad hoc Barak,” para. 1); “[Israel’s] military operation does not plausibly raise questions under the Genocide Convention” (para. 5); “The power of the Court to indicate provisional measures . . . has as its object the preservation of the rights claimed by a party, pending a decision on the merits. In the present case, the rights in question are those that exist under the Genocide Convention. No more, no less. South Africa’s task was, therefore, to demonstrate that Israel’s actions create a risk of irreparable prejudice to *those* rights. . . . The conduct of a State can only create a risk of irreparable prejudice to rights under the Genocide Convention, if such conduct falls within the scope of the Convention. For this to be the case, the specific intent to commit genocide (*dolus specialis*) must be present. If the *dolus specialis* of genocide is absent, the conduct does not fall within the scope of the Convention and, consequently, the rights under the Genocide Convention are not implicated” (paras. 16–17; emphasis in original); “The Court can *only* indicate measures to protect rights that are plausible under the Genocide Convention. The relevant question is one of plausible intent. I do not see how Israel’s conduct could even plausibly amount to a pattern that provides the basis for inferring the specific intent required by the Genocide Convention” (para. 24; emphasis in original); “How can the measures indicated by the Court preserve rights under the Genocide Convention when there is no show of intent whatsoever?” (para. 25). Whereas Barak disputed the factual content of the “Order,” he concurred with the Court majority

as to the legal strictures informing it: *the Court could not have indicated provisional measures unless it had been persuaded that Israel was plausibly committing genocide in violation of the Genocide Convention*. Put otherwise, if the Court did indicate provisional measures, it must have been persuaded that Israel was plausibly committing genocide.

- (d) A “Dissenting Opinion” by Vice-President Sebutinde stated that no new provisional measures were necessary (para. 1). Relying almost exclusively on official Israeli sources and turning a blind eye to *all* contrary evidence submitted by UN and humanitarian agencies, it concluded that “the evidence actually shows a gradual improvement in the humanitarian situation in Gaza” (paras. 9–18). Apart from stray remarks, the dissent is not germane to the questions at issue in this chapter.

Conclusion to Section VII B

The most pertinent exposition of the relevant law can be found in the dissenting opinion of eminent Israeli judge ad hoc Aharon Barak: the Court can only indicate provisional measures if it is persuaded that “*those*” rights of Palestinians in Gaza protected by the Genocide Convention are plausibly at “risk of irreparable prejudice” by Israel’s “specific intent to commit genocide.” Or, as the eminent senior counsel for South Africa, John Dugard, put it, if the Court “found that Palestinians in the Gaza Strip have a plausible right to be protected from acts of genocide,” that’s because it “found that South Africa has advanced a plausible genocide claim.” Or, as the eminent senior counsel for Israel, British barrister Malcolm Shaw, put it, “The Court is asked to grant in this case a number of measures that, in effect, assume that the Party in question is committing genocide.”¹² Contra Donoghue, the “plausible rights” of Palestinians in Gaza presupposed Israel’s plausible genocide. “No more, no less.”

12. “Dissenting Opinion of Judge ad hoc Barak” (24 May 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240524-ord-01-05-en.pdf>), p. 5, paras. 16–17; “Public Sitting” (16 May 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240516-ora-01-00-bi.pdf>), p. 17, para. 3—Dugard; “Public Sitting” (12 January 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240112-ora-01-00-bi.pdf>), p. 29, para. 29—Shaw.

Final Reflections

On 26 April 2024, former president of the International Court of Justice Joan Donoghue was interviewed on a British news program. Donoghue represented the US on the Court when South Africa filed an *Application* accusing Israel of genocide in Gaza. During the interview, Donoghue dropped a bombshell, albeit in opaque, seemingly contradictory, language: contrary to widespread belief, the Court “didn’t decide that the claim of genocide was plausible.” Rather, the Court

decided that the Palestinians had a plausible right to be protected from genocide . . . [i]t did emphasize . . . that there was a risk of irreparable harm to the Palestinian right to be protected from genocide, but the shorthand that often appears which is that there is a plausible case of genocide isn’t what the Court decided.

A scrupulous reading of the totality of the Court record belies the gravamen of Donoghue’s clarification—“that there is a plausible case of genocide isn’t what the Court decided.” It reveals a broad consensus on the relevant legal facts: the Court’s jurisdiction was based on the Genocide Convention; if the Court majority concurred that “plausible rights” of Palestinians under the Convention were at risk, that perforce signaled the majority’s conviction that Israel was plausibly in violation of the Convention; and if the Court majority voted in the 26 January 2024 “Order” (when Donoghue was the President) in favor of the first and second provisional measures protecting Palestinians in Gaza from violations of the Convention defined in Article II, then the majority—including Donoghue, who dramatically read out loud in the Court chambers the damning evidence against Israel—must have been persuaded that Palestinian rights were plausibly imperiled by Israeli acts of genocide. That is the law. That is what the Court majority decided. No amount of verbal muck can alter this. Donoghue could not possibly have misapprehended the facts and logic of the relevant law. When she subsequently stated that the Court “didn’t decide that the claim of genocide was plausible,” Donoghue uttered a shameful and shameless lie. In fact, the most compelling witness against Donoghue is Donoghue herself. In a post-BBC interview, she stated that, in order for the Court to indicate provisional measures, it first had to decide, “Is

there a risk that the right of this Palestinian population to be free of genocide would be harmed irreparably before the court delivered its judgment?”¹³ If it indicated provisional measures, then, by Donoghue’s own reckoning, the Court must have concluded that Israel was plausibly committing genocide.

In the annals of Gaza’s martyrdom, the Donoghue “clarification” is not the first mockery of the judicial function by a distinguished judge. After Israel’s hi-tech murder spree in Gaza, Operation Cast Lead (2008–9), South African judge Richard Goldstone was appointed head of a UN fact-finding mission to investigate violations of international humanitarian law during the Israeli assault.¹⁴ Goldstone himself was a respected international jurist and—not incidentally—a self-described Zionist active in Jewish causes. Goldstone’s eponymous report marked a milestone: it documented in voluminous detail Israeli war crimes and possible crimes against humanity in Gaza. Goldstone came under a torrent of personal abuse and threats. On 1 April 2011, Goldstone dropped a bombshell. He recanted the report in a *Washington Post* op-ed. Like Donoghue’s clarification, Goldstone’s recantation was written in opaque prose. Like Donoghue, he did not consult his colleagues before publishing his recantation but, on the contrary, did an end-run around them. Like Donoghue’s clarification, the substance of his recantation could not be squared with the extant documentary record. Whatever motivated Goldstone to recant, it wasn’t Truth and it wasn’t Justice. He disgraced his calling, and himself. Still, the Israeli massacre had already long passed. Donoghue’s despicable lie came amidst the unfolding Israeli genocide in Gaza. When the world looked to the International Court of Justice to stanch the flow of blood, Donoghue stepped in—to sabotage its work.

13. “Behind the Bench with ICJ’s Former President Joan Donoghue,” *Borderlines*, Berkeley Law, University of California (5 June 2024; <https://www.law.berkeley.edu/podcast-episode/behind-the-bench-with-icjs-former-president-donoghue>, 00:05:40–00:05:50).

14. Norman G. Finkelstein, *Gaza: An inquest into its martyrdom* (Oakland: 2018), pp. 87–116.

Postscript

In September 2025, UK Foreign Secretary David Lammy issued a statement denying that Israel was committing genocide in Gaza. In a distinct echo of Joan Donoghue’s mendacious BBC interview and an indication of its baleful repercussions, Lammy asserted in defense of his government’s position that “the ICJ has neither found that Israel has breached its obligations under the Genocide Convention, *nor ruled on the plausibility of Israel committing genocide*” (emphasis added).¹⁵ The latter contention was an incontrovertible lie. Indeed, the International Association of Genocide Scholars stated just a few days earlier in August 2025 that “the International Court of Justice found . . . in the case of *South Africa v. Israel* . . . that it is plausible that Israel is committing genocide in its attack in Gaza,”¹⁶ while a UN Commission of Inquiry chaired by former UN High Commissioner for Human Rights Navi Pillay stated just a few days after Lammy’s remarks in September 2025 that “the International Court of Justice put all States on notice of the plausibility of the State of Israel committing genocide in its military operations in Gaza since 7 October 2023.”¹⁷ The Donoghue-Lammy duo are not just outliers—they’re outlaws.

15. David Lammy, “Letter to Sarah Champion, Foreign, Commonwealth & Development Office, UK Parliament” (1 September 2025; <https://committees.parliament.uk/publications/49215/documents/262248/default>).

16. International Association of Genocide Scholars, “IAGS Resolution on the Situation in Gaza” (31 August 2025; <https://genocidescholars.org/wp-content/uploads/2025/08/IAGS-Resolution-on-Gaza-FINAL.pdf>).

17. *Legal Analysis of the Conduct of Israel in Gaza Pursuant to the Convention on the Prevention and Punishment of the Crime of Genocide* (16 September 2025; <https://www.ohchr.org/sites/default/files/documents/hrbodies/hrcouncil/sessions-regular/session60/advance-version/a-hrc-60-crp-3.pdf>), para. 247.

EPILOGUE

This book was written to expose lies and restore Truth. It will not save lives. The genocide in Gaza is too far gone. Is the book then pointless? For the dead, yes. But for the living, no. The demand sounded in the book's Prologue stands: not just the perpetrators in Israel but also their accomplices in high places—blood-soaked, all—must be held accountable. Still, in light of the enormity that Israel has visited on Gaza, it would be meager recompense. But there's something else. To live a life bereft of Truth and Justice even as aspirations would be unendurable. To reclaim Truth (even if it's ignored) and to demand Justice be done (even if it's in vain) are ultimately acts of “willing, or rather of choosing, . . . purely spiritual acts about which the laws of mechanics explain nothing” (Rousseau). It's choosing the world one wants to live in and is prepared to sacrifice for. However futile the endeavor, however derisory the material results, the pursuit of Truth and Justice is its own reward. To surrender them without a fight is to relinquish one's humanity.

Mr. Winthrop's vote [supporting the Mexican War] was wrong. It was wrong by the law of nations, and by the higher law of God. . . . It cannot be forgotten on earth; it must be remembered in heaven. Blood! Blood! is on the hands of the representative from Boston. Not all great Neptune's ocean can wash them clean.

—Abolitionist Charles Sumner

Requiem

A Declaration of War Against Gaza

United Nations Security Council Resolution 2803 (2025)

On 17 November 2025, the UN Security Council passed, by thirteen votes to zero with two abstentions, a milestone resolution imposing a ceasefire in Gaza and charting a path forward based on “President Donald J. Trump’s Comprehensive Plan to End the Gaza Conflict.”¹ The resolution was simultaneously a revelation of moral insolvency and a declaration of war against Gaza. It was—to quote Abraham Lincoln’s disdain at the *Dred Scott* decision stripping Black people of any rights—a “burlesque upon” the rule of law. By proclaiming international law null and void, the Security Council proclaimed itself null and void. Vis-à-vis Gaza, the Council transmuted into a criminal conspiracy. The Council and Gaza having been thrust into the antechamber of the state of nature, mutual relations between them reverted to being regulated by the laws of nature, whereby the Council members that “declared war . . . may be destroyed as a lion or a tyger, one of those wild savage beasts, with whom

1. “UN Security Council Resolution 2803 (2025)” (17 November 2025, S/RES/2803; [https://docs.un.org/en/S/RES/2803\(2025\)](https://docs.un.org/en/S/RES/2803(2025))). Russia and China abstained. The prime impetus behind President Trump’s initiative sprang not from the “Gaza conflict” per se but elsewhere. If he was to seal his long-coveted “deal of the century” formally incorporating Saudi Arabia within the US-Israeli sphere of influence (à la the Abraham Accords), then the Saudis needed the fig leaf of a “ceasefire” to placate Arab public opinion. Hardly had the ink dried on the UN resolution before the Saudi crown prince received a royal reception at the White House.

men can have no society nor security.”² The people of Gaza suffer no obligation to obey this grotesque resolution; on the contrary, the Council, by virtue of it, “becomes dangerous to mankind” and “every man upon this score, by the right he hath to preserve mankind in general, may restrain, or where it is necessary, destroy things noxious to them.”³ The Council didn’t just issue Gaza a death warrant; it also issued its own.

A UN resolution, even one just calling for an immediate ceasefire, is typically set off by a painstaking preamble “*Recalling*,” “*Reaffirming*,” “*Emphasizing*,” “*Reiterating*,” etc., the parameters and particularities of the relevant law defined by UN organs.⁴ This new resolution, which prescribed not only the terms of a ceasefire but also a roadmap for resolving the Israel-Palestine conflict writ large, emerged *ex nihilo*, inscribed on a *tabula rasa*. According to entrenched law, ratified by the International Court of Justice (ICJ), Gaza constituted, alongside the West Bank, including East Jerusalem, “Occupied Palestinian Territory”; “As an occupying Power, Israel must refrain from . . . impeding the Palestinian people from exercising its right to self-determination, including its inalienable right to territorial integrity over the entirety of the Occupied Palestinian Territory”; “Israel’s continued presence in the Occupied Palestinian Territory is illegal. . . . Consequently, Israel has an obligation to bring an end to its presence in the Occupied Palestinian Territory as rapidly as possible.”⁵ This robust and enduring legal consensus crystallized after protracted deliberations spanning almost eight decades among multiple UN organs and was anchored in fundamental norms of international law: the prohibition on the acquisition of territory by war and the right of peoples to self-determination. The new UN resolution deposited this comprehensive legal framework into the dumpster. All that survived was a pathetic fragment “*noting* prior relevant Security Council resolutions relating to the situation in the Middle East, including the Palestinian question” (emphasis in original).⁶ What’s more, the resolution left Gaza’s legal status

2. John Locke, *Second Treatise of Government* (1690), para. 11.

3. *Ibid.*, para. 8.

4. See, e.g., “United States of America: Draft resolution” (25 October 2023, S/2023/792; <https://docs.un.org/en/S/2023/792>), and “Russian Federation, Sudan and Bolivarian Republic of Venezuela: Draft resolution” (25 October 2023, S/2023/795; <https://docs.un.org/en/S/2023/795>).

5. See Chapter 3 of this book.

6. It also made desultory reference to unspecified “international legal principles,” “international law, including international humanitarian law.”

suspended in juridical limbo. Nowhere did the resolution so much as hint that Gaza was part of Occupied Palestinian Territory, let alone that it was *illegally* occupied territory, that it is the Palestinian people's inalienable right to exercise self-determination in the entirety of this Palestinian territory, and that Israel must withdraw from it "as rapidly as possible." Shorn of any public standing, left dangling by a thread in a juridical void, Gaza was reduced by the Security Council in one fell swoop to the extralegal status of—in the idiom of the European conquest of Africa—*res nullius* ("thing of nobody").

The resolution divided into three mandates: a Board of Peace (BoP), an International Stabilization Force (ISF), a political roadmap:

Board of Peace. The resolution authorized "the establishment of the Board of Peace (BoP) as a transitional administration with international legal personality that will set the framework, and coordinate funding for, the redevelopment of Gaza." The resolution fell silent on the modalities of the BoP—how it would be constituted, who would sit on it. . . —except for one crucial detail. Its first operative paragraph "[e]ndorses" without caveat the Trump Plan (annexed to the resolution) and "*calls on* all parties to implement it in its entirety" (emphases in original). The Trump Plan in turn resolved that the BoP—surprise! surprise!—"will be headed and chaired by President Donald J. Trump." Lest any doubt lingered on this score, the US representative asserted right after the Security Council vote that "the Board of Peace, which will be led by President Trump, remains the cornerstone of our effort." In their subsequent remarks, not one Council member voting in favor of the resolution registered any objection.⁷ The resolution didn't hold the Board accountable to the UN or any other entity; except that it "*requests*" that the Board submit a biannual progress report to the Security Council, it made no provision whatsoever for external oversight (emphasis in original). Unconstrained by any institutional force within or without the BoP, the upshot was that Trump's control over Gaza was total. The wonder was that the resolution didn't include in an annex the formal transference of deed to The Trump Organization. Provoking widespread consternation, President Trump boasted in early 2025 that "[t]he U.S. will take over the Gaza Strip" and "[w]e'll own it."⁸ If, in Trump

7. United Nations Security Council, 10046th Meeting, "The Situation in the Middle East, Including the Palestinian Question" (17 November 2025; <https://digitallibrary.un.org/record/4093696?ln=en&cv=pdf>).

8. Dave Lawler and Barak Ravid, "Trump Claims U.S. Will 'Take Over' Gaza and Turn It into New 'Riviera,'" *Axios* (4 February 2025; <https://www.axios.com/2025/02/05/trump->

world, *we* denotes *me—l'état, c'est moi*—then his words proved prescient: courtesy of the Security Council, Gaza now figured as one more property in his portfolio. Will his next move be, per the board game *Monopoly*, to build houses and hotels in his fantasy Riviera on the Mediterranean? The BoP was a throwback to the Berlin Conference of 1884–85 when the Great Powers handed title over the Congo to the International Association of the Congo created and controlled by one of Europe's richest men, King Leopold II of Belgium. He was then declared the Congo's sole owner: "It was a personal state, the property of one capitalist of genius, the King-Sovereign."⁹ Leopold had pledged to "open to civilization the only part of our globe where it has yet to penetrate, to pierce the darkness which envelops whole populations." In the shadows of his "crusade worthy of this century of progress," Leopold presided over a lucrative sideline in the ivory and rubber trade in which he worked to death as many as 15 million Congolese. It was an auspicious precedent, and the Security Council passed the baton to a deserving heir: didn't Trump possess in abundance the apposite "international legal personality"—of a criminally deranged megalomaniac?

The resolution charged the BoP with coordinating both humanitarian aid and reconstruction. Neither will come to pass. A 2025 ICJ advisory opinion found that the United Nations Relief and Works Agency (UNRWA) was the only humanitarian organization in Gaza technically competent to provide aid at scale, and that Israel must cooperate with it.¹⁰ However, falsely alleging that UNRWA was riddled with Hamas members who diverted aid, Israel has fought tooth and nail to discredit and dismantle it. The original US draft of the new Security Council resolution sustained Israel's spurious allegations as it stated that "any organization found to have misused aid would be ineligible to provide continued or future assistance—a provision that was perceived to target the UN Relief and Works Agency."¹¹ So brazen was this frontal attack on the ICJ opinion that the US was forced to tone it down, but the adopted

gaza-takeover-palestinians-israel).

9. Thomas Pakenham, *The Scramble for Africa: The white man's conquest of the dark continent from 1876 to 1912* (New York: 1991), passim ("personal state" at p. 588).

10. See Chapter 3 of this book.

11. Security Council Report, "The Middle East, Including the Palestinian Question: Vote on a draft resolution to authorize an International Stabilization Force in Gaza" (16 November 2025; <https://www.securitycouncilreport.org/whatsinblue/2025/11/the-middle-east-including-the-palestinian-question-vote-on-a-draft-resolution-to-authorise-an-international-stabilization-force-in-gaza.php>).

text still incorporated language—the BoP was charged with “ensuring such aid is used solely for peaceful uses and not diverted by armed groups”—that Israel could exploit so as to refuse cooperation with the only relief agency able to meet Gaza’s humanitarian needs. To judge by its track record going back decades, Israel won’t admit more than a “humanitarian minimum” of aid, if that much and probably a lot less. The days of weaponizing starvation as a method of warfare won’t be over until and unless the Gaza “question” has been “solved.”¹² The reconstruction of Gaza won’t happen because it can’t happen and because Israel won’t let it happen. Just clearing out the more than 60 million tons of rubble intermixed with toxic substances and unexploded ordnance—not to mention, dead bodies—would take more than fifteen years, while actual rebuilding could take as many as eight decades.¹³ And, anyhow, Israel won’t allow it. It didn’t expend more than two years turning Gaza into a moonscape so as to make it uninhabitable, only to abruptly reverse course, clasp hands with the people of Gaza, intone *om*, chant *Give Peace a Chance*, sing *Kumbaya*, and, like the Seven Dwarfs, merrily *heigh-ho, heigh-ho* while rehabilitating Gaza’s pulverized infrastructure. Israel will no doubt justify a ban on entry of cement and steel by reinvoking the specious pretext that Hamas might redirect them to build tunnels. The Security Council resolution provided no external oversight mechanism and so no one can compel either the BoP or Israel—not that the powers-that-be give a damn—to cooperate with UNRWA or admit reconstruction material.¹⁴ The almost certain

12. See the Prologue of this book and Norman G. Finkelstein, *Gaza: An inquest into its martyrdom* (Oakland: 2018), p. 33n57.

13. See Prologue of this book, and Paul Brown et al., “‘Worse than Starting from Scratch’: How big is the task of rebuilding Gaza?,” *BBC* (15 October 2025; <https://www.bbc.com/news/articles/cr5e4ee9r130>).

14. The alarm has been sounded that Gaza will be partitioned into a security “Green Zone” comprising more than half of Gaza, where reconstruction will be permitted for returning Gazans, versus a “Red Zone” comprising the bulk of Gaza’s population, where reconstruction will be barred until Hamas is disarmed. If for a disheartening reason, such fears are unfounded: there won’t be reconstruction *anywhere* in Gaza. Israel will either annex the security perimeter or turn it into a buffer zone. In either case, it won’t allow for reconstruction except perhaps for a handful of Potemkin villages that will house the “hewers of wood, drawers of water”—i.e., coolie labor—as well as armed Gazans collaborating with Israel. The last thing Israel wants in any areas under its control is more Arabs; ideally, they would be Arab-rein. See Sari Bashi, “Gaza: The threat of partition,” *New York Review of Books* (23 November 2025); Dov Lieber and Summer Said, “US Pushes a Hamas-Free ‘Green Zone’ in Gaza,” *Wall Street Journal* (21 November 2025); Jonathan Whittall, “How the US-Israeli ‘Peace Plan’ Will Partition Gaza,” *Al Jazeera* (22 November 2025; <https://www.aljazeera.com/opinions/2025/11/22/>).

outcome of the new resolution will be that Gaza returns to the status quo ante 7 October—its inhabitants forgotten by the outside world, left to languish and die in a concentration camp—with the crucial difference that Gaza itself is no more. The Palestinians of Gaza have been left with the two options signaled by Israel when it embarked on the genocide: stay and die, or flee.¹⁵ Israel gave its all to induce a stampede; now it will have to settle for a trickle. The intermittent ceasefire in place, Israel's final solution has entered a new, no less lethal albeit less visible, phase.¹⁶ Greenlighting it, the Security Council stands in the dock of history as an accessory to genocide.

International Stabilization Force. The resolution authorized the establishment of a “temporary International Stabilization Force (ISF),” the charge of which was to “stabilize the security environment in Gaza by ensuring the process of demilitarizing the Gaza Strip.” The ISF was to operate in “close consultation and cooperation” with Egypt and Israel. It must be conceded that the resolution recruited a pair of virtuosos at pacification: Egyptian strongman Abdel Fattah el-Sisi seized power in a military coup that climaxed “in one of the world's largest killings of demonstrators in a single day in recent history,”¹⁷ while Israel had invested the previous two years in comprehensively stabilizing Gaza by erasing it. Although emphatic that Gaza must be disarmed “us[ing] all necessary measures,” the resolution was conspicuously mute as to *why* it must be. The reason for this silence wasn't hard to find. If Gaza had to be demilitarized because of the 7 October massacre, then the obvious question arose: After committing a genocide that killed incomparably more innocents, didn't Israel also need to be demilitarized? Judging by the resolution's content (or the lack thereof), Israel's conduct was as virginally pure as the white sheet of paper upon which the resolution was inscribed. Its criminal blockade and periodic hi-tech killing sprees before 7 October¹⁸ and the genocide that ensued after

how-the-us-israeli-peace-plan-will-partition-gaza); Emma Graham-Harrison, “US Military Planning for Divided Gaza with ‘Green Zone’ Secured by International and Israeli Troops,” *Guardian* (14 November 2025).

15. See Prologue of this book.

16. Amnesty International, “Post-Ceasefire: Israel's genocide in the Occupied Gaza Strip continues” (27 November 2025; <https://www.amnesty.org/en/documents/mde15/0527/2025/en>).

17. Human Rights Watch, *All According to Plan: The Rab'a massacre and mass killings of protesters in Egypt* (12 August 2014; <https://www.hrw.org/report/2014/08/12/all-according-plan/raba-massacre-and-mass-killings-protesters-egypt>).

18. See Prologue of this book.

7 October vanished from the UN annals. Only barbaric Gaza needed to be civilized, at gunpoint.¹⁹ For all the horror of 7 October, the fact also remained that a people under occupation wasn't legally debarred from armed resistance. International law prohibits use of military force "by an administering power to suppress widespread popular insurrection in a self-determination unit," while "the use of force by a non-State entity in exercise of a right of self-determination is legally neutral, that is, not regulated by international law at all."²⁰ An occupied people must obey the laws of war but, all the same, it retains the prerogative to violently resist a violent occupation. The Security Council resolution thus triply breached international law: it punished the lesser but not the greater violator of international humanitarian law; it granted Israel a right to suppress armed resistance not granted other occupiers; it denied Gazans a right to armed resistance not denied other people living under occupation.

Political Roadmap. The resolution stated that the BoP would cede sovereign power over Gaza only when "the Palestinian Authority (PA) has satisfactorily completed its reform program," and that "[a]fter the PA reform program is faithfully carried out and Gaza redevelopment has advanced, the conditions may finally be in place for a credible pathway to Palestinian self-determination and statehood." By making Palestinian self-determination and statehood conditional, the UN regressed to the League of Nations era. In the League mandates system instituted after World War I, former colonies of the defeated Central Powers, allegedly "not yet able to stand by themselves under the strenuous conditions of the modern world," were placed under the "tutelage" of

19. Whereas several States (US, UK, France, Greece, Panama) supporting the resolution condemned Hamas in statements right after the vote was taken, except for a single sentence by Algeria, not one State supporting the resolution uttered one word of criticism of Israeli actions after 7 October.

20. James Crawford, *The Creation of States in International Law*, second edition (Oxford: 2006), pp. 135–37, 147. See also Heather A. Wilson, *International Law and the Use of Force by National Liberation Movements* (Oxford: 1988), pp. 135–36 ("[the law] is still not agreed upon" as to the right of national liberation movements to use force, although "the trend . . . since 1960 . . . has been toward the extension of the authority to use force to national liberation movements," while "the use of force to deny the free exercise of a people's right to self-determination is contrary to the principles of international law"); A. Rigo Sureda, *The Evolution of the Right of Self-Determination: A study of United Nations practice* (Leiden: 1973), pp. 331, 343–44, 354 ("The fact that the Security Council has never expressly condemned the guerrilla activities of the Palestinians can be interpreted as an implied recognition of their right to recover at least the territories from which they were displaced in the June 1967 hostilities, and to do so by the use of force if necessary"); Finkelstein, *Gaza*, pp. 140–41.

“advanced nations” until they demonstrated the fitness to be independent. After World War II, the twin principles of decolonization and self-determination seized center stage at the UN (the League’s successor). The self-serving paternalistic conceit, incorporated in the League Covenant, that “non-self-governing territories” required a tutelary period before attaining independence was scrapped. Instead, the seminal 1960 UN General Assembly resolution, “Declaration on the Granting of Independence to Colonial Countries and Peoples” (1514), asserted that “inadequacy of political, economic, social or educational preparedness should never serve as a pretext for delaying independence.” The new Council resolution annulled sixty-five years of UN practice.

The resolution didn’t specify objective benchmarks to assess whether or not the PA “has satisfactorily completed its reform program,” while “Gaza redevelopment” will almost certainly and at minimum take decades. What’s more, even if the PA “satisfactorily completed” and “faithfully carried out” reforms, and even if Gaza redevelopment was sufficiently advanced, the prospect of Palestinian self-determination and statehood would still be indeterminate: meeting these criteria “may”—or may not—advance the political process, and even if it did, the Palestinian people would still only be on a “pathway” to statehood—i.e., not yet there. That outcome would be held in abeyance pending “a dialogue between Israel and the Palestinians to agree on a political horizon for peaceful and prosperous coexistence.” In other words, were Palestinians to meet all the—nebulous—demands put on them, they still could not exercise their “inalienable right” to self-determination and statehood even in the distant future until and unless Israel agreed to it. The resolution further stated that “the Israel Defense Forces (IDF) will withdraw from the Gaza Strip based on standards, milestones, and timeframes linked to demilitarization that will be agreed between the *IDF*, *ISF*, the guarantors [?], and the United States, save for a security perimeter presence that will remain until Gaza is properly secure from any resurgent terror threat” (emphasis added). That is, the resolution endowed Israel with veto power over both the exercise of Palestinian self-determination and any withdrawal of Israeli forces from Gaza, thus ensuring that neither would ever come to pass.

A multitude of UN resolutions as well as ICJ opinions had variously and cumulatively found that Palestinians constituted a “people”; that the West Bank, including East Jerusalem, and the Gaza Strip, constituted “Occupied Palestinian Territory” (OPT); that the Palestinian people possessed an “inalienable right” to self-determination and statehood in the “entirety” of the OPT; that Israel’s occupation of the OPT was “illegal”;

and that Israel was legally obliged to withdraw from the OPT “as rapidly as possible.” The political roadmap laid out in the resolution eviscerated the massive UN record on the Israel-Palestine conflict that was assembled over many decades with near-unanimous agreement. By signing onto resolution 2803 (2025), the Security Council committed suicide. The ultimate irony was that the supreme political organ of the UN immolated itself in order to placate a gangster juggernaut in Washington that heaped only scorn on the organization, to the point of sabotaging by defunding it; and, even as the Trump administration successfully extorted—at the behest of its, albeit scaled down, gangster doppelganger in Tel Aviv—this criminal resolution, it would not be deterred from its crazed crusade, in which no mode of coercion was out of bounds, to crush (or neuter) the UN and anything else that stood in its path. The hunger increases with each bite. Is prostrate Gaza now safely in the rear-view mirror of the Arab/Muslim states—Algeria, Egypt, Indonesia, Jordan, Pakistan, Qatar, Saudi Arabia, Palestine, Türkiye, United Arab Emirates—that lined up with Big and Little Moloch, or is it a morbid signpost of their own futures?²¹

[A]rbitrary power is not to be had by conquest. Nor can any sovereign have it by succession; for no man can succeed to fraud, rapine, and violence. Neither by compact, covenant, or submission—for men cannot covenant themselves out of their rights and their duties; nor by any other means, can arbitrary power be conveyed to any man. Those who give to others such rights perform acts that are void as they are given. . . . Those who give and those who receive arbitrary power are alike criminal; and there is no man but is bound to resist it to the best of his power, wherever it shall show its face to the world. It is a crime to bear it, when it can be rationally shaken off. Nothing but absolute impotence can justify men in not resisting it to the utmost of their ability.

—Edmund Burke, “Speech on the Impeachment of Warren Hastings”

21. At the end of the American Civil War, the secessionist Confederate states in desperation authorized the enlistment of Black soldiers. “He, perhaps, ought to be a slave, if he desires it ardently enough to fight for it,” President Lincoln sardonically reacted. “Or, if one out of four will, for his own freedom, fight to keep the other three in slavery, he ought to be a slave for his selfish meanness. I have always thought that all men should be free; but if any should be slaves it should be first those who desire it for *themselves*, and secondly those who *desire* it for *others*.” (emphases in original) Falling at once under both rubrics, the Arab/Muslim states that voted for this resolution doubly deserved their fate.

The original purpose of this book was therapeutic: to isolate, so as to enable the UN to excise, pockets of corruption that, albeit rare but nonetheless egregious and pernicious, tainted its record on the Gaza genocide. The UN did not halt the enormity that befell Gaza but overwhelmingly did not abet it either. Until now. Resolution 2803 directly implicated the Security Council itself in the ongoing genocide. It also condemned the tormented and tortured people of Gaza, or those not killed off, to eternal martyrdom. “The fish stinks first from the head.” It’s only a matter of time before the corruption in the Security Council spreads throughout the UN system. An epoch has passed. The silently raised hands ratifying the resolution sounded its death knell. Going forward, the cause of Justice will have to be reconstituted on a new foundation. It must be said without recoiling—for it is the Truth—but also being cognizant of the gravity of the verdict that: *After 17 November 2025, the UN is a rotting corpse.*



FIGURE 5. Former ICC chief prosecutor Fatou Bensouda. © Pacific Press Agency/Alamy Stock Photo.

APPENDIX

Civil War

ABSTRACT

Amidst Israel's genocide in Gaza in 2024, and as attention was riveted on legal bodies charged with prosecuting war crimes, it was reported that Israel had attempted to blackmail former chief prosecutor of the International Criminal Court (ICC) Fatou Bensouda during her term of office (2012–2021).¹ It was a squalid tale of secret wiretaps, compromising transcripts, and clandestine meetings. But—as told—it ends on an inspiring note: the fearless and principled former chief prosecutor waved off the threats and proceeded to investigate Israel. “Israel misjudged Bensouda,” former Human Rights Watch head Kenneth Roth exulted. “She impressively resisted this intimidation effort.”² Were this only true. In fact, a perusal of the documentary record shows that Bensouda faithfully did Israel's bidding to the point that her brazen whitewashing triggered a veritable civil war within the ICC. This appendix chronicles the most egregious episode of Bensouda's thralldom—her adamant refusal to investigate Israel's murderous assault on a humanitarian flotilla bound for Gaza. The manuscript was completed in 2019.³ The Postscript chronicles subsequent developments.

1. Harry Davies, “Revealed: Israeli spy chief ‘threatened’ ICC prosecutor over war crimes inquiry,” *Guardian* (28 May 2024; <https://www.theguardian.com/world/article/2024/may/28/israeli-spy-chief-icc-prosecutor-war-crimes-inquiry>); Harry Davies et al., “Spying, Hacking and Intimidation: Israel's nine-year ‘war’ on the ICC exposed,” *Guardian* (28 May 2024; <https://www.theguardian.com/world/article/2024/may/28/spying-hacking-intimidation-israel-war-icc-exposed>).

2. Kenneth Roth, “The ICC Spying Revelations Show the Israeli Government to Be a Lawless Regime,” *Guardian* (29 May 2024; <https://www.theguardian.com/commentisfree/article/2024/may/29/international-criminal-court-israel-spying-intimidation>).

3. Norman G. Finkelstein, *I Accuse!: Herewith a proof beyond reasonable doubt that ICC Chief Prosecutor Fatou Bensouda whitewashed Israel* (New York: 2020).

Preface

This text is a personal accusation. It is directed at Fatou Bensouda, the chief prosecutor of the International Criminal Court.

The accusation is that the ICC chief prosecutor defiled her office by refusing to investigate credible allegations of Israeli criminality.

Here are the facts:

On 31 May 2010, Israeli forces violently assaulted a humanitarian flotilla bound for Gaza. By the end of the attack, nine passengers were dead (a tenth passenger died later from his injuries), scores were injured, and perhaps hundreds endured torture, inhuman treatment, or outrages upon their personal dignity. Although the incident evoked global condemnation, an Israeli commission exonerated the perpetrators of wrongdoing. On 14 May 2013, the Union of the Comoros, to which the flagship *MV Mavi Marmara* was registered, referred the situation to the ICC. The chief prosecutor shockingly decided that it was not of sufficient gravity to warrant even an official investigation. She was able to reach this conclusion, however, only by, on the one hand, grossly misrepresenting the facts of the assault and, on the other hand, extirpating the assault from its critical context—the illegal Israeli blockade and the humanitarian catastrophe in Gaza. Whereas she has thrice declared the case closed, an unprecedented pushback from within the ICC has forced the chief prosecutor to revisit it. The irrefutable proof that justice was perverted can be found in the vast Court record. This appendix documents the egregious errors of fact, ratiocination, and law riddling the chief prosecutor's submissions to the Court.

DOCUMENT KEY

	Title	Description
1.	Government of the Comoros, <i>Referral Under Articles 14 and 12(2)(a) of the Rome Statute Arising from the 31 May 2010, Gaza Freedom Flotilla Situation</i> (14 May 2013). ^a Hereafter: Comoros' Referral	The Union of the Comoros—registered state of the <i>MV Mavi Marmara</i> —refers the “Flotilla Situation” to the ICC.
2.	Office of the Prosecutor, <i>Situation on Registered Vessels of Comoros, Greece and Cambodia: Article 53(1) Report</i> (6 November 2014). ^b Hereafter: Prosecutor's Report	The Prosecutor presents the results of her preliminary examination. She concludes that “the situation would not be of sufficient gravity to justify further action,” and “Accordingly . . . there is no reasonable basis to proceed with an investigation.”
3.	Government of the Comoros, <i>Application for Review Pursuant to Article 53(3)(a) of the Prosecutor's Decision of 6 November 2014 Not to Initiate an Investigation in the Situation</i> (29 January 2015). ^c Hereafter: Comoros' Application for Review	The Union of the Comoros calls on the Pre-Trial Chamber to “review” the Prosecutor's decision. It contends that “The Prosecutor has selectively and inconsistently excluded any consideration of the key and determinative factors that provide a reasonable basis to believe that the crimes are of sufficient gravity to proceed with an investigation.”
4.	Office of the Prosecutor, <i>Prosecution Response to the Application for Review of Its Determination Under Article 53(1)(b) of the Rome Statute</i> (30 March 2015). ^d Hereafter: Prosecutor's Response to Review Application	The Office of the Prosecutor rejoins that the Comoros Application “should be dismissed,” as it “variously misunderstands or disagrees with the Prosecution's analysis and conclusions.”
5.	Legal Representative for Victims (LRV), <i>Victim Observations Pursuant to “Decision on Victims' Participation” of 24 April 2015</i> (22 June 2015). ^e Hereafter: LRV Observations	The attorneys for the victims “urge” the Pre-Trial Chamber “to direct the Prosecutor to reconsider her Decision.”

(continued)

DOCUMENT KEY (continued)

	Title	Description
6.	Office of the Public Counsel for Victims (OPCV), <i>Observations on Behalf of Victims in the Proceedings for the Review of the Prosecutor's Decision Not to Initiate an Investigation</i> (23 June 2015). ^f Hereafter: OPCV Observations	The OPCV contends that “the Prosecutor, in applying the legal criteria to determine whether an investigation must be opened, misinterpreted the information available to her.” (Although technically falling within the ICC administration or “Registry,” the OPCV is an independent office.)
7.	Government of the Comoros, <i>Response by the Government of the Comoros to Victim Observations Filed on 22 June 2015</i> (14 July 2015). ^g Hereafter: Comoros' Response to LRV Observations	The Comoros “submits that the Pre-Trial Chamber should direct the Prosecutor to reconsider her decision not to open an investigation.”
8.	Office of the Prosecutor, <i>Prosecution's Consolidated Response to the Observations of the Victims (ICC-01/13-27 and ICC-01/13-28)</i> (14 July 2015). ^h Hereafter: Prosecutor's Consolidated Response	The Prosecutor contends that “no error” in the Prosecutor's Report has been demonstrated and therefore the request that her decision be reconsidered “should be dismissed.”
9.	Pre-Trial Chamber I, <i>Decision on the Request of the Union of the Comoros to Review the Prosecutor's Decision Not to Initiate an Investigation</i> (16 July 2015). ⁱ Hereafter: First PTC Decision	The Pre-Trial Chamber “requests the Prosecutor to reconsider the decision not to initiate an investigation.” (One of the three judges submits a “partly dissenting opinion.”)
10.	Office of the Prosecutor, <i>Final Decision of the Prosecution Concerning the “Article 53(1) Report (ICC-01/13-6-Anx.A), Dated 6 November 2014.” Public Annex 1</i> (29 November 2017). ^j Hereafter: Prosecutor's Final Decision	The Prosecution issues its “‘final decision’ . . . that there is no reasonable basis to proceed with an investigation. . . . As such, an investigation may not be initiated, and the preliminary examination must be closed.”

DOCUMENT KEY (continued)

	Title	Description
11.	Pre-Trial Chamber I, <i>Decision on the “Application for Judicial Review by the Government of the Union of the Comoros”</i> (15 November 2018). ^k Hereafter: Second PTC Decision	The Pre-Trial Chamber decides that the Prosecutor’s Final Decision “is not the result of a proper exercise of reconsideration by the Prosecutor and shall be set aside on that basis. . . . [T]he Chamber considers it appropriate to order the Prosecutor to reconsider her 6 November 2014 Decision in accordance with the 16 July 2015 Decision.”
12.	Appeals Chamber, <i>Judgment on the Appeal of the Prosecutor Against Pre-Trial Chamber I’s “Decision on the ‘Application for Judicial Review by the Government of the Union of the Comoros’”</i> (2 September 2019). ^l Hereafter: Appeals Chamber Judgment	The Appeals Chamber directs “the Prosecutor to reconsider her Decision not to investigate . . . and to notify the Pre-Trial Chamber and those participating in the proceedings of her final decision by 2 December 2019.” (Two of the five judges submit “partly dissenting opinions.”)
13.	Office of the Prosecutor, <i>Final Decision of the Prosecutor Concerning the “Article 53(1) Report”</i> (ICC-01/13-6-AnxA), Dated 6 November 2014, as Revised and Refiled in Accordance with the Pre-Trial Chamber’s Request of 15 November 2018 and the Appeals Chamber’s Judgment of 2 September 2019 (2 December 2019). ^m Hereafter: Prosecutor’s Final Decision (II)	The Prosecutor “maintains her view that the preliminary examination of this situation must be closed. There remains no reasonable basis to proceed with an investigation, since there is no reasonable basis to conclude that any potential case arising from the situation would be of sufficient gravity.”

^a ICC-01/13-1-AnxI

^b ICC-01/13-6-AnxA

^c ICC-01/13-3-Red

^d ICC-01/13-14-Red

^e ICC-01/13-28-Red

^f ICC-01/13-27-Red

^g ICC-01/13-30

^h ICC-01/13-29-Red

ⁱ ICC-01/13-34

^j ICC-01/13-57-AnxI

^k ICC-01/13-68

^l ICC-01/13 OA 2

^m ICC-01/13-99-AnxI

Part A: Preliminary Observations

1.0. INTRODUCTION

1.1. *Israeli commandos attack a humanitarian flotilla*

1.1.1. On 31 May 2010, a humanitarian flotilla en route to Gaza and carrying seven hundred passengers came under attack in international waters from Israeli commandos. The flotilla's six vessels were endeavoring both to deliver ten thousand tons of badly needed supplies to Gaza's beleaguered population and spotlight the humanitarian catastrophe caused by Israel's blockade. By the end of the Israeli assault, nine passengers were killed (a tenth passenger died later from his injuries), scores were injured, and possibly hundreds suffered outrages upon their personal dignity, inhuman treatment, or torture.

1.2. *The violent incident triggers international condemnation*

1.2.1. UN Secretary-General Ban Ki-moon, who was reportedly "shocked" by the deadly raid, stated, "I condemn this violence. . . . It is vital that there is a full investigation to determine exactly how this bloodshed took place. I believe Israel must urgently provide a full explanation." Other senior UN officials deplored Israel's violent assault and pointed up the nexus between the Israeli attack, on the one hand, and the Israeli siege and humanitarian crisis in Gaza, on the other. Noting the "widespread regional and international expressions of alarm and concern at the bloodshed," UN Assistant Secretary-General for Political Affairs Oscar Fernandez-Taranco opined that "today's bloodshed would have been avoided if repeated calls on Israel to end the counterproductive and unacceptable blockade of Gaza had been heeded. We stress the scale of the unmet needs of Gaza's civilian population and reiterate that the blockade is unacceptable and counterproductive and must end." UN Emergency Relief Coordinator John Holmes condemned the "dreadful waste of life over a humanitarian issue" and stressed the need to end the blockade: "It has worsened conditions of life for one and a half million Palestinians, deepened poverty and food insecurity, prevented reconstruction, and increased aid dependence by destroying livelihoods and economic activity." UN High Commissioner for Human Rights Navi Pillay stated that "nothing can justify the appalling outcome of this operation. . . . I unequivocally condemn what appears to be disproportionate use of force, resulting in the killing and wounding of so many people attempting to bring much-needed aid to

the people of Gaza, who have now been enduring a blockade for more than three years.” Recalling the “almost unanimous international view that the continued blockade of Gaza is both inhumane and illegal,” Pillay underscored that “If the blockade had been lifted, there would be no need for flotillas like this.”⁴

1.2.2. The UN Security Council convened in Emergency Session. The president of the Security Council issued a statement on behalf of the Council that “deeply regrets the loss of life and injuries resulting from the use of force during the Israeli military operation in international waters,” “condemns those acts which resulted in the loss of at least ten civilians and many wounded,” and “calls for a prompt, impartial, credible and transparent investigation.” The presidential statement situated the violent incident in the context of the humanitarian crisis in Gaza and the Israeli blockade: “The Security Council stresses that the situation in Gaza is not sustainable. . . . It reiterates its grave concern at the humanitarian situation in Gaza and stresses the need for sustained and regular flow of goods and people to Gaza as well as unimpeded provision and distribution of humanitarian assistance throughout Gaza.”⁵

1.2.3. In their separate interventions, Council members also underscored, on the one hand, Gaza’s humanitarian crisis and the flotilla’s humanitarian mission and, on the other hand, Israel’s wrongful blockade and Israel’s wrongful use of force. They also stressed the integrality of these elements and situated the Israeli attack squarely in the context of the other elements:

- The UK representative “deeply deplores the loss of life. . . . It is a matter of grave concern that Israeli actions should end in such heavy and tragic loss of life. . . . These events are clearly very serious, but we cannot view them in isolation. They must be set against the context of the intolerable and unsustainable situation that prevails in Gaza. It is clearer than ever that Israel’s restrictions on access to Gaza must be lifted. . . . The current closure is unacceptable.”

4. “Secretary-General ‘Shocked’ by Deadly Raid on Gaza Aid Flotilla,” *UN News* (31 May 2010); “Security Council Condemns Acts Resulting in Civilian Deaths During Israeli Operation Against Gaza-Bound Aid Convoy, Calls for Investigation, in Presidential Statement,” *UN Meetings Coverage and Press Releases* (31 May 2010); “UN Human Rights Chief Condemns Violent Interception of Gaza Aid Flotilla,” *United Nations Office of Human Rights* (31 May 2010).

5. United Nations Security Council, S/PV.6326 (1 June 2010).

- The Mexican representative “condemn[s] in the strongest terms the armed attack carried out by the armed forces of Israel. . . . [T]he blockade on Gaza not only deeply affects the civilian population in Gaza but also is counterproductive for Israel, causing grave incidents like that of today, which could well have been avoided. Therefore we once again urge the Government of Israel to lift the blockade.”
- The Brazilian representative “vehemently condemns . . . a military operation against a humanitarian convoy. . . . The tragic results of this deplorable incident show yet again the need for the blockade of Gaza to be immediately lifted. The blockade is a blatant violation of international law. . . . [D]espite repeated and virtually universal calls from the international community . . . , Israel has systematically refused to lift it.”
- The Austrian representative “is deeply shocked at the loss of lives and casualties. . . . We . . . condemn the use of violence that has led to a high number of victims. . . . The humanitarian situation in Gaza remains a source of utmost concern. . . . We regard the ongoing blockade as totally unacceptable and counterproductive.”
- The Japanese representative “is shocked to learn what took place. . . . [T]he Security Council has . . . repeatedly called for unimpeded access for humanitarian aid to Gaza. Japan condemns the violent acts of hostility that caused this tragic incident involving the humanitarian convoy, when the humanitarian situation in Gaza has not improved at all for a year and a half.”
- The Nigerian representative “is dismayed by this morning’s assault on a Gaza-bound convoy. . . . We remain concerned about the deplorable humanitarian conditions in Gaza. The restrictions and blockade on Gaza must be lifted to alleviate the suffering of innocent people.”
- The Russian representative “express[es] our condemnation . . . , especially because so many people died and have been wounded, people participating in a humanitarian convoy. . . . It is obvious that the use of weapons against civilians and stopping ships on the high seas without justification is a gross violation of the norms of international law. At the same time, we look at what happened as confirmation of the need for a prompt cessation of Israel’s blockade in Gaza.”
- The Ugandan representative “condemns the attack on the humanitarian convoy. . . . We are concerned by the grave humanitarian situation caused by the continued blockade. . . . [W]e reiterate our call on Israel to end

the blockade of Gaza and to allow delivery of humanitarian aid to its population.”

- The Chinese representative “is shocked by Israel’s attack on the multinational convoy carrying humanitarian aid. . . . We urge Israel to . . . fully open border crossings and to lift the blockade.”
- The French representative “expressed . . . emotions at the tragic consequences of the Israeli operation. . . . The human toll of this operation leads us to believe that there was disproportionate use of force and a level of violence that nothing justifies and that we condemn. . . . Beyond this tragic event, this business reminds us of the need to re-establish humanitarian access to Gaza . . . , and we call for the lifting of the blockade, which is unsustainable and illegal.”
- The Gabonese representative “learned with great regret of the attack by Israeli forces against a flotilla carrying humanitarian assistance to the Gaza Strip. . . . This new violence is unacceptable under international law. . . . [M]y delegation firmly condemns these attacks. . . . This new situation reminds us once again of the urgency of lifting the Gaza blockade.”
- The Bosnian-Herzegovinian representative “would like to join other members . . . in condemning in the strongest possible terms the attack that was carried out by the Israel Defense Forces on a flotilla of ships carrying unarmed civilians and humanitarian aid . . . intended for the 1.5 million Palestinians who are being held in Gaza under siege by Israel. This Israeli attack on unarmed civilians aboard foreign vessels sailing in international waters constitutes a grave breach of international humanitarian law. This tragic event points to the urgent need to lift the ban on humanitarian aid intended for Palestinian civilians in Gaza. Their living conditions are unsustainable.”
- The Lebanese representative stated that “as all members know, the Israeli occupier’s navy carried out a raid—an action that could be described as piracy—against a freedom flotilla transporting tons of humanitarian assistance to Gaza. . . . In Gaza, Israel continues in an act of collective punishment to impose an illegal blockade.”
- The Turkish representative stated that “The multinational civilian flotilla . . . , carrying humanitarian aid to impoverished Gaza, was unlawfully ambushed early today. The sole aim of this civilian mission was to pro-

vide much-needed relief to the children of occupied Gaza, who have been under illegal and inhumane Israeli blockade for years.”

- The US representative “is deeply disturbed by the recent violence and regrets the tragic loss of life and injury. . . . The United States remains deeply concerned by the suffering of civilians in Gaza and the deterioration of the situation there, including the humanitarian and human rights situation. We continue to believe the situation is unsustainable.”⁶

1.2.4. The UN Human Rights Council and, in a rupture with (or breach of) protocol, a separate Panel of Inquiry commissioned by the UN secretary-general eventually issued substantial reports on the incident. However, despite compelling evidence that the Israeli commandos committed war crimes by, while, and after seizing control of the humanitarian flotilla, none of the perpetrators was prosecuted or otherwise held legally accountable for these crimes.

2.0. UNION OF THE COMOROS REFERS FLOTILLA INCIDENT TO THE INTERNATIONAL CRIMINAL COURT (ICC)

2.1. On 14 May 2013, the Government of the Union of the Comoros, a State Party to the ICC and the registered state of the *Mavi Marmara*, referred the “Flotilla Situation” to the ICC.⁷

2.2. On 14 May 2013, ICC Chief Prosecutor Fatou Bensouda (hereafter: the Prosecutor) initiated a “preliminary examination”—the most rudimentary stage in ICC procedure⁸—in order to ascertain whether the incident warranted a full-fledged investigation. To open such an investigation, the Prosecutor need only meet the evidentiary standard of a “reasonable basis” to believe that a crime was committed.⁹

6. United Nations Security Council, S/PV.6325 (31 May 2010).

7. For a comprehensive legal assessment of this case, see Ali Emrah Bozbayındır, “The Venture of the Comoros Referral at the Preliminary Examination State,” in Morten Bergsmo and Carsten Stahn, eds., *Quality Control in Preliminary Examination*, vol. 1 (Florence: 2018), pp. 555–670.

8. Rome Statute, Article 53(1)(a)–(c) establishes the legal framework for a preliminary examination. The Office of the Prosecutor does not have investigatory powers at this stage; the preliminary examination is based on open and other reliable sources.

9. Rome Statute, Article 53(1). This is the lowest standard of proof in proceedings before the ICC. Meeting it does not signal that the Prosecutor will bring charges but only that an

2.3. On 5 July 2013, the Presidency of the ICC assigned the Flotilla Situation to Pre-Trial Chamber I.

2.4. On 6 November 2014, the Prosecutor issued the results of her preliminary examination. She found that, whereas there was a “reasonable basis to believe that war crimes . . . have been committed in the context of interception and takeover of the *Mavi Marmara* by IDF soldiers,” the incident was not of “sufficient gravity” to justify further deliberation by the Court.¹⁰ In effect, it fell within the category of “peripheral complaints involving minor offenders,”¹¹ consideration of which would clutter the Court’s calendar. The Prosecutor accordingly “decided to close this preliminary examination,” even as she acknowledged that “the incident triggered concern and outrage from the international community.”¹²

2.5. *Prima facie*, it was a most peculiar decision: *How could an incident that outraged the international community and senior UN officials, on the one hand, and prompted an emergency session of the UN Security Council and the creation of multiple investigatory commissions, on the other, not be of sufficient gravity to warrant a formal investigation by the Court?*¹³

2.6. If the Prosecutor managed to prove the Flotilla Situation lacked sufficient gravity, that’s because she reversed or severely qualified nearly all the premises that triggered the international outcry:

- Whereas the international community situated the violent incident squarely in the context of the humanitarian catastrophe unfolding in Gaza, the Prosecutor made short shrift of this dire situation;

investigation will be opened to ascertain whether any individuals should be charged.

10. “Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda, on Concluding the Preliminary Examination of the Situation Referred by the Union of Comoros: ‘Rome Statute legal requirements have not been met’” (6 November 2014); Prosecutor’s Report, paras. 149–51. Under the Rome Statute, Article 17(1)(d), an incident must meet the “sufficient gravity” threshold to justify an ICC investigation.

11. *Yearbook of the International Law Commission (1994): Summary records of the meetings of the 46th session, 2 May–22 July 1994* (2330th meeting, 4 May 1994), para. 9, citing jurist James Crawford. The Prosecutor referenced Crawford’s stricture in Prosecutor’s Response to Review Application, para. 13n28.

12. Prosecutor’s Report, paras. 14, 149–51.

13. Comoros’ Application for Review, para. 131.

- Whereas the international community determined that the Israeli blockade causing Gaza's humanitarian catastrophe was wrongful and illegal, the Prosecutor concluded that its legal status was uncertain;
- Whereas the international community determined that Israel's use of force to perpetuate the blockade was wholly illegitimate, the Prosecutor concluded that the commandos crossed a line only in individual, isolated, spontaneous instances;
- Whereas the international community pointed up the flotilla's humanitarian mission, the Prosecutor concluded that it was not a humanitarian but, on the contrary, a partisan political act;
- Whereas the international community determined that Israel bore overarching culpability for the death, injury, and trauma, the Prosecutor concluded that it was the violent response of the flotilla passengers that triggered the commandos' resort to lethal force;
- Whereas the international community calculated the incident's gravity, not just in terms of the murder and mayhem caused by the Israeli attack, but also within the critical context of the humanitarian catastrophe in Gaza induced by Israel's blockade, the Prosecutor concluded that the dire situation in Gaza as well as the blockade were wholly irrelevant in a legal assessment of the incident's gravity.

2.7. It is of course conceivable that, in the course of her preliminary examination, the Prosecutor came to be persuaded, on the basis of her parsing of the evidence and the law, that the international outrage was egregiously misplaced. However, the Prosecutor was unable to convince branches of the ICC responsible for enforcing ICC statutes and protecting the rights of victims.

2.8. Although the case has been ignored outside the ICC's milieu, it has engulfed the Court in a veritable civil war whereby the Prosecutor has thrice declared the case closed, only to suffer mortification when it was reopened. To be sure, the Prosecutor has found support in the Court, which resulted in split decisions as the majority ruled against her while a dissenting opinion found in her favor. The written submissions in the ongoing case betray an escalating mutual testiness as, for example, Pre-Trial Chamber I reprimanded the Prosecutor for her "use of inappropriate language . . . unbefitting of a judicial document," while the Appeals Chamber reprimanded the Prosecutor for her

“unfortunate” and “disrespectful” language.¹⁴

2.9. In the course of the proceedings, the Prosecutor subtly reconfigured her mandate. Whereas she was, per her formal writ, empowered to examine whether a reasonable basis existed for opening an investigation, the Prosecutor ended up seeking to demonstrate that a reasonable basis existed for *not* opening an investigation. Thus, the Prosecutor metamorphosed into Israel’s defense counsel as she contrived far-fetched arguments that not even Israel had ventured to make.

2.10. A vast Court record has by now accumulated. The principal documents in the Court record for the purposes of this inquiry are listed at the head of this appendix (Document Key).

2.11. Basing itself on the extant Court record and other pertinent documents in the public domain, this inquiry will scrutinize each of the critical links in the Prosecutor’s case. Many of the arguments presented here are more fully developed and documented in this writer’s own study of the Flotilla Incident.¹⁵

3.0. THE PROSECUTOR’S EVIDENCE

3.1. The Prosecutor’s Report drew primarily on four previous reports documenting the Flotilla Incident.¹⁶

3.1.1. These comprised:

- UN Human Rights Council, *Report of the International Fact-Finding Mission to Investigate Violations of International Law, Including International Humanitarian and Human Rights Law, Resulting from the Israeli Attacks on the Flotilla of Ships Carrying Humanitarian Assistance* (27 September 2010). Hereafter: **HRC Report**
- Turkish National Commission of Inquiry, *Report on the Israeli Attack on the Humanitarian Aid Convoy to Gaza on 31 May 2010* (February 2011). Hereafter: **Turkish Report**

14. Second PTC Decision, para. 82 (see also para. 86); Appeals Chamber Judgment, paras. 90, 95.

15. Norman G. Finkelstein, *Gaza: An inquest into its martyrdom* (Oakland: 2018), part 3. Hereafter: Finkelstein, *Gaza*.

16. OPCV Observations, para. 28.

- [Israel] Public Commission to Examine the Maritime Incident of 31 May 2010, *The Turkel Commission Report, Part One* (January 2011). Hereafter: **Turkel Report**
- *Report of the [UN] Secretary-General's Panel of Inquiry on the 31 May 2010 Flotilla Incident* (July 2011). Hereafter: **UN Panel Report**

3.1.2. In subsequent submissions, the Prosecutor did cite and respond to other sources¹⁷—in particular, eyewitness testimony of passengers—but none of this new evidence caused her to budge a jot from either her original discrete determinations or her original final decision not to launch a full-fledged investigation into the incident.¹⁸

3.2. Of the quartet of reports, the Prosecutor leaned most heavily on Israel's *Turkel Report*. The Office of the Public Counsel for Victims (OPCV) tabulated this breakdown of citations by the Prosecutor in her initial report: *Turkel Report*—78; *UN Panel Report*—56; *HRC Report*—48; *Turkish Report*—37.¹⁹ The Prosecutor alleged that “the OPCV . . . fails to substantiate its claim that the Prosecution gave ‘the most weight’ to the Turkel report.”²⁰ The OPCV's tabulation demonstrates, *prima facie*, that the Prosecutor's criticism was unfounded.

3.2.1. The one and only direct, explicit criticism ventured by the Prosecutor of the *Turkel Report* in the entirety of her hundreds of pages of submissions read in full: “the available information may now suggest that personal searches and the use of physical force [after passengers were taken to Ashdod] were somewhat more common than the *Turkel Report* found.”²¹

3.3. The *Prosecutor's Report* might, in general, be described as a *Turkel Report lite*: while the *Turkel Report* denied Gaza was experiencing a humanitarian crisis, the *Prosecutor's Report* whited out Gaza's humanitarian crisis; while the *Turkel Report* stated that the Israeli blockade was legal, the *Prosecutor's Report* sidestepped its lawfulness, but nonetheless premised the bulk of its analysis on the blockade's legality; while the *Turkel Report* stated that passengers initiated the violence and the commandos responded with lethal force only as a last re-

17. Prosecutor's Final Decision, para. 172.

18. For a single hedged exception to this generalization, see Prosecutor's Final Decision, para. 208.

19. OPCV Observations, para. 41n56. This writer's count slightly differs.

20. Prosecutor's Consolidated Response, para. 54.

21. Prosecutor's Final Decision, para. 208.

sort and in self-defense, the *Prosecutor's Report* concurred that the passengers initiated the violence, but nonetheless provisionally concluded that commandos committed war crimes—with the caveat, however, that “self-defense is a possible ground for excluding criminal responsibility.”²²

3.4. The *Turkel Report* comprised an uncritical restatement of official Israeli legal and policy positions, complemented by an uncritical stenographic record of testimonies by Israeli officials and commandos. It vindicated and validated Israel on *every* point of contention in the Flotilla Incident as it proclaimed Israel’s immaculate innocence. Sprawled across nearly three hundred single-spaced pages and studded with nearly a thousand learned footnotes, the *Turkel Report* couldn’t uncover, for all its teeming enterprise, *any* evidence that “the actual plan as developed by the Israeli military or the organization of the mission led to a systematic misapplication of force by the soldiers involved or a breach of international law.”²³ Ostensibly appointed to probe a brutal attack on a humanitarian flotilla that shocked the world’s conscience, the Turkel Commission found that planning was near flawless,²⁴ execution beyond reproach.

3.5. In a word, the *Turkel Report* constituted—to quote Amnesty International—a “whitewash.”²⁵

3.6. Whereas the Prosecutor denied undue reliance on the *Turkel Report*, she indirectly or implicitly justified this dependency on these grounds:

22. Prosecutor’s Report, paras. 55–61. The Prosecutor maintained (*ibid.*, para. 57) that the claim of self-defense by the commandos was properly assessed at a later stage of the legal proceedings. See also Prosecutor’s Final Decision, para. 93.

23. Turkel Report, para. 248. Likewise, the IDF Military Advocate General (MAG) decided against investigating the alleged crimes on the “unique” grounds that “the forces that carried out the takeover operation were instructed to refrain . . . from the use of lethal weapons . . . [but] upon commencement of the takeover, it became clear that the situation was not as expected . . . the forces . . . encountered a planned ambush by violent activists who were organized and armed, such that the forces faced a real and immediate threat to their lives” (Public Commission to Examine the Maritime Incident of 31 May 2010, *Israel’s Mechanisms for Examining and Investigating Complaints and Claims of Violations of the Laws of Armed Conflict According to International Law* (2013), p. 440; this is Part Two of the Turkel Commission’s Report).

24. The last paragraphs of the Turkel Report contained a handful of tepid pro forma criticisms and policy recommendations—e.g., planners could have better prepared commandos for the possibility of violent resistance (paras. 246–47).

25. Amnesty International, “Israeli Inquiry into Gaza Flotilla Deaths No More than a Whitewash” (28 January 2011).

3.6.1. *The four reports did not significantly differ.*

3.6.1.1. The Prosecutor alleged that “each [report] offered slightly different insights on different specific issues.”²⁶ This contention is unsustainable. Of the four reports, the *HRC Report* was arguably the most authoritative.²⁷ Yet, on each and every critical legal and factual question, the *HRC Report* and the *Turkel Report* reached diametrically opposed conclusions (see Table A).

TABLE A As “Slightly Different” as *Yes* and *No*:
Turkel Report versus HRC Report

	Turkel Report	HRC Report
Did Israel still occupy Gaza?	No ^a	Yes ^b
Was the Israeli blockade legal?	Yes ^c	No ^d
Was there a humanitarian crisis in Gaza?	No ^e	Yes ^f
Was Israel’s forcible interception legal?	Yes ^g	No ^h
Were all passengers protected persons?	No ⁱ	Yes ^j
Did passengers use firearms?	Yes ^k	No ^l
Did helicopters fire live ammunition?	No ^m	Yes ⁿ
Did commandos use lethal force only in self-defense?	Yes ^o	No ^p
Did passengers suffer extreme physical and verbal abuse?	No ^q	Yes ^r
Did commandos commit war crimes?	No ^s	Yes ^t

^a Turkel Report, paras. 46–47, 112.

^b HRC Report, paras. 63–64.

^c Turkel Report, paras. 97, 106–7, 112, page 280 (Concluding Remarks).

^d HRC Report, paras. 53–54, 59–60, 261, 263.

^e Turkel Report, paras. 77, 80, 86, 90, 94, 112.

^f HRC Report, paras. 37–44, 261, 275.

^g Turkel Report, paras. 172–75, 200, 255.

26. Prosecutor’s Consolidated Response, para. 52. To be sure, when it suited her purposes, the Prosecutor declared the exact reverse. Thus, to prove that the issuance of a quartet of formal reports on the Flotilla Incident did not in itself attest to the gravity of the situation, the Prosecutor stated that “these four reports all varied in aspects of their analyses and conclusions” (Prosecutor’s Final Decision (II), para. 51).

27. OPCV Observations, paras. 43–46.

TABLE A (continued)

- ^b HRC Report, paras. 57–58, 61, 163, 262.
ⁱ Turkel Report, paras. 192–201, 255.
^j HRC Report, para. 66.
^k Turkel Report, paras. 132, 140, 145, 167, 215, 219–23, 232, 238, 255.
^l HRC Report, paras. 116, 165.
^m Turkel Report, paras. 131, 134, 134n540, 230.
ⁿ HRC Report, paras. 114, 117.
^o Turkel Report, paras. 140, 212–39, 255.
^p HRC Report, paras. 118, 120, 123, 167–70, 172.
^q Turkel Report, paras. 152–53.
^r HRC Report, paras. 133–35, 139, 141, 144, 150, 173, 178–81, 188–90, 192, 202–9, 219–20, 264.
^s Turkel Report, para. 239.
^t HRC Report, paras. 182, 265.

3.6.1.2. Consider this typical illustration of “slightly different insights”:

Turkel Report	HRC Report
[A]fter the flotilla participants were transferred to Ben-Gurion airport, about 40 flotilla participants . . . began to clash with police forces in the passenger hall of the airport. . . . The material provided to the Commission indicates that, in order to control the outbreak, the Israeli police engaged approximately twenty police officers who used their hands and handcuffs. The material further indicates that in one instance, a club was used against a disturbance defined by the Israeli police as an “exceptional disturbance.” As a result of the event, six of those who were disorderly required medical treatment.^a	Perhaps the most shocking testimony, after that relating to the violence on the <i>Mavi Marmara</i>, . . . was the consistent accounts of a number of incidents of extreme and unprovoked violence perpetrated by uniformed Israeli personnel upon certain passengers . . . at Ben-Gurion International Airport on the day of deportation. These accounts were so consistent and vivid as to be beyond question. . . . Some passengers . . . saw an older passenger being roughly treated after receiving what appeared to be a beating. When other passengers . . . protested this treatment, they were charged by soldiers using batons. In the foray, around 30 passengers were beaten to the ground, kicked and punched in a sustained attack by soldiers.^b
^a Turkel Report, para. 154.	
^b HRC Report, paras. 202–3.	

3.6.1.3. The Prosecutor also falsely conveyed that her own conclusions echoed those of the *HRC Report*. For example, she stated that “there is no reasonable basis to believe passengers were deliberately denied medical treatment,” and that “[t]his conclusion did not give weight to the Turkel Report,” as it additionally “was consistent with the views” of the *HRC Report*.²⁸ But the *HRC Report* did take note of repeated delays in medical treatment and didn’t conclude, or even so much as hint, that these delays weren’t deliberate.²⁹

3.6.2. *The Turkel Report was trustworthy.*

3.6.2.1. The Prosecutor stated that, whereas she “concurs” that Turkey and Israel “may have had an interest in the relevant events, each panel of inquiry appears to have used an appropriate methodology.”³⁰ Wasn’t it a tad of an understatement to say that these national governments “may have had an interest in the relevant events”? What’s more, the veracity of the *Turkish Report* is a red herring, as the Prosecutor just barely referenced it (more often than not as a formality), and never once relied on it to anchor a critical point; it is the Prosecutor’s inordinate dependence on the *Turkel Report* that must be justified.

3.6.2.2. It is hard to figure what “appropriate methodology” denotes. The *Turkel Report* rendered verbatim the testimonies of Israeli officials and commandos, and then proceeded to second the official positions of the Israeli government. If stenography constitutes an “appropriate methodology,” the Prosecutor might have a point; otherwise, not.

3.6.2.2.1. Here’s how the *Turkel Report* described its methodology vis-à-vis the critical testimonies of the commandos, whose identities were kept “privileged”:

The analysis by the Commission is based primarily on the documented testimonies of over 40 soldiers and commanders who played an active role in the takeover . . . , and of other commanders and soldiers who took part in the operation. . . . [T]he soldiers’ statements were only documented in writing and submitted to the Commission. The soldiers were not put on notice that their rights were implicated when giving their statements (which is the ordinary

28. Prosecutor’s Consolidated Response, para. 54 (last bullet point).

29. HRC Report, paras. 130–32.

30. Prosecutor’s Consolidated Response, para. 52. The Prosecutor was answering the OPCV’s criticism to the effect that the Turkel Report and the Turkish Report were “documents emanating from the two governments directly involved in the events” and consequently partisan (OPCV Observations, para. 39).

proceeding in a custodial interrogation or judicial proceeding) and they did not undergo cross-examination.³¹

The *Turkel Report* further stated that “to a certain extent . . . it was able to analyze the soldiers’ testimonies and draw conclusions regarding the majority of the events described by the soldiers.”³² In other words, *the bedrock of the Turkel Report as well as the Prosecutor’s Report*—the evidence that formed the basis of their respective key findings—*consisted of unsworn, un-interrogated, written submissions by soldiers whose identities were shielded from the public and who faced possible criminal prosecution abroad.*

3.6.2.2.2. In her submissions, the Prosecutor made frequent reference to the *Abu Garda* case. The Prosecutor was also a member of the prosecution team in that case. At one point in the *Abu Garda* proceedings, the question arose, *What value should be attached to unidentified statements submitted by the Prosecution as well as an unsworn statement submitted by the Defense?* The Pre-Trial Chamber decided: (i) “statements of anonymous witnesses will be given a lower probative value and will be evaluated on a case-by-case basis”; (ii) if “the suspect making an unsworn statement does not undergo any form of questioning by the parties, the participants, or the judges; and the suspect, unlike witnesses, who are obliged to tell the truth, is under no such obligation and may therefore provide unreliable information to a Chamber,” then “an unsworn statement cannot be used as evidence.”³³ The upshot is this: on the basis of the precedent cited by the Prosecutor herself, in a case she herself helped prosecute, the probative value of the evidence she overwhelmingly relied on in the Flotilla Incident case came—if the two criteria set by the PTC in the *Abu Garda* case are conjoined—to *less than zero*.

3.6.2.3. The Prosecutor defended the “integrity of the Turkel Report” against the OPCV, and stated that “Notwithstanding their different procedures and mandates, there is no basis to question the impartiality or the credentials of any of the panels of inquiry.”³⁴ Consider this juxtaposition:

31. Turkel Report, paras. 235–37.

32. Turkel Report, para. 238.

33. ICC, “Situation in Darfur, Sudan. In the Case of the Prosecutor v. Bahar Idriss Abu Garda” (ICC-02/05-02/09; 8 February 2010), paras. 49–54 (see also para. 173).

34. Prosecutor’s Consolidated Response, para. 53.

Turkel Report	HRC Report
Overall, the IDF personnel acted professionally in the face of extensive and unanticipated violence. This included continuing to switch back and forth between less-lethal and lethal weapons in order to address the nature of the violence directed at them. The Commission found that 127 uses of force investigated appeared to be in conformity with international law. In an additional six cases, the Commission has concluded that it has insufficient information to be able to make a determination regarding the use of force. ^a	The conduct of the Israeli military and other personnel towards the flotilla passengers was not only disproportionate to the occasion but demonstrated levels of totally unnecessary and incredible violence. It betrayed an unacceptable level of brutality. Such conduct cannot be justified or condoned on security or any other grounds. It constituted grave violations of human rights law and international humanitarian law. . . . There is clear evidence to support prosecutions of the following crimes . . . : willful killing; torture or inhuman treatment; willfully causing great suffering or serious injury to body or health. ^b
^a Turkel Report, para. 239. ^b HRC Report, paras. 264–65.	

Meanwhile, the Prosecutor herself cited voluminous forensic evidence and credible eyewitness testimony that Israeli commandos committed multiple war crimes. She cited instance after instance of commando violence where “the available information suggests” that it was “inconsistent with reasonable use of force.”³⁵ Isn’t this ample grounds to impugn the “integrity” and “question the impartiality” of the *Turkel Report*?³⁶

3.6.2.4. In her *Final Decision*, the Prosecutor stated that “a preliminary examination should not be based on information the Prosecution considers unreliable.”³⁷ In *Situation in Georgia*, a case that the Prosecutor was pursuing simultaneously with the Flotilla Incident, she stated: “Notwithstanding the low threshold that is applicable at this stage [i.e., a preliminary examination], neither the Prosecution nor the Chamber should rely on information that is not credible or reliable.”³⁸ By her own reckoning, the *Turkel Report*’s testimonial

35. Prosecutor’s Final Decision, para. 194nn344–46, 349.
36. For other instances where the Prosecutor acknowledged that her findings directly contradicted the Turkel Report, see Prosecutor’s Report, paras. 63–64, 71, 84.
37. Prosecutor’s Final Decision, para. 27 (see also para. 29).
38. ICC, “Situation in Georgia. Corrected Version of *Request for authorization of an investigation pursuant to article 15*, 16 October 2015” (ICC-01/15-4-Corr, OTP; 17 November 2015), para. 48.

evidence wasn't reliable, while its conclusion—that it could not determine a single instance in which the commandos breached international law—wasn't credible. Why then did the Prosecutor rely on the *Turkel Report*?

3.6.2.5. The Prosecutor cast doubt on passenger testimony, as “the information available may lead to the conclusion that some persons who have sought to participate in these proceedings as victims have not only received some organized assistance in the practical arrangements to submit their applications, but also some forms of assistance related to the content or presentation of the accounts that they provide.”³⁹ But the *Turkel Report* was based on unsworn, written testimonies submitted by unidentified commandos, none of which sounded a discordant note, and each of which meshed perfectly with the others. If it never occurred to the Prosecutor to question whether the commandos' testimonies were also tainted by coaching and mutual synchronization beforehand, that's presumably because the *Turkel Report*—the “integrity” and “impartiality” of which were not open to doubt—stated that they “did not appear to have coordinated their versions.”⁴⁰ The Prosecutor stated that she “cannot give weight to opinions which lack a foundation of relevant personal knowledge. Thus, although the Prosecution respects the victims' honest belief or perception that crimes committed aboard the *Mavi Marmara* may have been deliberate and planned, and intended to ‘punish’ them, it cannot depart from its own reasoning on that basis.”⁴¹ The Prosecutor could however accord full weight to the *Turkel Report's* compilation of self-interested, exculpatory testimonies by accused war criminals alleging that the bloody assault was neither premeditated nor planned.

3.6.3. *The Turkel Report contained unique information.*

3.6.3.1. The Prosecutor stated that “The Turkel report had detailed—and unique—access to IDF testimony,”⁴² and that “given the unique access of the Turkel commission to IDF evidence, it would not have been unreasonable for the Prosecution to note that accounts conflicted even if ‘the other three reports’ [i.e., *HRC Report*, *Turkish Report*, *UN Panel Report*] expressed one view and

39. Prosecutor's Final Decision, paras. 182–86.

40. Turkel Report, para. 236. For critical elaboration on this point, see Finkelstein, *Gaza*, p. 63.

41. Prosecutor's Consolidated Response, para. 126.

42. Prosecutor's Consolidated Response, para. 52.

the Turkel report a different view.”⁴³ But the evidentiary value of this “unique” testimony was not just undercut by the uniformly contradictory findings in all the other reports. It was outright nullified by the fact that the commando testimonies consisted of unsworn, un-interrogated written submissions; the oral testimonies of government officials consisted of little more than un-impeached stenographic records; and the whole of this testimonial “evidence” was compiled by a Commission manifestly less committed to probe than to “whitewash.”

3.6.3.2. The Prosecutor did enter the caveat—albeit buried deep in a single, solitary footnote—that, inasmuch as the commandos’ unique “information cannot by its nature be corroborated at the present time, this information is treated with caution.”⁴⁴ But perusal of the Prosecutor’s submissions pointed inexorably to the conclusion that she did not exercise such “caution.” Quite the contrary, on critical points of contention, she repeated the *Turkel Report*’s “unique” findings as faithfully as the Turkel Commission repeated the testimonies of the commandos and Israeli officials in its “whitewash.”

3.6.3.3. The Prosecutor stated that “Although it drew on the reports of the four inquiries (among other materials) as sources of information, and analyzed them appropriately, the Prosecution did not adopt any of the inquiries’ conclusions on the law and facts but instead made its own determination.”⁴⁵ But perusal of the Prosecutor’s submissions shows that she *did* unilaterally and uncritically adopt “unique” facts presented in the *Turkel Report*.

3.7. The Prosecutor’s inordinate dependence on the *Turkel Report* lacked forensic rationale: on every critical point, the *Turkel Report* contradicted the authoritative *HRC Report*; it was neither credible nor impartial; its so-called unique information was devoid of evidentiary value. The particulars of the Prosecutor’s undue reliance on this mendacious report, as well as the Prosecutor’s partisan assessment of the evidence, to “prove” otherwise unfounded and untenable speculations, will now be demonstrated.

43. Prosecutor’s Consolidated Response, para. 54. The Prosecutor was answering criticism by the OPCV to the effect that “on several occasions she [the Prosecutor] found the information to be ‘*significantly conflicting*’ even when the accounts were consistent in the other three reports and only differed in the *Turkel Report*” (OPCV Observations, para. 45; emphasis in *ibid.*).

44. Prosecutor’s Final Decision, para. 119n195.

45. Prosecutor’s Consolidated Response, para. 51.

Part B:

Blaming the Victim

4.0. THE PROSECUTOR'S HYPOTHESES V. THE EVIDENCE

4.1. The Prosecutor contended that a “reasonable” interpretation of the extant evidence pointed to these conclusions:

- Senior Israeli officials planned and prepared a peaceful takeover of the flotilla;
- When Israeli commandos nonviolently boarded the *Mavi Marmara*, they met with unexpected violent resistance from passengers;
- While fending off this sustained violent resistance, some commandos spontaneously, on their own initiative, in the spur of the moment, resorted to excessive or indiscriminate force.

4.2. This analysis enabled the Prosecutor to insulate the Flotilla Incident from two potentially incendiary findings: it exculpated individuals at the state level from criminal liability, and it separated out the Flotilla Incident from the humanitarian crisis in Gaza, as the identifiable criminal acts implicated at most some IDF soldiers caught in a spontaneous isolated melee. The upshot was that her interpretation enabled the Prosecutor to drastically reduce the “gravity” of the Flotilla Incident. The credibility of the Prosecutor’s evidentiary analysis therefore warrants scrutiny.

4.3. *Parsing the evidence (I): A nonviolent plan?*

4.3.1. The Prosecutor steadfastly maintained that “the information available does not suggest . . . a deliberate plan or policy to attack, kill or injure civilians.”⁴⁶ The assault, she alleged, “was directed at the vessels of the flotilla, as opposed to the civilian passengers.”⁴⁷ The strained distinction made out by the Prosecutor between targeting the passengers, on the one hand, and targeting the vessels, on the other, traced back to the *Turkel Report*, which stated: “It is important to distinguish between the use of force intended to

46. Prosecutor’s Report, para. 140; see also Prosecutor’s Final Decision, paras. 90–91, 124–25.

47. Prosecutor’s Report, para. 99; see also Prosecutor’s Response to Review Application, paras. 36, 39.

stop a vessel and the use of force directed at *specific persons* aboard the vessel” (emphases in original).⁴⁸

4.3.2. The Prosecutor declared that her “conclusions were based on the express contemporaneous statements made by the IDF that they wished to halt the vessels of the flotilla . . . for the purpose of enforcing the blockade.”⁴⁹ The faith she pinned on “express”—and, as it happened, self-exculpatory—IDF attestations cannot but touch. (She was apparently unaware that such IDF statements have long been objects of ridicule by knowing Israelis.⁵⁰) Contrariwise, the Prosecutor peremptorily dismissed the import of statements by senior Israeli officials on the eve of the assault, that the passengers comprised “violent” “extremist” elements “with ties to Hamas and global Jihad.” She opined that “none of the statements . . . represent the IDF’s intentions . . . when executing the interception.”⁵¹ But if senior Israeli officials believed that the passengers were violent extremist jihadis, wouldn’t it be odd if they planned on intercepting the vessel by peacefully boarding it?

4.3.3. To prove the absence of a violent plan or policy by senior Israeli officials, the Prosecutor also adduced testimony from the *Turkel Report* that “IDF troops were surprised by, and unprepared for, the passengers’ response.” She repeatedly quoted the *Turkel Report* to the effect that the IDF was briefed in the planning stages to “anticipate resistance to the boarding of the vessels from ‘peace activists’ and thus expected *at most* verbal harassment (such as shouting and cursing), spitting, shoving, and punching” (emphasis added).⁵²

4.3.3.1. But even were this testimony credited, what did it prove? The Prosecutor was seemingly oblivious to the possibility that, even if senior Israeli planners and the commandos did not expect passengers to violently resist, they still planned to violently attack in order to stop dead in its tracks the flotilla phenomenon.⁵³ During the first *intifada* (1987–93), Israel deployed massive lethal force to quell overwhelmingly nonviolent Palestinian civil

48. Turkel Report, para. 114.

49. Prosecutor’s Response to Review Application, para. 37.

50. Finkelstein, *Gaza*, p. 40.

51. Prosecutor’s Consolidated Response, paras. 137–39; LRV Observations, paras. 63–68.

52. Prosecutor’s Final Decision, paras. 90, 261; Prosecutor’s Report, para. 106.

53. The textual analysis sets aside the Prosecutor’s quaint confidence, based entirely on the Turkel Report, that, in the operational tactics and rules of engagement as well as the preparation and training of the soldiers, “the planners of the IDF operation,” not expecting violent resistance, “emphasized use of non-lethal weapons” (Prosecutor’s Report, para. 107).

resistance to the occupation.⁵⁴ Since 2018, an elite Israeli combat unit has been intentionally killing and maiming unarmed civilians in Gaza in order to quell internal protests against the siege (see Table B). Was it, then, really so far-fetched that an elite Israeli combat unit would launch a violent assault on unarmed civilians at sea in order to quell external protests against the siege? This surmise has the virtue of being consistent with the mode of attack: Even as violent resistance wasn't anticipated, senior planners deployed an elite commando unit to launch an attack in the dead of night without warning and with blazing weapons, and the commandos then unleashed massive violence on the passengers.

TABLE B Israel's Deliberate Targeting of Unarmed Civilian Demonstrators During the "Great March of Return" (2018): A Sampling of "Emblematic" Cases Compiled by an Independent International Commission of Inquiry^a

Finkelstein's note: Israel deployed—in its words—"specially trained snipers, in order to ensure accurate and measured use" of live ammunition.^b The IDF subsequently stated that "nothing was carried out uncontrolled; everything was accurate and measured, and we know where every bullet landed," while Defense Minister Avigdor Lieberman stated that "Israeli soldiers did what was necessary. I think all our soldiers deserve a medal."^c The Commission of Inquiry found that "demonstrators who were hundreds of meters away from the Israeli forces and visibly engaged in civilian activities were intentionally shot. Journalists and health workers who were clearly marked as such were shot, as were children, women, and persons with disabilities"; it also found "reasonable grounds to believe that the Israeli security forces killed and maimed Palestinian demonstrators who did not pose an imminent threat of death or serious injury to others when they were shot."^d

Mohammad Obeid, a 24-year-old footballer for the Al Salah Sports Club . . . , took out his telephone and began recording a "selfie" video. An Israeli Security Forces sniper shot him in the right side of his right leg as he filmed himself approximately 150 meters from the separation fence. The bullet passed through his right leg and hit his left leg just above the knee, shattering the base of his femur. . . . He was standing alone. The area was quiet and calm, there was no shooting from the Israeli side, no tear gas, no stone throwing from the Palestinian side, no one had set fire to tires. . . . Mohammad was speaking calmly and filming himself when the ISF sniper shot him.^e

(continued)

54. Benny Morris, *Righteous Victims: A history of the Zionist-Arab conflict, 1881–2001* (New York: 2001), pp. 561, 580, 587, 591, 599.

TABLE B (continued)

Yousef Kronz was a 19-year-old student journalist when he attended the demonstration. . . . He wore a blue "PRESS" vest and carried his photography equipment, including a camera and a tripod. He sat cross-legged on top of a sand dune to take photographs of the demonstrators, at least 800 meters from the separation fence. After approximately 40 minutes . . . , as he stood up, the ISF shot him with two bullets in immediate succession which hit him in the right knee and the left knee. . . . Yousef's right leg was later amputated.^f

Abed Hawajri was a 41-year-old man. . . . The ISF shot him in the abdomen. . . . Abed was standing near the back of a crowd when shot, with nothing in his hands . . . , approximately 150 meters from the fence. He was taken to the hospital and died the same day.^g

A 16-year-old boy climbed onto high ground . . . approximately 300 meters from the separation fence. He was distributing sandwiches to demonstrators. The ISF then shot him in the face with a single bullet, which entered his nose and exited his skull. As a result of his injuries, he had a fractured jaw, is deaf in one ear and is unable to taste or smell.^h

Naji Abu Hojayeer was a 25-year-old mechanic. . . . An ISF soldier . . . shot him in the abdomen. . . . He died the same day. . . . Naji was standing 300 meters from the separation fence when he was shot. He was wrapped in a Palestinian flag, surrounded by hundreds of people.ⁱ

Mohammad Ajouri, a 17-year-old . . . member of the Palestinian Athletics Organization, . . . handed out onions and water to protestors to relieve symptoms of teargas inhalation. When he was approximately 300 meters away from the fence, ISF soldiers shot Mohammad in the back of his right leg. Doctors had to amputate his leg as a result.^j

Jihad Abu Jamous was a 30-year-old man. . . . ISF soldiers shot him in the head with live ammunition when he was approximately 250 to 300 meters from the fence. He died immediately.^k

Alaa Dali is a 21-year-old cyclist for the Palestinian Cycling Team. He had earned a slot to participate in the Asian Games in the summer of 2018. . . . An ISF sniper shot him in his right leg . . . as he stood alone watching the demonstration approximately 300 meters from the separation fence . . . while wearing his cycling gear and holding his bicycle. The nearest demonstrator was approximately 15 meters in front of him. . . . Doctors amputated Alaa's leg above the knee in order to save his life.^l

Ali Khafajah was a university student. . . . ISF soldiers shot him in the head with live ammunition. . . . Ali was talking on his phone while standing in a crowd about 150 meters from the separation fence when he was shot. . . . He died at the hospital.^m

TABLE B (continued)

The ISF shot 14-year-old Mohammad Ayoub . . . in the head. . . . Mohammad was at least 200 meters from the separation fence when the ISF shot him.ⁿ

The ISF shot 14-year-old Haytham Jamal in the abdomen. He was killed with a single shot as he stood in a crowd watching the ISF fire tear gas at another group of demonstrators.^o

Majdi Al Satari was an 11-year-old child. . . . He was shot in the head by live ammunition by an ISF sharpshooter while attending the protest. . . . Majdi died of severe brain lacerations. . . . Majdi was shot while standing . . . about 100 meters away from the security fence.^p

ISF soldiers shot 16-year-old Ahmad Abu Tyoor in the thigh as he danced a traditional Palestinian dance alone with his hands in the air, around 10–15 meters from the separation fence. The bullet severed his femoral artery and he died of his wounds the following day.^q

The ISF shot 11-year-old Nasser Mosabeh in the back of the head. . . . Nasser had been helping his two volunteer paramedic sisters treating injured people. . . . When the victim was shot, he was under a tree, 250 meters from the fence. . . . The bullet entered the right side of his head behind his ear and parts of his skull and brain were found close to his body.^r

Musa Abu Hassainen was a 35-year-old Civil Defense paramedic. ISF soldiers killed him with a shot to the chest . . . while he was wearing a high-visibility Civil Defense vest. . . . He was approximately 250–300 meters from the fence when ISF soldiers shot him.^s

Abd Abdullah Al Qotati was a 22-year-old volunteer paramedic. . . . ISF soldiers shot him in the chest in Rafah . . . as he was tending to an injured demonstrator near the separation fence. Abdullah was wearing a white paramedic jacket and carrying a red first-aid kit when the ISF soldiers shot him. . . . He died of bleeding and lacerations to his thoracic organs.^t

Tarek Loubani is a Canadian-Palestinian physician. . . . The ISF shot him as he stood among a group of paramedics wearing his hospital uniform. He was shot with one bullet that passed through both legs. Visibility was clear. There were no demonstrators near the group of medics and there was no shooting from the ISF either immediately before or after he was shot.^u

The ISF shot a 24-year-old freelance photojournalist . . . in the abdomen with live ammunition. He was standing with his back to the separation fence, around 300 meters away. When he was shot he was taking a break from photographing along with two other photojournalists from international news agencies. He was wearing a blue vest marked “PRESS” and the bullet entered his mid-section just below the vest.^v

(continued)

TABLE B (continued)

The ISF shot 30-year-old journalist Yasser Murtaja with live ammunition in the lower abdomen as he covered the demonstration site. . . . Yasser was wearing a dark blue bulletproof vest clearly marked with the word “PRESS,” and a blue helmet. . . . He was standing approximately 300 meters from the separation fence, behind a large group of demonstrators. Visibility was good, and there were no other shots fired in the vicinity at the time. The gunshot hit him in the abdomen . . . and [he] died of his injuries the following morning.^w

The ISF killed Ahmed Abu Hussein, a 24-year-old journalist. . . . Publicly available video footage of Ahmed’s shooting . . . clearly shows him standing still taking photographs of demonstrators. . . . At the moment he was shot, Abu Hussein was approximately 250–300 meters from the fence. He was clearly marked as a journalist, wearing a blue helmet and a blue vest marked “PRESS.”^x

Fadi Abu Salmi was a 29-year-old double amputee. . . . The ISF shot him in the chest. . . . He died immediately. The ISF shot him . . . as he sat in his wheelchair under a tree approximately 250–300 meters from the separation fence with two friends.^y

Ahmad Abu Aql was 24 years old. . . . He walked with crutches. . . . He sat down alone on a small sand hill . . . approximately 150 meters from the separation fence . . . with his back towards the fence. The ISF shot him in the back of the head. . . . He died the same day.^z

^a *Report of the Detailed Findings of the Independent International Commission of Inquiry on the Protests in the Occupied Palestinian Territory* (A/HRC/40/CRP.2; 18 March 2019).

^b *Ibid.*, para. 272 (see also para. 229).

^c *Ibid.*, paras. 743, 746.

^d *Ibid.*, paras. 692, 694 (see also paras. 519, 526, 536). In her *Report on Preliminary Examination Activities 2019* (<https://icc-cpi.int/itemsDocuments/191205-rep-otp-PE.pdf>), the Prosecutor made mention of “alleged use of excessive and deadly force by Israeli forces in the context of the demonstrations” (para. 214; cf. para. 226), but scrupulously omitted the Commission of Inquiry’s crucial finding that Israeli forces were *intentionally targeting* civilians who posed no imminent threat.

^e *Ibid.*, para. 420.

^f *Ibid.*

^g *Ibid.*

^h *Ibid.*

ⁱ *Ibid.*

^j *Ibid.*, para. 423.

^k *Ibid.*, para. 427.

^l *Ibid.*, para. 431.

^m *Ibid.*, para. 480.

ⁿ *Ibid.*, para. 515.

^o *Ibid.*, para. 517.

^p *Ibid.*

^q *Ibid.*

^r *Ibid.*

TABLE B (continued)

^s Ibid., para. 524.^t Ibid.^u Ibid., para. 525.^v Ibid., para. 535.^w Ibid.^x Ibid.^y Ibid., para. 537.^z Ibid.

4.3.3.2. The Prosecutor was also seemingly oblivious to this anomaly: *if* senior Israeli officials banked on a more or less calm, peaceful, nonviolent capture of the vessels, and *if* they anticipated something between “engaging with the passengers in conversation” and “some pushing and limited physical contact”⁵⁵—in other words, “relatively minor civil disobedience” or “violence . . . at the extreme lower end of the conflict spectrum”⁵⁶—*then why* did they deploy an elite commando unit trained to kill, not the Israeli coast guard or a police-like unit accustomed to handling civil resisters? The *Turkel Report* stated that, if “Special Forces trained teams” were conscripted, that’s because they’re “often used when a boarding is anticipated to be ‘opposed’ or ‘non-compliant.’”⁵⁷ The Prosecutor prudently didn’t repeat this flagrant non sequitur: for, wasn’t the thrust of the *Turkel Report* that, if the mission went awry, that’s because “during the planning of the Israeli military operation, the possibility that the passengers aboard the vessels might be direct participants in hostilities was not expected and was not taken into account”?⁵⁸ Indeed, if it was anticipated that the encounter would be closer to a *Kumbaya* moment than the *Entebbe* raid, why was Israel’s military-national security brass—including the “Minister of Defense,” the “Ministry of Public Security,” “IDF officers”—drawn into and intimately involved in the operation’s protracted,

55. Finkelstein, *Gaza*, pp. 150–51; Turkel Report, para. 244.

56. Turkel Report, paras. 213, 243.

57. Turkel Report, para. 182.

58. Turkel Report, para. 201. The Turkel Report also alleged (para. 242) that use of a “Special Forces unit . . . was in accordance with the normal international practice for naval operations . . . , particularly in light of the need for specialized training to board a moving vessel and for fast-roping onto the deck of a ship at night.” It adduced no evidence that this was “normal international practice,” while falsely presuming that no other option was available except “fast-roping onto the deck of a ship at night.”

intricate planning, and why was no lesser a personage than the Commander of the Navy put in charge of it?⁵⁹ The *Turkel Report* stated that “The placement of senior commanders on scene, including the Commander of the Navy, demonstrated the seriousness with which this incident was viewed by the Israeli military.”⁶⁰ But why, pray tell, would the Israeli *armed forces* gravely brace for “minor civil disobedience”?⁶¹

4.3.4. The Prosecutor contended that the IDF’s *modus operandi*—“a boarding operation which enabled distinction . . . between the persons and the vessels themselves”⁶²—demonstrated the absence of violent intent. In other words, the IDF’s mode of attack—boarding the vessels rather than torpedoing them—showed that it sought to discriminate between the vessels that it was, and the passengers that it wasn’t, targeting. But if the IDF didn’t just sink the flotilla vessels along with the passengers, couldn’t that be because it feared the political fallout? The Prosecutor further alleged that, if the IDF meted out much harsher treatment to passengers aboard the *Mavi Marmara* than aboard the other vessels, then it demonstrated the absence of a violent IDF plan or policy: “the inconsistent approach to dealing with the civilians across the vessels of the flotilla . . . supported the view that the civilian passengers as such were not the intended object of the attack.”⁶³ But if the objective of the violent assault was to deter future flotillas, didn’t the IDF only need to “teach a lesson” to the civilians aboard the flagship?⁶⁴

4.3.5. The Prosecutor pulled out all the stops to prove senior Israeli officials lacked less violent options to enforce the blockade.

4.3.5.1. The first point to ponder is, Why did the IDF have to attack at all? (It is set to one side at this juncture whether Israel could even claim a

59. Turkel Report, paras. 117, 121. It stated that “the IDF began its preparations back in February 2010” (*ibid.*, para. 121).

60. Turkel Report, para. 242.

61. Turkel Report, para. 243.

62. Prosecutor’s Consolidated Response, para. 67; see also Prosecutor’s Response to Review Application, para. 37.

63. Prosecutor’s Consolidated Response, para. 67; see also Prosecutor’s Response to Review Application, paras. 37, 62, 89, and Prosecutor’s Final Decision, paras. 90, 168–69.

64. First PTC Decision, para. 43; Finkelstein, *Gaza*, p. 152. If the IDF reserved the *Mavi Marmara* for special treatment, it was also almost certainly because 350 of its almost 600 passengers were nationals of the hostile Turkish government. All of the dead passengers were Turkish nationals (one had dual Turkish/American nationality).

legal right to enforce the blockade.) The flotilla, according to the Prosecutor, was in international waters and not headed toward Gaza when the IDF stormed it: “two facts . . . are not in dispute— . . . the flotilla had not yet reached the zone of the blockade itself at the time of the boarding operation, and . . . the flotilla was ‘sailing in the direction of the coast of Egypt, not Gaza, and had been doing so’ for more than an hour.”⁶⁵ Still, the Prosecutor proceeded to justify the IDF assault on the grounds that the flotilla “expressed a clear intention to sail to Gaza in breach of the measures imposed by Israel.”⁶⁶ But if the flotilla was indisputably in international waters and indisputably heading away from Gaza, then Israel couldn’t even contend it launched a preemptive attack. Was the Prosecutor sanctioning a right—alien to international law—of preventive attack?

4.3.5.2. The question was posed during deliberations, Why didn’t the IDF just disable the *Mavi Marmara*’s propeller/rudder or block its passage at sea?⁶⁷ The Prosecutor initially doubted—without argument—the feasibility of these options.⁶⁸ Subsequently, however, she invested the full force of her mental powers to gainsaying their feasibility, while conceding that even the *UN Panel Report* was skeptical no other options existed.⁶⁹ Indeed, the *Turkel Report* itself suggested that the IDF failed to explore all alternative options, stating, for example, that “clear warnings and the controlled and isolated use of force may have helped avoid a wider and more violent confrontation

65. Prosecutor’s Final Decision, paras. 323–26 (the internal quote is culled from a letter submitted by the Comoros). The wording in para. 323 is slightly ambiguous; the very least that can be said is that the Prosecutor did not dispute the Comoros’ contention that the *Mavi Marmara* was headed away from Gaza and toward Egypt. The Turkish Report (pp. 19, 21) observed that on 30 May at 11:30 p.m., “the vessel adopts a course . . . the final destination of which would have been a point between Al-Arish and the Suez Canal,” and that on 31 May at 4:32 a.m., “as soon as the attack commences, the captain changes the vessel’s course . . . in opposite direction to the Israeli coast, increasing power to full speed.” However, echoing the *Turkel Report*, the Prosecutor did in her initial submission purport that the flotilla was “headed to Gaza and intended to breach the blockade . . . the flotilla ignored repeated warnings from Israel to desist” (*Turkel Report*, paras. 125, 173, 203; Prosecutor’s Report, para. 94). It was also contended by some *Mavi Marmara* passengers that the vessel was stationary when Israel attacked (LRV Observations, para. 21, Prosecutor’s Consolidated Response, para. 133, Prosecutor’s Final Decision, paras. 242–47). Whether the vessel was heading away from Gaza, or standing stationary, it wouldn’t affect the point made here.

66. Prosecutor’s Final Decision, para. 326.

67. LRV Observations, para. 21.

68. Prosecutor’s Consolidated Response, para. 126n296.

69. Prosecutor’s Final Decision, para. 309; UN Panel Report, paras. 110–17.

such as the one that occurred.”⁷⁰ The Prosecutor cited repeatedly and then embellished the *Turkel Report’s* various denials of an alternative.⁷¹ Dead set on vindicating Israel, come what may, she out-Turkeled the *Turkel Report*. It is impossible to substantively assess her speculations, as no evidentiary basis was provided for them, while the Prosecutor’s own knowledge of vessel interception on the high seas doesn’t exactly command authority. Instead of reasoned analysis, the reader was subjected to knotty passages such as these:

- “The Comoros’ . . . implication that it would be ‘absurd’ for the IDF even to have contemplated the possibility ‘that the *Mavi Marmara* might have [intentionally] rammed an IDF vessel on the High Seas’ does not seem consistent with the facts—especially the common sense fact that most collisions, between any kind of traffic, are generally accidental rather than intentional, and yet occur anyway.”⁷² In other words, to refute the eminently sensible proposition that the captain of a civilian passenger ship wouldn’t have deliberately rammed an armada of warships blocking his path, and that Israeli planners would surely have known this, the Prosecutor observed that. . . accidents do happen. “Indeed, it is only reasonable to conclude,” she continued, “that professional sailors will *always* consider the conduct of close maneuvers between large vessels at sea, in the dark, at speed, to bear an appreciable risk” (emphasis in original). But did the “appreciable risk” of impeding the *Mavi Marmara’s* path at sea really exceed that of boarding it “in the dark, at speed” via helicopter, with weapons blazing? Incidentally, as she dreamt up this harrowing scenario, the Prosecutor seemed to forget that deterring the vessel didn’t have to play out “in the dark” as it was heading “at speed” *away from* Gaza.
- “The Comoros further asserts that the IDF did not attempt a ‘cold stop’ of the *Mavi Marmara* or other vessels, by which it means ‘disabling propellers or rudders without boarding’. . . . The Comoros . . . , however, [doesn’t] explain how such a measure might feasibly have been attempted in the circumstances, other than by firing directly on the *Mavi Marmara* (with all

70. *Turkel Report*, para. 247 (see also para. 121); Prosecutor’s Final Decision, para. 310.

71. Prosecutor’s Final Decision, paras. 310–11. For the *Turkel Report’s* denials that a “cold stop,” “disabling fire,” etc. were viable or safer options, see paras. 117, 180–83.

72. Prosecutor’s Final Decision, para. 312.

the attendant risks for the passengers aboard).”⁷³ It is hard to figure how the Prosecutor, on her own and with no expert counsel, could pronounce on the *infeasibility* of this option, or, for that matter, why she would venture to contrive this alibi even as the *Turkel Report* shied away from it, and even as informed Israeli commentators and military officials took as a given that a “cold stop” *was* a viable option.⁷⁴

It cannot but astound that amidst her arid meanderings, the Prosecutor derided the possibility expressed by others of less violent options as mere “hearsay expertise.”⁷⁵ It cannot but doubly astound that the Prosecutor frenziedly concocted all manner of rebuttal, however wild and ungrounded, to plausible objections even as her formal mandate was not to discredit the victims—didn’t that responsibility redound on Israel’s counsel?—but, on the contrary, to weigh whether a reasonable basis existed to investigate the crimes committed against them. The Legal Representative for Victims (LRV) fairly observed, “It is as though she had determined that she was not going to investigate this case and thus needed to manipulate each finding that could expose the seriousness of this case, for the purpose of supporting her decision.”⁷⁶

4.3.5.2.1. What about the option of conducting a “visit-and-search” of the flotilla vessels for contraband instead of commandeering them? The Prosecutor alleged in her *Final Decision* that “there is no question that the *Mavi Marmara* and the flotilla . . . clearly resisted attempts by the IDF to conduct a visit-and-search.”⁷⁷ If she cited no source, that’s because “there is no question” that none existed—her asseveration is, shocking to note, fabricated out of whole cloth. The *HRC Report* categorically stated that “at no stage was a request made by the Israeli Navy for the cargo to be inspected,” while the *Turkish Report* was equally emphatic that “no demand was ever made by the Israeli forces to ‘stop, visit and search’ the vessel.”⁷⁸ The flotilla leadership

73. Prosecutor’s Final Decision, para. 314.

74. Finkelstein, *Gaza*, p. 150.

75. Prosecutor’s Final Decision, para. 314n507.

76. LRV Observations, para. 10.

77. Prosecutor’s Final Decision, para. 326; see also Prosecutor’s Response to Review Application, para. 42 (the citations to this paragraph made no reference to the flotilla’s alleged opposition to a visit-and-search).

78. HRC Report, para. 109; Turkish Report, p. 19.

offered to let a neutral body, such as the International Committee of the Red Cross, verify at sea the humanitarian content of the cargo (it had already been rigorously inspected by Turkish officials at departure), while Israeli officials neither evinced interest in searching the flotilla's cargo nor even pretended that the ships were transporting weapons to Gaza.⁷⁹ If Israel imposed a full-fledged naval blockade on Gaza, it was because the humanitarian flotillas didn't carry contraband and therefore couldn't legally be prevented from reaching Gaza after a visit-and-search. (International law does permit the party imposing a blockade to interdict vessels not carrying contraband.) Simply put, Israel didn't even seek to conduct a visit-and-search because it assumed, correctly, that the flotilla's cargo was strictly humanitarian.⁸⁰

4.3.5.3. Even if, *arguendo*, other options were unavailable, it still perplexes why the IDF swooped in and down in the dead of night, with blazing weapons, and without final warning. It couldn't have been the urgency of the moment: the flotilla was still sixty-four nautical miles from the blockade zone and "several hours steaming" before it would be reached.⁸¹ It couldn't have been the surprise factor. Echoing, per usual, the *Turkel Report*, the Prosecutor contended that "an attempt to use the element of surprise is reasonably consistent with an effort to reduce the potential for confrontation."⁸² But if, as the Prosecutor (quoting the *Turkel Report*) repeatedly alleged, the IDF was briefed in the planning stages to "anticipate . . . at most verbal harassment (such as shouting and cursing), spitting, shoving, and punching," then factoring in the benefit of surprise was gratuitous,⁸³ while the *modus operandi* it chose could only *increase* the potential for confrontation.⁸⁴ Indeed, it would appear that the planned Israeli operation was designed and guaranteed to

79. Finkelstein, *Gaza*, pp. 143–44.

80. Finkelstein, *Gaza*, pp. 187–92. In a colorful defense of the Israeli assault, Judge Péter Kovács, dissenting from a Pre-Trial Chamber decision, alleged that the *Mavi Marmara's* "attempt at breaching the blockade"—even as it was heading away from Gaza—"creates the fear for patrolling coast guard and navy that there appears to be a military purpose for the vessel's intrusion" (First PTC Decision, "Partly Dissenting Opinion of Judge Péter Kovács," para. 33). This "fear" appears to have been manufactured by Kovács's perfervid imagination.

81. UN Panel of Inquiry, para. 110.

82. *Turkel Report*, para. 174 ("the intention of the Israeli forces was to capture the vessels with the minimum use of force, and, during such an operation, there is a great advantage to operating under the cover of darkness"); Prosecutor's Final Decision, para. 315.

83. Prosecutor's Report, para. 106; Prosecutor's Final Decision, para. 261 (emphasis added).

84. UN Panel of Inquiry, paras. 115, 116.

induce panic and mayhem as a prelude to, and retrospectively to justify, a violent assault. *If the IDF didn't expect a violent reception*, why didn't it intercept the *Mavi Marmara* in broad daylight with a full complement of journalists in tow, to show the world its peaceful intentions, just as “the organizers of the flotilla”—apparently having nothing to hide—“expressed their desire that the conflict with the Navy would take place in daylight”;⁸⁵ why did the IDF want, on the contrary, to “avoid publicity”;⁸⁶ why did the IDF disable the vessel's communications beforehand, preventing transmissions to the outside world;⁸⁷ and allocate as a special task “to deal with the magnetic media that would be found on board the vessels”;⁸⁸ why did the IDF initiate contact using tear gas, smoke and stun grenades, and possibly plastic bullets?

4.3.6. To judge by its preplanning—i.e., the tactical choices it did *and didn't* make—the reasonable inference is that Israel sought a bloody confrontation, although probably not on the scale that ensued. (It couldn't foresee that the commandos would panic at the passengers' determined resistance and then embark on a yet more sanguinary unscripted, vengeful murder and maiming spree.) It remains to consider, Why did Israel launch a violent assault? The probability is that multiple factors converged to make a violent commando raid the optimal operational plan.⁸⁹ The prime impetus, however, was almost certainly to stem the rising tide of humanitarian vessels destined for Gaza. It was posited by the Prosecutor's skeptical interlocutors that the assault's real purpose was to “terrorize peaceful demonstrators *never again* to dare to confront the State of Israel” and “demonstrate IDF prowess by killing, injuring and abusing the civilian passengers who sought to aid those living under the blockade in Gaza” (emphasis in original). The Prosecutor dismissed this position as lacking in a “reasonable basis.”⁹⁰ But surely its basis was more reasonable than the Prosecutor's finding, copied from the *Turkel*

85. Turkel Report, para. 116.

86. UN Panel of Inquiry, para. 112.

87. Just prior to the attack, an Israeli human rights group protested in a letter to the attorney-general and chief military advocate-general that the “electronic screening” was “intended to prevent the broadcast of harsh images from the takeover of the flotilla vessels” (Turkel Report, para. 120n442).

88. Turkel Report, para. 121.

89. Finkelstein, *Gaza*, pp. 150–54.

90. Prosecutor's Final Decision, para. 316; see also Comoros' Application for Review, para. 9, and LRV Observations, para. 50.

Report and pasted in her own, that the assault was “solely directed at the vessels,” not at the passengers.

4.4. *Parsing the evidence (II): A nonviolent boarding?*

4.4.1. A key point of contention was which side triggered the violence: for, if the commandos initiated it, that would suggest senior Israeli officials planned in advance a violent takeover and bore culpability for the war crimes that ensued, thereby escalating the “gravity” of the incident.

4.4.2. In her first iteration (*Prosecutor’s Report*), the Prosecutor stated that the initial attempt by IDF forces to board the *Mavi Marmara* via Morena (Zodiac) speedboats was repelled by “resistance” from passengers. Israeli commandos, she continued, then attempted to fast-rope on deck but “immediately encountered violent resistance from a large group of passengers who . . . attacked the IDF soldiers with, inter alia, their fists, wooden clubs, iron rods, chains, slingshots (used with metal and glass balls), and knives.” When other commandos descended on deck, they, too, “encounter[ed] . . . violent resistance.”⁹¹ The Prosecutor audaciously concluded that “it is generally uncontested that, *in response to the resistance* from some of the passengers . . . , the IDF soldiers used various types of force against the passengers” (emphasis added). The Prosecutor did acknowledge in passing that according to the *Turkish Report* it was the IDF that initiated the violence, and that it was “difficult to establish the exact chain of events in light of the significantly conflicting accounts of when live ammunition was first used.”⁹² But the overwhelming thrust of her description pinned culpability on the passengers. The summary depiction of the initial sequence of events in the *Prosecutor’s Report* stated without caveat or equivocation: “the IDF forces *were met with violent resistance* from a group of passengers and *responded with varying levels of force*” (emphasis added).⁹³ In other words, the Prosecutor ultimately *did* establish the “exact chain of events” in her *Report*—the passengers initiated the violence, the commandos reacted to it. Whereas the *Prosecutor’s Report* cited all four reports in support of its analysis on this point, the Prosecutor clearly relied on the *Turkel Report*.⁹⁴ The authoritative *HRC Report*

91. Prosecutor’s Report, paras. 40–41.

92. Prosecutor’s Report, para. 41.

93. Prosecutor’s Report, para. 106.

94. Prosecutor’s Report, para. 41n72. The passages in the UN Panel Report cited by the Prosecutor essentially rely on and repeat the *Turkel Report*’s depiction and findings.

found, on the contrary, that the Israeli speedboats fired “non-lethal weaponry onto the ship, including smoke and stun grenades, tear-gas and paintballs,” and perhaps “plastic bullets,” while the Israeli helicopters “used smoke and stun grenades in an attempt to clear an area for the landing of soldiers” and “live ammunition was used from the helicopter onto the top deck prior to the descent of the soldiers.”⁹⁵ In a transparent attempt to suppress crucial evidence, the Prosecutor improperly referenced in her footnote and scrupulously avoided quoting in her text these passages from the *HRC Report*.⁹⁶

4.4.3. The *Prosecutor’s Report* came under withering attack from multiple quarters.

4.4.3.1. The Comoros stated that “There is information available to the Prosecutor that the IDF fired live ammunition from the boats and helicopters *before* the IDF forces boarded the *Mavi Marmara*, which is plainly consistent with a deliberate intent and plan to attack and kill unarmed civilians” (emphasis in original). It cited many passenger testimonies, to which the Prosecutor was apparently privy, stating, for example: “I would like to emphasize that I know the difference between live ammunition and other ammunition. I had been a soldier myself and it was live ammunition. And these shots were fired before any Israeli soldier was on the boat.”⁹⁷

4.4.3.1.1. The Prosecutor replied that she “accepted much of the witness information,” and “did not dispute . . . the stated perceptions of the various witnesses.”⁹⁸ These rejoinders do not ring true, at any rate on the critical question of which side initiated the violence. The Prosecutor speculated that the eye-witnesses, however emphatic in their certainty, might have been confused.⁹⁹ But—setting aside the Prosecutor’s avowal that she “did not dispute. . .”—anyone might possibly be confused about anything. That hardly constitutes a compelling rebuttal. It is less compelling as the allegedly confused witnesses corroborated each other’s testimonies.¹⁰⁰ It is less compelling still as the only

95. HRC Report, paras. 112–14, 117.

96. OPCV Observations, para. 54n76. Of all the reports critical of the Prosecutor’s findings, OPCV Observations, although not entirely free from error, was the most precise and perceptive.

97. Comoros’ Application for Review, paras. 101–4 (see also para. 22).

98. Prosecutor’s Response to Review Application, paras. 20, 26.

99. Prosecutor’s Response to Review Application, para. 82.

100. In the *Abu Garda* case, “the number of witnesses . . . and the reasonable degree of consistency among their respective statements” was reckoned “sufficient evidence” to establish

contradictory evidence emanated from “IDF soldiers and other security agencies accused by the victims of inhuman treatment and violent interrogation techniques.”¹⁰¹ The Prosecutor purported that “other witnesses to the boarding operation did not state that live fire commenced before the boarding.” But her citations on this point either didn’t substantiate it or did so only by a stretch.¹⁰² The Prosecutor further alleged that she possessed “no information . . . that any such live rounds were deliberately targeted at passengers, as opposed to warning shots, nor is there information that use of such live rounds in this fashion was authorized or planned.”¹⁰³ But wasn’t the point in contention whether the commandos initiated or reacted to violence; whether they planned to execute a peaceful boarding and resorted to lethal weaponry only in unprovoked and unanticipated self-defense? If the commandos did precipitate the violence, it would also cast a dark shadow over the *Turkel Report*, which categorically denied this, and, by extension, over the Prosecutor’s case, which leaned so heavily on the Israeli report.

4.4.3.2. The LRV and the Office of the Public Counsel for Victims also weighed in, criticizing the Prosecutor’s findings. The LRV submitted multiple witness statements attesting that the “IDF fired live ammunition from the zodiac boats and helicopters as the *Mavi Marmara* was first approached by the IDF.”¹⁰⁴ Even the dubious *UN Panel Report* (more on which later) acknowledged, according to the OPCV, that “[p]hotographs show bullet marks on the funnel of the vessel, which appear consistent with firing from above,” and that “[t]he wounds of several of the deceased were also consistent with bullets being fired from above.”¹⁰⁵

4.4.3.2.1. The Prosecutor riposted that “at no point did the Prosecution ‘seek to reach definitive findings with respect to the crimes alleged,’ ‘definitive conclusion[s],’ or ‘final conclusions on validly contested legal

the plausibility of an allegation. ICC, “Situation in Darfur,” para. 169.

101. OPCV Observations, para. 41.

102. Prosecutor’s Response to Review Application, para. 82; the Prosecutor repeated this problematic allegation in Prosecutor’s Final Decision, paras. 34, 103.

103. Prosecutor’s Response to Review Application, para. 83.

104. LRV Observations, paras. 19–20.

105. OPCV Observations, para. 54; UN Panel Report, para. 122.

points.”¹⁰⁶ But the *Prosecutor’s Report* did clearly reach a definitive finding and conclusion on the acutely contested point of which side initiated the violence: “the IDF forces were met with violent resistance from a group of passengers and responded with varying levels of force.” What’s more, the Prosecutor contended (albeit in murky prose) that there was “no reasonable basis to believe” the Israeli forces “started shooting with live ammunition at passengers” before boarding the vessel, and that they only opened fire “*after*” having “encountered resistance” (emphasis in original).¹⁰⁷ The Prosecutor alleged that her “Report expressly proceeded on the basis of ‘possibl[e]’ live fire before the boarding.”¹⁰⁸ Quite the contrary, the *Prosecutor’s Report* initially left open, just barely, the possibility that the IDF might have initiated the violence, but then, as just quoted, proceeded to resolve that the violence was initiated by passengers. The Prosecutor reiterated (although inserting this time a slight caveat) that she “accepted much of the witness information provided” to her¹⁰⁹—but, alas, not on which side initiated the violence. Indeed, the Prosecutor invested the preponderance of her mental energy throughout the proceedings in undercutting passenger testimony on this salient point. If, as the Prosecutor purported, she was truly agnostic on which side initiated the violence, it is cause for wonder why she frantically impeached this passenger testimony, while never once directly impeaching the unsworn, un-interrogated, self-serving testimony of the Israeli commandos. The Prosecutor further contended that, even if the IDF did initiate the violence, she “did not consider the use of live ammunition as such to be dispositive of the intended object of the attack as a whole—especially in the absence of information whether any live fire was targeted at civilians (as opposed to warning shots) or was authorized.”¹¹⁰ The function of the preliminary examination, however, was not to reach “dispositive” determinations but, rather, to ascertain whether a “reasonable basis” existed to open a full-fledged investigation. If the IDF initiated the assault with lethal violence, and if it resorted to indiscri-

106. Prosecutor’s Consolidated Response, para. 29. The internal quotes come from OPCV Observations.

107. Prosecutor’s Consolidated Response, para. 73.

108. Prosecutor’s Consolidated Response, para. 49 (the internal quote comes from Prosecutor’s Report). See also *ibid.*, para. 54, and Prosecutor’s Final Decision, para. 102.

109. Prosecutor’s Consolidated Response, para. 47.

110. Prosecutor’s Consolidated Response, para. 66; see also Prosecutor’s Final Decision, paras. 124, 265, 271.

minate and disproportionate force during the takeover, then surely there was a “reasonable basis” to suppose senior Israeli officials planned not just to terrify but also terrorize passengers.¹¹¹ The Prosecutor went on to contend that there was “no reasonable basis to believe civilians were intentionally attacked” because “the information appears to show that the boarding operation was conducted in order to enforce the blockade, thus making the vessels (by their capture) the object of the attack.”¹¹² That is, the IDF intended to interdict the vessels, not target the passengers. But was this what “the information appears to show” or what “the *Turkel Report* appears to show”? As the Prosecutor strained to plug holes in her untenable findings, she perforce dropped the facade of conducting a preliminary examination and, instead, and—ironically—if only to cover the unseemly nakedness of her partisanship, metamorphosed into a member *in absentia* of the Turkel Commission. The more the Prosecutor sought to demonstrate that her findings were anchored in a reasonable, objective reading of the evidence, the more she exposed her unreasonable, subjective embrace of Israel’s position. It is also most difficult to reconcile this desperate flailing to prove the unprovable with the Prosecutor’s pretense of not seeking “definitive” answers to “validly contested” points. The Prosecutor went on to conclude that, even if the commandos did initiate the violence, she “does not consider that this possibility, even if established, would have altered [her] analysis.”¹¹³ But were that the case, it perplexes why the Prosecutor dug in her heels in the face of mounting testimonial evidence contradicting her findings, and why she so frenetically endeavored to discredit this mounting evidence. The fact was, however embarrassingly feeble her rejoinders, and with only the perpetrators’ tainted testimony to fall back on, the Prosecutor was dead set on proving that the IDF violence wasn’t premeditated, so as to diminish the incident’s gravity by not implicating the senior Israeli officials who planned the assault.¹¹⁴

4.4.4. The *Prosecutor’s Final Decision* contained a full-throated defense of the finding that passengers, not the IDF, initiated the violence. When the Prosecutor issued her original *Report*, ten passenger witnesses contradicting

111. First PTC Decision, para. 36.

112. Prosecutor’s Consolidated Response, para. 67.

113. Prosecutor’s Consolidated Response, para. 141; see also Prosecutor’s Final Decision, para. 264, but cf. *ibid.*, para. 101, for a slightly less categorical formulation on this point.

114. First PTC Decision, para. 34.

her had stepped forward.¹¹⁵ By the time she issued her *Final Decision*, however, the Prosecutor confronted an apparently more daunting challenge: “in total at least 82 persons perceived fire (with lethal or less-lethal ammunition) emanating from the boats or helicopters, and . . . some of these persons believed that this fire commenced before the boarding had commenced.”¹¹⁶ The Prosecutor’s resolution of this dilemma was, first, to deny incontrovertible facts and, then, to posit a benign collective psychosis:

The Prosecution . . . did not absolutely exclude the evidence of possible live fire before the boarding operation. It merely recognized that this evidence had to be treated with caution. The circumstances of the incident as a whole made it reasonable, and even likely, that witnesses . . . might be honestly mistaken as to the exact sequence of events.¹¹⁷

But the Prosecutor did repeatedly either explicitly state, or strongly imply, or base her argumentation on the premise, that the IDF resorted to lethal force *in response to* passenger violence. Indeed, in a paragraph preceding the one just quoted, she posited that passengers aboard the *Mavi Marmara* “resisted the IDF boarding operation, which *led* to a period of violent confrontation,” and which “the IDF troops were surprised by, and unprepared for” (emphasis added).¹¹⁸ The fact was, the Prosecutor did not “merely” sound a cautionary note but, rather, invested the full imprimatur of her office into impeaching the emphatic testimony of passengers that the IDF initiated the violence, in order to prove that these mutually corroborative testimonies of multiple passengers had been at best “honestly mistaken.” It is symptomatic, and revelatory, of the Prosecutor’s mode of analysis that the one and only cross-reference she cited in support of her “honestly mistaken” thesis was the *Turkel Report*.

4.4.4.1. Before parsing the evidence in the Prosecutor’s most comprehensive defense, it’s useful to take a step back to recapitulate the stakes. The Prosecutor sought to demonstrate that the Flotilla Incident, in which several passengers were killed while hundreds of others were injured or egregiously abused by Israeli commandos, resulted not from a premeditated plan by senior

115. Prosecutor’s Final Decision, paras. 120–21.

116. Prosecutor’s Final Decision, para. 267.

117. Prosecutor’s Final Decision, para. 104.

118. Prosecutor’s Final Decision, para. 90.

Israeli officials but, instead, from the excessive and disproportionate reaction of “some”¹¹⁹ commandos to violence instigated by passengers. The incident thus didn’t implicate senior Israeli officials but at most a few trigger-happy soldiers, and consequently didn’t cross the threshold of gravity that would warrant an ICC investigation. The only positive evidence the Prosecutor could adduce to substantiate her speculation comprised unsworn, un-interrogated, self-serving testimonies of Israeli commandos and officials to the Turkel Commission, that she accepted in her analyses at face value without caveat or caution. To prove that her speculation based on Israeli testimonies constituted the *only* “reasonable” conclusion from the extant evidence, the Prosecutor had to discount passenger testimonies. If a “reasonable basis” existed to credit passenger testimonies, then a “reasonable basis” existed to conclude that the ensuing murder and mayhem that outraged international opinion had been planned and ordered by senior Israeli officials. As the Prosecutor succinctly put it in her *Final Decision*: “the pertinent question is only whether the allegations of live fire prior to the boarding operation are such that they provide a reasonable basis to believe that the identified crimes on the *Mavi Marmara* were committed according to a plan or policy.”¹²⁰ If such a “reasonable basis” did exist, the Prosecutor would have to proceed with an investigation.

4.4.4.2. The Prosecutor stated in her *Final Decision* that passenger testimonies on this score “must be treated with particular caution.”¹²¹ Her *discreditation* strategy largely consisted of desultory speculations that the passengers misapprehended what they apprehended. The Prosecutor pointed to the rapid succession of events, the pandemonium aboard the vessels, the poor visibility when the IDF launched the attack, and the IDF’s use of non-lethal weapons that could have been confounded by passengers with live fire.¹²² However, unless the Israeli testimonies constituted holy writ, it’s hard to figure why the Prosecutor privileged them, while conceiving as her mandate to poke holes in passenger testimonies even as many of these emphatic and wholly plausible witnesses corroborated each other. True, the witnesses might have been mistaken, but it was also true that if they mutually corroborated each other, and—*pace* the Prosecutor—no passengers directly contradicted them, then it’s more probable (although not certain) that they weren’t. The passengers

119. Prosecutor’s Report, para. 58.

120. Prosecutor’s Final Decision, para. 265.

121. Prosecutor’s Final Decision, para. 122.

122. Prosecutor’s Final Decision, paras. 107–19, 122.

were manifestly not more interested parties than the Israeli perpetrators possibly implicated—by the Prosecutor’s own reckoning—in war crimes. The Prosecutor noted that several witnesses “were actively participating in the resistance” when the commandos fast-roped on board, which “heightened risk of bias, both to justify their own actions and potentially to impugn the conduct of the IDF.”¹²³ It seems not to have occurred to the Prosecutor that, if these witnesses to live fire actively resisted and then harbored a “bias” as to what transpired, it was perhaps because the IDF had been *firing on them*. It seems also not to have occurred to the Prosecutor that the commando testimonies, which she culled from the *Turkel Report* and dutifully reproduced without demurral, might also warrant some caution. Even were it the case that the commando and passenger testimonies balanced each other out, a “reasonable basis” would have nonetheless existed under ICC guidelines to undertake an investigation. “Facts which are difficult to establish, or which are unclear, or the existence of conflicting accounts,” the Pre-Trial Chamber reminded the Prosecutor, “are not valid reasons not to start an investigation, but rather call for the opening of such an investigation.”¹²⁴ Indeed, it perplexed an Appeals Chamber judge why the Prosecutor so adamantly opposed an investigation if the case could eventually still be dropped for lack of sufficient evidence: “an investigation . . . is simply the process of pursuing, collecting and examining forensic information in order to consider whether criminal charges may be laid. That investigation process may well result, in the end, in a decision to lay no charges, because the forensic information obtained and examined did not justify the laying of charges. That being the case, it becomes difficult to understand the great anxiety—such as has been on display in this case—against even commencing an investigation.”¹²⁵ Isn’t there a “reasonable basis”—to quote the Prosecutor’s favorite locution—for inferring that this anxiety was born not of judicial but *political* prudence, as merely an investigation would trigger harsh Israeli (and American) retribution?

4.4.4.3. Judging by the analyses in her *Final Decision*, the truth was that no passenger testimony—be it emphatic or cautious—or, for that matter, any other testimony or forensic evidence—whatever the quantity or quality—could dissuade the Prosecutor from her preordained finding that the IDF had

123. Prosecutor’s Final Decision, para. 122.

124. First PTC Decision, para. 13. See also Appeals Chamber Judgment, paras. 87–90.

125. Appeals Chamber Judgment, “Partly Dissenting Opinion of Judge Eboe-Osui,” para. 10.

embarked on a peaceful mission, and that the ensuing carnage was, in essence, a tragic misunderstanding:

- After she conceded that “automatic fire . . . could in principle be a distinctly recognizable sound,” and that passengers might have been able to “reliably identify when lethal weapons were employed,” the Prosecutor, citing on both points the *Turkel Report*, entered the demurrals that use of automatic weapons was at most “very limited” while witnesses couldn’t know whether the commandos fired their lethal weapons with “lethal intent.”¹²⁶ So what? The point of contention was, *Did the commandos intend a nonviolent takeover?* If they fired lethal weapons prior to boarding—however many and even if they did purport benign intent—surely a reasonable inference is no.
- If witnesses acknowledged the “chaos and confusion” on board, then, according to the Prosecutor, it “limits the probative value of their accounts,” while if witnesses “do not acknowledge obvious limits to their own perceptions,” that too “limits the[ir] credibility.”¹²⁷ Discounted if they did, discounted if they didn’t. It would appear only unsworn written testimonies by commandos liable to criminal prosecution, submitted to a state commission that didn’t cross-examine or otherwise interrogate them—only such testimonies carried full probative value and credibility.
- Even as the Prosecutor credited expert testimony that live fire to clear the ship’s deck before the commando descent was a standard military maneuver, she dismissed it on the grounds that “the same logic would have dictated the use of heavy covering fire from the outset, in order to ensure that the IDF soldiers had the maximum protection at their point of maximum vulnerability . . . when the first soldiers were alone on the deck.”¹²⁸ The absence of such heavy lethal fire “may thus be” evidence that lethal fire didn’t precede the attack. But if, as the Prosecutor emphasized, the IDF did not anticipate passenger resistance, and if, as the Prosecutor emphasized, the attack was launched when visibility was poor, why would the IDF initially resort to “heavy” fire that could have endangered the commandos fast-roping and standing on deck—or, for that matter, massacred too many

126. Prosecutor’s Final Decision, paras. 116, 119.

127. Prosecutor’s Final Decision, para. 122.

128. Prosecutor’s Final Decision, paras. 270–71.

passengers, it being the case that Israel, hypersensitive to bad publicity, calibrates its massacres so as not to exceed the, as it were, absorptive capacity of international opinion? It also appears that by desperately contriving speculations that “may thus be” evidence, she crossed the threshold from ICC chief prosecutor to IDF chief counsel.

- Even as she conceded, finally, that “some rounds” of IDF fire “could have emanated from a high place such as a helicopter,”¹²⁹ the Prosecutor nonetheless concluded—in a breathtaking non sequitur—that none of the ten deceased passengers fell victim to these rounds. And even as she conceded, finally, that one passenger “might have been fatally wounded by a live round fired from one of the boats, potentially before the first IDF soldier boarded the ship,” it couldn’t be proof of a premeditated “plan or policy.” Why? “The *Turkel Report* is explicit in recounting the orders of the senior IDF officers in the boats that live ammunition was not to be used until a much later point. Accordingly, to any extent that [the passenger] might have been killed by an aimed live round emanating from one of the boats, it appears to have been contrary to orders and forbidden.”¹³⁰ It’s cause for wonder why the Prosecutor squandered so much energy composing her submissions. Wouldn’t it have saved her a lot of toil and trouble if she had simply submitted the *Turkel Report*?

4.4.5. The point in contention—which side initiated the deadly violence?—could have easily been resolved. The *Turkel Report* noted that, after the arrival of the first helicopter, the unfolding spectacle was “recorded by video camera directed at the *Mavi Marmara* from the IDF’s aerial observation post.”¹³¹ If it had nothing to hide, why didn’t Israel simply release this footage unedited? It’s additionally cause for wonder why the Prosecutor did not consider or reflect upon this elementary point.

4.4.6. Even if, against overwhelming evidence, the initial Israeli assault only used less lethal weapons, it would scarcely prove the Prosecutor’s case. *Why would the IDF use weapons that in the dark could easily be mistaken for live ammunition—smoke and stun grenades, tear gas canisters, paintballs, plastic bullets—if, by its own admission, repeatedly cited by the Prosecutor, it didn’t*

129. Prosecutor’s Final Decision, para. 273.

130. Prosecutor’s Final Decision, para. 274.

131. *Turkel Report*, para. 131.

expect violent resistance from peaceful protesters? A—or *the*—reasonable explanation is that Israeli officials who planned the operation sought to whip up a panic aboard the flotilla so as to then justify the infliction of murder and mayhem by the armed commandos, in order to deter future attempts at breaching the blockade.

4.4.7. The Prosecutor alleged in her *Final Decision* that, whereas her account of the Flotilla Incident was based on “information supporting its conclusions at the appropriate standard of proof,” competing interpretations constituted mere “*speculations*” (emphasis in original).¹³² The fact was, however, the Prosecutor’s account did not even rise to the level of speculation. It was mere embellishment of the *Turkel Report*, an already worthless fabrication.

4.5. *Parsing the evidence (III): A spontaneously violent takeover?*

4.5.1. Was the IDF violence committed “sporadically by individuals acting of their own volition” or “pursuant to a policy or plan”? The Prosecutor embraced the former account.¹³³ In essence, she found that, if things went awry during the flotilla takeover and some Israeli commandos used lethal force, it was still an unpremeditated, spontaneous, spur-of-the-moment response to the passengers’ violent attacks.¹³⁴

4.5.2. The Prosecutor leaned wholly on the *Turkel Report* to sustain her conclusion. She referenced without caveat the *Turkel Report* to the effect that “during the operation, the IDF soldiers alternated between non-lethal and lethal force as needed to protect themselves and other soldiers, depending on the threat posed.”¹³⁵ But the *HRC Report* found, on the contrary, that “the conduct of the Israeli military and other personnel towards the flotilla passengers was not only disproportionate to the occasion but demonstrated levels of

132. Prosecutor’s Final Decision, para. 158.

133. Prosecutor’s Consolidated Response, para. 113; see also Prosecutor’s Final Decision, para. 125.

134. In his defense of the Israeli assault, Judge Péter Kovács, dissenting from a Pre-Trial Chamber decision, went one step further as he alleged, “Additional information available also indicates that nine IDF soldiers were seriously injured by passengers, two having been shot. It was this violent resistance that prompted the use of force by IDF soldiers” (First PTC Decision, “Partly Dissenting Opinion of Judge Péter Kovács,” para. 35). No credible evidence exists that passengers “shot” any of the commandos (see HRC Report, para. 116), while even the *Turkel Report* (paras. 127, 157) tended to be circumspect on this point, alleging that two commandos were shot, but not directly ascribing these shootings to passengers.

135. Prosecutor’s Report, para. 41. See Finkelstein, *Gaza*, pp. 173–74, for critical commentary on this *Turkel Report* finding.

totally unnecessary and incredible violence” and “betrayed an unacceptable level of brutality.”¹³⁶

4.5.3. The manner of death of the passengers aboard the *Mavi Marmara* also belied the *Turkel Report*’s depiction, which the Prosecutor appropriated whole hog. The *HRC Report* noted that one passenger was shot in the face “at point blank range . . . while he was lying on the ground on his back”; a second passenger was shot “in the back and chest at close range while he was lying on the deck”; a third passenger was “attempting to photograph Israeli soldiers” and “received a single bullet to his forehead between the eyes”; a fourth and fifth passenger were shot (one of them in the head) as they sought shelter; a sixth passenger, who “had been . . . helping to bring injured passengers inside the ship to be treated,” was shot three times, including in “the back of the head.”¹³⁷ The *HRC Report* concluded that “the circumstances of the killing of at least six of the passengers were in a manner consistent with an extra-legal, arbitrary and summary execution.”¹³⁸ The *Turkel Report* itself recounted in grisly detail the findings of an “external examination” by Israeli doctors, according to which all of the dead passengers suffered multiple bullet wounds and five were shot in the neck or head; for example—quoting the Israeli examination—“Body no. 2” contained “bullet wounds . . . on the right side of the head, on the right side of the back of the neck, on the right cheek, underneath the chin, on the right side of the back, on the left thigh. A bullet was palpated on the left side of the chest,” while “Body no. 9” contained “bullet wounds in the area of the right temple/back of the neck, bullet wound in the left nipple, bullet wound in the area of the scalp-forehead on the left side, bullet wound on the face (nose), bullet wound on the left torso, bullet wound on the right side of the back, two bullet wounds in the left thigh, two bullet wounds as a result of the bullet passing through toes four and five on the left foot.”¹³⁹ Moreover, none other than the Prosecutor herself noted that there was

information indicating that one of the deceased was shot in the forehead while taking photos, and that another was filming with a small video camera when he was first hit with live fire. The autopsy report and some witness accounts further suggest that this latter individual was already lying on the

136. HRC Report, paras. 264–65 (see also paras. 167–71).

137. HRC Report, box inserted between paras. 128 and 129 (see also paras. 118, 120–21).

138. HRC Report, para. 170.

139. *Turkel Report*, para. 155.

ground wounded when the fatal shot was delivered. There is also information available suggesting that another man killed was engaged in helping to bring injured passengers inside the ship to be treated around the time when he was shot. Additionally, one witness claims that even after he and others waved white flags to indicate their surrender, IDF soldiers continued shooting and subsequently at least two men were shot and killed. Similarly, according to other witness statements, IDF soldiers kept shooting even after attempts had been made to surrender and/or individuals were already wounded.¹⁴⁰

Neither the *Turkel Report* nor the Prosecutor attempted, however, to square these grisly details, on the one hand, with the sublime depiction of commandos exercising maximum self-restraint and only making graduated, cautious resort to force in self-defense, on the other.

4.5.3.1. The Prosecutor stated that “the precise circumstances in which these killings were committed remains subject to some uncertainty as a result of the conflicting accounts of the events that took place during the boarding and takeover of the vessel and overall lack of sufficient information regarding each individual killing.”¹⁴¹ But surely this “uncertainty” could have been substantially reduced if the Turkel Commission had released the “thousands of video and audio clips containing hundreds of hours of audio and video recordings” in its possession.¹⁴² If passengers were allegedly killed at point-blank range, wouldn’t the uncertainty have vanished if the Turkel Commission released the “video recordings that were made by cameras installed in the helmets of the IDF combat personnel who operated on the *Mavi Marmara*”?¹⁴³ One wonders—or does *not* wonder—why Israeli authorities kept this footage under wraps. The *HRC Report* observed, “In light of the seizure of [passenger] cameras, CCTV footage and digital media storage devices, and of the suppression of that material with the [subsequent] disclosure only of a selected and minute quantity of it, the Mission was obliged to treat with extreme caution the versions released by the Israeli authorities where those versions did not coincide with the evidence of eyewitnesses who appeared before us.” If only the Prosecutor had treated the *Turkel Report* with comparable—indeed, with *any*—caution in light of this seizure and suppression of critical evidence. The *HRC Report* concluded that

140. Prosecutor’s Report, para. 59.

141. Prosecutor’s Report, para. 39.

142. Turkel Report, para. 10.

143. Ibid.

there was a “deliberate attempt by the Israeli authorities to suppress or destroy evidence and other information.”¹⁴⁴

4.5.3.2. The Prosecutor justified her decision not to initiate an investigation *inter alia* on the grounds that “identification to the requisite standard of the direct physical perpetrator(s) of the crimes of willful killing and willful causing of serious injury is also likely to be difficult, even with the benefit of investigation, given the particular and chaotic circumstances of the situation.”¹⁴⁵ She omitted mention that this difficulty was exacerbated by Israel’s suppression of critical audio-visual evidence.

4.5.4. The Prosecutor alleged that, even were it the case that commandos used lethal weapons, it still wouldn’t demonstrate lethal intent: “The *Turkel Report* states that the IDF used both ‘warning shots and deterring fire’ as part of ‘a graduated use of force.’ In particular, deterring fire—a tactic which is expressly *intended to seem* threatening—may readily be mistaken for an act with lethal intent. The Prosecution notes the explanation in the *Turkel Report* that, in contrast to ‘warning’ fire, ‘detering fire is aimed at a safe location but *close* to an individual in order to provide a more direct warning” (emphases in original).¹⁴⁶ But setting to one side the whiff of special pleading, even on its own terms the argument didn’t carry conviction. The Prosecutor stated that visibility was poor when the commandos launched the attack, and the scene aboard the vessel bordered on pandemonium. Indeed, the Prosecutor quoted the *Turkel Report* to the effect that, “faced by [the] unanticipated situation, the IDF soldiers made ‘difficult, split-second decisions regarding the use of force, under conditions of uncertainty, surprise, pressure, and in darkness, with the perception of a real danger to their lives and with only partial information available to them.’”¹⁴⁷ How, then, could the commandos have been firing warning shots of such precision as to be “at a safe location but *close* to an individual”? It would appear that the Prosecutor cherry-picked from Israel’s mutually contradictory alibis depending on which one, at each juncture, abetted its exoneration: in one place she stated that IDF fire was

144. HRC Report, paras. 20, 240–41.

145. Prosecutor’s Final Decision (II), para. 25.

146. Prosecutor’s Final Decision, para. 119 (for the original quotes, see *Turkel Report*, para. 228).

147. Prosecutor’s Report, para. 106 (for the original quote, see *Turkel Report*, para. 238).

cool and calculated while in a second place she stated that it was imprecise and improvised.

4.5.5. The Prosecutor acknowledged a “reasonable basis to believe” that some commandos committed “war crimes” such as “willful killing,” “willfully causing serious injury,” and “committing outrages upon personal dignity.” Furthermore, she acknowledged that the perpetration of some of these crimes was widespread, for example, possibly as many as “hundreds of instances of outrages upon personal dignity.”¹⁴⁸ The commandos, however, constituted not run-of-the-mill conscripts but, on the contrary, Israel’s most elite fighting unit.¹⁴⁹ How plausible was it that, even in the face of provocation, these highly disciplined fighters would spontaneously (“acting of their own volition”) have run amok on a recklessly criminal killing and maiming spree, *notwithstanding* the allegedly stringent rules of engagement that barred use of violent force except in extremis, *and notwithstanding* the allegedly “high level of awareness of all of the persons involved, at all levels, of the need to carry out the operation without any injuries to the participants of the flotilla,” *and notwithstanding* strict orders of the commanding officers who, in the course of minute preplanning and battle rehearsals, had allegedly paid “special attention to the importance attached to the value of human life”?¹⁵⁰ It also perplexes—even as the Prosecutor chose not to be perplexed—why, if senior Israeli officials were so invested in this Gandhi-like reverence for life, and if the Prosecutor was correct that the commandos committed numerous war crimes, none of these war criminals suffered any punishment afterward but, on the contrary, were showered with praise.¹⁵¹

4.5.6. Faced with an abundance of evidence that Israeli commandos initiated the violence, reduced to an object of ridicule as she fatuously denied this evidence, the Prosecutor ultimately felt compelled, if only as a technical point, and a grudging face-saving gesture, to “revise” her position. She conceded at the tail end of the case proceedings, in her second *Final Decision*, that “live rounds may have been fired on a more than isolated and exceptional basis” before the commandos boarded the *Mavi Marmara*.¹⁵² Still,

148. Prosecutor’s Final Decision, para. 129.

149. Finkelstein, *Gaza*, p. 155.

150. Turkel Report, paras. 119, 121, 121n474, 206, 242, 245.

151. Finkelstein, *Gaza*, pp. 142–43, 145.

152. Prosecutor’s Final Decision (II), paras. 55–89. This paragraph only assesses arguments by the Prosecutor not already parsed in preceding paragraphs.

the Prosecutor purported, as a last line of defense, that this pre-boarding live fire did not reveal a high-level “plan or policy” and therefore did not increase the otherwise limited gravity of the incident. Instead, she in effect posited that a rogue cabal of commandos conspired among themselves to unleash deadly force on the passengers. Except for tortuous, if not outright spurious, inference,¹⁵³ the Prosecutor presented no basis for this speculation, or even a motive for the supposed plot. Indeed, how plausible was it that elite troops would, on their own initiative and for no discernible purpose, flagrantly breach allegedly imperative high-level orders not to use violent force when commandeering the vessel? What is more, neither the Turkel Commission nor any of the other Israeli investigations of the incident uncovered this nefarious conspiracy. Surely, were it true, senior Israeli officials would have seized upon it to exonerate themselves. If it is further factored in that it was a high-level decision to attack in the dead of night while the ships were still in international waters, even as it could have been launched in broad daylight when the flotilla reached the blockade zone, and that it was a high-level decision to pass over more benign options to prevent the ships from reaching Gaza, then the reasonable conclusion is that the Prosecutor, forced to concede that the commandos initiated the violence but desperate to avoid a formal investigation, cooked up this fantastic scenario of a rogue conspiracy unbeknownst to senior Israeli officials so as to minimize the gravity of the crime.

4.5.6.1. Even as she conceded that the commandos might have initiated the violence, the Prosecutor still proceeded to assert the “fact” that “the persons alleged to have been willfully killed and willfully injured were victimized in circumstances that were at least proximate to the *passengers’ violent resistance to the boarding of the Mavi Marmara by the IDF*.”¹⁵⁴ But in light of her “revised” opinion, why didn’t the Prosecutor state: *passengers’ resistance to the violent boarding of the Mavi Marmara by the IDF*?

4.5.7. The Prosecutor was much less resistant to the possibility that passenger violence was premeditated. She quoted uncritically the contention of

153. Whereas she conceded that the systematic confiscation by the commandos of passenger electronic media might suggest a premeditated plan by them to commit violence, the Prosecutor went on to argue that this action did not implicate senior Israeli officials. It appears she “forgot” that it was senior Israeli officials who subsequently suppressed huge amounts of electronic media amassed by them.

154. Prosecutor’s Final Decision (II), para. 89 (emphasis added).

the *Turkel Report* that “a distinguishable group of passengers, organized and controlled by, or acting on behalf of IHH [a Turkish NGO] . . . appeared to have a different agenda and were the ones who assembled on the upper decks in preparation to confront the Israeli forces during the interception,” and that “the IHH activists’ resistance to the boarding of the *Mavi Marmara* was ‘planned and extremely violent.’”¹⁵⁵ She lent credence to or, at any rate, did not dismiss the scenario posited by the *Turkel Report* that “the passengers may have made advance preparations for violent resistance.”¹⁵⁶ But if, as the *Turkel Report* alleged, IHH activists “boarded the *Mavi Marmara* separately and without any security checks,”¹⁵⁷ and thus were in a position to smuggle onto it an arsenal of lethal weapons to execute their violent plot, then it perplexes why the most lethal implements they thought to bring along were sling-shots and glass marbles. It is further cause for wonder why these murderous plotters waited until just before the Israeli assault to fabricate makeshift, rudimentary weapons,¹⁵⁸ and why they would have “thrown into the sea” lethal weapons that they managed to seize from the commandos.¹⁵⁹ It is yet further cause for wonder how it came to pass that IHH jihadis hell-bent on “violent resistance” didn’t manage to kill any of the commandos, not even those in their custody, whereas IDF *satyagrahis* rehearsed in the moral imperative to execute the operation “without any injuries” ended up killing ten passengers by shooting each of them multiple times, five in the head and even at point-blank range.¹⁶⁰

5.0. THE PROSECUTOR’S CHARGE SHEET¹⁶¹

5.1. The Prosecutor provisionally sustained these charges:

155. Prosecutor’s Report, para. 45.

156. Prosecutor’s Report, para. 51.

157. *Turkel Report*, paras. 165, 196.

158. HRC Report, para. 101; Finkelstein, *Gaza*, pp. 169–71.

159. HRC Report, para. 115. It is indicative of the Prosecutor’s determination to demonize the passengers that she reckoned their use of a high-pressure water hose to repel the commando attack as having “potentially pose[d] a threat to life” (Prosecutor’s Report, para. 58n108). The HRC Report (para. 113n68), by contrast, observed that the International Maritime Organization recommended use of high-pressure water hoses “as a means to prevent an attempted boarding by pirates and armed robbers.”

160. Finkelstein, *Gaza*, pp. 174–76.

161. This section only considers aspects of the Prosecutor’s charge sheet not addressed elsewhere in this text.

- *Willful killings*;¹⁶²
- *Committing outrages upon personal dignity, in particular humiliating treatment*;¹⁶³
- *Willfully causing great suffering, or serious injury to body or health*.¹⁶⁴

5.2. The Prosecutor provisionally dismissed these charges:

- *Inhuman treatment*;¹⁶⁵
- *Extensive destruction and appropriation of property, not justified by military necessity and carried out unlawfully and wantonly*;¹⁶⁶
- *Intentionally directing attacks against civilians not taking direct part in hostilities*;¹⁶⁷
- *Intentionally launching an attack in the knowledge that such attack will cause incidental loss of life or injury to civilians*;¹⁶⁸
- *Intentionally directing attacks against personnel or objects involved in a humanitarian assistance mission*;¹⁶⁹
- *Crimes against humanity*.¹⁷⁰

5.3. The Prosecutor suspended judgment on the charge of *Intentionally directing attacks against civilian objects*.¹⁷¹

5.4. The predicate of the preponderance of the Prosecutor's legal analysis, even when she ultimately sustained the respective charge, was that Israel's blockade of Gaza was legal.¹⁷²

162. Prosecutor's Report, paras. 43–61.

163. Prosecutor's Report, paras. 62–72.

164. Prosecutor's Report, paras. 73–82.

165. Prosecutor's Report, paras. 62–72.

166. Prosecutor's Report, paras. 83–89.

167. Prosecutor's Report, paras. 97–99.

168. Prosecutor's Report, paras. 100–110.

169. Prosecutor's Report, paras. 111–25.

170. Prosecutor's Report, paras. 129–31.

171. Prosecutor's Report, paras. 90–96.

172. For excellent critical analysis on this point, see OPCV Observations, paras. 84–85, 91–98. The Prosecutor denied the OPCV's copiously documented accusation that her

- In her analysis of the charge, *Willful killings*, the Prosecutor pondered across nineteen paragraphs the questions whether, on the one hand, the passengers were protected persons or direct participants in hostilities (she determined that they qualified as protected persons) and whether, on the other hand, the commandos engaged in lawful self-defense or used disproportionate force (she provisionally determined it was disproportionate, but pointedly left open the possibility of self-defense¹⁷³). If, however, the broad legal consensus declared the blockade illegal, then these interrogations were wholly beside the point. In other words, if Israel's use of force against the flotilla to enforce an illegal blockade was illegal *ab initio*, then the passengers, be they protected persons or not, had every right to forcefully resist the Israeli assault, while the commandos couldn't claim a right to deploy even proportionate force in self-defense against passengers—such a right would obtain only if the commandos were repelling an “unlawful use of force.”¹⁷⁴
- In her analysis of the charge, *Extensive destruction and appropriation of property*, the Prosecutor stated, “The seizure of personal belongings such as cash, personal electronics, jewelry, and clothing clearly is not justified by any military necessity. Although the Israeli authorities may have had a legitimate interest in initially confiscating and examining magnetic media, even by their own account, these items were intended to be returned after

analysis was “almost exclusively based on the premise that the blockade is lawful” (Prosecutor's Consolidated Response, para. 86). In his defense of the Israeli assault, Judge Péter Kovács, dissenting from a Pre-Trial Chamber decision, went one step further as he speculated that, in light of the blockade's manifest legality, Israeli commandos didn't commit *any* crimes: “The facts of the situation cast some doubt as to whether the constitutive elements of the war crimes of willful killing . . . or willfully causing great suffering . . . are met. The injuries sustained by the individuals on board the *Mavi Marmara* were apparently incidental to lawful action taken in conjunction with protection of the blockade” (First PTC Decision, “Partly Dissenting Opinion of Judge Péter Kovács,” para. 31; see also paras. 39–42). The commandos riddled the bodies of several passengers with multiple bullets from head to neck to torso to toe. It is cause for wonder on what basis this “judge” conjectured that these killings passed legal muster.

173. Prosecutor's Report, para. 61 (“[W]hile bearing in mind that self-defense is a possible ground for excluding criminal responsibility, the information available at this stage provides a reasonable basis to believe that the killing of passengers . . . amounted to the war crime of willful killing”—emphases added).

174. Rome Statute, Article 31(1)(c); emphasis added. It is correct that, if passengers used excessive force while subduing them, the commandos could claim a right to self-defense, but the Prosecutor didn't allege this.

completion of investigations.”¹⁷⁵ But if the blockade was illegal, then the mitigating factor of “military necessity” wouldn’t come into play, while “Israeli authorities” couldn’t claim any “legitimate interest” in seizing passenger belongings. The IDF’s destruction or confiscation (however transient) of personal property was illegal from the outset. “Self-defense,” “military necessity,” “legitimate interest”—these exculpations cannot be reconciled with a pirate-like raid.

- In her analysis of the charge, *Intentionally directing attacks against civilian objects*, the Prosecutor premised all but two sentences of the seven paragraphs on the blockade’s legitimacy. It might be contended that, if the blockade was illegal, then Israel’s assault on the civilian vessels was ipso facto also illegal, whereas if the blockade was legal, assessing the charge required a more differentiated, lengthier analysis. The complication, however, was of the Prosecutor’s own making. The illegality of a medieval blockade targeting and devastating a civilian population could not be subject to serious dispute. The Prosecutor’s case was open and shut—the charge did not warrant nuanced parsing; the Prosecutor’s suspension of judgment on the charge was even less warranted and more disingenuous.

5.4.1. The Prosecutor’s mode of analysis, which entrenched a false depiction of the blockade as arguably legal, distorted the essence of the incident. *First*, it threw doubt on otherwise straightforward criminal acts by gratuitously complexifying them. *Second*, the net effect of her convoluted parsing was to render incomprehensible the reflexive global outrage provoked by the incident: if the situation was so messy and muddled, why did the international community react as one in shock and disgust? *Third*, it occluded the legally—and morally—most egregious aspect of the incident: to wit, *Israel’s use of armed force to maintain an illegal blockade that was causing a humanitarian catastrophe in Gaza*.

5.5. The Prosecutor’s disposition of certain charges plumbed the depths of cynicism:

- The Prosecutor dispatched in three terse paragraphs the grave charge, *Intentionally directing attacks against civilians not taking direct part in hostilities*. The nub of her dismissal read: “none of the information available

175. Prosecutor’s Report, para. 85.

suggests that the intended object of the attack was the civilian passengers on board these vessels. Rather, viewed in the context of the interception operation, such an attack . . . appears to have been solely directed at the vessels.”¹⁷⁶ Even were it granted for argument’s sake that the preponderance of evidence weighed in the Prosecutor’s favor, how could she conceivably state, in good faith (which is the barest minimum the Prosecutor owed to the rule of law), that “*none*”—!!!—of the evidence suggested the commandos intended to target the passengers? Whereas she avowed that she “accepted much of the witness information,” and “did not dispute . . . the stated perceptions of the various witnesses,”¹⁷⁷ by asserting that “none” of the available evidence substantiated the charge, the Prosecutor reduced to a deafening nullity the concurrent emphatic testimonies of virtually every passenger. The Comoros rightly, if euphemistically, lamented “this extraordinary and sadly incomprehensible passage” of hers.¹⁷⁸

- The Prosecutor managed the remarkable feat of getting nearly every element of law and fact wrong in her eleven-paragraph parsing of the grave charge, *Intentionally launching an attack in the knowledge that such attack will cause incidental loss of life or injury to civilians*. For example, she averred without evidence that Israel imposed the naval blockade

for the military objective of preventing the flow of arms to Hamas and entry of “terrorists” to Gaza by sea. . . . Israel would have viewed its enforcement as essential to ensure that the blockade remained effective and thus perceived a military advantage in intercepting the flotilla. Nevertheless, the manner of such enforcement by the IDF forces would have had to comply with the principle of proportionality.¹⁷⁹

In fact, if it imposed a naval blockade instead of executing a visit-and-search, that was because Israel presumed the flotillas carried no weapons. (Gaza is home to tens of thousands of Hamas supporters. Did the

176. Prosecutor’s Report, para. 99.

177. Prosecutor’s Response to Review Application, paras. 20, 26.

178. Comoros’ Application for Review, para. 106.

179. Prosecutor’s Report, para. 104; see also Prosecutor’s Response to Review Application, para. 48.

Prosecutor truly believe it needed to import “terrorists”?¹⁸⁰) It could not have “perceived a military advantage” if it knowingly targeted a civilian passenger ship devoid of military value, while the “principle of proportionality” was irrelevant as neutralizing the target afforded no military advantage. The Prosecutor concluded her analysis by discounting the aforesaid charge (*Intentionally launching . . .*) on the grounds that, whereas Israeli planners “may have anticipated that passengers of the flotilla would react with hostility and opposition . . . , and therefore would have expected some degree of civilian casualties or damage to result” from the assault, still, “the information is insufficient to conclude” that they anticipated so many civilian casualties as to be “*clearly excessive* in relation to the anticipated military advantage of enforcement of the blockade” (emphasis in original).¹⁸¹ But even if Israeli planners didn’t anticipate the eventual magnitude of the bloodletting, the *raison d’être* of the assault was not to achieve a “military advantage” but, on the contrary, to terrorize the civilian passengers so as to deter future humanitarian flotillas. Put otherwise, *any* expected civilian losses must be reckoned “*clearly excessive*” in relation to a premeditated terrorist assault devoid of military value. Moreover, lest it be forgotten, if the blockade was illegal, then *any* anticipated use of force was also illegal.¹⁸² In shocking ignorance or willful misrepresentation of the law, the Prosecutor purported that her “conclusion concerning the military advantage anticipated by the IDF would remain unchanged whether the IDF’s view of the legality of the blockade was objectively correct or incorrect,” as “proportionality is a requirement for any use of force regulated by international humanitarian law.”¹⁸³ Could the chief prosecutor of the International Criminal Court have been so woefully obtuse as to believe that, were the blockade unlawful, Israel had title to use force of even limited (“proportional”) degree to enforce it?

180. It might be argued that Hamas sought to smuggle in by sea high-grade “terrorists” but Israel hasn’t alleged, let alone documented, such an attempt.

181. Prosecutor’s Report, para. 109; see also Prosecutor’s Response to Review Application, para. 49.

182. OPCV Observations, para. 97 (fourth bullet point).

183. Prosecutor’s Consolidated Response, paras. 86 (eighth bullet point), 87. See also Prosecutor’s Response to Review Application, paras. 47–48.

5.6. The Prosecutor concluded that the charges she provisionally sustained did not reach the threshold of “sufficient gravity” as to warrant a full-fledged ICC investigation. The gravamen of the case mounted by her critics was that the Prosecutor dismissed charges that should have been sustained, and minimized charges that she did acknowledge.¹⁸⁴ Even as this indictment of her performance persuaded, the crux of the Prosecutor’s dereliction of duty, it is submitted, lay elsewhere. The Prosecutor extirpated the Flotilla Incident from its critical context. She refused to pronounce the blockade illegal, she effectively ignored the humanitarian catastrophe induced by the blockade, she even gainsaid that the flotilla was on a humanitarian mission. Had she properly rooted the assault in its critical context, the Prosecutor would have been hard-pressed to curtly dismiss the charge of *Crimes against humanity*. (She dispatched this charge in all of three paragraphs.¹⁸⁵) Indeed, if the Flotilla Incident were properly grounded, the Prosecutor would have been hard-pressed not to conclude that it was integral to, and a blazing manifestation of, a colossal ongoing crime against humanity.

184. See in particular OPCV Observations, paras. 52–68.

185. For scathing criticism on this point, see OPCV Observations, paras. 111–17.

Part C: Sufficient Gravity

6.0. CASABLANCA WITHOUT THE GERMAN OCCUPATION

6.1. The humanitarian catastrophe in Gaza induced by the Israeli blockade formed the critical context of the Flotilla Incident. Major human rights and humanitarian organizations sounded the alarm about the dire situation unfolding there and pointed to the Israeli siege as its precipitant. “The closure,” declared the International Committee of the Red Cross, “is having a devastating impact on the 1.5 million people living in Gaza.”¹⁸⁶ On the morrow of the deadly Israeli assault, the UN Security Council “stresse[d] that the situation in Gaza is not sustainable,” and “reiterate[d] its grave concern at the humanitarian situation in Gaza and stresse[d] the need for sustained and regular flow of goods and people to Gaza as well as unimpeded provision and distribution of humanitarian assistance throughout Gaza.”

6.2. Yet, hard as it might be to believe, bewildering as it might sound, shocking as it might appear, the Prosecutor effectively passed over the most salient and egregious contextual fact of the situation she was entrusted to examine. It was as if the film *Casablanca* without the German occupation. In the absence of the humanitarian catastrophe, the flotilla’s heroic attempt to break the Israeli siege made as little sense as would, in the absence of the German troops, Laszlo’s climactic exhortation to the orchestra, “Play the Marseillaise!”

6.2.1. The Executive Summary of the *Prosecutor’s Report* made no mention of the humanitarian catastrophe in Gaza apart from a bland allusion, “the situation with regard to the civilian population is a matter of international concern.”¹⁸⁷ In the body of the *Report*, the Prosecutor fleetingly gestured to it a handful of times:

186. International Committee of the Red Cross, “Gaza Closure: Not another year!” (14 June 2010). See also Finkelstein, *Gaza*, pp. 137–38. For the catastrophic situation in Gaza “as a result of the Israeli blockade” just prior to the IDF attack, see, e.g., UN Office for the Coordination of Humanitarian Affairs, *The Humanitarian Monitor* (April 2010); UN Office for the Coordination of Humanitarian Affairs and Food and Agriculture Organization of the UN, *Farming Without Land, Fishing Without Water: Gaza agriculture sector struggles to survive* (May 2010).

187. Prosecutor’s Report, para. 26.

- a sentence fragment in which she quoted the “stated intentions” of the flotilla organizers to “raise international awareness about the prison-like closure of the Gaza Strip”;
- a passing inference that “as participants in the Gaza Freedom Flotilla, their actions appeared to be designed to address and generate publicity about the serious humanitarian situation in Gaza”;
- a disclaimer that, first, conceded that “the flotilla campaign in a broader sense was related to the humanitarian crisis faced by the civilian population of Gaza,” but then went on to assert the *irrelevance* of this nexus, as the Prosecutor’s mandate “was limited to evaluating the gravity of the alleged crimes committed by Israeli forces on board the vessels.”¹⁸⁸

6.2.2. *The hundreds of pages subsequently submitted by the Prosecutor did not contain a single additional reference to the humanitarian catastrophe in Gaza.*¹⁸⁹

6.2.3. The contrast could not be more telling between, on the one hand, the Prosecutor’s treatment (or lack thereof) and, on the other hand, the *HRC Report*, which devoted fully eight dense paragraphs, replete with authoritative heartrending data, to the humanitarian crisis in Gaza.¹⁹⁰ Indeed, even the *Turkel Report* dedicated nearly *fifty pages* to the humanitarian situation in Gaza, albeit only to prove, against both the evidence and the consensus of international opinion, that a crisis did not exist.

6.3. The Prosecutor criticized the submissions by the Comoros on the grounds that they “tend, inappropriately, to confuse the situation aboard [the Flotilla] and the situation in Gaza. Nothing in the legal or factual analysis conducted by the Prosecution supports such an approach, and this pervasive misapprehension undermines many of the Comoros’s arguments.”¹⁹¹ But if the Comoros suffered from confusion and pervasive misapprehension, so, it appears, did respected and representative constituents of the international

188. Prosecutor’s Report, paras. 12, 50, 147. Although the Free Gaza movement did make the first bulleted statement (see “Q&A: The Gaza Freedom Flotilla,” *Guardian*, 31 May 2010), the Prosecutor erroneously referenced it to the HRC Report.

189. The one immaterial exception was a footnote reference in her Final Decision (para. 133n240).

190. HRC Report, paras. 37–44.

191. Prosecutor’s Response to Review Application, para. 11.

community: human rights and humanitarian organizations, senior UN officials, the Security Council—they all drew a straight arrow line linking the Flotilla Incident (which itself traced directly back to the blockade) and the humanitarian crisis in Gaza. If the “analysis” conducted by the Prosecutor did not support an “approach” that positioned the Flotilla Incident and the humanitarian crisis as cause and effect, it was perhaps revelatory of the fact that it was *her* analysis and approach that suffered from pervasive confusion and misapprehension.

6.4. It was only by severing the iron nexus between the Israeli assault and the Israeli-induced catastrophe that the Prosecutor could pretend that the case under examination lacked sufficient gravity. It was as if the Prosecutor, omitting mention not only of apartheid but even of the pass laws, had stripped down the Sharpeville Incident to Black rioters shot dead by South African police, as they—only God knows why—burnt their passes. If this analogy appears a stretch, consider that the Prosecutor not only whited out the humanitarian crisis in Gaza but also dared deny that the passengers, however much they might protest otherwise, had set sail on a humanitarian mission. If they weren’t on a humanitarian mission—indeed, if there wasn’t even a humanitarian crisis in Gaza—what was one to conclude except that these truculent passengers, beyond assaulting benign commandos alighting on the ship’s deck, must have been plumb crazy to be carrying ten thousand tons of humanitarian aid to Gaza?

7.0. UN-HUMANITARIAN HUMANITARIAN MISSION

7.1. The Prosecutor described the flotilla’s mission as “to address and generate publicity about the serious humanitarian situation in Gaza and to protest the blockade, which they considered inhumane and argued violated the human rights of Palestinian civilians . . . to assist the plight of the civilian population of Gaza and raise attention to their cause.”¹⁹²

7.2. Nonetheless, based on her ad hoc interpretation of relevant international law,¹⁹³ the Prosecutor ultimately found that the flotilla “does not appear to reasonably fall within the humanitarian assistance paradigm . . . due to its lack of neutrality and impartiality as evidenced in the flotilla’s explicit and primary political objectives (as opposed to a purpose limited to delivery

192. Prosecutor’s Report, para. 50.

193. Prosecutor’s Report, para. 111.

of humanitarian aid), failure to obtain Israeli consent, and refusal to cooperate with the Israeli authorities in their proposals for alternative methods of distributing the relief supplies.”¹⁹⁴

7.2.1. The Prosecutor was apparently borrowing from the *Turkel Report*, which asserted that “the attempt to breach the blockade could not have had any other purpose than a political one” and that “a political purpose in itself cannot give a shipping vessel the right to breach the blockade.”¹⁹⁵

7.3. To demonstrate the flotilla’s politicized objectives, the Prosecutor quoted the “Contract” signed by participants, which stipulated that the flotilla’s purpose was to

create an awareness among world public and international organizations on the inhumane and unjust embargo on Palestine and to contribute to end this embargo which clearly violates human rights and delivering humanitarian relief to the Palestinians.

Given that the embargo on Palestine is inhumane and illegal . . . , I will not obey by [*sic*] the decisions, warnings or demands of the governments of countries in the region regarding this ship, in the direction of continuation of the embargo, I will, if necessary, join in civil protests and I accept all the legal and punitive consequences of this.¹⁹⁶

7.3.1. In themselves, these characterizations of the blockade—*inhumane and unjust, violates human rights*—couldn’t by and large be said to signal political partisanship; on the contrary, they constituted unassailable statements of fact. Or did the Prosecutor believe that the blockade was humane and just, and didn’t violate human rights?

7.3.2. The question then becomes, If the passengers were committed to civilly protesting and shining a bright light on these inhumane and unjust violations of human rights, did their intentions vitiate the flotilla’s humanitarian mission? But that would be as if to say, *Were an avowed feminist witnessing a rape to scream Help!, and then, in the face of complicit or*

194. Prosecutor’s Report, para. 125 (for her full legal reasoning, see paras. 111–14). The Prosecutor also described the flotilla’s mission as a hybrid having “humanitarian and politically focused objectives” (Prosecutor’s Report, para. 51). This was the position taken by the HRC Report (paras. 79–80, 277).

195. Turkel Report, para. 110.

196. Prosecutor’s Report, para. 117.

indifferent onlookers, endeavor herself to pry the victim loose from the attacker, her “mission” wouldn’t qualify as “humanitarian” as it was tainted by a feminist “political” agenda. Isn’t such a distinction an immaterial and impertinent distraction—and, insofar as it willfully diminished and denigrated the moral grace of those who would risk their own lives and limbs to defend the indefeasible rights of the downtrodden, wasn’t this verbal nitpicking downright disgusting?¹⁹⁷

7.4. To extenuate the Israeli assault, the *Turkel Report* stated that even if, *arguendo*, the blockade was illegal, “it can be said that the illegality was repaired by Israel’s offer to transfer the humanitarian supplies to the Gaza Strip.”¹⁹⁸ Stealing yet another page from the *Turkel Report*, the Prosecutor alleged that Israel endeavored “to facilitate the delivery of the humanitarian supplies from the flotilla to Gaza as to make unnecessary the need to challenge the blockade,” but “such offers . . . were reportedly not accepted by the flotilla organizers.”¹⁹⁹ What the Prosecutor (regurgitating the *Turkel Report*) presented was a partial truth that, even were it fully accurate, would nonetheless be a whole irrelevance.

7.4.1. The Prosecutor stated that, had the flotilla offloaded its supplies at an Israeli port, it was “arrange[d] to have such supplies delivered by land.”²⁰⁰ But the contents of the flotilla inventoried in the *Prosecutor’s Report*²⁰¹ included items such as construction material and medical equipment that Israel barred from entering Gaza. The fact was, Israel had forewarned the flotilla that it would *not* deliver the banned goods. Israel’s UN representative described to the Security Council right after the attack the conditional “offer” it had made: “to transfer the aid to Gaza through the port of Ashdod, via the existing overland crossings, *in accordance with established procedures.*” “Israeli authorities stated,” a senior UN official recalled at the Council meeting, “that should the convoy proceed contrary to [the] warnings, they would divert the convoy to an Israeli port, inspect the cargo, *facilitate the entry of only those goods that are allowed into Gaza, in accor-*

197. To undercut their humanitarian bona fides, the Prosecutor also pointed to the fact that the passengers’ “professional background” indicated a deficit of “experience in humanitarian relief work” (Prosecutor’s Report, para. 115). It would appear the Prosecutor was unable to process the notion of a humanitarian emergency volunteer.

198. *Turkel Report*, para. 110.

199. *Prosecutor’s Report*, para. 119.

200. *Prosecutor’s Report*, para. 91n164.

201. *Prosecutor’s Report*, para. 116.

dance with Israel's blockade, and deport those on board" (emphasis added).²⁰² Indeed, even as she avowed that Israel was fully receptive to delivering by land "such supplies," the Prosecutor knew it to be a half-truth, for she conceded in the same *Report*, albeit tucked away in a footnote, that "Israel announced that it would deliver the humanitarian supplies confiscated from the vessels, *except for certain banned items such as cement*" (emphasis added).²⁰³ Had the flotilla acquiesced in Israeli conditions, it would have effectively conceded the legitimacy of the blockade. If, as the Prosecutor alleged, the full cargo was "ultimately later distributed in Gaza,"²⁰⁴ that would have resulted not from a promise kept, but, on the contrary, from international outrage after the murderous Israeli assault (which also caused Israel to marginally relax the blockade²⁰⁵).

7.4.2. But even if Israel did commit itself to delivering the full inventory, the flotilla was still under no obligation to "obtain Israeli consent." If the blockade was illegal, then Israel couldn't claim a right to set down conditions, however seemingly innocuous, for the deliverance of goods to Gaza. "Faced with an unlawful blockade that was bringing suffering to hundreds of thousands of innocent civilians where the international community chose to do very little," the Comoros compellingly observed, "why should concerned citizens seek the consent of the offending party before trying their best to alleviate suffering?"²⁰⁶ If the Prosecutor "missed" this elementary point, it was because her reasoning here—as throughout her submissions—disingenuously presupposed the blockade's legality.²⁰⁷

7.4.3. To shift culpability from Israeli officials to flotilla organizers, the Prosecutor alleged that organizers had rejected Israel's offer to deliver the humanitarian supplies to Gaza. But she willfully ignored the reverse scenario: if, according to the Prosecutor, Israel had agreed to deliver all the cargo, and if it never even pretended to believe that the flotilla carried weapons, then why didn't it just let the flotilla pass? The answer is, or ought to be, obvious:

202. United Nations Security Council, S/PV.6325 (31 May 2010).

203. Prosecutor's Report, para. 141n241. See also Turkel Report, para. 198 ("the flotilla was carrying cement, a commodity that Israel has identified as being used by the Hamas for military purposes and the transfer of which to the Gaza Strip was restricted by Israel").

204. Prosecutor's Report, para. 141. See also Prosecutor's Response to Review Application, para. 95, Prosecutor's Final Decision, para. 132.

205. Turkel Report, para. 97.

206. Comoros' Application for Review, para. 21.

207. OPCV Observations, para. 97 (sixth bullet point).

Israel dreaded that such an eventuality would undermine not its military but its *political* posture (more on which presently).²⁰⁸

7.5. The Prosecutor quoted in support of her determination the *UN Panel Report*, which “seriously questioned ‘the true nature and objectives of the flotilla organizers,’” “indicated that ‘one of the primary objectives . . . was to generate publicity about the situation in Gaza by attempting to breach Israel’s naval blockade,’” and “concluded that ‘the primary objective of the flotilla organizers was to generate publicity by attempting to breach the blockade.”²⁰⁹ Pointing to these very same passages in the *UN Panel Report*, this writer elsewhere observed: “It must be a first, and surely marks a nadir, in the annals of the United Nations that a report bearing its imprimatur vilified the victims of a murderous assault because they sought to cast light on an ongoing crime against humanity.”²¹⁰ The Prosecutor’s clinging embrace of the UN Panel’s diseased conclusion would also appear to mark a nadir in the (already far from elevated) annals of the ICC.

7.6. The Comoros rebuked the Prosecutor for her denial that the flotilla was “seeking to deliver humanitarian aid.”²¹¹ The Prosecutor rejoined by heaping self-praise on her “more nuanced analysis,” and underscored that her “premise” denying the flotilla’s humanitarian mission was “central to the Prosecution’s analysis.”²¹² If that “premise” was “central to the Prosecution’s analysis,” that only underscored its bankruptcy. “There was no reasonable basis to determine,” the Prosecutor solemnly intoned, “that the flotilla constituted a humanitarian mission.”²¹³ Dare it be said that her “more nuanced analysis” provided ample basis to determine that the Prosecutor’s faculty of judgment had been debased to the point of depravity?

8.0. A CONTROVERSY THAT WASN’T

8.1. The Prosecutor advanced a trio of propositions regarding the Israeli blockade: its purpose was military; its legality was unresolved; its legal status

208. HRC Report, para. 57.

209. Prosecutor’s Report, para. 123 (the internal quotes come from the UN Panel Report).

210. Finkelstein, *Gaza*, p. 197.

211. Comoros’ Application for Review, para. 130.

212. Prosecutor’s Response to Review Application, para. 95.

213. Prosecutor’s Response to Review Application, para. 72. See also Prosecutor’s Report, para. 146 (“The flotilla does not appear to constitute a humanitarian mission”).

didn't ultimately matter. None of these propositions withstands scrutiny.

8.2. The *HRC Report* found that “one of the principal motives behind the imposition of the blockade was a desire to punish the people of the Gaza Strip for having elected Hamas.”²¹⁴ The Prosecutor categorically asserted, however, that Israel imposed the naval blockade “for the military objective of preventing the flow of arms to Hamas and entry of ‘terrorists’ to Gaza by sea.”²¹⁵ If she was certain of this, that’s because “Israel stated that the primary purpose of the [naval] blockade was military-security.”²¹⁶ Although she didn’t cite a source, the Prosecutor plainly lifted her wording and conclusion from the *Turkel Report*.²¹⁷ It deserves passing notice that, even as she insisted “there is no basis to question the impartiality” of the *Turkel Report*, the Prosecutor wrote “Israel stated” when she was clearly referencing the Turkel Commission’s “impartial” findings. That is, she tacitly conceded that the Turkel Commission, far from being independent, effectively represented the Israeli government.

8.3. A close reading of the *Turkel Report* demonstrated, however, that, on the contrary, if Israel imposed a naval blockade, that’s because the succession of humanitarian vessels destined for Gaza did *not* pose a military-security threat.²¹⁸

8.3.1. Whereas she proclaimed that the naval blockade’s goal was strictly “military,” had the Prosecutor actually perused the *Turkel Report* in its fullness, and not just calculatingly plucked from it self-serving data, she would have noticed that senior Israeli officials quoted in the *Report* themselves conceded

214. HRC Report, para. 54.

215. Prosecutor’s Report, para. 104. The passage continued, “Irrespective of its lawfulness, Israel would have viewed its enforcement as essential to ensure that the blockade remained effective and thus perceived a military advantage in intercepting the flotilla” (see also Prosecutor’s Response to Review Application, para. 48, where she defended this point). But the question of the blockade’s lawfulness was hardly immaterial: if the blockade was illegal, Israel could not claim a “military advantage in intercepting the flotilla”—the use of any force would be impermissible. In any event, the Prosecutor’s premise that Israel “perceived” a “military” advantage was groundless.

216. Prosecutor’s Report, para. 11.

217. Turkel Report, Preface (“the naval blockade—whose purpose was to prevent the passage of weapons to the Gaza Strip”), para. 48 (“the Government of Israel imposed the naval blockade . . . for military-security reasons, which focused on preventing weapons, ammunition, military supplies, terrorists and money from entering the Gaza Strip”), para. 112 (“The purpose of the naval blockade imposed by Israel on the Gaza Strip was primarily a military-security one”).

218. For extensive evidence culled from the Turkel Report, see Finkelstein, *Gaza*, pp. 187–92.

a *political* dimension to the naval blockade. For example, Tzipi Livni, who was foreign minister when the blockade was imposed, stated that it aimed, inter alia, at “delegitimizing Hamas on the one hand and strengthening the status of the Palestinian Authority vis-à-vis the Gaza Strip on the other”; that “the attempts to transfer goods to the Gaza Strip by sea . . . gives legitimacy to the Hamas regime”; that “it would be a mistake to examine the circumstances of imposing the naval blockade from a narrow security perspective only.” Major-General (res.) Amos Gilad, head of the Political, Military, and Policy Affairs Bureau at the Ministry of Defense, stated that “the significance of opening a maritime route to the Gaza Strip was that the Hamas’ status would be strengthened significantly from economic and political viewpoints . . . tantamount of a ‘very significant achievement for Hamas.’”²¹⁹

8.3.2. *In fact, the Turkel Report never once in all of its three hundred pages and one thousand footnotes pretended that the Mavi Marmara carried—or that Israel, when planning the assault, believed it was carrying—contraband.* Moreover, the *Turkel Report* located the *Mavi Marmara* within the trajectory of prior flotillas bound for Gaza, all of which Israel tacitly conceded (it didn’t pretend otherwise) to be strictly humanitarian. Thus, the *Turkel Report* stated that “throughout the planning process,” the “assumption” was that “the participants in the flotilla were all peaceful civilians *as was the case with previous flotillas on the same route*” (emphasis added).²²⁰

8.3.3. If they didn’t contain contraband, Israel couldn’t legally turn back these vessels after a visit-and-search, whereas “The significance of imposing a naval blockade according to the rules of international law is that it allows a party to an armed conflict to prevent entry into the prohibited area of any vessel that attempts to breach the blockade (*even without it being established that the vessel is assisting terrorist activity*)” (emphasis added). The military advocate-general testified before, and presented documentation to, the Turkel Commission that the blockade was imposed to stem “the increase in the phenomenon of flotillas. . . . A naval blockade was regarded as the best operational method of dealing with the phenomenon because other solutions, such as the use of the right of visit-and-search, were proved to be problematic”; “[the blockade] would provide the navy with the proper tools and authori-

219. Turkel Report, para. 50 (see also paras. 63, 198).

220. Turkel Report, para. 243.

ties to deal with the phenomenon of civilian vessels wishing to reach the Gaza Strip.”²²¹

8.3.4. The challenge confronting Israel when it imposed the naval blockade was not, as the Prosecutor purported, the “flow of arms to Hamas and entry of ‘terrorists’”²²²—privy beforehand to the fact that they weren’t stashing weapons, the IDF apparently didn’t even bother to search the flotillas²²³—but that, otherwise, it lacked legal authority to bar humanitarian cargo or a humanitarian mission from reaching Gaza. What Israel dreaded was not a “military-security” threat, but the *political* defeat it would suffer if a maritime route were carved out, allowing humanitarian vessels to reach Gaza, and that in the course of tracing such a route, these flotillas would spotlight Israel’s illegal and inhuman blockade.

8.4. The Prosecutor alleged that “The legality of the blockade has been the subject of controversy”²²⁴ and that, consequently, she “refrained” from “determining” its legality.²²⁵ In a perverse apologia, the Prosecutor postulated, however, that “If the blockade is lawful, then Israel would have been entitled (*and in a sense obligated*) to take certain actions against vessels, such as the flotilla, in order to enforce it” (emphasis added).²²⁶ In the footnote, the Prosecutor elaborated that “For Israel to maintain the blockade it had to be effective, and thus enforced . . . effectiveness is an essential element of a lawful blockade.”²²⁷ To take the Prosecutor’s last point first, if the blockade was legal but Israel stopped enforcing it, then it would simply cease to be a blockade—hardly cause for alarm, unless the Prosecutor was of the opinion that allowing free passage of goods into an area suffering from a humanitarian catastrophe constituted a criminal act. Further, it perplexes to whom or what Israel was obligated. If the blockade fell into desuetude as Israel ceased to enforce it, did the Prosecutor imagine that the State of Palestine or neutral States—which, to the last,

221. Turkel Report, paras. 25n77, 26, 49.

222. Prosecutor’s Report, para. 104.

223. Turkel Report, paras. 25, 53.

224. Prosecutor’s Report, para. 30.

225. Prosecutor’s Response to Review Application, para. 3.

226. Prosecutor’s Report, para. 32.

227. Prosecutor’s Report, para. 32n46. The Turkel Report made numerous references to the requirement that “the blockade must be ‘effective’” (paras. 36, 57, 61, 100, 177).

condemned the blockade—would refer the “incident” to the ICC?²²⁸ Setting aside this prodigious idiocy, as well as the galling fact that, even as she pledged to suspend judgment, the blockade’s legality overwhelmingly predicated the Prosecutor’s analysis, the question still remains whether the blockade’s legal status was, as the Prosecutor alleged, “controversial.”

8.4.1. The consensus among respected humanitarian, human rights, and UN organizations spanning more than a decade has been that the Israeli blockade of Gaza is illegal (see Table C).

TABLE C The Israeli Blockade of Gaza Is Unlawful: A Sample of Authoritative Opinion	
UN Secretary-General	<i>The closure of Gaza suffocates its people, stifles its economy and impedes reconstruction efforts. It is a collective punishment for which there must be accountability.^a</i>
Joint Statement of Fifty Major UN Agencies and International Charities (including WHO, UNICEF, UNESCO, CARE, Save the Children, Office of the High Commissioner for Human Rights)	<i>For over five years in Gaza, more than 1.6 million people have been under blockade in violation of international law.^b</i>
International Committee of the Red Cross	<i>The closure . . . constitutes a collective punishment imposed in clear violation of Israel’s obligations under international humanitarian law.^c</i>

(continued)

228. In his defense of the Israeli assault, Judge Péter Kovács, dissenting from a Pre-Trial Chamber decision, went one step further as he purported that Israel not only “had a right to capture the vessel, in protection of their blockade,” but also that “irrespective of this right, it was a logical reaction. Faced with a potential breach of the blockade, the IDF acted out of necessity” (First PTC Decision, “Partly Dissenting Opinion of Judge Péter Kovács,” para. 32). Even if the Israeli assault was “logical,” and even if its “necessity” flowed inexorably from the logic of a blockade, still, that would scarcely extenuate its criminality. It would be a strange defense were a perpetrator to testify that, once having resolved to commit murder, killing the person became a “logical” “necessity.” Wouldn’t Justice be better served if Kovács were removed to the ICC department adjudicating traffic tickets?

TABLE C (continued)

Amnesty International	<i>As a form of collective punishment, Israel's continuing blockade of Gaza is a flagrant violation of international law.^d</i>
Human Rights Watch	<i>Israel's blockade of the Gaza Strip, an occupied territory under the Fourth Geneva Convention, constitutes collective punishment in violation of the laws of war.^e</i>
Joint Statement of Major International Human Rights Organizations (including Israeli human rights organizations Gisha, Lawyers for Palestinian Human Rights-Israel, Physicians for Human Rights-Israel)	<i>Israel's . . . unlawful closure and blockade of the Gaza Strip . . . amounts to a form of collective punishment prohibited by international law.^f</i>
Joint Report of Major International Humanitarian Organizations (including Diakonia, Oxfam International, Mercy Corps)	<i>The policy of blockade . . . is a collective punishment, which is unacceptable and violates international law.^g</i>
Joint Statement of Leading International Law Experts and Others	<i>Israel's illegal policy of absolute closure imposed on the Gaza Strip has relentlessly continued.^h</i>

^a UN Secretary-General, "Remarks at Press Encounter" (28 June 2016).

^b UN News, "UN Agencies Join in Shared Call for End to Israeli Blockade of Gaza" (14 June 2012).

^c International Committee of the Red Cross, "Gaza Closure: Not another year!" (14 June 2010).

^d Amnesty International, "Suffocating Gaza: The Israeli blockade's effects on civilians" (1 June 2010).

^e Human Rights Watch, "Letter to Olmert: Stop the blockade of Gaza" (20 November 2008).

^f Adalah (Legal Center for Arab Minority Rights in Israel) et al., "Joint Letter on Israel's Unlawful Closure and Blockade of the Gaza Strip Under International Law" (13 July 2018).

^g Oxfam et al., "Failing Gaza: No rebuilding, no recovery, no more excuses" (December 2009).

^h John Dugard et al., "Legal Experts and Human Rights Defenders Demand International Community End Israel's Collective Punishment of Gaza" (28 July 2014).

8.4.2. The Prosecutor did not dispute this formidable enduring international consensus; she just pretended it didn't exist.²²⁹ In lieu of it, the Prosecutor stated that a pair of reports on the Flotilla Incident (*HRC Report, Turkish Report*) declared the blockade illegal, while another pair of reports (*Turkel Report,*

229. Comoros' Application for Review, para. 130.

UN Panel Report) declared it legal.²³⁰ If the reports, pound-for-pound, balanced each other out, then, she inferred, the legality of the blockade must be “the subject of controversy.”²³¹ But, as the Office of the Public Counsel for Victims cogently observed, “It is part of the Prosecutor’s role to consider *all* arguments that are relevant to the crimes alleged and to assess them against the applicable standard of proof. . . . [N]owhere in the Decision is there a discussion of the different views regarding the lawfulness of the blockade” (emphasis in original).²³² The Prosecutor evidently confused weighing word counts with weighing arguments.

8.4.2.1. The *Turkel Report*’s defense of the blockade comprised an alloy of half-truths, outright falsehoods, and flagrant contradictions.²³³ It bizarrely alleged that Israel’s blockade did not breach humanitarian law because Gazans weren’t literally starving to death; that, even if the threshold of illegality stood not at causing starvation but at causing hunger, still, Israel didn’t deliberately cause hunger—even if hunger was the inevitable and predictable consequence of its blockade; that Israel did not prevent entry of essential construction materials and that it did prevent entry of essential construction materials; that Israel did not prevent entry of medical supplies vital to the survival of Gaza’s population—even if it demonstrably did prevent entry of vital medical supplies. Further, the *Turkel Report* was emphatic that the blockade did not intentionally target civilians or inflict collective punishment. But if its objective was, as the *Report* alleged, to degrade Hamas’s military capacity, not harm Gaza’s civilian population, then surely it was an enigma why Israel, by its own admission, severely restricted entry of all goods except those “considered essential for the basic subsistence of the population,” and why it allowed passage of only a “humanitarian minimum” of civilian goods. It was also cause for puzzlement why Israeli officials kept repeating privately that they intended “to keep the Gazan economy on the brink of collapse without quite pushing it over the edge.” In other words, if the civilian population was not being targeted, why was the blockade calibrated so as to keep Gaza’s civilian population teetering on the precipice? In order, allegedly, to thwart Hamas’s offensive capabilities, Israel interdicted a seemingly endless list of items including sage, coriander, ginger, jam, halva, vinegar, nutmeg, chocolate, fruit preserves, nuts, biscuits, potato chips, musical instruments, notebooks, writing implements,

230. Prosecutor’s Report, para. 30n42.

231. Prosecutor’s Response to Review Application, para. 98.

232. OPCV Observations, paras. 87–88. See also Comoros’ Application for Review, para. 77.

233. Finkelstein, *Gaza*, pp. 32–33n57, 158–62.

toys, chicks, and goats. “The purpose of the economic warfare in the Gaza Strip,” the *Turkel Report* asserted, was “to undermine the Hamas’s ability to attack Israel and its citizens. The non-security related restrictions on the passage of goods—such as the restrictions upon certain food products—are a part of this strategy.”²³⁴ Who could doubt the offensive potential of chocolate, chips, and chicks? Upon publication of a draft of the *Turkel Report*, Israel’s Legal Center for Freedom of Movement (Gisha) observed:

No commission of inquiry can authorize the collective punishment of a civilian population by restricting its movement and access, as Israel did in its closure of Gaza. . . . [A] primary goal of the restrictions, as declared by Israel, was to paralyze the economy in Gaza and prevent its residents from leading normal lives. . . . Israel prevented the passage of civilian goods such as spices, raw materials and consumer items and even set limitations for the amount of food it would permit residents of Gaza to purchase. We disagree with the [Turkel] Commission’s conclusion that the restrictions were justified for military or “strategic” reasons. It is unclear how preventing the transfer into Gaza of industrial margarine, paper, and coriander contributed to a legitimate military goal.²³⁵

The *Turkel Report* audaciously stated that “There is nothing in the evidence, including that found in the numerous humanitarian and human rights reports, that suggests that Israel is *intentionally* placing restrictions on goods for the sole or primary purpose of denying them to the population of Gaza,” and “There is nothing . . . that would suggest” that the blockade is “directed at the civilian population” (emphasis in original).²³⁶ Can it be doubted that these are shameless, bald-faced lies? Still, the Prosecutor defended the “integrity of the *Turkel Report*” and leaned on its wretched, outrageous prevarications as her primary reference.

8.4.2.2. That just left the *UN Panel Report* as proof that the blockade’s lawfulness was “subject to controversy.” But, had she fulfilled her mandate to parse the legal arguments, the Prosecutor would have discovered that the *UN Panel Report* was a most fragile reed on which to rest her case. The panel was appointed by UN Secretary-General Ban Ki-moon in an “unprecedented-

234. *Turkel Report*, para. 91.

235. Gisha (Legal Center for Freedom of Movement), “No Commission of Inquiry Can Authorize Collective Punishment” (23 January 2011).

236. *Turkel Report*, paras. 106, 107.

ed”²³⁷ initiative. Ever attuned to signals emanating from the White House, the subservient secretary-general named egregiously corrupt and criminal Colombian ex-president Álvaro Uribe as the vice-chair, so as to secure Israeli interests on the panel. (He was an outspoken proponent of enhanced military cooperation between Colombia and Israel.) Were Uribe an African leader, he would long ago have been indicted by the ICC.²³⁸ In any event, the *UN Panel Report* was explicitly not a legal but, instead, a political document. The Panel’s mandate was to investigate the Flotilla Incident in order to “consider and recommend ways of avoiding similar incidents in the future,” and to “impact positively on the relationship between Turkey and Israel, as well as the overall situation in the Middle East.” The *UN Panel Report* was repeatedly at pains to “stress” that it “was not asked to make determinations of the legal issues.”²³⁹ But, flouting its terms of reference, the Panel proceeded to determine that the Israeli naval blockade constituted “a legitimate security measure . . . and its implementation complied with the requirements of international law.”²⁴⁰ The argument contrived by the panel to justify the Israeli naval blockade comprised a sequence of interrelated propositions: (i) The Israeli naval blockade of Gaza was distinct from the Israeli land blockade, (ii) Israel confronted a novel security threat from Gaza’s coastal waters when it imposed the naval blockade, (iii) Israel imposed the naval blockade in order to neutralize this security threat, (iv) The naval blockade was the only means Israel had at its disposal to meet this security threat, and (v) The Israeli naval blockade achieved its security objective without causing disproportionate harm to Gaza’s civilian population. To pronounce the naval blockade legal, the panel had to sustain each and every one of these propositions. If even one were false, its defense of the blockade collapsed. The astonishing thing was, they were *all* manifestly and incontrovertibly false.²⁴¹ Indeed, the *UN Panel Report* was probably the most factually mendacious and morally debased document ever issued under the UN’s aegis.

237. “Daily Press Briefing by the Office of the Spokesperson of the Secretary-General” (2 August 2010; <https://un.org/News/briefings/docs/2010/db100802.doc.htm>).

238. Finkelstein, *Gaza*, pp. 177–79.

239. UN Panel Report, paras. 3–5, 67; “Daily Press Briefing by the Office of the Spokesperson of the Secretary-General” (2 August 2010; <https://un.org/News/briefings/docs/2010/db100802.doc.htm>).

240. UN Panel Report, para. 82.

241. Finkelstein, *Gaza*, pp. 179–97.

8.4.2.3. Neither the *Turkel Report* nor the *UN Panel Report* provided a “reasonable basis” to question the consensus opinion that Gaza was suffering a humanitarian crisis; that the Israeli siege was inducing the humanitarian crisis; that Israel was deliberately inducing this humanitarian crisis; that the Israeli siege was consequently an illegal form of collective punishment; and that the use of force against the humanitarian flotilla, insofar as it was designed to prolong the illegal siege, was also illegal. If there was a “subject of controversy,” it was the Prosecutor’s pretense that there *was* a “controversy.”

8.5. The Prosecutor purported that, even were the blockade illegal, it would still be of marginal significance, as its legal status “only has an impact on the assessment of the alleged war crime of intentionally directing an attack against civilian objects.”²⁴² But if the blockade was illegal—as it surely was—it dramatically “aggravated” the nature and magnitude of the crimes for which Israel was culpable.²⁴³

8.5.1. For example, the Prosecutor stated that, if the *HRC Report* found the commandos’ use of force against passengers when intercepting flotilla vessels other than the *Mavi Marmara* to be “unnecessary, disproportionate, excessive and inappropriate,” whereas she didn’t reach this conclusion, that’s because the *HRC Report* unequivocally determined the blockade to be illegal whereas she made a “conditional determination” that didn’t render final judgment on its legality.²⁴⁴ But, then, the Prosecutor’s own reasoning upends her pretense that the legal status of the blockade would impact her charge sheet only in relation to attacks on civilian objects (flotilla vessels), not in relation to attacks on protected persons (flotilla passengers). In other words, the Prosecutor herself concedes that, if she acknowledged the blockade was illegal, then the IDF’s brutal treatment of passengers while intercepting the other flotilla vessels was also illegal, thereby “aggravating” Israel’s crimes.²⁴⁵

242. Prosecutor’s Report, para. 33 (see also para. 30). See also Prosecutor’s Response to Review Application, paras. 45–46, and Prosecutor’s Consolidated Response, para. 86. The other charges in the Prosecutor’s bill of indictment mostly stemmed, according to her, not from enforcement of the blockade but, instead, the commandos’ spontaneous reaction to violent passenger provocation.

243. Comoros’ Application for Review, para. 77. See also OPCV Observations, paras. 83, 89–90, and LRV Observations, para. 39.

244. Prosecutor’s Response to Review Application, para. 92. See also Prosecutor’s Final Decision (II), para. 88n142.

245. Prosecutor’s Report, para. 18.

8.5.2. But there's more—a lot more. The illegal Israeli blockade formed a critical link in crimes against humanity committed by Israel. A correct breakdown of the composite elements of the Flotilla Incident would have shown that: (i) As part of a plan and policy, (ii) Israel imposed an illegal blockade on Gaza, that (iii) premeditatedly, deliberately, and designedly (iv) created and perpetuated a humanitarian catastrophe among Gaza's civilian population, and that (v) Israel illegally resorted to violent force in order to (vi) enforce this illegal blockade against humanitarian vessels en route to Gaza.

8.5.3. Whereas she peremptorily dismissed the charge of crimes against humanity, if the Prosecutor had properly denoted and sequenced the elements of the Flotilla Incident, she would have been hard-pressed not to conclude that Israel was guilty of this charge and that the incident was of "sufficient gravity" as to warrant a full-fledged investigation.

9.0. GRAVITY DENIER

9.1. The Prosecutor stated that the gravity of an incident was to be determined by its "scale, nature, manner of commission" as well as by its "impact," and that, according to Article 8(1) of the Rome Statute, "the Court shall have jurisdiction in respect of war crimes in particular when committed as part of a plan or policy or as part of a large-scale commission of such crimes."²⁴⁶

9.2. The Prosecutor decided that the Flotilla Incident was not of sufficient gravity as to warrant a full-fledged investigation. She based this decision on the two-pronged argument that (i) the Court's jurisdiction did not extend beyond alleged crimes committed by Israeli commandos aboard the *Mavi Marmara*, and (ii) the alleged crimes committed aboard the *Mavi Marmara*, although severe, didn't in and of themselves reach the threshold of the Court's jurisdiction.²⁴⁷

9.3. The analysis in this section homes in on the "impact" of the incident, and on whether the incident's criminality met the criteria set out in Article 8(1) of the Rome Statute.

9.3.1. The Prosecutor alleged that the incident's "impact" did not meet the gravity test, as Gaza's population was ultimately unaffected by the incident:

²⁴⁶. Prosecutor's Report, paras. 136–37.

²⁴⁷. Prosecutor's Report, paras. 137–42.

The alleged crimes clearly had a significant impact on victims and their families and other passengers involved. . . . However, while the flotilla campaign involved aspects of humanitarian assistance for the civilian population, it does not appear that the conduct of the IDF during the incident can be considered to have had a significant impact on the civilian population in Gaza. . . . Israel made offers and proposals to the flotilla participants to permit the humanitarian supplies to be delivered through an alternative route. Additionally, the supplies carried by the vessels in the flotilla were ultimately later distributed in Gaza. In these circumstances, the interception of the flotilla cannot be considered to have resulted in blocking the access of Gazan civilians to any essential humanitarian supplies on board the vessels in the flotilla.²⁴⁸

9.3.2. The Prosecutor alleged that the incident did not trigger the Rome Statute, as the Court's writ only extended to the vessel's takeover:

[I]t does not appear that the criteria of article 8(1) are satisfied, especially considering that the Court's jurisdiction does not extend to other alleged crimes committed in the context of the conflict between Israel and Hamas nor in the broader context of any conflict between Israel and Palestine. Therefore, the Office is not entitled to assess the gravity of the alleged crimes committed by the IDF on the *Mavi Marmara* in reference to other alleged crimes falling outside the scope of the referral and the jurisdiction of the ICC.²⁴⁹

9.3.3. The net effect of the Prosecutor's judicial reasoning was to drastically shrink the scope of the Flotilla Incident. The question of its "impact" was reduced merely to whether the flotilla's cargo was successfully delivered,²⁵⁰ while the question of whether the Israeli assault was integral to a criminal "plan or policy" or "large-scale commission" of war crimes was sidestepped,

248. Prosecutor's Report, para. 141.

249. Prosecutor's Report, para. 137.

250. The Pre-Trial Chamber sharply observed that

the international concern caused by the events at issue, which, inter alia, resulted in several fact-finding missions, including by the UN Human Rights Council and the UN Secretary-General, is somehow at odds with the Prosecutor's simplistic conclusion that the impact of the identified crimes points towards the insufficient gravity of the potential case(s) on the mere grounds that the supplies carried by the vessels in the flotilla were ultimately later distributed to the population in Gaza. (First PTC Decision, para. 48)

as the Prosecutor alleged that her judicial remit was circumscribed by the *Mavi Marmara's* takeover. In other words, the Prosecutor enclosed the Israeli assault in a judicial brick wall that isolated it from the illegal blockade imposed by Israel, on the one side, and the humanitarian catastrophe in Gaza induced by the illegal blockade, on the other side. In a stroke, the Prosecutor subverted the whole of international opinion, which anchored the incident in its critical context.

9.3.3.1. The Prosecutor brushed aside the resounding international outrage born of the sanguinary incident *as well as* the fraught circumstances in which it unfolded as mere “social alarm” based on “subjective and contingent reactions to crimes rather than upon their objective gravity.”²⁵¹ It cannot but astonish, the breathtaking effrontery that would characterize the calibrated professional judgments of the UN Security Council, senior UN officials, and the human rights community as the equivalent of a tantrum.

9.3.3.2. Ironically, the Prosecutor subverted on this point even her holy *Turkel Report*, which was at pains to locate the incident in the “legality of the naval blockade . . . , the humanitarian situation in the Gaza Strip and the question whether the blockade is affecting this situation.”²⁵²

9.4. The Prosecutor’s reasoning was bitterly contested by other parties to

251. Prosecutor’s Final Decision, para. 133 (see also Prosecutor’s Response to Review Application, para. 99). The quoted phrases of the Prosecutor appeared originally in another ICC decision. Defending her curt dismissal of international opinion, the Prosecutor further alleged that “although the Al Mahdi Trial chamber referred to the international community in assessing the gravity of the charged conduct in that case, it did not refer to the degree of alarm, but rather to the direct effect of the destruction of the protected objects on a core interest (UNESCO World Heritage sites) of the international community” (ibid., para. 133n243). As if the international community wasn’t reacting to the direct effect of the Flotilla Incident on its “core interest” of Gaza’s survival.

252. Turkel Report, para. 11. In his defense of the Prosecutor’s determination, Judge Péter Kovács, dissenting from a Pre-Trial Chamber decision, purported that “the assessment of gravity in the situation *sub judice* must indeed be distinguished from the *overall* humanitarian crisis suffered by the Palestinian civilian population which in fact resulted from the entirety of the ongoing Palestinian-Israeli conflict” (First PTC Decision, “Partly Dissenting Opinion of Judge Péter Kovács,” para. 21; emphasis in original). Indeed, in the judicial assessment of gravity, the genesis of the crisis could be traced back even further to the physical law of gravity—no gravitational pull, no Israel-Palestine conflict, no nothing. But for those not in the (professionally lucrative) business of evading the obvious, and to judge instead by the consensus of respected and representative opinion, the proximate cause of the humanitarian disaster befalling Gaza was the illegal blockade that Israel endeavored to enforce by its attack. The Flotilla Incident would only “be distinguished from the *overall* humanitarian crisis” by crude, cynical sophistry.

the judicial proceedings.

9.4.1. The Comoros stated that if the humanitarian situation in Gaza was dire, and if the purpose of the Israeli attack was to perpetuate this dire situation, then the incident “must . . . meet the test of gravity”; that, in deciding whether the incident reached the gravity threshold and whether the incident was integral to a criminal plan or policy or large-scale commission of war crimes, it was “perfectly permissible for the Prosecutor to take into consideration the wider context of the blockade and the occupation and all acts committed in this context”; that there was a “reasonable basis to believe” that the IDF attack “formed part of a plan and policy to uphold the *unlawful* blockade, and/or [that] the crimes committed on board of the vessels [were] part of a larger-scale commission of similar crimes committed as part of that larger plan and policy” (emphasis in original); that “The IDF attack was allegedly perpetrated in order to uphold a blockade of Gaza that is widely regarded as being unlawful as part of a policy to punish collectively the civilians of Gaza in the context of Israel’s occupation of, and control exercised over, this territory.”²⁵³

9.4.2. The Legal Representative for Victims stated that, whereas the Prosecutor found “no rational link between the attack on the Flotilla and the situation in Gaza, including the IDF’s blockade of Gaza,” the fact was, “The IDF sought to teach the passengers a lesson for seeking to break the blockade as they do on a regular basis in Gaza and elsewhere to all those who oppose the blockade and the control exercised by the IDF over Gaza”; that “the Pros-

253. Comoros’ Referral, para. 25(iii); Comoros’ Application for Review, paras. 15, 18, 24 (see also *ibid.*, para. 79, and, for an especially subtle, astute observation pointing up the Prosecutor’s hypocrisy, para. 133). See also Comoros’ Response to LRV Observations, para. 16. The Comoros also argued that “to distinguish the international concern for the civilian population in Gaza from the crimes that were committed on the Flotilla,” was as “wholly artificial” as if a South African prosecutor considering “President Mandela’s unlawful imprisonment would refuse to take account of the wider context of the system of apartheid and the reason for his detention” (Comoros’ Application for Review, para. 132). The Prosecutor denied the aptness of this analogy: whereas in the South Africa instance, a direct nexus existed between the crime of imprisoning Mandela and the system of apartheid, such a nexus didn’t exist in the Flotilla Incident (Prosecutor’s Response to Review Application, para. 97n231). True enough, the murdered and maimed passengers weren’t personally victims of the humanitarian disaster in Gaza, but wouldn’t that *enhance* the nobility of their sacrifices? They voluntarily, and with no personal stake in the outcome, gave of their lives in defense of the defenseless. In any event, it would seem to an eye not blinded by prejudice that the essence of the two situations *was* analogous: Mandela was martyred because he opposed the inhuman system of apartheid, while the passengers aboard the *Mavi Marmara* were martyred because they opposed the inhuman blockade.

ecutor's finding that the crimes [against the flotilla] were not part of a broad operation—in existence for several years—to enforce the Gaza blockade and thus to find that they were not connected to events in Gaza itself is manifestly unreasonable. As a result of this finding the Prosecutor has been able to avoid consideration of any events beyond the *immediate* territorial jurisdiction. Thus she has freed herself from determining whether the crimes were committed as part of a policy that may have constituted crimes against humanity. . . . [T]his allowed her to narrow and minimize the criminality behind the attack on the vessels in deciding whether the crimes were serious enough for her to investigate” (emphasis in original).²⁵⁴

9.5. A synthesis, distillation, and refinement of these arguments would read something like this: *The Flotilla Incident has to be grasped, not as in a hermetically sealed container but, on the contrary, as, graphically, at the point of intersection of two critical factors: it was one link in a horizontal-chronological sequence of humanitarian missions blocked by Israel from reaching Gaza,*²⁵⁵ *and it was one link in a vertical-causal sequence connecting, from the top downward, the illegal Israeli blockade to Israel's violent interception of humanitarian vessels to the humanitarian catastrophe in Gaza. The chronological chain manifested the criminal long-term plan and policy of Israel, wherein the Flotilla Incident was a climax of its illegal blockade barring humanitarian vessels from reaching Gaza, while the causal chain manifested the impact of this plan and policy, wherein the Flotilla Incident was not only the direct outcome of an illegal blockade enforced by the illegal use of force, but also—and critically—just a “part” of, or integral to, the “large-scale commission” of war crimes, as the humanitarian catastrophe in Gaza was also, and especially, the direct outcome of Israel's illegal use of force to enforce an illegal blockade. Conceived, as it ought to be, in its totality, the Flotilla Incident (no less than prior interceptions) momentarily materialized, as it concretely instantiated, an illegal Israeli plan and policy to blockade Gaza through illegal use of force. The direct impact of this policy was the war crimes committed against the flotilla compounded by, and inextricably concatenated with, the commission of “large-scale” war crimes—or, more precisely, crimes against humanity—in Gaza, as its civilian population was deliberately deprived of essential material provisions and elemental human dignity. If the Prosecutor found contrariwise,*

254. LRV Observations, paras. 12, 49 (see also para. 53).

255. For Israel's forceful interception of humanitarian vessels right before the Flotilla Incident, see HRC Report, paras. 76–77; for right after, see Comoros' Response to LRV Observations, para. 14. See also Finkelstein, *Gaza*, pp. 153–54.

that's because she used a rhetorical crowbar to pry loose the Flotilla Incident from both Israel's illegal blockade and Gaza's humanitarian catastrophe, so as to recast the Flotilla Incident as (at most) an isolated, spontaneous, if lamentable, Israeli overreaction (to a violent provocation), and not born of, and integral to, an Israeli plan and policy targeting humanitarian missions destined for Gaza, the upshot of which was the commission of crimes against humanity in Gaza. The converse was, if Israel didn't use violent force to halt the "phenomenon of the flotillas," the illegal blockade would have disintegrated, and along with it the Israeli masterplan to throttle Gaza. Israel's periodic resort to violent force so as to intercept humanitarian vessels—in the case at hand, the Flotilla Incident—was thus integral to preserving the blockade. On the other hand, even as it was visible only when a flotilla attempted to breach the blockade, and even as its lethality varied depending on Israel's specific objective, illegal violent force was inherent in and intrinsic to Israel's imposition of the blockade whether at a given moment it be manifest or latent. The blockade didn't just block humanitarian supplies aboard this or that intercepted flotilla, but, on the contrary, the threat of violence posed by it deterred any and all vessels carrying supplies from reaching Gaza, while the gravity of this illegal use of force was fundamentally determined, not by the less or more violent interception of a particular flotilla but, rather, by the role the blockade *as a plan or policy* played in perpetuating the humanitarian catastrophe in Gaza. In other words, the Flotilla Incident "merely" made manifest and added to the underlying and overarching criminality of Israel's blockade. It incarnated at that moment the blockade in its totality and was culpable for the humanitarian disaster in its totality. The blockade was constituted by, and the humanitarian catastrophe in Gaza was the resultant of, the sum total of each of Israel's discrete acts of illegal force—themselves tracing back to the threat of illegal violence inherent in the blockade—while each act of illegal force was a stand-in for the total blockade and the total catastrophe induced by it.

9.6. The Prosecutor endeavored in several submissions to answer her various critics.

9.6.1. *Insufficient proximity.* The Prosecutor stated that, in assessing gravity, it *would* be relevant if the "identified crimes" sprang from Israel's enforcement of the blockade or impacted the situation in Gaza. It was her contention, however, that a "rational link" or "material nexus" did not exist between the stipulated IDF crimes, on the one hand, and the Israeli blockade and the Gaza catastrophe, on the other: the "apparent war crimes" committed by the IDF aboard the *Mavi Marmara* weren't "sufficiently proximate to . . . the events in

Gaza,” and didn’t “form part of the intentional attacks upon the flotilla, but rather appeared to be incidental to them.” That is, the deadly melee aboard the *Mavi Marmara* was not rationally or materially related to the blockade or the situation in Gaza, as it was “akin to isolated acts which appear distinct in their nature, aims and consequences.”²⁵⁶ The passengers provoked; the commandos overreacted; end of story. But *first*, the initial Israeli attempt to intercept the flotilla *in and of itself* constituted a “rational link”/“material nexus” between the blockade and the situation in Gaza, *second*, this initial resort to force was already a grave criminal act as it shored up—indeed manifested the plan or policy of—the blockade that was throttling a civilian population, *third*, albeit of *relatively* lesser significance, “reasonable” grounds surely existed to believe that much of the lethal violence unleashed by the commandos was not “incidental” but, in Israel’s calculation, necessary to perpetuate the blockade, as the violence was designed, primarily, to deter future flotillas.

9.6.1.1. If the Prosecutor stated that “the available information . . . does not show any nexus between the apparent war crimes on the *Mavi Marmara* and the blockade,”²⁵⁷ that’s presumably because she conflated “the available information” with the *Turkel Report*. The evidentiary basis for surmising that Israel inflicted (a portion of) the violence with premeditation to enforce the blockade, although not dispositive, was surely more compelling than the basis for believing the violence wasn’t premeditated.

9.6.1.2. If the Prosecutor stated that “no information is available . . . which establishes a reasonable basis to believe that events similar to those aboard the *Mavi Marmara* have occurred on similar vessels, or form part of an Israeli policy regarding such vessels,”²⁵⁸ and “the crimes . . . committed aboard the *Mavi Marmara* do not appear to have been the result of a plan or policy, but rather were situated in the circumstances prevailing on that night and on that vessel,”²⁵⁹ that’s because she willfully ignored the common denominator in all these acts of naval interdiction: to wit, Israel resorted to use of illegal force, albeit of varying degrees, against vessels bound for Gaza as part of a “plan or policy” designed to induce and perpetuate a humanitarian catastrophe there.

256. Prosecutor’s Response to Review Application, paras. 52–56; Prosecutor’s Consolidated Response, para. 97.

257. Prosecutor’s Response to Review Application, para. 56n119.

258. Prosecutor’s Consolidated Response, para. 98.

259. Prosecutor’s Consolidated Response, para. 132.

9.6.1.3. If the Prosecutor believed that no proximate “rational link” or “material nexus” could be made out between the illegal Israeli blockade, the climactic of which was the Flotilla Incident, and the humanitarian catastrophe in Gaza, indeed, that “nothing supports such an approach,”²⁶⁰ then she placed herself squarely in the company of the *Turkel Report*, and *against every authoritative commentary*.

9.6.1.4. If the Prosecutor believed that “it is not the link between the interception of the flotilla and the situation in Gaza which is relevant, but information linking the crimes for which the Prosecution found a reasonable basis and the situation in Gaza,”²⁶¹ that’s because she willfully ignored the *more than* “reasonable basis” for finding that Israel’s blockade was also a—indeed, *the ultimate*—crime, as not only the Flotilla Incident, but also, and critically, the humanitarian catastrophe in Gaza traced in a straight arrow line back to it. If she had, properly, found the blockade to be illegal, the Prosecutor wouldn’t have lacked “information linking” Israel’s criminal assault (inclusive of the war crimes identified by the Prosecutor) on the flotilla, which manifested Israel’s criminal blockade, with the “situation in Gaza.”

9.6.2. *Abu Garda precedent*. The *Abu Garda* case,²⁶² in which Fatou Bensouda served on the ICC’s prosecution team, was recalled at several junctures. This case implicated a rebel group in the Sudan, allegedly headed by the defendant, Bahar Idriss Abu Garda, that attacked an African Union peacekeeping force (African Union Mission in Sudan-AMIS). In the course of the attack, a dozen peacekeepers were killed and attempts were made on the lives of eight others.²⁶³ The question posed by the Prosecutor’s critics was, Why did she find that the gravity test was met in *Abu Garda*, but not in the Flotilla Incident, which entailed “ten killings, 50–55 injuries, and possibly hundreds of instances of outrages upon personal dignity, or torture or inhuman treatment”?²⁶⁴ The Prosecutor contended in her defense that, unlike the Flotilla Incident, the gravity of the crime in *Abu Garda* was aggravated by other factors: on the one hand, it was an internationally sanctioned peacekeeping force that was targeted, thus constituting a “strike

260. Prosecutor’s Consolidated Response, para. 12.

261. Prosecutor’s Consolidated Response, para. 126n299.

262. ICC, “Situation in Darfur.”

263. ICC, “Situation in Darfur,” para. 21(i).

264. First PTC Decision, para. 26.

at the very heart of . . . international peace and security,” while, on the other hand, the attack “severely disrupted” the peacekeepers’ “protective roles with respect to millions of Darfurian civilians in need of humanitarian aid and security.”²⁶⁵ The Prosecutor underscored this second aggravating factor in her submissions: “[T]he indirect victims of the attack (comprising the local population) were extensive, suffering as a result of the severe disruption of AMIS operations. By contrast, although the number of victims aboard the *Mavi Marmara* was greater, the number of indirect victims was fewer.”²⁶⁶ The Pre-Trial Chamber in the *Abu Garda* case recognized only the second aggravating factor. (It disregarded AMIS’s allegedly distinctive international status.) The PTC stated that the “initial suspension and ultimate reduction of AMIS activities in the area as a result of the attack had a grave impact on the local population.”²⁶⁷ It then decided that the initial deadly attack on the peacekeeping mission, compounded by this “grave impact on the local population,” was of “sufficient gravity” as to make it “admissible” before the Chamber. But it’s hard to figure how the threshold of an initial deadly attack on a humanitarian mission compounded by the aggravating factor of a “grave impact on the local population” would not also make the Flotilla Incident admissible before the Court.²⁶⁸ (The wording of the relevant criminal statute treated interchangeably an attack on a “humanitarian assistance or peacekeeping mission.”²⁶⁹) The bloody attack on the peacekeeping mission left Sudan’s civilian population at the mercy of criminal marauders. The bloody attack on the humanitarian mission left Gaza’s civilian population at the mercy of a criminal blockade. What, pray tell, is the difference? It is further to be noted that the Prosecution’s evidence against Abu Garda was so embarrassingly “weak and unreliable,” “scant and unreliable,”²⁷⁰ that the PTC eventually declined to confirm the charges against him. But, feeble as its evidence was, the Prosecution did not relent in pressing for an indictment. Even were it granted that the evidence in the Flotilla Incident was equally feeble, still, the Prosecutor displayed palpably less resolve to indict senior

265. Prosecutor’s Report, paras. 145–46.

266. Prosecutor’s Response to Review Application, para. 71. See also Prosecutor’s Final Decision (II), para. 35.

267. ICC, “Situation in Darfur,” paras. 33–34.

268. OPCV Observations, para. 139; Comoros’ Application for Review, para. 26.

269. ICC, “Situation in Darfur,” para. 61.

270. ICC, “Situation in Darfur,” paras. 173, 179.

officials of the regional superpower in the Middle East than the putative leader of an ephemeral breakaway rebel group in Africa.

9.7. The Prosecutor brusquely dismissed the charge of crimes against humanity in the Flotilla Incident. But if its aggravating factors had been properly reckoned, the Prosecutor would have been hard-pressed not to find Israel guilty of crimes against humanity. The criminal Israeli blockade was inducing, indeed, was designed to induce, a humanitarian catastrophe in Gaza. The Flotilla Incident triggered ICC jurisdiction in this situation. But once the incident justified ICC intercession, the Prosecutor was *also* obliged to consider whether IDF war crimes aboard the *Mavi Marmara* were “committed as part of a plan or policy or as part of a large-scale commission of such crimes,” as well as the “impact” of these IDF war crimes.²⁷¹ In other words, it was incumbent upon the Prosecutor to weigh the incident’s gravity in the fullness of its potentially aggravating factors.²⁷² Still, the Prosecutor found that the charge of crimes against humanity was inapplicable on the grounds that “it does not appear that the conduct of the IDF during the flotilla incident was committed as part of [a] widespread or systematic attack, or constituted in itself a widespread or systematic attack, directed against a civilian population.”²⁷³ But the facts demonstrated at bare minimum a “reasonable basis” for finding that the IDF’s war crimes in the Flotilla Incident were a manifestation of Israel’s “widespread” and “systematic” criminal use of force—the blockade—that was “directed against” Gaza’s civilian population. If she had properly reckoned this Israeli “plan or policy,” the “impact” of which was to induce and perpetuate a humanitarian catastrophe in Gaza, as a crime against humanity, then the Prosecutor would perforce have found that the Flotilla Incident, which made manifest this “plan or policy,” was of “sufficient gravity” as to warrant a full-fledged investigation. If she decided otherwise, it can be traced back not to a computational error but, on the contrary, to a deficit of personal integrity. It is therefore beyond reasonable doubt that the Prosecutor stands guilty of whitewashing Israeli crimes and shielding Israel from judicial accountability.

271. Prosecutor’s Report, paras. 136–37.

272. First PTC Decision, para. 17.

273. Prosecutor’s Report, para. 130.

Conclusion

On 31 May 2010, a flotilla bound for Gaza was attacked by Israeli armed forces. En route to provide succor to Gaza's beleaguered population, the flotilla ultimately sought to breach an illegal Israeli blockade that was causing a humanitarian catastrophe. By the end of the assault, nine passengers were dead (a tenth passenger died later from his injuries), scores were injured, and possibly hundreds suffered outrages upon their personal dignity, or inhuman treatment, or torture. The incident was subject to widespread condemnation as the UN and human rights groups expressed indignation not just at the attack but also at the Israeli blockade and Gaza's desperate plight. On 14 May 2013, the Union of the Comoros, to which the flagship *Mavi Marmara* was registered, referred the situation to the International Criminal Court. The ICC chief prosecutor, Fatou Bensouda, launched a preliminary examination in order to ascertain whether a "reasonable basis" existed for proceeding with a full-fledged investigation. To make this determination, the Prosecutor was legally mandated to assess not just the incident in and of itself but also the "impact" of the incident, and whether it was integral to a broader criminal "plan or policy." The Prosecutor found that, whereas there was "reasonable basis" to surmise that "some" Israeli armed forces committed war crimes aboard the *Mavi Marmara*, the situation as a whole was not of "sufficient gravity" as to warrant an ICC investigation. If she arrived at this legally perverse and morally perverted conclusion, it was only after committing multiple acts of judicial malpractice. *First*, she systematically tampered with the evidence—or, more exactly, copied and pasted the tampered evidence from an official Israeli whitewash—in order to demonstrate that Israeli armed forces intended to peacefully board the vessel but were provoked by violent passengers. Even as the Prosecutor was finally forced to concede that the commandos might have initiated the violence, she concocted a cockamamie conspiracy theory to exonerate senior Israeli officials. *Second*, she disingenuously walled off the immediate incident from the illegal Israeli blockade, on the one side, and the humanitarian catastrophe in Gaza, on the other side. Put simply, in a series of submissions that were as slovenly in form as they were scandalous in content, the Prosecutor reduced the gravity of a situation that precipitated thunderous global censure to a handful of trigger-happy Israeli soldiers overreacting to violent provocation. However, the evidence adduced in the proceedings incontrovertibly demonstrated that at bare minimum there was "reasonable basis" to initiate a formal investigation into war crimes and crimes against humanity.

The ICC chief prosecutor was culpable not only for this miscarriage of justice, but also for perpetuating Gaza's martyrdom by granting Israel legal impunity to execute new heinous crimes.²⁷⁴ If in theory the chief prosecutor, in practice Bensouda was the chief enabler. If her exculpation of Israel's criminal attack on a humanitarian flotilla seeking from without to lift the barbaric siege of Gaza did not already appall, this decision also paved the way for Israel's criminal targeting of unarmed civilians in the Great March of Return seeking from within to lift the barbaric siege. *Shouldn't a portion of the responsibility for every gruesome murder and maiming by Israel of these forsaken demonstrators be deposited at the doorstep of the Prosecutor?* Were it truly an International Criminal Court, Bensouda would not be the prosecutor but, on the contrary, the defendant, standing trial for her complicity in war crimes and crimes against humanity. "Culpable failure to take steps to suppress a crime when under a duty to do so," a respected international jurist has observed, "makes the Prosecutor complicit in the commission of the crime."²⁷⁵ The Flotilla Incident has not yet been legally decided. Although she thrice resolved to close the case, the Prosecutor has faced unprecedented pushback inside the ICC by parties not willing to play along with this judicial farce. A veritable civil war has erupted, that, as of late 2019, shows no signs of abating.

274. Comoros' Application for Review, paras. 25, 42, 59, 135.

275. John Dugard, *Prospects for Opening a Formal Investigation into the Palestine Situation in 2020?*, ICC Assembly of States Parties side event sponsored by the MH Group (5 December 2019).

Postscript

This appendix traced the unprecedented legal battle that unfolded after Israel attacked a humanitarian flotilla in order to enforce an illegal blockade of Gaza. The judicial tug of war pit the chief prosecutor of the International Criminal Court, Fatou Bensouda, on the one side, against the Union of the Comoros along with various internal organs of the ICC, on the other. The point in contention was not Israel's culpability, nor even whether it should be prosecuted. Rather, it was the Prosecutor's adamant refusal to launch merely an investigation of the deadly Israeli attack. On three discrete occasions, the Prosecutor defended her decision on the grounds that the "situation" wasn't of "sufficient gravity" and therefore no "reasonable basis" existed "to justify further action by the Court." Each time, the Union of the Comoros, supported by the Office of the Public Counsel for Victims, filed an "Application for Judicial Review."²⁷⁶ Each time, the Pre-Trial Chamber (PTC) as well as the Appeals Chamber of the ICC found that the Prosecutor had improperly rendered the law. The multiple errors identified in the Prosecutor's jurisprudence didn't randomly distribute: each and every misinterpretation of the law by the Prosecutor redounded to Israel's advantage. To prove that Israel's attack on the flotilla, which triggered international outrage, wasn't of "sufficient gravity" to warrant even an investigation, the Prosecutor systematically either misrepresented the facts, or alleged that the facts were in dispute (which, as the PTC pointedly noted, was exactly why an investigation was needed), or extirpated the incident from the critical context of the illegal blockade of Gaza and ensuing humanitarian crisis.

This appendix was completed just after the Prosecutor issued her third "Final Decision" in December 2019 not to investigate the incident. Subsequently, the Union of the Comoros, supported by the OPCV, filed yet another "Application for Judicial Review" to the PTC. The kid gloves were removed as judicial decorum and professional deference were cast aside in the ensuing verbal fisticuffs. Long years of frustration with the Prosecutor's outrageous misconduct had finally boiled over. The Union of the Comoros protested that "[t]he Prosecutor has not addressed and corrected the errors identified by the Pre-Trial Chamber, made the same errors again, and made new errors," so as to fabricate "decidedly unreasonable and irrational," "plainly false and

276. Although technically falling within the ICC administration or "Registry," the OPCV is an independent entity.

misleading” findings, that “demote and discredit the victims,” in “another duplicitous attempt to downgrade the seriousness of the case.”²⁷⁷ “In the years since the situation has come before the Court,” the Application bitterly concluded,

the Prosecutor has received thousands of pages of evidence and extensive victim and witness statements, but has repeatedly used all of this time to prepare lengthy reasons to decide not to investigate the case. In all the years in which the Prosecutor has been considering whether to investigate this case, the Prosecutor could have actually investigated the available evidence to decide whether to proceed further.²⁷⁸

The OPCV seethed that “the Prosecutor’s attitude is highly disappointing and regrettable,” “the Prosecutor erred in both her methodology and findings,” her findings were “entirely unreasonable,” her legal analysis and factual assessments were “fundamentally flawed,” her “conclusions . . . are untenable in so far as they are baseless,” and her “impartiality . . . can by now reasonably be doubted.”²⁷⁹ Both the Union of the Comoros and the OPCV called on the PTC to sanction the Prosecutor.²⁸⁰

Throughout the protracted litigation, the ICC’s internal organs had repeatedly admonished the Prosecutor to correct her errors. What happened now? The PTC yet again found that the Prosecutor had committed numerous errors. Indeed, it found over and over again that the Prosecutor had not only repeated prior errors in her jurisprudence but also committed a sackful of new errors and repeatedly flouted previous Court orders. The PTC’s blistering delineation of the Prosecutor’s prior and new errors, as well as of her “abuse” of authority, “double-standards and arbitrariness,” etc., ran to a whopping

277. “Application for Judicial Review by the Government of the Comoros” (2 March 2020; <https://www.icc-cpi.int/court-record/icc-01/13-100>), paras. 3, 51, 76, 88, 90. For a detailed itemization of the chief prosecutor’s errors, see *ibid.*, paras. 26–104.

278. *Ibid.*, para. 107.

279. “Victims’ Response to the ‘Application for Judicial Review by the Government of the Comoros’ of 2 March 2020” (4 May 2020; <https://www.icc-cpi.int/court-record/icc-01/13-107>), paras. 3, 29, 30, 31, 42, 55.

280. For the chief prosecutor’s reply, see “Prosecution’s Consolidated Response to the Third ‘Application for Judicial Review by the Government of the Comoros’ (ICC-01/13-100), and the Observations of Victims (ICC-01/13-107 and ICC-01/13-108)” (11 May 2020; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2020_01867.PDF).

fifty paragraphs.²⁸¹ It couldn't but cause the reader to wonder whether the Prosecutor had gotten *anything* right. But that was only half the story. The other half was that—to repeat—*each and every one of the Prosecutor's "errors," "abuses," and "double-standards" redounded to Israel's benefit.* The quantifiable truth was that Fatou Bensouda had functioned not as the ICC's chief prosecutor, but, on the contrary, as Israel's chief counsel. However, whereas the PTC had twice before ordered the Prosecutor to reconsider her decision not to initiate an investigation, this time around it purported that it had reached a statutory cul-de-sac—judicial remedies had been exhausted. The PTC therefore decided *not* to order the Prosecutor to reconsider her refusal to investigate, “notwithstanding” that the Prosecutor had ignored Court orders and her jurisprudence was rife with errors.²⁸² The Union of the Comoros, supported by the Office of Public Counsel for Victims, endeavored to file an appeal,²⁸³ but the PTC denied the request.²⁸⁴ After digging in her heels for seven long years, the Prosecutor had finally prevailed—and Truth and Justice withered on the vine.

If this first act of the Prosecutor's jurisprudence evoked tragedy, then the second act evoked farce. In 2009, the State of Palestine undertook a separate litigation to achieve justice. It approached the ICC “for the purpose of identifying, prosecuting and judging the authors and accomplices of acts

281. “Decision on the ‘Application for Judicial Review by the Government of the Comoros’” (16 September 2020; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2020_05261.PDF), paras. 38–45, 56–71, 76–83, 88–104, 111 (flouting Court orders and “abuse” of authority at paras. 44, 45, 60, 66, 71, 77, 80, 83, 89, 91, 94, 102, 104, 111, “double-standards and arbitrariness” at para. 101).

282. *Ibid.*, paras. 106, 110–11.

283. “Application on Behalf of the Government of the Union of the Comoros for Leave to Appeal the ‘Decision on the ‘Application for Judicial Review by the Government of the Comoros’” of 16 September 2020” (22 September 2020; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2020_05384.PDF); “Victims’ Response to the ‘Application on Behalf of the Government of the Union of the Comoros for Leave to Appeal the ‘Decision on the ‘Application for Judicial Review by the Government of the Comoros’”” (29 September 2020; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2020_05445.PDF).

284. “Decision on the Request for Leave to Appeal the ‘Decision on the ‘Application for Judicial Review by the Government of the Comoros’”” (21 December 2020; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2020_07650.PDF).

committed on the territory of Palestine.”²⁸⁵ The then-chief prosecutor, Luis Moreno Ocampo, launched a preliminary examination and not less than three years later determined that Palestine did not qualify as a State and therefore the ICC had no jurisdiction over crimes committed there.²⁸⁶ In 2012, the UN General Assembly decided “to accord to Palestine non-member observer State status in the United Nations.”²⁸⁷ In 2014, the new ICC chief prosecutor, Fatou Bensouda, issued a statement declaring that if and when the now-State of Palestine requested the Court’s jurisdiction, the ICC “will execute its mandate, without fear or favor . . . and will vigorously pursue those—irrespective of status or affiliation—who commit mass crimes that shock the conscience of humanity,” and, on a personal note, she expressed the “firm belief that recourse to justice should never be compromised by political expediency.”²⁸⁸ Mighty words. In 2015, the State of Palestine declared its “acceptance of the jurisdiction of the ICC” and was “welcomed” as a State Party to the ICC. The Prosecutor used this occasion to affirm that, “since Palestine was granted observer State status in the UN by the UNGA, it must be considered a ‘State’ for the purposes” of the ICC. But, alas, a distance still had to be traversed between “said” and “done”: “It is for the ICC Prosecutor to establish whether the Rome statute criteria for opening an investigation are met and, where required, to request authorization from ICC Judges.”²⁸⁹ A few days later, the

285. “Declaration Recognizing the Jurisdiction of the International Criminal Court,” Palestinian National Authority (21 January 2009; <https://www.icc-cpi.int/sites/default/files/NR/rdonlyres/74EEE201-oFED-4481-95D4-C8071087102C/279777/20090122PalestinianDeclaration2.pdf>).

286. ICC, “Situation in Palestine” (3 April 2012; <https://www.icc-cpi.int/sites/default/files/NR/rdonlyres/C6162BBF-FEB9-4FAF-AFA9-836106D2694A/284387/SituationinPalestine030412ENG.pdf>). The ICC only has jurisdiction over crimes committed on the territory of States either belonging to the ICC or making an ad hoc declaration accepting ICC jurisdiction.

287. UNGA Resolution 67/19, “Status of Palestine in the United Nations” (4 December 2012; <https://documents.un.org/doc/undoc/gen/n12/479/74/pdf/n1247974.pdf>).

288. ICC, “Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda: ‘The public deserves to know the truth about the ICC’s jurisdiction over Palestine’” (2 September 2014; <https://www.icc-cpi.int/news/statement-prosecutor-international-criminal-court-fatou-bensouda-public-deserves-know-truth>).

289. ICC press release, “Palestine Declares Acceptance of ICC Jurisdiction Since 13 June 2014” (5 January 2015; <https://www.icc-cpi.int/news/palestine-declares-acceptance-icc-jurisdiction-13-june-2014>); ICC press release, “The State of Palestine Accedes to the Rome Statute” (7 January 2015; <https://www.un.org/unispal/document/auto-insert-200524>); ICC, “Report on Preliminary Examination Activities (2015)” (12 November 2015; <https://www>.

Prosecutor announced not an investigation of crimes committed in Palestine but—yes, dear reader, you guessed it—yet another “preliminary examination . . . in order to reach a fully informed determination on whether there is a reasonable basis to proceed with an investigation.” The principal objects of such an investigation (if and when it was launched) comprised Israel’s illegal settlement policy in the West Bank and its murderous assault on Gaza in 2014, Operation “Protective Edge.” Lest one were to naively get borne aloft by even a micro-bubble of hope, the Prosecutor abruptly punctured it: “There are no timelines . . . for a decision on a preliminary examination.” She did, however, emphatically reaffirm “that, since Palestine was granted observer State status in the UN by the UNGA, it must be considered a ‘State’ for the purposes” of the ICC and therefore could invoke the ICC’s jurisdiction.²⁹⁰ In October 2016, the Prosecutor announced en route to Israel and Palestine that “the preliminary examination of the situation in Palestine is ongoing. . . . The visit is not linked to any findings regarding any issue.”²⁹¹ Most reassuring of a timely resolution. In her annual 2016 update on the preliminary examination, the Prosecutor itemized the sundry “[a]lleged settlement activities” in Palestine currently being examined by her. Here’s one listing, which reproduced almost verbatim the wording from her prior 2015 update:

The Israeli government has *allegedly* led and directly participated in the planning, construction, development, consolidation and/or encouragement of settlements on West Bank territory. This settlement activity is *allegedly* created and maintained through the implementation of a set of policies, laws, and physical measures. Such activities are *alleged* to include the planning and authorization of settlement expansions or new construction at existing settlements. (emphases added)

icc-cpi.int/sites/default/files/iccdocs/otp/OTP-PE-rep-2015-Eng.pdf), paras. 45, 46, 50, 52, 53.

290. ICC press release, “The Prosecutor of the International Criminal Court, Fatou Bensouda, Opens a Preliminary Examination of the Situation in Palestine” (16 January 2015; <https://www.icc-cpi.int/news/prosecutor-international-criminal-court-fatou-bensouda-opens-preliminary-examination-situation>).

291. ICC, “Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda, Ahead of the Office’s Visit to Israel and Palestine from 5 to 10 October 2016” (5 October 2016; <https://www.icc-cpi.int/news/statement-prosecutor-international-criminal-court-fatou-bensouda-ahead-offices-visit-israel>).

In other words, decades after the UN Security Council and then the International Court of Justice had declared Israel's sprawling settlement enterprise in the West Bank illegal under international law, the Prosecutor was still clueless, not just whether these Israeli settlements were illegal but, to boot, whether Israel had even built settlements there! It's a wonder she didn't write "The Israeli government has allegedly led and allegedly directly allegedly participated in the alleged planning, alleged construction. . .". If even Israel's illegal settlement activity hadn't yet been ascertained by the Prosecutor, then, indeed, "there are no timelines."²⁹² In 2018, the Prosecutor expressed "grave concern" at the "violence and deteriorating situation in the Gaza Strip in the context of recent mass demonstrations"—i.e., the "Great March of Return"—and went on to "remind all parties that the situation in Palestine is under preliminary examination," although "a preliminary examination is not an investigation."²⁹³ The fact that Israeli snipers targeted children, journalists, medics, and disabled persons "hundreds of meters away from the Israeli forces and visibly engaged in civilian activities" didn't yet constitute sufficient grounds to warrant a criminal investigation.²⁹⁴ Later that year, the State of Palestine renewed its search for justice in the ICC as it "request[ed] the Prosecutor to investigate . . . ongoing and future crimes

292. ICC, "Report on Preliminary Examination Activities (2015)," para. 68; ICC, "Report on Preliminary Examination Activities (2016)" (14 November 2016; https://www.icc-cpi.int/sites/default/files/iccdocs/otp/161114-otp-rep-PE_ENG.pdf), para. 130. See also ICC, "Report on Preliminary Examination Activities (2017)" (4 December 2017; https://www.icc-cpi.int/sites/default/files/itemsDocuments/2017-PE-rep/2017-otp-rep-PE_ENG.pdf), paras. 59, 69, 76, where the Prosecutor stated that "Israeli authorities have *allegedly* been involved in the settlement of civilians onto the territory of the West Bank," "settlement-related activities have *reportedly* included the confiscation and appropriation of land," and Israel's "*alleged* movement of persons into . . . the territories in question" (emphases added), but she did concede that a UN Security Council resolution in 2016 "explicitly condemned the 'construction and expansion of settlements.'" See also ICC, "Report on Preliminary Examination Activities (2018)" (5 December 2018; <https://www.icc-cpi.int/sites/default/files/itemsDocuments/181205-rep-otp-PE-ENG.pdf>), para. 269.

293. ICC, "Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda, Regarding the Worsening Situation in Gaza" (8 April 2018; <https://www.icc-cpi.int/news/statement-prosecutor-international-criminal-court-fatou-bensouda-regarding-worsening-situation>).

294. See Table B in this appendix. In her annual update, the Prosecutor stated that "*Reportedly*, journalists and medical workers have been among those killed and injured . . . the majority of demonstrators *reportedly* engaged in non-violent protest and remained several hundred meters away from the border" (ICC, "Report on Preliminary Examination Activities (2018)," paras. 263, 264, emphases added).

within the Court's jurisdiction, committed in all parts of the territory of the State of Palestine." Lest her good faith be doubted, the Prosecutor declared on an upbeat note that her "preliminary examination has seen important progress" and "has reached an advanced stage."²⁹⁵

Then, lo and behold, out of the clear blue sky, less than three weeks after she issued her infamous "Final Decision" not to investigate the *Comoros* referral, and manifestly in reaction to the resounding outrage that her outrageous decision provoked inside the ICC,²⁹⁶ suffering from an acute deficit of credibility and desperate to restore it, in 2019 the Prosecutor announced, in an audacious reputation-rehabilitation move, that she was "satisfied that there is a reasonable basis to initiate an investigation into the situation in Palestine."²⁹⁷ *Free at last, Free at last, Thank God almighty we are free at last?* No. The chief prosecutor's wretchedness was rivaled only by her wiliness. It will be recalled that she had emphatically and repeatedly stated "that, since Palestine was granted observer State status in the UN by the UNGA, it must be considered a 'State'" and therefore could transfer to the ICC criminal jurisdiction over the "situation in Palestine." In a volte-face,

295. ICC, "Statement by ICC Prosecutor, Mrs. Fatou Bensouda, on the Referral Submitted by Palestine" (22 May 2018; <https://www.icc-cpi.int/news/statement-icc-prosecutor-mrs-fatou-bensouda-referral-submitted-palestine>); ICC, "Report on Preliminary Examination Activities (2018)," paras. 252, 282.

296. In the *Comoros* litigation following her ultimate "Final Decision," the Prosecutor pointed to her decision to open an investigation in the *Palestine* situation (see below) as proof of her impartiality. "Prosecution's Consolidated Response to the Third 'Application for Judicial Review by the Government of the Comoros' (ICC-01/13-100), and the Observations of Victims (ICC-01/13-107 and ICC-01/13-108)" (11 May 2020; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2020_01867.PDF), para. 4. See also "Reply of the Government of the Comoros to the Responses of the Prosecutor and Victims on the Application of the Comoros for Judicial Review" (26 May 2020; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2020_02106.PDF), para. 5.

297. "Prosecution Request Pursuant to Article 19(3) for a Ruling on the Court's Territorial Jurisdiction in Palestine" (22 January 2020; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2020_00161.PDF), para. 2. Incidentally, whereas in 2016 the Prosecutor was in the dark whether Israel was even building settlements in the West Bank, let alone that they were illegal, she suddenly discovered in this "Prosecution Request" that, already decades ago and forward to the present, and repeatedly to the point of ad nauseam, "The UN General Assembly, the Security Council, the ICJ and UN human rights bodies, among others, have uniformly deemed the establishment and maintenance of Israeli settlements in the West Bank, including East Jerusalem, to be in violation of international law." *Ibid.*, paras. 7, 43, 54, 58, 86, 88, 101, 146, 151, 153, 157, 158, 159, 160, 162, 163, 164, 165, 166, 167, 168, 169, 170, 171, 172, 173, 174, 176 (quote).

the Prosecutor was now seized by second thoughts about whether to proceed with an investigation until the Court weighed in on jurisdiction: “Palestine does not have full control over the Occupied Palestinian Territory and its borders are disputed. . . . Moreover, the question of Palestine’s Statehood under international law does not appear to have been definitively resolved.”²⁹⁸ She called on the PTC to affirm, *first*, that Palestine was a State over which the ICC could exercise jurisdiction and, *second*, that its territory comprised the West Bank, including East Jerusalem, and the Gaza Strip: “However, given the unique and highly contested legal and factual issues attaching to this situation, namely, the territory within which the investigation may be conducted, I . . . requested from Pre-Trial Chamber I a jurisdictional ruling on the scope of the territorial jurisdiction of the International Criminal Court.”²⁹⁹ If the Prosecutor turned to the PTC at this stage, it was, she purported, from considerations of “judicial economy”: precious ICC “time and effort” would be squandered if an investigation were undertaken and then invalidated in the future on jurisdictional grounds. But if she truly harbored jurisdictional doubts—and wasn’t just playing for time after her hand was forced to carry out an investigation—why then didn’t the chief prosecutor resolve these questions before undertaking the preliminary examination four years earlier? She herself wrote that it “makes sense to resolve jurisdictional questions as promptly as possible.”³⁰⁰ Further, it’s hard to fathom

298. “Prosecution Request,” paras. 5, 35.

299. ICC, “Statement of ICC Prosecutor, Fatou Bensouda, on the Conclusion of the Preliminary Examination of the Situation in Palestine, and Seeking a Ruling on the Scope of the Court’s Territorial Jurisdiction” (20 December 2019; <https://www.icc-cpi.int/news/statement-icc-prosecutor-fatou-bensouda-conclusion-preliminary-examination-situation-palestine>). A response submitted by the State of Israel pretended to solicitude at preserving the ICC’s “credibility and legitimacy”—even as it had pointedly opted not even to join the Court. It asserted that Palestine did not qualify as a State because it did not “exercise control in as much as 60 percent of the West Bank . . . nor exercise any powers over Jerusalem.” Whose fault might that be? Certainly not Israel’s: “Israel has not only recognized the Palestinian right to self-determination and facilitated Palestinian self-governance . . . but has also agreed to further promote Palestinian self-rule.” It also asserted that Palestinian recourse to the ICC would be superfluous as “Israel remains willing and able to address any Palestinian grievance.” State of Israel, Office of the Attorney General, “The International Criminal Court’s Lack of Jurisdiction over the So-Called ‘Situation in Palestine’” (20 December 2019; <https://www.gov.il/en/pages/icc-s-lack-of-jurisdiction-over-so-called-situation-in-palestine-20-dec-2019>), paras. 23, 25, 33, 36, 37, 41, 63, para. 9 of the Executive Summary.

300. “Prosecution Request,” paras. 6, 20, 24, 38. For the Prosecutor’s prerogative to request a PTC ruling on jurisdictional questions during the preliminary examination, see *ibid.*, paras.

how she even carried out a preliminary examination if, as she now alleged, the territorial unit's scope, and therefore the Court's jurisdiction, were indeterminate.³⁰¹ The truth was that the Prosecutor had granted herself another reprieve by eking out another pretext for not opening an investigation. Instead, she inaugurated yet another chapter in the never-ending "preliminary examination" story. *Lord, how long must I wait?*

Deluged as it was with *amici curiae*, the PTC took more than a year before it reached a decision.³⁰² In 2021, the PTC affirmatively found that

24, 27, 28nn48, 49, and ICC, "Decision on the 'Prosecution Request Pursuant to Article 19(3) for a Ruling on the Court's Territorial Jurisdiction in Palestine'" (5 February 2021; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2021_01165.PDF), paras. 69, 73.

301. For the Prosecutor's implicit, disingenuous attempt to meet this criticism, see "Prosecution Response to the Observations of *Amici Curiae*, Legal Representatives of Victims, and States" (30 April 2020; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2020_01746.PDF), para. 9.

302. The total number of submissions exceeded fifty, each running to about thirty pages. An *amicus* brief by eminent British barrister Malcolm Shaw on behalf of Israel posited that the key questions in the Israel-Palestine conflict—territorial title, status of East Jerusalem, status of Israeli settlements, two-state settlement—have "not been resolved." Where had Shaw been the past half century? Basing itself on political developments since the 1967 war, as played out in the various chambers of the UN and impressed in a voluminous documentary record, the International Court of Justice found in its landmark 2004 Advisory Opinion that Palestinians constituted a "people" and that their "rights include the right to self-determination"; that the entirety of the West Bank, "including East Jerusalem," constituted "Occupied Palestinian Territory"; that "the Israeli settlements in the Occupied Palestinian Territory (including East Jerusalem) have been established in breach of international law"; and that the conflict would be resolved in "the establishment of a Palestinian State, existing side by side with Israel." If, according to Shaw, these questions hadn't found a legal resolution, that's because they were uniquely "complex." In fact, judging by the UN record, a uniquely enduring and overwhelming consensus had crystallized on these points. What stood in relief was not their complexity but, on the contrary, their *simplicity*. More recently, Shaw has served as chief counsel for Israel in the genocide case at the International Court of Justice (see Prologue and Chapter 3 of this volume). It was a strange sight to behold as he stood proud-as-a-peacock smugly defending—*de facto* and in effect—Israel's right to commit genocide in Gaza. What was he so prideful of? At one point in the ICJ oral hearing, the morally askew barrister cutely quipped on a technical point that South Africa "seems to believe that it does not take two to tango." A *tango* allusion in a genocide litigation? Malcolm N. Shaw, "Submission of Observations to the Pre-Trial Chamber Pursuant to Rule 103" (16 March 2020; https://www.icc-cpi.int/sites/default/files/CourtRecords/CR2020_01017.PDF), paras. 6, 21, 29, 33, 34, 35, 36, 37, 38, 39, 42, 47(i, v). International Court of Justice, *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory* (9 July 2004; <https://www.icj-cij.org/sites/default/files/case-related/131/131-20040709-ADV-01-00-EN.pdf>), paras. 78, 118, 120, 162. International Court of Justice, "[I]n the Case Concerning Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)," *Public Sitting*

Palestine did constitute a “State” for the purposes of the ICC, and that the “Court’s territorial jurisdiction . . . extends to the territories occupied by Israel since 1967, namely Gaza and the West Bank, including East Jerusalem.”³⁰³ *But*, even as it gave the Chief Prosecutor a green light to proceed with an investigation, the PTC deferred certain critical jurisdictional ques-

(12 January 2024; <https://www.icj-cij.org/sites/default/files/case-related/192/192-20240112-ora-01-00-bi.pdf>), p. 26, para. 16.

303. ICC, “Decision on the ‘Prosecution Request Pursuant to Article 19(3) for a Ruling on the Court’s Territorial Jurisdiction in Palestine,” paras. 112, 118. The PTC Presiding Judge, Péter Kovács, issued a “Partly Dissenting Opinion” that ran to an extraordinary 163 pages (5 February 2021; https://www.icc-cpi.int/sites/default/files/RelatedRecords/CR2021_01167.PDF). It interspersed meandering pedantic excursions with standard Israeli talking points. See, e.g., paras. 230–46, 268–81, on the allegedly indeterminate scope of the State of Palestine’s territory. In reality, no fact has been more firmly established by the organs of the United Nations than that *the whole of the West Bank, including East Jerusalem, and the Gaza Strip constitute Occupied Palestinian Territory and the designated territorial unit of the State in which Palestinians shall exercise their right to self-determination*. In accordance with this consensus usage, the International Court of Justice denoted the West Bank, including East Jerusalem, and the Gaza Strip “Occupied Palestinian Territory.” In its 2024 Advisory Opinion, the Court concluded that “the continued presence of Israel in the Occupied Palestinian Territory is illegal.” If Israel could lay legitimate claim to even a tittle of the West Bank, including East Jerusalem, and the Gaza Strip, then how could the Court have reached this legal determination? *Legal Consequences Arising from the Policies and Practices of Israel in the Occupied Palestinian Territory, Including East Jerusalem* (19 July 2024; <https://www.icj-cij.org/sites/default/files/case-related/186/186-20240719-adv-01-00-en.pdf>), paras. 261, 266. Here’s Kovács’s own lucid exposition of the jurisdictional issue:

The geographical scope of application of the Prosecutor’s competence to investigate covers the territories of the West-Bank, East-Jerusalem and the Gaza [S]trip but—under the actual legal coordinates and with the exception of the hypothesis of article 13(b) of the Rome Statute—subject to due consideration of the different legal regimes applied in areas A, B, C and East Jerusalem according to the Interim [Oslo] agreement (and in particular according to its article XVII), Annex IV attached thereto (and in particular according to the dispositions under rules 1(a), 1(c), (2), (4) et (7) of Article I) and other subsequent Israeli-Palestinian agreements adopted on this basis, which could eventually imply the duty to follow the rules of article 12(3) of the Rome Statute and the utility of profiting from the possibility stipulated in article 87(5) of the Rome Statute. (Kovács, “Partly Dissenting Opinion,” para. 372)

But why, pray tell, did Kovács omit rule 27(q) and article 59(26)? The odds that this demented scoundrel, this preposterous gasbag, this paid-per-word prostitute, who has made many an appearance in the footnotes to this appendix (see numbers 80, 134, 172, 228, and 252), wasn’t on Israel’s payroll were about even with those that he expelled this dried cowpat without an assist from his handlers (see, e.g., “Partly Dissenting Opinion,” paras. 247–61).

tions to the future.³⁰⁴ Here's the point where satire met farce. The Prosecutor allegedly turned to the PTC in the first place in order to resolve the jurisdictional question in the interests of "judicial economy." But, after yet another round of excruciating, protracted litigation, the ultimate disposition of the jurisdictional question remained wide open. Still, the question had been, for the time being, resolved in the State of Palestine's favor, thus compelling the Prosecutor to announce that "an investigation respecting the Situation in Palestine" would go forward.³⁰⁵ It's no doubt true that the Prosecutor had mounted a robust defense before the PTC that Palestine was a State, that its territory comprised the West Bank, including East Jerusalem, and the Gaza Strip, and that the ICC had jurisdiction over alleged crimes committed in that territory. But, in the face of an internal rebellion at her "Final Decision" in the *Comoros* referral, she seemingly had no choice but to defend ICC jurisdiction in the Palestine situation. In any event, the bottom-line was that the Prosecutor now had—*by purpose and design*—all of three months remaining in her term of office. She had successfully run out the clock. Except on a minor technical point,³⁰⁶ not another word passed from the Prosecutor's lips on the "Situation in Palestine." Her last exhortation, her valedictory, as it were, was to "urge patience."³⁰⁷ Yes, be patient. . . *until I'm outta here!* While redeeming herself in the eyes of an ignorant or gullible public by her decision to investigate the *Palestine* situation, in fact she had adeptly maneuvered to saddle the incoming chief prosecutor with all the professional and personal burdens of it.³⁰⁸

304. ICC, "Decision on the 'Prosecution Request Pursuant to Article 19(3) for a Ruling on the Court's Territorial Jurisdiction in Palestine,'" paras. 129, 131.

305. ICC, "Statement of ICC Prosecutor, Fatou Bensouda, Respecting an Investigation of the Situation in Palestine" (3 March 2021; <https://www.icc-cpi.int/news/statement-icc-prosecutor-fatou-bensouda-respecting-investigation-situation-palestine>).

306. Letter from OTP to Israel, 9 April 2021: ICC-01/18-355-SECRET-Exp-AnxD.

307. "Statement of ICC Prosecutor."

308. For certain, Bensouda's absence would not be missed. The initial charge-sheet of her investigation of war crimes during Operation "Protective Edge" (2014) indicted Israel and Hamas as if the magnitude of crimes committed by each side almost perfectly balanced, or else tilted in Hamas's disfavor. "Prosecution Request," paras. 93–94. In fact, the scale was wildly imbalanced in *Israel's* disfavor. To cite a couple of indicative numbers, whereas Israel killed 550 Palestinian children and destroyed eighteen thousand Gazan homes during Protective Edge, Hamas killed one Israeli child and destroyed one Israeli home. Good riddance to bad rubbish. Norman G. Finkelstein, *Gaza: An inquest into its martyrdom* (Oakland: 2018), p. 240.

During her term of office, Fatou Bensouda suppressed one investigation and eluded for six years her responsibility to pursue a second investigation into Israel's criminality. It is not at all an exaggeration to posit that her perfidy helped pave the path, it was a critical way station, to the genocide in Gaza: the unmistakable message transmitted by Bensouda's (in)action was that, however egregious its crimes, Israel would never be held legally accountable for them. The tantalizing question never pondered—at any rate, in public—was *why* did the Prosecutor relentlessly prevaricate and procrastinate, deny and delay?³⁰⁹ The answer reduced to two possibilities: Israel was either blackmailing or bribing Fatou Bensouda. *Tertium non datur*. In every respect down to the finest biographical detail, the former ICC chief prosecutor was the obvious precursor of current ICJ vice-president Julia Sebutinde. Of those who have recently sung paeans to Bensouda's rectitude, what else can be said except—*Quelles idioties*?!

309. The one exception was the eminent legal scholar John Dugard. He openly speculated that Fatou Bensouda, who had accumulated a closet full of skeletons from her professional stint in The Gambia (including complicity in torture), was being blackmailed by Israel. John Dugard, "Prospects for a Formal ICC Investigation into the Palestine Situation Are Nil" (10 December 2019; <https://kiaoragaza.wordpress.com/2019/12/10/prospects-for-a-formal-icc-investigation-into-the-palestine-situation-are-nil>).

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